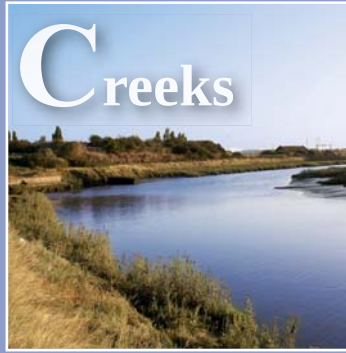
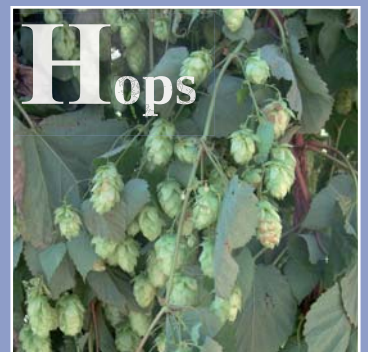
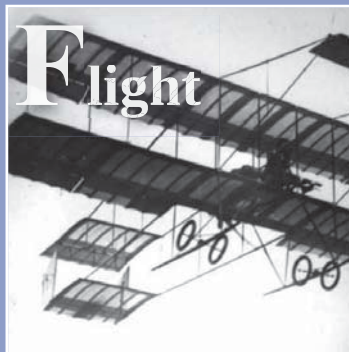
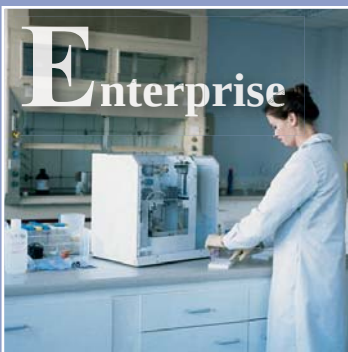




Bearing Fruits 2031

The Swale Borough Local Plan

Adopted July 2017



Foreword

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Foreword

Bearing Fruits 2031, the Swale Borough Local Plan, is the most important planning document for the Borough, setting out the vision and overall development strategy for the area and how it will be achieved for the period from 2014-2031. It identifies where development will take place and how the natural environment and built heritage of the Borough will be protected and enhanced. It allocates major sites and locations for housing and employment to meet the needs of our growing population and in accordance with national planning policy and practice.

The Local Plan has been prepared at a time of change in the national planning policy system and has responded positively to the challenges this context has set. The preparation of the Local Plan has been a long and detailed process, taking into account the preparation of a detailed evidence base, numerous stages of consultation and an Examination in Public chaired by a Government Planning Inspector. The Inspector's final recommendations have been incorporated into the plan.

Councillor Gerry Lewin, Deputy Leader and Cabinet Member for Planning, Swale Borough Council

I would like to take this opportunity to thank all the local residents and businesses, local groups and interested parties, statutory consultees, councillors and others who have contributed to the process and successful adoption of this Local Plan. We now believe we have a Local Plan that will meet development needs and deliver an ambitious vision for the Borough.

Councillor Andrew Bowles, Leader, Swale Borough Council

Foreword

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Note also that maps have been captured at a scale of 1:2500 and should only be viewed online at this scale.

1 Setting the scene: the context for planning in Swale

What is the Development Plan?

1.0.1 Local plans are part of the development plan for an area. The development plan is the system of statutory planning documents against which planning applications will be determined. The Government believes that local plans are the key to delivering sustainable development that reflects the vision and aspirations of local communities. The Swale Borough Local Plan will be the most important planning document for Swale, setting out the vision and overall strategy for the area and how it will be achieved for the period from 2014 until 2031.^(1.1) It must have regard to national planning policy and guidance. Applications for planning permission must be determined in accordance with the development plan, unless material considerations indicate otherwise. As such, planning law gives great importance to up-to-date and adopted local plans.

1.0.2 For Swale, the development plan comprises:

1. The Swale Borough Local Plan;
2. Neighbourhood Plans where they exist within Swale; and
3. The Minerals and Waste Local Plan, prepared by Kent County Council.

1.0.3 All the policies and proposals in the development plan should be read 'as a whole', that is, subject to all other relevant policies in the Local Plan and other material considerations.

The new Swale Borough Local Plan

1.0.4 The new Swale Borough Local Plan sets out:

- a description of the Borough, its strengths and weaknesses, as well as the vision, objectives and key diagram for the future (Chapter 2 and Chapter 3). The key diagram indicates broad locations for growth, protection and enhancement;
- the strategy for the Borough, including the achievement of sustainable development (Chapter 4). The chapter also includes a ;
- a series of core policies that take important issues for Swale and create the necessary linkages with the policy themes, set out in national planning policy and other local plan policies (Chapter 5);
- details of allocations, the identification of regeneration areas, a neighbourhood plan and an area of search (Chapter 6);
- a framework of development management policies to guide the determination of planning applications by setting out criteria for development proposals (Chapter 7); and
- a framework for implementation and monitoring of the Local Plan. Chapter 8 sets out the issues affecting the delivery of the Local Plan, whilst a separately published Implementation and Delivery Schedule details the infrastructure necessary to support the Local Plan.

1.0.5 Where appropriate, local plan policies which relate to specific boundaries are shown on a Proposals Map. In the case of the Minerals and Waste Local Plan, the relevant mineral safeguarding areas can also be viewed on a Proposals Map ([River Terrace](#), [Brickearth Swale Areas](#), [Wharfs and Rail Depots](#)).

1.0.6 The Local Plan is supported by existing and proposed supplementary planning documents which set out the details for implementing local plan policies.

1.0.7 The Council also has an adopted Statement of Community Involvement (SCI). The SCI is a statement about our policy on the involvement of people who have an interest in matters relating to development in their area.

1 Setting the scene: the context for planning in Swale

Realising our ambitions for Swale

1.0.8 Updated in 2012, the Council's Sustainable Community Strategy, Realising our ambitions for Swale, has an overarching vision for the Borough to transform its economic, social and environmental prospects, making it one of the best places in Britain in which to live, work, learn and invest. Its priorities relate to children and young people, economy and regeneration, environment and liveability, health and housing and safer and stronger communities. The Local Plan has been prepared to expressly support these priorities.

The wider planning system

1.0.9 The preparation of this local plan is undertaken within the wider national planning system. The [Localism Act 2011](#) aims to give local communities more say over the amount of development that should be steered to their areas, within the context of local plans and their own supporting evidence. The main elements of the Localism Act include:

- preparation of neighbourhood plans where communities can decide what their area should look like; and
- incentives, such as the New Homes Bonus, are intended to financially reward those Councils and communities that deliver new homes and businesses.

1.0.10 In March 2012, the Government published the [National Planning Policy Framework](#) (NPPF). It calls for local plans to be aspirational but realistic and address the implications of future change, requiring them to set out the strategic priorities for their areas with policies to deliver homes and jobs, commercial development, infrastructure, healthy communities, to address the impacts of climate change and for the protection and enhancement of the environment. The NPPF provides for a presumption in favour of sustainable development by which proposals judged to comply with an up-to-date development plan should proceed and where a development plan is absent, silent or out-of-date, permission should be granted unless the harm caused is demonstrated to be significant and outweighing of the benefits, or specific policies in the NPPF indicate that development should be restricted.

1.0.11 This local plan has been developed in line with the NPPF and seeks to give the NPPF a local interpretation in response to Swale's particular needs and characteristics.

1.0.12 In March 2014 the Department for Communities and Local Government (DCLG) launched the [National Planning Practice Guidance](#) (NPPG). This is a web-based resource which links the National Planning Policy Framework with national planning practice guidance, as well as legislation and other guidance.

The Community Infrastructure Levy (CIL)

1.0.13 CIL is a way of enabling local councils to pay for the infrastructure needed to accommodate growth in their areas. It represents a common rate charge which, once adopted, applies to all development proposals over specified size limits. Councils wanting to use CIL will have to prepare a charging schedule which is then examined by the Government prior to its adoption by the Council. Developers will continue to make payments called Section 106 agreements, but councils will be no longer able to pool the contributions of more than five agreements to fund a single project. Swale is currently preparing its CIL schedule which will reflect the Local Plan Implementation and Delivery Schedule and affordable housing policy. The future adoption of a CIL schedule in Swale may render references to Section 106 in this document subject to change.

The Local Enterprise Partnership (LEPs)

1.0.14 LEPs have been established by the Government for the purpose of creating or improving the conditions for economic growth in an area and promoting cross-border working. They are particularly responsible for promoting and allocating public funds to road transport schemes. Swale sits within the [East Sussex, Essex, Kent, Medway, Thurrock and Southend LEP](#).

Local Nature Partnerships (LNP)

1.0.15 LNPs have also been established by the Government in order to drive positive change in the local natural environment, taking a strategic view for the benefit of nature, people and the environment. The Thames Gateway Local Nature Partnership lies partially within Swale whilst [The Kent Local Nature Partnership](#) covers the whole of the county.

The Duty to Co-operate

1.0.16 The Localism Act calls on public bodies to have a duty to co-operate on strategic planning issues that cross administrative boundaries. We have worked collaboratively with Kent County Council, our neighbouring local authorities and other public bodies such as Highways England, Natural England, the Environment Agency and the Kent Downs Area of Outstanding Natural Beauty Unit, the LEP and LNPs as well as the private sector including utility and infrastructure providers.

1.0.17 A statement is available to demonstrate compliance with this duty.

Steps in preparing the Local Plan

1.0.18 Our evidence: The production of the Local Plan is based on a comprehensive research and evidence base, which includes land availability, transport and other community infrastructure capacity, flood risk assessment and environmental assets. The data and guidance covers a wide range of sources, including bespoke work undertaken for Swale, work done in partnership with other agencies and references to Government and other public bodies' research and good practice guidance.

1.0.19 Engagement: From 2008 we undertook a number of workshops to explore important questions facing the Borough and carried out two consultations on our draft local plan vision and objectives. We also undertook a community roadshow where those who took part were asked about the importance we should be attaching to the amount of new housing and jobs we needed to provide, together with the conservation of the Borough's environment. The following documents were then published for consultation.

Swale Core Strategy Pick Your Own: Issues and Strategic Spatial Options (January 2011) Explored alternative options for the number of new homes, jobs and associated infrastructure and where they should be located. It set out:

- the agreed vision for the Borough and the objectives that assist with delivering this vision;
- a broad development strategy for the Borough;
- four strategic spatial development options; and
- a proposed framework of core policies and development management policies.

Bearing Fruits: Swale Borough Draft Core Strategy (March 2012): The draft plan was at this time a Core Strategy and did not contain all the development allocations needed. It considered both the technical evidence and the views from *Pick Your Own* and arrived at our preferred strategic option that included the overall amount and location of development and allocations for key sites and infrastructure. It also fleshed out the suite of policies to help achieve the vision and objectives.

1 Setting the scene: the context for planning in Swale

[Bearing Fruits 2031: The consultation draft Swale Borough Local Plan Part 1](#) (August 2013). This took into account previous consultation responses as well as the considerable changes brought about by the NPPF. A significant change was its expansion to include all the allocations necessary and a complete suite of up to date development management policies. At this point, the document changed from a Core Strategy to a Local Plan.

[Bearing Fruits 2031: The Swale Borough Local Plan Part 1: Publication version](#) (December 2014) was the publication version of the Local Plan which underwent consultation on whether the plan was properly prepared and sound. The Local Plan was subsequently submitted to the Secretary of State for public examination, along with representations received during this consultation phase and the Council's draft responses to points raised.

1.0.20 Examination: The Secretary of State appointed a Planning Inspector to determine the issues to be heard at an Examination in Public (EIP). Hearings took place in November and December 2015 and were a chance for the Inspector to scrutinise the Local Plan with input from public agencies, developers, conservation bodies and the public in a series of round-table discussions. The Planning Inspector published Interim Findings on the Swale Borough Local Plan in early 2016. These were a summary of findings to date and included a broad overview of significant changes which were needed to make the plan sound. In response to the Inspector's Interim Findings, the Council prepared a number of Main Modifications to the Local Plan for consultation (Bearing Fruits 2031: The Swale Borough Local Plan, Proposed Main Modifications, June 2016). These Main Modifications actioned the Inspector's recommendations, which reflected the discussions at and recommendations arising from the Local Plan hearings to date.

1.0.21 Following the conclusion of the Main Modifications consultation, all responses were forwarded to the Planning Inspector for consideration and the Examination Hearings were reconvened in January and February 2017. In June 2017 the Inspector issued her Final Report on all of the issues considered at the EIP. The Inspector's report confirmed those main modifications (in some cases with final adjustments made by the Inspector) which must be incorporated into the plan to render it sound for adoption. The Inspector's recommendations have now been incorporated into the Plan, which was adopted by Swale Borough Council on 26th July 2017.

Assessing the Local Plan

1.0.22 The Council has used a number of assessments at various stages to ensure that the potential impacts of the Local Plan are properly examined:

- **Sustainability Appraisal (incorporating a Strategic Environmental Assessment):** This assesses the environmental, social and economic performance of the plan against a set of sustainability objectives. Appraisals were undertaken at all stages of the Local Plan preparation, and their recommendations have been considered and, where appropriate, acted upon. The Sustainability Appraisal Statement sets out in full all the stages of the Sustainability Appraisal.
- **Habitats Regulations Assessment process:** Ensures that biodiversity sites that are important in a European context are protected. A [Habitats Regulations Assessment](#) accompanied the publication, submission and modification versions of the Local Plan.
- **Health Impact Assessment:** Ensures that the potential impact of decisions on health and health inequalities are considered. The NHS undertook a Rapid Health Impact Assessment on the *Pick Your Own* Issues and Strategic Spatial Options.
- **Community Impact Assessment (CIA):** Ensures that any policies and proposals ensure that the diversity of the community is respected and the positive and negative impacts highlighted. Community Impact Assessments were prepared and published alongside the August 2013 and December 2014 Local Plans.

Setting the scene: the context for planning in Swale

1

- **Viability Assessment:** The sites and scale of development in the Plan should not be subject to a scale of obligations and policy burdens which renders them non-viable to develop and therefore undeliverable. Assessments were undertaken and a number of changes made to the policies of the Local Plan as a result.
- **Infrastructure assessments:** Infrastructure providers, including transport authorities, have assessed the growth proposals of the Local Plan that have informed 8.1 and the preparation of its infrastructure delivery schedule.

1 Setting the scene: the context for planning in Swale

End Notes

- 1.1 The start date for the Local Plan is 1st April 2014. This reflects the most up-to-date population and economic forecasts that were undertaken following the Publication version of the Local Plan.

2 Taking a journey through Swale

2.1 Shaped by location, people, products and environment

Introduction

2.1.1 Economic, social and environmental changes are part of everyday life. The Local Plan considers how, when and where change will happen and is based on a knowledge and understanding of Swale's current state and distinctiveness.

2.1.2 Those familiar with Swale know it as a highly diverse and distinctive place of towns and villages set in downland, farmland and coast. These characteristics are reflected in its strengths and weaknesses that do not always fit the outside perceptions of a relatively prosperous part of south east England. Nevertheless, Swale possesses great assets, many of which have yet to be realised.

2.1.3 Swale's local distinctiveness can be found in its buildings and landscapes, people, products, nature, and customs, but also in less tangible qualities like literature, history, celebrations, names, recipes, myths, legends and symbols. Striving for local distinctiveness is about demanding the best of the new so that quality and authenticity adds richness to our surroundings. In order to identify this at a strategic level, the Council asked for suggestions for creating a Swale ABC as a way of recording the things that make an area locally distinct, listing them alphabetically and producing them in an attractive and visual way. These are reflected in The Swale ABC.



Picture 2.1.1 The Swale ABC

What's in a Crest?

Hidden in the Borough Crest are elements of what makes Swale distinct. Dissecting it tells us much about the Borough:

- Colour gold to signify wealth - historical, industrial, agricultural.
- Waves to signify ports, boat building and ancillary trades and, of course, the Swale.
- Red lion/blue ship shows Faversham's link to the Cinque Ports.
- Five cherries as the centre of Kentish fruit growing activities.
- The Ram as a reference to agriculture and to the Isle of Sheppey.
- The White Horse of Kent.
- Heraldic sea lions as a reference to historic Kings and Queens.
- The crozier a reference to monastic and religious establishments at Minster and Faversham.
- Pilgrim's staff and pouch a reference that the area is on the pilgrims' route from London to Canterbury.



Unlocking the Secrets of Swale's Armorial Bearings (Leaflet, 1999)

2 Taking a journey through Swale

Shaped by our location

2.1.4 Swale is the bridging point between north and east Kent, named after the narrow channel of tidal water between mainland Kent and the Isle of Sheppey. It is a Borough of some 140,800 people who primarily live in its three main towns, Sittingbourne, Faversham and Sheerness.^(2.1)

2.1.5 Swale has strong communication links. It is close both to London and mainland Europe and well connected to the national motorway network. The M2 runs east-west across the Borough, providing access to destinations between the Channel Ports and London. Via the A249 there is alternative access along the M20. London is accessible in a little over an hour by high speed rail services. As a coastal Borough, the Port of Sheerness gives access, via its deep water



Picture 2.1.2 The Swale

berths, to the largest ships in the world; its imports distributed to all corners of the UK. Swale is also within easy reach of other major Kent centres - Canterbury, Ashford, Maidstone and the Medway Towns.

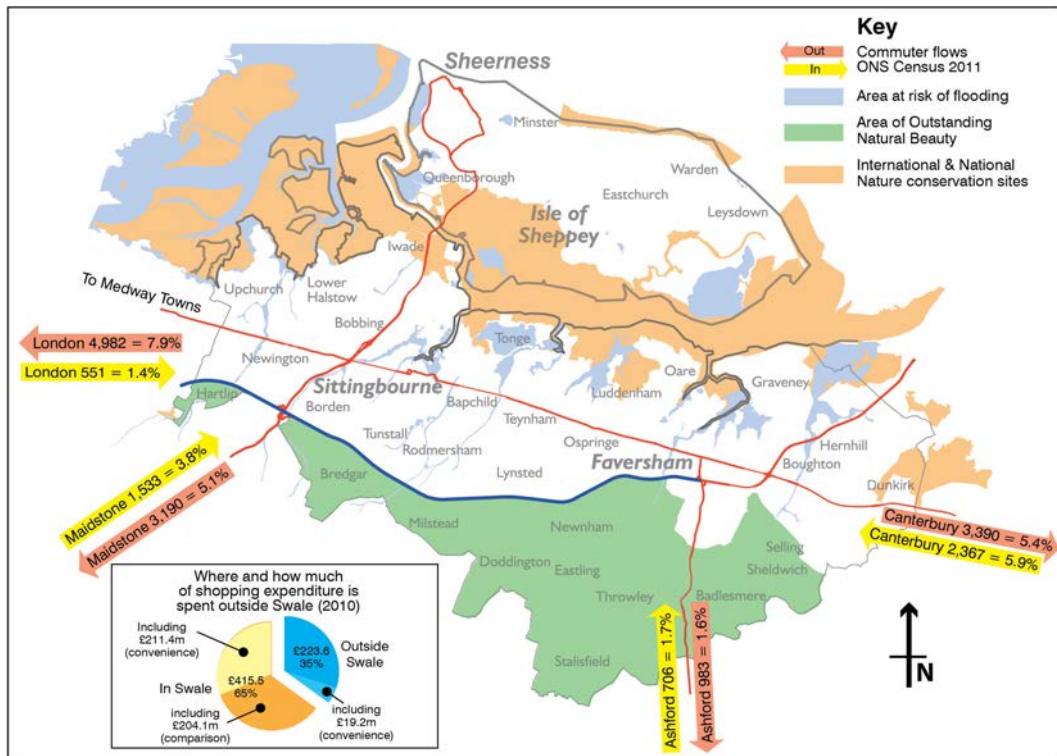
2.1.6 Sittingbourne (population 49,300)^(2.2) is the main town, acting as a population, employment and service centre for the Borough. These functions and the town's present day character have their roots in past travellers and pilgrims and the industries that settled there. It is a product of its location on the London-Dover road and at the head of an inlet of the Swale, Milton Creek.

2.1.7 A unique feature within Kent is the Isle of Sheppey, separated from the mainland by the Swale. Its main town is Sheerness (population 12,500).^(2.3) It owes much of its distinctiveness to its role as a traditional seaside town and the past and present industries that established there, particularly the former naval dockyard and the current Port facility. The town centre functions as the main shopping and service centre for the Island's residents and visitors.

2.1.8 Faversham (population 19,600)^(2.4) is an attractive and historic small market town at the centre of a rich farming hinterland. Faversham and Oare are located at the head of two creeks and surrounded by attractive countryside. The town is best known for its continued links with brewing and food. This and the town's industrial and maritime heritage produce its present day character - an outstanding range of historic buildings, streets and waterways and a town centre with a strong independent retail and service sector.

2.1.9 Outside the towns, from Hartlip in the west to Dunkirk in the east, Sheldwich in the south to Shellness in the north, are the Borough's extensive rural areas. There is a great diversity of settlements and landscapes, many of great charm and character. Larger villages along the main transport routes like Newington, Teynham and Boughton have a range of local facilities and services. Away from the main routes are smaller, more isolated settlements and hamlets like Conyer, Warden and Throwley Forstal.

2.1.10 Over the last 20 years most of the villages and towns in Swale have experienced growth, with growth in the towns the most rapid. Over the last 60 years population growth has been amongst the most rapid in Kent. Now, Swale has the third largest district population in Kent and built development has similarly physically grown - in the last 10 years more employment floorspace has been built than anywhere else in the county and Swale has the fourth highest level of dwelling completions over the 10 years to 2014.^(2.5)



Picture 2.1.3 External factors shaping Swale.

Shaped by our people

2.1.11 The diversity of its communities - ages, ethnicity, skills and trades - has been Swale's strength for centuries. The area has been a draw to many people throughout history, from Iron Age settlers, Roman and Saxon invaders and Flemish refugees, through to 20th Century arrivals from London and today's communities from eastern Europe and Africa along with others who seek the area's cheaper housing and good transport links. All bring their own cultures and skills which further enrich and diversify the Borough.

2.1.12 Population growth in Swale has, and continues to be, largely fuelled by those who move here, but its indigenous population is ageing and the death rate is higher than both the Kent and the South East average. ^(2.6) The expanding urban populations are largely a result of migration into the area by younger people and families. This younger population brings with it a rising birth rate which partly offsets the older age groups and the impacts of an ageing population, as well as helping to maintain the population of working age. ^(2.7) Some 58% of the population are urban based, leaving a significant proportion (42%) living in the rural areas of the Borough. ^(2.8)

2.1.13 Ethnic minorities are still a small proportion of the population, although Swale is becoming more ethnically diverse, mostly to those from Black African, Black British, Asian or British Asian backgrounds. Although a very small proportion of the population, Swale also has one of the larger Gypsies and Traveller communities in Kent, both on their own sites and in permanent housing.

2.1.14 Almost 63% of the population of Swale regard themselves as Christian. Other religious communities such as Hindu, Muslim and Jewish, although not well represented, are likely to rise in line with the increase in the diversity of ethnicity in the Borough.

2 Taking a journey through Swale

2.1.15 Swale has a wide mix of household types - married couples, families, lone parents and single older persons. The proportion of older people and those co-habiting has increased while the number of married and one person households is relatively stable. The most common types of housing within Swale are semi-detached houses/bungalows and terraced properties and this is reflected across private, rented and registered social landlord properties. Swale has a higher proportion than the South East average of those owning their own homes (68%) and this has increased in the last 10 years by 2%.^(2.9)



Picture 2.1.4 Crowds at Faversham

2.1.16 There are wide contrasts between neighbourhoods in the Borough, from the most prosperous parts of Faversham and rural areas in the south of the Borough, to some of England's most deprived neighbourhoods in Sheerness, Bluetown, Queenborough, Rushenden, Leysdown and Warden, Davington, Murston and Milton Regis. This deprivation displays itself particularly in the poorer levels of educational attainments, ability to access jobs and health of these communities.

2.1.17 Surrounding us, in adjacent districts, are some 707,400 people. Notably, around the A2 corridor at the western end of the Borough, the Medway Towns, with its population of over 274,000, exerts urban and leisure influences on the character of this part of the Borough.^(2.10)

Shaped by our products

2.1.18 Many present day Swale industries - paper, brick, brewing, cement, steel and maritime - have roots in the past. Swale makes things, grows things, imports things and moves them around but there are relatively fewer offices, financial and high-tech businesses than most other parts of the South East.^(2.11) The town centres and industrial estates at Sittingbourne, Faversham, Sheerness and Queenborough are our main centres of economic activity. The largest industrial centre is at Eurolink, Sittingbourne, whilst Sheerness is a deep water port with rail freight connections and one of the UK's largest import points for fruit, timber, paper products and vehicles.



Picture 2.1.5 Home of science based industries

2.1.19 The largest private sector employers in Swale are in the industrial and transportation sectors including DS Smith Paper Ltd, Aesica (pharmaceuticals), Medway Ports and Shepherd Neame (brewers). There are more recent additions to employment in the Borough including major distribution and logistics firms (such as Morrisons) as well as growth in environmental, renewable resources and science-based industries such as those at the Kent Science Park, near Sittingbourne. Less recognised as a significant employer, is the public sector, including from the prisons on the Isle of Sheppey.

2.1.20 Within the rural area there are many, mostly small, businesses which significantly contribute towards employment in the Borough. Whilst this aspect of the local economy is sometimes overlooked, Swale has the second largest agricultural workforce in Kent and makes a significant contribution to UK

food supplies, particularly in fruit and cereals.^(2.12) Another understated and undervalued employment resource is tourism. Swale has an inviting built and natural environment which attracts visitors who explore Swale itself and further afield. During 2009, it was estimated that the expenditure of day and overnight visitors brought over £200m into Swale.^(2.13)

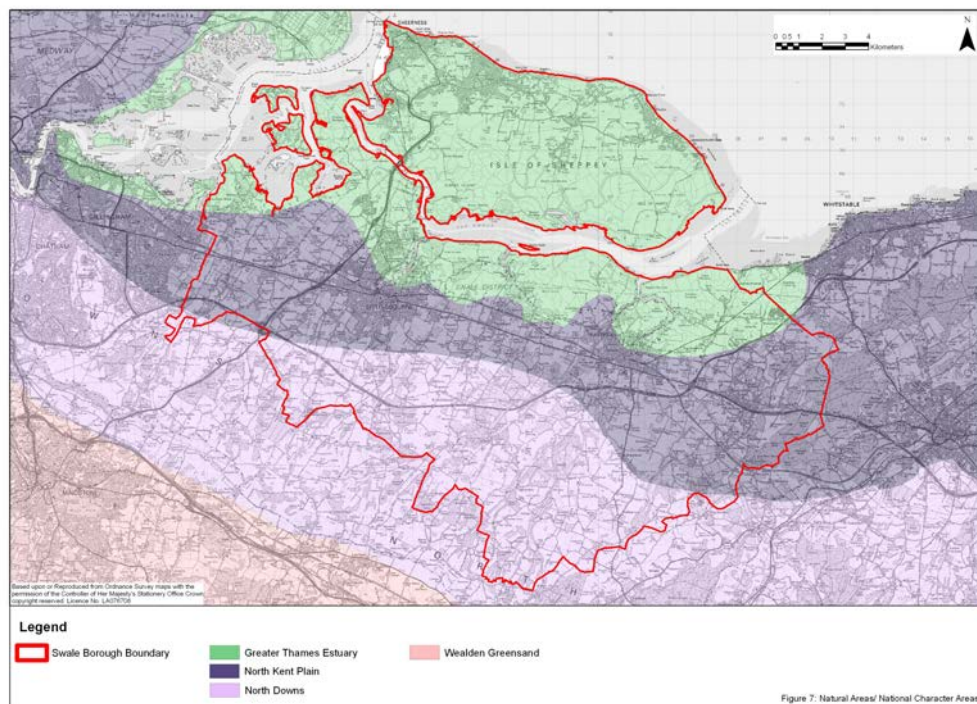
2.1.21 Some 44% of Swale's working residents are employed in the Borough, whilst the remaining 56% commute to areas outside. Of these around 26% work in the main towns of Kent with 18% within Medway, Canterbury and Maidstone, a further 8% travel to London. Some 70% of the journeys to Canterbury are generated from Faversham alone.^(2.14) The main reason for working outside Swale is the lack of availability of certain types of jobs within the Borough and the higher salaries available elsewhere.

2.1.22 Swale has the third highest number of international migrant workers of all Kent local authorities and has seen significant growth in economic migration from within the EU (particularly Lithuania, Poland, and Bulgaria) not only for agricultural work but for an increasing number of other work opportunities.^(2.15)

Shaped by our environment

2.1.23 The Borough's outstanding environment is influenced by its geology, soils, topography, history, people and biodiversity. There are three broad landscape types (Map 2.1.1) - the chalk of the Downs, the central agricultural plain and the clay marshes of the Thames Estuary.

2.1.24 In 2012, the largest proportions of land cover in Swale were arable (31%) and grassland (26%), followed by other (including sediment and cliff) (16%), development (14%), woodland (7%) and orchards and hops (6%).^(2.16)



Map 2.1.1 Natural England's national landscape character areas

2.1.25 The chalk grassland, fields, valleys and woodlands of the North Downs, comprising part of the Kent Downs Area of Outstanding Natural Beauty, dominates the southern reaches of the Borough. Its slopes and valleys fall coastward, criss-crossed by narrow and sometimes sunken lanes. Places such as Milstead, Newnham and Badlesmere create picture-book Kentish villages, their typical character influenced by their surroundings.

2.1.26 Beyond the chalk are the rich agricultural soils on the plains around Watling Street, the Roman road (now the A2). Here are some of the most productive soils in the country. Our settlements developed

2 Taking a journey through Swale

at the heads of creeks that ran from the Swale and later around Watling Street and then the railway. The growth of these settlements - Sittingbourne (subsuming the earlier established Milton Regis), Faversham, Newington and Teynham - were fuelled by trade and populations brought by sea, road and rail. The gunpowder, brewing, paper, defence, maritime, brick and barge making industries all thrived in these areas and their legacy remains in today's businesses, buildings, archaeology and landscapes. Agriculture, including fruit and hop growing, remains synonymous with the Borough motto: *Known by their fruits*; the area having been the cradle of cultivated fruit since the 16th Century.



Picture 2.1.6 A surviving example of Swale's traditional fruit heritage

2.1.27 London clay underlies the northern and coastal boundaries of the Borough. At 111 kilometres, the coast has a major influence on settlements, landscape, wildlife and industry. Around the Swale and Medway, extending inland to the edges of the three main towns, a continuous belt of marsh is prone to tidal flooding; its mudflats, grazing and salt marshes cut by ditches, dykes, inlets and creeks, are presided over by the sweeping arc of the Sheppey Bridge. With distant views and large skies overhead, the mood and character of these places change with tide, weather and season. Quiet and remote waters meander into creeks at places such as Oare, Conyer and Lower Halstow, influencing their character and activities. Along with Faversham and Milton Creeks, these watercourses and marshes provide important ecological habitats, in particular for wintering and passage birds.

2.1.28 The Isle of Sheppey is a unique combination of landscapes and communities. Its north coast faces the Thames Estuary, with views of Essex, huge container ships and wind farms on the horizon. The historic naval dockyard of Sheerness is now surrounded by a major commercial port. Queenborough retains its harbour of fishing boats, alongside industrial landscapes and seas of imported cars. North and eastwards, the Island is peppered by thousands of holiday chalets that swell the summer population. An increasing sense of remoteness prevails further east towards the shingle spit at Shellness, its community positioned precariously at the entrance to the Swale. The Island's spine of hills is topped by the settlements of Minster and Eastchurch, whose communities overlook marshes, the Swale and mainland to the south and whose landscapes slope down northwards to crumbling clay cliffs and the estuary.

2.1.29 On the mainland, the same clay soils affect the eastern and western fringes, with outcrops providing extensive and impressive views of the estuary and beyond. In the east, the woods, hills and pastures at the Blean extend to Canterbury and Herne Bay, sloping down to the agricultural plain and marshes; its hillsides and tops are thick with a canopy of trees, a home to rare birds and butterflies in one of the largest continuous woodlands in England. To the west and on a smaller scale, the ridge and woodland similarly rise up from the marshes between Iwade and Newington.

Thinking about the wider view

2.1.30 The Local Plan looks at guiding growth at the local level, but it is significantly affected by a variety of global, European and national factors, in particular wider economic change and uncertainties. European influences also include directives and laws which directly influence our national planning legislation.

2.1.31 Despite uncertainties, Swale is positively influenced by its location within 50 miles of central London. The Greater London region is a key driver of the UK economy, with an emphasis on growth,

investment and connectivity. Swale forms the eastern edge to the Thames Gateway growth corridor. This area continues to be the focus of growth that has for the last 20 years been a key location for the delivery of new homes and sustainable communities.

2.2 Facing the future - our strengths, weaknesses and opportunities

2.2.1 Below is a digest of the main challenges and opportunities facing the Borough as determined by our evidence.

Building a strong, competitive economy

- Only 50 miles from central London, with good transport links, including the High Speed Rail Link, and easy road access to the motorway network (M2/A2/A249/M20), international rail services and ports.
- Some population growth amongst economically active age groups, a strong tradition of entrepreneurship and relatively high rates of business formation.
- Poor performance in education and skills limits both the ability of local residents to access higher-value jobs and the attractiveness of the Borough to employers demanding higher skills.^(2.17)
- A net exporter of labour, with relatively high unemployment levels and not generally known as a business location further afield.^(2.18)

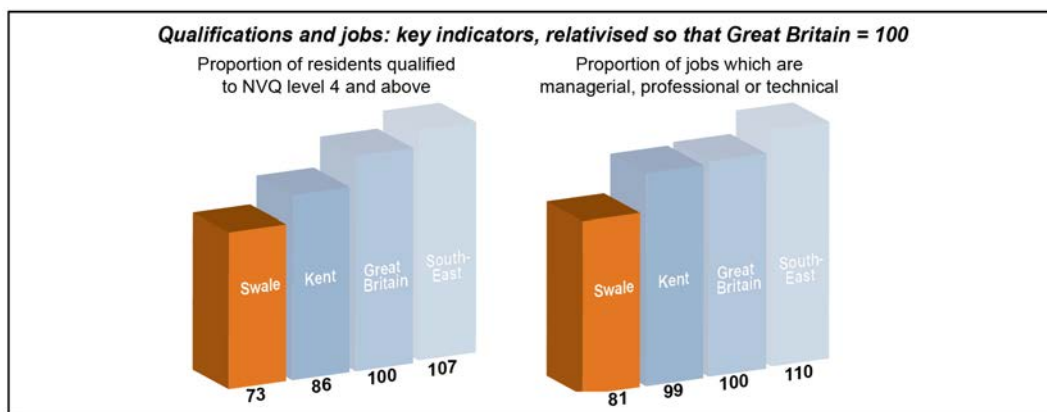


Figure 2.2.1 Qualifications and jobs - key indicators for Swale (IMD)

- Narrow economy with above average proportion of lower paid jobs. Strong representation by manufacturing and transport and under-represented by communications, health, banking and insurance, media activities and agriculture. However, whilst some rebalancing of the economy is occurring, further diversification is required.^(2.19)
- Increasing opportunities for the Borough in the developing knowledge economy sectors, such as technology-based businesses and environmental based industries, including at Kent Science Park.
- Agriculture and tourism need to modernise and diversify. Although there is renewed optimism, there has been a significant decline in orchard and hop land cover from 12.3% in 1990 to 6.3% in 2008.^(2.20)
- Retail, pharmaceutical, agriculture and manufacturing are growth sectors for the future. Cultural activity has a relatively low profile. There is a numerical surplus of industrial requirements and a shortfall of office requirement.^(2.21)

2 Taking a journey through Swale

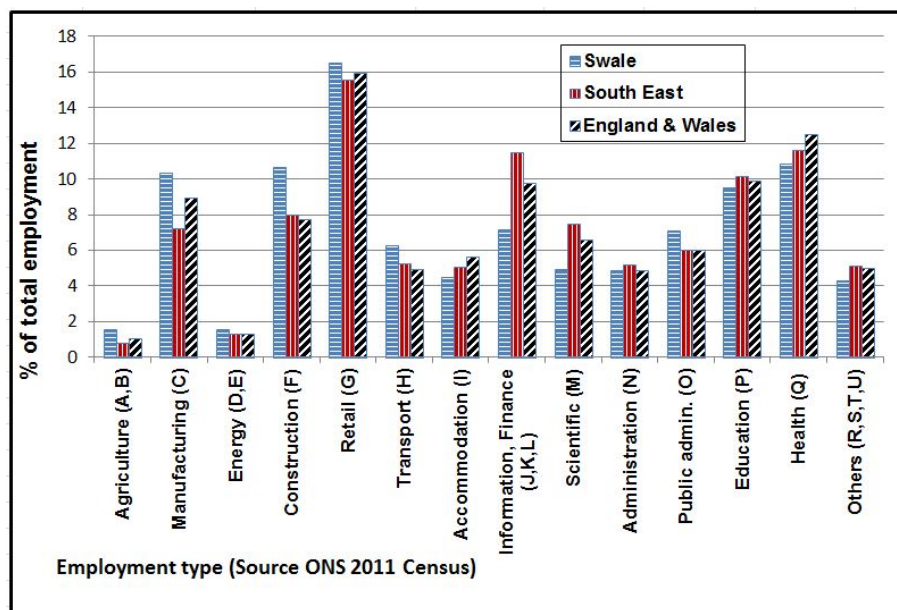


Figure 2.2.2 Swale employment sectors (Source: ONS Census, 2011)

Promoting sustainable transport

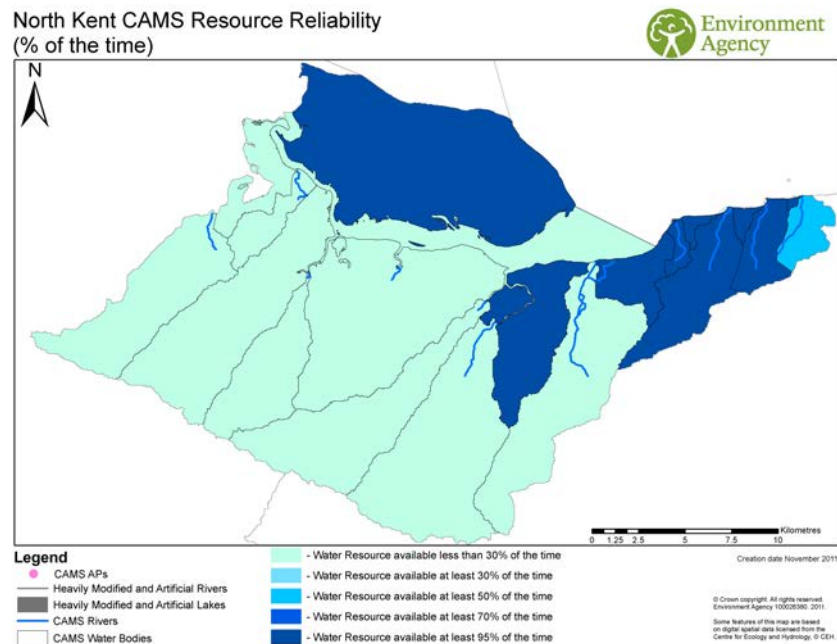
- Junction 5 of the M2 has a poor safety record and lacks capacity. It is the single greatest transport constraint in the Borough.
- High levels of road and fuel use, below UK average use of public transport, an underdeveloped public transport network and higher than average proportion with no access to a car. Although the increase is modest (1.5% given the increase in workforce between these years), an extra 3,900 persons were added to out-commuting between 2001 and 2011, mostly to the nearest larger towns beyond Swale.^(2.22)

Delivering a wide choice of high quality homes

- Population growth due to in-migration. Indigenous natural changes toward a greater proportion of older persons leads to the need for a labour force of working age people to support them and realise other economic aspirations.^(2.23)
- The number of elderly households (up to 50% of forecast household growth), family households with children (up to 25% of forecast household growth) and other specific groupings, all have specific, and in some cases, specialist housing needs.^(2.24)
- Relative lack of affordability in the private housing market and significant shortfall in provision against overall affordable housing need.^(2.25)
- Housing needs include: smaller housing units; greater numbers of larger family homes; homes to meet demographic changes; and pitches for Gypsy and Traveller site provision.^(2.26)
- Improvements required to the fitness of total housing stock.^(2.27)

Conserving and enhancing the natural and historic environments

- 60% of the Borough is designated for international, national and local biodiversity and landscape value reflecting an increasing recognition of the quality of Swale's environment as an asset.^(2.28)
- To date, there are few examples of progression toward more sustainable design and construction.
- Communities, landscapes and biodiversity vulnerable to climate change through changes to water resources, flood risk, erosion and habitat fragmentation.
- Homes, transport and, unusually for Kent, industry, are the biggest carbon emitters. There are major opportunities for the low carbon sectors of the economy, especially at the Port of Sheerness and the Isle of Sheppey prisons.
- Water resources in Swale will become more stretched as the population continues to grow.



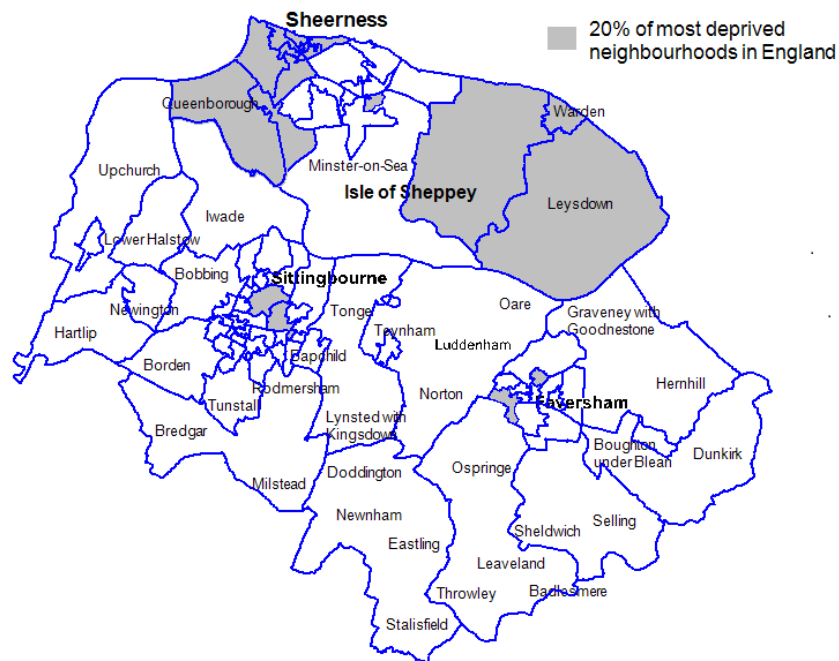
Map 2.2.1 Environment Agency, North Kent and Swale Catchment Abstraction Strategy 2013, Water resource reliability as percentage of time available

- Biodiversity continues to decline as does landscape condition in some locations.
- The vast range of the Borough's heritage assets has potential to be a wealth creator and catalyst for change, but some historic buildings are at risk from neglect, most significantly the historic dockyard at Sheerness.
- There is a significant quantity of high quality agricultural land and more optimism for the future in the food sector.
- Poor air quality in Ospringe, Newington, Teynham and parts of Sittingbourne.

Promoting healthy communities

- Significant social, economic and environmental disparities, notably concentrations of deprivation on Sheppey and in Sittingbourne, particularly in the areas of health, income, benefits, employment and skills. Some of these are among the worst in England.
- Infrastructure and new employment has not always been provided at the right time. Future needs are for education, social care, health, transport and digital infrastructure.

2 Taking a journey through Swale



Map 2.2.2 Neighbourhoods in Swale forming part of the 20% most deprived in England (Source: Indices of Multiple Deprivation, 2010, CLG)

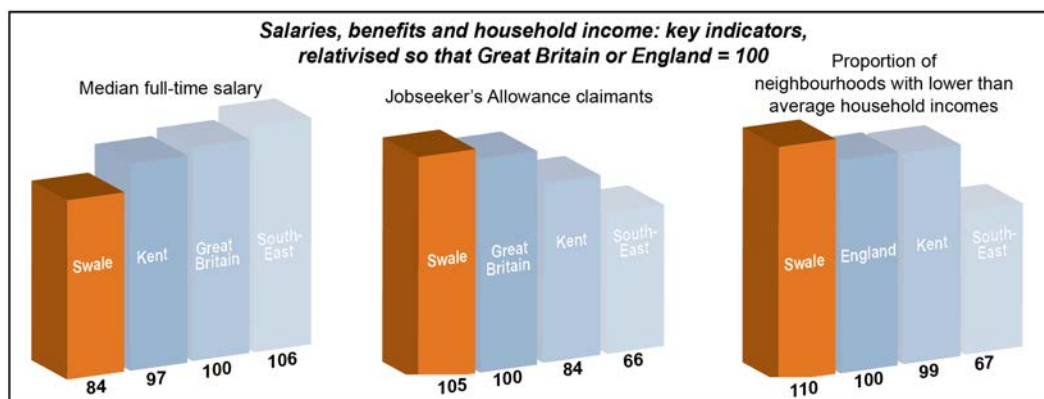


Figure 2.2.3 Salaries, benefit and household income levels relative to other locations (IMD)

Sittingbourne

- Fails to provide the range and quality of public, cultural and commercial services expected for its size and growth area status with insufficient spending retained within the Borough.^(2.29) The largest town in Kent without a dedicated further education facility.
- Poor transport conditions and public transport facilities in central areas of the town.
- Has an indistinct cultural and architectural identity and a poor quality green urban environment in the centre and north of the town, including notable deficiencies in parks and gardens, street trees, natural and semi-natural green space, amenity green space, provision for children and young people and allotments.
- Pockets of deprivation, particularly in the north of the town in Murston, Milton Regis and Kemsley.
- Out-commuting from Sittingbourne (49% of resident workforce).^(2.30)
- Has a potential under supply of employment sites for industrial uses if the remaining land bank is used by land-hungry uses.^(2.31)

Isle of Sheppey

- Sheerness struggles to maintain its role as the main commercial and service centre for the Island. The health of the town centre needs to be improved, but there are limited opportunities available within its confines or at its edges, although there are regeneration and enhancement opportunities at its centre.^(2.32)
- Pockets of deprivation at Sheerness, Queenborough and western communities.
- Queenborough/Rushenden has major regeneration opportunities.
- Undeveloped transport network. Unmade roads and cul-de-sacs to the eastern end of the Island and deprived communities increase isolation and promote unsustainable travel patterns. Significant off-Island commuting (59% of resident workforce).^(2.33)
- The Island's tourism offer is unique to Kent, but under-exploited, whilst the traditional 'bucket and spade' product faces challenges to meet modern demands and expectations. Sustainable rural tourism, the Island's historic assets and links with aviation pioneers are potential growth areas.
- Deficiencies in natural and semi-natural green space, formal outdoor sport facilities and allotments.

Faversham

- A typically Kentish market town, rich in built heritage and unique for its morphology north of the A2 (Watling Street).
- Despite town's prosperous image, Davington is amongst the most deprived neighbourhoods in England.
- The town centre is healthy, but needs to further consolidate its character and role as the primary service centre for eastern Swale and further widen its development as a local tourism and cultural centre.
- Existing employment allocations need to be developed or replaced, but there needs to be an improved quality of employment sites commensurate to its scale and location.^(2.34)
- Faversham Creek is under used and silting up, but has regeneration opportunities.
- Out-commuting (46% of resident workforce), mostly the short distance to Canterbury.^(2.35)
- Deficiencies in parks and gardens, formal outdoor sport facilities and amenity green space.

2 Taking a journey through Swale

End Notes

- 2.1 Office of National Statistics, mid-year estimate, 2014
- 2.2 Office of National Statistics, mid-year estimate, 2014
- 2.3 Office of National Statistics, mid-year estimate, 2014
- 2.4 Office of National Statistics, mid-year estimate, 2014
- 2.5 Kent County Council Commercial and Housing Information Audits
- 2.6 Office for National Statistics, Birth and Death Rates 2012
- 2.7 SHMA Update and Development Needs Assessment. NLP for SBC 2013. Paras. 3.4-8
- 2.8 2011 Census, Office for National Statistics
- 2.9 SHMA Update and Development Needs Assessment. NLP for SBC 2013. Para. 3.16
- 2.10 2014 mid year population estimates
- 2.11 Swale employment sectors ONS Census 2011
- 2.12 Defra Agricultural Statistics 2010
- 2.13 The Economic Impact of Tourism on the Borough of Swale 2009
- 2.14 2011 Census, Office for National Statistics
- 2.15 2011 Census, Office for National Statistics
- 2.16 Arch Kent Habitats Survey 2012: The Kent Land Cover Change Analysis 1961-2008
- 2.17 Swale Employment Land Review 2010. NLP for SBC. Para. 2.39
- 2.18 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Paras. 2.7 and 2.16
- 2.19 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Paras. 2.4-6
- 2.20 Arch Kent Habitats Survey 2012: The Kent Land Cover Change Analysis 1961-2008
- 2.21 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 4.33
- 2.22 Comparison between 2001 and 2011 Census
- 2.23 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 5.35
- 2.24 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 7.19
- 2.25 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 3.36
- 2.26 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 7.19 and Table 11.1
Swale Gypsy and Traveller Accommodation Assessment July 2013
- 2.27 Housing Condition Survey. SBC 2009
- 2.28 Percentage of Borough covered by either landscape or biodiversity designation determined by SBC
Geographical Information System
- 2.29 Swale Retail Assessment 2010
- 2.30 2011 Census, Office for National Statistics
- 2.31 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 4.33
- 2.32 Swale Retail Assessment 2010
- 2.33 2011 Census, Office for National Statistics
- 2.34 Swale Employment Land Review 2010. NLP for SBC. Para. 11.24
- 2.35 2011 Census

3 Our vision, objectives and key diagram

Introduction

3.0.1 One of the NPPF's twelve core principles is that planning should be plan-led, empowering local people to shape their surroundings, with local and neighbourhood plans which set out a positive vision for the future of the area. Our vision needs to respond to our challenges, strengths and opportunities in a way that is right and distinctive for us, yet is robust and realistic about the future and in the best interests of local people, businesses and the environment. This chapter sets out our 2031 Local Plan vision for the Borough with the objectives we must try and achieve along the way to make it happen.

What's driving Swale's vision?

3.0.2 The description of Swale in Chapter 2 showed it to be a collection of diverse communities and environments. The Borough crest and its motto *Known by their fruits* is a reflection of the Borough's past, present and future, but also a metaphor for what can be achieved to make Swale better known further afield for what it is and what it has achieved. The vision for Swale expresses what the fruits of those endeavours will be by 2031, namely that it will have used its key and unique assets of location, communities and environment to drive a stronger economy and the continuation of an outstanding environment for all our communities. Underpinning this is the challenge of achieving sustainable growth within the context of economic and global uncertainties and climate change - the significant challenges for communities everywhere in the 21st century.

3.0.3 As Swale is not a single place, its vision cannot hope to embrace every place within it. Four distinct parts of the Borough - Sittingbourne, the Isle of Sheppey, Faversham and the rural areas - are well understood and recognised. The vision distinguishes and responds to their uppermost challenges: a Sittingbourne that residents will be proud to use; Sheppey's coastal communities not at the end of the line, but celebrating their rejuvenation; a market town at Faversham that retains its character whilst thriving as a centre for services and tourism; and rural communities that continue to remain relevant to 21st century needs. The future is uncertain, so the detail behind the vision will be flexible whilst setting the bar as high as we can.

3.0.4 The vision has been developed in broad consultation with a wide variety of people and parties including the Swale Public Service Board. The result is a vision for a successful Borough made up of diverse communities who have extended their opportunities.

Statement 1

The Vision for Swale

It is 2031 and Swale is known by the fruits of its endeavours.

We have harnessed our assets – a strategic location, diverse communities and an outstanding natural environment – and are a sustainable, flourishing place in which to enjoy life and do business, with:

- Sittingbourne transformed into an attractive, competitive and prosperous town, with a thriving centre that residents across the Borough are proud to use;
- Sheerness and Queenborough as beacons of coastal rejuvenation leading the way to success for all communities on the Isle of Sheppey;
- Faversham, a thriving market town and heritage destination that has grown organically; and
- Successful rural communities across the downs, farmed plains and coast as places of innovation; nurturing enterprise, local produce and greater self-reliance.

3 Our vision, objectives and key diagram

Our core objectives:

1. Adapt to climate change with innovation, reduced use of resources, managed risk to our communities and opportunities for biodiversity to thrive.
2. Use our coastal assets to support a strong economy and a sustainably managed environment.
3. Support economic success and improve community wellbeing with a network of maintained, protected and improved natural assets in town and country.
4. Conserve and enhance our historic and natural assets as the means to drive regeneration, tourism, and environmental quality and to reverse declines in their condition.
5. Strive for high quality design to bring a better quality of life, opportunities for healthy living and self-confidence to our communities.
6. Be flexible, provide choice and support sectors that can build on our strengths, diversify our economy, promote investment in skills, and develop our distinct opportunities in pursuit of greener and pioneering technologies.
7. Bring economic growth, regeneration and community development, especially to our most deprived communities.
8. Support our farming and food sectors so that they are at the forefront of increasing food security, reducing food miles and increasing local food consumption.
9. Provide the right housing to support demographic change and housing needs to regenerate and build stronger, greener communities.
10. Develop tourism and culture to support regeneration, employment growth, communities and environmental management.
11. Improve prosperity and environmental quality with efficient and sustainable transport networks.
12. Ensure timely delivery of the services and infrastructure to support strong communities.

Our place based objectives:

1. Re-establish Sittingbourne as the principal town with investment in retail, leisure, culture and community services and further education, within new and improved green spaces and streets.
2. Reinforce Sheppey's uniqueness by ensuring change: support Sheerness as its commercial and service focus; strengthen and integrate communities at Rushenden and Queenborough and Minster and Halfway; manage coastal and heritage assets; modernise leisure and tourism industries; and support isolated communities.
3. Sustain Faversham's role and character as an historic market town serving residents, visitors and a wider area with a range of businesses and services that increase diversity and interest.
4. Address identified needs in our rural communities so that they are sustained in ways that also respect their scale and character.

3.0.5 To be known by the fruits of its endeavours by 2031 is a significant challenge for Swale. Where we stand now, at the end of a period of huge economic uncertainty, bearing these fruits will require a sustained recovery in the viability of development and a step change in the performance of the housing market. Therefore, whilst laying the foundations for our future, caution and realism must also play their parts. Economically though, we are ambitious with a longer-term view within which things will change for the better. Our existing and future strengths need to be mobilised and our challenges addressed if we are to achieve the jobs needed to support our economy and housing growth.

3.0.6 We will need a level of new homes both able to meet objectively assessed future housing need and provide the workforce needed to support our economic ambitions. Our target of 13,192 new homes for the plan period to 2031 is able to achieve this, although we acknowledge that this will be challenging given slow economic and housing growth at the start of the plan period and the scale of step change needed in the performance of the housing market.

3.0.7 Our vision and objectives require a tailored and strategic distribution of growth set by two planning areas intended to highlight the variances in their respective strategic approaches, notably the greater share of development within the Swale part of the Thames Gateway growth area (Sittingbourne and the Isle of Sheppey) than those areas beyond it. Our vision also requires a settlement strategy that will direct the greatest scales of growth to the most sustainable locations as represented by the main urban areas and most accessible villages with a range of local services.

3.0.8 Despite some uncertainties, we are supporting the national growth agenda and bringing forward a flexible supply of land to support our existing and potential future economic strengths on a choice of sites, whilst also creating a framework to meet unexpected opportunities that may arise. We will also provide regeneration policies for key areas like the Port of Sheerness and the Kent Science Park.

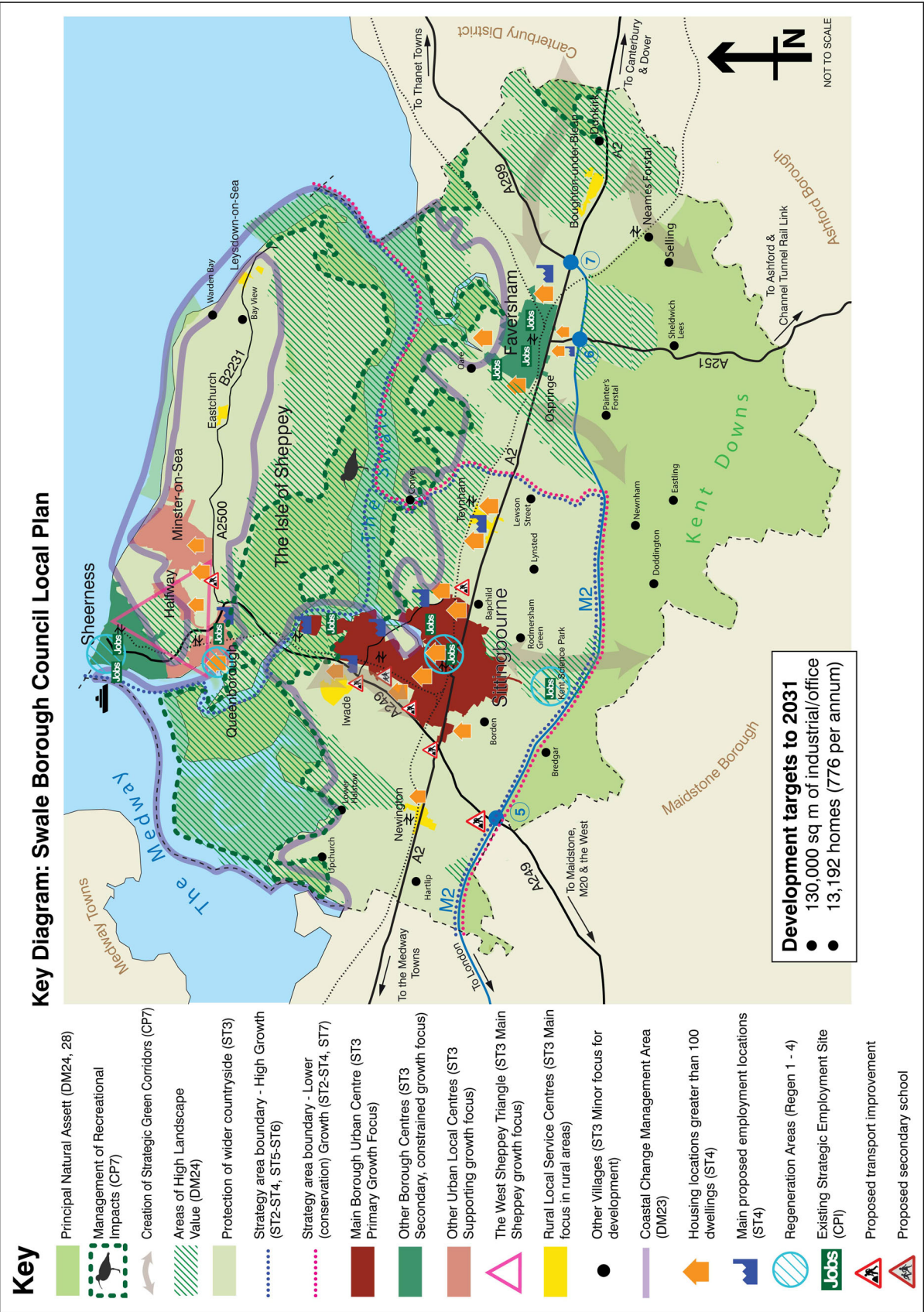
3.0.9 We will look to protect and enhance the nation's (and our own), most important environmental assets – coastal habitats, downland, dry valleys, ancient woodlands, agricultural land and historic resources. As well as providing custodianship, we will take all opportunities to expand the range of biodiversity and habitats and take responsibility for ensuring that wider growth does not place unsustainable pressures on our resources of European protected wildlife habitats around the coast. In so far as it is compatible with our settlement strategy and other sustainability objectives, we will also allocate sites for development on land of the lowest environmental value, in so doing encouraging the effective use of previously developed (brownfield) land and minimising the significant loss of high quality agricultural land.

3.0.10 Given economic challenges, we will not be able to achieve all we want when we want it. We rely on developers to fund much of the supporting infrastructure that we need. This, alongside limited public funding, may mean compromises, at least in the short term. Compromises will be balanced with the consequences of not meeting those local needs generated by growth in terms of whether a development is able to achieve sustainable development. What we mean by this is provided in Chapter 4 which presents the Local Plan strategy.

3.1 The Key Diagram

3.1.1 Our Key Diagram represents the spatial representation of our vision and the Local Plan strategy, as set out in Chapter 4. It shows the priority areas for development, conservation and enhancement and infrastructure.

3 Our vision, objectives and key diagram



Picture 3.1.1 The Key Diagram

4 Setting out our local plan strategy for Swale

4.0.1 This chapter sets out our Local Plan strategy. It does this by setting out in:

- section 4.1, the broad strategy across a series of themes aimed at achieving sustainable development in Swale and thereby meeting the national planning policy for the presumption in favour of sustainable development. It includes one of the primary Local Plan policies - Policy ST 1;
- section 4.2, the basis for the setting of development targets for the Local Plan; and
- section 4.3, a settlement strategy for the direction and distribution of development across the Borough, amplified by a series of area based strategies for Sittingbourne, the Isle of Sheppey and Faversham.

4.1 Achieving sustainable development in Swale

Our strategy for sustainable development in Swale

4.1.1 Through the National Planning Policy Framework (NPPF), the Government intends to ensure that all developments judged to be sustainable should be able to proceed. When considering development proposals, we will take a positive approach which reflects the national presumption in favour of sustainable development. We will always work pro-actively with developers to find solutions which mean that proposals can be approved as sustainable development and thereby secure improvements to the economic, social and environmental conditions in our area.

4.1.2 Planning applications that accord with the policies in the Local Plan (and, where relevant, policies in neighbourhood plans) will be approved without delay, unless material considerations indicate otherwise. Where there are no policies relevant to the application, or relevant policies are out of date at the time of making the decision, we will grant permission unless material considerations indicate otherwise, taking into account whether:

- any adverse impacts of granting permission would significantly and demonstrably outweigh the benefits, when assessed against the policies in the NPPF taken as a whole; or
- specific policies in the Framework indicate that development should be restricted.

4.1.3 Achieving sustainable development means being positive, but it also requires flexibility over time as proposals for development come forward, with the scale and pace of growth reviewed and adjusted if necessary. These matters may only become apparent when a planning application is submitted or where they may be significant enough as to require a review of the Local Plan.

4.1.4 The relationships between the supply of housing and the economy affect the achievement of sustainable development. Housing without local jobs means that the local workforce has to commute elsewhere for work, whilst a lack of housing may stifle economic development, attract commuting into the Borough or result in a lack of homes for local people if they are out priced by new-comers. The Council will closely monitor these situations and act accordingly, such as through a review of the Local Plan. The review mechanisms are contained within certain key policies and our strategy for managing risks are explained in Chapter 8.

4.1.5 Delivering the sustainable development agenda is based on the core planning principles within the NPPF. These are reflected across 12 themes, summarised as:

- building a strong, competitive economy;
- ensuring the vitality of town centres;
- supporting a prosperous rural economy;
- promoting sustainable transport;
- supporting high quality communications infrastructure;
- delivering a wide choice of high quality homes;
- requiring good design;

4 Setting out our local plan strategy for Swale

- promoting healthy communities;
- meeting the challenge of climate change, flooding and coastal change;
- conserving and enhancing the natural environment;
- conserving and enhancing the historic environment; and
- facilitating the sustainable use of minerals and waste (primarily addressed by the [Kent Minerals and Waste Local Plan](#))

4.1.6 Following these themes is a series of sub-strategies which in turn leads into Delivering sustainable development in Swale - our Swale Sustainable Development Policy (Policy ST 1). This translates the national presumption in favour of sustainable development to the local level. This policy, together with the other policies in Chapter 4, represent the heart of our Local Plan strategy.

Building a strong, competitive economy

4.1.7 Our strategy focuses on creating a strong supply of employment land and improving the quality of our economic offer to create a better business image. It will enable the Borough to branch out into under-represented sectors, increase the number of higher growth/value businesses and ensure that it retains and develops existing strengths and foster indigenous growth. In order to meet new floorspace needs, we will provide a range and choice of sites to both serve different locations and the needs of differing sectors. We will be flexible, accommodating unexpected opportunities and allowing for the upgrading and renewal of existing older sites.

4.1.8 Our strategy has already seen some growth in the retail sector and we remain confident over the delivery of emerging schemes in central Sittingbourne and Queenborough. This growth, together with those in the pharmaceutical sector, is expected to help stabilise or offset forecast losses in other sectors. Manufacturing has declined, but relative to Kent and the UK, the sector is strong and our strategy will seek to stabilise the sector and support the emergence of more niche and advanced manufacturing activities.^(4.1)



Picture 4.1.1 New modern start up units

Our strategy is supportive of its expansion, especially for central Sittingbourne, around the A249 and at Faversham. With some 56% of the Borough's workforce working outside Swale, we will also encourage the development of sectors able to attract those commuting sections of the workforce, including those in retail, office, finance and science.^(4.2)

4.1.11 Tourism is a major contributor to the local economy and we will capitalise on reduced travel and spending abroad to bring in greater local spending. There will be an emphasis on proposals that successfully integrate land based industries with the Borough's heritage offers and the landscapes of the North Kent

4.1.9 We will continue our strengths in industrial employment, helped by maintaining and enhancing a supply of well-located land and buildings, including those suitable for larger scale distribution. We will be focusing on continued growth from our indigenous (B use class) base and have identified sites to capitalise on this potential and offset forecasts of more limited forecast growth in this sector. Overall, our land bank will be flexible and sufficiently generous to grasp unexpected opportunities, such as those that reinforce the Borough's role as a recognised distribution hub.

4.1.10 The needs of the office sector (B1a use class) cannot be met easily within the existing land supply. Our

marshes, the Blean, the Kent Downs and the horticultural belt. Specifically, given its location and proximity to other tourist centres at Canterbury, Whitstable and Herne Bay, Faversham has strong potential to diversify its economy around tourism, especially its food based offer. On Sheppey we need to address declines in its traditional seaside tourism offer through modernisation and improvements in quality.

4.1.12 Although the number of jobs in agriculture and horticulture is relatively small, our strategy anticipates forecast growth in this sector.^(4.3) For this and the wider rural economy, we will respond positively to the new opportunities for diversification and improved resilience for food production, as well as activities in other rural sectors, including growth in community based jobs and services, where they can be successfully integrated within their locality.

4.1.13 Improving school performance will bring improved skills into the local workforce, but this more mobile workforce will need to be able to work and/or set up businesses locally by providing flexible planning policies that support a greater choice of opportunity in such areas as the 'sharing economy'. It also remains important to tackle entrenched skill deficiencies so that all can benefit from growth. We will support a better range of opportunities for local people to improve their education and skills, endeavour to secure a further education facility within Sittingbourne town centre, and promote closer links between learning and employment opportunities, including the use of local labour and learning opportunities.

4.1.14 How will this strategy be visible in terms of physical development? We will be largely maintaining our current portfolio of sites, with new additions to increase choice around Sittingbourne, in particular, the growth of its key economic product – the Eurolink business parks. Close to the urban areas, the A249 is also likely to remain the focus for meeting any potential for larger scale distribution or industrial uses. On the Isle of Sheppey, the existing large pool of employment sites will be developed for industrial purposes so that the economic benefits of infrastructure investment already made can be accomplished. At Faversham, the approach is to improve the quality and availability of sites on account of the town's good location and the loss of existing sites to other uses. Securing new sites that sit comfortably with the town and its surroundings is a key objective.

4.1.15 Regeneration policies are also provided for two of the Borough's major strategic employment locations - the Port of Sheerness and the Kent Science Park. These will guide both their immediate needs for growth, whilst, in the case the Port, indicating the possibility of longer term aspirations via a review of the Local Plan.

Ensuring the vitality of town centres

4.1.16 Our strategy comes at a time when our centres face some challenging economic conditions, as well as the changing dynamics of the retail sector. Alongside achieving what is already planned, our main aim is to improve the health and wellbeing of our existing town centres. Our strategy is to create town centres that give an improved and diverse offer, both commercially and environmentally, so they function as centres of commercial and community activity. We are focusing on bringing forward major schemes for both central Sittingbourne and the Isle of Sheppey, particularly for comparison shopping, whilst further large scale food shopping schemes are not envisaged.^(4.4)

4.1.17 At Sittingbourne, the quality of shopping relative to other centres must be improved and the introduction of more comparison shopping will ensure that more spending is retained within the local economy. Despite the economic downturn necessitating a scaling back of ambitions, for it to be the main town of choice for shopping, our strategy requires the completion of retail projects at the heart and periphery of its centre. Through partnership with other public and private sector organisations, we will establish new shops, housing, leisure, civic and cultural facilities, better public transport facilities and an enhancement in environmental quality. North of the railway, regeneration will be led by new housing to form a new quarter for the town and a further step in the renaissance of Milton Creek.

4.1.18 At Faversham, the town continues to perform well in the face of economic challenges. We will ensure that what underpins the town's success - its uniqueness and sense of place – continues in the face of future demands.

4 Setting out our local plan strategy for Swale

4.1.19 At Sheerness, we must address the signs of a declining trading environment and build on the substantial potential and character of its streets, spaces and buildings. Our strategy will balance a need to safeguard its range of local services, whilst recognising that limited opportunities to bring in new investment may mean new services being provided elsewhere on the Island in accessible locations that will not harm the existing centre. Within the town, we will assemble public and private land to release sites for development that can reinforce its heart and exploit the character of the place. In the longer term, the town centre and its future seaside, maritime and historic prosperity, may be more closely tied to the success of its Port where its longer term rejuvenation may act as a catalyst for wider benefits.

Supporting a prosperous rural economy

4.1.20 Our rural areas support a wide range of businesses and the strategy is to support their expansion. However, this will not be by micro-management through the allocation of sites, as innovation comes from locations and sectors that we cannot hope to identify and write into the plan. Flexible planning policies will therefore be supportive of the right business at the right scale and in the right place. Our strategy will also maintain and enhance vibrant and viable rural services, particularly when we are shown innovative new ways of delivering them. A factor affecting the development of the rural economy is the limited availability of land and buildings and we will look to their use for employment before considering other uses such as housing.

4.1.21 We intend to further encourage tourism and other businesses that are linked by and harmonised with our landscapes and communities. Across the rural area, business proposals, tourism related or otherwise, able to support the active and sustainable management of the countryside will be supported.

4.1.22 The strategy does not overlook the importance of the agricultural sector and there are likely to be changes in the way land is used which will present challenges. We will harness the confidence that has re-emerged within fruit production and will encourage sustainable initiatives that respond to global challenges, including climate change and the decline in pollinators, whilst encouraging more local food production and sales.

Promoting sustainable transport

4.1.23 Transportation plays an important role in the success of our strategy by supporting economic growth, promoting independence, tackling greenhouse gas emissions, contributing to safety, security and health and improving the quality of life.

4.1.24 Our Local Plan transport strategy:

- encourages sustainable travel by the use of alternatives to the private car;
- improves transport infrastructure by the removal of pinch points which are barriers to development and growth;
- promotes alternative access to services by reducing the need to travel and supporting independence; and
- helps improve road safety by reducing the number of people killed or seriously injured.



Picture 4.1.2 Junction 5 of the M2 with the A249

4.1.25 This strategy is supported by a separate Swale Local Transport Strategy, which provides the basis to tackle the transport issues facing the Borough and to act as the means by which funding and delivery can be secured.

4.1.26 Meeting additional demands will be achieved by improvements to the existing highway network in the vicinity of the A249 and by providing relief to, and support for, regeneration projects within central Sittingbourne and to the east of the town. We also remain committed to the longer term completion of the Sittingbourne Northern Relief Road. Relief from problems of congestion and safety at Junction 5 of the M2 and A249 will be addressed by the national roads programme and junctions on the A249 corridor also need upgrading to support further long term growth. Other long term options may also need to be considered by expanding the capacity of the road network itself, such as a road linking the M2 to the A2 in the vicinity of Sittingbourne. The implications of such a project will be for a future review of the Local Plan to consider.

4.1.27 Our rural areas are generally remote from the main centres and their public transport network less comprehensive. Whilst we will continue to work on improving its frequency and network coverage, our strategy will recognise that car use for many communities will be necessary.

4.1.28 The quality bus partnership for Swale will endeavour to reduce the poor take up of public transport and give better access for the mobility impaired, improved passenger information and better quality transport Interchanges between cycle routes, bus services, and train services. A priority for the partnership will be Sittingbourne, where a town centre parking strategy will also be implemented.

4.1.29 Our levels of growth will avoid severe impacts on the transport network and any impacts remaining after mitigation will be no worse than those experienced at other successful towns in Kent. Working with partners, we will limit the effects of new development through:

- minimising the number and length of journeys people need to make for everyday needs with a balance of land uses and sites at settlements which are or can be made sustainable;
- encouraging economic development in sectors that will encourage a reduction in out-commuting, increasing the degree of self-containment for the Borough's workforce;
- directing growth to locations able to make use of sustainable transport modes and reducing the need for major transport infrastructure. Our settlement strategy will direct the largest scales of growth to the urban areas that are the most accessible, with reducing scales of growth at rural local service centres; and
- encouraging journeys by public transport, cycling and walking and onto those parts of the network where most capacity exists.

Supporting high quality communications infrastructure

4.1.30 Our strategy will support the national policy for high quality communications as essential for sustainable economic growth. In particular, we will support the expansion of electronic communications networks, particularly for our rural areas, which may also help reduce the need to travel for some requirements. We will ensure that developers provide the necessary digital communications infrastructure to service their developments.

4 Setting out our local plan strategy for Swale

Delivering a wide choice of high quality homes

4.1.31 Our strategy is intended to support the objectives of the Council's Housing Strategy (2010) by:

- increasing housing supply, including affordable housing and rural affordable housing;
- improving housing condition and local neighbourhoods;
- supporting vulnerable people; and
- tackling disadvantage and improving quality of life.

4.1.32 We will maintain and develop prosperous communities through the adoption of an ambitious housing target, reflecting demographic forecasts and taking into account market and other signals. A housing implementation strategy will provide flexibility to ensure that the supply of housing is not unnecessarily suppressed, but we will not deviate from ensuring that our proposed growth is both realistic and sustainable. Our challenges extend to the supply of affordable homes and we expect to be using creative and partnership based means to limit these difficulties, such as by diverting resources to less viable areas like Sittingbourne and Sheppey.

4.1.33 We will remain ambitious in the areas of good design, decent homes and sustainable construction. However, where it is evident that some requirements would hamper the deliverability of housing, we will accept lower national standards to ensure an increase in housing supply.

4.1.34 Our strategy seeks a close match both with the future household characteristics of our population and the composition of our housing waiting list. As a result we are seeking a mix of accommodation with a focus on 2/3 bed family housing, balanced by the current housing mix and the viability of development. We will do more to respond to the needs of an ageing population and try to deliver more homes suitable for lifetime living, as well as permitting development that meets specific and specialist housing needs, such as assisted living, care homes and sheltered complexes. We will also meet the need for additional pitches for Gypsies and Travellers by setting a target that meets their assessed needs in full.

4.1.35 We will look to improve the supply of affordable and general market homes in rural communities by allowing cross-subsidy on sites where permission would not normally be given as well as by supporting the development by local communities of neighbourhood plans.

4.1.36 Our actions will manifest themselves in the allocation of sites for housing at the main urban and rural centres. We will also seek to change market perceptions of locations considered to be less attractive places to live. This will be evident in the rejuvenation of brownfield sites and the creation of new integrated communities at places like Queenborough and Rushenden and central Sittingbourne.

4.1.37 The actions of the Council and partners will support the strategy of providing housing opportunity, choice and independence. These actions will help people with particular housing and/or support needs and those less able to access housing services. We will continue to work to improve home condition and neighbourhoods, tackling anti-social behaviour and income poverty for the most vulnerable households and disadvantaged communities.

Requiring good design

4.1.38 We continue to attach great importance to the design of the built environment and intend to carry on our work to raise design standards in the Borough. The starting point for the planning of new development is an understanding and evaluation of the defining characteristics of a site and its context and these will be the basis for achieving locally distinct, high quality and inclusive design and the design standards we adopt.

4.1.39 Our site allocation and development management policies will highlight the important design questions that need to be addressed and integrated into the development. Our policies highlight the importance of the natural and built assets present and their relevance to the location, design of development and land use, setting out how they should contribute to local identity and distinctiveness. Masterplans, design briefs, conservation area appraisals and supplementary planning guidance and documents will support our strategy and inform day-to-day decisions. Design review, notably our Design Review Panel, will continue to be an important delivery vehicle for securing higher standards of design and will be the means for developers to show how they are seriously considering good design.



Picture 4.1.3 Good quality design and landscaping

Promoting healthy communities

4.1.40 Our strategy is to make sure that growth is able to meet the needs of residents by creating healthy, safe and inclusive communities both in the creation of living and work environments and by putting in place the necessary essential supporting infrastructure.

4.1.41 When planning for larger developments, allocations will achieve a mix of uses so that jobs, open spaces and the facilities needed to support communities can be conveniently provided. Development at villages will also support existing services or enable the provision of new ones which can benefit the entire community.

4.1.42 Actions contained in the Local Plan and the Council's Housing Strategy will aim to work together to integrate communities from diverse social, economic, age and ethnic backgrounds. This will range from providing the right mix of housing to meet future needs and demands to embracing the opportunities and positive changes that integration of newer and established cultures may bring. We will use Health Impact Assessments to drive this forward on major developments, whilst focusing on three priorities:

1. Deprivation and health.
2. Education and other services.
3. Sport, open space and a green environment.

4.1.43 Improving the prospects of those living in our most deprived wards involves targeting significant development projects toward them, whilst expecting new investment to look to these communities first to bring forward benefits to them. We anticipate these projects as supporting housing market changes, as well as improving environmental quality and, where we can, bringing jobs. In particular, the poor health in many of these areas – some of the worst in England - needs actions to make for more healthy living, whilst ensuring that growth is supported by new health and other facilities.

4 Setting out our local plan strategy for Swale

4.1.44 Growth will be supported by new facilities, but with poor development viability and substantial demands for new services forecast, we will look creatively, through such measures as deferred and commuted payments, at how we can ensure that these needs are met.

4.1.45 We will support the co-location and use of services and activities - for example, health and social services and through the dual use of schools, sports and playing pitches or at rural buildings. Where there are services demonstrated as potentially viable, we will resist proposals for alternative uses and support proposals for community led and run services.

4.1.46 We will maintain open space/sports provision at least at the same level per head of population as now. We will also tackle deficiencies in provision, whilst protecting existing assets. An expansion in access to natural green space is a particular deficiency. Our public rights of way and accessible land will be protected and through development proposals, we will establish better facilities for users.

4.1.47 Wider networks of green spaces are central to our health and wellbeing, but also as a means of creating an environment within which people will want to invest. Our green infrastructure strategy will act as the means by which action can take place, whilst local green space and important local countryside gap designations will protect the spaces identified by communities as important.

Meeting the challenge of climate change, flooding and coastal change

4.1.48 Our strategy for climate change is adaptation and mitigation - resilient to future challenges and supportive of new opportunities. Businesses able to increase jobs in low carbon sectors will be encouraged and those making sustainable changes to adapt will be supported. We will also encourage existing homes and businesses to improve their energy and waste efficiencies.

4.1.49 Swale's coast is vulnerable to flood risk and erosion – a place in the front line of climate change. We will apply national policies to reduce the risk to vulnerable development and provide local policy. A coastal change management area will set out what can take place and ensure that decisions taken now do not prejudice what measures may need to be taken to mitigate the effects of climate change in future. Across Swale, sustainable drainage systems should become the norm in developments.

4.1.50 We also need to move beyond adaptation to the impacts of climate change, reducing greenhouse gas emissions where we can. Here, the strategy has three strands:

1. Encouraging sustainable design and construction in all developments, and applying BREEAM and Technical Housing Standards in line with policies DM 19 and DM 21.
2. Siting development primarily at our main urban areas and larger villages for a more convenient location of jobs, homes and services, alongside more sustainable transport choices.
3. Encouraging the use of renewables and energy efficiency improvements (inc. micro-renewable energy and free-standing projects), identifying the potential for decentralised, renewable or low carbon energy supplies and for co-locating heat customers and suppliers.

4.1.51 Implementing this strategy will be challenging in times of economic difficulty where additional costs may lead to development not being viable. In all situations, we will try and achieve provision where we can.



Picture 4.1.4 Wind turbines at Standford Hill, Eastchurch

national resource of the highest quality soils – both as a means to increase food security and reduce food miles.

4.1.52 Our energy opportunities map will guide actions by helping identify locations where renewable energy can be further investigated. Where schemes are appropriate to their location and without cumulative impacts, a favourable response can be expected. We will also support community-led initiatives for renewable and low carbon energy.

4.1.53 Our strategy aims to both promote local food production and local sales and help these sectors sustainably adapt to the challenges of climate change. We have a wider responsibility for ensuring that our agriculture and food based economies continue to put food on the nation's plate. This means supporting these sectors as they grow and change and safeguarding the

Conserving and enhancing the natural environment

4.1.54 Conserving and enhancing our outstanding natural environment is at the heart of our strategy as our Borough is recognised for the quality of its estuaries, woodlands, valleys and downlands. To achieve enhancements overall, this means protecting and enhancing valued landscapes, geology and soils and co-ordinated working to secure coherent ecological networks and a reversal in declines in the quality and diversity of the environment. On a wider level, our strategy also recognises the value of ecosystems for the support they give to society, such as for food, water, flood, disease control, recreation and health and well-being.

4.1.55 To guide our approach and to create more robust ecological and landscape structures, we will set out a natural assets and green infrastructure strategy. It will identify gaps in our network and where strategic scale enhancements for biodiversity or landscape could take place, alongside where communities and biodiversity could adapt to the effects of climate change. Our strategy will manifest itself with the creation of a major new green infrastructure initiative within the A249 corridor, connecting both Sittingbourne and Iwade, together with other green links through to Kemsley and Milton Creek. At Faversham, new space at Oare will be established, whilst habitat creation to compensate for development and/or climate change will take place on Sheppey.

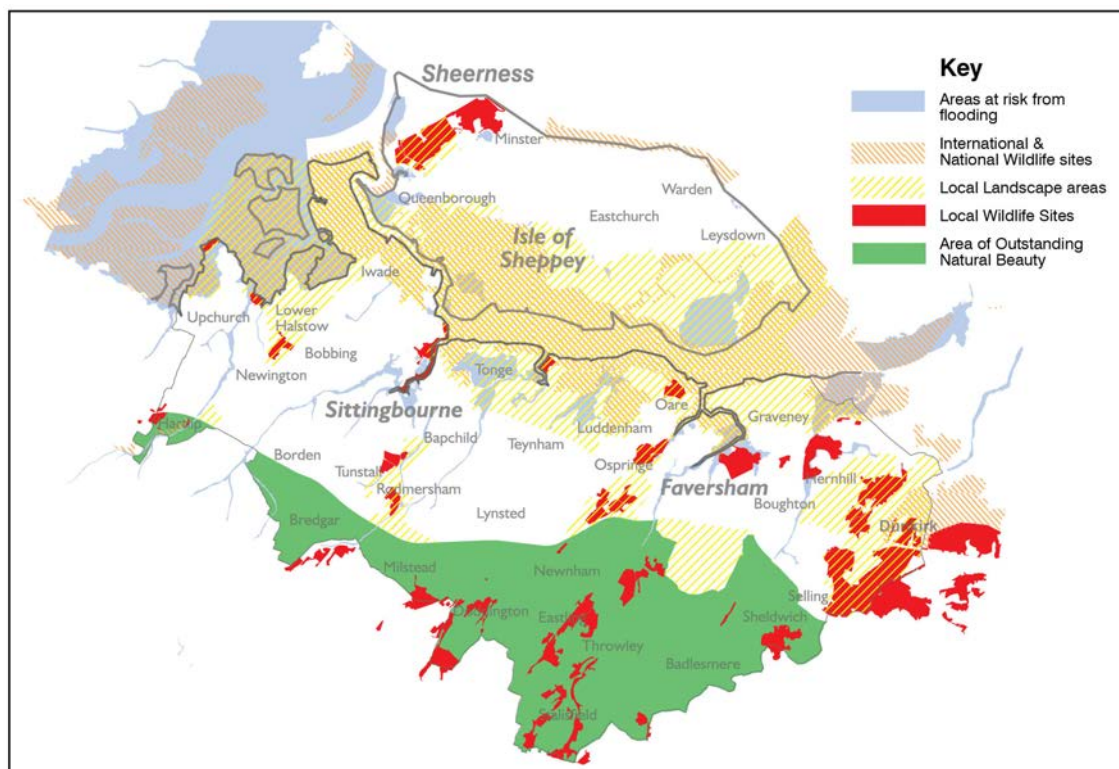
4.1.56 We will apply national planning policy toward natural environmental assets, whilst local planning policies and management initiatives will support agencies charged with maintaining them in favourable condition. Our designations will ensure, as far as possible, that people and ecosystems are not put at unacceptable risk, such as within transport corridors where air quality needs to be managed.

4.1.57 We need to manage recreational pressures on internationally important habitats and are working with North Kent districts to ensure that indirect impacts upon estuarine habitats can be compensated through habitat creation/management and the implementation of the Strategic Access Management and Monitoring Strategy (2014) that will enable developer contributions to be levied to implement it.

4.1.58 We will safeguard the network of national and local landscape designations and will be advocates of landscape character assessment and landscape and visual impact assessments to ensure the whole countryside can maintain its tranquillity and achieve enhancements. Within the Kent Downs Area of

4 Setting out our local plan strategy for Swale

Outstanding Natural Beauty, we will ensure its protection and enhancement and work with its Joint Advisory Committee, Management Plan and guidance to ensure that its qualities and distinctive features remain valued, secure and strengthened.



Map 4.1.1 Natural designated environmental assets and constraints in Swale.

4.1.59 As far as possible, we will allocate land for development which has the least environmental and amenity value, including using previously developed land where we can. Whilst our development strategy can protect our most important international, national and local landscape and biodiversity designations, because we have insufficient previously developed land, tough choices will occur in non-designated areas. We believe that the high quality agricultural land around the A2 corridor and the character of settlements and their separation should be influences upon where growth should be located. However, we cannot prevent some loss and erosion as not to do so would create dispersed patterns of development that cannot easily be supported by services or sustainable modes of transport. Overall, we have tried to strike a balance at a level where the adverse impacts of the locations of our allocations are minimised and do not outweigh the benefits of development, or prevent the achievement of sustainable development.

4.1.60 Achieving a net-gain in biodiversity and development will play a crucial part of our strategy, from avoiding important habitats to integrating and enhancing biodiversity in landscaping and open spaces, through to the design of the streets and buildings themselves. Where sustainable development is not compromised, the most spectacular and innovative examples will be permitted. In places where adverse impacts on biodiversity can no longer be avoided or mitigated, compensation will be a key part of achieving net-gains for biodiversity. We will use existing and develop new mechanisms to steer such compensation to identified biodiversity opportunity areas. Our strategy will allow for the compensation of our own



Picture 4.1.5 South Sheppey Marshes

adverse impacts, but possibly also for those further afield. We see our cross boundary work with the North Kent Environmental Planning Group, the Local Nature Partnerships and within the [Greater Thames Marshes Improvement Area](#) as fundamental to implementing both these initiatives.

Conserving and enhancing the historic environment

4.1.61 Our strategy for the historic environment is for its conservation and enjoyment so that it can help deliver wider economic, social and environmental objectives. This will be supported by preparation of a detailed strategy, setting out our priorities and approach to achieving a sustainable future for our heritage assets.

4.1.62 The breadth of Swale's historic environment reflects prehistoric, Roman, early medieval and medieval legacies, our naval and maritime history and our industrial and agricultural past. These assets help deliver our Local Plan Vision and contribute to our strong sense of place and uniqueness because:

- Sittingbourne exists for the reason that its strategic location on Roman Watling Street and by Milton Creek, played an important role as a staging post on the pilgrim and coaching routes. Conservation and regeneration are needed to maintain its vitality and character;
- on Sheppey, its naval, defensive, maritime and industrial heritage will be catalysts for wider rejuvenation;
- at Faversham, heritage led decision making is central to its future as a 21st Century small and compact historic market town and port, adjacent to the roman road;
- in the rural areas, supporting successful communities through the sensitive reuse of traditional/historic buildings and through tourism to help retain and develop locally important services and facilities; and
- our landscapes reflect the span of history, with our policies recognising the central North Downs, the Northern Horticultural Belt, the Forest of Blean (and former areas), the Northern Coast and Marshland and the reclaimed marshes, post-medieval field systems and urban and industrial development of the Isle of Sheppey.^(4.5)

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4.1.63 Our policies will ensure the historic environment is central within decision-making at all levels by:

1. Identifying the interrelationship between heritage assets across all policy areas.
2. Identifying a broad strategic overview of heritage assets as most representing the character and distinctiveness of Swale.
3. At the strategic planning level, recognising that heritage, including the integrity, form and character of settlements and historic landscapes have a proper influence upon the distribution of development and the identification of sites.
4. Highlighting the significance of any heritage assets and their settings on development allocations and the response needed from development, supported, where needed, by Masterplans and other supplementary documents.
5. Setting out clear expectations for development within development management policies.
6. Addressing where heritage assets are at risk and taking action to bring them back to viable and appropriate use, especially where they can contribute to regeneration.
7. Considering, when resources allow, preparation of local lists to identify non-designated heritage assets.
8. Using appraisals, management plans, assessments of unknown sites and the evaluation of the character of parks and gardens and landscapes to encourage sensitive regeneration in historic towns and villages and to identify the opportunities for improving them and their settings and landscapes.



Picture 4.1.6 St. Mary of Charity, parish church of Faversham

Facilitating the sustainable use of minerals and waste

4.1.64 We recognise that minerals are a finite natural resource essential to support sustainable economic growth and our quality of life. The Council will work with Kent County Council – the minerals and waste planning authority – to identify and safeguard mineral reserves and the rail heads and wharves necessary to ensure the transport, import and export of minerals.

4.1.65 In the event that reserves are identified on sites allocated for development by this Local Plan, we will ensure that the developer works with the Minerals Planning Authority to ensure the timely working of the site, provided that there is a sustainable and viable outlet for the resource which allows extraction without an unreasonable impact on development coming forward in line with the safeguarding minerals and prior extraction policies contained in the Kent Minerals and Waste Local Plan (see also Chapter 6). The relevant mineral safeguarding areas can also be viewed on a Proposals Map ([River Terrace](#), [Brickearth Swale Areas](#), [Wharfs and Rail Depots](#)).

4.1.66 In meeting our future waste disposal needs, we will work with Kent County Council in its role as waste planning authority. Swale's strength in the recycling business sectors will be recognised by supporting appropriate opportunities in the right locations, as well as ensuring that all developments play their part in minimising their own construction waste.

Delivering sustainable development in Swale

4.1.67 We are pursuing net gains across each of the economic, social and environmental dimensions of sustainable development. Through these themed strategies we have expressed the broad sweep of the Local Plan strategy and how we see our actions and those of others as achieving sustainable development. The strategy avoids significant adverse impacts and we have explored reasonable alternatives. Through our policies we have measures in place to mitigate adverse impacts and compensatory measures when this cannot be achieved. The overall gains for sustainable development are anticipated to be a:

- stronger, responsive and competitive economy, with available land of the right type and in the right place with the infrastructure identified;
- stronger, vibrant and healthier communities, with a realistic supply of housing, with policies creating a high quality built environment, with accessible local services that reflect the community's needs and support its health, social and cultural well being; and
- continued protection and enhancement to our natural, built and historic environments, with our policies helping to improve biodiversity, use natural resources prudently, minimise waste and pollution, and mitigate and adapt to climate change.

4.1.68 Policy ST1 embraces our themed strategy for sustainable development, providing the basis for action and the means to locally determine whether development proposals merit the national presumption in favour of sustainable development. It emphasises the importance of joint working, placing the requirement on all to demonstrate their commitment through specific actions. Any presumption in favour of sustainable development does not apply where development requiring appropriate assessment under the [Habitats and Wild Birds Directives](#) is being considered, planned or determined.

Policy ST 1

Delivering sustainable development in Swale

To deliver sustainable development in Swale, all development proposals will, as appropriate:

1. Build a strong competitive economy by meeting identified needs for inward investment and indigenous growth on allocated and suitable sites, including meeting the needs of under-represented sectors;
2. Ensure the vitality of town centres by: strengthening the principal centre role of Sittingbourne; improving the role of Sheerness as the Island's main centre; or consolidating, proportionate to its scale and character, Faversham's role as a centre for the town itself and its local catchment;
3. Support a prosperous rural economy, especially for sustainable farming and tourism, or where enabling communities to meet local needs or benefiting countryside management;
4. Accord with the Local Plan settlement strategy;
5. Offer the potential to reduce levels of out-commuting and support the aims of the Swale Local Transport Strategy;
6. Support high quality communications infrastructure;
7. Deliver a wide choice of high quality homes by:
 - a. meeting the full, objectively assessed need for housing in the housing market area;
 - b. providing housing opportunity, choice and independence with types of housing for local needs; and
 - c. keeping vitality within rural communities with identified housing needs, proportionate to their character, scale and role;
8. Achieve good design through reflecting the best of an area's defining characteristics;
9. Promote healthy communities through:
 - a. location of development to achieve safe, mixed uses and shared spaces;
 - b. rejuvenation of deprived communities;
 - c. the Local Plan implementation and delivery plan and schedule;
 - d. safeguarding services and facilities that do or could support communities;
 - e. maintaining the individual character, integrity, identities and settings of settlements;
 - f. protecting, managing, providing and enhancing open spaces and facilities for sport and recreation; and
 - g. implementing the Swale natural assets green infrastructure strategy;

4 Setting out our local plan strategy for Swale

10. Meet the challenge of climate change, flooding and coastal change through:
 - a. promotion of sustainable design and construction, the expansion of renewable energy, the efficient use of natural resources and the management of emissions;
 - b. the management and expansion of green infrastructure; and
 - c. applying planning policies to manage flood risk and coastal change;
11. Conserve and enhance the natural environment by:
 - a. applying international, national and local planning policy for: (a) areas designated for their biodiversity (inc. Nature Improvement Areas), geological or landscape importance; and/or (b) priority habitats and populations of protected and notable species;
 - b. using landscape character assessments to protect, and where possible, enhance, the intrinsic character, beauty and tranquillity of the countryside, with emphasis on the estuarine, woodland, dry valley, down-land and horticultural landscapes that define the landscape character of Swale;
 - c. integrating the benefits of ecosystems to society across all policy areas;
 - d. achieving plentiful native landscaping of local provenance in and around developments;
 - e. achieving net gains in biodiversity within and around developments by use of such measures as natural/semi-natural greenspace and the creation of coherent ecological networks;
 - f. avoiding significant harm to biodiversity or, when not possible, adequately mitigating it, or, as a last resort, compensating for it with off-site action at identified Biodiversity Opportunity Areas or other appropriate locations;
 - g. using areas of lower quality agricultural land for significant levels of development (singly or cumulatively) where compatible with other criteria; and
 - h. applying national planning policy in respect of pollution, despoiled, degraded, derelict, contaminated, unstable and previously developed land; and
12. Conserve and enhance the historic environment by applying national and local planning policy through the identification, assessment and integration of development with the importance, form and character of heritage assets (inc. historic landscapes).

4.2 Assessing the need for new development

4.2.1 The National Planning Policy Framework requires all councils to use evidence to define the full, objectively assessed needs, for both business and housing in their areas, and then seek to ensure that their Local Plans meet the needs identified.^(4.6) Our assessment of development needs is presented within the following documents:

- The Swale Strategic Housing Market Assessment (SHMA) September 2015;
- Strategic Housing Market Assessment Update and Development Needs Assessment 2013 (note that this assessment was superseded by the October 2015 document and should only be referred to in terms of the qualitative analysis of employment land provision and the assessment of sites);
- Swale Employment Land Review 2010 (site assessments only); and
- Employment Land Needs in Swale 2014-31 October 2015.

4.2.2 To determine the objectively assessed need (OAN) for housing, Planning Guidance requires the Housing Market Area to be defined. Swale forms a reasonably self-contained housing market area for the

purposes of identifying the OAN for Swale, but evidence shows that it housing market links with adjacent Council areas and recognising these links, when arriving at the OAN and the Local Plan target, the Council positively engaged with its neighbours (The Duty to Co-operate).

4.2.3 Via the Swale Strategic Housing Market Assessment (SHMA) September 2015, the Council tested a wide range of demographic and economic data to identify the Swale OAN. Arriving at an OAN figure is not an exact science and no one source alone can be used to identify the OAN.

4.2.4 Following the Planning Practice Guidance, the SHMA considered a range of data that included official demographic projections, economic forecasts and market signal evidence. With new household or population projections released roughly every 12 months, the SHMA made use of the most up to date data available at the time, including the 2014 mid year population estimates. These estimates inform the 2014 based population projections.

4.2.5 Our evidence shows that short term migration flows have been unstable, most obviously because of the recessionary years at the turn of the decade. As a result, the SHMA recommended that the OAN for Swale be set using a 10-year projection (2004-14). This shows a need for 776 dwelling per annum (dpa) in Swale from 2014 (13,192 for the plan period).

4.2.6 Economic testing showed that by providing 776 dpa the Borough provided enough new homes to meet the area's demand for labour over the plan period.

Assessment of affordable housing need

4.2.7 Planning Guidance requires a separate calculation from the OAN of the housing needs for certain groups of people. Although not a direct part of the OAN assessment, in some cases it can be used to evidence an upward policy adjustment to any housing target. The Council's Strategic Housing Market Assessment September 2015 indicated that 190 affordable dwellings per annum were needed. The Council considered, given the high levels of overall need, whether an upward policy adjustment to the OAN was needed to increase the number of affordable homes in the Borough. However, there are challenges to deliver them viably in sustainable locations and making an upward policy adjustment would be unrealistic. The Council has framed the plan in such a way as to achieve as many affordable homes as it realistically can.

Gypsies and Travellers (including Travelling Show People)

4.2.8 Meeting housing need includes those for Gypsy and Travellers. To identify them, a Gypsy and Traveller Accommodation Assessment (GTAA) was prepared in July 2013. This concluded that 85 pitches would be needed to 2031, with no additional need for plots for Travelling Show People. In 2015 the Government re-defined the definition of a traveller site and in response the Council undertook a reanalysis of the evidence within the GTAA to ensure that it more closely reflected the changed position. This produced a revised need for 61 pitches during the plan period.

Assessing the capacity for growth

4.2.9 We also considered how other factors might influence our economic and housing assessments and considered whether these suggest a basis upon which to adjust the levels of growth recommended.

Environmental capacity

4.2.10 We have significant environmental constraints across 63% of the Borough which affect the potential to accommodate growth. However, due to the amount of land not affected, housing growth, at the level of the objectively assessed need, would not significantly adversely affect the Borough's principal environmental assets,^(4.7) including its local landscape and biodiversity designations. However, with this level of growth, other constraints come under pressure, notably high quality agricultural land, local landscapes considered

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to have low capacities to accommodate change, alongside the spaces between towns and villages and the heritage value of certain settlements. Some constraints would come under greater pressure if development were to be steered to the most economically viable areas to build.

4.2.11 Special attention is needed for our internationally protected biodiversity designations. Through the former regional plan for the south east, concerns were raised about the potential impact of recreational disturbance on bird populations across the north Kent coastline in the Special Protection Areas (SPAs) and wetlands cited by the Ramsar Convention. In response, a grouping of local authorities and environmental agencies, including Natural England, formed the North Kent Environmental Planning Group (NKEPG) and commissioned studies to assess current and future levels of recreational activity in North Kent and its impacts.^(4.8)

4.2.12 Evidence confirmed the association between bird decline caused by disturbance at locations with the highest levels of access, with access levels linked to local housing, particularly within 6km of access points. It has been concluded that it would not be possible to demonstrate no adverse effect on the integrity of the European sites. As a result, mitigation measures would need to be considered to support any chosen housing target and a Habitats Regulations Assessment would need to determine an appropriate level of growth within the range of objectively assessed need and the degree of mitigation that would be required. However, the 2013 SHMA update, together with the Habitat Regulation Assessments prepared to support the Local Plan, considered that with mitigation, these designations would not be a barrier to additional development.^(4.9)

4.2.13 The 2014/15 Strategic Housing Land Availability Assessment (and addendum), identified sites for 14,828 dwellings that could potentially be built. However, some 2,750 of these included sites with potentially moderate/major impacts in terms of access to services, landscape/visual issues and air quality issues. However, this did not take into account the potential cumulative impacts of sites arising from such matters as settlement separation, the setting of settlements and the loss of high quality agricultural land. These matters were taken into account by the Council as it considered draft Local Plan allocations.

Transport capacity

4.2.14 The local highway authority advise that the local road network is adequate (subject to site specific improvements) to accommodate growth levels indicated by objectively assessed need in the first part of the plan period. There are implications both for the strategic and local road networks beyond 2021/22, which will need to be kept under review. For the strategic road network, improvements to Junction 5 of the M2 are programmed to commence by 2020. For the other A249 junctions within the local network, mitigation schemes have been identified and implementation will be carried out in tandem with the build out of development schemes. For the local road network, whilst the likely traffic impact of growth can be accommodated in the short to medium term, there would be stresses toward the end of the plan period.

Community services

4.2.15 Both the County Council and the NHS Clinical Commissioning Groups have identified what additional services and facilities would be needed to support the growth proposed by the Local Plan. Substantial new investment, notably in education, social care and GP surgeries, is required.

Open space and sports provision

4.2.16 The Council has identified notable deficiencies in open space and sports provision in parts of the Borough in a variety of evidence.^(4.10) Growth at the levels allocated by the Local Plan will require an additional total forecast need of 146.9 ha of open space, comprising 26.5 ha of parks and gardens, 10.8 ha of amenity greenspace, 0.6 ha of space for children and young people, 4.8 ha of allotments and some 104.2 ha of natural and semi-natural greenspace. For sport, for outdoor provision, an additional 26 ha is required, which will be provided via a combination of on-site and/or off-site contributions toward enhancing existing provision. A Playing Pitch Strategy has also been adopted to support this. For formal play facilities, financial contributions are expected for either on or off-site (or combination of both) enhancements of existing provision. For indoor sports provision, further capacity for swimming is needed for Sittingbourne

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and Sheppey, as part of future leisure centre needs in the Borough, whilst further all-weather pitches are needed. Local Plan housing allocations will be expected to meet these total needs, although the actual level of provision and its type will be determined at the planning application and Masterplan/Development Brief stages as appropriate.

4.2.17 A new open space assessment is currently under preparation which will be reflected in a future Local Plan review. An Indoor Sports Strategy has been completed.

Water capacity

4.2.18 Water resources are likely to become more stretched as the population grows.^(4.11) The two water companies supplying water to Swale produce Water Resource Management Plans (WRMP) which set out their long-term approaches to achieving a balance between demand and supply. This will involve reducing demand (leakage reduction, metering policies and water efficiency), the development of new sources, asset improvements (e.g. the Broad Oak reservoir near Canterbury, a desalination plant at Reculver), and water transfers.^(4.12)

4.2.19 Both companies have confirmed they will be able to take account of development levels to provide sufficient supplies to balance demand for the local plan period for circa 14,000 dwellings to 2031. Flexibility is required so that unforeseen development needs are able to maintain and enhance the supply of water and its network.

Deliverability

4.2.20 The viability of development in Swale and the capacity of the development market to deliver growth at a sustained rate year on year over the whole plan period is an important consideration and has been assessed by the Council's evidence (PBA August 2014). In terms of viability, assessment work has shown that:

- rural areas and, to a lesser extent, Faversham, enjoy higher values and can thus accommodate greater levels of affordable housing and other development costs;
- Sittingbourne needs careful treatment and is sensitive to small changes in policy costs. Only limited development costs can be applied so as not to put development at risk; and
- Sheppey has the lowest values and is not able to accommodate affordable housing or any other policy costs.

4.2.21 The Council has made adjustments to its policy requirements to improve viability, but although viability is slowly improving, there will remain difficulties for Sittingbourne and the Isle of Sheppey, at least in the short term. Combined with the poor national economic conditions that have already affected the rates of delivery achieved, the rate of future delivery needed to ensure that a five-year supply of housing land for the Local Plan is maintained, will need to be escalated.

Identifying specific development needs

4.2.22 Meeting specific future needs also have a bearing on potential development targets that should be adopted.

Economic

4.2.23 The Council's Employment Land Needs in Swale 2014-31 October 2015 estimated the net change in land and floorspace needed to accommodate the forecast level of employment growth. It found that Swale needed some 130,000 sq.m of net additional 'B class' floorspace to meet the projected number of jobs and that this would require some 60 ha of land. Swale already has a generous supply of industrial employment floorspace and land, however, we need to also address qualitative needs, alongside requirements for certain parts of the Borough. Qualitative evidence from the SHMA Update and Development Needs Study 2013 indicated that the total amount of land allocated should be higher than the quantitative need so as to.^(4.13)

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- produce a sufficient range and choice of sites to meet different sector and occupier needs;
- give a balance of supply across locations addressing under-provision at Sittingbourne, as the Borough's most established industrial market and a likely growth area for office space;
- allow for the renewal and upgrading of existing sites at Faversham and an upgrading in the overall supply with new land;
- on the Isle of Sheppey, capitalise on the legacy of infrastructure investment to bring forward its considerable land commitments. A small business centre for business startups in eastern Sheppey is also a long term ambition so as to encourage local business formation and diversify local employment; and
- secure the Borough's economic development strategy, including that associated with the higher economic growth scenario.

4.2.24 The approach to retail and leisure provision is informed by our Retail and Town Centre Study (2010). Swale retains high levels of local spending for everyday supermarket shopping (convenience shopping) and needs in this sector have now largely been met. For comparison (non-food) floorspace, based on achieving 60% of market share, a further 29,227 sq m by 2025 is needed to claw back expenditure lost to centres that have better choice. Sittingbourne is indicated as providing for the vast majority of this growth.

4.2.25 For tourism, total expenditure increased by 8% from 2006 to £207 million, supporting 4,252 actual jobs. There is potential for budget hotel accommodation at Sittingbourne, Faversham and Queenborough that should be met as part of employment allocations.^(4.14)

Housing

4.2.26 There are strong structural demographic drivers within the local housing market leading to a growing population and relatively poor levels of affordability. The Strategic Housing Market Assessment (2015) indicated that the largest growth would come from single person and lone parent households and that new owner-occupied accommodation should principally be two and three bedroom homes and that new private rented housing should ideally be three and four bedroom homes.

Commuting

4.2.27 Swale remains a net exporter of labour via out-commuting, mostly to neighbouring towns and to London.^(4.15) This commuting is mostly within sections of the workforce whose jobs sectors are not well represented locally. Improving this match locally is a challenge as the market for jobs in these sectors is not strong. In addition to out-commuting, an under-supply of housing may also encourage in-commuting or exacerbate the affordability of local property for local people.

Arriving at our Local Plan development targets

4.2.28 An objectively assessed need of 776 dwellings per annum (13,192 dwellings 2014-31) would represent a significant boost in the supply of housing in the Borough in accordance with National Planning Policy.

4.2.29 Although the objectively assessed housing need cannot be achieved without adverse impacts on local environmental resources in some locations, significant adverse impacts upon important international, national and local environmental designations can be avoided, whilst impacts upon the strategic and local road networks should either be avoided or minimised to acceptable levels. In order to ensure this, any early review of the Local Plan will be underpinned by further transport evidence gathering and the adoption of a Transport Strategy by the Borough and County Councils.

4.2.30 Actual and forecast low levels of housing completions in the early years of the plan period, alongside pressures on the viability of development, may stretch the ability of the local housing market to consistently achieve the levels of development necessary in the short to medium terms. However, despite these challenges, the Council believes that meeting the objectively assessed need in full with a housing target

of 13,192 is a necessary objective that should be pursued in the interests of meeting the future housing and economic needs of the Borough. Within this overall figure, the Council will also meet its need for 61 pitches for Gypsies and Travellers.

4.2.31 The relationship between the level of new homes and jobs is an important one for the achievement of sustainable development. This has been ensured via the parallel economic and demographic work undertaken for the Strategic Housing Market Assessment 2015, which has assessed the level of jobs arising from the objectively assessed need. Whilst there are signs of economic recovery nationally, locally there is caution about its scale and pace, nevertheless, the aspiration to achieve the 10,900 jobs in Swale with a generous and flexible supply of employment land (60 ha) and floorspace (130,000 sq m), is considered to be in the interest of the national agenda for growth, with a plentiful supply of land with a good contingency an important part of this.

4.2.32 The Council has considered the adoption of a jobs target for the Local Plan, but has not progressed this option. As well as some uncertainty surrounding the strength of the local office market, employment forecasts are regularly revised as new data is released and the economic outlook changes; likewise, the rates of floorspace take-up can also change over time. Whilst the Local Plan can and should influence the amount and type of floorspace that can be provided, it cannot strongly influence the amount of jobs being created due to a whole range of external factors. Given this, the Council believes that it would not be appropriate for the Local Plan to adopt a target for job generation; rather a target within Policy ST 2 for the delivery of 130,000 sq m of net employment floorspace across the 'B' use classes.

4.2.33 The Council will take a proportionate view as to how often its economic data is revised and will monitor closely its economic indicators, including both changes to floorspace and job provision. This approach is considered to be both pragmatic and practical in terms of monitoring performance and will enable the Council to track the economic performance of the plan and make any adjustments necessary.

Mitigating the impact of development targets on European designated wildlife sites

4.2.34 Natural England consider that the assumption should be made of a 'Likely Significant Effect' on the SPA for all North Kent Local Plans and relevant planning applications. They consider that a Strategic Access Management and Monitoring (SAMM) strategy should be put in place to identify measures that can be implemented with a monitoring process developed. The North Kent Environmental Planning Group completed its Strategic Access Management and Monitoring Strategy in 2014 and are collecting developer contributions for its implementation. Unless the Council has determined otherwise (via a developer prepared Habitats Regulations Assessment and Appropriate Assessment), the Council will require developer contributions from proposals within 6 km of an access point onto the SPA, via S106, to secure wider mitigation measures within and adjacent to the SPA. Beyond 6 km from access points onto the SPA, large developments may also result in increased recreational use on the SPA. The Council will seek Natural England's advice for any such developments within the local authority's area, so that these can be considered on a case-by-case basis.

4.2.35 The Council's Habitats Regulation Assessment 2014 has concluded that in the light of the above and the appropriate provisions included in the Local Plan, there will be no likely significant effects on European sites. Natural England are satisfied with these conclusions.

Our development targets for jobs and new homes 2013/14-2031

4.2.36 Our development targets are set out in Policy ST 2. We need to ensure there are as few barriers as possible to kick-starting our economy and we want to secure a five-year supply of housing land and new jobs as soon as possible in accordance with national policy. Unless there is a strong reason why development should be delayed to a later period, allocated sites will be allowed to come forward as the market deems it ready to deliver them. Targets are therefore expressed as the minimum (unless otherwise indicated by policies in Chapter 6) to be provided, whilst milestones indicated in Chapter 8 will monitor delivery and development impacts.

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4.2.37 Within the Borough, there are proposed variances in emphasis reflected by two planning areas. The first is for the growth area, represented by the Thames Gateway within Swale (comprising Sittingbourne and the Isle of Sheppey) and, the second area, that provides for more modest scales of growth at Faversham and the rest of Swale (inc. the Kent Downs Area of Outstanding Natural Beauty), in recognition of the scale and character of the town and the need to conserve and enhance important environmental assets. These very different characteristics between the two planning areas strongly indicate a need for an indicative percentage split of development to enable a basis upon which to consider a broad approach to development distribution. This is made having regard to growth opportunities, the need to boost housing supply, viability and environmental constraints.

Planning Area	Percentage split of housing development as of 31/03/15
Swale Thames Gateway (comprising Sittingbourne and the Isle of Sheppey)	85%
Faversham and the rest of Swale (also comprising the Kent Downs Area of Outstanding Natural Beauty)	15%
TOTAL	100%

Table 4.2.1 Indicative planning area dwelling percentage split as of 31st March 2015

4.2.38 Table 4.2.1 shows this indicative split across the two planning areas, the boundaries of which are shown on the Key Diagram (Picture 3.1.1). The approach is further explained within section 4.3. It is not proposed to determine policy based development targets for each planning area; rather as a guide to the developer and decision maker as to the way the Local Plan strategy and the settlement strategy, outlined in section 4.3, should be applied; namely that there should not be significant deflections of growth away from the Swale Thames Gateway area to other locations. Whilst it will not be the case that each planning area should maintain its own five-year supply (this will continue to be calculated on a Borough basis), when a Borough shortfall in this supply occurs as a result of significant non-delivery within the Swale Thames Gateway area, the variances in policy emphasis between the two sub-areas will need to be considered alongside the need to improve housing land supply.

Policy ST 2

Development targets for jobs and homes 2014-2031

Land is identified by the Local Plan to meet the following development targets:

B Class Employment floorspace provision (sq.m)	Housing <u>provision</u>
130,000	13,192 (776 dwellings per annum)

Table 4.2.2 Development targets for Swale 2013/14-2031

The Council will commit to undertaking a review of the Local Plan which will be programmed for adoption by April 2022.

4.3 Where future change will take place - the strategy for our towns, villages and countryside

The Swale settlement strategy

4.3.1 There are a wide range of towns, villages, hamlets and isolated settlements across Swale. This part of the Local Plan strategy presents the approach to these locations and examines their role within the overall strategy in terms of the broad distribution of growth and decisions about other development.

4.3.2 A significant part of the Borough falls within a national priority area for regeneration - the Thames Gateway (Picture 4.3.1). It comprises the Sittingbourne and Isle of Sheppey areas of the Borough. The Gateway is supported as a strategy priority by the South East Local Enterprise Partnership (it being one of its four strategic objectives) and financially by £442M from the Single Regional Growth and EU Structural and Investment Funds. The Thames Gateway is under the Minister of State for Communities and local Government, who also chairs its Partnership which promotes the creation of jobs, infrastructure and new homes across North Kent and South Essex. Its presence and the major regeneration emphasis that underpins it is a continued and strong influence upon Local Plans.

4.3.3 Outside the Gateway, the eastern and southern parts of the Borough reflect a more rural profile, characterised by the small market town of Faversham, its rural hinterland, and the Kent Downs Area of Outstanding Natural Beauty (AONB). For Faversham, it is the historic character of its setting and urban form that strongly guides the planning approach here, whilst national policy for the AONB strongly promotes its conservation and enhancement.



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- is not required for purposes of housing market evidence indicating a need for a housing led strategy;
- limits pressure upon the Kent Downs AONB;
- allows for a greater range of less constrained sites in more sustainable locations to be allocated with the Gateway, especially on previously developed land;
- supports, in the Gateway, the significantly greater levels of employment land and the largest proportions of the Borough's economically active residents and share of local GDP. This helps to compensate for forecast declines in the working age population; and
- assists in the stimulation of demand for improved retail/leisure facilities at Sittingbourne.

4.3.5 This has the effect of limiting growth at Faversham to a level that limits the use of land sensitive for heritage, landscape or biodiversity and maintains its small market town character and role to focus on meeting more locally based needs.

4.3.6 In the case of job creation, the variances between the Swale Thames Gateway and Faversham is as the result of creating a flexible portfolio of sites that meets wider identified needs for the Gateway and more local needs at Faversham. This and the growth area status of the Swale Thames Gateway supports the overwhelming majority of provision being made there.

4.3.7 With these two planning areas providing the overall contexts, the Local Plan set out a strategy for the settlements within them. This section defines a series of settlement tiers and the policy approach to them, whilst Policies ST 5-ST 7 give greater articulation for the main urban locations and their hinterlands.

4.3.8 These and other relevant influences upon the Local Plan settlement strategy and, as a result, where development is located, are detailed more fully in Technical Paper No.4 Influences on the Settlement Strategy.

Settlement tiers

4.3.9 Defining and implementing a settlement strategy is assisted by the identification of settlement tiers that guide the location of development and services. Evidence strongly points to the principle of steering the largest scales of growth to reflect the existing largest concentrations of population, where services, employment and transport choices are present. This means that the urban centres and the larger well-connected villages occupy the higher settlement tiers, whilst those with strong environmental character, poorer access to services and/or limited capacity for change generally occupy the lower. Settlements are assigned to the tiers as shown in Table 4.3.1, with the strategy directing amounts of development on a descending scale; in other words the lower the tier of settlement, the reduced amount of development envisaged. Further information on the main services and facilities in villages can be found in the Swale Rural Sustainability Study (2011).

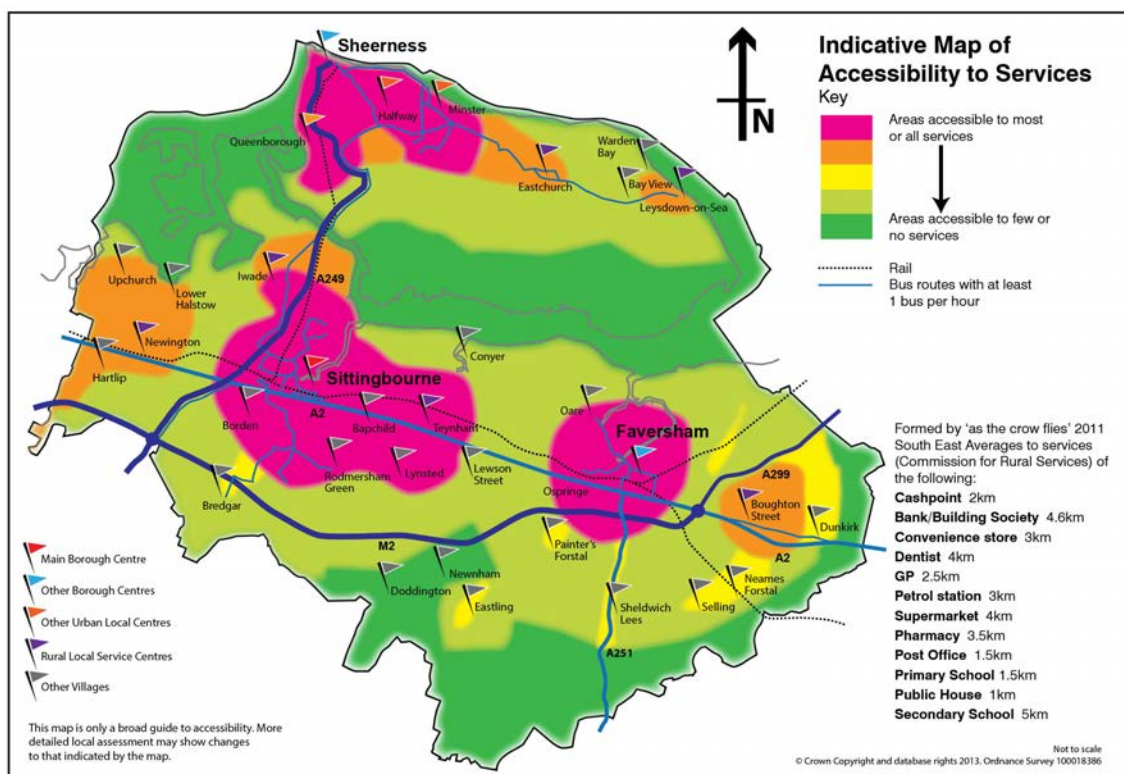
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Settlement tier	Role	Name of Settlement
1. Main Borough Urban Centre	All services and job opportunities. Good quality transport options. Primary focus for housing, retail, employment and other developments and for the concentration of principal public services and facilities. Likely to attract population from widest area.	Sittingbourne.
2. Other Borough Centres	Most services and job opportunities. Fair to good quality transport options. Smaller towns with a secondary focus for housing, retail, employment and other developments and concentration of principal or satellite public services and facilities. Likely to be acting as centres for their home and surrounding populations and close to other nearby smaller urban centres.	Faversham and Sheerness.
3. Other Urban Local Centres	Limited/variable range of local services at each, but in-combination providing a reasonable range. Variable quality transport options. Clusters of larger urban areas close to other Borough Centres. Likely to be the focus of developments seeking to meet the needs of their own and wider needs.	Minster and Halfway and Queenborough and Rushenden.
4. Rural Local Service Centres	Provides most or all of the following: primary health care, education, organised sport and recreational facilities, food and other shopping, pub, post office and place of worship. Mostly, accessible by frequent (hourly) bus and/or train services. Usually on main transport corridors which contributes to the range of services. Likely to be serving passing, home, visiting and surrounding rural populations for day to day services, with some sharing of services with nearby smaller settlements. Populations will travel to other centres for more major shopping, leisure and employment needs.	Boughton, Eastchurch, Iwade, Leysdown, Newington, Teynham.
5. Other villages with built-up area boundaries	A variety of settlements. The more sustainable provide: primary education, recreation area, a shop, and accessible by bus or train (of reasonable frequency). Currently less sustainable villages will be without one or more of these services, with little or no public transport or relatively remote from their nearest urban centre or main transport corridor. Single or occasional clusters of villages may contain limited day to day services for their home communities, whilst others lack these services or are only able to improve them with new investment. Populations will travel to other centres for more major shopping, leisure and employment needs, whilst less sustainable locations will need to travel to meet even day to day needs.	Bapchild, Bayview, Borden, Bredgar, Conyer, Doddington, Dunkirk, Eastling, Hartlip, Lewson Street, Lower Halstow, Lynsted, Neames Forstal, Newnham, Oare, Painter's Forstal, Rodmersham Green, Selling, Sheldwich Lees, Upchurch and Warden Bay.
6. The open countryside outside the built-up area boundaries	A variety of settlements, hamlets, ribbon development, clusters of buildings and isolated houses. Dependent on location, services limited or non-existent. Usually well away from transport corridors or of small and sporadic form. Some locations able to meet a very limited range of day to day services for their home communities, but many with no immediate access to these or a wider range of services.	All other remaining settlements and habitation without built-up area boundaries and other areas.

Table 4.3.1 Settlement tiers

4.3.10 The first five tiers of settlement are shown on Picture 4.3.2 and illustrates the Settlement Strategy's potential positive contribution toward sustainable development by bringing housing jobs and services closer together.

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Picture 4.3.2 Indicative map showing broad accessibility to local services from Policy ST 3 settlements

The role of built-up area boundaries

4.3.11 Based upon those settlements with more significant concentrations of existing development, built-up area boundaries are defined on the Proposals Map. Not all settlements have built up area boundaries defined, usually because their loose-knit, sporadic, historic or landscape character makes definition difficult and/or could lead to infill development harmful to their intrinsic value and/or that of the countryside.

4.3.12 The ability to define a built up area boundary is an important dimension to the settlement strategy because it informs judgements about where development can take place by helping to determine the change in character between built development and the open and undeveloped character of the wider countryside (as opposed to the social, economic or administrative boundaries to a village). A review of the boundaries in the 2008 adopted Local Plan can be found within Technical Paper No.3, A Review of Built-Up Area Boundaries, but they are drawn by reference to:

- identifiable physical features, such as roads, hedges or tree belts and existing property lines, avoiding, where possible, open undeveloped or environmentally sensitive land;
- sites on the edge of settlements which have planning permission, or are allocated for development in the Local Plan because of an overriding need to release the land; and
- excluding predominantly open land uses on the edge of settlements, such as playing fields, large gardens and utilities.

4.3.13 Whilst it will normally be the case that development can take place within built-up area boundaries, this will not always be so. For example, where heritage assets or their settings, or the primary purpose of the Area of Outstanding Natural Beauty would be compromised. The development of garden land or other gaps within settlements may also be inappropriate due to their character, amenity or biodiversity value.

4.3.14 The line between consolidated areas of built development and open countryside may not always be clear cut and judgements on a case by case basis may sometimes need to be made. However, beyond the defined built up area boundaries, land and other settlements are regarded as being within the open

countryside. Here, only development essential to the social, economic or environmental well-being, as set out by national and local planning policy, will be permitted, where consistent with the primary objective of protecting and, where required, enhancing the countryside.

Interpreting the settlement strategy

4.3.15 Policy ST 3 provides the scale and primary objectives appropriate to each settlement tier. It is not intended to prevent communities from bringing forward Neighbourhood Plans that conform to the Local Plan.

4.3.16 As well as decisions about development, maintaining the position of a settlement in its tier is also reliant on the decisions of infrastructure providers, in particular health, education, the Post Office and transport. A reduction in services could mean that a settlement no longer performs its defined role, with resultant implications for planning policy. As well as for planning decisions about new service provision or the change of use of existing services, Policy ST 3 should additionally inform the decisions of service providers when prioritising investment.

4.3.17 For developments seeking to meet the national planning policy intended to support the vitality of existing communities with new development, the Council will expect applications to be accompanied with evidence to show how it will support the viability of existing services and/or demonstrate how its scale will bring a new service(s) to the community.

4.3.18 The following paragraphs amplify the interpretation of Policy ST 3 to avoid over-simplification in its implementation and to ensure flexibility.

Tiers 1-3 - at the urban centres

4.3.19 As already indicated, the two planning areas presented by the Local Plan themselves require distinctions in approach, but within the Swale Thames Gateway, there are also variances:

- **Sittingbourne:** The largest share of the Borough's population and economy, together with its town centre regeneration, indicate the most significant scales of growth, whilst safeguarding environmental designations. The regeneration of the town centre needs to capture the benefits of a growth in population.
- **The West Sheppey Triangle:** Although a smaller share, relative to Sittingbourne, the population and economy of the Island is focused at its western side and provides for a still significant growth emphasis. Whilst settlements in their own right, with distinct characters and needs, the centres of population here are dependent upon each other to meet local needs. Sheerness is the main town, with nearby Queenborough and Rushenden, Minster and Halfway acting as local centres, but lacking the range of facilities of the main town. Sheerness is not able to meet all of its own needs and those of the wider Island's residents and visitors because of a lack of sites and surrounding environmental constraints. Both Queenborough and, especially, Minster, have historically met wider housing needs, but are impacted by environmental designations at the coast and concerns about coalescence and wider visual impacts. The Local Plan approach to growth is that it shall be on a collective basis between the settlements, but not at the expense of their individuality, character and, for Sheerness, its town centre. The strategy is for the delivery of existing development commitments and regeneration opportunities before the release of new land, other than where allocated.
- **Faversham:** Is the main focus for growth within this planning area where new development is especially viable, but at levels which reflect the historic importance of the town, the quality of its surroundings and a need to manage levels of out-commuting.

Tier 4 - at the rural local service centres

4.3.20 Although providing the main focus of growth in the rural areas, these villages vary in the scale of opportunities available and in their relationships with nearby communities.

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- **Boughton:** There are some minor opportunities for development, but its setting and the valued habitats and landscapes around the village constrain its major expansion. Given its population, local services are not as extensive as other centres and could be enhanced. Although not a service centre, the future and health of nearby Dunkirk is closely linked with that of its larger neighbour and both will be considered through a Neighbourhood Plan.
- **Teynham:** Reflecting a strong level of local services and transport choices, north of the A2 there are a number of large and medium sized development opportunities that can be achieved without significant harm to the wider countryside. South of the A2, the more linear development pattern, more open landscape, heritage and biodiversity considerations and high quality agricultural land limit growth. However, it is the settlement's overall poorer position, relative to the strategic road network and to Air Quality Management Areas declared in the A2 corridor, which strongly determine the overall scale of growth which should be directed to the village.
- **Newington:** Despite its role and level of services, development opportunities are relatively limited due to the valued and important heritage, landscapes and habitats to the north of the village, poor pedestrian connections between north and south of the village, a restricted internal road network, poor air quality and surrounding high quality agricultural land. Opportunities are limited to brownfield sites or to the east of the village where there is potential to develop a visually well contained site.
- **Iwade:** Its role and character has changed dramatically with 20 years of expansion, but despite this, its local centre role is not as fully developed as others due, probably, to its closeness to Sittingbourne. The village is located close to the A249, although the Grovehurst junction requires significant upgrading, however, public transport services for the village require enhancement as do links to rail services. There is further potential to expand the village in such a way as to sensitively improve integration with the countryside and create major new areas for open space, landscape and biodiversity enhancement without significant harm to international biodiversity designations. These areas will also enable further growth to safeguard land important to the separation of the village with Sittingbourne.
- **Eastchurch:** The village serves the needs of local residents, but also the nearby prisons and holiday population. Its open and elevated position within the surrounding landscape and less accessible location to the main centres of population, limit opportunities to minor development aimed at meeting local needs.
- **Leysdown:** Whilst an important centre for the resident population and tourists, its remote location from more major services at the end of a 10 km cul-de-sac from the A249, makes development opportunities less sustainable and viable, unless they can be shown to deliver tangible benefits such as more diverse employment opportunities, public transport improvements and support for local services. ^(4.16)

Tier 5 - other villages with built-up area boundaries

4.3.21 Across the Borough, the remaining villages with built up area boundaries have variable levels of services and vitality. In broad terms, these settlements fall into two categories:

1. Smaller to medium sized settlements currently displaying less sustainable characteristics stemming from their relative remoteness from the nearest town and/or their generally poorer levels of public transport provision or local facilities. These settlements include Bayview, Conyer, Dunkirk, Lewson Street, Neames Forstal, Painter's Forstal and Selling; and
2. Settlements currently displaying more sustainable characteristics, usually as a result of better levels of public transport provision and/or local facilities and/or their closeness to urban or larger village populations. These settlements include Bapchild, Borden, Bredgar, Doddington, Eastling, Hartlip, Lower Halstow, Lynsted, Newnham, Oare, Rodmersham Green, Sheldwich Lees, Upchurch and Warden.

4.3.22 Development at these villages is not required to meet the Local Plan housing target. However, windfall development at some locations could help meet local needs, improve the viability of existing services or enable new provision to be made, but other than through infill and modest redevelopment, opportunities are likely to be limited both within and, exceptionally, when required, at the edges of built-up area boundaries. Where larger scales of growth relative to the village are proposed as the means to meet local needs that

cannot be met elsewhere and/or support services, planning applications will submit detailed evidence to demonstrate the social, economic and environmental benefits to the settlement and how they will support more sustainable outcomes.

Outside the built-up area boundaries

4.3.23 All other settlements and sporadic buildings are considered to sit within the open countryside where the primary objective will be to protect it from isolated and/or large scales of development. Some minor development may though be essential for the social, economic or environmental health of a community, but are not necessary to meet the Local Plan housing target. In so doing, they will be required to protect and, where required, enhance, the intrinsic value, character, beauty, wildlife value, tranquillity and undeveloped nature of the countryside and its communities and buildings.

Use of Policy ST 3 for Gypsy and Traveller provision

4.3.24 Policy ST 3 will be read in conjunction with Policy DM 10 when considering planning applications. It will, however, be flexible in terms of recognising that there may be specific business or personal requirements that may need to be taken into account.

Policy ST 3

The Swale settlement strategy

By use of previously developed land within defined built up area boundaries and on sites allocated by the Local Plan, development proposals will be permitted in accordance with the following settlement strategy:

1. The main Borough urban centre of Sittingbourne will provide the primary urban focus for growth, where development will support town centre regeneration and underpin the town's role as the principal centre;
2. The other Borough urban centres of Faversham and Sheerness will provide the secondary urban focus for growth at a scale and form compatible to their historic and natural assets and where it can support their roles as local centres serving their hinterland. Additionally at Sheerness its role and functioning will be supported by the other urban local centres within the West Sheppey Triangle to meet the Island's development needs on previously developed sites or at existing committed locations and allocations well related to the urban framework and strategic transport network;
3. The Rural Local Service Centres will provide the tertiary focus for growth in the Borough and the primary focus for the rural area. At allocated sites relating well to the existing settlement pattern and the character of the surrounding countryside, development will provide for the local housing or employment needs for their home and surrounding communities, whilst supporting existing and new services;
4. Other villages with built-up area boundaries, as shown on the [Proposals Map](#), will provide development on minor infill and redevelopment sites within the built up area boundaries where compatible with the settlement's character, amenity, landscape setting, heritage or biodiversity value and;
5. At locations in the open countryside, outside the built-up area boundaries shown on the Proposals Map, development will not be permitted, unless supported by national planning policy and able to demonstrate that it would contribute to protecting and, where appropriate, enhancing the intrinsic value, landscape setting, tranquillity and beauty of the countryside, its buildings and the vitality of rural communities.

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How our development targets will be met

4.3.25 The Local Plan cannot directly provide the jobs and homes that the area needs, but identifies the land necessary to produce the opportunities for them. This section illustrates how this is achieved. The allocations themselves are shown on the Proposals Map.

How do we know how much land is needed to meet our development targets?

4.3.26 Our Strategic Housing Land Availability Assessment shows how site conditions, constraints, design and the density of development affects the amount of land we need, but calculating the land needed to meet our employment needs is complex. Our study - Employment Land Needs in Swale 2014-2031 (October 2015) - showed that the Experian economic forecast of 10,900 jobs for the plan period (2014-31 @ 641 jobs per annum) would be distributed as follows:

- 5,500 jobs are in non B space sectors (retail, services, health & education etc.)
- 1,400 jobs are in sectors normally found to occupy industrial land uses:
 - a contraction of 1,400 jobs are in manufacturing (B2, B1c);
 - 1,300 jobs are in warehousing (B8, B1c); and
 - 1,500 jobs are in other industrial sectors including waste, utilities, construction.
- 4,000 jobs are in sectors normally found in office space (B1a & B1b).

4.3.27 Most of this job growth was found to be in non B space sectors, with the decline in manufacturing offset by the growth in warehousing and specialised construction and utilities. The forecast also showed strong office sector growth, but Experian considered that this should be treated with some caution due to the influence of one specific location in the Borough.

4.3.28 The net result is that Swale needs around 130,000 sq. m of net additional 'B class' floorspace to meet the projected number of jobs. Most of the demand is for industrial uses driven by the growing warehouse and 'other industrial' uses. The growth of these sectors more than offsets the continuing decline in traditional manufacturing jobs. Using a standard approach, translating these jobs into the amount of land needed, determines that around 60 ha of new land is needed to meet the jobs forecast over the plan period.

4.3.29 The overall floorspace needs are shown in Table 4.3.2, however, we cannot say in advance how many jobs will actually be created on each site.

Sector	Local Plan provision for employment floorspace and land	
	Net indicative floorspace (sq. m)	Indicative land (ha)
Other industrial inc. utilities	62,995	17
Manufacturing	-58,738	5
Office	42,284	14
Warehouse	81,835	23
All B use classes	128,376	59

Table 4.3.2 Net employment floorspace (sq. m) and land (ha) requirements 2014-2031

4.3.30 To meet our floorspace requirements, Table 4.3.3 shows that as of 2014/15 we had a net supply of 159,418 sq. m - slightly higher than the total 'target' provision identified in Table 4.3.2. Within this total, there would however be a shortfall of some 28,936 sq. m for offices, but a numerical surplus against other

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sectors. In respect of the surplus in industrial requirements, as explained in Section 4.2, there are strong reasons for having a land portfolio in excess of this so that we get the right quality and choice of sites, whilst for offices, there is some caution around the economic forecast which the Council intends to monitor.

4.3.31 For retail and leisure floorspace, our Retail Needs Assessment (2010) tells us that some 29,227 sq m of comparison floorspace is required by 2025. This is ambitious and intended to enable the Borough to capture some 60% of market share.

4.3.32 For Gypsy and Traveller provision, the Council does not need to make specific allocations for new pitches. This is because most of the requirement for pitches in the plan period have already been met by planning permissions granted. The remainder required is small and can be comfortably provided from planning applications during the plan period on suitable 'windfall' sites.

4.3.33 The Local Plan does not need to allocate new sites to meet the whole of its development needs. This is because these needs are derived from a plan period with its base date set at 2013/14, with its first year represented by the period 1st April 2014 through to 31st March 2015. As a result, there are sites already completed and those with planning permission that have either yet to be commenced or completed. As a snap shot in time, Table 4.3.3 shows how these commitments reduce the amount of new land needing to be allocated by the Local Plan. The table does not consider any additional dwellings that might be required to achieve the continuous five year supply of housing land required by Government planning policy.

Source of supply for development	Net no. of new dwellings	Net amount of 'B' class employment floorspace (sq m)
Policy ST 2 Local Plan Development Targets 2014-2031 (17 years)	13,192 (776 dpa)	130,000
<i>From this target we deduct the following:</i>		
1. Completions between 1 April 2014 and 31 March 2015	618	7,072
2. Sites with planning permission as at 31 March 2015 yet to be completed	2,198	152,346
3. Allowance made for windfall completions 2020/21-31 (Not applied within first five years, but for 11 years @110 dwellings per annum)	1,210	N/A
<i>Sub-total of commitments</i>	<i>4,026</i>	<i>159,418</i>
Provision needing to be made by Policy ST 4 to meet Local Plan target	9,166	Minus 29,418

Table 4.3.3 Sources of development committed and proposed as of 31 March 2015. Source KCC Housing and Commercial Information Audits.

Determining where the development targets will be met

4.3.34 New allocations are selected from a portfolio of sites contained within our Strategic Housing Land Availability Assessment (2014/15) and Employment Land Review (2010). These sites have been assessed and where judged as deliverable, they have been allocated in accordance with the Local Plan settlement strategy within Policy ST3. This means that we have focused development growth using the following general prioritised approach:

1. The primary and greatest scales of development are at Sittingbourne, in line with its position as the main Borough urban centre;

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2. A secondary focus at the urban centres on western Sheppey closest to the Island's main facilities and transport choices and at Faversham, where growth is accommodated without significant harm to its smaller scale character and its built and natural assets; and
3. A tertiary focus and scale at the Rural Local Service Centres, notably and variably in recognition of constraints, at Iwade, Teynham and Newington, to support their roles as the primary focus for the rural area, without harm to their character and separation with other settlements. Other such centres have a lesser focus as suggested by their remoter location and/or availability of sites with lesser environmental harm.

4.3.35 Our planning strategy is led by development needs and objectives, however, as a guide to the broad distribution of growth in the Borough, Table 4.3.4 identifies the split of allocated dwellings (as at end of March 2015) at each of the settlement tiers within Policy ST 3, with further information on individual settlements.

Settlement tier in Policy ST3	Percentage of allocated dwellings ⁽¹⁾	Individual settlement	Percentage of allocated dwellings rounded ⁽²⁾
Main Borough Urban Centre	43.5	Sittingbourne	43.5
Other Borough Urban and Local Centres	44.1	Faversham	17.1
		Sheerness	0
		Queenborough and Rushenden	12.3
		Minster and Halfway	14.7
		<i>Total West Sheppey Triangle</i>	<i>27.0</i>
The Rural Local Service Centres	12.0	Boughton	0.4
		Teynham	4.0
		Newington	1.3
		Iwade	6.0
		Eastchurch	0.2
		Leysdown	0.1

Table 4.3.4 Percentage split of total net allocated dwellings to tiers/settlements in Policy ST3 (March 2015)

1. May not add to 100% due to rounding, calculation also includes dwellings allocated beyond plan period
2. May not add to 100% due to rounding, calculation also includes dwellings allocated beyond plan period

4.3.36 It is not necessary to allocate sites at settlements below the Rural Local Service Centre level within Policy ST 3. This is because these locations do not present the necessary combination of better location and sites of limited environmental impacts for such settlements to be prioritised above those in para. 4.2.34. This does not mean that no development would come forward in these rural locations, development in accordance with Policy ST 3 and DM 9, together with Neighbourhood Plans and other national initiatives, will ensure that appropriate development continues to support rural communities.

4.3.37 Within the above prioritised approach, we have allocated sites of lesser environmental value and steered growth away from designated sites. We have protected high quality agricultural land by steering a significant proportion of growth to lower quality land, unless this would result in less sustainable locations for development. Where we have had to use high quality land, we have used sites reasonably well contained by existing development or landform or when the mitigation of landscape impacts can be achieved to

acceptable levels. We have also avoided sites where development would be substantially harmful to historic assets or when significant environmental impact would occur. In identifying development allocations, environmental impacts, notably some erosion of the countryside between our towns and villages, will occur in the interests of meeting future development needs, but in so doing the critical spaces will continue to be protected. Where these and other impacts occur, our allocations will identify the mitigation needed to reduce the harm.

4.3.38 As well as meeting its housing target, the Council needs to provide for a five year supply of housing land. The Council will achieve this by ensuring that sufficient of the sites it has allocated will deliver completions within the first five years of the plan and has, as a contingency, reinforced its position with an allocated surplus of dwellings allocated over and above the housing target. This reflects the position as of 31 March 2015 and may be subject to change as a result of future changes in the land supply.

The identification of broad locations for windfall sites

4.3.39 National planning policy allows the identification of broad locations based on a geographical area that can contribute to housing land supply. Planning guidance confirms that this could include a windfall allowance - sites which have not been specifically identified as available in the Local Plan process that normally comprise previously-developed sites that have unexpectedly become available.

4.3.40 Technical Paper No. 5 Defining a Windfall Allowance demonstrates that there is evidence that sites for some 1,210 windfall dwellings will continue to come forward in Swale in the plan period from two broad locations:

1. Around 823 dwellings from the urban areas of Sittingbourne, Faversham, Sheerness, Queenborough, Halfway and Minster; and
2. Around 387 dwellings from the villages and the wider rural area.

4.3.41 The windfall allowance is not currently applied to the first five years of the Local Plan. This will be monitored over time.

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Policy ST 4

Meeting the Local Plan development targets

Land is allocated for development at the following locations on the Proposals Map or where identified as suitable for development within broad locations. Planning permission will be granted for such, whilst development quanta shall be the minimum to be achieved (unless site specific policies indicate otherwise), where in accordance with national or local planning policy:

Settlement/site of allocation	Dwellings ⁽¹⁾	Industrial/office floorspace (sq m)
<i>Total commitments from Table 4.3.4</i>	2,816	159,418
Sittingbourne allocations:		
Land at NW Sittingbourne (comprising land north of Quinton Road, land at Pheasant Farm, Bramblefield Lane and land at Great Grovehurst Farm)	1,450 ⁽²⁾	0
Land at SW Sittingbourne	564	0
Land at north east Sittingbourne	106	0
Lydbrook Close	70	0
Milton Pipes (Cooks Lane)	240	0
152 Staplehurst Road	75	0
Freesia, Grovehurst Road	15	0
35 High Street, Milton Regis	10	0
Stones Farm, Canterbury Road	550	0
Crown Quay Lane	650	0
Orbital Staplehurst Road	60	0
Manor Farm	30	0
Land north of Key Street	30	0
Within the central regeneration area (Policy Regen 1)	567	To be determined within future phases.
Ridham and Kemsley	0	145,985
Land south of Kemsley Mill	0	8,000
Total Sittingbourne	4,417 (4,467 inc. 50 beyond plan period)	153,985

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Settlement/site of allocation	Dwellings ⁽¹⁾	Industrial/office floorspace (sq m)
Sheerness allocations:		
Land at West Minster	0	7,500
Total Sheerness	0	7,500
Faversham allocations:		
From the Faversham Creek Neighbourhood Plan	94	0
Land at Western Link	250	0
Faversham Police Station, Church Road	12	0
Bysingwood Primary School, Hazebrouck	15	0
Land at Ham Road	35	0
Oare gravel workings, Oare Road	330	1,500
Lady Dane Farm, east of Love Lane (Phase I and II)	260	20,000
Land north of Graveney Road	90	0
Perry Court Farm, Ashford Road	370	18,525
Land west of Brogdale Road	66	0
Preston Fields, Salters Lane	217	0
Land at Selling Road	0	6,300
Land east of Faversham	0	7,000
Total Faversham	1,739	53,325
Minster & Halfway allocations:		
Belgrave Road	140	0
Land west of Barton Hill Drive	620	0
Jnc. Scocles Road and Elm Lane	50	0
Land at Chequers Road	10	0
Halfway Houses Primary School, Southdown Road	60	0
Land at Preston Skreens, Minster Road	24	0
Plover Road (Thistle Hill)	97	0

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Settlement/site of allocation	Dwellings ⁽¹⁾	Industrial/office floorspace (sq m)
Scocles Road (Thistle Hill)	473	0
Land at Minster Academy, Admirals Walk	20	0
Total Minster and Halfway	1,494	0
Queenborough & Rushenden allocations:		
The Foundry	37	0
Nil Desperandum	22	0
Land at Manor Road	6	0
Within the regeneration area (Policy Regen 2)	1,180	137,011
Land at Cowstead Corner	0	5,600 ⁽³⁾
Total Queenborough and Rushenden	1,245	142,611
Boughton allocations:		
Bull Lane	16	0
Land off Colonel's Lane	15	0
Land south of Colonel's Lane	6	0
Total Boughton	37	0
Eastchurch allocations:		
Land north of High Street	15	0
Total Eastchurch	15	0
Iwade allocations:		
Village expansion (north, east and southern areas)	572	0
Iwade Fruit & Produce, The Street	21	0
Iwade Village Centre II, The Street	10	0
Total Iwade	603	0
Leysdown allocations:		
Former Bus Depot, Shellness Road	10	0
Total Leysdown	10	0

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Settlement/site of allocation	Dwellings ⁽¹⁾	Industrial/office floorspace (sq m)
Newington allocations:		
Parsonage Farm, School Lane	14	0
Land north of High Street	115	0
Total Newington	129	0
Teynham allocations:		
Land at Frogmal Lane	260	26,840
Land East of Station Road	107	0
Land adj. Mayfield, London Road	13	0
Barrow Green Farm	30	0
Total Teynham	410	26,840
From within broad locations (windfalls):		
Within the defined built-up area boundaries of Sittingbourne, Faversham, Sheerness, Queenborough, Halfway and Minster.	823	0
Within the defined built-up area boundaries of villages and in the wider rural area in accordance with national planning policy.	387	0
Total broad locations	1,210	0
Pending losses arising from draft allocations		
To be deducted from provision being made	1 ⁽⁴⁾	44,380 ⁽⁵⁾
TOTAL PROVISION BEING MADE IN PLAN PERIOD	14,124 (14,174 inc. 50 dwellings phased beyond the plan period)	499,299
Surplus against planned requirement	932 (or 982 against total provision)	369,299
Planning Area totals (committed and total allocated dwellings)	Thames Gateway	12,053 (85.0%)
	Faversham and rest of Swale	2,121 (15.0%)

Table 4.3.5 Sources (net) for the supply of development and its location to 2031

1. Dwelling numbers are expressed as minimums, unless site policies in Chapter 6 state otherwise.
2. 1,330 at land north of Quinton Road and at Pheasant Farm (plus 50 dwellings beyond 2031), and 120 at land at Great Grovehurst Farm.
3. Excl. hotel site.

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4. From demolition of property at Newington allocation.
5. Losses at Queenborough & Rushenden regeneration area and Crown Quay Lane already within monitored land supply data. For remainder of allocations, a total loss of 12.68 ha of employment land is proposed at Lydbrook Close, Freesia, Milton Pipes, Orbital and 152 Staplehurst Road at Sittingbourne, The Foundry at Queenborough and at Graveney Road, Faversham. Assumed loss at 3,500 sq m per hectare.

Our area strategies

4.3.42 Within the context of the two planning areas identified by Section 4.2, our communities most recognise the Borough as three distinct areas – Sittingbourne, the Isle of Sheppey and Faversham, each with their own rural areas. The Kent Downs Area of Outstanding Natural Beauty is considered within the strategy for Faversham.

Our strategy for the Sittingbourne area

4.3.43 The Sittingbourne area covers the main town, the rural local service centres of Teynham, Newington and Iwade and a series of villages lying in countryside between the Borough boundary with the Medway Towns through to Teynham in the east and from the coast of the Swale and Medway to the M2 motorway in the south. Sittingbourne town is the largest centre in the Borough, with a 2011 population of 47,376 and has the main concentration of services, alongside good quality transport choices. Our vision here is of Sittingbourne transformed into an attractive, competitive and prosperous town, with a thriving centre that residents across the Borough are proud to use. To secure this, we consider that the town is suitable for the largest scale of developments proposed in the Plan to underpin and enhance its role as the principal settlement.

4.3.44 Achieving a strong, competitive economy will necessitate improving the availability of employment land at the town, including securing the continued success of one of the Borough's most enduring economic success stories – the Eurolink business park where planning permission has been granted for 43,000 sq. m of floorspace to the north east of the town. In addition, 8,000 sq m is identified on land to the south of Kemsley Mill, whilst at Teynham, some 26,840 sq m of rural employment is allocated as part of a mixed use extension to the village. Other 'Existing Strategic Employment Sites' are identified at Ridham and Kemsley, Kent Science Park and Sittingbourne town centre and these too should be the focus of further growth.

4.3.45 The existing land portfolio of committed employment sites is focused at Ridham and Kemsley which is still substantial and suitable for a range of businesses. Although generous in scale, its attractiveness to businesses with larger floorspace requirements looking for immediate access to the strategic road network may quickly diminish the supply. Further land will be identified as part of a Local Plan review once other opportunities for such businesses at Neatscourt on Sheppey have also been exhausted.

4.3.46 Office (B1a/b use class) floorspace needs will also be directed at Sittingbourne, either within the regeneration of central Sittingbourne, or elsewhere within the A249 corridor in accordance with Policy CP 1. The Kent Science Park will also be attractive to such businesses in accordance with Policy Regen 4.

4.3.47 To ensure the vitality of Sittingbourne town centre, we are looking to create and enhance the range of shops, leisure facilities and public, commercial and voluntary services. Ensuring that these ambitions are advanced will enable retention of local spending by both the existing and new residents we expect to house on allocations in and around the town.

4.3.48 The Council is now part of a development partnership with the group 'Spirit of Sittingbourne' which is set to deliver further regeneration in and around the town centre. Economic conditions and changing priorities have necessitated a scaling back and a re-focus of attention on the main town centre and Policy Regen 1 has defined the boundaries to the regeneration area for a mix of retail, leisure, civic facilities and new housing. Within the town centre boundary, the Council will bring greater flexibility to the consideration

of uses at the outer edges of the primary shopping area frontages and in the secondary shopping area frontage to take advantage of opportunities that may arise during this time of economic difficulty for the centre.



Picture 4.3.3 Sittingbourne and Milton Creek

4.3.49 To promote sustainable transport we are focusing on improving the quality of bus journeys, in particular the accessibility and facilities for passengers in central Sittingbourne. Within the town centre, major proposals will provide a central focus for bus and rail services in the vicinity of the station, which has been boosted by the award of £2.5m from the South East Local Economic Partnership local growth fund. Central Sittingbourne regeneration will also contribute to improvements to the highway network and traffic management within the town centre. A bus quality partnership will aim to improve public transport conditions and services at the town and in its centre, alongside additional routes to new developments and better walking and cycling routes.

4.3.50 Some 42% of the working population that live in the area work in Swale, whilst 34% work within the Sittingbourne area.^(4.17) Some 58% work outside the Borough; this is a high figure given the share of employment in the area, but is a feature of its undeveloped retail sector and a product of the Borough's undeveloped finance, office and science sectors. Support will be given to proposals that increase the opportunities for people to live and work locally.

4.3.51 Delivery of a wide choice of high quality homes in the area will be from sites able to take advantage of sustainable transport choices and will be from a range of sites within the urban area and as sustainable extensions to the town and the rural local service centres of Teynham, Newington and Iwade. In total, some 4,417 dwellings during the plan period are allocated for the town (together with 50 units phased beyond the plan period), whilst 1,142 are to be allocated across the rural local service centres.

4.3.52 At the north-west of the town, good connections to rail, bus and roads will enable a new community of 1,500 dwellings to be focused there. This location offers excellent connections to the existing urban area and beyond and is located close to Kemsley rail station and to the A249. It has significant potential to provide new schools, major open space and biodiversity enhancements.

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4.3.53 To the south-west of the town a major allocation of some 560 dwellings is proposed on land around Wises Lane, Brier Road and Cryalls Lane. Located close to local services and the A249, the site offers the opportunity to create open space and biodiversity enhancements alongside a possible new primary school. Two smaller allocations are also made in this vicinity close to Key Street, together providing 60 houses.

4.3.54 In addition to the completion of the East Hall Farm development to the north east of the town, a further allocation is made to the east, where, in addition to the extension to Eurolink, 106 new homes can be built. Here we also expect major open space and ecological enhancements to be secured as the means to 'finish' this long standing area of expansion for the town. South of this site, land at Stones Farm is allocated for 550 homes with new open space proposed between the town and Bapchild. A major allocation is also proposed to the north of the town centre around Crown Quay Lane. Here, 650 homes are proposed on brownfield land that can regenerate this neglected part of Milton Creek and enhance both the urban and natural setting of the creek and town.

4.3.55 To meet development needs and to avoid the allocation of more sensitive sites in peripheral locations at Sittingbourne, allocations for 410 dwellings are identified at nearby Teynham and 129 at Newington where sites well related to the village and close to a range of services and public transport choices have been chosen. At Iwade, a further phase of development at this expanded village is proposed. Here, 603 dwellings will create a high quality development at the edges of the village on its southern, eastern and northern sides. This will be supported by a major green infrastructure initiative which will be required to address potential impacts on the Special Protection Areas.

4.3.56 These allocations will give rise to a series of improvements needed to the highway network, notably at junctions with the A249 to the west of the town and particularly at its junctions with Key Street and Grovehurst Road. Crucially, beyond limited planned improvements to Junction 5 of the M2, major improvements are now programmed for completion by 2024.

4.3.57 Although not required to support current Local Plan growth targets, the final section of the Sittingbourne Northern Relief Road to the A2 is needed to improve traffic and air quality conditions in central and eastern areas of the town. It will also enable the full benefits of changes in traffic management in the town centre to be realised. The proposals are identified as a safeguarded 'Area of Search', the alignment for this road being progressed as part of a future Local Plan review.

4.3.58 To promote healthy communities, we are seeking to reduce the relative disparities between the stronger housing market, better environmental quality and lower levels of deprivation within communities to the south of the A2 as opposed to those to the north. Developments will target the reduction in deprivation within communities at Milton Regis, Kemsley and Murston whilst maintaining the qualities of the housing market in the south of the town. This will be brought about by strong built and landscape design, new facilities and, in some locations, new jobs.

4.3.59 Local Plan development proposals will contribute toward a need for 14.5 ha of parks and gardens, 5.9 ha of amenity greenspace, 57.0 ha of natural & semi-natural greenspace, 0.4 ha of space for young people and 2.6 ha of allotments, alongside an increase in outdoor sports provision of some 14.2 ha, alongside improvements in play facilities. For indoor sport and recreation, the need for additional all weather sports pitches has been identified, provision of which will be explored with developers and Kent County Council as part of school provision within the housing allocation in the north west of the town. Additional indoor swimming space is also required and this will be further examined as part of the review of leisure provision being undertaken by the Council.

4.3.60 Within new open spaces, significant contributions will be made toward meeting standards of natural and semi natural greenspace and these will be focused at the allocations in central, north-west and east Sittingbourne and at Iwade and Newington. Local Plan allocations also bring with them significant potential to extend and reinforce the green network of paths and spaces in the town. With new open space proposed at NW Sittingbourne and Iwade will come substantial benefits, both to biodiversity, but also to residents of both Sittingbourne and Iwade, who via a created 'green chain' of open space and new habitats, will be able

to walk or cycle some 3km on land linking the west of the town and the village, as well as making links with the existing green corridor via the Kemsley Drain to Milton Creek country park, which in turn will be expanded northward to achieve additional habitat to support existing wildlife designations. Further south, a new pedestrian and cycle bridge across Milton Creek to land at Crown Quay Lane will provide a new green link toward the town centre. Within the town, there is little urban green space beyond the parks and few street trees. Memorial tree planting in Central Avenue, Bell Road and The Avenue of Remembrance adds value, stature and character to the town, reinforcing its historical connections. We will be looking to development opportunities and other initiatives to safeguard and expand this network.

4.3.61 Conservation and enhancement of the natural environment means safeguarding the integrity of European designated wildlife sites. For the Medway and Swale Special Protection Areas (SPA), Milton Creek country park and space proposed at NW Sittingbourne, Iwade and other development sites will be a key part of ensuring that growth does not increase recreational pressures in the wider area by allowing the management of recreation closer to these centres of population. In the centre of the town, we are expecting developments closer to the head of the creek to open up land for improved access to the waterfront, flood management and biodiversity enhancements so that new residents and businesses can rediscover this lost waterway. Where allocations have local impacts upon biodiversity, net gains in biodiversity will still be expected. On larger allocations, such as north west, south west and east Sittingbourne, Stones Farm, Crown Quay Lane, at Iwade and on land to the south of Kemsley Mill, the scale of these gains is expected to be greater. These, together with other applications that may come forward, will require further assessment at the planning applications stage and may require developer contributions to mitigate impacts in accordance with Policy CP 7. Each application will utilise the full range of existing and potential natural assets to safeguard the SPA and achieve a net gain in biodiversity.

4.3.62 There are local landscape designations proposed for the North Kent Marshes, land along the marshland fringes and downland landscapes outside the Area of Outstanding Natural Beauty where development allocations are not proposed. To the south of Sittingbourne and the A2, the landscape generally has a low capacity to accommodate change because it is often locally distinct, has a strong rural character and is not strongly influenced by the existing urban edge of Sittingbourne. To the east, there is moderate capacity to accommodate change, with the landscape helping to maintain the separation from Bapchild, whilst the setting of Tonge Conservation Area adds to its sensitivity. However, to the west of the town, on the east side of the A249, the landscape has higher capacity for change, diminishing however to the north as the landscape forms part of the open space between the separate settlements of Iwade and Sittingbourne. The northern edge of the town has a low capacity to accommodate change because of the open space and marshland between urban areas of Sittingbourne and linking to the wider marshes further north.^(4.18) The condition and quality of the local landscape area designations around Sittingbourne will be maintained and, where possible, enhanced. This will also extend to other landscapes in poor condition, such as south of the A2 between Sittingbourne and Newington and Teynham.^(4.19)

4.3.63 Other than the northern edges of Sittingbourne, the town is surrounded by the highest quality agricultural land, part of the belt of such land located north and south of the A2 running from the edge of the Borough in the west through to Teynham (and beyond) in the east. Where such land is not required for development as allocated by this Local Plan, its loss will be strongly resisted.

4.3.64 Strategically, the cumulative impacts of development pressures within the A2 corridor between Sittingbourne and Rainham would have negative impacts upon the character of settlement patterns, whilst increases in the growth of traffic as a result, would impact upon air quality and the quality of life of local communities. More locally, some villages surrounding Sittingbourne are separated from the town only by a few fields, and important local countryside gaps are identified by Policy DM 25 to ensure their integrity remains. Local Green Space designations are proposed by Policy DM 18.

4.3.65 A new through school will be provided as part of the housing allocation at the north-west of the town, whilst a new primary school will be provided as part of housing provision to the south-west of the town; elsewhere increased capacity will also be secured at existing primary schools. Sittingbourne library

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will also be enhanced, whilst community, learning and skills and youth provision will be expanded at the town. Increased primary health care capacity will also need to be provided, notably in Sittingbourne town centre, at Grovehurst, The Meads, Iwade and Teynham.

4.3.66 Parts of the town and the wider A2 corridor experience poor air quality and Air Quality Management Areas have been declared for St. Paul's Street and East Street, Teynham Greenstreet and Newington High Street. Development affecting air quality in these areas will need to be consistent with the local air quality action plans and bring forward innovative mitigation measures.

4.3.67 Conservation and enhancement of the historic environment requires the significance and special interest of the areas historic assets to be properly considered. This is especially so within Sittingbourne where heritage can potentially be overlooked in areas such as its town centre, but there are a wider range of assets needing to be considered in the area including: Roman Watling Street (including the linear High Street, a route of medieval pilgrimage and important coaching stops, the 14th-15th century St. Michael's Church and 18th and early 19th century development); Saxon heritage of Milton Regis and pre-Roman coastal occupation around the coast and creek; industrial heritage of brick, paper and barge making and an emerging significance for first world war invasion defences; and rural area historic farmsteads, the network of rural lanes and drove tracks set within the historic landscapes of the North Kent Marshes, the agricultural plain and Kent Downs.

4.3.68 To the south of the town centre an area of high townscape is proposed by Policy DM 36 due to the concentration of buildings and spaces of historic and architectural interest.

Policy ST 5

The Sittingbourne area strategy

Within the Sittingbourne area, the town is the principal urban centre and focus for the main concentration of developments in and adjacent to the town. Development proposals will, as appropriate:

1. Increase the supply and quality of employment provision at 'Existing Strategic Employment Sites' or at allocations, or within the town centre regeneration area, where the need for office floorspace can be additionally met. Unanticipated needs that cannot be met at these or other existing employment sites, will be permitted at locations close to the A249 in accordance with Local Plan policies;
2. Ensure the vitality of Sittingbourne town centre, as appropriate, by:
 - a. enhancing its retail offer and attractiveness to secure local spending and jobs, whilst providing improved spaces, better north-south links and buildings of architectural excellence;
 - b. providing a wider range of services, including transport, education, health, leisure and cultural facilities;
 - c. enhancing secondary areas of the town within West Street, Dover Street, Cockleshell Walk and East Street;
 - d. enhancing local character, heritage and the built environment by either working with the grain and focus of the A2 or aiding the rediscovery of Milton Creek;
 - e. safeguarding and expanding the network of urban green space and street trees within and beyond the centre; and
 - f. adding to the mix of uses within the town centre to increase its vitality and viability.
3. Support, as required, improved connections to the A249 and M2 from west Sittingbourne and, in the longer term, the completion of the Sittingbourne Northern Relief Road to the A2;
4. Provide housing/mixed uses within the Sittingbourne town centre regeneration or at other sites within urban and village confines, or as extensions to settlements, where indicated by proposed allocations;

5. Create, where appropriate, mixed use and healthy communities and address disparities and housing market variances between communities north and south of the A2 through high quality design, new facilities and new jobs as appropriate;
6. Maintain the individual character and separation of important local countryside gaps around Sittingbourne in accordance with Policy DM 25 and within the A2 corridor to the west of the town through to Rainham;
7. Reduce levels of deprivation in the most deprived wards and facilitate as required, increased capacity in infrastructure and services;
8. Where possible, achieve net gains in biodiversity and natural/semi-natural greenspace at development sites, especially within allocations to the north-west, south-west and east of the town and at Milton Creek and Iwade;
9. In accordance with Policy CP 7, minimise and mitigate impacts on internationally designated sites for biodiversity, including, from developments within 6 km of an SPA, contributions toward the North Kent Strategic Access Management and Monitoring Strategy (SAMMS);
10. Improve the condition and quality of landscapes in the area, especially those in poor condition and ensure that development is appropriate to landscape character and quality, especially within landscape designations and areas with low or moderate capacity to accommodate change;
11. Unless allocated by the Local Plan, avoid the loss of high quality agricultural land in accordance with Policy DM 31;
12. Are consistent with local air quality action plans for Newington High Street, Teynham Greenstreet, St. Paul's and East Street and bring forward innovative proposals for mitigation of adverse impacts;
13. Conserve and enhance the historic and special interests of the town, coast, its rural area and landscapes; and
14. Are appropriate to the level of risk from climate change, flooding and coastal change, especially where subject to Policy DM 23 on coastal change management.

Our strategy for the Isle of Sheppey

4.3.69 The Isle of Sheppey has a 2011 population of 40,291 and is separated from the mainland by the Swale channel. It covers some 93 sq km (36 square miles) of low lying southern marshland and a north facing clay cliff coastline separated by an east-west range of south-facing hills. The main town of Sheerness (population 11,398) and the nearby settlements of Queenborough, Rushenden, Halfway and Minster are situated at the more populated, urbanised, industrialised and better connected western end of the Island. In contrast, Eastchurch, Warden and Leysdown are located within its more rural and remote eastern end. Our vision here means that the western end of the Island is the main focus for growth to achieve rejuvenation of the coastal settlements and bring success to the whole of Sheppey, whilst its eastern areas are intended to retain a more remote and tranquil rural and coastal character. Growth proposed through this local plan on the Island is at a lower level to that in the Sittingbourne area.

4.3.70 Whilst Sheerness is a secondary urban centre to Sittingbourne, for the Island's inhabitants it is their main centre. For the Local Plan vision to be achieved, Policy ST 3 looks to a 'West Sheppey Triangle' of Sheerness, Queenborough and Rushenden and Minster and Halfway to act collectively to meet the whole of their own and the Island's development needs, as well as contributing to the development targets for the Borough. The settlements within this 'Triangle' will each look to its neighbours to meet certain development needs; not at the expense of their individual integrity and distinctiveness, but as the means to secure sustainable development in the most accessible part of the Island. Further eastward, less accessible settlements, such as Eastchurch, Leysdown and Warden, will accommodate very small scale development aimed at supporting the needs of their home communities. However, larger scales of growth are not supported due to the more peripheral location of these settlements and the exposed nature of their landscapes.

4.3.71 Building a strong, competitive economy for Sheppey is especially important. Despite investment in new road infrastructure, its economy is the poorest performing and has borne the brunt of the economic

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recession in Swale, with the highest levels of unemployment and poor levels of skills. However, the Island remains well placed to build on the investment in road infrastructure made there and has the most significant amount of employment land already committed at Neatscourt in Queenborough and on smaller sites at West Minster. Some of the land at Neatscourt is already coming forward to bring jobs in retail that cannot be situated at Sheerness and a modest extension to the allocation is proposed at its eastern edge. However, the majority of the remainder of the Neatscourt land will be required to meet the need for industrial floorspace on the Island. Consequently, no further allocations for employment are necessary. Elsewhere, evidence suggests continuing potential for a small business centre for business startups in eastern Sheppey to encourage local business formation and diversify local employment, but in the current economic climate, this is likely to be a long term aspiration.^(4.20)

4.3.72 Policy CP 1 identifies the Port of Sheerness as an 'Existing Strategic Employment Site', whilst Policy Regen 3 identifies both the short and longer term opportunities that could arise as a result of an emerging Port Masterplan.

4.3.73 Such proposals are likely to be technically and environmentally challenging, but there is longer term potential here for very significant changes that could transform the prospects of Sheerness and Bluetown and those of the Island as a whole. These will be matters for a future review of this Local Plan should matters progress sufficiently.

4.3.74 The Island has a tourism offer unique to Kent, offering a traditional seaside holiday destination and accommodation that gives both facilities and independence on a large number of holiday parks spread across the north coast. Given that outside agriculture, tourism is likely to be the dominant contributor to the Island's rural economy, its good health is crucial. This industry will be supported through flexible policies to allow appropriate sites to extend the holiday season. However, there is potential to modernise and diversify into new areas such as through green tourism linked to the Island's outstanding heritage and wildlife assets.



Picture 4.3.4 The Sheppey Crossing - The Island's Gateway

4.3.75 Ensuring the vitality of Sheerness town centre, is supported by identifying it as an 'Existing Strategic Employment Site' by Policy CP 1. However, we need to tackle its potential decline.^(4.21) This is a centre at risk due to a lack of larger modern units, poor connections between the High Street and the main food store at Bridge Road, a poorer offer in comparison shopping, a lack of higher quality eateries and cafés and a

need to improve the physical appearance of parts of the centre. These aspirations present particular challenges, firstly because of the general poor viability of development currently and because not all of its needs can be met from available sites within the centre. The response to these challenges are a mix of short to longer-term measures:

- on-going - the Council will bring flexibility to the consideration of uses at the outer edges of the primary shopping frontage and in the secondary shopping frontage, taking advantage of opportunities that may arise;
- short term - securing a heritage lottery bid to fund heritage and townscape enhancements in and around the centre;
- medium term - bringing forward development opportunities on public and private land holdings at Trinity Place. A development brief will enable development to successfully utilise local assets, rationalise existing uses and act as a catalyst for wider change; and
- longer term - reliant upon the potential and wider regenerative benefits of the Port of Sheerness and a heritage-led regeneration plan for Sheerness, the detail of which will be developed through a proposed Heritage Strategy for the Borough.

4.3.76 The potential lack of development sites in the centre to accommodate further retail and leisure uses places pressure upon sites further afield and may be detrimental to its vitality and viability. Proposals for further retail and leisure growth at Local Plan allocations and other locations will therefore be resisted if they are not complementary to Sheerness town centre.

4.3.77 Promoting sustainable transport is a challenge for parts of the Island, although the road investments of the last 10 years have far exceeded those anywhere else in the Borough. The Island's well-connected western half has access to both rail and bus services as well as the strategic road network. However, its eastern more rural half is served by a single cul-de-sac road and a fragmented, disjointed and unsuitable assemblage of unmade roads along the northern coast. In the summer tourist season the population of the Island can increase substantially, serving to further highlight these local transport deficiencies. The improvement of existing queuing problems on the A2500 Lower Road approaches to the A249 will be resolved by the County Council via its transport strategy for Swale, together with land and/or financial contributions made available by housing allocations at Minster.

4.3.78 This pattern of transport distribution and the quality of bus services on the Island has had a strong bearing on how development has been distributed with larger scales of growth steered away from settlements such as Eastchurch, Warden and Leysdown. We will work to ensure that growth in the West Sheppey Triangle will produce improvements in sustainable transport. More longer term, there may be an opportunity to enhance the interchange between bus and rail services at Bridge Road in Sheerness.

4.3.79 Of its resident workforce, some 57% work off the Island.^(4.22) The retention of labour locally is the lowest of the three strategy areas and as a result, it is a net exporter of labour. This is a reflection of the poorer availability of local jobs and, to some degree, the levels of new and cheaper housing that has been built.

4.3.80 Delivering a wide choice of high quality homes on the Island raises complex questions. Much of the new development built over the last 20 years has been focused at Thistle Hill, which still has land available for a considerable number of additional dwellings. This housing was to have been supported by new jobs and previous local plan allocations, but it is only recently that the land put aside for employment over 20 years ago at Neatscourt has begun to come forward after a period of economic contractions on Sheppey overall. As a result, the Island exports more of its workforce each day than it receives from elsewhere and these levels have increased between 2001-2011.^(4.23) However, given its population and employment share, recent job creation, the availability of brownfield land and the need to ensure that losses of higher quality agricultural land are minimised elsewhere, the 'West Sheppey Triangle' will need to accommodate further new housing during the plan period. Some 2,764 dwellings are proposed for allocation on Sheppey, overall though, levels of new housing on the Island are lower than Sittingbourne and lower relative to its population and employment share.

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4.3.81 The most important development in the West Sheppey Triangle is at Queenborough and Rushenden. This area, on both banks of Queenborough Creek, is a major opportunity for housing, employment and community regeneration. Development of the housing areas in the master plan are now being spearheaded by the Homes and Communities Agency. It is identified as a proposed regeneration area by Policy Regen 2. The area represents a major opportunity to regenerate the environment by the removal of industry and the creation of new living and working environments that can enhance the waterside locations. It also offers the opportunity to create an improved physical relationship between the separated communities of Queenborough and Rushenden; the latter suffering considerable levels of deprivation. A small allocation is also provided on the fringe of Rushenden on its southern edge.

4.3.82 Thistle Hill will continue to be a focus for development for the plan period, with some 473 dwellings estimated as remaining to be developed, together with a further 97 dwellings at the adjacent Plover Road. There are other opportunities for housing development at the southern edge of Halfway and at the western edge of Minster. The most significant of these is for 620 houses on land to the west of Barton Hill Drive where major landscape and open space enhancements will be expected to ensure integration into the wider local landscape, whilst, alongside contributions from other sites, transport improvements to the A2500 Lower Road will also be achieved. A smaller allocation is also proposed at Belgrave Road where 140 dwellings can be integrated into the landscape behind the south facing ridgeline, whilst 20 dwellings are proposed within the current grounds of Minster Academy. A total of 60 dwellings are proposed on two smaller allocations to the east and north east of Minster and 74 dwellings from within the urban area of Minster-Halfway, mostly as a result of the closure of public sector premises. To the east of the Island there are also small allocations proposed at Eastchurch and Leysdown. There is also likely to be a continuing range of infill and other small scale opportunities at existing settlements, although the vulnerability of the Island to flooding and landslip will continue to strongly influence where development can take place.

4.3.83 Promoting healthy communities is a particular concern for Island residents where levels of deprivation both on the western and eastern sides of the Island are linked to a range of issues including unemployment, poor health and housing. New development at Queenborough/Rushenden is already bringing benefits in terms of tackling fuel poverty with new investment in retro-fitting, although the benefits brought about by wider regeneration both here and at Sheerness are likely to take place over a long period of time. A new primary school, GP surgery and increased library capacity is proposed at Queenborough/Rushenden, whilst increased capacity will be needed for youth services, together with spaces at Warden primary school and other GP surgeries on the Island. Local Plan development proposals will contribute toward a need for 7.3 ha of parks and gardens, 3 ha of amenity greenspace, 28.7 ha of natural & semi-natural greenspace, 0.2 ha of space for young people and 1.3 ha of allotments, alongside an increase of some 7.2 ha of outdoor sports provision and improvements in play facilities. A need for indoor sport and recreation has been identified in the form of all-weather sports pitches which shall be provided at Sittingbourne. A number of spaces across the Island are also proposed for designation as Local Green Spaces.

4.3.84 With the West Sheppey Triangle, an important local countryside gap is identified by Policy DM 25 that is intended to maintain the individual character and separation of the settlements and reinforce the flood risk and designated local landscape and wildlife site constraints that limit development opportunities there.

4.3.85 Meeting the challenge of climate change, flooding and coastal change is most evident on the Isle of Sheppey. For low-lying areas and the crumbling cliffs of the north coast, our coastal change management (Policy DM 23) identifies the areas and communities most vulnerable to change and sets out our approach to dealing with proposals in areas that are subject to long term risks. Much of the Island is low-lying marshland with large parts of its existing urban areas at or below sea level. Here, proposed developments need to be made safe, whilst across the Island localised surface water problems must not be worsened. Rising sea levels will, in time, present challenges to the extensive coastal and estuarine areas internationally recognised for birds. Through our natural assets and green infrastructure strategy, in partnership with the Greater Thames Nature Improvement Partnership and flood agencies, we will build on the work already done to ensure the sustainable management of this area so that habitats can continue to be created in the face of the long term changes that threaten them.

4.3.86 Conserving and enhancing the natural environment represents both challenges and opportunities. The undeveloped nature of much of the Island's landscape is strongly valued by residents, but much of the land outside the marshland environment is not designated. The range of hills between Queenborough and Leysdown have a moderate to low capacity to accommodate change, especially where development is not physically and visually well contained by the landform, or when the open, rising landscape leads to development being prominent in views from lower ground.^(4.24) These same areas are of lower agricultural quality and may be under development pressure as a result. These pressures will be managed through the wider strategic planning of the Borough, but due to the poor condition of the landscape, where development is to be permitted, or as part of landscaped wide based initiatives, the Council will look to enhance landscape structure and condition.^(4.25) This is particularly relevant for areas to the east and north-east of Minster.

4.3.87 The international, national and local landscape, biodiversity and geological interests of designated areas on the coast and estuary will be protected and enhanced through the mechanisms set out by Policy CP 7 and through the compensatory land needed as a result of developments at Queenborough and elsewhere. It will also be supported by the actions being brought about and planned to the south and east of the Island by the Environment Agency, Natural England and the RSPB.

4.3.88 The Island has some of the lowest quality agricultural land in the Borough and although much is on environmentally designated land, these poorer soils also extend onto the higher ground. However, where pockets of best and most versatile land occur, these shall be protected in accordance with national planning policy.

4.3.89 Conserving and enhancing the historic environment can and has presented tensions with meeting development needs on the Island. It has a greatly understated range of heritage assets brought about by its past of invasion and defence both from man and by natural processes. We will look to safeguard these interests in the face of change, but also recognise that they too will play their part in the future success of the Island both as catalysts for development like tourism and in the long term regeneration proposals in the Port of Sheerness. Across the Island there are a range of heritage assets needing to be considered including: Sheerness Dockyard and the Queenborough Lines; Queenborough; Sheerness town centre and Bluetown; the pioneering role of the east of the Island in the development of aviation; Minster Abbey; Shurland Hall; and the historic landscape of the marshes with its wide-open skies and criss-crossing ditches that have evoked literature and art, as well as places for early settlement, flood and military defence and industry.

Policy ST 6

The Isle of Sheppey area strategy

On the Isle of Sheppey, settlements within the West Sheppey Triangle are the focus of development and long-term change. Development proposals will, as appropriate:

1. Bring forward economic development on allocated sites and, as available, at the 'Existing Strategic Employment Sites', including, at the Port of Sheerness, supporting diversification of its activities in accordance with Policy Regen 3;
2. Support the existing tourism offer or assist its modernisation and diversification into new markets, including eco-tourism;
3. Consolidate and enhance the retail and service role of Sheerness Town Centre, especially where increasing its comparison provision or providing other services that enhance the centre. Where sites cannot be made available in the town centre, planning permission will not be granted for retail and leisure proposals at other sites where these would undermine the vitality of the town centre or prejudice the delivery of industrial floorspace, especially at the 'Existing Strategic Employment Sites' identified by Policy CP 1;
4. Bring forward the comprehensive regeneration of the Trinity Road area in accordance with its development brief, alongside wider enhancements across the centre;

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5. For larger scales of development, be well located in respect of the most accessible parts of the Island to both car and public transport and, where appropriate, bring forward improvements to the A2500 Lower Road;
6. Regenerate Queenborough/Rushenden on allocated land and at other sites as they become available and in accordance with its Masterplan, or be located at other sites within the built-up area boundaries.
7. Reduce levels of deprivation in the most deprived wards and facilitate as required, increased capacity in infrastructure and services;
8. Manage the level of risk from climate change, flooding and coastal change, especially where subject to the Policy DM 21 and Policy DM 23;
9. Improve the condition and quality of landscapes in the area, especially those in poor condition and ensure that development is appropriate to landscape character and quality, especially within landscape designations and areas with low or moderate capacity to accommodate change. Additionally, the Council will seek to bring landscape wide initiatives to Sheppey to improve landscape condition;
10. Where possible, achieve net gains in biodiversity and natural/semi-natural greenspace at development sites and minimise and mitigate impacts on internationally designated sites for biodiversity, including, from developments within 6 km of an SPA, contributions toward the North Kent Strategic Access Management and Monitoring Strategy (SAMMS) in accordance with Policy CP 7. The Council will, where appropriate, establish the Island as a focus for achieving net gains in biodiversity both through the appropriate mitigation and compensation of projects within the Borough and further afield;
11. Unless allocated by the Local Plan, avoid the loss of high quality agricultural land in accordance with Policy DM 31;
12. Maintain the individual character and separation of important local countryside gaps between the settlements of Minster, Halfway, Queenborough and Sheerness in accordance with Policy DM 25; and
13. Make effective heritage protection, integration and enhancement a priority, whilst conserving and enhancing the historic and special interests of the town, coast, rural area and landscapes.

Our strategy for the Faversham area and the Kent Downs

4.3.90 Faversham is a small historic market town, with a 2011 population of 19,316, set off the A2 Watling Street within a belt of high quality agricultural land between the North Kent Marshes and the Kent Downs. The eastern part of the area is overlooked by the wooded outcrop of The Blean close to the rural local service centre of Boughton. Across the area is the Kent Downs Area of Outstanding Natural Beauty (AONB).

4.3.91 Faversham acts as a focal point for trade and services for a wider rural area that is relatively successful with unemployment levels the lowest in the Borough, a strong housing market and a healthy town centre served by excellent road and rail links.^(4.26) Our vision here is for a different focus and scale of growth - gradual growth, not forced, artificial or overwhelming. Although the town remains the primary focus for growth in the planning area, overall levels are significantly lower than at Sittingbourne and Sheppey. The conservation and enhancement of the historic and natural environments of the town and its surrounding rural hinterland (inc. high quality agricultural land) are the primary planning aims. Within this context, the principal considerations for the area are to:

- support Faversham's market town role and reinforce its strong local character, identity and relationship with surrounding settlements; and
- value, secure and strengthen the qualities and distinctive features of the Kent Downs AONB.



Picture 4.3.5 Faversham

4.3.92 Although Faversham is not the Borough's main town or centre, for much of the area's population, their affinity and main point of interaction is with the town itself. Given its key role as a market town and service centre, its individuality is the key to its enduring success, both as a commercial business and retail centre, an attractive residential location and a visitor destination. It needs to consolidate these and its other strengths - its range of services, compact small town character and outstanding built and natural environments - so that it continues to thrive in the face of 21st Century change.

4.3.93 Building a strong, competitive economy means safeguarding existing employment sites where there remains the prospect of them being delivered in the longer term. 'Existing Strategic Employment Sites', identified by Policy CP 1, will continue as the focus of providing the majority of the town's industrial employment: to the north-west of the town at the Western Link/Oare Road; the town centre; and at the brewery complex within the centre of the town. We also need to deliver suitable employment allocations of some long standing at Selling Road and at Graveney Road, east of the town.

4.3.94 We also need to provide improved quality and choice and address some contraction in the quantity of employment land.^(4.27) This is because former allocations at the Western Link and the nearby Oare gravel workings have been reviewed and re-allocated for housing. Our Employment Land Review 2010 indicated a need for a further 20,000 sq m (5 ha) of employment floorspace, with residential development needed to financially improve the prospects for its delivery. Additionally, the town may offer the potential to increase the amount of office provision in the Borough. Land has been allocated to meet these and other needs at Lady Dane Farm, east of Love Lane and at Perry Court Farm to the west of Ashford Road.

4.3.95 The Faversham area's tourism appeal remains important and we will support the continued expansion of its heritage-based focus to further complement activities based around a strong, green countryside and active leisure offer.^(4.28) This potential arises from the location of the area close to the North Kent Marshes and Kent Downs and its connectivity to Europe, London, Canterbury and the wider Kent tourism product. Faversham is within a 'triangle' of interest with Canterbury and Whitstable all providing an accent toward arts and culture, quality shops and a focus of quality for local food and drink. We will safeguard tourism assets, whilst meeting demands for change when compatible with the primary planning aims of conservation and enhancement.

4.3.96 Within the Kent Downs Area of Outstanding Natural Beauty (AONB), support will be given to businesses and services conserving and enhancing its natural beauty and contributing to the vibrancy of communities. Both within and outside the AONB, the development of sustainable visitor and tourism facilities will be supported, especially where committing to nationally recognised green accreditation.^(4.29) Supporting

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a prosperous rural economy will also be strongly assisted by our approach for supporting a healthy market town. We will support appropriate employment opportunities and be especially welcoming to those creating a link between their business and the retail diversity of the town.

4.3.97 Ensuring the vitality of Faversham town centre will require the accommodation of necessary change, whilst not undermining the services, facilities and characteristics that support the town's role and health. The centre is both healthy and attractive with vacancies falling and strengths that include its uniqueness, strong sense of place and the range of independent businesses.^(4.30) This last strength can, for example, be found in the local network of people who buy, sell, produce and supply food. Links like this support local jobs, raise awareness about where and how products are produced, contribute to the character and identity of the area, strengthen demand for local producers and places them at the heart of the local community.^(4.31) We will support proposals that consolidate existing or create more of such links.

4.3.98 The availability of town centre sites are limited for more major retailers, but locating such stores elsewhere means careful consideration of any impacts upon the current role and health of the town centre. Our evidence does not suggest a need to support new floorspace outside the existing centre.^(4.32) Therefore, local plan policies will support a robust approach to maintaining the vitality, role and character of the town centre. Proposals outside the town centre require careful scrutiny of submitted evidence, particularly how the catchment area for the town and proposal is treated. Given the relationship between the town and rural area, we will also consider the impacts of retail stores outside the town centre upon trade retailers, producers and consumer choice within the wider rural area. We will also look at how proposals intend to adapt their business models to the scale and character of the town centre.

4.3.99 Promoting sustainable transport will be aided by the area's already excellent rail and road links, but we will look for opportunities to improve bus links from outlying rural areas into nearby towns. The A2 through Ospringe is subject to an Air Quality Management Area (AQMA) and this will influence the scale and type of growth on the western side of Faversham. Development proposals will be expected to demonstrate a no increase in relevant pollutants and bring forward innovative proposals for mitigation. At the town's junctions with the M2, development may be required to fund interim improvements, pending more major longer term enhancements resulting from the national roads programme.

4.3.100 Of its total resident workforce, 35% work within Swale and 24% in the Faversham area itself. Commuting out of the Borough is the highest level of the three strategy areas at some 65%, the most popular location being Canterbury.^(4.33) This is probably not untypical of a market town with high quality transport links close to a range of employment markets, but it underscores the efforts needed to improve local job opportunities whilst damping down housing demand.

4.3.101 Delivering a wide choice of high quality homes requires us to balance the popularity and strength of the local housing market with our primary planning aims (these being key reasons as to the strength of the housing market) and the need to manage levels of out commuting. Significant increases in housing in the area are not justified in terms of supporting any social or economic objectives (i.e. high unemployment, poor housing market or town centre, high levels of in-commuting), other than where supporting the viability of employment or for increasing levels of affordable housing. However, housing at an appropriate level is required at the town to both support local needs and those of the Borough as a whole. Additionally, development here is likely to be more viable than other areas and better able to support the readily available supply of housing land that is required in Swale. As a result, housing provision will be higher than at any time since 2006, but will be contained at levels that will not detract from the strategy of the Local Plan.

4.3.102 Proposed allocations at Faversham and Boughton amount to some 1,776 dwellings. Our main allocations for housing will be some 260 dwellings to support the employment site at Lady Dane Farm, east of Love Lane, Faversham, 250 dwellings on land at the Western Link, some 330 dwellings at Oare gravel works, together with a series of land releases to the south of the town at Brogdale Road (66 dwellings), Perry Court Farm (370 dwellings) and at Preston Fields (217 dwellings) to the east of Ashford Road. These sites have good access to the town and the strategic road network, but development will need to be sensitively planned so as to address the issues arising from their location within the setting of the town. At Graveney Road, the former Nova premises is also proposed for redevelopment for some 90 dwellings.

4.3.103 Elsewhere, smaller land releases are proposed at Ham Road (35 dwellings) and on three sites at Boughton (37 dwellings). It will remain the case that sites will continue to come forward within the central areas of Faversham, including within the Neighbourhood Plan at Faversham Creek. These will be permitted where they support employment and retail diversity and, in the case of the Neighbourhood Plan, do not undermine its vision, objectives and policies. Elsewhere, some new housing may come forward within neighbourhood plans, such as that being considered for Boughton and Dunkirk. However, it is too early to determine the amount or its appropriateness in terms of conformity with the Local Plan.

4.3.104 It will be at Oare gravel works where some of the most significant change will arise that will need to respect the sensitive nature of the site and its surroundings. Existing industrial activity will cease and new housing will be provided on land outside areas at risk from flooding, whilst at risk heritage assets will be brought back into appropriate use. Significant areas are to be put aside for the primary purpose of the management of biodiversity and recreational pressures so as to avoid adverse impacts on the wider North Kent Marshes. Additionally, sites at Perry Court Farm and Preston Fields are expected to make significant contributions to levels of natural green space available at the town.

4.3.105 Promoting healthy communities will be supported and aided by the area's access to outstanding countryside and its close association with local food production. Proposals for new outlets, farmers' markets and community-supported farms, village shops, community gardening and allotments will therefore be supported.

4.3.106 Despite its outwardly prosperous image, the area has some notable areas of deprivation - Davington and the East Downs Wards. Development in these locations will seek to improve the conditions present. Accommodating the wider growth in the area will require increased capacity at existing schools, libraries and health facilities, as well as in community adult and youth learning. Notably a new primary school will need to be built.

4.3.107 Development proposals will provide for major new open space at the Western Link, but more significantly at Oare gravel works, land east of Love Lane and at Perry Court Farm and Preston Fields. These, and others, will look to meet a need for 4.7 ha of parks and gardens and 1.9 ha of amenity greenspace, 18.5 ha of natural and semi natural greenspace, 0.1 ha of space for children and young people and 0.9 ha for allotments, alongside an increase of some 4.6 ha of outdoor sports provision and improvements in play facilities.

4.3.108 A specific part of the town where a new mixed use community can be created is Faversham Creek, where a Neighbourhood Plan has been adopted (Policy NP 1). Here, the main objectives are the regeneration of key creekside sites and improvements to footpaths and public areas. We will also look to achieve a linked network of spaces and routes between Faversham and Oare Creeks with the Neighbourhood Plan and Oare gravel workings allocation instrumental to this.

4.3.109 Meeting the challenge of climate change, flooding and coastal change will focus in the areas north of the town. Around the developed areas of Faversham Creek, a flexible response to the issue of flood risk will be necessary to enable regeneration to take place. Careful siting of development at Oare gravel workings is also necessary to remove risk in accordance with Policy DM 21 and Policy DM 23. As a result, our decisions will consider the longer-term implications and appropriate management response on such matters as sea level rise.

4.3.110 Conserving and enhancing the natural environment is one part of the primary planning aims. The focus of this attention are the internationally and nationally designated coastal and woodland areas together with the nationally and locally protected landscapes in the AONB, The Blean Woodland complex (inc. the lowland farmland in its setting) and the valley spur from the North Downs to the west of the town. To the north of Faversham, the landscape capacity is generally low because of the open and sensitive nature of the marshland landscape and the resultant high visibility. Also at the northern edge, marshland views expose the town's creeks, sailing barges, Abbey Barns, brewery and Parish Church as key landmarks, whilst the separation of Oare from Faversham is a consideration.^(4.34) To the west, the landscape has a low capacity for change because of its high landscape sensitivity and value. To the south and east of

4 Setting out our local plan strategy for Swale

Faversham, the landscape has a moderate capacity to accommodate change because it is physically and visually contained. However, the landscapes to the south of the town are sensitive because they may form part of the settings to the Kent Downs AONB, or the town itself, or provide for the individual character and separation of Ospringe.^(4.35) Landscape condition is generally good, but where development is to be permitted, opportunities will be taken to enhance landscape condition, especially in areas to the north west of the town.^(4.36)

4.3.111 Other than the northern edges of Faversham, the town is surrounded by the highest quality agricultural land, part of the belt of such land located north and south of the A2 running from Teynham (and beyond) in the west through to Boughton where land quality gives way to the clay soils of the Blean. Where such land is not required for development as allocated by this Local Plan, its loss will be strongly resisted.

4.3.112 Development close to the Special Protection Area (SPA) raises questions over possible disturbance to birds from allocations at Oare, the Western Link, east of Love Lane and within the Faversham Creek Neighbourhood Plan. These, together with other applications that may come forward, will require further assessment at the planning applications stage and may require developer contributions to mitigate impacts in accordance with Policy CP 7. Each application will utilise the full range of existing and potential natural assets to safeguard the SPA and achieve a net gain in biodiversity. In some locations, impacts arising from recreation will need to be considered in the context of local wildlife designations.

4.3.113 Within the Kent Downs AONB, proposals will support the adopted management plan. For biodiversity, its distinctive wildlife habitats should remain in favourable, resilient condition, whilst the diversity of landscape character and qualities distinctive to the area will be protected, enhanced and managed. We will support the agricultural industry throughout the rural area, but especially where it supports the qualities of the AONB. We will also support proposals to conserve and enhance woodlands that will enable sustainably managed woodlands and local markets for timber.

4.3.114 Conserving and enhancing the historic environment is one of the primary planning aims, reflecting the area's range of historic buildings, conservation areas, scheduled monuments and historic parks and gardens. At Faversham itself, 40% of its urban area within a conservation area, its historic significance and morphology reflects its long time-span of occupation that includes: the waterway used from pre-Roman times; Roman settlement around Watling Street; a Saxon royal estate centre; a 10th century founded market; Cinque Ports membership from the 11th century; the 12th century royal abbey establishment; early prosperity at the creek, Abbey and Court Streets; the 1698 founding of Britain's oldest brewery; the remains of industries including oyster fishing, gunpowder manufacturing and brewing; the 19th century expansion brought by the railways; and the legacy of local charitable giving.

4.3.115 Whilst its medieval, creek side and maritime cores are the town's outstanding features, its small compact urban form and setting is an important part of its uniqueness. On the town's southern edges, despite the proximity to the London-Canterbury (A2) road, the maritime draw of the town and its industries was sufficient over the years to keep most of the town's development on the north side of the A2. This position, just off the main road network has, perhaps, helped the survival of an outstanding heritage of archaeological sites, old wharves, historic buildings, streets and other spaces.^(4.37) This urban form and its setting is unique in terms of A2 towns in Kent, but is under pressure as the town seeks to expand to meet development needs. As the town derives some of its heritage significance from this morphology, where essential development needs to be provided at the town, the Council will avoid as far as possible the most sensitive locations and ensure that within development proposals, those aspects that contribute to the town's heritage significance are preserved as far as possible.

4.3.116 Within the Kent Downs AONB, the principal components of the historic character of the historic landscape, the field patterns, hedgerows, droveways, woodlands and parklands should be conserved and enhanced in accordance with its designated landscape status. Across the area, the rich heritage of buildings, settlements, farmsteads and sites that characterise the historic and cultural fabric of the rural areas will be maintained and supported by our policies for tourism, rural housing and the economy.

Policy ST 7

The Faversham area and Kent Downs strategy

Within the Faversham area, the conservation and enhancement of the historic and natural environment are the primary planning aims. Decisions will strengthen the viability of Faversham or its rural communities and support their shared social, economic and cultural links. Development proposals will, as appropriate:

1. Maintain existing land and buildings in employment use, especially at 'Existing Strategic Employment Sites' or bring forward industrial development at Local Plan allocations;
2. Safeguard, diversify or expand the tourism focus of the area through appropriate proposals with an environmental, countryside or active leisure emphasis;
3. Maintain or enhance the range of town centre services and facilities to secure Faversham's role and functioning and support its vitality and its uniqueness, strong sense of place and the range of independent retailers;
4. Within rural settlements, support local economies, especially where maintaining or enhancing the countryside, or helping to maintain or enhance services and facilities;
5. Provide appropriate employment opportunities within the rural area, especially where creating supply or production links with Faversham or supporting the character of the AONB and its economy;
6. Develop public transport networks which meet the needs of both the market town and its surrounding rural area;
7. Provide housing at allocations and, as appropriate, within Neighbourhood Plans or other appropriate locations, where the role and character of Faversham and its rural communities can be maintained or enhanced and where levels of out-commuting would not be exacerbated;
8. Reduce levels of deprivation in the most deprived wards and facilitate as required, increased capacity in infrastructure and services;
9. Maintain the individual character and separation of Oare and Ospringe from Faversham;
10. Accord with Policy NP 1 and the Faversham Creek Neighbourhood Plan, enhancing this locality as a tourist hub and a place of special interest and activity, with strong associations with the water and improved links to the town centre;
11. Address the risks of flooding and forecast climate and coastal change, particularly around the coast and at Faversham and Oare Creeks, in accordance with Policies DM21 and DM 23;
12. Ensure the landscape qualities and distinctive features of the Kent Downs AONB remain valued, secure and strengthened, alongside the local landscape designations within and around the North Kent Marshes, The Blean and North Downs. Improve the condition and quality of landscapes in the area, especially those in poor condition and ensure that development is appropriate to landscape character and quality, especially within areas with low or moderate capacity to accommodate change;
13. Unless allocated by the Local Plan, avoid the loss of high quality agricultural land in accordance with Policy DM 31;
14. Are consistent with local air quality action plans for Ospringe and bring forward innovative proposals for mitigation of adverse impacts;
15. Where possible, achieve net gains in biodiversity and natural/semi-natural greenspace at development sites and minimise and mitigate impacts on internationally designated sites for biodiversity, including, from developments within 6 km of an SPA, contributions toward the North Kent Strategic Access Management and Monitoring Strategy (SAMMS) in accordance with Policy CP 7; and
16. Protect and enhance the diversity, character, appearance and setting of the area's historic assets. When considering development proposals at undeveloped sites outside Faversham, preserve those aspects of the town's morphology that contribute to its significance, including its small scale and compact urban form, surrounding countryside and its rural approaches.

4 Setting out our local plan strategy for Swale

End Notes

- 4.1 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 4.5
- 4.2 2011 Census, Office for National Statistics
- 4.3 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 8.33
- 4.4 Swale Retail and Town Centres Study 2010. CBRE for SBC. Para. 5.16
- 4.5 The Kent Historic Landscape Characterisation Survey 2001. Kent County Council
- 4.6 National Planning Policy Framework 2012. CLG. Para. 17
- 4.7 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 8.53
- 4.8 Baseline study of the current information on birds and habitats (NE Commissioned Report 082: What do we know about the birds and habitats of the North Kent marshes?); bird disturbance report (Bird Disturbance Study North Kent 2010/2011); visitor Survey (North Kent Visitor Survey Results, Sept 2011); concluding report summarising the results (Phase 1 Bird Disturbance Report, July 2012)
- 4.9 SHMA Update and Development Needs Assessment 2013. NLP for SBC. Para. 8.52
- 4.10 Swale Open Space Strategy: PPG17 Audit & Assessment 2009 - 2014 and Facilities Planning Model.
- 4.11 Environment Agency, North Kent and Swale Catchment Abstraction Strategy 2013, Water resource reliability expressed as percentage of time available, whilst Chapter 2 highlights the issue of scarcity of water resources in the North Kent and Swale catchment
- 4.12 South East Water published their WRMP for 2015-2040 in June 2014 while Southern Water's WRMP for 2015-2040 was published in October 2014
- 4.13 SHMA Update and Development Needs 2013. NLP for SBC. Paras 4.31-32
- 4.14 2009 Cambridge Model, Kent Hotel Development Hotspots Report 2011
- 4.15 2011 Census
- 4.16 SHMA Update and Development Needs 2013, NLP for SBC paras 4.32
- 4.17 2011 Census
- 4.18 Fig 2 and Pages 100-101 Swale Urban Extensions Capacity Study 2010
- 4.19 Swale Landscape and Biodiversity Assessment 2010
- 4.20 Swale Employment Land review 2010 and SHMA Update and Development Needs 2013. NLP for SBC. Para. 4.32
- 4.21 Swale Retail and Town Centres Study 2010
- 4.22 2011 Census, Office of National Statistics
- 4.23 Comparison between Census 2001-2011
- 4.24 Fig 2 and Pages 100-101 Swale Urban Extensions Capacity Study 2010
- 4.25 Swale Landscape and Biodiversity Assessment 2010
- 4.26 Swale Retail and Town Centre Study 2010. CBRE for SBC
- 4.27 Swale Employment Land review 2010 and SHMA Update and Development Needs 2013. NLP for SBC. Para. 4.32
- 4.28 Faversham Tourism Survey Faversham Enterprise Partnership 2010
- 4.29 Policy VC7 Kent Downs Area of Outstanding Natural Beauty Management Plan 2014-2019
- 4.30 Swale Retail and Town Centre Study 2010. CBRE for SBC. Para. 2.78
- 4.31 From field to fork: Faversham May 2012. CPRE
- 4.32 Swale Retail and Town Centre Study 2010. CBRE for SBC. Para.5.13
- 4.33 2011 Census, Office of National Statistics
- 4.34 Faversham Conservation Area Appraisal 2004. SBC. Paras.2.19-20, 4.40
- 4.35 Fig 2 and Pages 100-101 Swale Urban Extensions Capacity Study 2010
- 4.36 Swale Landscape and Biodiversity Assessment 2010
- 4.37 Faversham Conservation Area Appraisal 2004. SBC. Para. 1.6

5 Core planning policies

Introduction

5.0.1 The Core Policies in this chapter are intended to ensure joined up consideration, across the themes covered, to matters of critical importance to the success of the Local Plan. They apply to all development proposals.

5.1 Building a strong, competitive economy

5.1.1 The [National Planning Policy Framework](#) stresses the Government's commitment to securing economic growth in order to create jobs and prosperity, building on the country's inherent strengths, and meeting the twin challenges of global competition and of a low carbon future.^(5.1) The planning system is expected to do everything it can to support sustainable economic growth.

5.1.2 The creation of the [South East Local Enterprise Partnership](#) (SELEP) in April 2011 includes councils and businesses from Kent, Greater Essex and East Sussex. Their aim is to 'create the most enterprising economy in England'. To promote steady, sustained economic growth over the next two decades, the LEP has four objectives:

- secure the growth of the Thames Gateway;
- promote investment in coastal communities;
- strengthen the rural economy; and
- strengthen the competitive advantage of strategic growth locations.

5.1.3 The Kent Regeneration Framework (2009–2020) is the County Council's overarching assessment of the opportunities and challenges facing Kent over the next ten years. It advocates sustainable regeneration within which businesses can grow and flourish and with a workforce equipped with the skills and learning it needs. The Framework identifies Kent Thames Gateway as a key driver of growth for the county with Swale needing to deliver transformational projects and economic regeneration to assist areas of deprivation.



Picture 5.1.1 Distribution hub at Ridham/Kemsley

5.1.4 Prior to the recession our economy was growing strongly, dominated by manufacturing and a number of small niche sectors. We are a net exporter of labour mainly to London and adjoining areas of Kent, with some weaknesses in the local labour market, including relatively high unemployment levels, below average skills and lower earnings. Our rates of new business formation are also currently lower than the regional and county averages and have declined more rapidly during the recession. Most of our stock of employment space comprises industrial uses, with very modest amounts of office accommodation, although this has grown in recent years.

5.1.5 Policy CP 1 supports the goals and objectives of the LEP to strengthen economic development in the Borough. It supports our Local Plan Strategy and addresses the issues highlighted by the Swale Employment Land Review (2010), SHMA Update and Development Needs (2013), Employment land needs in Swale 2014-2031 (2015) and Retail and Town Centre Study (2010) to produce a near comprehensive employment land portfolio to meet needs over the Plan period.

5 Core planning policies

5.1.6 Whilst acknowledging our current stock of existing employment sites and commitments, Policy CP1 supports the need to address qualitative and broad needs at certain parts of the Borough.^(5.2) It supports our future potential growth sectors (see Statement 2^(5.3)) and the needs of:

- the manufacturing sub-sectors and their underlying strengths in certain specialist sectors;
- the retail sector;
- the visitor economy (recreation, accommodation and food services);
- growth focused on the natural environment and heritage offer; and
- expansion proposals in the pharmaceutical sector.

5.1.7 Policy CP 1 confirms and encourages the appropriate development of the following ‘Existing Strategic Employment Locations’, as identified by the area strategies and within Regeneration and town centre policies as appropriate, at:

- Sittingbourne, Sheerness and Faversham town centres;
- Ridham, Kemsley, Eurolink and the Kent Science Park in the Sittingbourne area;
- Neatscourt and the Port of Sheerness on the Isle of Sheppey; and
- North west Faversham and at the Brewery complex toward the centre of the town.

Statement 2

Swale's future potential growth sectors

- General and advanced manufacturing, engineering,
- Distribution;
- Agriculture/ forestry/woodland;
- Financial/business services,
- Environmental technologies (low carbon sector);
- Healthcare/biotechnology;
- ICT, media/telecommunications;
- Construction;
- Retail/leisure, cultural activities, tourism, hotels and catering and boat repair.

5.1.8 Future growth depends on attracting inward investment, developing the sectors where there are already established strengths and stimulating growth of smaller scale home-grown firms (inc. creating a positive climate to encourage school and higher education leavers to base new businesses in Swale). We also need to diversify into higher value manufacturing, logistics and distribution and the environmental sectors, all of which offer potential that can build on the area's strengths.

5.1.9 Agriculture is also an important economic sector and the industry needs to keep pace with the changing context brought about by climate change, food security, global markets, major food retailers and changing legislation/guidance.^(5.4)

Statement 3

The importance of Swale's agricultural sector

- Swale has 37,000 ha of land; of which 23,000 ha is farmed and approximately 15,000 ha (around 70%) is classified as best and most versatile (BMV).
- For arable farming (e.g. winter wheat), the output from BMV land is estimated at £900 – £1,300 per ha. The estimated gross margins are between £4.9 and £9.5 million.
- For soft fruits, the output from BMV land is estimated at £43,000 – £109,000 per ha. The estimated gross margins are between £1.5 and £66 million.
- These Gross margins are similar (but not equivalent) to Gross Value Added (GVA), and are worth between 0.3% and 3% of the £2 billion of GVA in Swale.
- It is estimated that there are between 1,250 and 2,500 FTE jobs in agriculture and food and drink manufacture in Swale. This represents approximately 3 - 5% of the 47,400 FTE jobs in Swale.
- BMV can also provide other 'ecosystem services' benefits such as flood water storage, ecological and landscape values.

Value of Best and Most Versatile Agricultural Land in Swale October 2015. Efec for Swale Borough Council.

5.1.10 As a Borough with a woodland resource, there is also potential employment through its better management, both for woodland products and as a renewable energy source.^(5.5)

5.1.11 Policy CP 1 safeguards for future use the employment potential of existing land or buildings, but acknowledges the desirability of releasing older, poorer performing industrial sites to other uses. This safeguarding includes both land or buildings in current employment use or allocation, land where planning permission has expired or other vacant land and premises where their potential for employment remains relevant. For sites not considered suitable or viable, the Council must be convinced that evidence points to wider, fundamental and deep seated structural problems with the site, rather than shorter term difficulties caused by a particular economic context. This is important where allocations and committed employment sites have been made on the basis of a particular economic and/or locational need to serve the plan period.

5.1.12 Given the outstanding environment in Swale, Policy CP 1 seeks to expand our potential for sustainable rural tourism to benefit local communities and raise awareness and support for conservation of the environment. There is an important link between the quality of environment (both historic and new) and economic development, in particular the area's ability to attract investment, jobs and population. Swale's historic environment has the potential to play a significant role in supporting enterprise, especially in helping under-performing parts of Swale to transform themselves, such as at Sittingbourne town centre and Sheerness. Also important is our current portfolio of principal tourism assets (see Statement 4), with Policy CP 1 supporting their growth and, if necessary, their protection from inappropriate development proposals.

5 Core planning policies

Statement 4

Swale's principal tourism assets and potential

- Coast - beaches, cliffs, lively seaside resorts including holiday parks and amusements, wild landscapes and marshes, Saxon Shore Way, Church Marshes, bird life and quiet sailing waters. The Isle of Sheppey is unique within Kent.
- Countryside - downland, valleys, woodlands, orchards, parkland, narrow lanes, picturesque villages and houses and a network of foot and cycle paths (including a National Cycle Route) and bridleways.
- Built heritage - a great range of heritage assets reflecting its Roman and Medieval legacy, its naval and maritime history and its industrial and agricultural past.
- Fruit Heritage - the National Fruit Collection, and 'fruit' celebrations.
- Festivals – such as the Faversham International Hop Festival.
- Market Town of Faversham. A small historic Cinque Port town, lively town centre, unexploited creek and marshland, a multi-faceted town with links to the countryside.
- Unspoilt villages.
- Industrial heritage - gunpowder, naval, brewing, aviation, 'defence of the realm', sailing barges, brick and paper-making.
- Naval and aviation history, sustainable rural tourism e.g. walking/cycling, other outdoor activities and sustainable accommodation at Faversham and Sheerness
- Food and drink - high quality restaurants, pubs and local food suppliers.
- Accommodation - small number of hotels, pubs with rooms, guest houses and bed and breakfast establishments.



Picture 5.1.2 Leysdown beach

5.1.13 For our town centres and the retail and leisure sectors, our Local Plan Strategy indicates that there is a need for further comparison (non-food) floorspace to help claw back expenditure lost to other centres.

5.1.14 We cannot anticipate every business opportunity. Policy CP 1 indicates a series of 'Priority Locations' where, when demonstrated that an existing employment location or allocation is unsuitable or unavailable for the development in question, appropriate sites will be considered. For such proposals, the Local Plan Strategy and environmental quality should not be compromised. The 'Priority Locations' are:

- the extension of an existing employment site;
- where benefits to deprived communities can be achieved;
- well related to either the A249, A2, Sittingbourne Northern Relief Road or A299 Thanet Way; and
- the re-use of heritage assets or where delivering significant benefits to the conservation of landscape or biodiversity.

5.1.15 Some of our businesses will be at the front line of climate change, either by being potentially affected by future natural processes or offering potential for the Borough to be a focus for low carbon technologies. Policy CP 1 supports improved resilience and new business opportunities.

5.1.16 Swale is a net exporter of labour, with a net outflow of 10,293 working commuters amounting to 16% of the resident workforce.^(5.6) Whilst reducing the level of out-commuting will be challenging, Policy CP 1 is supportive of proposals able to realistically deliver a reduction in commuting out of the Borough, especially for those sectors currently the focus of out-commuting.

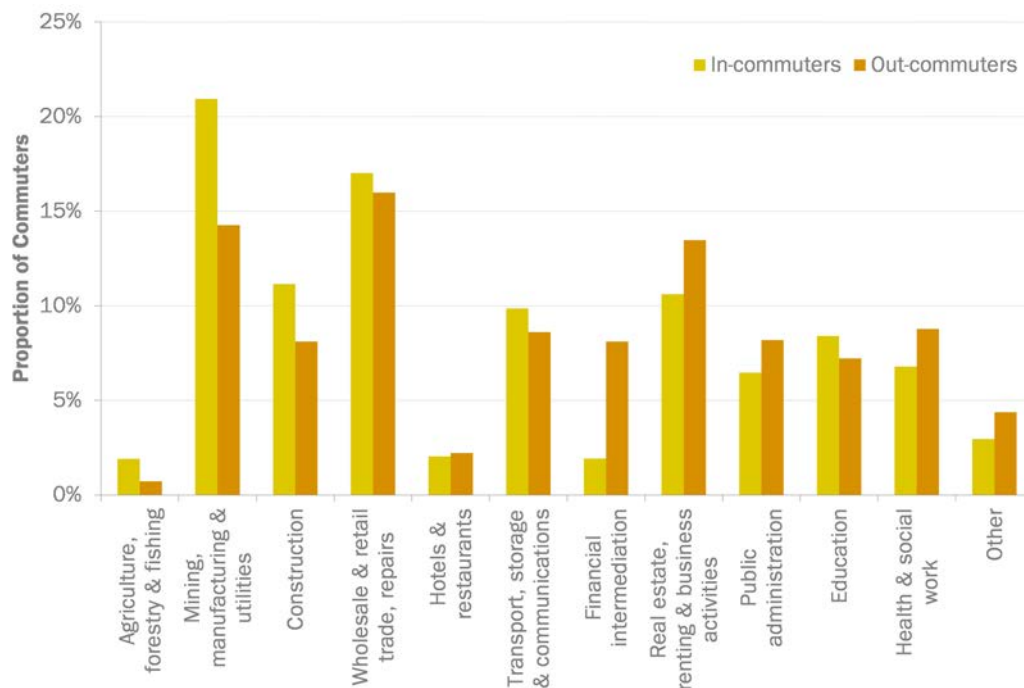


Figure 5.1.1 Swale commuting flows by sector

5.1.17 Unemployment benefit levels in Swale in July 2014 were about 2.4%, above the south east average of 1.4%.^(5.7) Against the Kent average, Swale has a comparable economic activity rate, but a lower proportion of workers at higher skill levels and below average earnings.^(5.8) Improving the skills performance of the local labour supply is needed. Policy CP 1 supports the use of development funding though the use of the Community Infrastructure Levy or S106 agreements to support job training.

5.1.18 High speed Internet connectivity is important to encourage economic growth, especially in the rural areas. All new development will be required to provide for access to this technology regardless of location.

Policy CP 1

Building a strong, competitive economy

Actions by public, private and voluntary sectors shall work towards the delivery of the Local Plan economic strategy. Development proposals will, as appropriate:

1. Stabilise losses of jobs and/or floorspace within the manufacturing sector or exploit competitive strengths in the Swale economy including uplifting sectors related to the visitor economy and expansion of the pharmaceutical and science sectors;
2. Bring forward an increase in homegrown business creation and inward investment, including those able to encourage younger people to retain their skills within Swale;
3. Secure additional non-food retail/leisure growth, taking account of committed schemes and existing centres and provide flexibility over uses in town centres to enable them to respond to the challenges they face;
4. Encourage educational facilities or an expansion of vocational learning, developing links between institutions and the private sector or work-based learning at key locations;
5. Contribute to the delivery of a comprehensive land portfolio for the Borough by:
 - a. safeguarding and maximising the potential of identified 'Existing Strategic Employment Sites';
 - b. bringing forward the stock of existing committed employment sites for industrial use; and

5 Core planning policies

- c. addressing qualitative issues with new provision at Local Plan allocations to support established industrial markets, additional office space, the release of poorer quality locations and the broader upgrade of the supply; or
 - d. managing existing and future employment potential by upgrading older industrial areas.
- 6. Be supported when including sectors that are under-represented in Swale that may potentially enable a reduction in commuting out of the Borough;
- 7. Avoid proposals that would result in the diminishing of existing employment sites and allocations where appropriately located and suitable, viable for users under normally functioning economic conditions or required to meet the identified needs for the plan period;
- 8. Address future challenges to the agricultural and woodland/forestry industries with sustainable and appropriate proposals to create new markets and greater resilience;
- 9. Safeguard or enhance Swale's 'Principal Tourism Assets' and consolidate or widen the Borough's tourism potential, particularly where embracing principles of sustainable tourism;
- 10. Focus large scales of development where they utilise the strategic and primary road networks;
- 11. Support sectors attractive to the local population who would otherwise out-commute for work;
- 12. Facilitate the delivery of digital infrastructure, including access to high speed Internet connectivity from all new developments;
- 13. Create resilience in existing businesses to forecast changes in flood risk, climate change and natural processes or lead to an expansion of businesses in the low carbon sectors; or
- 14. Provided the Local Plan strategy is not significantly compromised and sites cannot be found within criterion 5, meet unanticipated needs on appropriate sites within one or more of the following 'Priority Locations':
 - a. the extension of an existing employment site;
 - b. where benefits to deprived communities can be achieved;
 - c. sites well related to the A249, A2, Sittingbourne Northern Relief Road or A299 Thanet Way; or
 - d. re-use of heritage assets or where delivering significant benefits to the conservation of landscape or biodiversity.

5.2 Promoting sustainable transport

5.2.1 Transportation will play a key role in the delivery of the Local Plan strategy. An efficient transport network which has good connectivity with the regional and national network is vital in helping the Borough to realise its economic potential. At the local level, easy access to employment, education, shops, services and facilities is important in creating inclusive and prosperous communities. The transport network needs to strike a balance between providing adequate capacity for current and future residents and business needs, whilst minimising any negative environmental, social and health impacts. This can be achieved through improvements to the capacity of the highway network and through provision of an integrated sustainable transport network.

5.2.2 This Core Policy therefore deals with matters relating to public and private modes of transport, cycling and walking; reducing the need to travel; and the infrastructure needed for efficient transport operation.

5.2.3 The National Planning Policy Framework (NPPF) continues the core principle of sustainable development, through means such as using technology to reduce the need to travel, using planning policies and decisions to actively manage patterns of growth to make the fullest use of public transport, walking and cycling and focusing significant developments in areas which are or can be made sustainable. Only if the residual cumulative impacts of development are 'severe' when all of these policy measures have been explored and exhausted, is there a reason to prevent development on transport grounds. 'Severe' in terms of the NPPF is not defined.



Picture 5.2.1 Modern bus in Sittingbourne High Street

5.2.4 Transport policies have an important role to play in facilitating development and also in contributing to wider sustainability and health objectives. It is nevertheless recognised that different policies and measures will be needed in different communities and that sustainable transport solutions will vary between urban and rural areas.

5.2.5 Key national objectives for transport policy are therefore:

- working with relevant transport providers and neighbouring authorities to develop strategies for viable infrastructure necessary (including for the growth of ports) to support sustainable development;
- ensuring that opportunities for sustainable transport have been taken up to minimise the need for major new transport infrastructure to support reductions in greenhouse gas emissions and to reduce congestion;
- ensuring that the necessary improvements can be undertaken as far as possible within the transport network and are cost effective at mitigating the significant impacts of development;
- achieving safe and suitable access to sites for all people and goods; and
- designing developments to prioritise pedestrian and cycle access and give access to high quality public transport facilities.

5.2.6 The NPPF also gives the option for local planning authorities to develop their own vehicle parking standards. Currently, Swale uses Kent County Council standards for development management, which are intended to be reviewed post adoption of the Local Plan. The exception to this is the work in hand for rationalisation of car parking as part of the Sittingbourne town centre regeneration plans.

5.2.7 The Department for Transport Circular 02/2013: [Strategic Road Network and the delivery of sustainable development](#) (September 2013) relates specifically to the impact of proposed development on the strategic road network (SRN) which is operated, maintained and improved by Highways England on behalf of the Department for Transport. The SRN play an important part in enabling and sustaining economic prosperity as part of wider sustainable development objectives, with Highways England ensuring the continued safe operation of the network.

5.2.8 For the SRN, development proposals are likely to be acceptable if they can be accommodated within the existing capacity of a section (or link or key junction) of the relevant part of the network; or they do not increase the demand for use of that section which is already operating over capacity, taking account

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of any mitigation and/ or capacity enhancement measures which may be proposed. Generally, development should only be prevented or refused where the residual cumulative impacts of development are severe. Safety of the SRN is the key consideration for judging impact of proposed development.

5.2.9 The key issues for the Local Plan are to promote development patterns which minimise the need to travel; encourages the use of sustainable means of transport and minimises journey lengths for everyday activities such as work, education, shopping and leisure. Capacity on the SRN is limited and additions are difficult, costly and time consuming, so these measures are integral to the local plan approach to reducing the potential for congestion on the SRN.

5.2.10 The Circular states that capacity enhancements and infrastructure necessary to deliver strategic growth should be identified through the Local Plan. Where this is identified as necessary, Highways England will work with delivery agencies to assess the suitability, viability and deliverability of such proposals (including funding arrangements). If the need and deliverability is confirmed when balanced against other environmental and practical considerations, it may be considered for inclusion in the Highways England forward programme of works.

5.2.11 The objectives of the Circular are reflected throughout the Local Plan in terms of its overall development strategy, land allocations and general policies for guiding design, layout and access, they are supported by and influence complementary plans, projects and funding programmes of the transport providers, highway authorities and the Local Economic Partnership (for Kent, Essex and East Sussex).

5.2.12 The following paragraphs examine the Swale transport network and the current approach to local transport strategies and plans which the Council has been working on in partnership with the various transport agencies.

Swale Transport Network

5.2.13 The SRN within Swale consists of the M2 (with junctions 5, 6 and 7 serving the Borough) and the A249 corridor from M2/J5 north to Sheerness. The motorway runs east - west through the Borough and carries international as well as national and local traffic. It is designated as part of the Trans-European Transport network. Junction 5 is already operating over capacity in peak hours and development within Swale inevitably affects and is in turn affected by this. Faversham is served by M2 Junctions 6 and 7. Junction 7 also serves Canterbury and the Thanet towns and is nearing capacity at peak times, and will be further affected by current development proposals at Faversham and major new development being pursued through the adjacent Canterbury City Council, Thanet and Dover Local Plans. The issues with the SRN capacity in the Swale area remain significant and although public funding has now been confirmed for M2/J5, this will not commence until 2019-20 at the earliest and is unlikely to be completed until 2024. Junctions linking the local network to the SRN, particularly within the A249 corridor, may also be at capacity and will need public funding support to mitigate the issues and provide capacity to support planned growth and further investment in the area.

5.2.14 The local road network is overseen and maintained by Kent County Council. Whilst there are local issues with peak time congestion and air quality issues and traffic domination of the public realm, particularly at Sittingbourne Town Centre, these have been eased by the opening of the Milton Creek section of the Sittingbourne Northern Relief Road (SNRR).

5.2.15 During 2011, Swale saw the completion of two major schemes including the Milton Creek section of the SNRR which now provides a direct link from the A249 to the Eurolink Business Estate. This has reduced journey times for freight traffic and reduced congestion in Sittingbourne Town Centre, which enables further regeneration and traffic calming there.

5.2.16 The Queenborough and Rushenden Relief Road was also completed and provides a link to the A249 on Sheppey and opens up large new areas for regeneration in the Queenborough and Rushenden area, not least of which are expected new developments at Neatscourt, and in the longer term, expansion at the Port of Sheerness. This complements the major benefit of the A249 Sheppey Crossing to the Island

opened in 2006. However, these schemes have highlighted a remaining local pinch point at the junction of Barton Hill Drive/Lower Road, Minster, where replacement of the existing traffic signals with a roundabout would relieve local congestion and facilitate better access to the eastern side of Sheppey.

5.2.17 A Quality Bus Partnership has been established and is led by Kent County Council Highways, with regular meetings and input from bus operators in the area and Swale Borough Council. This has the objectives of improving services and expanding use of buses in the Borough and liaison on the progress and proposals of the Local Plan so that bus provision is made from the earliest stages of new development.

5.2.18 High speed domestic rail services have reduced journey times to central London (St Pancras, twice hourly service) to 53 minutes from Sittingbourne and 62 minutes from Faversham. These services offer easy access to central London employment opportunities via a sustainable mode of transport. There is also a good (twice hourly) service through the Borough to London Victoria, with stations at Faversham, Teynham, Sittingbourne, Newington and a branch line to Sheerness, which will have direct services to London Victoria in the morning and evening peaks operating from January 2015.

5.2.19 The preliminary commuting statistics from the 2011 Census are difficult to compare directly with the 2001 results due to the difference in the way people working at home or with no fixed workplace have been counted. Although there has been an increase in the numbers of people both living and working in the Borough, its degree of self-containment declined in percentage terms between 2001-2011. The percentages of those Swale workers commuting to all other Kent districts has though remained fairly constant. The most popular Kent destinations continue to be Medway, Canterbury and Maidstone. London continues to be the most popular commuting destination, although showing only a small increase since 2001.

5.2.20 The way in which people access work does seem to be showing increased reliance on car travel, with an increase from 60% to 70% using the car to get to work. The exception appears to be London commuting, where the proportion driving has remained fairly constant at 38%, train at 46% and bus at 11%. Car commuting journeys to Maidstone and Medway increased in both absolute numbers and as a percentage of journeys. Commuting to Canterbury from Swale increased in terms of absolute numbers, but the proportion of those made as car journeys stayed at around 77% with a slight increase in train use.

5.2.21 These results perhaps also reflect the 2011 Census results for car ownership in Swale. The proportion of households with one or more cars available has increased to just under 80%, which is an increase on 2001 figures and now makes Swale identical to the Kent average. Kent car ownership as a whole is higher than the national average (80% of households compared with 74% nationally). The rate of increase in car ownership in Swale has been twice the national rate of increase over this period.

5.2.22 The commuting data therefore suggests that there has been an increase in out commuting, particularly by car, to other Kent districts, with Medway, Maidstone and Canterbury being the most popular destinations. London commuting has risen only slightly, and whilst car commuting has also increased in absolute terms on this route, train and bus use have maintained their proportionate share of commuters. These figures therefore suggest increasing pressure on the strategic and interurban road network.

Transport Strategies and Plans in Swale

5.2.23 Following the Chancellor's Autumn Statement announcements of 2014, Highways England published their Delivery Plan 2015-2020 (September 2015), which includes major improvement to the M2/J5 junction within the national roads programme. However, the M2/J5 improvement will not be completed until 2024, due to the lead in time needed for the design and scale of construction work. A start date of 2019-20 has been estimated.

5.2.24 Kent County Council (KCC), as local transport authority, has produced a 20 year transport delivery plan Growth without Gridlock (originally published in 2010 and currently being updated). This sets out the strategic transport priorities for Kent and Medway over the next 20 years and is to be supported by a local

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transport strategy for Swale. Swale is recognised in Growth without Gridlock in Kent and Medway as part of the Kent Thames Gateway growth area which has a key role in the prospects for economic growth and regeneration in this area, particularly at Sittingbourne and Sheerness Port.

5.2.25 Key schemes identified to address the accessibility, connectivity and capacity issues in Swale which present challenges for the delivery of growth include:

- Sittingbourne Central Area Regeneration transport interventions;
- the extension of the Sittingbourne Northern Relief Road to the A2 (Bapchild link) to the east of the town;
- the A249 at Grovehurst, Key Street and Bobbing junctions;
- addressing capacity of M2/Junction 5 and M2/Junction 7 (also identified as a cause for concern by Highways England);
- provision of a roundabout at Lower Road/ Barton Hill Drive A2500 to facilitate better access to eastern Sheppey;
- the A2 corridor from Teynham through Sittingbourne to Newington.

5.2.26 The Kent Local Transport Plan (LTP) April 2011 sets out Kent County Council's priority areas for transport interventions and investment over a 5 year period. These priorities are grouped under the five main themes of :

- Growth without Gridlock
- A Safer and Healthier County
- Supporting Independence
- Tackling a Changing Climate
- Enjoying Life in Kent

5.2.27 The current edition focuses on the period 2011 - 2016 and notes that the modelling work undertaken for this Local Plan was incomplete at the time the LTP was finalised.

5.2.28 It is expected that the LTP will be updated and it is no longer a funding bidding document. Instead, new regional administration of funding streams in the context of the new Local Enterprise Partnership (for Essex, Kent and East Sussex, Thurrock, Medway and Southend on Sea) are currently the mechanism under which bidding and prioritising for transport schemes has taken place. Funding for the first tranche payments of Local Growth Funding (LGF) was heavily oversubscribed and the only Swale infrastructure scheme to receive support was the Central Sittingbourne regeneration proposals. The Council has worked with Kent County Council on Round 3 LGF bidding submissions and has successfully secured funding for the A2500 Lower Road/ Barton Hill Drive junction improvements.

5.2.29 The Council will seek to plug significant gaps in transport infrastructure funding through use of the Community Infrastructure Levy, the pooling of Section 278 contributions for more strategic scale projects and will continue to support bids for other forms of funding. However, the viability assessment for the plan suggests that there is likely to be very little headroom to set a CIL charge which would secure all of the transport infrastructure needed to support the development strategy for the whole plan period, even as

proposed. More ambitious levels of growth would be likely to exceed the capacity of the SRN within the short to medium term and there is little prospect of suitable mitigation being put in place during the early years of the plan period to accommodate that.

5.2.30 Kent County Council Highways have also worked with the Council to produce a detailed Local Transport Strategy (LTS) where current transport priorities are reflected. This will support and reflect the policies and specific development proposals in the local plan. This also contains a comprehensive list of transport infrastructure improvements which are not all directly related to Local Plan development proposals. These are nevertheless identified and could be supported either from public funds and or development contributions arising from proposals which may directly impact on them. To identify and support additional mitigations to the local transport network, which may be required toward the end of the plan period, Swale and Kent County Councils will work together to update the Local Transport Strategy.

Swale Transport Modelling

5.2.31 Multi modal strategic transport modelling was undertaken during drafting of the local plan to reflect the development strategy and proposals of this plan, which have re-used the earlier modelling work reflecting changes to the preferred land use allocations, most notably in Sittingbourne Town Centre. However, this has not had the benefit of being able to use the latest (2011) Census data on commuting as it was not published in time for the modelling work. Moreover, it has not been possible to upgrade the model to reflect in detail the transport movements arising from additional development proposals which have now been confirmed in the Faversham area. The promoters have had to undertake detailed assessments to satisfy the highway authorities as part of the planning application process. High level conclusions may be drawn from the model as to the potential impacts of the development strategy upon the strategic network and this will need to be supplemented with additional research in respect of the A249 junctions and the A2 corridor. Improvements to the County road network will be identified through an updated Local Transport Strategy. More detailed transport assessments will be needed to assess the local impacts of development proposals and appropriate mitigation work on or off site (as set out in Policy DM 6).

5.2.32 The main findings of the modelling work undertaken to date and supplemented with Kent Highways and Highways England research indicate that:

- the level of growth anticipated as a result of the local plan development strategy will result in additional pressures on the highway network with traffic growth of some 35% over the base year and some further investment in the network will be necessary;
- congestion levels on the Kent Highways part of the network will accordingly increase, and some parts of the network, such as the A2 corridor between Teynham and Newington may require mitigation to support local plan development;
- congestion is likely to increase at M2/Junction 5, given the increase in traffic arising from the proposed development strategy. As the junction is currently operating over capacity, some form of mitigation will be required going forward. This is now included in the Highways England national road programme for commencement in 2019-2020. Further work is ongoing as to the nature of the improvements which are needed. The Local Plan proposals, particularly for increased residential development will exacerbate the problems in the short term. Highways England have also indicated that regard will need to be given to the impact of a higher development target on the A249 junctions which link the SRN to the local road network. The need for and delivery of any necessary improvements will be reflected in the Implementation and Delivery Schedule and the Local Transport Strategy supporting the Plan.
- following changes to the land uses expected in central Sittingbourne, the final A2 link section of the Sittingbourne Northern Relief Road (SNRR) is no longer imperative to enable this regeneration to proceed (the bridge section having relieved the worst of the town centre congestion). Instead this road will function as part of a local distributor network rather than a bypass to the town. However, the

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final section of the SNRR will relieve congestion on the A2 to the east of the town centre, open up opportunities for regeneration and re-design of the town centre itself, achieve an alternative route in case of incidents and reduce traffic flows running on Lomas Road;

- the Local Transport Strategy also identifies the need for some junction improvements to the A249 as a result of the local plan proposals at Grovehurst and Key Street;
- a modest modal shift to bus transport was predicted (confirmed by census commuting data, and bus services are well used by school and college students, although this does not show up in Census data) although this is from a low base and more could be done through local initiatives and policy to extend and improve the quality of services to new and existing development;
- a small increase in rail transport was indicated by the earlier modelling (and the trend supported by 2011 Census results). Whilst no major changes to services are anticipated (other than direct London services from Sheppey from January 2015), significant improvements to Sittingbourne station, the bus interchange and car parking are planned as part of the central area regeneration.

Investment in the Transport Network

5.2.33 The need for development to be well integrated with transport supports the approach taken by the Local Plan development strategy. Most new development is focused at the main urban areas, making best use of the existing or planned improvements to the transport network, looking to achieve a balance between new employment and housing provision and minimising the need to travel where possible. The development strategy is focused on promoting development at the most sustainable locations, or those which allow for greater use of sustainable modes of transport.

5.2.34 The capacity of the SRN is nevertheless a critical consideration for Swale. The Council has worked with Highways England since the inception of the plan to understand the transport implications of the scale and patterns of development options for Swale, as well as the cumulative and individual impacts of Local Plan proposals upon the ability of the SRN and relevant junctions to accommodate the forecast traffic flows in terms of capacity and safety.

5.2.35 At the level of the SRN, peak hour congestion at M2/Junction 5 was the subject of earlier modelling work undertaken by Highways England and Kent County Council and is borne out by the latest research. This junction is over capacity in peak hour and Highways England is satisfied that the major improvements scheduled in its Delivery Plan 2015-2020 represent dissolution of a major constraint for the medium term and supports the development strategy focusing on the western end of the Borough.

5.2.36 This Local Plan continues to focus on Sittingbourne as the main urban area, with strategic allocations for housing and employment proposed to the north west and north east of the town. This utilises existing capacity on the A249 and the built and anticipated sections of the SNRR. The Grovehurst and Key Street interchanges with the A249 are nearing capacity and will require improvement to accommodate traffic arising from development proposed in the Local Plan. The impact on the Bobbing junction of further land allocations will also need to be evaluated. Suitable interim mitigation will be provided through strategic development allocations in the plan impacting on these junctions. S.278 or S.106 contributions will be pooled towards both interim mitigation and more major long term improvement schemes, the latter of which will also require support from public funding.

5.2.37 The central Sittingbourne regeneration plans and housing allocations will deliver new shopping, leisure, housing and eventually civic uses to the town centre. The opening of the Milton Creek section of the Sittingbourne Northern Relief Road has been an important step in removing industrial and freight traffic from the town centre. Further improvements involving traffic calming, the pedestrian environment, and a completely revised bus train interchange are in hand as part of the town centre regeneration scheme, with the development partners' masterplan at an advanced stage of preparation. As part of the regeneration, the layout and operation of roads within the town centre will be fundamentally altered and traffic calmed and, as stated, there will be a new bus/rail interchange. A grant of £2.5m was secured from the SELEP

Local Growth Fund to assist with this. The work will include not only traffic based highway infrastructure, but also improvements to the bus, walking and cycling networks. This will be incorporated into the design and layout of development proposals and within supporting transport assessments and travel plans, both for the town centre and for other developments proposed around the town.

5.2.38 The benefits of the SNRR in distributing local traffic will be best realised with its extension to the A2 in the Bapchild area (and may have a complementary role to any Sittingbourne Southern Relief Road if pursued at a future date). The SNRR was the subject of an unsuccessful bid in the first round of submissions to the SELEP Local Growth Fund, but funding will continue to be pursued through this route, as well as through developer contributions (or Community Infrastructure Levy). To support this longer term objective, retention of a safeguarded area of search for a potential route is identified by Policy AS 1.

5.2.39 Faversham is well served by rail links westbound and is well placed in respect of M2 Junctions 6 and 7 although J7 is also nearing capacity. Local Plan allocations, the subject of planning applications, have undertaken Transport Assessments of cumulative impacts and these have been found to be acceptable. Major allocations in the Canterbury City Council Local Plan (plus those as yet unconfirmed in the Thanet and Dover plans) will also impact Brenley Corner M2/Junction 7, and the Council has supported Highways England proposals for minor improvements here. However, there are no proposals to improve this junction beyond minor developer funded mitigations and this may limit the quantum of development possible in the absence of major improvement. Should this limitation be deemed necessary, the Council is of the view that this would be an appropriate course of action, given the Local Plan development strategy focusing on the western part of the Borough and on committed infrastructure improvements there. Bus service links to the wider rural areas are patchy. The scales of development proposed at Faversham are not as significant as elsewhere in the Borough, and are situated in close proximity to Junction 6, the town and local services. Transportation improvements here will therefore concentrate on the quality of the bus, cycle and walking networks.

5.2.40 The Isle of Sheppey has benefited from the construction of the new Sheppey Crossing, which has already brought significant investment and regeneration to the western part of the Island. The recently completed Rushenden Link Road capitalises on this and opens up further regeneration land. The Local Transport Strategy identifies a need for improvements on the A2500 Lower Road, where congestion will worsen with the build out of residential allocations in the Minster area. There is a regular train service between Sittingbourne and Sheerness (with direct Sheerness to London services to be introduced from January 2015), although the eastern part of the Island still has a limited road network and public transport services.

5.2.41 Key transport infrastructure requirements in Sheppey will therefore focus on mitigating local congestion on the highway network, measures to support regeneration and expansion of the Port, improvement of the quality of the rail services, improved bus stop infrastructure, bus flags and timetables and improved walking and cycling routes.

5.2.42 Within the Borough's rural areas, access is generally by narrow rural roads and a modest public transport service. Scope to improve the rural highway network is limited, so improved public transport options will be the main means of improving accessibility for residents of rural communities. A number of cycle routes are also planned through rural areas (in addition to the national cycle route already established through Swale), the most extensive of these is on the Isle of Sheppey, where leisure routes will be extended to link communities across the Island.

5.2.43 Strategic transport modelling indicated only a small modal shift from car based to bus or rail based public transport and the Local Plan and associated Local Transport Strategy clearly has a role to play in maximising any opportunities to achieve this as development proposals come forward. A Quality Bus Partnership between the Kent Highways Service, Swale Borough Council and the local bus service providers has already been established. Bus use will be encouraged through application of Policy DM 6 to all suitable proposals to maximise access to bus services, for example through careful design of key allocation sites

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(such as North West Sittingbourne and Teynham). The implementation of the central Sittingbourne regeneration will also facilitate major improvements in bus/rail interchange in the town centre, which may also encourage increased use of rail commuting.

5.2.44 Policy DM 6 also prioritises the integration of facilities for walking and cycling into the location design and layout of new developments to facilitate access to local services and facilities. There is also an important link here with the local plan objective of promoting an integrated approach to healthy environments which enable and encourage such activity.

5.2.45 The Port of Sheerness has access to deep water berths which makes it a suitable location for wind turbine manufacture and assembly and planning permission already exists for this use. The Port operator is also preparing a Masterplan which will look 20-30 years ahead. Potential exists for longer term expansion for further berthing facilities, subject to appropriate consideration of designated biodiversity sites. Should major and wide impacting proposals come forward more quickly than expected, a Local Plan Review will be triggered. Ridham Dock also offers a smaller but nevertheless useful port facility.

Car Parking Strategy

5.2.46 A car parking strategy is being prepared as part of the central Sittingbourne regeneration masterplan. The regeneration plans have precipitated a major review of land use and car parking rationalisation. The regeneration plans will allow for the redevelopment of some car parks for alternative uses and the redevelopment of surface car parking at the Forum centre for a 310 space multi-storey car park. There will also be a re-designation of other more peripheral car parks for long and short stay. The net results of the strategy will be to provide for at least current peak demand plus that likely to arise from the proposals for new retail and leisure development and build in some capacity for potential future phases of regeneration. Further town centre capacity could be added through Network Rail adding a deck to their commuter car parking which would reduce the demand for long stay spaces in the Council operated car parks. This could afford further capacity for expansion, if needed to serve medium to longer term development strategies, alongside local plan policies to reduce car use by linking new residential areas to public transport through bus, cycling and walking routes.

5.2.47 At Faversham and Sheerness, no major new town centre developments are currently proposed which would necessitate a major review of car parking strategy within this local plan.

5.2.48 Policy DM 7 and the Local Transport Strategy set out the intention to review and implement a broader vehicle parking strategy and standards for Swale, to respond to the significant increase in car ownership in the recent past. In the interim, the framework for Swale parking standards is retained as set out in Kent County Council Vehicle Parking Standards.

Summary of Key Transport Network Improvements

5.2.49 The following transport network schemes are seen as necessary to support growth and the full implementation of the Local Plan strategy:

- medium term improvements to M2/Junction 5 via Highways England national road delivery programme project commencing 2019-2020;
- A249/Key Street junction improvements;
- A249/Grovehurst junction improvements (including pedestrian and cycle way links between new development allocations at North West Sittingbourne and Iwade and to employment areas at Ridham);
- A249/ Bobbing junction may also need to be re-assessed as part of the A249 corridor together with Key Street and and Grovehurst;

- Mitigation may be required at key points on the County highways network, particularly within the A2 corridor between Teynham and Newington, to support new development and complement improvements to the A249 corridor junctions;
- the final (Bapchild) section of Sittingbourne Northern Relief Road, the detail of which will be addressed via Policy AS 1;
- Sittingbourne town centre road layout, traffic management and calming measures, and car parking arrangements to support regeneration developments (some funding already secured from the SELEP Local Growth Fund);
- improvements to the A2500 Lower Road, Sheppey;
- other highway network improvements, (not necessarily associated with new development proposals) to resolve existing issues as set out in the Local Transport Strategy;
- continue to support the Quality Bus Partnership and work with rail transport operators to promote use of public transport through enhancement of services and terminals;
- provision of walking and cycling routes to link new and existing communities to local services, facilities and public transport; and
- implement a new car parking strategy for Sittingbourne and review car parking standards across the rest of the Borough.

5.2.50 More detail of the means of delivery of these schemes is set out in the infrastructure delivery schedule. The Council will continue to work in partnership with Kent County Council, developers and the Highways Agency to secure funding for key transport infrastructure and will also pursue preparation of a Community Infrastructure Levy, which will enable pooling of developer contributions towards major infrastructure schemes. The viability assessment for the Local Plan nevertheless indicates that the headroom for this is limited and there will be many competing priorities for any levy raised.

5.2.51 Whilst the development strategy of the Plan and supporting Transport Strategy is focused on locating development where the supporting transport can be provided in the most sustainable way, the Borough also has a rich heritage of rural lanes which contribute greatly to amenity. These may come under pressure with inappropriate development proposals. The issues are considered in the context of Policy DM26.

Policy CP 2

Promoting sustainable transport

New development will be located in accordance with Policy ST 1 to Policy ST 7, Local Plan allocations, approved Neighbourhood Plans and Community Right to Build initiatives, which minimise the need to travel for employment and services and facilitate sustainable transport. Actions by the public, private and voluntary sector will adopt an integrated approach to the provision of transport infrastructure. Development proposals will, as appropriate:

1. Contribute to transport network improvements, where capacity is exceeded and or safety standards are unacceptably compromised, with particular emphasis on those identified in the Infrastructure Delivery Schedule;

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2. Make best use of capacity in the network by working together with transport providers to improve the transport network in the most sustainable way, and extending it where necessary, as demonstrated by Transport Assessments and Travel Plans in support of development proposals;
3. Support the provision of major new transport infrastructure in accordance with national and local transport strategies;
4. Maintain and improve the highway network at key points to improve traffic flows and respond to the impact of new development and regeneration, as set out in the Local Transport Strategy;
5. Improve safety, through measures such as adequate parking, lighting and traffic management schemes;
6. Achieve alternative access to all services through promoting access to sustainable forms of transport particularly bus, cycling and rail transport and improving interchange between them from the earliest stages of development;
7. Provide integrated walking and cycling routes to link existing and new communities with local services and facilities, public transport and the Green Grid network; and
8. Facilitate greater use of waterways for commercial traffic, where this would not have an unacceptable adverse environmental impact, through working with the Port of Sheerness and other bodies.

5.3 Delivering a wide choice of high quality homes

5.3.1 The [National Planning Policy Framework](#) states that the Government's objective is to significantly boost the delivery of new homes. It expects Councils to deliver a wide choice of high quality homes, widen opportunities for home ownership and create sustainable, inclusive and mixed communities. They should:

- plan for a mix of housing based on evidence and need;
- identify the size, type, tenure and range of housing that is required in particular locations;
- for affordable housing, set policies for meeting this need on site, other than in certain situations;
- bring back into use empty housing and buildings;
- normally approve planning applications for change to residential use and any associated development from commercial buildings, provided that there are no strong economic reasons not to do so;
- consider policies to resist inappropriate development of residential gardens;
- in rural areas, consider use of market housing to facilitate significant additional affordable housing to meet local needs; and
- avoid new isolated homes in the countryside unless there are special circumstances.

5.3.2 [The Kent Housing Strategy](#) (May 2011) identifies 5 priorities:

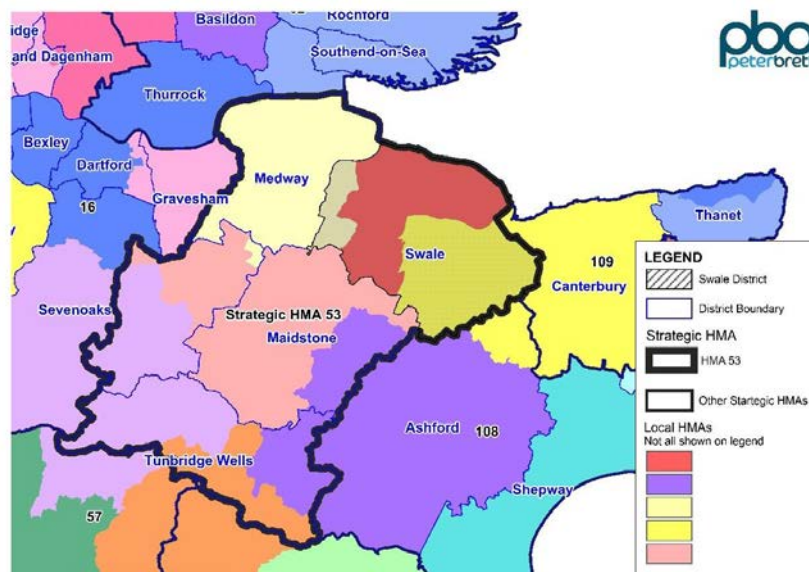
1. The continued delivery of key infrastructure to support managed growth and housing delivery across the County.

2. The continued regeneration of our disadvantaged neighbourhoods to bring them in line with more affluent parts of the County.
3. The provision of choice and affordability in housing for the citizens of Kent and Medway, including rural communities, which meets their needs and aspirations.
4. The managed improvement and retrofit of existing homes to make them fit for now and the future.
5. To support vulnerable people in housing need to fulfil their potential and live a high quality life through the provision of excellent housing and support services.

5.3.3 Providing an overall context to our approach to housing in Swale is our [Housing Strategy](#) (2010). Its vision is for high quality sustainable homes where people choose to live, in new and existing communities. Its anticipated long-term outcomes are that:

1. All homes and neighbourhoods should provide sustainable environments for good quality, life-long living.
2. The housing supply is sufficient and matches needs and aspirations.
3. There is a good choice of housing options that support diverse needs and that everybody has an equal opportunity to live in a home that supports their life choices and maximises their health and wellbeing.
4. Adverse impacts to the environment from construction and occupation of housing are minimised.
5. All parties support and improve the life chances of vulnerable people and narrow the gaps in health and wellbeing.

5.3.4 The SHMA 2015 identifies Swale as a reasonably self-contained housing market area with close links to its immediate neighbours.



Map 5.3.1 Swale Housing Market Area (2015 SHMA)

Affordability

5.3.5 There are strong structural demographic drivers within the local housing market, caused by employment growth and in-migration. These have led to a growing population and relatively poor levels of

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affordability in the private housing market (although more affordable than the rest of Kent). Evidence indicates a level of need of 190 dwellings per annum, however housebuilding, including affordable housing is affected by the viability picture in the Borough and Policy DM 8 considers the context of such levels of delivery balanced against the viability of affordable housing development.

Type and mix of housing

5.3.6 The Strategic Housing Market Assessment (SHMA) indicates that the largest growth will come from single person and lone parent households. In terms of the accommodation required to provide a balanced housing market over the plan period, the SHMA suggests that the makeup of the new housing required should be;

- 25% affordable
- 7% private rented
- 68% owner occupied

5.3.7 These findings will be influenced by the outcomes of national policy initiatives on such matters as starter homes. The Council will monitor the outcome of these issues.

5.3.8 The SHMA also indicates that new owner-occupied accommodation should principally be two and three bedroom homes and new private rented housing should ideally be three and four bedroom homes. Figure 5.3.1 shows the size and tenure of new homes required within the level of objectively assessed need.

5.3.9 Figure 5.3.1 will be the starting point for negotiation on the percentages sought for a housing mix to meet the current needs assessment. The mix of housing will be affected by the overall viability of each scheme and a change in the mix can make appreciable differences, for example larger homes will normally enhance viability. Such matters will be a factor in negotiations for the housing mix sought on developments.

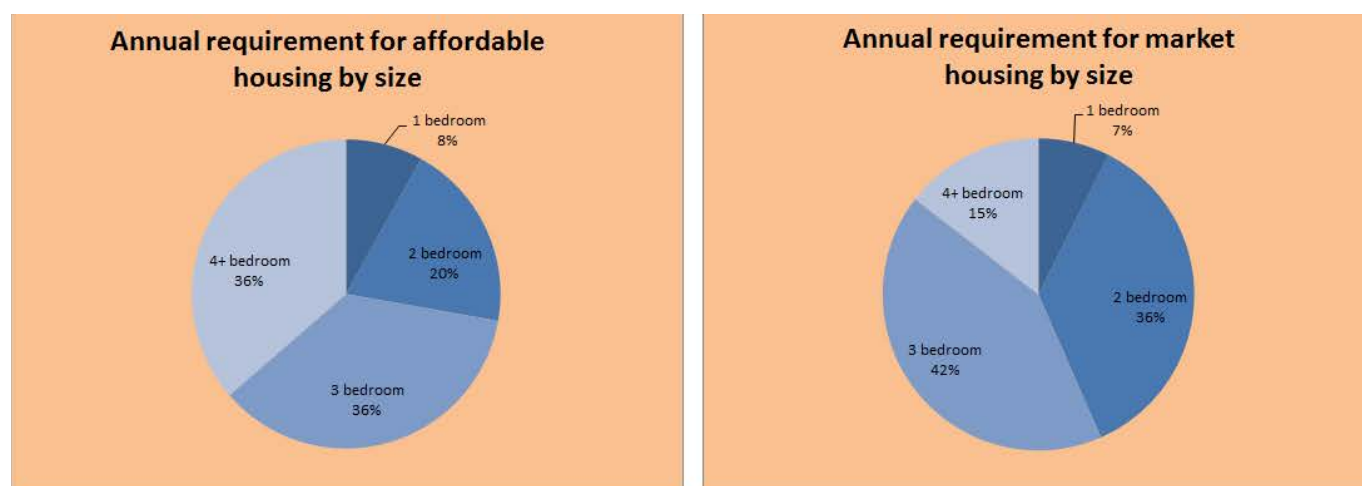


Figure 5.3.1 Required mix of housing by size (2015 SHMA)

Housing requirements of specific groups

5.3.10 National planning policy states that local planning authorities should address the needs of different groups of the community such as families with children, older people, disabled people, service families and those wishing to build their own homes.

5.3.11 The population profile of the Borough has aged slightly but broadly follows national trends, with levels of in-migration and natural change sufficient for Swale to retain its age profile over the past 10 or so

years. The Council's SHMA 2015 projected the possible change in household types that could occur up to 2031. This has fed into the tenure and mix of future housing required and from this projection, Figure 5.3.2 shows that the number of one person and lone parent households is expected to show the highest increases.

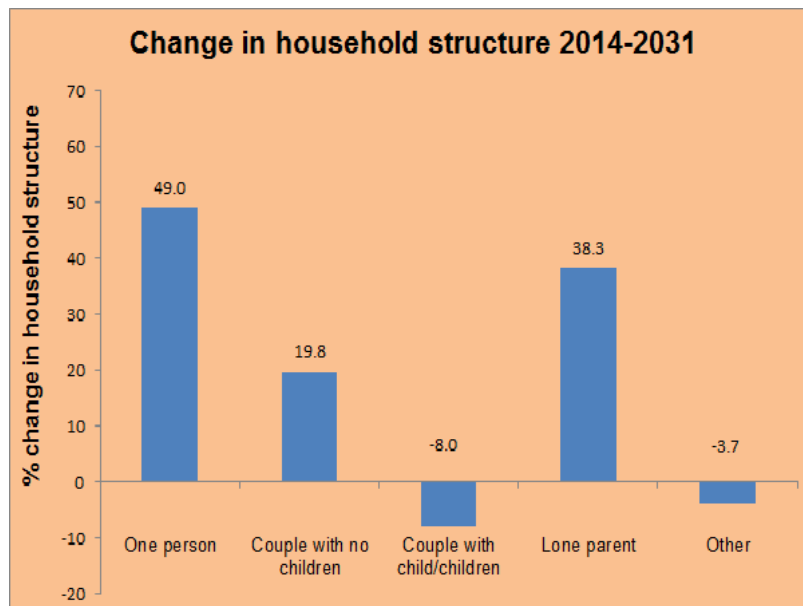


Figure 5.3.2 Change in household structure (2015 SHMA)

Housing need by ethnicity

5.3.12 The 2011 Census suggests that the Black, Asian, Minority Ethnicities (BAME) population has increased to 3.4% of the total population in Swale; this is still notably smaller than the regional and national figures. Mixed/Multiple Ethnic Groups represents the largest BAME group, comprising 1.2% of the Borough's population with White Irish (0.6%), White Gypsy or Irish Traveller (0.5%) and White Other (2.6%). The majority of the population (92.9%) are White British.

5.3.13 The Census showed that just 0.7% of the population in 2011 had been resident in the UK for less than 2 years. Overwhelmingly the majority of the population have resided in the UK for over 5 years (including those born in the UK).

Older person households

5.3.14 The Census indicates that 21.1% of households in Swale were older person only households (households where all members are 65 or over), compared to 21.7% regionally and 20.5% nationally. Of these older person only households in Swale in 2011, 57.8% contained only one person, a similar percentage to that recorded in the South East (58.5%) and England (60.0%).

5.3.15 The SHMA (2015) showed that whilst single older person households in Swale were more likely than average to reside in social rented accommodation, both of the older person groups show a high level of owner-occupation. Older person households were also more likely than average to have multiple spare bedrooms in their home.

5.3.16 The population aged 65 or over is likely to increase dramatically over the plan period to 38,132 in 2031, a rise of 46.2%. The SHMA highlights the greatest future demand is for two/three bedroom owner-occupied dwellings and one/two bedroom private rent and affordable dwellings. Development for housing specifically aimed at occupiers over 65 should, in the first instance, aim to reflect this.

5.3.17 Some 18.6% of the resident population in Swale have a long-term health problem or disability, with 46.5% of all those aged 65 or over and 84.5% of those aged 85 or over. It is therefore relevant to consider the ability of specialist accommodation to meet the requirements of this group. The current rate

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of provision for specialist accommodation is much lower than the base recommended and, in light of an ageing population, the Council will seek to support proposals which improve the levels of sheltered housing and extra care accommodation in the Borough.

5.3.18 As with other housing, the mix and particularly the affordable element of the specialist older person housing will be affected by the overall viability and these considerations will be a factor in negotiations for the housing mix sought on developments. Policy DM8 will provide further commentary on affordable older person specialist housing. There are also around 1,199 spaces in nursing and residential care homes in Swale and presuming the current occupancy rate continues there is a need for an additional 481 spaces over the plan period. This figure is indicative and would vary if occupancy rates change, with this in mind the Council will support appropriate proposals for nursing and residential care home spaces.

Self-builders

5.3.19 In April 2016 the Council established its self-build register. Over time, this register will inform future SHMA and policy in this particular area. In the meantime, it is anticipated that such provision will generally be made via the Council's windfall allowance in Policy ST 4.

Quality and purpose of housing

5.3.20 Housing development takes up more space than any other form of building and strongly influences the character of a place, as well as influencing lifestyle, behaviour, health, crime and use of private transport. New housing also has a major influence upon the physical and social perceptions of an area and this can be shaped early on within the design of a scheme and the type of housing proposed. Our Property Market Review (November, 2011), by consultants CBRE, suggested that new housing could be used to achieve one or more of the following objectives:

- **Objective 1 Create:** extending or re-balancing the housing stock, market offer and appeal. Design playing the leading role to achieve this;
- **Objective 2 Reinforce:** not changing an area's housing offer. Design protecting and enhancing existing characteristics of a neighbourhood area; or
- **Objective 3 Restore:** improving an area's offer when in decline or stress, to improve overall market appeal and to create confidence in the housing offer. Design to play a leading role and could lead change on an urban renewal basis in some areas.

5.3.21 To help meet the above objectives, Table 5.3.1 sets out an indicative and overall objective (from those listed in paragraph 5.3.20) within each of our local housing market areas in so far as they relate to specific postcode evidence^(5.9). Some local housing market areas have some variance within them at a very fine scale, as well as an overall characteristic. As a result these areas have an overall objective as well as a more focused objective where that might usefully apply to pockets of housing of different characteristics contained within them. Although this research is high level and the findings subject to change over the plan period, we will look to Design and Access Statements, Neighbourhood Plans, Masterplans, Development Briefs and other Supplementary Planning Documents to indicate what the intended purpose of the proposed housing will be within the area in question. With Table 5.3.1 acting as a guide, we will be flexible, especially in response to more detailed analysis submitted as part of a planning application.

Postal Area	Relevant locations	Main issues, purpose and objectives of housing proposals
Sittingbourne Local Housing Market Area		

Postal Area	Relevant locations	Main issues, purpose and objectives of housing proposals
ME9	Rural parts of Sittingbourne, Iwade, Upchurch, Newington, Milstead and Teynham.	Has relatively high average prices and reasonable levels of demand and as such the market is reasonably strong. Going forward, the aspiration could be to encourage the development of good quality family housing, for which the greatest local demand exists. Overall Objective 2 - Reinforce: not changing an area's housing offer, Design-protecting and enhancing existing characteristics of a neighbourhood area.
ME10	The town of Sittingbourne including Milton Regis and Kemsley.	Has opportunity to provide a mix of quality housing types and unit sizes. Prices are affordable and there are reasonable levels of demand from a range of consumers. Variations in housing markets between north and south of the A2 with south seen as more prosperous/desirable with housing prices generally higher. Overall Objective 1 - Create: extending or re-balancing the housing stock, market offer and appeal. Design playing the leading role to achieve this. Local variance within more prosperous areas should achieve Objective 2 - Reinforce: not changing an area's housing offer, Design - protecting and enhancing existing characteristics of a neighbourhood area.
Sheerness/Minster Local Housing Market Area		
ME11	Queenborough and Rushenden on the Isle of Sheppey.	Property is very affordable but the market could improve with the provision of better designed and better quality housing, further enhanced by improvements to the local public realm. Future demand is predominantly for three bed family housing but also flats. Given that values are at the lower end of the scale, development viability in this area could be marginal. Consider the development of greater levels of private housing to enhance scheme viability and to introduce greater diversity in the stock. Overall Objective 3 - Restore: Improving an area's offer when in decline or stress to improve overall market appeal and to create confidence in the housing offer. Design to play a leading role and could lead change on an urban renewal basis in some areas.
ME12	Isle of Sheppey including Sheerness, Minster, Leysdown and Warden.	Demand is greatest for family housing. Future development of quality family housing that reflects the character of the area should be encouraged. If opportunities arise, improve design and/or levels of sustainability especially in the pockets of deprivation found in this market area. Overall Objective 2: Reinforce: not changing an area's housing offer, Design protecting and enhancing existing characteristics of a neighbourhood area. Local variance within deprived communities should achieve Objective 1 - Create: extending or re-balancing the housing stock, market offer and appeal. Design playing the leading role to achieve this.
Faversham and East Swale Rural Local Housing Market Areas		
ME13	Faversham and rural parts of east Swale including Boughton, Oare, Selling and Eastling.	Overall a stronger housing market but with pockets of deprivation. The development of family housing in keeping with the character of the existing area should be encouraged. Overall Objective 2: Reinforce: not changing an area's housing offer, Design protecting and enhancing existing characteristics of a neighbourhood area. Local variance within deprived communities should achieve Objective 1 - Create: extending or re-balancing the housing stock, market offer and appeal. Design playing the leading role to achieve this.

Table 5.3.1 The purpose of housing in local housing market areas

Density

5.3.22 There is no longer a national minimum target figure for the density of new housing, but councils are allowed to consider whether local density standards should be set. Prescribing low densities can result in an inefficient use of land and a need to develop more greenfield sites to meet overall housing target numbers. The use of higher densities need not mean blocks of flats or featureless estates with little or no landscaping. For example, modern terraced housing of 2 or 3 storeys can achieve excellent internal and

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external space standards and still achieve medium or high densities. In suburban, village and other sensitive locations, a lower density may be more suitable where the conservation and enhancement of the character of the site, or its biodiversity or local context may be a priority. These considerations frequently arise in respect of proposals for development in the gaps between properties or in their gardens, or as a result of the redevelopment of the entire site. This type of development has been emotively referred to as 'garden-grabbing' and whilst not precluding the appropriate development of such sites, proposals leading to a detrimental change in the character of existing neighbourhoods will not be permitted.



Picture 5.3.1 New house building in Faversham

5.3.23 The Local Plan's overall approach to density is not to be prescriptive, but to let the purpose of the development, the context of the site and the defining characteristics of the surrounding area lead the process, taking the opportunity to achieve higher density development where it is appropriate. Higher densities will generally be more appropriate to town centre locations, where land economics may also influence the intensity of land use, or on larger sites, where there is scope to design a range of environments to create neighbourhoods with variety of character and visual interest.

Windfall sites and use of previously developed land

5.3.24 Not all our identified needs for housing will be met from the development of sites allocated by this Local Plan. During the plan period, it is likely, for example, that outdated or unsuitable industrial sites will close down, infill plots will be identified and buildings redeveloped or converted. These sources all present opportunities for extra housing, which will generally be encouraged by Policy CP 3. In particular, the development of brownfield sites (called previously developed land) is a priority and a means to reduce the amount of greenfield land needing to be developed. Not all brownfield land will be suitable for development, for example, sites in viable and suitable employment use, land at risk from flooding that cannot be made safe, or land that has developed as an important resource for biodiversity, amenity or recreation.

5.3.25 New housing will normally be supported on appropriate windfall sites, but we will be guided by Policy ST 3 so that the scale and location of proposals are generally in accordance with the role and function of the settlement in question and, where relevant, that the intrinsic character and beauty of the countryside is taken into account. New housing will be supported within deprived neighbourhoods where it would not perpetuate deprivation and is part of the means to restore the housing market and/or environmental conditions in the areas in question.

Policy CP 3

Delivering a wide choice of high quality homes

Actions by the public, private and voluntary sectors shall work towards the delivery of a wide choice of high quality homes that extend opportunities for home ownership and create sustainable, inclusive and mixed communities. Development proposals will, as appropriate:

1. Be steered to locations in accordance with Policy ST 3, including:

- a. Local Plan allocations, Neighbourhood Plans and Community Right to Build initiatives;
 - b. windfall sites, except where the character of the site, its local context or environmental value determines otherwise;
 - c. town centres when contributing to their vitality and viability; or
 - d. deprived communities when improving local housing markets.
2. Tailor the purpose and objectives of housing proposals to the issues present within local housing market areas;
 3. Use densities determined by the context and the defining characteristics of the area
 4. Provide affordable housing in accordance with Policy DM 8, or in rural areas, homes in accordance with Policy DM 9;
 5. Achieve a mix of housing types, reflecting the findings of the current Strategic Housing Market Assessment or similar needs assessment;
 6. Meet the housing requirements of specific groups, including families, older persons, or disabled and other vulnerable persons;
 7. Bring vacant homes back into use and up to the Decent Homes standard; and
 8. Achieve sustainable and high quality design in accordance with Policy CP 4 and Policy DM 19.

5.4 Requiring good design

5.4.1 The National Planning Policy Framework stresses that good design is a key aspect of sustainable development and considers the two are indivisible from good planning.^(5.10)

5.4.2 The Council considers that high quality design, whether for large or small proposals, should be the aim for all in the development process. It is fundamental to creating sustainable developments, a flourishing economy, social development, the wise use of natural resources, and to environmental protection and enhancement. As part of its strategy to create lively places with distinctive character, safe streets and spaces that are pleasant and human in scale, this local plan promotes high quality design in all locations that is sensitive, inspired, and imaginative and responds to its context. There is no place in the Borough for ill-conceived designs that do not contribute positively to making places better for people.

5.4.3 For urban design, this includes the relationship between different buildings, the relationship between buildings and the streets, squares, parks, waterways and other spaces which make up the built environment. It also extends to the nature and quality of that environment itself, the relationship of one part of a village, or town with other parts and the patterns of movement and activity which are thereby established - in other words the complex relationships between all the elements of built and undeveloped space. As the appearance and treatment of the spaces between and around buildings is often of comparable importance to the design of the buildings themselves, landscape design is also an important component. In the countryside, high quality design also means responding positively to the character of the local landscape.

5.4.4 Identifying, understanding and responding to local distinctiveness is important for Swale, especially for the development of heritage assets and is more likely to lead to proposals that are positive in respect of the pattern of the built and natural environments and the social and physical characteristics of the locality.

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The detailed definition of locally distinctive materials in development involving heritage assets will be provided in the proposed Heritage Strategy. A new development may successfully be able to create a sense of place by addressing the following:

- letting the character of a place come through, as opposed to standardisation, corporate identity and national building styles;
- responding to the local and the vernacular by using the materials of the locality to reinforce the colour, patterns and craftsmanship of the place;
- enhancing natural features and letting nature in by encouraging the local indigenous plants that already grow there;
- knowing and working with the knowledge and culture of a place;
- respecting local names, adding new ones with care;
- using the distinctive dimensions of a place to get things in proportion and scale;
- distinguishing between the urban, suburban and rural environments in design and detail;
- re-using old buildings; and
- avoiding the over zoning and segregation of uses that can stifle places.

5.4.5 Where strong local distinctiveness is not apparent, the objective should be to uplift the quality of the area through imaginative use of architecture, detail and landscape design that is, itself, locally distinctive.

5.4.6 The Council will expect developers to use the Council's design panel and respond positively to the provisions of the following (and successor) publications:

- The Cross Sector Group on Sustainable Design and Construction Good Practice Guide: [Sustainable Design and Construction](#) .
- The [Manual for Streets](#): Department for Transport. Emphasises that streets should be places in which people want to live and spend time in, and are not just transport corridors. Aims to reduce the impact of vehicles on residential streets by planning street design intelligently and pro-actively, giving a high priority to the needs of pedestrians, cyclists and users of public transport.
- [Kent Design Guide](#) (and appendices). Prepared by the Kent Design Group, it provides the criteria necessary for assessing planning applications. Helps building designers, engineers, planners and developers achieve high standards of design and construction. It is adopted by the Council as a Supplementary Planning Document.
- [Secured by Design](#) A UK Police initiative that focuses on crime prevention of homes and commercial premises and promotes the use of security standards for a wide range of applications and products. Now supported locally by Design for Crime Prevention, part of the Kent Design Guide.
- Design guidance from Kent Downs Area of Outstanding Natural Beauty unit. Includes its [Landscape Design Handbook](#) and Rural Streets and Lanes Manual.
- Sport England [Active Design Guidance](#). A set of design guidelines to promote opportunities for sport and physical activity in the design and layout of development. Promotes sport and activity through three key Active Design principles of - improving accessibility, enhancing amenity and increasing awareness.
- Swale Borough Council [Supplementary Guidance and Documents](#). These include guidance on house extensions, shop fronts and advertisements, landscaping, and converting rural buildings, together with a Supplementary Planning Document on Landscape Character and Biodiversity Assessment and Guidelines 2010 and the [Urban Extension Landscape Capacity Study \(2010\)](#) .

Policy CP 4

Requiring good design

All development proposals will be of a high quality design that is appropriate to its surroundings. Development proposals will, as appropriate:

1. Create safe, accessible, comfortable, varied and attractive places;
2. Enrich the qualities of the existing environment by promoting and reinforcing local distinctiveness and strengthening sense of place;
3. Make safe connections physically and visually both to and within developments, particularly through using landscape design and open space to retain and create green corridors for pedestrians, cyclists and biodiversity;
4. Make efficient and prudent use of natural resources including sensitively utilising landscape features, landform, biodiversity and climate to maximise energy conservation and amenity;
5. Retain and enhance features which contribute to local character and distinctiveness;
6. Conserve and enhance landscape, biodiversity and local environments by:
 - a. assessing and responding to landscape character, condition, sensitivity and any limitations arising from its overall capacity for change, together with the guidelines set out within the [Landscape Character and Biodiversity Assessment and Guidelines](#) and Urban Extension Landscape Capacity Study;
 - b. retaining trees where possible (including old orchards and fruit trees, hedgerows, shelter belts, woodland and scrub) particularly those that make an important contribution either to the amenity, historic, landscape character or biodiversity value of the site or the surrounding area;
 - c. providing a high standard of locally native plant species and trees (of local provenance and supportive of biodiversity) for soft (including green walls) landscaping in a pattern which respects the landscape character;
 - d. providing hard landscaping, surface and boundary treatments that are locally distinct and that respond positively to the character of the locality; and
 - e. provide features and management intended to encourage biodiversity.
7. Achieve a mix of uses, building forms, tenure and densities;
8. Be appropriate to the context in respect of materials, scale, height and massing;
9. Make best use of texture, colour, pattern, and durability of materials;
10. Use densities determined by the context and the defining characteristics of the area;
11. Ensure the long-term maintenance and management of buildings, spaces, features and social infrastructure;
12. Be flexible in order to respond to future changes in use, lifestyle, and demography;
13. Maximise opportunities for including sustainable design and construction techniques including the use of recycled and recyclable materials, sustainable drainage systems, carbon reduction and minimising waste; and
14. Adhere to relevant supporting design guidance.

5.5 Promoting healthy communities

Health and wellbeing

5.5.1 The National Planning Policy Framework (NPPF) stresses the importance of health and wellbeing and the role that the planning system should play in improving this.^(5.11) It explains that to achieve sustainable development, the planning system should perform a social role, including supporting strategies to improve health and cultural wellbeing, promoting healthy communities and identify strategic policies to deliver the provision of health facilities.^(5.12) The NPPF encourages local planning authorities to work with communities to gain a shared vision of the environment and facilities they wish to see and to deliver planning policies that facilitate social interaction and healthy inclusive communities.^(5.13) Planning for and protecting existing services and open space are also important parts of creating healthy communities, as recognised by the NPPF.^(5.14)

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5.5.2 The Marmot Review: Implications for Spatial Planning (2011), provided evidence on the relationship between planning, the built environment and health inequalities.^(5.15) A key message from the review is that planning has great potential to affect health through the design of developments, ensuring that services are joined up and easier to access, community participation, accessible transport, well located services and by the pursuit of healthy lifestyles through active travel and use of green space.^(5.16)

5.5.3 Achieving healthier communities is at the heart of the Local Plan vision. To support this, the former Primary Health Care Trust for Swale undertook a Rapid Health Impact Assessment to identify the potential health gains and consequences of various options and policies that were being considered.^(5.17) This identified that there were significant health and wellbeing issues in Swale, especially in its deprived communities (see Statement 5), and that the Local Plan should seek to improve the population's health.^(5.18) It emphasised the role that mixed use developments could play in providing healthy communities and that a good relationship between the location of housing, employment and other facilities, could also support healthy communities.^(5.19) The health care needs arising from the Local Plan have also been determined and these can be found in its implementation and delivery schedule. If fully implemented, an integrated approach toward health should potentially reduce costs to health services in the long term.

Statement 5

Key health facts for Swale

1. The health of people in Swale is mixed when compared with the average for England. The Public Health England publication Swale Health Profile 2014 reveals levels of health/deprivation significantly worse than the England average in the following areas: children in poverty; violent crime; long term unemployment; smoking status at time of delivery; breastfeeding initiation; under 18 conceptions; obese adults; excess weight in adults; recorded diabetes; and smoking related deaths.
2. There are significant health inequalities depending on where people live within the Borough. The life expectancy for those living in the 20% most deprived areas of Swale (west and east Sheppey, Murston, Milton Regis, Kemsley and Davington Priory) is about eight years lower for men, and approximately five years lower for women, than for those living in the least deprived areas.
3. The highest crime levels in the Borough are in Sheerness, Leysdown, Kemsley, Milton Regis, Murston, the rural area around Teynham, part of the St Ann's ward and part of the Abbey ward in Faversham.

5.5.4 The Council has undertaken an audit of open space and determined standards to be applied to new developments. These can be found in Policy DM 17. Existing provision, whether of open space, health or other community facilities should also be safeguarded against development proposals that would result in their loss. Policy CP 5 confirms the national policy intended to address this.

5.5.5 Policy CP 5 brings together all the relevant matters affecting health to provide an integrated approach. Health impact assessments will be used to ensure these issues are properly considered and integrated at the planning application stage. The use of such assessments will be appropriate as identified by Local Plan allocations, or when statutory Environmental Impact Assessments are required, or for larger developments within Swale's most deprived wards.

Policy CP 5

Health and wellbeing

The Council, working in conjunction with relevant organisations, communities and developers, will promote, protect and work to improve the health of Swale's population, and reduce health inequalities. Development proposals will, as appropriate:

1. Bring forward accessible new community services and facilities, including health facilities;
2. Safeguard existing community services and facilities where they are viable or can be made so, or where replacement facilities can be provided without leading to any shortfall in provision, or where the local Clinical Commissioning Group has indicated a need for health facilities;
3. Safeguard or provide as appropriate, open space, sport and recreation in accordance with Policy DM 17, additionally enabling access to nature in accordance with the Local Plan Natural Assets and Green Infrastructure Strategy in Policy CP 7;
4. Promote healthier options for transport, including cycling and walking;
5. Improve or increase access to a healthy food supply such as allotments, markets and farm shops;
6. Create social interaction and safe environments through mixed uses and in the design and layout of new development;
7. Create a healthy environment that regulates local climate by providing open space and greenery to achieve shading and cooling, particularly within existing urban environments; and
8. Undertake and implement a Health Impact Assessment for relevant proposals that are:
 - a. required to undertake Environmental Impact Assessments; or
 - b. within Swale's most deprived wards; or
 - c. identified as required by the Local Plan.

Community facilities and services to meet local needs

5.5.6 The National Planning Policy framework (NPPF) requires the timely provision of all types of physical infrastructure, including transport, and communications, water and energy. Local plans are also required to take account of the need for strategic infrastructure, including those of national significance.^(5.20) One of the core principles of the NPPF requires account to be taken of local strategies to improve health, social and cultural well being and deliver sufficient community and cultural facilities and services to meet local needs.^(5.21)

5.5.7 The NPPF also requires local planning authorities to include policies to deliver the provision of infrastructure in their local plans. It also requires that they should work with other authorities and service providers to assess the quality and capacity of infrastructure to meet the forecast demands arising from the local plan and also the need for strategic infrastructure (including nationally significant infrastructure) within their areas.^(5.22)

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5.5.8 Finally, the NPPF requires local planning authorities to ensure that there is a reasonable prospect that planned infrastructure is deliverable in a timely fashion, although it also requires the consideration of viability and costs associated with such infrastructure.^(5.23) National planning policy guidance highlights the need to identify the infrastructure necessary to support the first five years of the plan. Although timing and funding of major schemes may be unclear beyond this, the risks and contingencies also need to be identified. These are provided by the Council's implementation and delivery plan as set out in Chapter 8.



Picture 5.5.1 Primary school at Leysdown

Identifying Swale Infrastructure Needs

5.5.9 To meet the growth requirements for Swale, the Local Plan identifies land allocations for future development and growth to meet the needs of the community. The impacts of development on the built and natural environment, utilities and community services needs to be managed. This may involve protecting existing infrastructure, identifying where there is capacity and or securing the timely provision of new infrastructure, which in itself may require land allocations to be made to accommodate it. Infrastructure requirements typically fall into one of the following categories:^(5.24)

- physical infrastructure (such as highways, transport, utilities and public realm improvements);
- community infrastructure (such as schools, adult social services and cultural facilities);
- green infrastructure (such as play spaces, parks or nature and biodiversity conservation, enhancement or mitigation).

5.5.10 Statement 6 expands this list for Swale.

5.5.11 It is important that less obvious infrastructure needs are met. The expansion of digital infrastructure that enables high speed access to the Internet is especially critical for the Borough. Policy CP6 requires developers to provide this infrastructure within their new developments.

Statement 6

Definition of infrastructure

This list of infrastructure requirements is not exclusive, but includes:

- transport - ports, road networks, car parking, cycle and pedestrian infrastructure, rail and bus provision;
- health - local health facilities;
- social infrastructure - education facilities, supported accommodation and other social care facilities, social and community facilities, sports facilities, open spaces (including accessible natural space), arts and culture, parks and play space;
- green infrastructure - existing and proposed green grid network as identified in the Local Plan Green Infrastructure Plan;

- public services - waste management and disposal, libraries, emergency services, Council offices, Job Centre Plus offices, training facilities, cemeteries, places of worship, prisons and drug treatment centres;
- utility services - non-renewable and renewable energy infrastructure, water supply, waste water treatment, sewerage and telecommunications (including digital internet) infrastructure; and
- flood defence infrastructure - in the context of making new development safe on a site specific basis.

5.5.12 The Council has worked with key stakeholders and service providers including KCC Services, Kent Highways, Highways Agency, health services and utilities to identify capacity in existing infrastructure and what would be needed to support the development strategy in the emerging Local Plan. The requirements for Swale have been assessed through the evidence base of the Plan, whilst key infrastructure needed to support implementation of particular site allocations have also been identified in the relevant allocation policy. A separately published implementation and delivery schedule (IDS) provides a comprehensive and an annually updatable list of infrastructure proposals for the Local Plan period that includes costs and likely delivery agencies. No significant national scale infrastructure requirements have been identified for Swale within the plan period, although improvements to the national road network at Junction 5 of the M2 will be required and, potentially at Junction 7.

5.5.13 Chapter 8 of the Local Plan states that provision sufficient to meet the development needs for the first five-year period can be met, with the IDS indicating that infrastructure needs are concentrated at the growth areas of Sittingbourne, Isle of Sheppey, and to a lesser degree at Faversham. It is the subsequent periods of the Local Plan where the most significant levels of infrastructure will be required and where gaps between the cost of infrastructure and available funding may occur, not assisted by poor viability for the first years of the plan. There are past examples in Swale of infrastructure that has not kept pace with growth and co-ordinated efforts will be needed to ensure that early deficits in provision do not intensify.

The funding of infrastructure

5.5.14 Our viability assessment has examined the capacity of development (after policy requirements are met) to fund infrastructure via payment of the Community Infrastructure Levy (CIL) (when a schedule is in place) or Section 106 agreements. The evidence shows that developers' financial ability to support infrastructure provision varies considerably across the Borough and because it is not possible to confirm the extent to which public funding will be available, it is unlikely that overall levels of funding will be sufficient (a requirement for the setting of a Community Infrastructure Levy in any event).

5.5.15 From April 2015, no more than five separate site Section 106 contributions are able to be 'pooled' for any one item of infrastructure and this will place additional pressures on funding infrastructure ahead of the introduction of any CIL tariff. However, until such time as a CIL tariff can be adopted, the Council will, where appropriate, continue its current practise of seeking developer contributions for infrastructure on development proposals for ten or more dwellings.

5.5.16 Across significant areas of the Borough, the current viability situation indicates financial limits to the amount of CIL (and Section 106 Agreements) that can be charged and this means some prioritising of infrastructure provision. For CIL, such priorities can be reflected through what is called a Regulation 123 list that can help ensure provision in a timely manner and assist in leveraging in other sources of funding. The setting of this 123 list is not resolved through the Local Plan, but the infrastructure delivery schedule sets out the 'long-list' of infrastructure that will provide the starting point for it.

5.5.17 Our viability evidence has required us to reduce policy requirements in key areas such as affordable housing. As a result, developments should normally be able to meet the remaining contributions necessary arising from the development. In cases where developer contributions may need to be reduced for viability reasons, the Council will only agree to this where the advantages of proceeding with the development would significantly outweigh the disadvantages and, provided the Council's ability to comply with statutory duties would not be compromised. Ahead of the publication of the Regulation 123 list, in cases where

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abnormal costs or other issues significantly challenge the ability of development to contribute to these matters via Section 106 Agreements, the implementation and delivery plan in Chapter 8 indicates the priorities for developer contributions for the first five years of the Local Plan. They include:

- transport - given those matters needed to unlock the growth for the remaining period of the Local Plan;
- education - given the forecast need for Sittingbourne, Queenborough-Rushenden and Faversham;
- social care - given the forecast rising proportion of older persons and demands arising from forecast increases in those with specialist needs. These issues have additional concerns for Swale given that parts of the Borough are among the most deprived in England; and
- primary health care - given the forecast need for increased capacity in the Borough.

5.5.18 Where the viability of a site could be shown to be at risk, an open book assessment by the Council, at the developers' cost, will confirm whether priorities will need to be set. Where this occurs and there is the likelihood of a gap between growth and infrastructure provision, the Council will, where it can, build into legal agreements the mechanism by which, should development values rise during the course of the development phase, an ability to 'claw-back' contributions at a later date will be included within a Section 106 Agreement.

Policy CP 6

Community facilities and services to meet local needs

The Council will work with developers and other public agencies to identify deficiencies in infrastructure. Development proposals will, as appropriate:

1. Deliver timely infrastructure, especially those forming part of the Local Plan implementation and delivery schedule;
2. Safeguard existing community services and facilities where they are viable or can be made so unless replacement facilities can be provided without leading to any shortfall in provision;
3. Provide for utility provision, including digital infrastructure to enable fast Internet accessibility;
4. Where the viability of development may be threatened as a result of requirements arising from the Local Plan:
 - a. demonstrate their financial position via an open book assessment by the Council (at the developers' cost); and where this position is demonstrated:
 - b. prioritise developer contributions in accordance with the Local Plan implementation and delivery plan; and
 - c. agree mechanisms within a Section 106 Agreement to enable the position to be reviewed should development values rise during the course of the development phase. Where demonstrated, additional contributions will be made to ensure that infrastructure provision to meet the needs arising from the development is made.

5.6 Conserving and enhancing the natural environment - providing for green infrastructure

5.6.1 Our diverse and outstanding natural assets are the defining characteristics of Swale. Policy CP 7 considers how natural assets should be considered across a range of issues; more specifically how together their protection, enhancement and management can contribute to our own quality of life, as well as benefiting the natural environment.

5.6.2 The NPPF looks to the planning system to contribute to and enhance the natural environment by:

- protecting and enhancing it;
- recognising the wider benefits of ecosystem services in supporting society's needs;
- minimising impacts on biodiversity and providing net gains in places affected by development proposals;
- establishing coherent and resilient ecological networks; and
- preventing and mitigating pollution.^(5.25)

5.6.3 The NPPF defines green infrastructure as a network of multi-functional green space, urban and rural, which is capable of delivering a wide range of environmental and quality of life benefits for local communities.^(5.26) It expects local planning authorities to set out a strategic approach in their Local Plans which should plan positively for the creation, protection, enhancement and management of networks of biodiversity and green infrastructure, including those at the coast.^(5.27)

5.6.4 As well as providing the attractive environments within which people will want to live, work and invest, green infrastructure has the following multiple benefits to the health and wellbeing of both people and nature.^(5.28)

- new open space and facilities to increase participation in sport and recreation;
- connections with our natural environment;
- new and enhanced habitats for biodiversity, including when the mitigation of adverse development impacts arising from development becomes necessary;
- resilience and adaptation of species and habitats to climate change;
- the opportunity to manage the risks to those in vulnerable areas such as from flooding;
- the conservation and enhancement of valued landscapes, spaces and heritage;
- counters to the effects of noise and pollution; and
- a safe network of car free routes linking home, work, school and areas of recreation.

5.6.5 These multiple benefits of green infrastructure can attract new investment, raise land and property values by enhancing their amenity value, as well as helping businesses to retain a skilled and highly motivated workforce because of the attractive living and working environment created. This, in turn, supports Swale's economic ambitions.

5.6.6 Conserving and enhancing the Borough's outstanding natural environment is at the heart of a Local Plan strategy which seeks to create more robust ecological and landscape structures and reverse the decline in the quality and diversity of our landscapes and biodiversity. In assessing the impacts of development upon the natural environment, the Council will recognise and value our ecosystems for the wider services they provide to society, such as for food, water, flood mitigation, disease control, recreation and, importantly, health and well-being. Whilst it will safeguard the network of national and natural asset designations in the Borough, across all areas, designated or not, we will expect the use of landscape character and biodiversity assessments to drive natural asset focused developments. Where possible, all development proposals should seek to achieve a net-gain in biodiversity.

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Picture 5.6.1 Elmley Marshes

mitigation and compensation of development schemes elsewhere in Kent and further afield when such actions cannot be taken closer to the point of impact and where such measures are not detrimental to the integrity of the Borough's own natural assets.

The Swale natural assets and green infrastructure network and strategy

5.6.9 Creating a natural assets and green infrastructure network and strategy draws upon a considerable number of sources of evidence. These are outlined in Appendix 1. As well as informing the strategy, use of these documents in the preparation of development proposals and in partnership working is strongly encouraged.

5.6.10 A natural assets and green infrastructure network for Swale has been defined and mapped from this evidence base, comprising two main broad elements. These are:

1. The existing network: comprising open space, the principal public footpath network and landscape and biodiversity designations. This forms the basis of maintaining and enhancing the existing level of assets in the face of future change; and
2. The future network shows where the network might be extended on a strategic scale, for example:
 - as a result of an assessment of sports or open space needs;
 - where biodiversity may need to change and or migrate as a result of future climate change;
 - where habitats and landscapes are lost as a result of development that may need to be mitigated or compensated for in locations such as Biodiversity Opportunity Areas; and
 - where there are obvious gaps that can be filled to make for a more comprehensive and cohesive network.

5.6.11 As a result of identifying the network, a Natural Assets and Green Infrastructure Strategy has been created as a basis for both protecting and enhancing the existing network and for its future expansion over the lifetime of the Local Plan and beyond (see Picture 5.6.2). It highlights locations where there is either existing planned long term strategic activity or where it is expected that future strategic initiatives and emphasis will be placed. It is intended to be a strategy to guide both the consideration of development proposals and partnership working. It should be noted that the Strategy Map serves only to illustrate the broad approach to the protection and enhancement of the network at a strategic scale and is not representative of the boundaries of actual land parcels or initiatives. Site specific proposals are therefore expected to refer to source material and undertake their own assessments in order to demonstrate the

5.6.7 Part of avoiding impacts and achieving net gains for biodiversity is mitigation and, as a last resort, compensation. Development proposals must safeguard what is important, introduce new features and mitigate the remaining impacts, including use of compensation where unacceptable harm remains or where a net gain in biodiversity can be achieved. In such cases the Council will use existing, and develop new mechanisms to ensure adequate compensation.

5.6.8 The Council also considers that Swale has the potential to become a centre for habitat creation as part of co-operation with other Councils. We will encourage the use of land here to potentially act as a receptor for

most appropriate contribution towards the overall strategy. At present, the strategy map is not a full representation of assets and opportunities within the main urban areas and the Council will undertake urban green infrastructure studies when resources permit.

5.6.12 To ensure the co-ordinated implementation of the strategy, Policy CP 7 seeks to maintain the integrity of the green infrastructure network and co-ordinate its enhancement. It sets out the expectations for new provision to achieve benefits across the economic, social and environmental components of sustainable development.

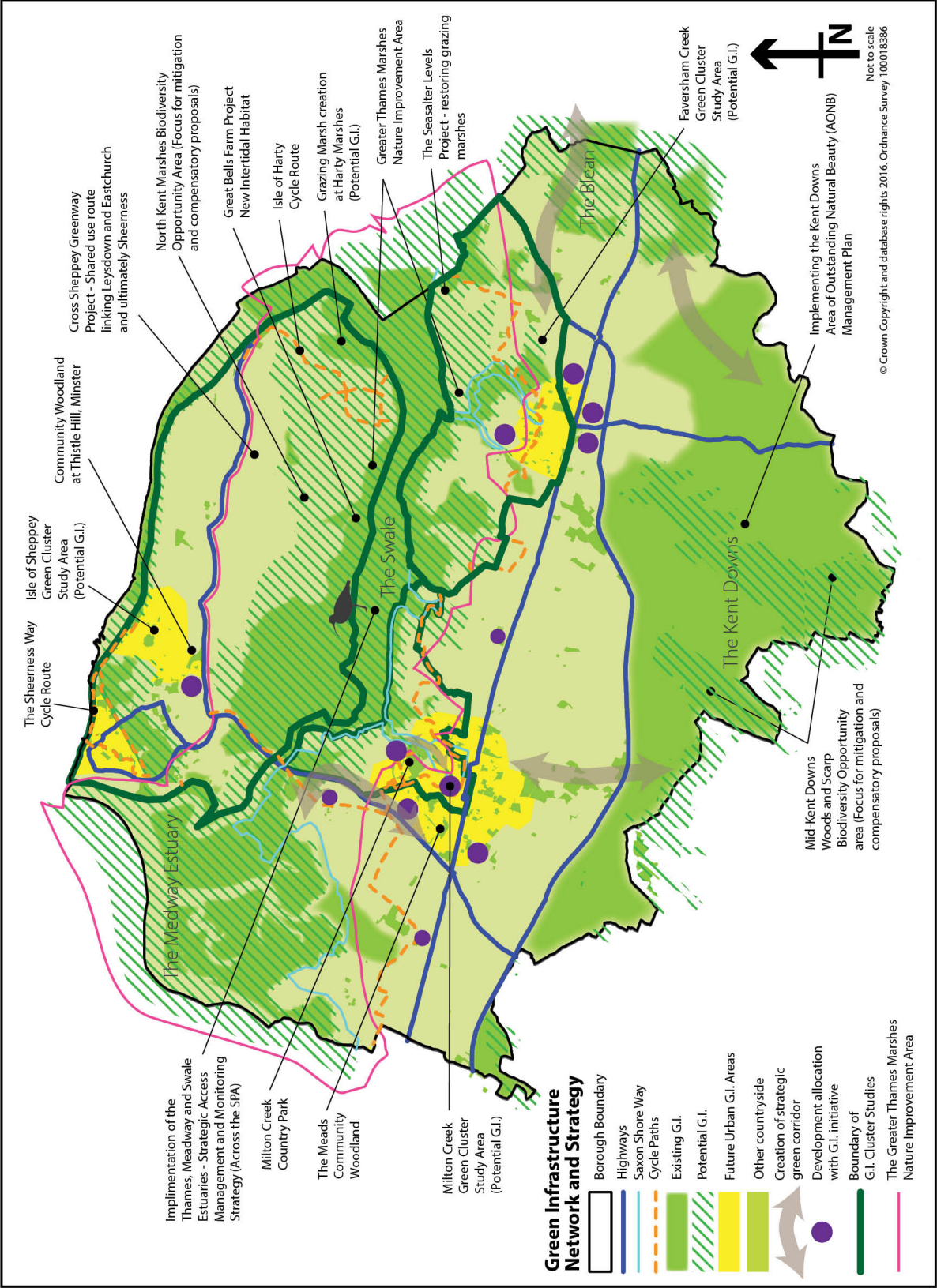
Potential adverse impacts on European designated wildlife sites

5.6.13 A particular issue where the strategy and Policy CP 7 will play a key part is where potential adverse impacts on European designated wildlife sites are identified, for example, as a result of increased recreational pressures on bird habitats on the North Kent Marshes. These are matters affecting both the preparation of the Local Plan and for relevant development projects, both of which are required to comply with the Habitats Regulations Assessment process.

5.6.14 As explained in Chapter 4, CP 7 and Policy DM 28, partners are putting in place a Strategic Access Management and Monitoring Strategy (SAMMS) that shall include the measures needed to mitigate growth. This shall also include a mechanism to ensure that residential development financially contributes toward mitigation measures, such as wardening, management or habitat creation that shall, in turn, be informed by the Green Infrastructure Strategy Map. The SAMMS will be used to support the determination of planning applications and inform any Local Plan review and the Council's Community Infrastructure Levy.

5.6.15 To address the issue in both the short and longer terms, Policy CP 7 requires management and containment of pressures. Where mitigation and/or compensation is required, it must be provided in an appropriate way either as a result of the cumulative impact of Plan proposals or individual development proposals. An integral part of the SAMMS will be the monitoring of the effectiveness of the measures put in place through the tariff payments. If this monitoring highlights areas where changes to the mitigation measures are required, these will be implemented by the Partnership.

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Picture 5.6.2 Natural Assets and Green Infrastructure Network and Strategy

Policy CP 7

Conserving and enhancing the natural environment - providing for green infrastructure

The Council will work with partners and developers to ensure the protection, enhancement and delivery, as appropriate, of the Swale natural assets and green infrastructure network and its associated strategy. Development proposals will, as appropriate:

1. Recognise and value ecosystems for the wider services they provide, such as for food, water, flood mitigation, disease control, recreation, health and well-being;
2. Protect the integrity of the existing green infrastructure network as illustrated by the Natural Assets and Green Infrastructure Strategy Map, having regard to the status of those designated for their importance as set out by Policy DM24 and Policy DM28;
3. Where assessment indicates that it is necessary to enhance and extend the network (including when management, mitigation and/or compensatory actions are required to address adverse harm), be guided by the Green Infrastructure Network and Strategy Map, prioritising actions toward identified Biodiversity Opportunity Areas;
4. Ensure that there is no adverse effect on the integrity of a SAC, SPA or Ramsar site, alone or in combination with other plan and projects, as it would not be in accordance with the aims and objectives of this Local Plan;
5. Require the completion of project specific Habitats Regulations Assessment, in accordance with Policy DM28, to ensure there are no likely significant effects upon any European designated site. For residential sites within 6km of an access point to any of the North Kent Marshes, development must contribute to its Strategic Access Management and Monitoring Strategy;
6. Contribute to the objectives of the Nature Partnerships and Nature Improvement Areas in Kent;
7. Make the enhancement of biodiversity and landscape as their primary purpose;
8. Promote the expansion of Swale's natural assets and green infrastructure, including within new and existing developments, by:
 - a. delivering a high standard of design quality to maximise the social, economic, health and environmental benefits of green infrastructure;
 - b. providing a focus for social inclusion, community development and lifelong learning;
 - c. taking into account the guidelines and recommendations of relevant management plans and guidance, Biodiversity Action Plans and Supplementary Planning Documents;
 - d. contributing to the protection, conservation and management of historic landscapes, archaeological and built heritage assets;
 - e. achieving, where possible, a net gain of biodiversity;
 - f. providing new recreational facilities in accordance with Policy DM17, exploiting opportunities to link urban and countryside areas and to create new footpath and cycle links;
 - g. taking account of and integrating with natural processes, such as flood risk and utilising sustainable urban drainage; and
 - h. including proposals to 'green' existing and proposed developed areas by increasing opportunities for nature in domestic gardens, streets and buildings, including street trees and in and around formal open spaces and sports provision.

5.7 Conserving and enhancing the historic environment

5.7.1 Swale's built heritage is one of its greatest assets. The Borough has a wealth of historic areas, buildings, and features reflecting its Roman and medieval legacy, its naval and maritime history and its

5 Core planning policies

industrial and agricultural past. There are also historic and outstanding parks and gardens within the wider historic landscapes of the central North Downs, The Blean, the northern fruit belt, the northern coast and marsh and the Isle of Sheppey.^(5.29)

5.7.2 Whilst the NPPF and development management policies are likely to be sufficient to deal with detailed proposals affecting heritage assets, this section sets out the significance of our assets at the strategic level and how our Local Plan strategy for heritage is integrated across a range of issues.

5.7.3 Heritage assets are defined by the NPPF as a building, monument, site, place, area or landscape positively identified as having a degree of significance meriting consideration in planning decisions. They include designated heritage assets and assets identified by the local planning authority during the process of decision making or through the plan-making process (including local listing).^(5.30)

5.7.4 One of the NPPF's core planning principles is to conserve heritage assets in a manner appropriate to their significance, so that they can be enjoyed for their contribution to the quality of life of current and future generations.^(5.31) It requires local plans to provide a positive strategy for the conservation and enjoyment of the historic environment and should recognise that heritage assets are an irreplaceable resource and conserve them in a manner appropriate to their significance. In developing this strategy, local planning authorities should take into account:^(5.32)

- the desirability of sustaining and enhancing the significance of heritage assets and putting them to viable uses consistent with their conservation;
- the wider social, cultural, economic and environmental benefits that conservation of the historic environment can bring;
- the desirability of new development making a positive contribution to local character and distinctiveness; and
- opportunities to draw on the contribution made by the historic environment to the character of a place.

5.7.5 Following completion of its Heritage Asset Review, June 2015, the Council intends to prepare a Heritage Strategy which shall aim to:

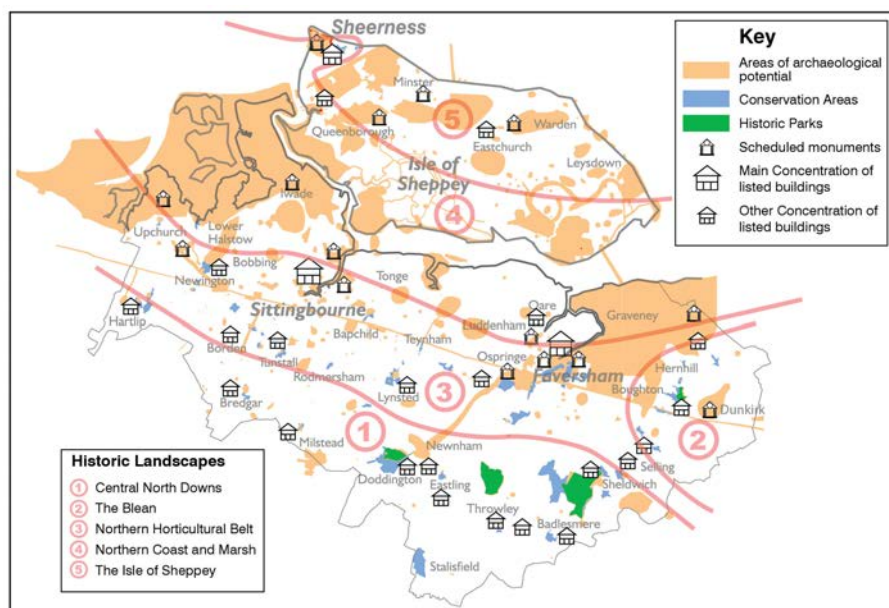
1. Create a unified online database of all the designated heritage assets in the Borough;
2. Identify general areas with potential for future conservation area designation or extension, for example Minster and the Kemsley estate, and set out a programme for their formal designation;
3. Provide a list of areas of designed landscape which are of historic interest;
4. Identify areas which have archaeological or other heritage potential on a map;
5. Include a realistic programme for the preparation of conservation area appraisal documents for those conservation areas which do not have appraisal documents;
6. Review the need for additional Article 4 Directions in existing conservation areas;
7. Set out a methodology for compiling a local heritage list, potentially involving local amenity groups and civic societies;
8. Identify buildings of high value, not currently on the national list of buildings of special architectural or historic interest, and propose additions to the list;
9. Provide action plans for dealing with heritage sites associated with the aviation pioneers and with defence;
10. Identify and prioritise conservation areas which would benefit from grant programmes to support their preservation and enhancement, and the re-use of vacant floorspace;
11. Provide an Action Plan for the preservation and enhancement of Sittingbourne Conservation Area;
12. Provide an Action Plan and continue to pursue bids for heritage-led regeneration in Sheerness to deal with redundant, underused and inaccessible heritage assets, in order to ensure they are integrated into future development proposals, such as the Sheerness Port Masterplan, and are enabled where possible to make an economically or culturally positive contribution to the future of the area;
13. Make provision for a survey of all the Grade II listed buildings in Swale, potentially involving local civic and amenity groups, to establish which are at risk, once every 5 years;
14. Produce an Action Plan for dealing with Heritage At Risk in Swale;

15. Produce proposals for involving local amenity groups, preservation trusts, civic societies and other third sector bodies more actively in the identification, assessment and preservation of the Borough's built heritage; and
16. Define criteria to identify those areas where new development would be inappropriate because of their historic significance.

5.7.6 When considering the impact of a proposed development on a designated heritage asset, the NPPF states that considerable importance and weight should be given to its conservation. The more important the asset, the greater the weight should be.^(5.33) As heritage assets are irreplaceable, any harm or loss should require clear and convincing justification and substantial harm to or loss of a grade II listed building, park or garden should be exceptional.^(5.34)

5.7.7 The Local Plan strategy ensures that the historic environment is central within decision-making. Within each Core Policy, allocation or development management policy, there will rarely be a situation where there is not a relationship with heritage in some form, whether from green infrastructure, landscape, regeneration, economic development, transport, infrastructure planning, tourism, town centres and climate change. Policy CP8 recognises this interrelationship.

5.7.8 The Borough's rich legacy of heritage assets, both designated and non-designated, allows a broad strategic overview of their significance to be outlined in terms of their importance to the character and distinctiveness of the Borough. This is illustrated by Map 5.7.1 and Statement 7. Such assets act as drivers for regeneration and tourism within the Borough and can give developments an identity and character specific to the area. Heritage assets may offer opportunities for potential partnership working for the Council with amenity groups, building preservation trusts and/or civic societies.



Map 5.7.1 Indicative location of main heritage assets in Swale

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Statement 7

Strategic overview of Swale's heritage assets

The numbers: 1,856 listed buildings in Swale, 22 Scheduled Monuments and 4,818 sites on the Kent Historic Environment Record. There are also 50 designated [conservation areas](#) in the Borough. There are 4 Registered Historic Parks and Gardens, 41 listed buildings on the Council's Local Buildings at Risk Register, and 13 on the English Heritage register. Broadly, our assets comprise:

- historic landscapes - the central North Downs, The Blean, the northern fruit belt, the northern coast and marsh and the Isle of Sheppey;
- early settlements around Roman Watling Street and coastal creeks;
- Saxon and Norman settlements evidenced by e.g. defensive sites and churches;
- former monastic establishments at Faversham and Minster;
- medieval farmsteads with attendant barns, oast houses and outbuildings;
- time-span (of buildings present) and urban form/morphology of Faversham;
- rural lanes and droving tracks;
- the array of coaching inns focused at Sittingbourne, together with other features e.g. milestones, associated with its travelling past;
- the legacy of the industries of e.g. gunpowder production, milling, brewing, brick making, barge building, paper production and maritime trading;
- structures and features relating to pioneer aviators and the establishment of Great War and WW2 airfields at Eastchurch, Sheppey;
- centuries of Naval history at the former Royal Naval Dockyard at Sheerness;
- Great War defences to the west of Sittingbourne and along the Sheppey coast;
- World War II defensive structures, including those of strategic importance in the Battle of Britain;
- remnants of prehistoric activity in Swale, particularly across Sheppey and at Milton Creek, Sittingbourne;
- numerous villages, hamlets and parkland estates; and
- Swale's currently unknown archaeological sites.

5.7.9 The overview in Statement 7 is not intended to be a replacement for establishing the presence and value of heritage assets when considering new development. However, given the importance of many such assets, full weight to their preservation and enhancement will be given. In order to further assist the identification of heritage assets, in due course, the Council will produce a list of Swale's non-designated local heritage assets as soon as resources permit.

5.7.10 Parts of Swale's heritage are at risk, usually from neglect. For its part, the Council will aim to reduce this over time, but will be especially supportive of proposals that bring them back into viable and appropriate use, especially where they can contribute to our regeneration aspirations.

5.7.11 Within historic landscapes, historic patterns of land use define the 'grain' of existing patterns of settlement and landscape. As with urban development, new development is more likely to be successfully integrated into the Borough if it complements what has gone before. Its layout should take account of the historic landscape of the area. Existing patterns of roads, lanes, paths, hedgerow networks and field boundaries should help to shape new development, allowing the older landscape to show through the modern development. Historic landscape analysis will enable judgements to be made about the relative importance of different components of the landscape so that priorities can be set for preservation and enhancement.

5.7.12 Overall, development proposals will be informed by the integrity, form and character of settlements and historic landscapes within our settlement strategy, using these assets as a strong starting place for planning change. They will also consider the broad heritage issues identified by the settlement strategy

(Policy ST3), within the area strategies (Policies ST 5-ST 7) and within development management policies, notably DM 32-DM 36. When bringing forward development proposals, a continuous assessment of considering heritage assets should be demonstrated from site and heritage assessment, master planning and development briefs through to design and access statements. The fruits of this work will be apparent in the design, layout and detail of the proposals.

Policy CP 8

Conserving and enhancing the historic environment

To support the Borough's heritage assets, the Council will prepare a Heritage Strategy. Development will sustain and enhance the significance of designated and non-designated heritage assets to sustain the historic environment whilst creating for all areas a sense of place and special identity. Development proposals will, as appropriate:

1. Accord with national planning policy in respect of heritage matters, together with any heritage strategy adopted by the Council;
2. Sustain and enhance the significance of Swale's designated and non-designated heritage assets and their settings in a manner appropriate to their significance and, where appropriate, in accordance with Policies DM 32-DM 36;
3. Respond to the integrity, form and character of settlements and historic landscapes;
4. Bring heritage assets into sensitive and sustainable use within allocations, neighbourhood plans, regeneration areas and town centres, especially for assets identified as being at risk on national or local registers;
5. Respond positively to the conservation area appraisals and management strategies prepared by the Council;
6. Respect the integrity of heritage assets, whilst meeting the challenges of a low carbon future; and
7. Promote the enjoyment of heritage assets through education, accessibility, interpretation and improved access.

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End Notes

- 5.1 National Planning Policy Framework 2012. CLG. Para.18
- 5.2 SHMA Update and Development Needs 2013. NLP for SBC. Paras 4.31-32
- 5.3 Employment Land Review 2010, SHMA Update and Development Needs 2013. NLP for SBC, Planning Statement from National Farmers Union 2009 and The Feasibility of Developing Cultural Infrastructure as part of Sittingbourne Town Centre Regeneration Scheme, August 2009
- 5.4 The Future of Farming in Kent 2010. NFU, Agricultural Land in Swale (2015)
- 5.5 Policy WT11 Kent Downs AONB Management Plan 2004-29. Page 91
- 5.6 2011 Census, Office of National Statistics
- 5.7 SHMA Update and Development Needs 2013, NLP for SBC para. 2.7
- 5.8 SHMA Update and Development Needs 2013, NLP for SBC para. 2.9 and Fig. 2.6.
- 5.9 Detailed Property Market Review 2011. CBRE for SBC
- 5.10 National Planning Policy Framework 2012. CLG. Para. 56
- 5.11 National Planning Policy Framework 2012. CLG. Para 17
- 5.12 National Planning Policy Framework 2012. CLG. Para 7
- 5.13 National Planning Policy Framework 2012. CLG. Para 69
- 5.14 National Planning Policy Framework 2012. CLG. Paras. 69-77
- 5.15 The Marmot Review: Implications for Spatial Planning 2011. Page 4
- 5.16 The Marmot Review: Implications for Spatial Planning 2011. Pages 29-30
- 5.17 Rapid Health Impact Assessment 2010. NHS for SBC. Page 7
- 5.18 Health Profile 2012, Swale, Swale Borough Council Core Strategy, Rapid Health Impact Assessment, September 2010
- 5.19 Rapid Health Impact Assessment 2010. NHS for SBC. Page 41
- 5.20 National Planning Policy Framework. CLG 2013. Para. 156.
- 5.21 National Planning Policy Framework. CLG 2013. Para. 17
- 5.22 National Planning Policy Framework. CLG 2013. Paras. 157 and 162
- 5.23 National Planning Policy Framework. CLG 2013. Paras. 173 and 177
- 5.24 National Planning Policy Framework. CLG 2013. Para. 162
- 5.25 National Planning Policy Framework 2012. CLG. Para. 109
- 5.26 National Planning Policy Framework 2012. CLG. Annex 2, Page 51
- 5.27 National Planning Policy Framework 2012. CLG. Para. 114
- 5.28 South East Green Infrastructure Framework: From Policy into Practice 2009
- 5.29 Kent Historic Landscape Characterisation 2001. Kent County Council
- 5.30 National Planning Policy Framework 2012. CLG. Page 52
- 5.31 National Planning Policy Framework 2012. CLG. Para. 17
- 5.32 National Planning Policy Framework 2012. CLG. Para. 126
- 5.33 National Planning Policy Framework 2012. CLG. Para. 132
- 5.34 National Planning Policy Framework 2012. CLG. Para. 132

6 Land allocations for new development

6.1 Introduction

6.1.1 This chapter deals with the land allocations that are necessary to meet our development targets. These are covered by the following sub-sections:

- **Section 6.2 Existing committed employment allocations:** Long-standing existing development areas, usually benefiting from an historic outline planning permission.
- **Section 6.3 Proposed employment allocations:** A mix of sites allocated for the first time and sites reviewed from the 2008 Local Plan.
- **Section 6.4 Existing committed housing allocations:** Long-standing existing development areas, usually benefiting from an historic outline planning permission.
- **Section 6.5 Proposed housing allocations:** A mix of sites allocated for the first time and sites reviewed from the 2008 Local Plan.
- **Section 6.6 Mixed use allocations:** Larger sites which contain other uses in addition to new housing.
- **Section 6.7 Regeneration areas:** Broad areas within which development is expected to come forward.
- **Section 6.8 Neighbourhood Plans:** As well as highlighting emerging neighbourhood plans, a guiding policy is provided for the most advanced of these at Faversham Creek.

6.2 Existing committed employment locations

6.2.1 Two major locations have formed part of the strategy for employment in Swale since the 1990s. Both benefit from an outline planning permission, with significant areas remaining to be developed.

Ridham and Kemsley, Sittingbourne

6.2.2 Situated on the northern edge of Sittingbourne, this site is suitable for B2 and B8 uses of the Use Class Order, which often require large amounts of land, although planning permission for B1 and a limited range of A3 Classes have been additionally granted. Some 149,200 sq m remains available for 'B' class uses. There is an approved development brief for the site.

6.2.3 Given its closeness to the Swale Special Protection Area and Ramsar site, a Habitats Regulations Assessment may be required and development will need to be carried out with reference to Policy DM 28. Planning applications would therefore need to include an assessment of disturbance including noise, lighting or visual intrusion and other adverse effects on the integrity of the European designated SPA/Ramsar site both during construction and throughout the operation of the site. Planning permissions should ensure that necessary mitigation is provided as necessary to address these issues. Adequate space for the existing high voltage power lines will also need to be maintained. An archaeological assessment will determine the importance of the area and, if necessary, make proposals for mitigation.

Neatscourt, Queenborough, Isle of Sheppey

6.2.4 Situated on the A249 to the east of Queenborough and forming part of the Queenborough and Rushenden regeneration area (Policy Regen 2), there remains 137,000 sq. m available for 'B' Use Class Order uses. Recent development has seen the emergence of the area as a retail centre to complement Sheerness town centre, but it is important that any further proposals for retail uses do not undermine the role and retail functioning of the town and other local centres or the role of this site in meeting the Island's (and Swale's) industrial floorspace needs for the plan period.

6.2.5 Development is expected to accord with the Development Framework prepared for the Queenborough and Rushenden Master Plan adopted in 2010 (as amended). Planning applications will address their impacts on landscape, any necessary mitigation and compensation for loss of grazing marsh (some of

6 Land allocations for new development

which has already been implemented), protection of neighbouring residential uses and the retention and protection of existing flood defences. An archaeological assessment will determine the importance of the site, for instance its counter-wall, and propose mitigation if needed.

Policy A 1

Existing committed employment locations

Planning permission will be granted for land allocated for 'B' class employment uses, as shown on the Proposals Map, at:

1. [Ridham and Kemsley, Sittingbourne](#); and
2. [Neatscourt, Isle of Sheppey](#).

Development proposals will accord with the approved development briefs for the sites and satisfactorily address landscape, biodiversity, archaeological and existing power line issues.

6.3 Proposed employment allocations

Land south of Kemsley Mill, Sittingbourne

6.3.1 Located to the south of Kemsley Paper Mill and to the east of Swale Way, some 3.3 ha of land is allocated for a mix of 'B' use class employment uses to achieve up to about 8,000 sq m of floorspace. The site's main strengths are its good local road access to the A249 and proximity to existing employment activities. Access can be gained from Swale Way, but a transport assessment will determine the extent of contributions needed for improvements to the junction at the Grovehurst Interchange.

6.3.2 Due to the open and exposed landscape across Milton Creek and the Church Marshes country park, this is a highly visible landscape with distinctive landscape features with nearby land also of international, national and local importance to biodiversity. Visual impacts are lessened to some degree by the backdrop of the imposing mill complex, but with the allocation located on a slope leading down toward Milton Creek, a poorly executed scheme could result in adverse landscape and heritage impacts due to the site's prominent position and elevation.

6.3.3 At the foot of the slope, a short distance from the allocation, is the Castle Rough Scheduled Monument, a medieval moated settlement site, consisting of a waterlogged moat defining an island on which the buildings of a manor would have stood. The site is of particular importance because although its medieval buildings no longer exist above ground, most of the remainder of the site survives to a great extent intact and has preserved a wide range of features. Its significance is also informed by the physical evidence within the immediate area and the wider landscape with its interface between higher ground, the marshes, and estuary beyond.

6.3.4 Development of the site will need to be led by its landscape and heritage context with its siting, massing, design (inc. external lighting) and landscaping needing to minimise and mitigate visual impacts as far as possible, alongside the preservation and enhancement of the setting of the monument. The site is also crossed by National Grid's high voltage overhead power lines, the location of which should be fully considered. Together these matters will ultimately determine the amount of employment floorspace that is able to be brought forward.

6.3.5 Although separated by a road, visual impacts, and potentially, noise could adversely affect nearby residents and the design, layout, landscaping and uses proposed will seek to minimise these to acceptable levels.

6.3.6 Policies DM 19-DM 21 encourage the use of sustainable design and construction, renewable energy and sustainable urban drainage, all of which appear particularly appropriate to this location and proposal.

6.3.7 It is likely that it will not be possible to remove all adverse impacts on landscape and heritage, but there are opportunities for adjacent land in the same ownership to form a 15.5 ha extension to the Church Marshes country park which could offer wider landscape and biodiversity enhancements and increase natural and semi-natural greenspace for the town. It should also enable heritage assets to be improved with better management, access and interpretation to Castle Rough, leading to an enhancement in the condition and appearance of the monument itself. This might be achieved through clearance of vegetation, and better access to it (signage and paths) so that the monument is better revealed, appreciated and understood. Given the proximity of the allocation to the monument, there is also potential for associated archaeological deposits to be revealed and therefore archaeological investigation to precede development should take place in accordance with relevant guidance and Policy DM 34.

6.3.8 Provided that development is able to facilitate the transfer of this land, alongside any physical improvements necessary to secure access and enhancements to landscape, heritage and biodiversity, the overall benefits of the proposals should outweigh any remaining adverse impacts. However, it will not be possible to determine this without further assessment at the planning application stage. A Habitats Regulations Assessment may also be required to determine any impacts arising to the Special Protection Area.

6.3.9 Given the context of the site and the issues arising, use of the Council's Design Panel is strongly advocated as a means to ensure a development that is successfully integrated with its surroundings.

Policy A 2

Land south of Kemsley Mill

Planning permission will be granted for employment uses (use classes B1, B2 or B8) on land to the south of Kemsley Mill, as shown on the [Proposals Map](#). Development proposals will:

1. Bring forward proposals to minimise the potential visual, heritage and residential amenity impacts of development through high quality integrated landscape-led design, including the use of the Council's Design Panel;
2. Facilitate an extension to the Church Marshes country park to bring about enhancements to the significance, condition, appearance and appreciation of the wider landscape, biodiversity and heritage of the area;
3. Achieve the preservation and enhancement of the Scheduled Monument (including its setting) and undertake archaeological evaluation of the site in accordance with Policy DM34 and respond accordingly;
4. Contribute toward improvements to highway infrastructure where identified by a transport assessment; and
5. Bring forward sustainable design and construction, renewable energy and sustainable urban drainage measures in accordance with Policies DM 19-DM 21.

Land at West Minster, Sheerness

6.3.10 This 2.5 ha site at West Minster Sheerness is allocated for 7,500 sq m of 'B' use class employment uses. The site occupies an important location on the A249 Trunk Road and on the approach to Sheerness. The site has been reviewed since its allocation in the 2008 Local Plan and it remains the Council's view that this site is suitable for a range of employment uses. However, its size has been reduced to avoid biodiversity and archaeological concerns and to limit its visual intrusion into the open countryside. The

6 Land allocations for new development

standard of layout/design and landscaping associated with the proposal will be required to respond to and reflect its prominent location on the approaches to Sheerness. The archaeological potential of the site should be assessed and any impacts arising mitigated.

Policy A 3

Land at West Minster, Sheerness

Planning permission will be granted for employment uses (use classes B1, B2 or B8) on land at West Minster, as shown on the [Proposals Map](#). Development proposals will:

1. Achieve a high standard of design and landscaping in recognition of the site's prominent location;
2. Financially contribute toward improvements to infrastructure where identified by a transport assessment;
3. Assess, minimise and mitigate impacts upon biodiversity and archaeology.

Land at Cowstead Corner, Queenborough

6.3.11 Located between the A249, Cowstead Corner and the Neatscourt employment allocations to the west are two sites of 1.36 ha and 1.6 ha respectively. The sites form part of the wider regeneration area for Queenborough-Rushenden identified by Policy Regen 2. They present an opportunity to modestly extend and round off the existing Neatscourt employment allocation.

6.3.12 The northern site could be appropriate for hotel use (use class C1), perhaps for around 20 bedrooms. In addition to meeting a need for accommodation on the Island, the design of the building would need to reflect this prominent gateway 'first impressions' location on the rising ground at the edge of the marshes. The high quality design needed for this location will point to a better quality hotel being provided in a high quality landscaped environment, as opposed to that which would normally be achieved by the budget hotel sector. The limited size of the site may present challenges to achieving this and as such, the Council will encourage use of its Design Panel process. Archaeological evaluation and mitigation of impacts should also be undertaken at this site.

6.3.13 Planning permission will not be granted for roadside services such as truck stop facilities, refuelling facilities and similar services in this prominent location.

6.3.14 To achieve the maximum developable area, access to the site should ideally be achieved from the existing employment allocation to the west. Should that not be possible, then a transport assessment will need to additionally demonstrate that a safe access can be achieved in what would be a location close to the roundabout.

6.3.15 For the land to the south of the A249, there is likely to be only limited potential to extend the employment allocation for 'B' use class uses for up to 5,600 sq m. Other than potentially being able to provide some additional capacity for the existing building plot to the west, it is likely that the majority of the site would be required for landscaping, given its prominent location.

6.3.16 Although these sites lie outside the current extent of Neatscourt employment area, they will closely relate both physically and visually to development which is planned there. As such, developers bringing forward proposals are advised to have regard to the 2010 approved Masterplan Supplementary Planning Document (as amended) to ensure that complementary schemes are proposed.

Policy A 4

Land at Cowstead Corner, Queenborough

Planning permission will be granted for employment uses on sites north and south of the A249 at Cowstead Corner, as shown on the [Proposals Map](#). The northern site is allocated for an hotel (use class C1), whilst the southern site for use classes B1, B2 or B8. Development proposals will:

1. North of the A249, satisfy the Council that the design and landscape framework for the site and buildings reflect their prominent gateway location and does not include facilities associated with roadside services;
2. South of the A249, secure vehicle access from the adjacent employment land and achieve significant landscaping reflecting the site's prominent gateway location;
3. Undertake archaeological evaluation and mitigation of impacts prior to development of either site; and
4. Be complementary to the provisions of the Queenborough/Rushenden Masterplan SPD.

Land at Whiteway Road, Queenborough

6.3.17 The 2008 Local Plan allocated two parcels of land amounting to 14.1 hectares, both within the ownership of Aesica Pharmaceuticals and capable of accommodating about 49,350 sq m for the expansion of the company. The larger site is located immediately east of Whiteway Road, and the other is south of West Minster. Both sites, which consist of wet grazing marsh, are included as part of the Diggs and Sheppey Court Marshes Local Wildlife Site. On the larger site, the grazing marsh was previously considered by Natural England to be of equivalent value to similar habitat within Sites of Special Scientific Interest elsewhere in the North Kent Marshes. The land also falls within a Local Landscape Designation and the important local countryside gap between Sheerness, Queenborough and Minster-Halfway. It is also subject to tidal flooding.

6.3.18 A 2002 detailed development brief was approved by the Council following the preparation of considerable evidence to show that environmental impacts could be minimised to acceptable levels and this supported the allocation of the site specifically and solely for development in conjunction with Aesica's operations. Given the importance of this company to the local economy, these matters were considered to represent an overriding need at that time.

6.3.19 For this Local Plan to support the continuation of this allocation, the previous evidence would need to have been updated, including that necessary to satisfy the requirements of the Habitat Regulations Assessment. This has not been provided.

6.3.20 Should the landowners wish to progress development of the site, depending on its timing, this would be a matter for a future Local Plan. However, given that this is a multi-national pharmaceutical company, expansion needs may arise unexpectedly. If this occurs ahead of a Local Plan review, prompting the need for a planning application, the Council will consider the proposals in the context of updated evidence, having full regard to national planning policy, local plan policies CP 1, ST 1, ST 3 and ST 6, together with development management policies for the natural and historic environments (inc. the separation of settlements).

Land at Selling Road, Faversham

6.3.21 This site comprises 1.8 ha for employment purposes of land and buildings situated on the western side of Selling Road and to the south of the vacant Macknade Garden Centre. The site is a unique and attractive opportunity for a range of small-scale employment uses appropriate to this semi-rural location. These could complement the uses already established on the eastern side of Selling Road, though new

6 Land allocations for new development

retail would need to be very carefully scrutinised given the site's location relative to the town centre. Given the modest scale of the employment envisaged, the site could achieve some 6,300 sq m of new 'B' use class employment floorspace.

6.3.22 Development will mainly comprise conversion of the existing buildings on the site, although where considered appropriate, the Council will permit some new build. Any such development will need to be of the highest design standard and respect the traditional vernacular of the existing buildings, especially those identified as heritage assets. Likewise, the site's current relationship with the open countryside to the south would benefit from the creation of a new landscaped boundary. Future planning applications should also include an archaeological assessment, which, if required, will lead to proposals for mitigation. The conversion of buildings will also require an assessment of any wildlife that may be occupying them.

6.3.23 Current access to the site is restricted, so uses that attract high volumes of traffic would not be appropriate without improvements of the type planned for in connection with nearby proposed development which will secure a safe junction with the A2 (unless such improvements have already been made).

Policy A 5

Land at Selling Road, Faversham

Planning permission will be granted for employment ('B' use class) on land and buildings to the west of Selling Road, Faversham, as shown on the [Proposals Map](#). Development proposals will:

1. Comprise uses appropriate in scale to a semi-rural location;
2. Predominantly comprise the sensitive conversion and re-use of existing buildings;
3. Achieve a high built and integrated landscape design standard, respecting and reflecting the traditional vernacular of existing buildings and by securing a new landscaped edge to open countryside;
4. Prepare a Transport Assessment and implement any highway and other transportation improvements necessary; and
5. Assess, minimise and mitigate potential adverse impacts upon biodiversity and archaeology.

Land at Graveney Road, east of Faversham

6.3.24 A 2.0 ha site north of Graveney Road and adjoining an existing employment area is allocated for employment purposes. The site could provide some 7,000 sq m of floorspace suitable for B1, B8, or possibly B2 use class uses.

6.3.25 There are constraints to development here arising from its topography and the resulting need to place new buildings below existing site levels so as to reduce visual impacts on the wider open landscape around it. This will be possible through access to the site being secured via land to the west. Any remaining visual impacts will be mitigated by the retention and significant enhancement of existing vegetation, which may require use of some adjacent land.

6.3.26 It is highly likely that safeguarded minerals are present at this site and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.3.27 Achieving these objectives is likely to be best secured through a comprehensive approach with the redevelopment of the adjacent area subject to Policy A 15. A Transport Assessment is likely to be required and some localised improvements could be required.

Policy A 6

Land at Graveney Road, east of Faversham

Planning permission will be granted for employment 'B' use class uses on land at Graveney Road Faversham, as shown on the [Proposals Map](#). Development proposals will:

1. Secure access to the site via land to the west, whilst maintaining/providing access arrangements suitable for existing businesses and for the appropriate development of land at Policy A 15;
2. Undertake a Transport Assessment and undertake any highway and other transportation improvements necessary;
3. Undertake archaeological evaluation and mitigation of impacts prior to development; and
4. Minimise adverse impacts upon the landscape and surrounding countryside to acceptable levels and landscape the site, using, if required, adjacent land to form an appropriate and attractive urban edge to the town.

6.4 Existing committed housing location

Thistle Hill, Minster

6.4.1 This site, on the southern side of Minster, has an outline planning permission, with development having come forward in detailed phases since the 1990s. The site has been through a number of development brief and Local Plan reviews which have led to a steady increase in the number of dwellings expected to come forward. The Strategic Housing Land Availability Assessment 2014/15 indicates that the undeveloped area still has sufficient capacity to accommodate 473 dwellings, bringing the total completed at this location to around 1,800.

6.4.2 Development will proceed in accordance with the approved development brief and applications for the remaining phases will include an archaeological assessment to determine the site's importance and, if needed, proposals for mitigation. Subject to confirmation by a Transport Assessment, financial contributions will also be sought to improve traffic conditions on the A2500 through to the A249. Financial contributions to increased capacity of community services will also be required, notably to primary schools and Sheppey Community Hospital, in accordance with the Implementation and Delivery Schedule.

6.4.3 Of the remaining developable area, in accordance with Policy DM17, the amount of open space provided will be sufficient to meet the generated need for some 6.9 ha of open space. Some 1.2 ha of sports provision is also required, whilst contributions to formal play facilities will be needed. Actual amounts and the type of open space will be determined at the planning application stage, in the context of the specific details of the proposed development and having regard to the approved development brief. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

Policy A 7

Thistle Hill, Minster

Planning permission will be granted for land allocated for housing, as shown on the [Proposals Map](#), at Thistle Hill, Minster, Isle of Sheppey. Development proposals will accord with the approved development briefs and satisfactorily address archaeological issues and provide the infrastructure needs arising from the development, including those identified by the Local Plan Infrastructure and Delivery Schedule (including, if justified by a transport assessment, a financial contribution toward improvements to the A2500). Proposals will also ensure that, through both on and off site measures,

6 Land allocations for new development

any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy.

6.5 Proposed housing allocations

Stones Farm, Sittingbourne

6.5.1 Approximately 18ha of land is allocated at Stones Farm for residential development comprising 550-600 dwellings and open space, as an eastward extension to the built confines of Sittingbourne. The site is located on sloping farmland between the railway line and the A2, part of a shallow valley with the Tonge Mill and stream conservation area (also proposed as Local Green Space by Policy DM 18).

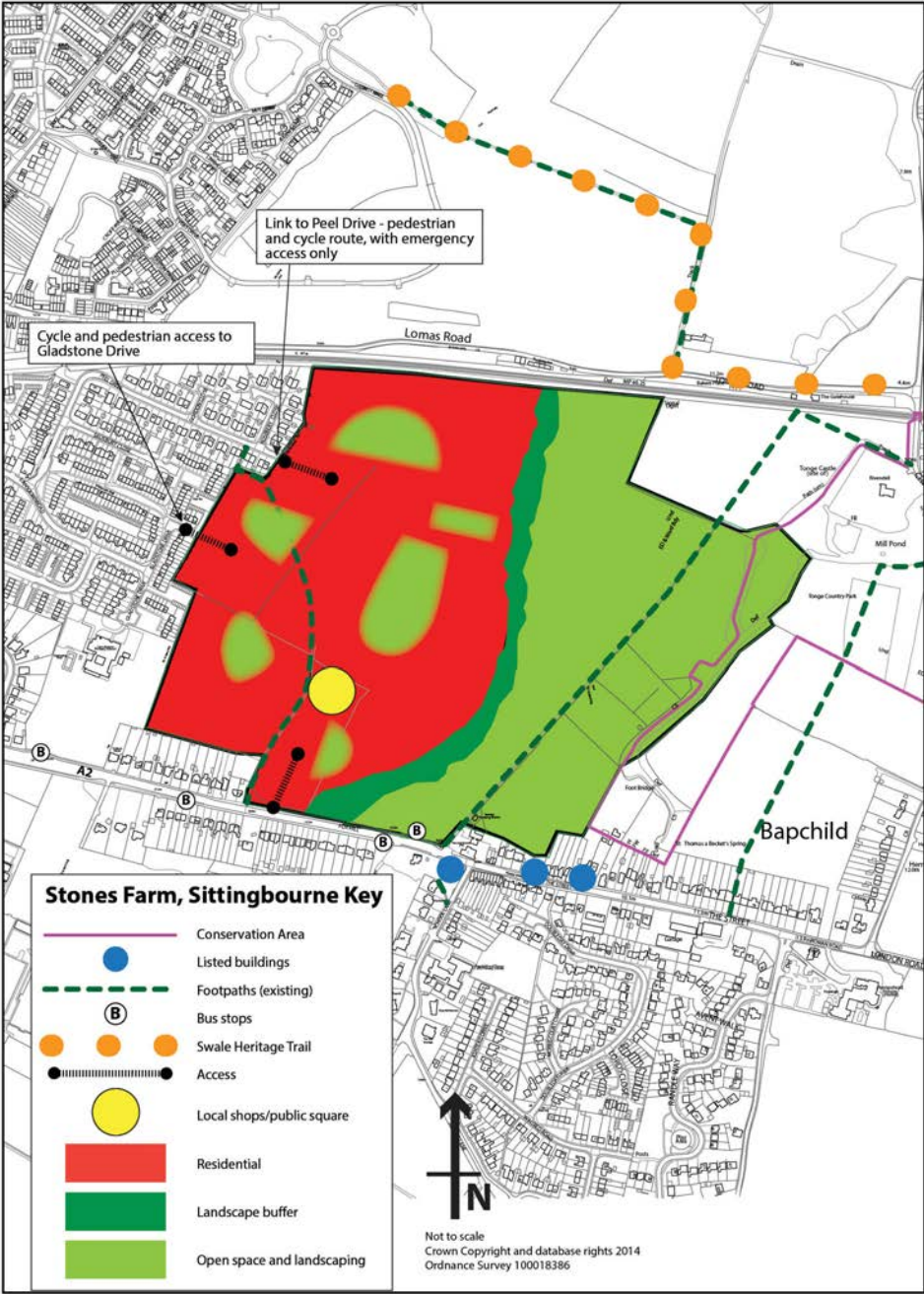
6.5.2 A Development Brief for the site was adopted as a Supplementary Planning Document in 2011 following the earlier allocation of the site in 2008. An adjacent area of 15ha of open space was also allocated at that time, in recognition of the character and sensitivity of the shallow valley between Sittingbourne and Bapchild/Tonge and the need to safeguard the separation between Sittingbourne and Bapchild. These allocations have been combined to form a single allocation for the whole site, with the eastern part of the site forming part of an important local countryside gap subject to Policy DM 25. Part of the allocation is included within Policy AS 1 which provides for a safeguarded search area for the proposed Sittingbourne Northern Relief Road. This is so that all future potential options for completing this road to the A2 can be considered.

6.5.3 A mix of dwellings will be sought in accordance with Policy CP 3, including those for affordable housing.

6.5.4 It is highly likely that safeguarded minerals are present at this site and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.5.5 A transport assessment with any planning application will determine the need and timing for any improvements to the transport network and the phasing of development relative to completion of the Sittingbourne Northern Relief Road. A financial contribution toward this road will be sought if confirmed by the transport assessment.

6.5.6 Development will take place in accordance with the adopted Supplementary Planning Document, which sets out design principles, the point of access from the A2 and the distribution of open space, demonstrating how the development will be integrated with the landscape buffer and the proposed public open space beyond. As well as limiting the impact of development on the landscape, the proposed landscape buffer will form a significant soft edge to the new eastern edge of Sittingbourne that provides the opportunity to achieve a net gain in biodiversity and an increase in the natural and semi-natural greenspace overall for the town and Bapchild. This form of open space will also be required to offset potential recreational pressures on European Wildlife Habitats. Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.



Map 6.5.1 Development concepts at Stones Farm, Sittingbourne

6.5.7 In accordance with Policy DM 17, the amount of open space provided will be sufficient to meet the generated need for some 8 ha. Some 1.4 ha of sports provision is also required, whilst contributions to formal play facilities will be needed. Actual amounts of open space and the type will be determined at planning application stage, in the context of the specific details of the proposed development and having regard to the approved Development Brief. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6 Land allocations for new development

Policy A 8

Stones Farm, Canterbury Road, Sittingbourne

Planning permission will be granted for 550-600 dwellings, together with open space and landscaping at Stones Farm, Sittingbourne, as shown on the [Proposals Map](#). Development proposals will:

1. Accord with the adopted Development Brief Supplementary Planning Document;
2. Achieve a design and layout reflecting the prominent and sensitive position of the site as the new eastern edge of Sittingbourne;
3. Provide open space to meet the needs of residents, including the provision of 15 ha of land to the east of the developed area so as to maintain the separation between Sittingbourne and Bapchild;
4. Achieve pedestrian and cycle links to existing residential areas;
5. Provide for a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
6. Through an integrated landscape strategy achieve a green buffer to the development and through landscaping and the management of open space, provide natural and semi-natural greenspace and achieve a net gain in biodiversity overall;
7. Provide the infrastructure needs arising from the development, including those identified by the Local Plan Infrastructure and Delivery Schedule (including, if justified by a transport assessment, a financial contribution toward the Sittingbourne Northern Relief Road); and
8. Ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy.

Land at Crown Quay Lane, Sittingbourne

6.5.8 Extending to 18.2 ha, land is allocated at Crown Quay Lane for residential development, with a significant area of open space so as to achieve land for recreation and provide for mitigation arising from the site's constraints.

6.5.9 The site predominantly comprises a cleared former industrial estate, with some land and buildings still in use. Its northern boundary is an important frontage to Milton Creek, whilst its southern boundary adjoins Eurolink Way and other employment uses. Sittingbourne Retail Park and the Eurolink Industrial estate border the site to the west and east.

6.5.10 It is Milton Creek that provides the most significant opportunity here. It is one of Sittingbourne's greatest assets – a green corridor of water, reeds, open spaces and pathways linking the town to the wider Swale estuary marshes. With imagination and innovation, the landscape toward the head of the creek offers a potentially stunning waterfront setting for a new neighbourhood close to the town centre.

6.5.11 Development will incorporate an integrated landscape strategy to achieve a framework for the site. This will be informed by the Greening the Gateway Kent and Medway Green Cluster Study for Milton Creek. It will create public access to the creek side and enhance connectivity between the site and the northern bank of the creek by providing a landmark footbridge to the Saxon Shore Way footpath. Tree lined pedestrian/cycle links to this bridge should be secured through the development and to adjacent roads at Crown Quay Lane, Eurolink Way and Milton Road/Mill Way. The Council will also expect the developer to use its endeavours to secure pedestrian access to the west of the site into the Sittingbourne Retail Park.

6.5.12 The frontage appearance of the new development and spaces provided at the creek are important, given the strong views of the site from Gransdens Wharf, Craft Marsh and Milton Creek Country Park on

the opposite bank. Development of the site should recognise the role it will play in creating a new regenerated approach to the town from the north with architectural statements that create landmark views of the site and achieve a high quality foreground in views of the town centre. Whilst some taller buildings may be appropriate, these will need careful location and design as the prevailing backdrop to Sittingbourne is generally of lower rise buildings. Care will be needed not to obscure this backdrop and important views, including those of St. Michael's Church. Street tree planting in Crown Quay Lane and Eurolink Way will also significantly raise the standard of the environment on its approaches from the town centre. At all stages, including during preparation of the Masterplan/development brief, use of the Council's Design Panel will be strongly recommended.

6.5.13 The northern and eastern parts of the site are at risk of flooding. The Environment Agency have agreed that land raising could take place to enable residential development to be above the 1:200 year flood risk level, taking into account climate change and freeboard. A site flood risk assessment will be required in accordance with Policy DM 21 in order to ensure that flood risk is not increased elsewhere at adjacent sites. The assessment should also examine the scope to open up historic tributaries, including the Bourne stream. Opportunities should also be taken to bring the qualities of the creek (views, vegetation and water) back into the development area. The use of sustainable urban drainage within the development will also be sought.

6.5.14 Given the desirability, in terms of urban design, public access, open space and biodiversity, of maintaining and creating a green and restored frontage to the creek, a future planning application/development brief will need to ensure sufficient space is made available to fulfil these roles with development set back from the creek frontage. This will need to include a 16m access corridor for the Environment Agency along the Creekside.

6.5.15 Within this 'set back' area and elsewhere across the site, open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 9.5 ha. Some 1.7 ha of sports provision is also required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development and having regard to the approved Masterplan/Development Brief. In the case of sports pitch and formal play facilities, it should be possible to make this provision on site, however, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.5.16 Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28. The proposed allocation is located to the south of the Milton Creek Local Wildlife Site. Development proposals should also assess the likely impact upon the Local Wildlife Site via an ecological assessment and, if necessary, propose avoidance, mitigation and enhancement measures to prevent any adverse impacts from occurring through increased public access from the development site.

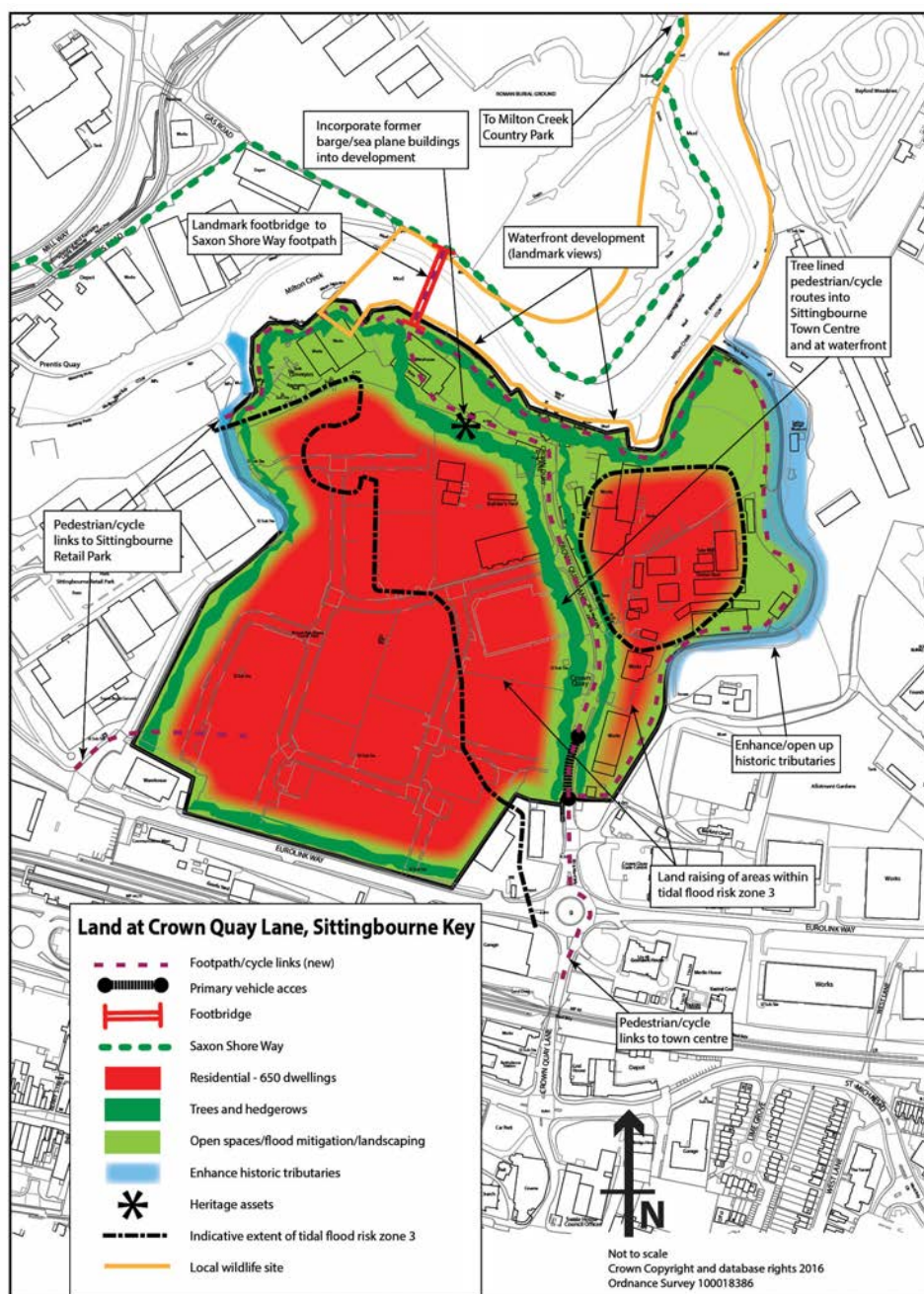
6.5.17 Taking into account the above components, a site area of some 15 ha is potentially available for development across several ownerships which through use of medium to higher densities could potentially accommodate a minimum of 650 dwellings (subject to securing high quality design and an appropriate mix) with a range of housing types and an emphasis upon family homes in accordance with Policy CP 3, including those for affordable housing.

6.5.18 Alongside new housing, the Council will also give consideration to other mixed uses, provided that they are in accordance with Policies DM 1 and DM 2 and that their contribution does not reduce the amount of housing for the site to levels below that indicated by the Local Plan.

6 Land allocations for new development

6.5.19 With several owners, including a number with currently occupied sites, it will be important that an overall Masterplan/development brief for the site is prepared, following consultation with relevant stakeholders, including the Council and other landowners within the allocation. This document shall also indicate the phasing of development in recognition that some parts of the site will come forward earlier than others. It will however be critical that a comprehensive approach to the delivery of all parts and components of the site is adopted by all parties.

6.5.20 A Transport Assessment will be required to determine transport impacts and the improvements necessary to address them. This will also inform an assessment of impacts upon air quality objectives in St. Paul's and East Street, both of which are declared Air Quality Management Areas. Improvements to the local network may be required at the junction of Crown Quay Lane and Eurolink Way and at Mill Way through to St. Paul's Street.



Map 6.5.2 Development concepts at Crown Quay Lane, Sittingbourne

6.5.21 Other contributions to infrastructure will be required in accordance with the Implementation and Delivery Schedule, these are likely to include the expansion of capacity at primary schools, improvements to Sittingbourne library and community learning and skills and youth services in Sittingbourne. A particular issue needing to be addressed are the increased demands on primary health services. There are a number of options that will need further exploration, which may involve contributions toward health facilities as part of The Bell Centre redevelopment, the expansion of an existing surgery, or provision of a new surgery on the Crown Quay Lane site itself.

6.5.22 Potential contamination arising from historic industrial activities will need to be made safe for residential development to take place. Where existing industrial uses are to be retained or adjoin the site, a high standard of residential amenity will be achieved.

6.5.23 An assessment of local non-designated heritage assets will be required, including that associated with former barge and sea-plane construction. Where possible, they should be incorporated into the development, perhaps as part of any community facilities that may be needed. An archaeological assessment is also likely to be required.

Policy A 9

Land at Crown Quay Lane, Sittingbourne

Subject to securing high quality design and an appropriate mix, planning permission will be granted for a minimum of 650 dwellings, open space and habitat creation at Crown Quay Lane, Sittingbourne, as shown on the [Proposals Map](#). Development proposals will:

1. Accord with a Masterplan/Development Brief (developed through stakeholder consultation, including the Borough Council and Swale Design Panel), which shall demonstrate a comprehensive approach to the bringing forward of the whole allocation;
2. Achieve high quality design befitting the prominent position of the site on Milton Creek and in important views;
3. Restore and enhance land on the creek frontage to provide open space and a creekside path to meet the needs of residents, mitigate flood risk (if required) and create creekside biodiversity habitats;
4. Incorporate an integrated landscape strategy that will create a strong landscaped framework of open spaces, habitat retention and creation and planting, including the use of tree lined streets within the development and at Crown Quay Lane and Eurolink Way;
5. Achieve pedestrian/cycle links to the town centre and pedestrian links to the Sittingbourne Retail Park, Milton Creek and its Country Park (via a landmark bridge);
6. Ensure that, through both on and off site measures, any significant adverse impacts on local wildlife sites are mitigated in accordance with Policy DM 28. In the case of such impacts upon European designated sites, these will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
7. Undertake flood risk assessment in accordance with Policy DM 21 to ensure that flood risk is not increased at adjacent sites and to bring forward proposals that create and utilise water features (inc. use of sustainable urban drainage) within the development;
8. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
9. Be accompanied by a Health Impact Assessment in accordance with Policy CP 5, which shall also include an assessment of the impacts on residential areas from adjacent commercial uses;
10. Assess and respond to and mitigate impacts on any heritage assets;
11. Undertake a transport assessment and implement any highway and other transportation improvements arising from the proposed development;

6 Land allocations for new development

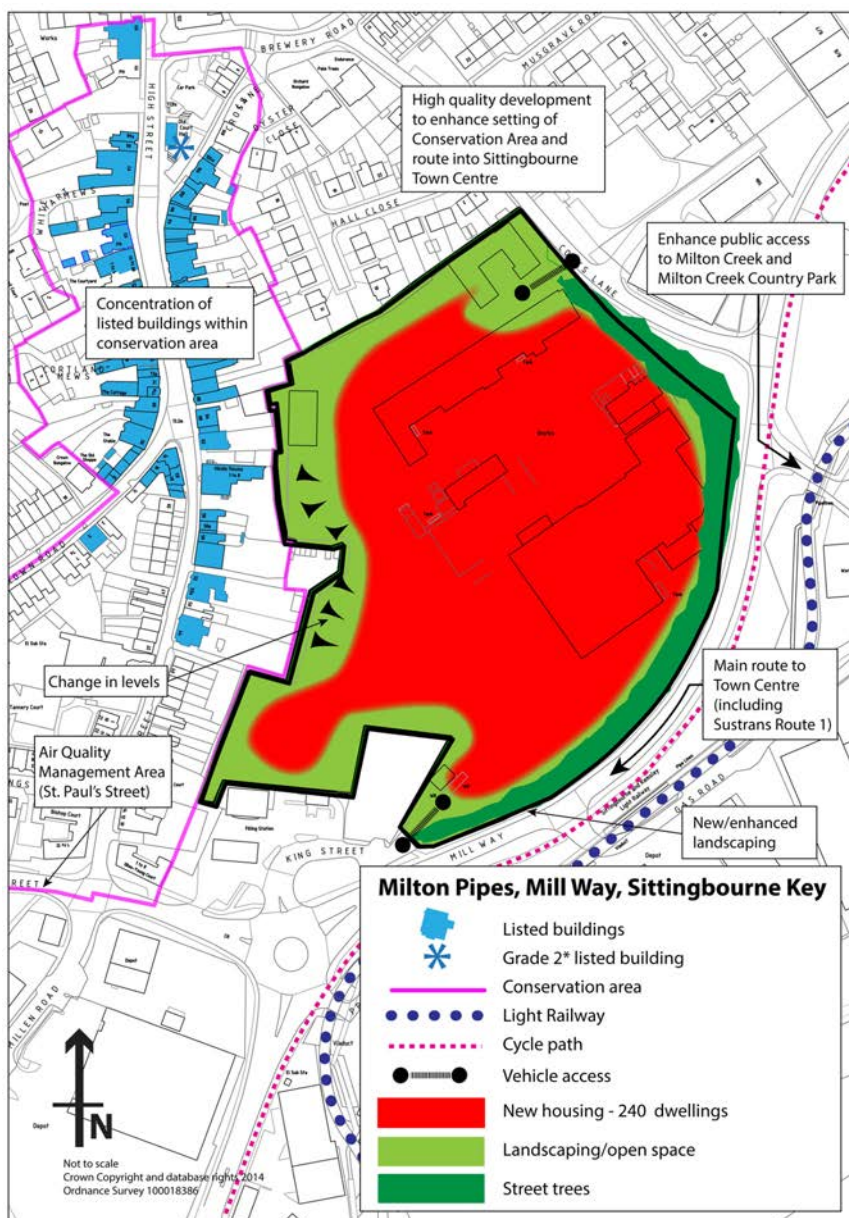
12. Assess impacts upon and ensure that air quality objectives are not compromised; and
13. Provide infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule, in particular, health facilities.

Milton Pipes, Mill Way, Sittingbourne

6.5.24 At the Milton Pipes industrial site in Mill Way, 4 ha of land is allocated for residential development which will come forward once the current occupier has relocated to its second site within the town. The site fronts Mill Way, St. Paul's Street and Cooks Lane and is set behind Milton Regis High Street, a conservation area. This historic area occupies an elevated position, with a significant change in levels down to the western boundary of the Milton Pipes site. This is a prominent site on one of the main routes to and from the town centre. The environment here is compromised by traffic and poor quality frontages to development.

6.5.25 Given the site's prominent location on the approaches to the town centre, high quality development that enhances the frontage will be required, whilst respecting the adjacent conservation area, including views of the roof-scape of the buildings there. Development will be led by an integrated landscape strategy which will provide a structure for the site that will include open space and street tree planting that will require development to be set back from Mill Way. Given the current previously developed state of the site, through use of landscaping and open space, it should be possible to achieve a net gain in biodiversity overall. The site could yield 240 dwellings, with a range of housing types with an emphasis upon family homes in accordance with Policy CP 3.

6.5.26 As a consequence of this busy location, nearby St. Paul's Street has been designated an Air Quality Management Area and an assessment of the scheme's impacts on air quality objectives will be required. A Transport Assessment will also confirm housing numbers ahead of the completion of the Sittingbourne Northern Relief Road (together with any financial contribution toward it if required), as well as other transport improvements that may be necessary.



Map 6.5.3 Development concepts at Milton Pipes

6.5.27 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 3.5 ha. Some 0.62 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.5.28 As this site lies close to Milton Creek, the Saxon Shore Way and the Country Park, linkages should be made to these important assets in accordance with the CLG and Greening the Gateway Kent and Medway Green Cluster Study for Milton Creek. For example, public access to the creek side should be enhanced and further connectivity provided by a contribution toward the proposed landmark footbridge from the northern bank of the creek to the development site at Crown Quay Lane (Policy A 9). Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.

6 Land allocations for new development

Policy A 10

Milton Pipes, Mill Way, Sittingbourne

Planning permission will be granted for a minimum of 240 dwellings at Milton Pipes, Mill Way, Sittingbourne, as shown on the [Proposals Map](#). Development proposals will:

1. Be led by an integrated landscape strategy that will include a substantial landscaped edge to Mill Way that will include street trees and open space with the objective overall of achieving a net gain in biodiversity and minimising impacts on European wildlife habitats;
2. Achieve a design and layout that enhances the quality of the environment in Mill Way and St. Paul's Street and safeguards the views and setting of the Milton Regis Conservation Area;
3. Enhance pedestrian and cycle links to the town centre, adjoining residential areas and to Milton Creek, including making a contribution toward the provision of the proposed landmark footbridge to the Crown Quay Lane housing allocation (Policy A 9);
4. Proposals will ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
5. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
6. Undertake a transport assessment and implement any highway and other transportation improvements arising from the proposed development;
7. Assess impacts upon and ensure that air quality objectives are not compromised; and
8. Provide infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule.

Plover Road, Minster, Isle of Sheppey

6.5.29 Although adjacent to the wider Thistle Hill community, the Plover Road site does not form part of that development. Extending to 3 ha, it is located well within the built-up area of Minster close to existing facilities and is envisaged as providing 97 dwellings, with a range of housing types in accordance with Policy CP 3.

6.5.30 There will be a need to create an attractive landscaped frontage to Parish Road, whilst an archaeological assessment will determine the site's importance and, if needed, proposals for mitigation.

6.5.31 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 1.4 ha. Some 0.25 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at the planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.5.32 Subject to a transport assessment, contributions may be required to address capacity issues in Barton Hill Drive and on the A2500. Financial contributions to increased capacity of community services will also be required, notably to local primary schools and Sheppey Community Hospital, in accordance with the Implementation and Delivery Schedule.

Policy A 11

Land at Plover Road, Minster

Planning permission will be granted for a minimum of 97 dwellings at Plover Road, Minster, as shown on the [Proposals Map](#). Development proposals will:

1. Create an attractive landscaped frontage to Parish Road;
2. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
3. Assess and undertake any mitigation needed for impacts upon archaeology;
4. Prepare a Transport Assessment and implement any highway and other transportation improvements arising from the proposed developments implemented;
5. Provide infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule, notably for education and health provision; and
6. Ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy.

Land to the west of Barton Hill Drive, Minster

6.5.33 This 25 ha site is located on the western edge of the built up area of Minster. The northern boundary adjoins the Isle of Sheppey Academy and part of Parsonage Chase, the eastern boundary adjoins Barton Hill Drive, and the southern part of the site adjoins the A2500 Lower Road. The site comprises open arable farmland with a visually exposed and undulating landform which gently rises from Lower Road, before steepening to more of a crest at the north western boundary of the site (close to the Sheppey Academy). Although much of the existing residential urban edge is mostly hidden by this landform, the western urban edge of Minster is fairly prominent, whilst the land along Lower Road is very open arable farmland.

6.5.34 The site is in a relatively sustainable location to the south-west of the centre of Minster and within walking distance of most of its services and has the potential to help meet the Borough's future growth needs close to the strategic road network, public transport choices and the other services at the western end of the Island.

6.5.35 The site is allocated for some 620 dwellings, together with open space, landscaping and transport improvements. The site should bring forward a range of housing types in accordance with Policy CP 3, as well as bringing forward affordable housing in accordance with Policy DM 8.

6.5.36 Landscape evidence notes the area as having a moderate sensitivity, with a moderate capacity to accommodate change. It notes the landscape is mostly rural, with an element of scenic quality because of the open, panoramic views available from and across the land (some of which are far reaching to the Kent mainland across the sensitive marshland landscapes to the south). There are, though, some urbanising influences from infrastructure routes and existing development. Given these issues, the Council will require the preparation and approval of a Masterplan/development brief for the site, whilst at all stages, use of the Council's Design Panel will be strongly recommended.

6.5.37 Given these landscape and visual sensitivities, it is important that the extent, form and scale of development respects the existing landscape character of the site and for it to be contained by and integrated into the wider landscape. This should be achieved by substantial woodland and strengthened hedgerow planting along the southern and western boundaries (including if necessary adjoining land) and by provision of broad green corridors and other natural green space within the development. It would also be important that the development respects the existing contours.

6 Land allocations for new development

6.5.38 Steps should also be taken to safeguard and appropriately manage an area of overgrown orchard to the rear of Parsonage Chase, a Biodiversity Action Plan (BAP) habitat. An ecological assessment will need to be submitted at the application stage to determine the extent and importance of habitats and species present and to make recommendations for their avoidance, mitigation and, where appropriate, compensation.

6.5.39 The development in the eastern part of the site could be a moderate to high density neighbourhood, with a distinct identity, focused around a network of green spaces and streets, open spaces and enclosed streets. The development in the southern and western parts of the site should be at a lower density with a more rural feel.

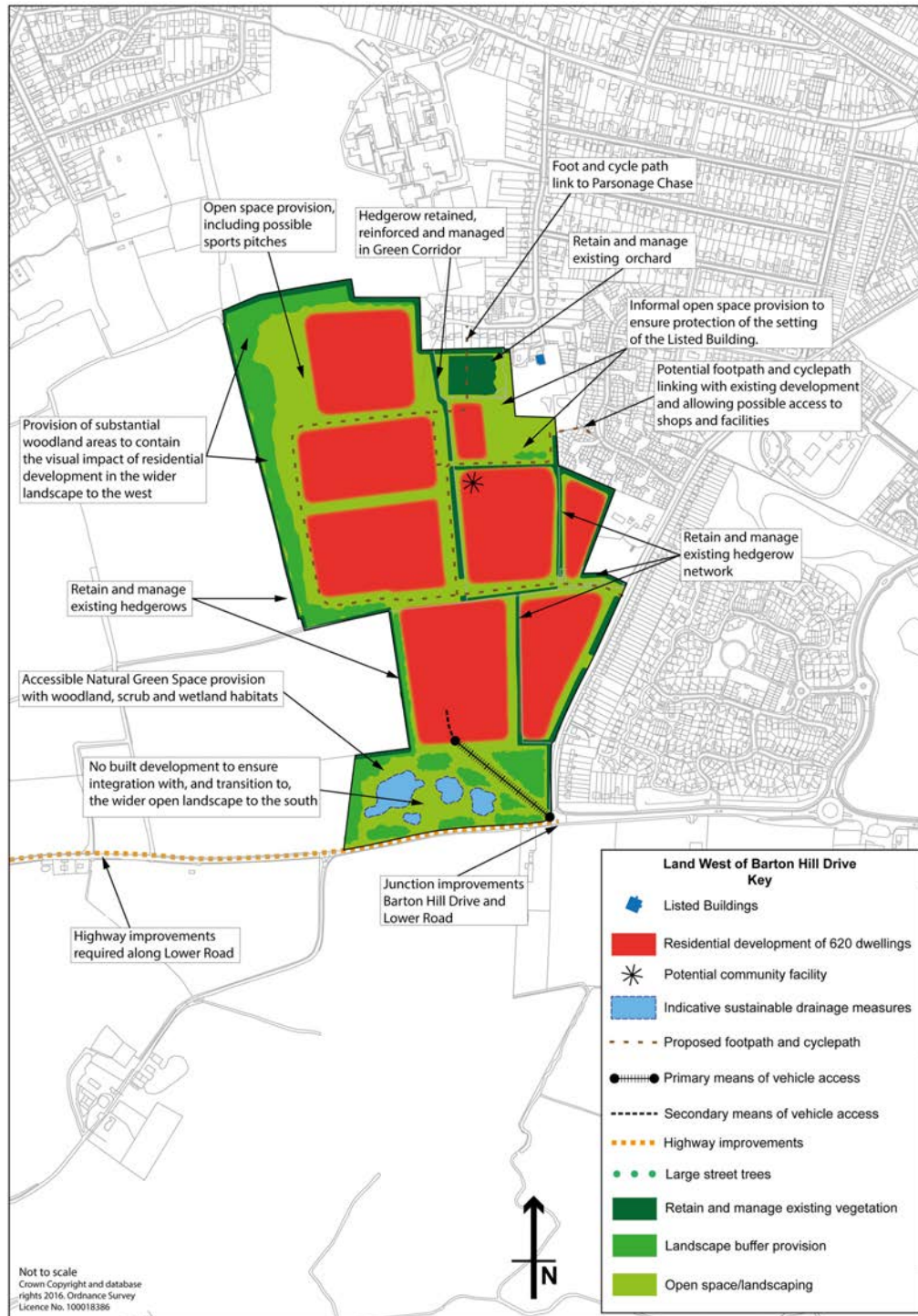
6.5.40 Opportunities should be taken to link the site with the wider footpath network and to establish pedestrian and cycle links between the existing and new residential areas; this may require third party land.

6.5.41 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 9.1 ha. Some 1.6 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, it should be possible to make this provision on site, however, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.5.42 Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28. Any planning application is likely to be supported by a wintering bird survey to confirm its use by bird species associated with SPA.

6.5.43 Adjoining the site is Parsonage Farm, a listed building, the setting of which should be conserved through use of landscaping and open space.

6.5.44 Primary vehicle access to the site would be from Barton Hill Drive at its junction with the Lower Road where a junction improvement will be necessary, whilst a secondary access will also be required from Barton Hill Drive further north. In order to bring this site forward, improvements would need to be both facilitated and made to the A2500 between the roundabout at Cowstead Corner and Barton Hill Drive, so as to address peak time queueing. Furthermore, a transport assessment should consider the likely impact on the Minster and Halfway Roads, whilst also considering the link capacity of the A249 and the nature of any improvement required here, and elsewhere as appropriate. Any improvements to these locations will also need to be funded by development. Although there is a bus stop adjacent to the east of the site, its frequency could be improved and development may need to support this with appropriate funding. It will also be important to encourage better rail patronage and a contribution may be sought toward improved facilities at Queenborough or Sheerness rail stations.



Map 6.5.4 Development concepts for land west of Barton Hill Drive, Minster

6.5.45 Parts of the west side of Barton Hill Drive do not have a footway, whilst there are currently also no pedestrian crossings to enable pedestrians to cross safely to access the site. These should be provided, whilst cycle and walking links to and from the site would additionally be required. There is also scope to link the site to Parsonage Chase, which would provide more appropriate pedestrian/cycle connectivity to nearby educational establishments. Cycle/pedestrian facilities on Lower Road will also need to be improved to Cowstead Corner with associated pedestrian crossing facilities.

6.5.46 Financial contributions to increased capacity of community services will also be required, including those within the Implementation and Delivery Schedule. These are likely to include for youth and community, learning and skills services on Sheppey, whilst notably contributions will be required to service increased capacity at primary schools and at Sheppey Community Hospital.

6 Land allocations for new development

Policy A 12

Land west of Barton Hill Drive, Minster

Planning permission will be granted for a minimum of 620 dwellings, including landscape, open space and transport improvements on land to the west of Barton Hill Drive, Minster, as shown on the [Proposals Map](#). Proposals shall accord with a Masterplan/development brief and these, together with planning applications will:

1. Accord with Policy CP 4, in particular provide a strong landscape framework (shown by a submitted Landscape Strategy and a Landscape and Ecological Management Plan) to integrate the development into the wider landscape and achieve a net gain in biodiversity, including the provision of:
 - a. substantial woodland buffers on the southern and western boundaries of the development and, if necessary, on adjoining land, to be provided as advance planting;
 - b. open space to serve the needs of the development, including a significant proportion of Accessible Natural Greenspace, and green corridors incorporating existing and new footpath routes;
 - c. retention of existing site features, including existing hedgerows and the overgrown orchard to the rear of Parsonage Chase, which shall be positively managed;
 - d. a site wide landform parameter plan, showing how the existing landform will be respected and how the extent of cut and fill associated with roads and developable parcels will be minimised; and
 - e. conserve the setting of the listed building at Parsonage Farm and undertake a Heritage Assessment, assessing any potential impact on heritage assets.
2. Achieve high quality design, responding to local landscape character and distinctiveness as identified by the the Swale Landscape Character and Biodiversity Appraisal, 2011. Building heights should reflect the scale and form of existing surrounding development. Individual reserve matters planning applications will be governed by an agreed design code;
3. Through both on and off site measures, ensure that any significant adverse impacts on European sites through recreational pressure shall be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
4. Provide a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
5. Be accompanied by a Health Impact Assessment in accordance with Policy CP 5;
6. Provide a footpath and cycle path links to the surrounding area;
7. Deliver a scheme of transport improvements to address capacity issues in the area including the A2500 between Cowstead Corner and Barton Hill Drive, the junction of the A2500 with Barton Hill Drive and provisions for cyclist and public transport (inc. rail facilities); and
8. Provision of infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule, notably education and health provision.

Land at Belgrave Road, Halfway

6.5.47 Land at Belgrave Road, Minster is located on the edge of the built up area of Halfway. This 5 ha site is generally flat, rising gently to the south at the base of Furze Hill, which masks the site from wider views. The land is currently being used for agricultural purposes and adjoins existing residential development to the north-west and the north-east, together with an area of open space to the north-east at Rosemary

Avenue. The south-east and south-west boundaries of the site adjoin open fields, whilst the site is bounded by discontinuous lines of hedgerow and trees, with the poplar tree line extending along the north of the site subject to a tree preservation order.

6.5.48 The site is allocated for 140 dwellings, together with open space and landscaping. It is expected that the site should bring forward a range of housing types in accordance with Policy CP3, including those for affordable housing.

6.5.49 Although enclosed on the northern and eastern sides by an existing urban edge and contained by the higher landform of Furze Hill, it will nonetheless be important to ensure the landscape character and visual impact of development is carefully mitigated. This shall be achieved by substantially enhanced hedgerows, with large size trees on the southern and western boundaries of the site and with appropriate planting within the development. These measures are also proposed to address impacts arising from the prominence of the site in short distance views from the public footpath on Furze Hill to the south.

6.5.50 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 2.1 ha. Some 0.4 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

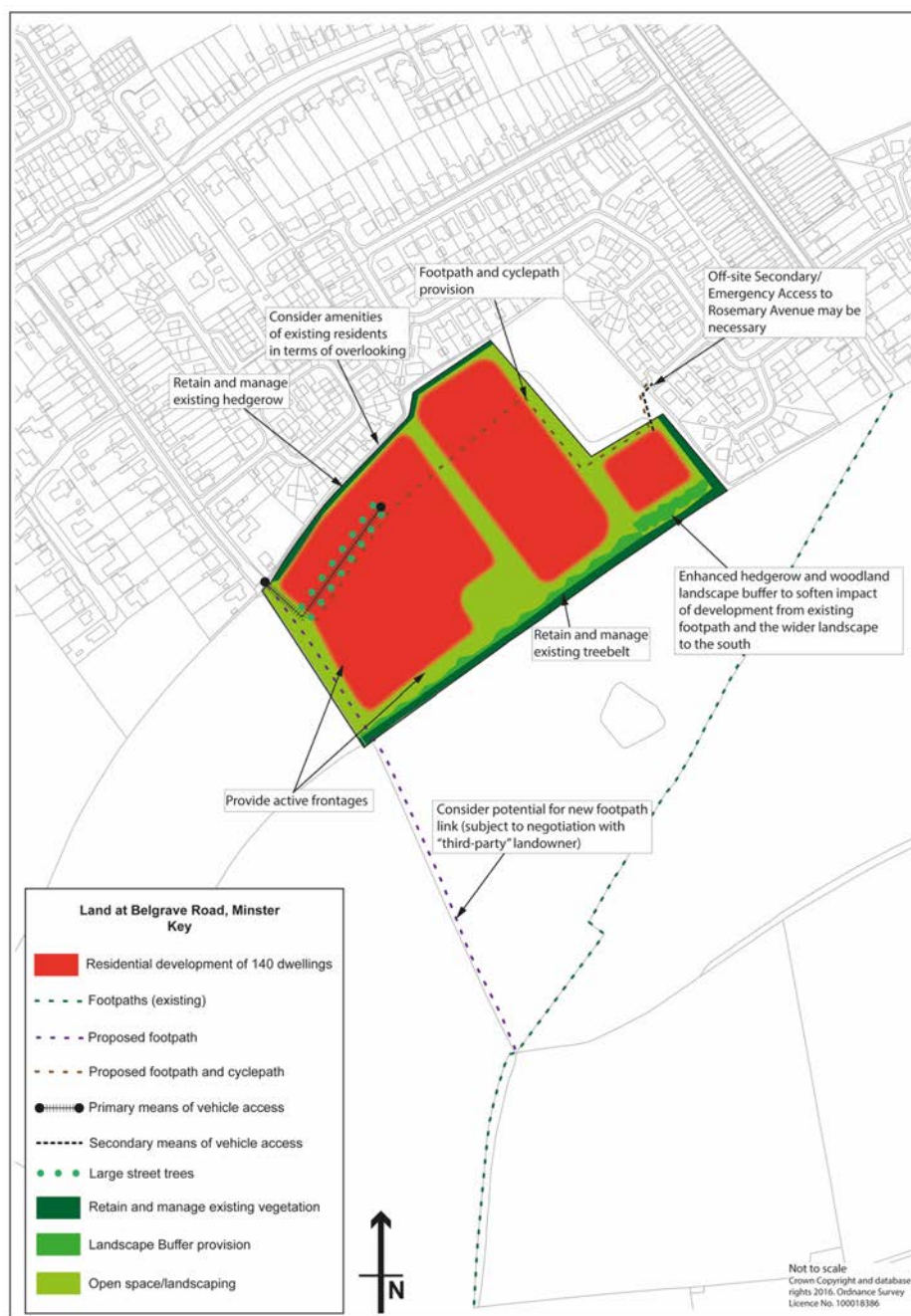
6.5.51 Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28. Any planning application is likely to be supported by a wintering bird survey to confirm its use by bird species associated with SPA. The potential for impacts on protected species would need to be specifically assessed through the submission of an Ecological Assessment at planning application stage, and mitigation provided, as appropriate.

6.5.52 An Archaeological Assessment will be required which the development will need to respond to at planning application stage.

6.5.53 Vehicle access would be provided from Belgrave Road, however it may be necessary to provide an alternative access route from Rosemary Avenue to increase connectivity and permeability with the surrounding built form and to provide an alternative emergency vehicle access route. This will be further assessed at the planning application stage. Should the access be required to cross part of the existing adjacent playing field, the developer will, if necessary, require replacement provision. A Transport Assessment will be required to examine the need for any transport improvements, particularly on Queenborough Road, Minster Road and the A2500 Lower Road.

6.5.54 Financial contributions to increase the capacity of community services will also be required, including those within the Local Plan Implementation and Delivery Schedule. These are likely to include for youth and community, learning and skills services on Sheppey, whilst notably, contributions will be required to service increased capacity at primary schools and Sheppey Community Hospital. It will also be important to encourage better rail patronage and a contribution may be sought toward improved facilities at Queenborough or Sheerness rail stations.

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Map 6.5.5 Development concepts at Belgrave Road, Halfway

Policy A 13

Land at Belgrave Road, Halfway

Planning permission will be granted for a minimum of 140 dwellings, together with open space and landscaping on land at Belgrave Road, Halfway, as shown on the [Proposals Map](#). Development proposals will:

1. Be in accordance with Policy CP 4 and, in particular, demonstrate and provide a strong landscape framework (shown by a submitted Landscape Strategy and a Landscape and Ecological Management Plan) to include:

- a. enhanced hedgerow and woodland planting on the southern and western boundaries to form a new, attractive urban edge; and
 - b. green corridors with footpath and cycle path routes through the site.
2. Be of a high quality of design and of predominantly two storeys in height, demonstrating any higher development will not breach the skyline of Furze Hill in views from the south. The southern edge of the development should face outwards onto the countryside;
3. Through both on and off site measures, that any significant adverse impacts on European sites through recreational pressure shall be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
4. Provide for a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
5. Provide appropriate vehicle access, including a separate emergency access point off Rosemary Avenue, if required, subject to demonstrating that the playing field is either no longer required, or provision of suitable alternative as part of the application and safeguarded by a legal agreement;
6. Provide a Transport Assessment which shall examine the capacity and need for improvements to the local network; and
7. Provide the infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule, particularly education and health provision.

Land at the Western Link, Faversham

6.5.55 This 8.3 ha site, located at the western edge of Faversham, but within the urban area, comprises a brickworks and vacant vegetated land. Previously allocated for employment in the 2008 Local Plan, this is now unlikely to be realised as more accessible and attractive locations are available elsewhere. The site is now proposed for housing to meet wider housing needs at the town and contribute to the Borough's overall housing land supply.

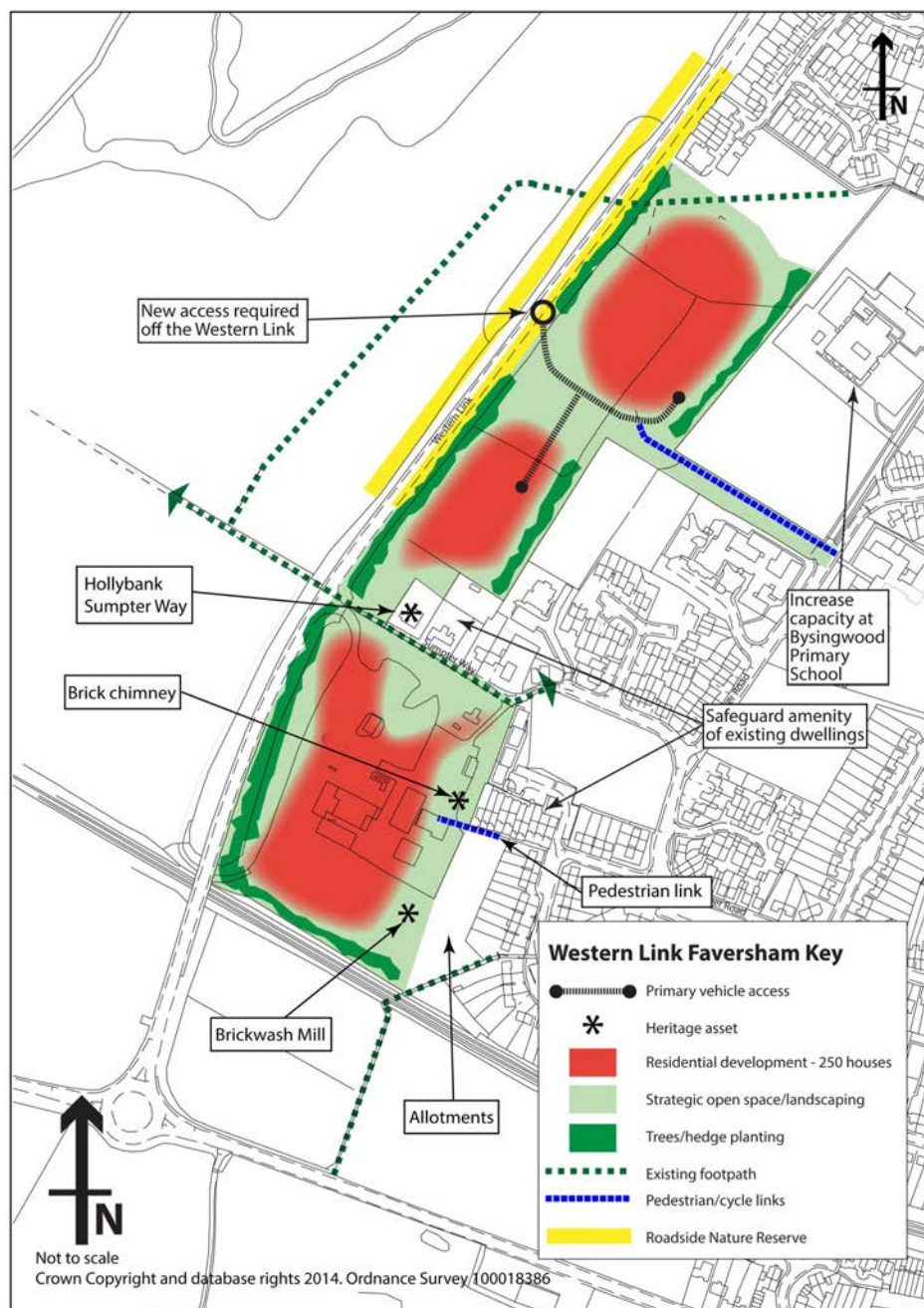
6.5.56 The site is a natural extension to the housing to the west of Faversham that can be achieved without encroachment onto the wider countryside and Area of High Landscape Value designation beyond the town's compact boundaries. With the site situated on the main approach to Faversham, development design should be led by an integrated landscape strategy to achieve landscaping, habitat retention and creation and open space. Additionally, a strong landscaped belt to the western boundary will be required to achieve minimal visual impacts in views from the west. This is important both because the site could be prominent in views from the Area of High Landscape Value and due to the need to create an attractive edge to the town.

6.5.57 Part of the landscape strategy will be the objective to achieve a net gain overall for biodiversity. An ecological assessment will be required to determine the biodiversity interests on the site and bring forward proposals for mitigation if adverse impacts cannot be avoided. The assessment of potential impacts should include those on the designated roadside nature reserve adjacent to the site and the designated Bysing Wood local wildlife site. Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.

6.5.58 The site adjoins one of the town's most deprived areas and as such the purpose of development here will be not to reinforce this area's current characteristics, but to support a restoration of the local

6 Land allocations for new development

housing market in terms of housing type and quality of environment. Part of this market uplift will be high standards of design that will support the landscape led approach to the site, especially given its prominent position on the approaches to the town.



Map 6.5.6 Development concepts at the Western Link

6.5.59 The site could yield 250 dwellings, with a range of housing types with an emphasis upon family homes in accordance with Policy CP 3, including those for affordable housing. Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 3.7 ha. Some 0.7 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.5.60 A new vehicular access to the site will be needed off the Western Link. Cycling and walking routes will be secured between the site and the existing established residential areas to the east, whilst public

transport improvements will be required. The development will need to achieve a nil-detriment in air quality within the Air Quality Management Area on the the A2 at Ospringe. Transport and air quality assessments prepared by the developer will inform this.

6.5.61 Contributions toward additional community facilities will also be required. These are likely to include contributions toward the expansion of Bysing Wood primary school and secondary school places, Faversham library, youth services, adult and social care within the Faversham Hub and to community learning and skills at Faversham Adult Education.

6.5.62 It is highly likely that safeguarded minerals are present at this site and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.5.63 Current and former industrial uses in the area suggest that contamination and mitigation will need to be considered as part of any planning application. Undesignated heritage assets, such as those associated with former brick making should be assessed and, if appropriate, integrated into the development.

Policy A 14

Land at the Western Link, Faversham

Planning permission will be granted for a minimum of 250 dwellings on land at the Western Link, Faversham, as shown on the [Proposals Map](#). Development proposals will:

1. Provide a design and layout which responds to the prominent position of the site on the western approach to Faversham. Development will be led by an integrated landscape strategy that will provide landscaping and habitat creation to achieve a substantial landscaped western boundary to the site to additionally minimise visual impacts;
2. Improve the quality of the environment and housing choice to strengthen the housing market area of the adjacent deprived neighbourhood;
3. Produce a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
4. Undertake a Transport Assessment and implement any highway and other transportation improvements arising from the proposed development;
5. Achieve pedestrian and cycle links to existing residential areas;
6. Assess impacts upon and ensure that air quality objectives are not compromised;
7. Assess and respond to any undesignated heritage assets on and adjoining the site in accordance with Policy CP 8;
8. Achieve a net gain for biodiversity overall by:
 - a. preparation of an ecological assessment to determine the site's interests (including the adjacent roadside nature reserve) and to bring forward proposals for mitigation if adverse impacts cannot be avoided, having considered the retention of existing vegetation/habitats as far as possible;
 - b. using appropriate landscaping and open space to encourage biodiversity and to offset any recreational impacts that may arise;
 - c. making an assessment of potential impacts upon the Bysing Wood local wildlife site and providing such measures for their mitigation; and
 - d. ensuring that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies

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CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy.

9. Provide infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule.

Land north of Graveney Road, Faversham

6.5.64 Approximately 2.9 ha of land is allocated at Graveney Road for housing. The site lies on the eastern edge of Faversham and comprises land and buildings previously associated with a garden furniture manufacturer.

6.5.65 The site is no longer suitable to meet modern employment needs and its good location relative to local services provides an opportunity to redevelop the site for housing, but in so doing, this location on the approaches to the town demands a high quality design, both in terms of the built development but also through the creation of a substantial landscaped frontage.

6.5.66 The site is allocated for a minimum of 90 dwellings, with open space and landscaping, bringing forward a range of housing types with an emphasis upon family homes in accordance with Policy CP 3. A noise assessment will need to consider the relationship of the site with the adjacent railway line.

6.5.67 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 1.3 ha. Some 0.2 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.5.68 A Habitats Regulations Assessment may need to be undertaken, given the location of the site relative to the Swale Special Protection Area. Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28. The proposed allocation is also located to the south of a Local Wildlife Site at Abbey Fields. Development proposals should assess the likely impact upon the site and, if necessary, propose mitigation.

6.5.69 The site partially adjoins an employment allocation to the east (Policy A 6). The access and design of housing proposals should ensure that an acceptable access to this employment allocation is facilitated, or if this is not desirable/practical, ensure that its future provision via an acceptable alternative means is not compromised. Subject to a transport assessment, a financial contribution toward interim improvements at J7 of the M2 may be required.

6.5.70 Financial contributions to increased capacity of community services will also be required, including those within the Implementation and Delivery Schedule. These are likely to include those for improved library services at Faversham and, in particular, for increased capacity for primary school provision and for health services at one of the medical centres in the town.

Policy A 15

Land north of Graveney Road, Faversham

Planning permission will be granted for a minimum of 90 dwellings on land at Graveney Road, as shown on the [Proposals Map](#). Development proposals will:

1. Remove poor quality buildings and achieve a high quality built and landscape design befitting the prominent position of the site;
2. Ensure that access to land subject to Policy A 6 is facilitated or, if not desirable/practical, not compromised;
3. Prepare a Transport Assessment, having regard to any proposals for the land to the east, and implement any highway and other transportation improvements arising from the proposed developments;
4. Improve connectivity for pedestrians, cyclists and public transport to the town centre and other locations;
5. Assess the noise impacts arising from the nearby railway line;
6. Ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
7. Assess the likely impact upon the Abbey Fields Local Wildlife Site, and if, necessary bring forward mitigation proposals;
8. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8; and
9. Provide infrastructure needs arising from the development, including education and health provision, and as identified by the Local Plan Implementation and Delivery Schedule.

Preston Fields, Faversham

6.5.71 This site is 14 ha and extends from the A2 Canterbury Road in the north to the M2 in the south. The western boundary adjoins the rear gardens of dwellings on Ashford Road, while to the east, the boundary adjoins a highway depot, a waste recycling facility and, further to the south, Salters Lane. The site is located at the edge of town, it is relatively well connected in terms of access to services, although the A2 represents a barrier for pedestrians and cyclists.

6.5.72 The site is used for agriculture and comprises a shallow, dry valley, which is mostly rural in character, despite the presence of the M2 and urban fringe influences in the northern part of the site. The valley has a gentle slope rising to Ashford Road, with a steeper slope rising to Salters Lane.

6.5.73 The site is allocated for 217 dwellings, with landscaping and open space. It should bring forward a range of housing types in accordance with Policy CP 3, including those for affordable housing.

6.5.74 Heritage evidence indicates that the site makes a high positive contribution to heritage setting of the town, due to the proximity of the Preston-next-Faversham conservation area, its rural setting and views. Landscape evidence indicates the site as having a moderate capacity to accommodate change.

6.5.75 Given this landscape and heritage context, residential development should be located in the centre of the valley where there is existing residential development to the west and other urban fringe uses to the east. Development should not be located directly adjacent to the Conservation Area in the northernmost part of the site and should retain the more undeveloped rural character of the land to the south, including the rural character of the southern section of Salters Lane in accordance with Policy DM 26. Land to the

6 Land allocations for new development

south of the Ashford Road access and west of Salter's Lane should be retained in open use in perpetuity, whilst an urban park should be provided fronting the A2, bounding the Conservation Area on its western side.

6.5.76 It is anticipated that residential development should be of medium density of no more than 2 storeys in height. There may though be scope for some higher density terraces and town houses toward the north of the site, with a tighter urban form, focused around a network of green streets. The residential development to the south should demonstrate a transition to a lower density and have a leafy character and more rural feel. A central green corridor running north to south should be provided, following the valley bottom and substantial tree belt/woodland planting will be required separating the development from the highway depot and the recycling centre. At all stages, use of the Council's Design Panel will be strongly recommended.

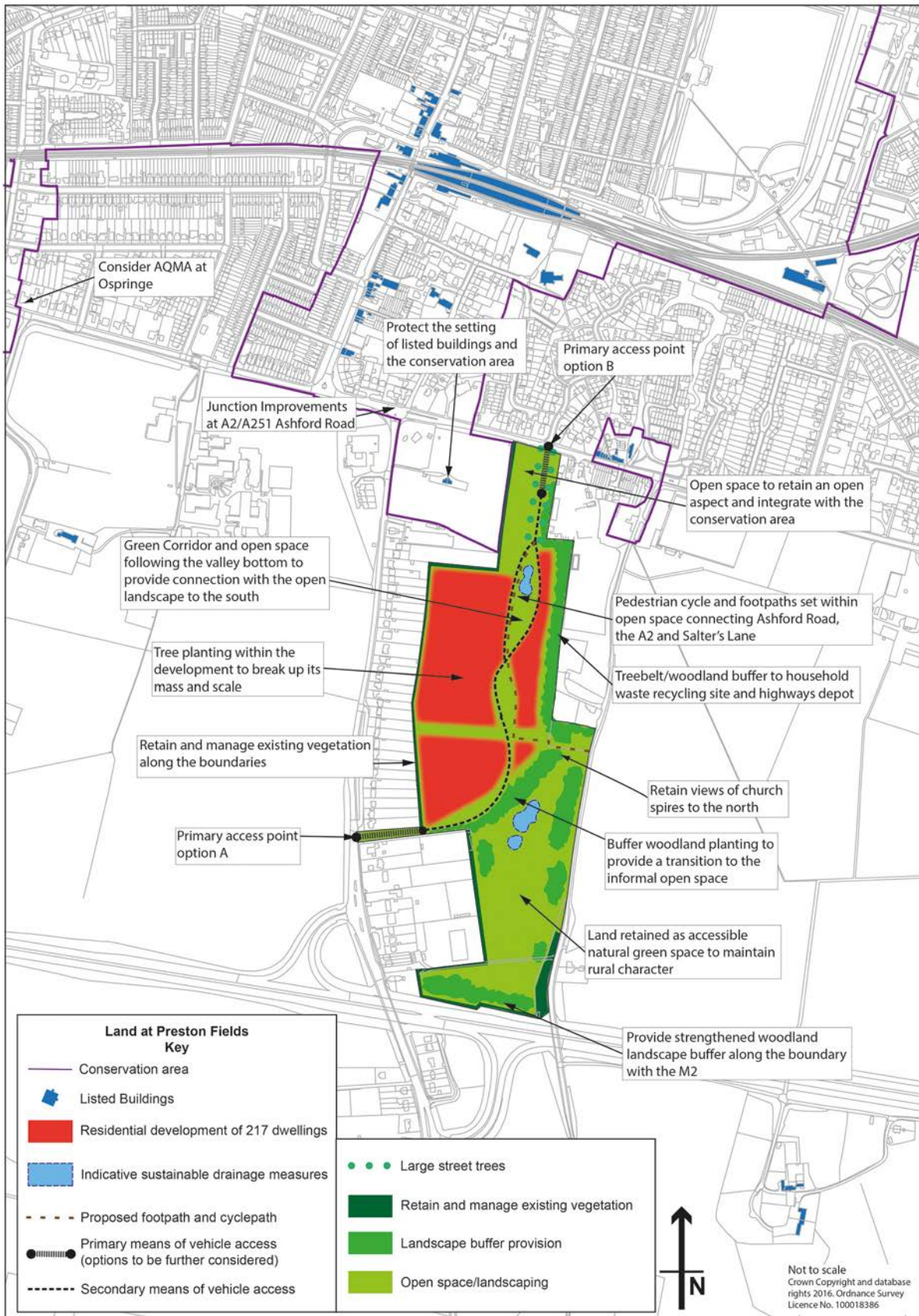
6.5.77 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 3.2 ha. Some 0.6 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, it should be possible to make this provision on site, however, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.5.78 An ecological assessment will need to be submitted at the application stage to determine the extent and importance of habitats and species present and to make recommendations for their avoidance, mitigation and, where appropriate, compensation. Development proposals will also need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.

6.5.79 A heritage assessment will be required which shall consider such matters as the contribution of the site to the setting of heritage assets and, given its location close to Watling Street, the potential for archaeology. Mitigation will be required to address any matters arising.

6.5.80 It is highly likely that safeguarded minerals are present at this site and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.5.81 There are two potential vehicle accesses to the site; from the A2 and from the A251. A Transport Assessment will need to determine the most appropriate location for the primary access to the site and whether the site should include a direct road link from the A2 to the A251 to bypass the current A2/A251 junction. The need for any additional land purchase at the A251 access will also need to be explored. The transport assessment will also need to consider the need for highway improvements, including works to the junction of the site with Ashford Road, together with Ashford Road and the A2 and the A2 junction with the Mall. In addition, the need for any mitigation works at Junction 7 of the M2 will need to be determined in conjunction with Highways England. Provision will also need to be made for footpaths and cyclists.



Picture 6.5.1 Development concepts for Preston Fields, Faversham

6 Land allocations for new development

6.5.82 Planning applications may be required to submit a noise assessment to consider the impact of traffic on the M2 on new residents. An air quality assessment shall also ensure that the Air Quality Management Area in the centre of Ospringe is not compromised. Innovative mitigation measures may be required to address any impacts.

6.5.83 Financial contributions to increased capacity of community services will also be required, including those within the Implementation and Delivery Schedule. These are likely to include those for improved library and youth services at Faversham and, in particular, for increased capacity for primary education at Bysing Wood School and Lady Dane Farm and primary health services at one of the medical centres in the town.

Policy A 16

Land at Preston Fields, Faversham

Planning permission will be granted for a minimum of 217 dwellings, landscape and open space on land at Preston Fields, Faversham, as shown on the [Proposals Map](#). Development proposals will:

1. Accord with Policy CP4, in particular, demonstrating an integrated Landscape Strategy and a Landscape and Ecological Management Plan that shall include:
 - a. a large area of accessible natural greenspace in the southern part of the site, including a substantial area of woodland, orchard and meadow planting to help absorb the development into the wider landscape;
 - b. a green corridor running through the centre of the development along the valley bottom;
 - c. retention of a corridor view to Faversham and Preston Parish Church towers;
 - d. a large green space adjoining Canterbury Road and the Conservation Area: and
 - e. woodland/tree belt buffer on the north eastern boundary.
2. Be of a high quality design, of mostly two storeys in height responding appropriately to the local character and distinctiveness of the Preston-next-Faversham Conservation Area;
3. Through both on and off site measures, ensure that any significant adverse impacts on European sites through recreational pressure shall be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
4. Provide pedestrian and cycle links within the development and to the adjacent network;
5. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM8;
6. Submit a detailed heritage assessment to consider the significance of the impact of development at the local level on the heritage setting of the town and other heritage assets in accordance with policies DM 32-DM 34. An archaeological assessment should consider the importance of the site and, if necessary propose mitigation;
7. Submit a noise assessment and implement any mitigation arising;
8. Address air quality impacts arising in the Ospringe AQMA, including the implementation of innovative mitigation measures;
9. Be supported by a Transport Assessment, to determine the need and timing for any improvements to the transport network, the phasing of development, the options for accessing the site and any transport improvements arising which shall be subject to developer contributions/provision; and
10. Provide the infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule, particularly health and education provision.

Iwade Expansion

6.5.84 The village of Iwade has expanded considerably since it was first identified as a growth point in the 1990s, with some 1,200 new homes completed since that time, bringing with them benefits to the community in terms of a wider range of housing, new facilities, open space and traffic management.

6.5.85 Iwade is identified for a further phase of growth in recognition of its location close to Sittingbourne, employment opportunities at Ridham/Kemsley and the strategic road network, but also because, outside the Isle of Sheppey, it remains one of the few areas with land of lower agricultural quality (i.e. not best and most versatile). There are though a number of strategic issues needing to be addressed if the village is to expand further:

1. **Maintaining the separation of Iwade from Sittingbourne:** This is most keenly felt on its southern and eastern sides, especially given the growth proposed at Sittingbourne.
2. **Minimising visual impacts on the exposed character of much of the surrounding landscape:** This affects the whole of the village, but more so in some locations on the northern, western and south-western sides.
3. **The relationship with nearby environmental designations:** The North Kent Marshes Area of High Landscape Value and the Swale and Medway Special Protection Areas, Ramsar and SSSIs are close to the northern edge of the village where increased populations could increase recreational and other impacts. Iwade is also known for its populations of Great Crested Newt, a protected species.
4. **Improving the overall self-containment and reliance of the village:** Development has brought new facilities for the village and whilst further growth will need to meet any further needs arising, the availability of facilities at nearby Sittingbourne will place limits on the ability of the village to become more self-contained as a result of new facilities. Choices for public transport are not as well developed as at other Rural Local Service Centres and need to be improved.
5. **Minimising flood risk:** This is associated with the Iwade stream that runs through the centre of the village, and especially the impact upon any growth to the west of the village.
6. **The ability of the transport network to accommodate further growth:** The capacity of the Grovehurst Interchange and other junctions in the A249 corridor, including J5 of the M2 will be impacted by growth at this location, although in the case of Grovehurst Interchange, the Council and Highway Authorities will be reliant upon the financial contributions for improvements that development will bring. The timing of the J5 improvements may also limit the amount of development able to come forward in advance of it. Whilst transport modelling for the Local Plan has confirmed that these constraints are not insurmountable, detailed development proposals will need to further assess these issues at the local level.

6.5.86 There are a number of options to expand the village; however, the Council's assessment is that sites within an eastern arc running from the north of the village, clockwise through to the south, represent the most suitable relative to the above objectives and constraints. Alternatives not progressed involve land less accessible to village facilities and the transport network and/or involve land with more significant to major adverse landscape and visual impacts and/or substantial adverse impact upon heritage assets.

6.5.87 Within the proposed eastern arc for expansion, some 572 dwellings, with open space and landscaping, are envisaged across three areas:

1. To the north where 62 dwellings are proposed;
2. To the east of the village where 440 dwellings are proposed across two sites to the north-east and south-east; and
3. To the south, at Pond Farm, where 70 dwellings are proposed.

6.5.88 Common issues for these three areas is the need to address landscape and visual impacts, including those associated with the settlement gap with Sittingbourne and the management and mitigation of impacts upon the nearby Special Protection Area.

6 Land allocations for new development

6.5.89 In the case of ecological interests, public access onto the wider marshes could result in increased disturbance to birds. Whilst evidence indicates that this risk can be managed, much will depend upon the master planning and detailed stages of development and the role the location plays in supporting species using the SPA. Further expansion of the village will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution for the residual impacts further afield will be required in accordance with the strategy for North Kent, agreed by Councils and included within the Local Plan within policies CP 7 and DM 28. To inform the HRA assessment, wintering bird surveys should be conducted to determine if significant populations of designated birds use the site as functionally supporting habitat. This will enable appropriate avoidance measures to be identified and implemented. An ecological assessment will also need to consider the presence of protected species, such as the Great Crested Newt.

6.5.90 In addition to recreational pressure considerations, the HRA will also need to include assessment of other impact pathways, including from noise, surface water run-off, lighting or visual intrusion, on the integrity of the European designated SPA/Ramsar site both during construction and throughout the operation of the site. Planning permissions should ensure that necessary mitigation is provided as necessary to address these issues.

6.5.91 Settlement separation, landscape and biodiversity requirements present the village with a considerable opportunity by which major and strategic new open space, in the form of a country park in excess of 43 ha, could be provided to form a secure and permanent green buffer between the village and the A249 with links to existing and planned greenspace. To achieve these outcomes, this provision should be secured and managed by an appropriate body in accordance with an approved management plan. Overall, it should be possible to achieve a net gain in biodiversity.

6.5.92 This opportunity brings with it the ability to establish a strategic scale level of green infrastructure for the town and village by linking with major open space being provided as part of the NW Sittingbourne allocation (Policy MU 1) creating a major open space corridor in excess of 60 ha from Quinton Road in Sittingbourne to the north of Iwade.

6.5.93 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 8.37 ha. Some 1.5 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at the Masterplan/planning application stage, in the context of the specific details of the proposed development and the objectives and purposes of the country park proposals. In the case of sports pitch and formal play facilities, it should be possible to make this provision on site, however, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the Masterplan/planning application stage. Careful consideration will need to be given to any tensions between meeting recreational needs and the space required to address SPA mitigation.

6.5.94 The site should bring forward a range of housing types in accordance with Policy CP 3, as well as bringing forward affordable housing in accordance with Policy DM 8.

6.5.95 A heritage assessment will be required to consider such matters as the setting of the Parish Church and any potential for archaeology, especially given recent neolithic discoveries and World War I researches.

6.5.96 Development should not exacerbate existing flood risk in the village and will require the submission of a site flood risk assessment in accordance with Policy DM 21.

6.5.97 The sites are in relatively sustainable locations on the edge of the settlement and within walking distance of the services that the village has to offer. They are also well placed in terms of their proximity to local distributor roads, although development will cumulatively impact the Grovehurst Road junction (A249) where mitigation would be necessary and land will need to be reserved within development sites

for its interim and longer term improvements. A Transport Assessment will be required to consider both this and the other improvements necessary to achieve an acceptable development, including the phasing of development relative to any interim or longer term improvement to the junction. Consultation with Highways England will be necessary. A developer funding package will therefore need to be agreed for sites subject to Policy A 17 and other sites at Iwade within Policy A 20 so that funding may either be used to bring forward the interim mitigation scheme and/or the longer term more major improvement. A further matter to be considered will be how pedestrians and cyclists travelling between Iwade, Ridham and Sittingbourne can be provided with a more pleasant and safer crossing of the A249. This might be best achieved by a separate crossing of the trunk road carriageway, in the shorter term via the existing route at Bramblefield and, in the longer term, as part of the remodelling of the Grovehurst Road/A249 junction.

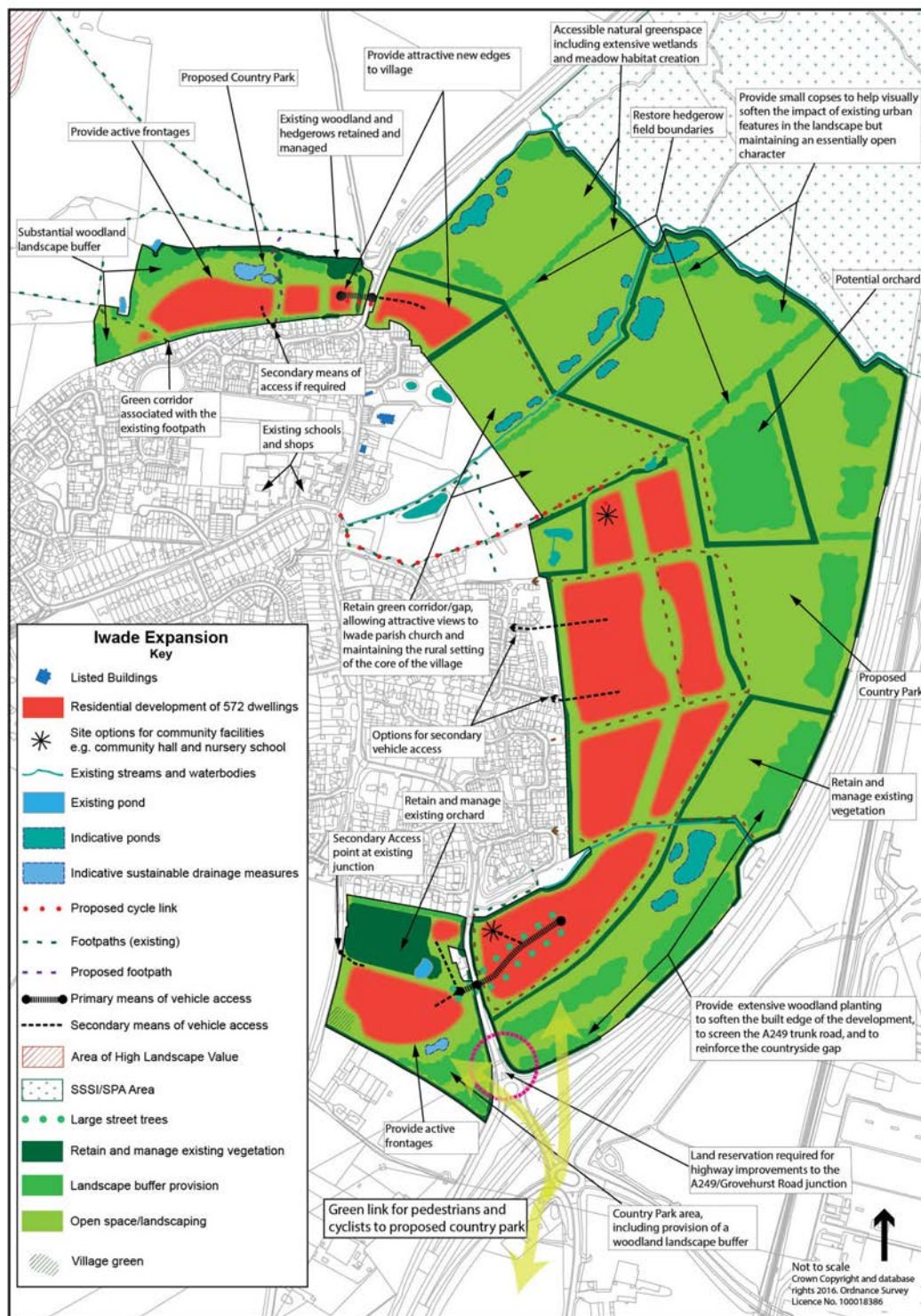
6.5.98 It is highly likely that safeguarded minerals are present at these sites and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.5.99 If the population of Iwade is to grow further, it must be accompanied by improvements to non-car travel choices, with a focus on bus and/or rail journey connections between Iwade and principal areas of employment. One specific measure to be supported should be increased rail patronage via Kemsley railway station, whilst measures to improve the frequency of bus services that call both at the village and at Kemsley railway station should be explored.

6.5.100 Financial contributions to increased capacity of community services will also be required, including those within the Implementation and Delivery Schedule. These are likely to include those for improved library, community, learning and skills and youth services at Sittingbourne and, in particular, increased capacity for primary education at the NW Sittingbourne allocation and the expansion of primary health services at the village. Potential locations for a community hall and for a nursery school are shown on Map 6.5.8 in order to provide expanded facilities as a result of development at the village.

6.5.101 Due to the scale of the growth proposed and the need for land owners to work together, a Masterplan/development brief should be prepared, consulted upon and agreed by the Council. This should consider such matters as the phasing of development relative to transport improvements and the need to secure a coordinated approach to the country park site and its linkages between development sites. At all stages, use of the Council's Design Panel will be strongly recommended.

6 Land allocations for new development



Map 6.5.7 Development concepts for Iwade expansion

6.5.102 Within the above overall context, the individual development areas are considered below.

Land to the north of Iwade

6.5.103 This 4.4 ha site is generally flat pasture, with fragmented hedgerow boundaries. Beyond the ditch at the northern boundary, the topography rises north westwards to a range of low hills (an Area of High Landscape Value) which have open south easterly views of the site. To the north-west is open marshland. The southern boundary of the site is an existing, visually prominent and abrupt residential development edge to the village.

6.5.104 Landscape evidence advises that the landscape in this part of the village borrows a considerable degree of its sense of place from neighbouring marshland, such as the flat, exposed nature of the landscape and the big skies. There is a low capacity to accommodate change, but a small amount of residential expansion would be acceptable, providing that the new urban edge does not become visible in sensitive views from the marshes. Given this, it is anticipated that the proposed development will be of two storeys height only and of low density at the northern edge.

6.5.105 A substantial landscape and green space buffer will be required in the northern part of the site and the potential for this area of land to be incorporated into and managed as part of the larger country park proposal for the village.

6.5.106 The site is accessible via an existing residential development through roads such as Sanderling Way. This is likely to affect the junctions at Sanderling Way with Sheppey Way/The Street which will need to be considered.

Land east of Iwade

6.5.107 This 15.4 ha site to the eastern side of the village, comprises large arable and pasture fields, its topography being mostly flat to gently sloping. Despite there being some mature hedgerow and poplar shelterbelt field boundaries, supplemented by more recent landscape restoration, this is an open, visually exposed site; prominent in views from the A249 and from the northern part of Sittingbourne. The existing southern and western urban edges are visually harsh with very little planting, whilst the wider landscape is influenced by the A249 and its industrial backdrop to the east.

6.5.108 The Swale Urban Extensions Landscape Capacity Study identifies the area as having a high capacity to accommodate change, with the maintenance of a countryside gap between Iwade and Sittingbourne and the need for substantial landscape mitigation, key issues needing to be addressed. As a result, it is essential that a significant, broad swathe of green space of some 39 ha be established between any development and the A249, together with the creation of a new, attractive urban edge, integrated with the green space. The design of development should respond to the local character and distinctiveness of the Iwade Arable Farmlands Landscape Character Area (Swale Landscape Character and Biodiversity Appraisal, 2011).

6.5.109 There are two proposed development areas within the site. The first comprises a small area in the north east, located adjacent to The Street/Sheppey Way on gently rising land. This shall be of lower density development, of no more than two storeys in height on this sensitive edge. The second, much larger area, is located to the north east of Grovehurst Road where building densities and heights should have regard to the scale and form of existing development within the settlement. It will be expected that the design and appearance of the new urban edge here will be of a high quality, providing active built frontages facing onto the open space with green corridors and leafy streets within the development.

6.5.110 The site lies within 300m of an SSSI, SPA and Ramsar site and as such the provision and management of the country park in this location will be an important component of the mitigation necessary to address any potential significant impacts. This will include ensuring that there is no access for people or dogs onto the designation in the north-east of the county park.

6.5.111 Extensive woodland planting and landscaping works will be necessary between the built edge to the south and the A249. This will help achieve a wider strategic landscape corridor around the A249 and enhance biodiversity. Within the landscaped buffer, opportunities will be taken to restore landscape features and create habitat, such as meadows and wetland habitat.

6.5.112 Development in this locality will need to consider the setting and views to and from the Grade I listed Parish Church of All Saints. Harm should be capable of being avoided with the sensitive siting of development and the use of the open space proposed.

6 Land allocations for new development

6.5.113 Although the southern end of the site is accessible via existing residential development through roads such as Redwing Avenue and Swallow Avenue, these streets are not suitable to serve the full level of development proposed. Therefore, the primary access will need to be provided from a new junction at Grovehurst Road. Land will also need to be reserved for any improvements to the Grovehurst Interchange.

Land south east of Iwade (Pond Farm)

6.5.114 This 2.7 ha site comprises mainly rough pasture and is located between the B2005 and the old Sheppey Way. It includes the curtilage of Pond Farm in the north eastern part, together with an old orchard near the northern boundary. The other site boundaries are characterised by fragmented hedgerows or poplar trees. There are strong urban influences, from a pylon line that crosses the site, nearby industrial style buildings, as well as from existing housing visible at the northern and western boundaries and from highway roundabouts and overbridges.

6.5.115 Whilst development of the site would produce some erosion of the settlement separation between Iwade and Sittingbourne, some residential development could be accommodated on the northern part of site in landscape and visual terms. This would be subject to the opportunity being taken to provide a significantly enhanced green space buffer of undeveloped land in the southern part of the site (as part of the wider country park initiative) down to where it adjoins the Grovehurst Interchange (where a land reservation for the improvement will need to be made). This would need to be accompanied by a high quality new urban edge, providing a natural rounding off of the settlement.

6.5.116 Within the old orchard (a UK BAP priority habitat), there is the possibility of impacts upon protected species which will need to be assessed. As far as possible the old orchard should be retained, managed and enhanced within the development site, perhaps as a community orchard for the village. An ecological assessment will need to be submitted at the application stage to determine the extent and importance of habitats and species present and to make recommendations for their avoidance, mitigation and, where appropriate, compensation.

6.5.117 The primary vehicle access to the site would be from Grovehurst Road, with the possibility of a secondary access from the old Sheppey Way. The desirability of linking these two points would need to be assessed as part of a transport assessment, although the possibility of it being used as a busy link between the old Sheppey Way and the A249 should be avoided. There is a footway connecting the site to Iwade via Grovehurst Road, however there are no footways along part of Sheppey Way and as such, additional walking/cycle routes would be required. Land will also need to be reserved for any improvements to the Grovehurst Interchange.

Policy A 17

Iwade expansion

Planning permission will be granted for a minimum of 572 dwellings at Iwade, as shown on the [Proposals Map](#), together with a new country park, landscape and ecological enhancements and community facilities. Landowners and developers will be required to co-ordinate on the preparation, consultation and approval of a Masterplan/development brief. The Masterplan/development brief and planning applications will:

1. Be in accordance with Policy CP 4 and in particular, demonstrate and provide a strong landscape framework (shown by a submitted Landscape Strategy and a Landscape and Ecological Management Plan), which shall:
 - a. assess biodiversity interests, including, preparation of a Habitats Regulations Assessment (HRA) to demonstrate that development is not likely to have a significant effect on a Special Protection Area (SPA);

- b. ensure appropriate opportunities for use of the site by residents and visitors (particularly for dog walking) and to establish such land as a country park so as to meet site mitigation in the form of Suitable Alternative Natural Greenspace (SANG). Overall, proposals will ensure that, through both on and off site measures, any significant adverse impacts on European sites arising from recreational pressure and other impacts will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
 - c. within the HRA, assess impact pathways from disturbance on the integrity of the European designated SPA during construction and operation of the site and recommend mitigation as appropriate;
 - d. be informed by an ecological assessment detailing the impacts upon protected species and habitats and to make recommendations for their avoidance, mitigation and, where appropriate, compensation;
 - e. secure the agreement and implementation of a management plan for the whole country park to clarify the proposals for various habitats across the site, the extent of public access and types of recreational use, and to provide proposals for the sustainable and financially secure management of the area through the development process and in the long term;
 - f. achieve a net gain in the biodiversity of the site itself, including protecting and enhancing on-site habitats to provide for (at least) current levels of use by key species, including enhancing any existing role the site plays as supporting habitat for the SPA;
 - g. manage the area to maintain and enhance the biodiversity associated with fields, hedgerow, orchards, boundaries and water features;
 - h. where compatible with 1a.-g., include proposals for green corridors, incorporating existing/new footpath and cycle routes; and
 - i. in agreed locations, provide strategic planting and open space in advance of new development.
2. Be of high quality design, respecting the settlement form/pattern, character and rural landscape setting of the village as identified by the the Swale Landscape Character and Biodiversity Appraisal, 2011;
 3. Submit a site flood risk assessment in accordance with Policy DM 21 which shall additionally consider the sustainable drainage and land management measures that should be undertaken within the developed areas and open space;
 4. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
 5. Undertake a detailed heritage assessment (including for archaeology) and mitigate any impacts identified;
 6. Be accompanied by a Health Impact Assessment in accordance with Policy CP 5;
 7. Be supported by a Transport Assessment to determine the need and timing of improvements to the local and strategic transport networks relative to the phasing of development, whilst addressing the following:
 - a. improvements to the public transport network between Iwade and Sittingbourne, including improved services to the village;
 - b. encouraging increased rail use from Kemsley Halt;
 - c. securing pedestrian and cycle links within the development (housing and country park) and to the adjacent network, including to the Ridham employment area and to Sittingbourne; and
 - d. the identification, reservation and gifting of land within relevant allocations for interim improvements (and subsequently for the remodelling) of the Grovehurst Interchange, together with the necessary and appropriate financial contributions toward such schemes as agreed.

6 Land allocations for new development

8. Provide the infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule, particularly, a new community building, health, primary education and library provision; and
9. For individual development areas, additionally:

For north lwade:

10. As part of the landscape strategy and ecological management plan:
 - a. provide a substantial natural green space with copse planting, enhanced hedgerow boundaries and wetlands at the northern, eastern and western boundaries of the site to form a new, attractive northern village edge which integrates development, particularly in the wider marshland environment;
 - b. retain the existing mature vegetation and hedgerows on the Old Ferry Road boundary;
 - c. safeguard, create and manage ponds for biodiversity (in particular for protected species);
 - d. provide green corridors to interrupt the mass of the development and provide additional softening in longer views from localised higher overlooking ground; and
 - e. use low density housing to respond to the local character and distinctiveness of the village, marshlands and the local landscape character area.
11. Provide a primary access off The Street/Sheppey Way.

For east lwade:

12. As part of the landscape strategy and ecological management plan:
 - a. provide a substantial natural green space, including significant woodland buffers on the southern and eastern boundaries of the development; and
 - b. retain, create and manage, as appropriate, site features and habitats, including existing shelterbelts, hedgerows, wetlands, ponds, meadows and views to the open marshes.
13. Respond to the local landscape character area and distinctiveness, with housing that shall be of two storeys in the north east of the site, whilst respecting the scale and form of adjoining existing residential development to the west;
14. Avoid substantial harm to the setting (and in views to and from) to All Saint's Parish Church;
15. Provide a primary access from Grovehurst Road, and secondary access points connecting with existing development to the west; and
16. Reserve land for community facilities where identified as appropriate.

For south lwade at Pond Farm:

17. As part of the landscape strategy and ecological management plan:
 - a. provide a substantial natural green space, including woodland/copse planting to maintain an appropriate countryside gap and to minimise and mitigate visual impacts;
 - b. enhance hedgerow boundaries and retain and management existing ponds; and
 - c. retain, enhance and manage the existing orchard to provide accessible natural green space, potentially for use as a community orchard;
18. Use building heights and form to generally reflect the character of the existing settlement; and
19. Provide a primary access off Grovehurst Lane, with consideration as to the appropriateness of a linked secondary access from the old Sheppey Way.

Land north of High Street, Newington

6.5.118 This site lies between the High Street and the railway line and comprises 7.3 ha of flat to gently undulating arable farmland, bounded by hedgerows and hedgerow trees. The eastern part of the site is visually contained within the landscape by rising land up to an existing eastern hedgerow boundary. There is a drain that runs north to south across the site. The Newington Conservation Area boundary coincides with the western site boundary, whilst existing residential premises back onto its southern boundary. The site lies within walking distance of Newington train station, a convenience store and primary school.

6.5.119 Vehicular access to the High Street (A2) will be provided from an access road, located next to 103 High Street, with 99 High Street likely to be demolished to secure the necessary width of access. A separate pedestrian and cycle access will also be provided on land between 38 and 40 Church Lane.

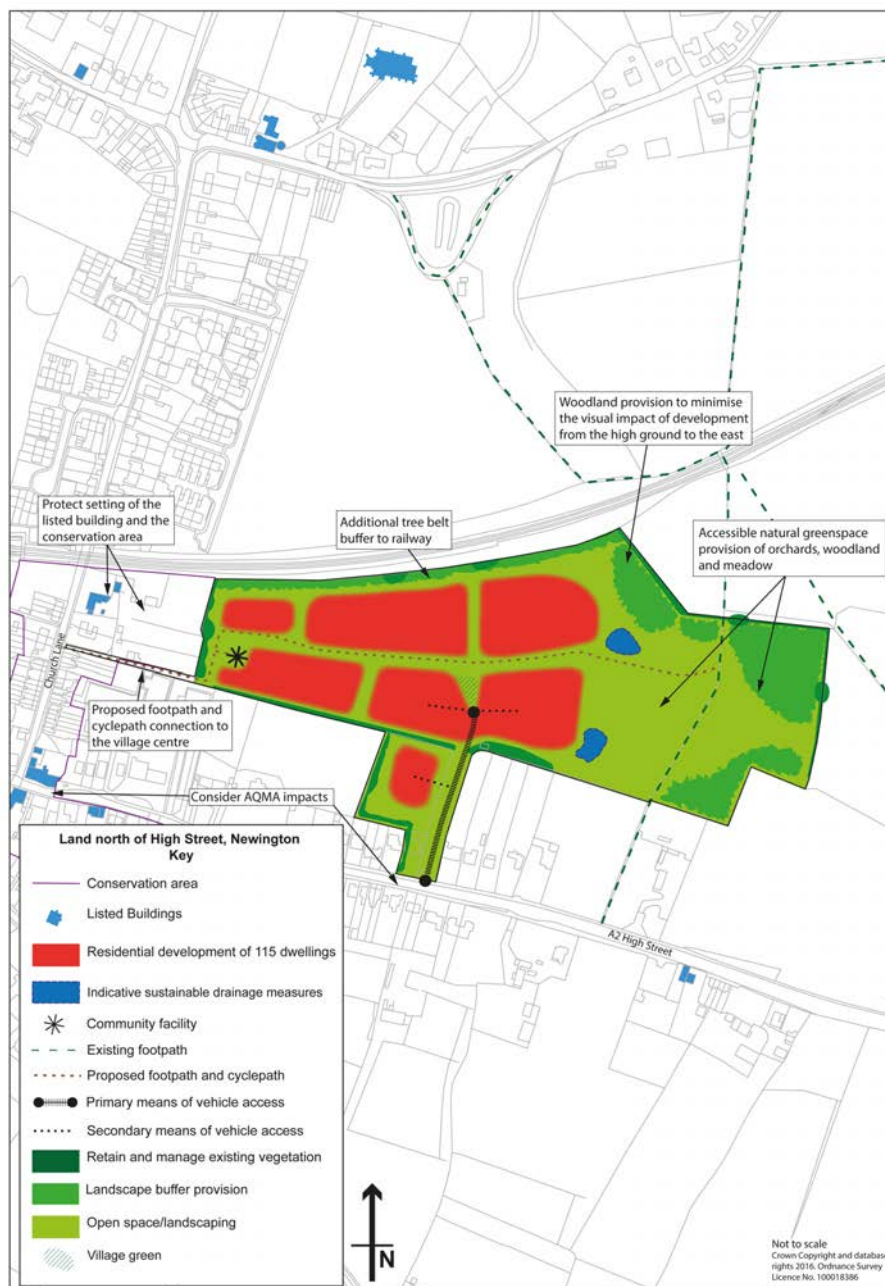
6.5.120 The site is allocated for 115 dwellings, together with open space, landscaping and land for a community facility. The site should bring forward a range of housing types in accordance with Policy CP 3, including those for affordable housing.

6.5.121 A listed building on Church Lane lies within 60m of the eastern site boundary and appropriate regard will need to be given to the protection of its setting, as well as that of the Conservation Area. A heritage assessment will be required to address these issues, together with, given the site's location close to Watling Street, the archaeological potential of the site. If necessary, mitigation will be required.

6.5.122 The most visually exposed land shall be excluded from built development, although it is likely to remain visible both from the footpath network on nearby, higher ground to the north and east, and from the railway. To address any wider visual impacts from development, as well as conserving and enhancing the local landscape character of the area and achieving appropriate biodiversity enhancements, it is considered that the eastern third of the site area should be excluded from built development, with provision of substantial woodland buffer planting (advance planted), a wildflower meadow and an orchard. Green corridors and open space within the residential area will also help to provide a village and rural character and feel to the development. In addition the northern and southern site boundaries should be reinforced by hedgerow and hedgerow tree planting.

6.5.123 The development should generally be of a relatively low to medium density, with the potential for some very low density development at the sensitive, eastern rural edge. The development form, pattern, design and materials should respond to the local character and distinctiveness of the Newington Conservation Area and the Newington Fruit Belt Landscape Character Area, as identified by the Swale Landscape Character Assessment and Biodiversity Appraisal 2011. Use of the Council's Design Panel is strongly recommended.

6 Land allocations for new development



Map 6.5.8 Development concepts on land north of High Street, Newington

6.5.124 It is highly likely that safeguarded minerals are present at this site and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.5.125 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 1.7 ha. Some 0.3 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.5.126 An ecological assessment will need to be submitted at the application stage to determine the extent and importance of habitats and species present and to make recommendations for their avoidance, mitigation and, where appropriate, compensation. Development proposals will also need to reduce

recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.

6.5.127 Newington experiences pressures on the local road network outside the usual peak hours. As a result, a Transport Assessment will need to consider the need for, and funding of, off-site infrastructure improvements. This shall include the junction with the High Street, the A2/Church Lane junction and the Key Street roundabout (A2/A249). In the case of improvements in the centre of the village, the potential here will be limited due to the impact on listed buildings. The Transport Assessment should also inform impacts upon air quality, ensuring the development does not compromise the centre of Newington which is an Air Quality Management Area. Innovative mitigation measures may be required to address any impacts. The impact of noise from the railway on the proposed development should be addressed in the form of a Noise Assessment.

6.5.128 Financial contributions to increased capacity of community services will also be required, including those within the Implementation and Delivery Schedule. These are likely to include those for the expansion of primary school and health services at Sittingbourne. Subject to further assessment, there is the potential for provision of a new community building on the site.

Policy A 18

Land north of High Street, Newington

Planning permission will be granted for a minimum of 115 dwellings, landscape and open space on land to north of the High Street, Newington, as shown on the [Proposals Map](#). Development proposals will:

1. Be in accordance with Policy CP 4 and in particular demonstrate an integrated Landscape Strategy and a Landscape and Ecological Management Plan to include:
 - a. a large area of green space in the eastern third of the site, including a substantial area of woodland, orchard and meadow planting to help absorb the development into the wider landscape;
 - b. green corridors within the development;
 - c. reinforced boundary hedgerow planting; and
 - d. a high quality design, respecting the settlement form/pattern, character and rural landscape setting of the village as identified by the the Swale Landscape Character and Biodiversity Appraisal, 2011.
2. Provide for a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
3. Through both on and off site measures, ensure that any significant adverse impacts on European sites through recreational pressure shall be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
4. Submit a detailed heritage assessment to consider the significance of the impact of development on the setting of the conservation and other heritage assets in accordance with policies DM 32-DM 33. An archaeological assessment should consider the importance of the site and, if necessary propose mitigation in accordance with Policy DM 34;
5. Address air quality impacts arising in the Newington AQMA, including the implementation of innovative mitigation measures;
6. Address any issues arising from a Noise Assessment;

6 Land allocations for new development

7. Secure pedestrian and cycle access to Church Lane and a footpath connection east to west;
8. Be supported by a Transport Assessment, to be submitted with any planning application, to determine the need and timing for any improvements to the transport network and the phasing of development. A financial contribution toward any such improvements will be sought; and
9. Provide infrastructure needs arising from the development, including that identified by the Local Plan Implementation and Delivery Plan, in particular for improved primary education and health services and, if required, provision of a new community building.

Land east of Station Road, Teynham

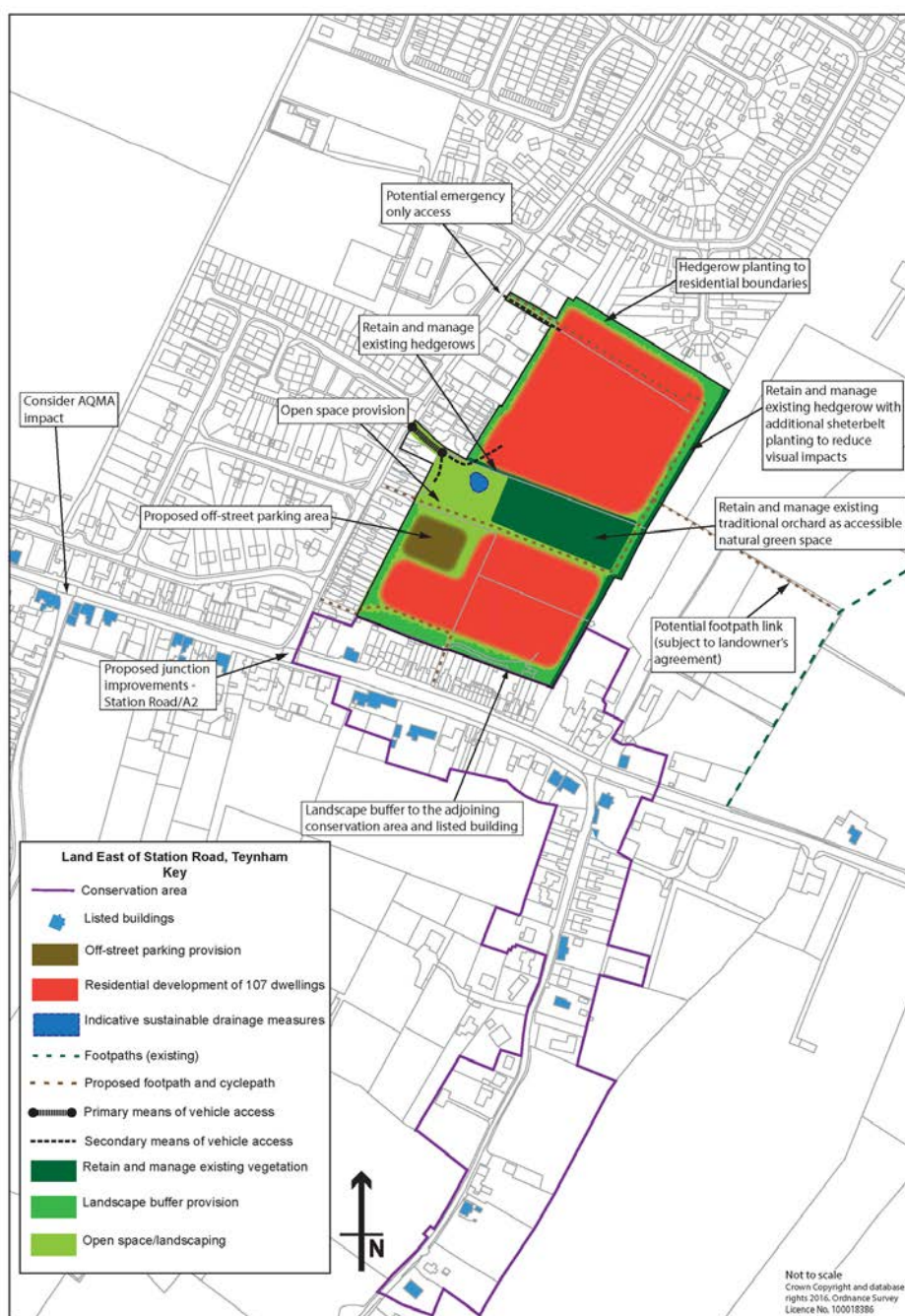
6.5.129 This 4.4 ha site, is located to the east of the properties on Station Road, and to the south of the rear gardens of the properties at Bradfield Avenue and to the north of properties fronting the A2. The site comprises grassland and an old orchard and is bounded to the east and divided into two fields by existing mature hedgerows, whilst the boundaries to existing residential properties are more open and stark. The site is located so as to have good accessibility to a good range of village services and public transport choices.

6.5.130 The site is allocated for 107 dwellings, together with open space and landscaping and off-street parking for existing local residents in Station Road. Development should bring forward a range of housing types in accordance with Policy CP 3, including those for affordable housing.

6.5.131 Whilst the site is relatively well contained in views in the wider landscape to the east, an integrated landscape strategy will be required to provide a new attractive eastern edge to the settlement where it adjoins the wider countryside. The views of development from the east should be minimised by use of development density and heights, together with re-enforcement of existing landscape structure. Use of the Council's Design Panel is recommended.

6.5.132 With the existing traditional orchard area on the site a UK BAP priority habitat, this should be retained and supplemented with new orchard planting as necessary. An ecological assessment will need to be submitted at the application stage to determine the extent and importance of habitats and species present and to make recommendations for their avoidance, mitigation and, where appropriate, compensation. Development proposals will also need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.

6.5.133 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 1.6 ha. Some 0.3 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.



Map 6.5.9 Concept diagram

6.5.134 The site adjoins a Conservation Area and the development will need to respect its setting and those of any listed building, in accordance with Policy DM 32 and DM 33. An archaeological assessment will determine the interests present on the site, especially given its location close to Watling Street and propose mitigation if necessary.

6.5.135 The site will require a new access road off Station Road, through Nobel Close, as well as, potentially, a separate emergency access, between No's 76 and 80 Station Road. Pedestrian access onto Station Road and the A2 will also be required. A safe access to the site could be compromised by existing on-street parking and therefore options to restrict such parking might be required.

6.5.136 A Transport Assessment will also need to consider the requirement for off-site contributions and/or works, including appropriate traffic management measures and improvements at the junction of

6 Land allocations for new development

Station Road and the A2, and possibly elsewhere on the A2. The assessment should also inform preparation of an air quality assessment, which shall consider impacts and implement mitigation within the Teynham Air Quality Management Area.

6.5.137 On street parking is currently a problem on Station Road and off-street provision should be made at the southern end of the site for existing residents. The precise number of spaces will be determined as part of a planning application.

6.5.138 Financial contributions to increased capacity of community services will also be required, including those within the Implementation and Delivery Schedule. These are likely to include increased capacity for primary education at the village and the expansion of primary health services at the village. This latter need could take the form of expansion at one of the two practices at the village, in which case land would need to be provided within the allocation to facilitate the expansion of the Station Road practice. Alternatively, a financial contribution would be required to expand the surgery on the A2 or via a new surgery within the Froggnal Lane allocation at Policy MU 4.

Policy A 19

Land east of Station Road, Teynham

Planning permission will be granted for a minimum of 107 dwellings, together with landscape and open space on Land east of Station Road, Teynham, as shown on the [Proposals Map](#). Development proposals will:

1. Accord with Policy CP 4, in particular demonstrate and provide a strong landscape framework (shown by a submitted Landscape Strategy and a Landscape and Ecological Management Plan) that includes:
 - a. retention and enhancement of existing hedgerows;
 - b. provision of new hedgerow planting;
 - c. retention, enhancement and appropriate management of the existing traditional orchard; and
 - d. new orchard planting for the landscaped areas of the new development.
2. Be of high quality design, of two storeys height, adjacent to the existing residential development and the countryside edge, and respond appropriately to the character, setting, design and materials of the Teynham Conservation Area in accordance with Policy DM 32 and DM 33;
3. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
4. Through both on and off site measures, ensure that any significant adverse impacts on European sites through recreational pressure is mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
5. Provide an off-street car park to address on-street car parking problems on Station Road;
6. Provide an Archaeological Assessment to consider the importance of the site and, if necessary propose mitigation;
7. Provide a new access road from Station Road, a separate emergency access onto Station Road and pedestrian and cycle access onto Station Road and the A2;
8. Address air quality impacts arising in the Teynham AQMA, including the implementation of innovative mitigation measures;

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9. Be supported by a Transport Assessment and provide appropriate traffic improvements and management measures, including at the junction of Station Road and the A2 and at other locations as appropriate; and
10. Provide the infrastructure needs arising from the development, including those identified by the Local Plan implementation and delivery schedule, in particular those relating to improvements in primary school and health facilities.

New allocations on sites within existing settlements

6.5.139 The sites, as outlined in Policy A 20 and shown on the Proposals Map, have been identified as being suitable to provide additional residential development within existing settlements. All sites will have issues that will require consideration in further detail at the planning application stage in accordance with policies of the Local Plan. These matters are not repeated here. However, some allocations have specific issues that are highlighted by Table 6.5.1.

Allocation	Commentary with specific reference to relevant allocations
Orbital, Staplehurst Road, Sittingbourne	- Measures will need to be included to mitigate against the rail and road noise for the new residents. - The existing poor access will need to be addressed. - Financial contributions include those toward health and youth services.
152 Staplehurst Road, Sittingbourne	- Has potential contamination requiring investigation. A plan of remedial actions shall accompany any planning application. - The impact on existing residents will need to be taken into account. - The existing poor access will need to be addressed. - Financial contributions include those toward health and youth services.
Lydbrook Close, Sittingbourne	- Has potential contamination requiring investigation. A plan of remedial actions will accompany any planning application. - Financial contributions include those toward health and youth services.
35 High Street, Milton Regis, Sittingbourne	- Potential contamination and the removal of chrysotile asbestos. A plan of remedial actions will accompany any planning application. - The impact on existing residents will need to be taken into account. - The impact on nearby listed buildings, on the conservation area and on areas of archaeological potential will need to be taken into account.
Bysingwood Primary School, Faversham	- Mature trees/woodland will be retained and incorporated through an integrated landscape strategy for the site. - Financial contributions include primary school and health services. - Ecological assessment required that will also consider the presence of protected species with a view to achieving a net gain in biodiversity. A Habitats Regulations Assessment will also be required to address matters in accordance with Policy CP 7 and Policy DM 28.
Faversham Police Station	- Within a conservation area. The existing police station should be retained. Archaeological remains are likely to be present on the site. Medieval and Roman remains have been found nearby. Any new development must take into account the setting of the adjacent listed building. - Within a Source Protection Zone and a surface water drainage scheme will need to be agreed with the Environment Agency.
Preston Skreens, Minster Road, Minster	- Will need to ensure that the existing playing field is no longer needed or a suitable alternative provided. - Contains mature trees and dense hedgerows which will need to be incorporated through an integrated landscape strategy for the site.

6 Land allocations for new development

Allocation	Commentary with specific reference to relevant allocations
	- Will need to undertake ecological assessments that will also consider the presence of protected species. - Proposed access will need to consider current congestion on Minster Road.
Halfway Houses Primary School, Southdown Road, Halfway	- The impact on existing residents will need to be taken into account. - Will need to ensure that the existing playing field is no longer needed or a suitable alternative is provided. - Contains mature trees and dense hedgerows which will need to be incorporated through an integrated landscape strategy for the site. - Will need to undertake ecological assessments that will also consider the presence of protected species. - Will need to have considered the possibility of archaeological remains being on site. - Financial contributions include those toward health, youth services and community, learning and skills services.
Manor Road, Queenborough	Planning applications will assess whether there is any potential flood risk (tidal) as a result of development.
The Foundry, Rushenden Road, Queenborough	- Has potential contamination requiring investigation. A plan of remedial actions will accompany any planning application. - Planning application will assess whether there is any potential flood risk (tidal) as a result of development.
The Old Bus Depot, Leysdown	- Potential contamination requiring further investigation. A plan of remedial actions will accompany any planning application. - Financial contributions include those toward education, health and youth services.
Iwade Fruit and Produce	- The impact on existing residents will need to be taken into account. - Financial contributions include those toward health, new community hall and education.
Iwade Village Centre	- The impact on existing residents will need to be taken into account. - Financial contributions include those toward health, new community hall and education.

Table 6.5.1 Matters to be considered by allocations

Policy A 20

New allocations on sites within existing settlements

Planning permission will be granted for residential development at the following locations:

Location of allocation		Site Area (ha)	Minimum no. of dwellings
Sittingbourne	1. Orbital, Staplehurst Road	1.5	60
	2. 152 Staplehurst Road	1.8	75
	3. Lydbrook Close	1.7	70
	4. 35 High Street, Milton Regis	0.2	10
	5. Freesia, Grovehurst Road	0.3	15
Faversham	6. Bysingwood Primary School	0.7	15

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Location of allocation		Site Area (ha)	Minimum no. of dwellings
	7. Faversham Police Station	0.2	12
Minster and Halfway	8. Preston Skreens, Minster Road	0.6	24
	9. Halfway Houses Primary School, Halfway	1.5	60
Queenborough	10. Manor Road	0.1	6
	11. The Foundry, Rushenden Road	0.4	37
Leysdown	12. Former Bus Depot, Shellness Road	0.2	10
Iwade	13. Iwade Fruit and Produce	0.5	21
	14. Iwade Village Centre	0.2	10
TOTAL		9.9	425

Table 6.5.2 Table showing dwelling numbers on new allocations within existing settlements

Development proposals will:

1. Address the matters listed in Table 6.5.1;
2. Assess whether existing open space should be retained and make new provision as required;
3. Achieve design, layout, density and landscaping appropriate to the context of the site and in accordance with Policy CP 4;
4. Avoid adverse impacts on biodiversity where possible, mitigate adverse impacts to acceptable levels and achieve a net gain where possible. Proposals will ensure that, through both on and off-site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
5. Accord with any approved development briefs;
6. Through use of integrated landscape strategies, retain existing trees and vegetation where possible and enhance through appropriate landscaping;
7. Provide safe access to the site and respond to issues highlighted by an appropriate transport assessment;
8. Make the site safe from contamination and flood risk;
9. Meet open space needs in accordance with Policy DM 17;
10. Safeguard as far as appropriate, the amenities of existing and new residents;
11. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8; and
12. Provide infrastructure needs arising from the development, including those identified by the Local Plan implementation and Delivery Schedule.

Smaller allocations as extensions to settlements

6.5.140 These sites have been identified as being suitable to provide additional residential development at the edge of existing settlements. All sites will have issues that will require consideration in further detail at the planning application stage in accordance with Policies of the Local Plan. These matters are not repeated here. However, some allocations have specific issues that are highlighted by Table 6.5.3.

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Allocation	Commentary with specific reference to relevant allocations
North of Key Street, Sittingbourne	- Lies close to the A2 Watling Street. Any planning application for development proposals on these sites will need to have considered the possibility of archaeological remains being on site. - Through an integrated landscape strategy consider: - Scrub and grassland habitats and trees with a Tree Preservation Order. Determine such matters as the presence of protected species, whilst retention of habitat as far as possible and mitigation will secure a net gain in biodiversity. - The creation of a new attractive urban edge to Sittingbourne, with substantial landscaping to achieve the integration of development in a fashion that minimises its impact upon the separation of Sittingbourne with Bobbing. - Although the Environment Agency has raised no particular questions in respect of this allocation, planning applications for all of the allocations would need to assess whether there is any potential flood risk (fluvial) as a result of development. - Financial contributions include those toward health and junction improvements at Key Street A249/A2.
Manor Farm, Sittingbourne	- Lies close to the A2 Watling Street. Any planning application for development proposals on these sites will need to have considered the possibility of archaeological remains being on site. - Financial contributions include those toward primary education, health and junction improvements at Key Street A249/A2. - Through an integrated landscape strategy consider: - The creation of a new attractive urban edge to Sittingbourne, with substantial landscaping to achieve the integration of development in a fashion that minimises its impact upon the separation of Sittingbourne with Bobbing. - The assessment and, where possible, the retention of remaining orchard trees (a UK BAP priority habitat). - Determine such matters as the presence of protected species, whilst retention of habitat as far as possible and mitigation will secure a net gain in biodiversity.
Minster Academy	- May have some biodiversity interest on site. Will need to undertake ecological assessments that will also consider the presence of protected species. - Has surface water drainage issues which a planning application would need to address through a connection to school network. - Any planning application for development on these sites would need to be accompanied by a flood risk assessment with appropriate mitigation measures.
Nil Desperandum, Queenborough	- Any planning application for development proposals on these sites will need to have considered the possibility of archaeological remains being on site. - Through an integrated landscape strategy consider the creation of a new attractive urban edge to Rushenden with substantial landscaping and, having regard to its topography, achieve the sensitive integration of development within adjacent open landscapes. - An international wildlife site adjoins the site where access onto the wider marshes may need to be managed as part of the wider Queenborough/Rushenden proposals. The site may also require its own Habitats Regulations Assessment at the planning application stage. Planning applications would therefore need to include assessment of impact pathways from disturbance including noise, lighting or visual intrusion and other adverse effects on the integrity of the international wildlife site both during construction and throughout the operation of the site. Planning permissions should ensure that necessary mitigation is provided to ensure no change in lux levels within the SPA and no significant change in noise levels. - Access to the site is affected by tidal flooding to a limited degree and a dry means of escape to Well Road is likely to be the main issue.

Land allocations for new development 6

Allocation	Commentary with specific reference to relevant allocations
Ham Road, Faversham	- Through an integrated landscape strategy consider the creation of a new attractive urban edge to Faversham, with substantial landscaping, achieve the sensitive integration within adjacent open landscapes in a fashion that minimises its impact. - Consider the rural amenities and appearance of Ham Road. - Site is located within close proximity to a former landfill site and further investigation of any methane gas transmission will be required. - Mineral Safeguarding will need to be addressed via a Minerals Assessment. - Financial contributions as set out in the Implementation and Delivery Schedule.
Parsonage Farm, Newington	- Location of access will require careful consideration on narrow lane close to school. - Should assess any protected species using existing buildings. - Aim to provide attractive semi-rural edge and setting to village.
North of High Street, Eastchurch	- Any planning application for development proposals on this site will need to have considered the possibility of archaeological remains being on site. - Financial contributions include those toward health, youth services and primary education.
Colonel's Lane sites, Boughton	- Through an integrated landscape strategy achieve a high standard of substantial landscaping and built design to create attractive views of the site from the A2. - Could require a new access adjacent to Chestnut Cottage, which is located in Boughton Street conservation area. Development will need to consider the impact of the development upon the setting of the conservation area and ensure the development preserves or enhances its setting. - Lying close to the A2 Watling Street, a planning application for development proposals on this site will need to have considered the possibility of archaeological remains.
Bull Lane, Boughton	Through an integrated landscape strategy, create a new attractive village edge and achieve its integration within adjacent open landscapes with substantial landscape and good built design that minimises visual impact on local landscape designation.
Mayfield, Teynham	- Scrub habitat needs assessment to determine such matters as the presence of protected species. Retention of habitat as far as possible and mitigation will secure a net gain in biodiversity. - Impacts upon air quality need to be addressed, ensuring the development does not compromise the centre of Teynham which is an Air Quality Management Area. Innovative mitigation measures may be required to address any impacts. - Financial contributions include those toward health and primary education.
Land at Barrow Green Farm	- Could require a new access or alterations to the existing access for both vehicles and pedestrians. - Through an integrated landscape strategy consider the creation of an attractive new village edge through substantial landscaping, especially on the eastern and southern boundaries to integrate development into the wider landscape and achieve a net gain in biodiversity. - Contamination may need to be addressed. - Off-street car parking required to assist with existing on-street parking problem. - Financial contributions include those toward junction improvement at Station Street/A2 and health and primary education provision.
West of Brogdale Road, Faversham	- Provide strong landscape buffer to rural facing boundaries. - Maintain rural character of Brogdale Road. - Mineral Safeguarding will need to be addressed via a Minerals Assessment
Junction of Scocles Road and Elm Lane, Minster	- Maintain and enhance boundary vegetation. - Undertake ecological assessments to determine interest and mitigation necessary. - Consider widening of Scocles Road frontage across the site.

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Allocation	Commentary with specific reference to relevant allocations
	- Consider a proportion of plots for self-builders. - Potential contribution to A2500 Lower Road improvements, health and primary school provision.
Land at Chequers Road, Minster	- Maintain and enhance boundary vegetation. - Create attractive frontage to Chequers Road. - Potential contribution to health and primary school provision.

Table 6.5.3 Matters to be considered by allocations

Policy A 21

Smaller allocations as extensions to settlements

Planning permission will be granted for residential development at the following locations listed below:

Location of allocation		Site area (ha)	Minimum no. of dwellings
Sittingbourne	1. Land North of Key Street	1.6	30
	2. Manor Farm	2.3	30
Minster and Halfway	3. Junction of Scocles Road and Elm Lane	2.8	50
	4. Land at Chequers Road	0.4	10
	5. Minster Academy	1.2	20
Queenborough and Rushenden	6. Nil Desperandum, Alsager Avenue	0.8	22
Faversham	7. Land at Ham Road	1.1	35
	8. West of Brogdale Road	3.6	66
Newington	9. Parsonage Farm, School Lane	0.5	14
Eastchurch	10. North of High Street	0.8	15
Boughton	11. Land off Colonel's Lane	0.8	15
	12. Land south of Colonel's Lane	0.3	6
	13. Bull Lane	0.5	16
Teynham	14. Land adj Mayfield, London Road	0.3	13
	15. Land at Barrow Green Farm, Lower Road	1.1	30
TOTALS		18.1	372

Table 6.5.4 Table showing smaller allocations as extensions to settlements

Development proposals will:

1. Address the matters listed in Table 6.5.3;

2. Achieve design, layout, density and landscaping appropriate to the context of the site and in accordance with Policy CP 4;
3. Avoid adverse impacts on biodiversity where possible, mitigate adverse impacts to acceptable levels and achieve a net gain where possible. Proposals will ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
4. Through an integrated landscape strategy and the scale and location of development, retain existing trees and vegetation where possible and enhance through appropriate landscaping, mitigate visual impacts upon landscapes and the integrity of settlements;
5. Provide safe access to the site and respond to issues highlighted by an appropriate transport assessment;
6. Assess whether existing open space should be retained and make new provision as required;
7. Make the site safe from contamination and flood risk;
8. Meet open space needs in accordance with Policy DM 17;
9. Safeguard as far as appropriate, the amenities of existing and new residents;
10. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8; and
11. Provide infrastructure needs arising from the development, including those identified by the Local Plan implementation and Delivery Schedule.

6.6 Mixed-use allocations

Land at north-west Sittingbourne

6.6.1 North-West Sittingbourne is the largest of the allocation sites outside of Sittingbourne main urban area. It comprises three main parcels of land (currently in several ownerships), some 75.0 ha in total, which are located between the edge of Sittingbourne at the railway line to Sheerness close to Kemsley station extending out to the A249 trunk road.

6.6.2 The site has been identified as having significant potential to meet the Borough's future growth needs in a sustainable location that minimises impacts on the wider countryside due to its relative self-containment.

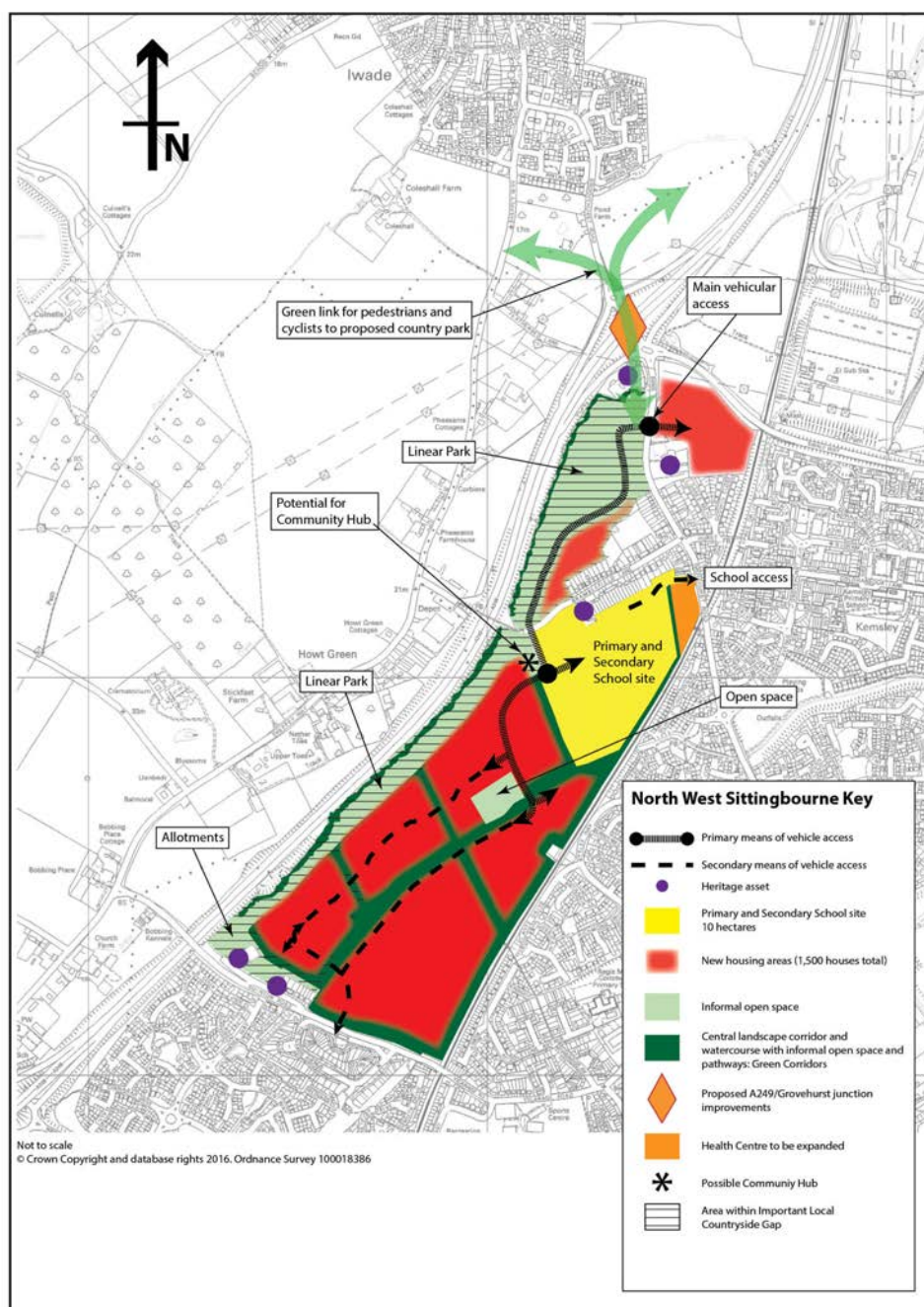
Site proposals

6.6.3 The site is suitable for development comprising a new residential community and supporting community facilities, including:

- A minimum of 1,500 dwellings (comprised of three sites);
- at least 22 ha of major strategic open space/landscape across three sites to serve all open space needs and is also required to offset potential impacts on European wildlife habitats and those to settlement separation, and link via Bramblefield Lane/old Sheppey Way to open space provision at Policy A 17 (Iwade);
- proposed primary and secondary schools;
- enhancements to local health care facilities; and
- enhancements to bus and rail facilities.

6.6.4 There are several landowners involved in the development of this strategic allocation. The Council will expect these landowners to come together in the preparation of a joint Masterplan/development brief for the site in order to ensure the proper co-ordination of development and necessary physical and social infrastructure.

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Map 6.6.1 Development concepts at NW Sittingbourne

6.6.5 The site forms part of an important local countryside gap between Sittingbourne and the villages of Iwade and Bobbing. Whilst it is a sustainable choice for an extension to the Sittingbourne area, the landscape setting and separate identity of the settlements remains an important consideration for this development. The substantial area of natural and semi natural green space proposed for the western boundary of the site is therefore intended to enable the long term functioning of this land to continue to act as part of the countryside gap. Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28. Development proposals at Iwade (Policy A 17) will also include considerable areas of open space to maintain a gap between the settlements. Although separated by the A249, the provision being made at both locations will form part of a larger country park linking western Sittingbourne with Iwade.

6.6.6 In view of the presence of recent significant archaeological finds in close proximity to this site, past finds within the site and existing heritage assets on site, an Archaeological Assessment will be required which the development will need to respond to at planning application stage. Any Listed Buildings and their settings will also need to be responded to in development proposals.

6.6.7 A key issue affecting the allocation is the need for a new junction, between Grovehurst Road and the A249 which has been identified as necessary by the Highway Authorities. The main vehicular access into the allocation will need to have regard to the layout of this junction. There will also need to be pedestrian and cycle way links across the A249 utilising the existing right of way along Bramblefield Lane, both to facilitate use of the open space uses on either side and to enable a continuous pedestrian and cycle route to Kemsley rail halt and the new schools at the Quinton Road site. Existing pedestrian/cycle links across the Grovehurst/A249 Junction will be retained and may need to be improved as part of the major remodelling of the junction rather than in any interim improvement scheme. Improvements to bus routes serving the site and the rail halt will be required, whilst improvements to station facilities at Kemsley should be explored.

6.6.8 Transport assessment work will also need to assess wider impacts in the A249 corridor between the Key Street and Grovehurst junctions and measures may be required to address any impacts arising. The assessment will also need to consider the phasing of development relative to any interim or longer term improvements to Junction 5 of the M2.

6.6.9 The Masterplan/Development Brief should be informed by a Transport Assessment for the allocation which seeks to mitigate the impact of development traffic on surrounding roads including junctions with the strategic road network and within existing neighbourhoods. Access points are available from Grovehurst Road and Quinton Road, although the Transport Assessment will establish the need for, scale and nature of any off-site highway improvements necessary to mitigate unacceptable traffic impacts at the Grovehurst/A249 Junction and Bobbing/A249 Junction and elsewhere on the local highway network. Highways England and Kent County Council have, in principle, agreed the appropriateness of an interim improvement scheme to the Grovehurst Road/A249 junction to accommodate increases in traffic arising from Local Plan allocations. Development at the North West Sittingbourne allocation will be expected to contribute to the funding of the interim scheme although some development is likely to be acceptable in advance of it. The Transport Assessment will therefore need to inform the timing of transport mitigations to complement the phasing proposals in the Masterplan/development brief. Pedestrian/cycle links across the A249 will need to be improved via Bramblefield Lane and Old Sheppey Way commensurate with the interim improvement of the Grovehurst Road/A249 junction and at the junction itself as part of the ultimate junction remodelling.

6.6.10 The site should bring forward a range of housing types in accordance with Policy CP 3, including those for affordable housing. The site adjoins one of the town's most deprived areas and as such the purpose of development here should aim to improve the local housing market in terms of housing type and quality of environment.

6.6.11 It is highly likely that safeguarded minerals are present at this site and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.6.12 The Council's Renewable Energy Study concluded that in view of the scale and mix of uses originally proposed for the site, creation of a district heating network could be viable at this location and this should be further explored through preparation of a Masterplan/development brief. Although research undertaken by potential developers has indicated that measures such as orientation of road and building layout and use of solar based technologies could be more technically viable and cost effective for this site, the Council expects all alternatives to be evaluated and a solution compliant with Policy DM 19 and Policy DM 20 to be clearly demonstrated in a Masterplan/development brief for this major allocation.

6.6.13 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 22 ha. Some 3.8 ha of sport pitch provision will also

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be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, it should be possible to make this provision on the school site, however, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage having regard to the final housing numbers. Provision of community facilities for dual use by pupils and the wider community will be sought, whilst the Council's Indoor Sports strategy indicates the need for all-weather artificial pitches. Submission of a Health Impact Assessment in accordance with Policy CP 5 will be appropriate to demonstrate an integrated approach to service provision, open space, the design of development, the encouragement of healthy activities and the provision of green infrastructure.

6.6.14 To serve the area, Kent County Council has indicated that land is required for a six-form entry secondary school, together with land for a two-form entry primary school. Both will be provided as a 'through' school on a combined site of a minimum of 10 hectares. The scope for provision of dual use sports facilities here will also need to be explored, but there is a good opportunity to put the schools at the heart of the community and achieve the objectives for promoting healthy communities across a wider area.

6.6.15 There will also be a need for further health care facilities in the area, which may be best provided for through an extension of the facility at Grovehurst Health Centre, including its expansion onto adjacent land which should be made available. Preparation of the Masterplan/development brief will also confirm whether a community hub will be required. Within such a hub, KCC have identified the need for a specific facility for community, learning and skills services, whilst a bespoke project of care services in the community may be required. Contributions to new library services at Sittingbourne will also be required.

6.6.16 The respective parcels of land making up the allocation are discussed below.

Land North of Quinton Road

6.6.17 This site comprises 60.9 ha of farm land, located to the north of Quinton Road between the A249 to the west and the railway line to the east. It is well related to existing residential development although the railway line provides a significant barrier limiting access between the site with residential development to the east. The western boundary of the site is formed by the A249 embankment and its northern boundary by Bramblefield Lane. Although the site has convenient access to Kemsley railway station, there is a need to improve both the links to it and the facilities at the station.

6.6.18 The Council's Urban Extension Landscape Capacity Study concluded that this area had 'high' capacity to accommodate change. Although the existing urban edge (contained by the railway line) is a strong boundary to Sittingbourne, this boundary is repeated in effect by the A249. The site is visually contained from Bobbing and Howt Green by a combination of topography and tree screening and is largely not visible to drivers on the A249. Within the proposed allocation, it is proposed that a buffer of open land be secured along the A249. This would provide a number of benefits in terms of noise reduction and landscape enhancement. It would also reinforce a new urban edge for Sittingbourne and ensure that development would be set below what could otherwise be seen in views from the A249 or the 'old' road to the west.

6.6.19 The allocation of this site is undoubtedly a significant loss of countryside between the existing urban edge of Sittingbourne and the A249. However, given the benefits of development in terms of the amount of housing that can be built in a sustainable location, alongside other important facilities needed, a reduction in the openness of land beyond Sittingbourne is considered necessary. However, provided development is kept below the top of the ridge that runs roughly north-south along this site, with a strong landscape/open space buffer achieved, the separation between Sittingbourne and Bobbing and Howt Green can be maintained. The extent of this buffer area is important to the mitigation of any impacts and approximately 14 ha has been identified alongside the A249 within this parcel of land for this purpose which will form part of an important local countryside gap as identified by Policy DM 25. As well as meeting other

open space needs, it is anticipated that a significant proportion of this (and land north of Bramblefield Lane) will help meet the town's need for some 30 ha of natural and semi-natural greenspace. Part of the town's need for allotment space can also be met at the site.

6.6.20 A narrow drain runs centrally through the site which could flood in certain conditions. A site flood risk assessment will need to examine this issue further. The drain should form part of a strategic green corridor running through the site linking (as far as possible given the railway line) with similar provision further to the east.

6.6.21 In total some 1,300 dwellings are envisaged for this area.

Land at Pheasant Farm Grovehurst Road/Bramblefield Lane, Sittingbourne

6.6.22 This 10.4 ha site is located at the north western edge of Sittingbourne. The site generally rises from south to north, occupying a prominent elevated location overlooking Sittingbourne (this area previously received spoil from construction of the A249) and Iwade to the north. The site fronts Grovehurst Road to the north east and the ribbon of residential development extending along Bramblefield Lane to the south east. The A249, which is in a cutting, extends along the west boundary with the B2005 junction located to the north of the site. Here there is a listed building (outside the allocation). Beyond the A249 is the small hamlet of Howt Green and a number of farmsteads located along the old Sheppey Way, and Iwade village to the north.

6.6.23 The western and northern most parts of this site and the raised ground area is not considered suitable for development. The most important factors are the significant adverse landscape impacts that would accompany development on the higher parts of the site and the erosion of settlement separation between Sittingbourne and Iwade and the small settlements located along the old Sheppey Way. This view is endorsed in the Urban Extensions study, which advises that north of the footbridge crossing the A249 it would be appropriate to conserve the open character of the landscape between settlements. The housing allocation (and its access road) is confined to the south east of the site behind the sensitive high ground and should therefore be largely absent in views from Iwade.

6.6.24 This use of topography and open space will maintain the separation of Sittingbourne and Iwade at this location and secure an open setting for the development allocation to the south and will form part of the important local countryside gap proposed by Policy DM 25. This will prevent any further encroachment of the rural, open nature of the countryside to the west of the allocation and ensure separation of settlements at this location for the longer term.

6.6.25 The whole of the site is included within the allocation for purposes both of open space provision, but, critically because it meets the purpose of securing an appropriate access strategy facilitating a spine road through the site linking access points from Quinton Road to Grovehurst Road. The northern end of such an access would be located close to the A249 Grovehurst interchange, where vehicle speeds are reasonably high. Transport Assessment work will need to demonstrate that an acceptable access can be formed in this location, taking into account the proximity of interim and longer term mitigation arrangements proposed for the Grovehurst /A249 interchange. To the south east of this road, some residential development would be acceptable, as it would be in the lower lying part of the site, and would not significantly compromise the separation of Sittingbourne and Iwade. However, the remainder of the site (at least 7 ha) should be added to the strategic level open space of the land to the south in order to create a continuous green corridor with the Quinton Road site, extending the full length of the allocation alongside the A249.

6.6.26 A minimum of 80 dwellings are envisaged for this area, subject to provision of the strategic open space corridor outlined above and robust landscape and visual impact assessment.

Land at Great Grovehurst Farm, Sittingbourne

6.6.27 This flat area of land, located in the northern part of the allocation, is currently in agricultural use and includes a number of former agricultural buildings that have been converted for various retail/employment purposes. The western section of the Sittingbourne Northern Relief Road (Swale Way) forms the northern

6 Land allocations for new development

boundary of this site, the B2005 extends along the west boundary and the Sittingbourne/Sheerness rail link is located immediately to the east, all of which act to enclose the site and detach it from the wider area. The site is well related to existing residential development to the south where a secondary means of access could be provided. Adjacent to the site is Great Grovehurst Farm, a listed building.

6.6.28 This site is well located in terms of accessibility. Kent Highway Services advise that this site has the option to take access from Swale Way, Grovehurst Road and possibly Godwin Close and Danes Mead. Formation of any new residential road junctions directly onto Swale Way may prove difficult due to level differences, traffic volumes, and visibility issues. A more suitable alternative may be to achieve access opposite the main spine road serving the whole allocation (situated in the Pheasant Farm section of the allocation described above). It will be for the developer to demonstrate that acceptable accesses could be formed, given the traffic volumes and speeds, through the submission of a Traffic Impact Assessment.

6.6.29 Re-modelling of the A249/Grovehurst Road interchange is anticipated in the future, due to the increased use of Swale Way as further development in the centre of the town and at North East Sittingbourne commences, as well as from this allocation. Land to the north of Swale Way has already been safeguarded, through a Section 106 agreement attached to an implemented planning permission, and is likely to be used to facilitate the interim improvements to the A249/Grovehurst Road junction. Should the Transport Assessment indicate an interim scheme which has any additional requirement, this will need to be taken into account in the Masterplan/development brief for the overall allocation or planning applications for this site.

6.6.30 In total some 120 dwellings are envisaged for this area.

Policy MU 1

Land at north-west Sittingbourne

Planning permission will be granted for mixed uses on land at North West Sittingbourne, as shown on the [Proposals Map](#) and will comprise a minimum of 1,500 dwellings, community facilities and structural landscaping and open space adjacent the A249. Development proposals will:

1. Be in accordance with a Masterplan/Development brief prepared by the landowners/developers involved in the delivery of the allocation, in consultation with the Borough Council and which reflects the requirements of this policy;
2. Be in accordance with Policy CP 4 and in particular, achieve an integrated landscape strategy to provide a minimum of 22 ha natural and semi-natural greenspace and other open space as a continuous buffer along the A249 that will form part of the important local countryside gap between Sittingbourne and Bobbing/Iwade in accordance with Policy DM 25 and Policy A 17 for Iwade, as well as contributing toward an appropriate link between the two via Bramblefield Lane/old Sheppey Way. This area will link to a network of green spaces and corridors throughout the allocation to achieve open space provision;
3. Ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
4. Provide on-site flood mitigation measures;
5. Integrate heritage assets, having regard to their setting;
6. Be accompanied by a Health Impact Assessment in accordance with Policy CP 5;
7. Be supported by a Transport Assessment and access strategy in the Masterplan /development brief to determine the need and timing for improvements to the transport network and phasing of development and address the following:

- a. The scale, nature and timing of interim improvements at Grovehurst Road/A249 junction and if necessary at the Bobbing/A249 junction;
 - b. Identification of vehicular access points from Quinton Road and Grovehurst Road and mitigation of traffic impacts on the local road network and existing neighbourhoods by defining an appropriate quantum of development relative to these access points;
 - c. The timing of any necessary off site highway improvements relative to the phasing of development;
 - d. Identification of improvements to the public transport network between the site and Sittingbourne;
 - e. Encouragement of increased rail use from Kemsley Halt through enhancement of the facilities there and public pedestrian and cycle links;
 - f. Secure safe and attractive pedestrian and cycle links within the development and to the adjacent network including links to Iwade over the A249;
 - g. Have regard to the availability of land to the north of Swale Way already safeguarded for the remodelling of the A249/Grovehurst Road junction and should the mitigation design require it, within any other relevant allocation.
8. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
 9. Achieve suitable means of sustainable energy production and carbon reduction measures compliant with Policies DM 19 and DM 20;
 10. Secure new primary and secondary schools on site, with dual public/school use facilities (including a land reservation for its provision), to include land for artificial playing pitches; and
 11. Provide appropriate community facilities and other infrastructure within the site to meet the needs of future residents, including those within the Local Plan Implementation and Delivery Schedule, in particular those arising from primary health care, libraries and community, learning and skills services.

Land at north-east Sittingbourne

6.6.31 Land at north-east Sittingbourne occupies a key location at the eastern end of the current extent of the Sittingbourne Northern Relief Road (Swale Way). It comprises land to the east and north of the roundabout junction that provides access to the housing development at East Hall Farm, down to the railway line to the south. The land is currently in agricultural use. Close to the northern boundary of the site is a wooded and wet area important to biodiversity and designated as a Ramsar site, Special Protection Area, Site of Special Scientific Interest and the locally designated North Kent Marshes Special Landscape Area.

6.6.32 This allocation, covering some 50 ha, is suitable for a mixed use development comprising:

1. employment – 43,000 sq m of B use class on 11.6 ha in the north western part of the site (outline planning permission obtained);
2. residential development – approximately 106 dwellings on 3.4 ha in the south eastern part of the site; and
3. along the northern part of the site, forming some 31.1 ha, open space, mitigation, water attenuation, wildlife enhancement, landscaping etc.

6.6.33 The key strength of this site is that it would form a natural extension to the established Eurolink industrial area and East Hall Farm housing estate, both of which are proven locations for development and can contribute significantly to their success by creating a mixed use sustainable community. Outline planning permission has been granted for the employment element of the allocation, but Policy MU 2 is retained in order to guide future planning applications for the area.

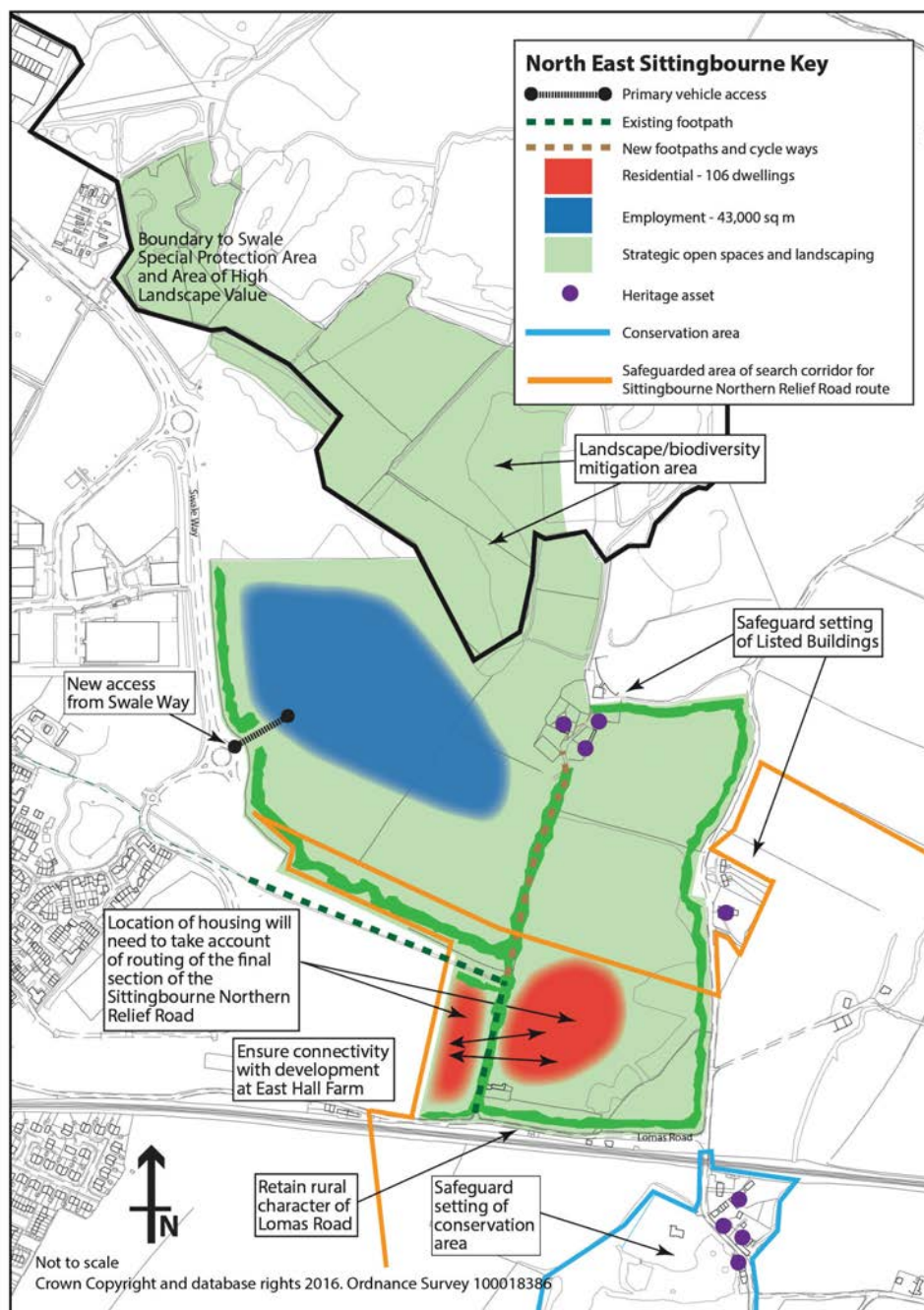
6 Land allocations for new development

6.6.34 The site should achieve a range of housing types with an emphasis upon family homes in accordance with Policy CP 3, including those for affordable housing.

6.6.35 Landscape evidence shows the area as being able to accommodate change, but an integrated landscape strategy will be required to lead development of the area. Given its location, there is significant potential to create open space and new habitats, which will serve the purpose of conserving and enhancing biodiversity and offsetting any impacts on European designated wildlife sites. Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28. Given the amount of open space likely to be made available, it should be more than possible to achieve a net gain in biodiversity overall and meet a significant proportion of the town's needs for natural and semi-natural greenspace, alongside new allotments.

6.6.36 It is highly likely that safeguarded minerals are present at this site (as shown in the Kent Minerals and Waste Local Plan and on the Proposals Maps) and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.6.37 The position of this site within open countryside requires strong design principles and provision of open space and landscaping to settle the development into the landscape as well as providing a healthy environment for future employees and residents. In particular, the development should look to 'close' the expansion of this part of the town in a fashion that achieves an attractive urban edge and successfully integrates it within the wider landscape. Employment development will also be expected to mitigate against the impact of potential flooding through a flood risk assessment.



Map 6.6.2 Development concepts at NE Sittingbourne

6.6.38 Within the proposed open space area are a number of listed buildings, the settings of which will need to be safeguarded and, if possible enhanced. Given its location, an Archaeological Assessment will be required which the development will need to respond to. Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 1.6 ha. Some 0.3 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.6.39 The Council's Renewable Energy Study has identified potential for a range of renewable energy measures - wind energy (feeding into the national grid), high energy efficiency standards, solar photovoltaic, solar water heaters and air source heat pumps to domestic and non-domestic properties. These will need further investigation at the planning application stages.

6 Land allocations for new development

6.6.40 The site has good access to the strategic road network and would be directly accessed from the roundabout on Swale Way, which connects to the A249 and motorway network beyond. A transport assessment will need to examine the detailed effects on this junction with the A249 where a need for improvements may arise. A network of footpath and cycle links will also need to integrate the sites with adjacent areas, including the National Cycle Route network and development will facilitate the extension of the bus network into the area.

6.6.41 Critical to the shape and timing of the development of the area is its relationship to the existing Sittingbourne Northern Relief Road (SNRR) and its proposed final stage linking to the A2 – the latter is identified as a safeguarding search area by Policy AS 1. Until a route for completion of the SNRR is finalised, it is important that development at north-east Sittingbourne does not prejudice its future implementation. If housing proposals were to come forward early, they will need to demonstrate that land has been reserved to enable all reasonable potential route options to be fully considered, as well as determining, via the Transport Assessment, whether a contribution toward the provision of the road will be required.

6.6.42 Community facilities will be required and shall include those within the Local Plan Implementation and Delivery Schedule. These shall include contributions to the expansion of primary school provision at Murston and community learning and skills and youth services at Sittingbourne. Contributions to the expansion of GP health services at Sittingbourne will also be required.

Policy MU 2

Land at north-east Sittingbourne

Planning permission will be granted for mixed use development comprising 43,000 sq m of 'B' use class employment uses, approximately 106 dwellings, together with 31.1 ha of open space, flooding, biodiversity and landscape enhancements on land in North-East Sittingbourne as shown on the [Proposals Map](#). Development proposals will:

1. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
2. Through an integrated landscape strategy, achieve a net gain in biodiversity overall by making provision for significant levels of habitat creation, landscaping and open space to:
 - a. mitigate impacts upon and enhance the interests of the adjacent Special Protection Area and Area of High Landscape Value;
 - b. meet natural and semi natural greenspace needs at the town;
 - c. provide water attenuation;
 - d. allotments; and
 - e. successfully complete the long term expansion of the town within the wider landscape;
3. Ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
4. Provide a financial contribution toward the improvement of existing sports pitch and formal play facilities;
5. Undertake a Transport Assessment and implement any highway and other transportation improvements arising from the proposed development;
6. Secure pedestrian and cycle links to existing and proposed residential and employment areas and adequate bus access to the site;
7. Ensure development does not prejudice the safeguarded future alignment of the Sittingbourne Northern Relief Road Bapchild section in accordance with Policy AS 1 and make an appropriate contribution toward it, if required;

8. Address the risk of flooding in accordance with Policy DM 21;
9. Provide renewable energy measures in accordance with an assessment of potential; and
10. Provide infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule, in particular, those relating to health and education.

Land at south-west Sittingbourne

6.6.43 Located to the east and west of Wises Lane and to the south of Brier Road and Westlands School, in the Parish of Borden, some 33.7 ha of farmland is identified for a major mixed use expansion of Sittingbourne comprising some 564 dwellings, together with commercial development (including potential neighbourhood facilities), a new primary school, major open space and landscape enhancements. The site has been identified as having significant potential to meet the Borough and town's future growth needs in a sustainable location, close to existing services and the strategic road network.

6.6.44 The area is arable farmland and has a predominantly rural and open character, with a relatively flat to gently undulating landform. Beyond it, the landform rises more steeply southwards, climbing to the village of Borden which is located on a ridge overlooking the site. Wises Lane itself is a narrow road linking the village of Borden to Sittingbourne, with a junction at the A2, whilst Cryalls Lane, a narrow route again, runs eastward from Wises Lane back into the residential areas of Sittingbourne.

6.6.45 The site should bring forward a range of housing types in accordance with Policy CP 3, including those for affordable housing in accordance with Policy DM 8. A small area of commercial floorspace could also be appropriate to complement the existing business site at the junction of Wises Lane and Cryalls Lane.

6.6.46 Given the different landowners involved and the landscape, phasing and infrastructure issues needing to be addressed, including the potentially complex transport issues (see below), preparation of a joint Masterplan/development brief for the site is required. At all stages use of the Council's Design Panel will be required.

6.6.47 A listed building lies close to the south eastern site boundary at Cryalls Lane and its setting will need to be conserved by the retention and enhancement of open areas, the creation of new open space, the avoidance of new development and the visual mitigation of any proposed new access to the site. It will be important that any masterplan/development brief and application for development are accompanied by a detailed Heritage Assessment, assessing any potential impact on heritage assets. This should also include the impacts of increased traffic levels on the conservation areas within Borden village. A full Archaeological Assessment will also need to be undertaken as the potential for important Iron Age, Roman and other remains is high. There is also evidence indicating the route of ancient trackways through the site. The detailed layout of the site should respond strongly to the findings of the archaeological assessment which shall lead to the preservation of finds in-situ as far as possible.

6.6.48 It is highly likely that safeguarded minerals are present at this site and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.6.49 Landscape evidence shows this landscape's sensitivity and ability to accommodate change to be crucial issues needing to be addressed. The site also forms part of the landscape setting to, and separation of, Sittingbourne and Borden. Despite its physical reduction by the proposed new development, the remaining separation and setting should be respected and enhanced. It will therefore be essential that a Landscape and Visual Impact Assessment be undertaken that shall include proposals for effective landscape and visual mitigation. This shall comprise an effective strategic landscape and green space buffer on the

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southern, western and eastern site boundaries to contribute to and reinforce a long term and sustainable gap between the settlements and to avoid perceptions of coalescence. This should include (together, if necessary, adjoining land):

1. varied widths of woodland, copses, wide hedgerows, orchards and other natural green space appropriate to the local landscape character of the area;
2. the breaking up of the mass and scale of development, as it is perceived from the existing public footpath network, and from the higher ground at Borden;
3. advance planting of the landscape and open space buffer;
4. the establishment of green linkages between existing (adjoining) and proposed open spaces; and
5. demonstration of a net gain in biodiversity.

6.6.50 To further mitigate visual impacts, development on the land to the west of Wisles Lane and on the southern boundary to the allocation should comprise lower densities, with a leafy character and a more rural feel, integrating and relating closely to the landscape of the countryside to the south. The design and appearance will respond to the character and distinctiveness identified by the Swale Landscape Character and Biodiversity Appraisal, 2011. Parts of the development could potentially be at a higher density, with contemporary, distinctive architecture helping to give the area a strong identity, supported by green and treed streets and open spaces, creating a permeable and attractive pedestrian and living environment. Given the site's rural location and the character of development in nearby Borden, development could take the form of a strong village style character with a range of densities and styles to reflect this. Depending on how the site is to be assessed (see below), consideration could be given to creating higher density 'nodes' at key points to break up the potentially dominating impacts of any possible through route, if this approach to access is judged as appropriate.

6.6.51 A small commercial development next to existing employment premises in Wisles Lane might be appropriate, however, its usage, scale, design and landscaping should be of high quality and appropriate to this sensitive edge to development.

6.6.52 Whilst the remaining countryside gap will be protected in accordance with Policy DM 25, a local plan review will consider whether the open space established at the edge of the allocation should be included within any revised boundary to the gap policy.

6.6.53 Although located close to a good range of services and public transport choices, if further assessment demonstrates them to be necessary and viable, the addition of neighbourhood facilities within the site would enhance the overall accessibility of the site to a range of services. A one form entry primary school (on a two form entry site) is likely to be required and this should be provided on the southern boundary to the site where it can support the landscape initiatives described above. The location of the school is shown indicatively on the southern edge of the allocation where its design and layout would need to avoid increasing adverse impacts within the countryside gap. The Masterplan/development brief and planning application process should consider the most suitable location in relation to these issues and its general accessibility for pupils.

6.6.54 As well as the proposed primary school, contributions toward other infrastructure, including those identified by the Local Plan implementation and delivery schedule will be required. This provision shall include, contributions toward enhancements to Sittingbourne library, community, learning and skills and youth services at the town and, in particular, the expansion of health services.

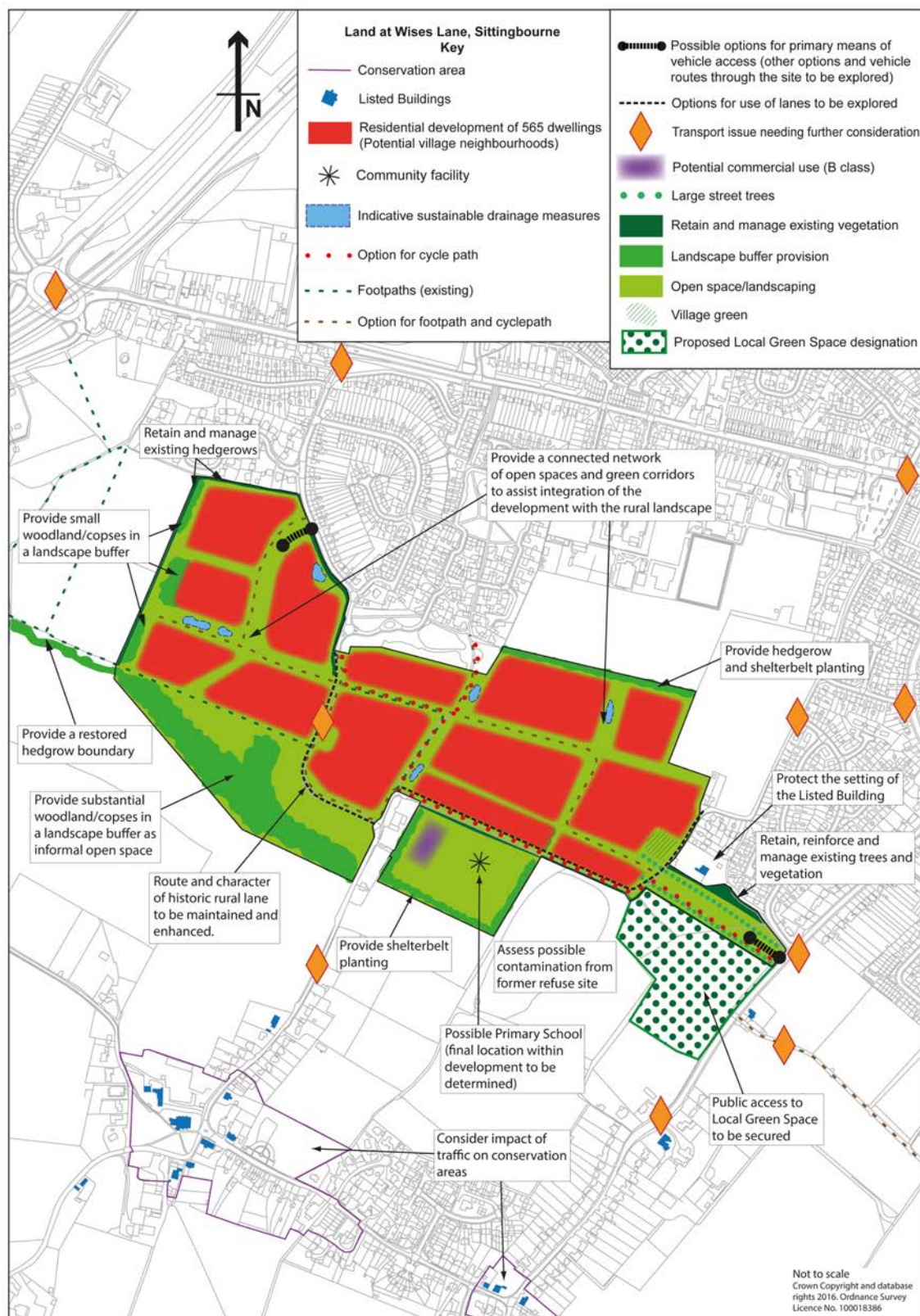
6.6.55 The development should provide open space in accordance with Policy DM 17, including ensuring that the proposed Local Green Space designation at the junction of Borden Lane and Auckland Drive is placed into appropriate management. Where access to the site might be required from Borden Lane, its land take shall be the minimum necessary in order to limit visual and other impacts, whilst landscape mitigation will be required. Financial contributions towards improvements to existing sports pitch and formal play facilities will be required.

6.6.56 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 8.3 ha. Some 1.5 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, these should be able to be provided on site, although the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6.6.57 Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP7 and DM28.

6.6.58 With the site located relatively sustainably in terms of access to local amenities and services, opportunities should be taken to ensure that connections to existing walking routes to the A2 and town centre are made, new footpaths created and that opportunities to travel on foot to destinations to the south such as local primary schools are created and/or enhanced. Provision of local bus services might also be required, but this will need to be examined in the context of options as to how the overall site is to be assessed.

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Map 6.6.3 Development concepts for south-west Sittingbourne

6.6.59 Transport infrastructure issues are of major importance. Firstly, given the likely timing of interim and longer term major improvements to J5 of the M2 at the A249, an assessment of the level of development able to come forward before completion of the improvement will need to be undertaken at the Masterplan/development brief/planning application stage. Secondly, improvements to the A2 at Key Street with the A249 will also be necessary. An assessment will also be required of other junctions in the A249 corridor between and including Key Street and the Grovehurst Interchange. Thirdly, the most appropriate

form of accessing the site will need to be determined (see below) and finally, some of the roads serving the area may require localised improvements and/or traffic management. These could include the junction of Wises Lane with the A2, Adelaide Drive with the A2, Brisbane Avenue with Adelaide Drive, Auckland Drive with Borden Lane and Borden Lane with Homewood Avenue.

6.6.60 Primary vehicle accesses to the site could be potentially located at Borden Lane and from Wises Lane via the A2. At these locations there are trees subject to preservation orders which should be considered. There are though potentially other options (or combinations) that should be explored before choosing the preferred approach. This might include a series of more minor accesses from existing streets, routes across the site mirroring the routes of Roman tracks, or a new linked road between Borden Lane and Wises Lane, which might provide some benefit to levels of traffic currently using the A2. This road arrangement in particular requires careful assessment and would need to avoid being planned as a local distributor road detracting from the character of the development; instead being planned to be subservient in its design to the character of the development itself.

6.6.61 Any preferred option for accessing the site will have also given consideration to traffic management initiatives (inc. possible localised closures and the creation of green quiet lanes) on roads such as Cryalls Lane, Wises Lane and Riddles Road, especially where limiting the potential for increased traffic usage in rural and existing residential areas. In the case of Wises Lane, any traffic management should consider its status as an historic 'rural lane' within Policy DM 26 and its route should, in the eventuality of it being partially closed to traffic, be retained as a green corridor/pedestrian/cycle route through the development.

6.6.62 Whilst the constraints on the highway network are not considered to represent a critical barrier to the levels of development proposed, it is not possible at this stage to determine the extent of the access, improvements and traffic management that may be necessary at the detailed level. These will be matters to be determined more appropriately at the Masterplan/development brief and planning application stage. A Transport Assessment should be submitted to determine the need and timing for any improvements to the transport network as well as assessing the options considered and the reasons for their rejection or adoption.

6.6.63 Potential contamination from methane gas migration from the former waste tip to the south will also need to be examined and this may have a bearing on overall housing numbers and the location of development and open space. Topography and location may also require a Noise Assessment to consider matters such as traffic noise from the M2 and A249.

Policy MU 3

Land at south-west Sittingbourne

Planning permission will be granted for a minimum of 564 dwellings, commercial floorspace (including potential neighbourhood facilities), landscaping and open space on land at south-west Sittingbourne (Borden), as shown on the [Proposals Map](#). Development shall take place in accordance with a Masterplan/development brief (developed through stakeholder consultation). These and submitted planning applications will demonstrate and encompass:

1. Accordance with Policy CP 4, in particular, a strong landscape framework, achieving a net gain in biodiversity (to be shown by an integrated Landscape Strategy and a Landscape and Ecological Management Plan) and including;
 - a. provision of a substantial landscape and green space buffer, provided in advance of new development so as to ensure the mitigation of adverse visual impacts and the maintenance of a long term local countryside gap between Sittingbourne and Borden, in accordance with Policy DM 25;
 - b. provision of green corridors and other green spaces within the development to: ensure an attractive living environment; assist in mitigating wider landscape and visual impacts; link

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with other existing open spaces; achieve a net gain in biodiversity; and meet open space needs in accordance with policy DM 17.

2. A high quality design reflecting the rural and village character of the locality, with varying densities that are able to respond appropriately to the local landscape character and distinctiveness of Sittingbourne and Borden as identified by the the Swale Landscape Character and Biodiversity Appraisal, 2011;
3. Mitigation of visual impacts and implementation of public access to, and appropriate management of, the designated Local Green Space at the junction of Auckland Drive and Borden Lane;
4. Through both on and off site measures, ensure that any significant adverse impacts on European sites through recreational pressure shall be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
5. Undertake a Heritage Assessment to determine heritage impacts and to propose mitigation as necessary. There should be no substantial harm to the setting of Cryalls Farmhouse. Any assessment should include a full archaeological assessment and development should respond to its findings in terms of the overall layout of development, bringing forward proposals for mitigation as necessary;
6. Provision of appropriate access to the site, with a Transport Assessment/design statement at the Masterplan/development brief and planning application stages to further consider:
 - a. the implications of a range of potential accesses options, including any linked road between Wises Lane (A2) and Borden Lane (including its design principles, character, impacts upon trees, historic influences and routing);
 - b. the phasing of development relative to, and financial contributions toward, improvements to the A249 at its junctions with the M2 and at Key Street and other A249 junctions west of Sittingbourne;
 - c. the need, timing and provision of transport improvements at junctions with the A2, together with other residential streets and rural lanes as may be determined;
 - d. whether effective and sensitively designed traffic management measures (inc. possible road closure and the creation of green quiet lanes) will be necessary in parts of Cryalls Lane, Wises Lane and Riddles Road so as to manage traffic levels on rural roads to the south and residential areas to the east, whilst maintaining and enhancing opportunities for walking and cycling;
 - e. providing public transport, pedestrian and cycle links within the development and to the adjacent network;
7. A Health Impact Assessment in accordance with Policy CP 5;
8. The retention and enhancement of any designated Rural Lane, in accordance with Policy DM 26;
9. Provision of a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
10. An assessment of potential noise and contamination and any mitigation necessary to address it; and
11. Provision of infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule. This shall include provision by the developer of a one-form primary school and contributions toward the expansion needs of local health, community, learning and skills and youth services.

Land at Frogmal Lane, Teynham

6.6.64 Teynham is one of the largest villages in the Borough and is identified as a Rural Local Service Centre in Policy ST 3 as it supports the needs of the existing community and the settlements around it. The village owes much of its good range of services and public transport provision, including a railway

station, to its historic development along the main Roman Road Watling Street (Greenstreet). This strong linear form, reinforced in the 19th and 20th century by further development, gives this part of the village its strong character. The countryside around the settlement is predominantly agricultural in both character and use, but to the north of the A2, the village also encloses a large undeveloped area of farm land and open spaces. This is in strong contrast with the landscape to the west and south of the A2 that is more open in character.

6.6.65 The extensive 30.7 ha allocated site north of the A2 is largely bounded by existing development on Frognal Lane and Lower Road and the cul-de-sacs leading from Station Road. It is flat, although sunken in places as a result of brickearth extraction and currently used for sports pitches and farming. As a result of its location, the site is both well related to the existing framework of the village and has minimal impact upon the surrounding countryside and landscape. It further benefits from its location close both to Teynham railway station, the bus services running along the A2 and a good range of local services.

6.6.66 The allocation is for:

1. approximately 260 dwellings on 7.5 ha;
2. 26,840 sq m of 'B' use class rural employment uses on 8.2 ha providing small-scale units, with an element which is suitable for start-up businesses; and
3. at least 6 ha of open space with additional landscaping, together with 3 ha of sports pitches.

6.6.67 The residential element of the scheme is envisaged as forming the southern extent of the site, located to the north of existing residential development extending along Frognal Gardens and London Road. The employment element of the allocation will be located at the northern Lower Road end of the site. It is important that employment uses are appropriate to the location, especially given nearby housing and the nature of the local transport network. Both elements will require appropriate landscaping so as to minimise impacts on the amenities of existing residents, whilst pedestrian/cycling links between the existing, new development and local facilities will be important. Use of the Council's Design Panel is recommended.

6.6.68 Between the employment and housing elements there will be open space so that there is no overall net loss of existing playing pitches or open space. Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 3.8 ha. Some 0.7 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, this can be provided on site, although both elements of provision will be further considered at the planning application stage. A new sports pavilion will be required, whilst the existing public right of way footpath to the east of the site must be maintained.

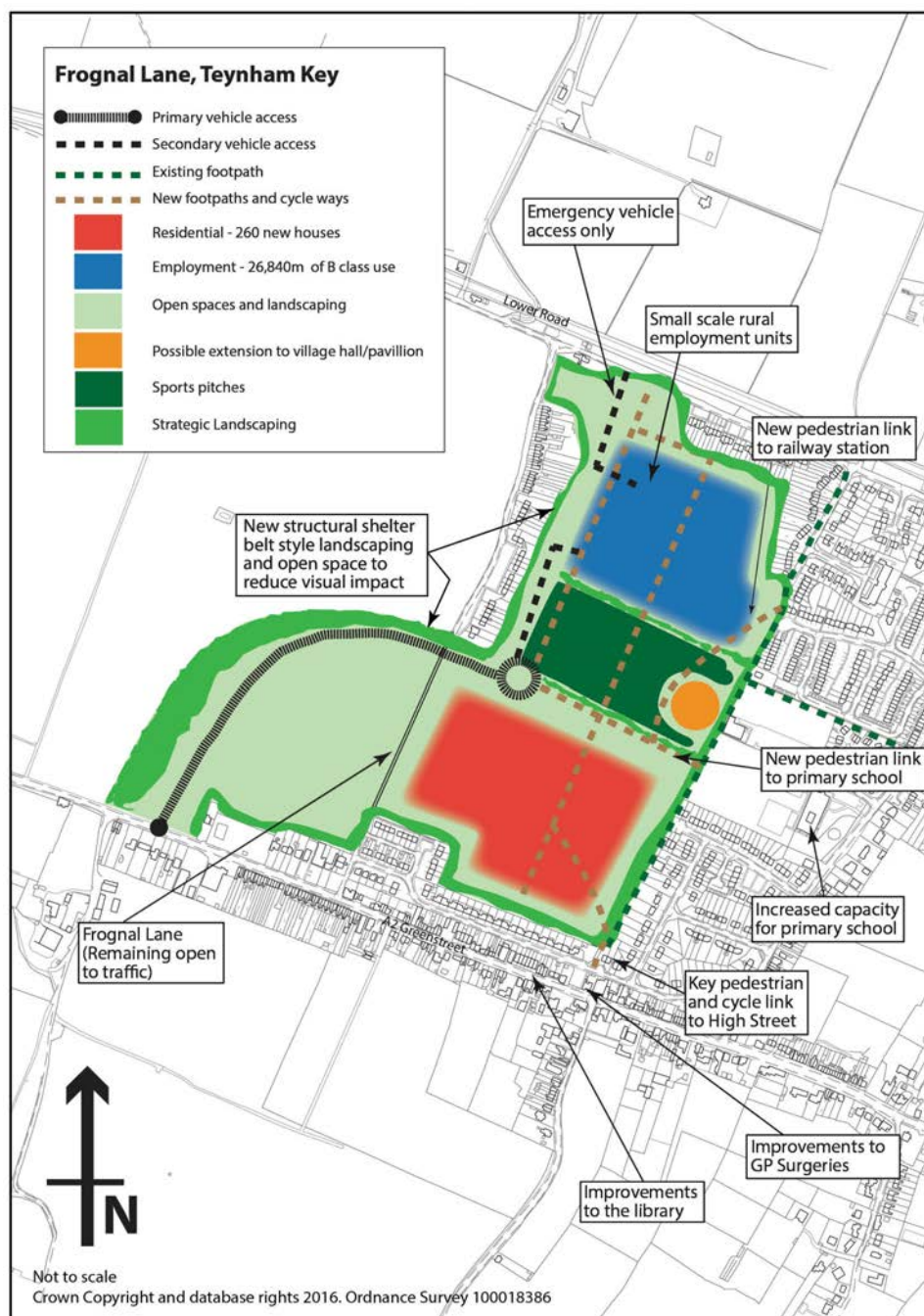
6.6.69 The site should achieve a range of housing types with an emphasis upon family homes in accordance with Policy CP 3, including those for affordable housing. It should also consider any relevant parish/village housing needs assessment.

6.6.70 Access to the site will be from a new road and junction from the A2 across an arc of land of 8.3 ha to the west of Frognal Lane to address the otherwise restricted highway access between this lane and the A2. As a result of preparing an integrated landscape strategy for the site, this land will also be provided as informal open space (including natural/semi-natural greenspace). On its outer boundary to the surrounding agricultural landscape, shelter belt landscaping will best reflect local landscape character and enable visual impacts in views from the open countryside to the north and west to be minimised. On the main site itself, retention of existing trees and new reinforcement planting, especially at the boundaries of the site will, along with other landscaping, create new features and a strong identity for the site. More specifically, new planting will work toward achieving a net gain in biodiversity on the site. Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject

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to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP7 and DM28.

6.6.71 Given the site's location close to the A2 Watling Street, which is an ancient route, an archaeological investigation will be prudent as part of any planning application and, if necessary, adequate mitigation measures must be put in place.



Map 6.6.4 Development concepts at Frogmal Lane, Teynham

6.6.72 The scale of the development here will require a Transport Assessment in relation to impacts upon the A2 corridor. This will also need to consider the appropriateness of a financial contribution toward the completion of the Sittingbourne Northern Relief Road. The proposals would also need to support improvements to public transport services, especially bus services to Sittingbourne, Faversham, and to the rural areas around the village. Enhancements to the facilities and environment at the rail station should also be considered. There may also be a need for environmental enhancements and traffic management at the A2 and Lynsted Lane and possibly junction improvements at Station Street with the A2. Development

will also be planned to minimise the use of the Lower Road as a vehicle access to the site. Any access to Lower Road shall be for emergency vehicles only and traffic management measures will be required to ensure that vehicles cannot access or leave the site via Lower Road, exacerbating its use as a 'rat-run'. Subject to further assessment, a contribution may be required to junction improvements on the A2 with Station Road.

6.6.73 The Transport Assessment should also inform impacts upon air quality, ensuring the development does not compromise the centre of Teynham which is an Air Quality Management Area. Innovative mitigation measures may be required to address any impacts.

6.6.74 The Council is aware that parts of this site have had some prior brickearth extraction carried out previously. However, as it is highly likely that safeguarded minerals are present at this site and the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6.6.75 There are current restrictions in the capacity of the connections to the Teynham Waste Water Treatment Works which will need to be addressed before development proceeds in accordance with Policy DM 21.

6.6.76 Developer contributions will be required to address infrastructure needs, with particular attention to the need to improve GP facilities at Teynham, and increase capacity at the village primary school. In the case of medical services, there are a number of options which will require further exploration with the Clinical Commissioning Group. These include the expansion of one of the two surgeries in the village, but could also involve the construction of a new medical centre. This would be advantageous in terms of its location and overall capacity. Should this option be the preferred approach, the Council would be prepared to consider use of part of the employment allocation at the Frognal Lane site for this purpose. In this eventuality, contributions from other developments at the village and its environs would be required.

Policy MU 4

Land at Frognal Lane, Teynham

Planning permission will be granted for mixed uses comprising approximately 260 dwellings, 26,840 sq m of 'B' use class employment, open space and landscaping on land at Frognal Lane, Teynham, as shown on the [Proposals Map](#). Development proposals will:

1. Provide an integrated landscape strategy that will achieve a net gain in biodiversity and natural/semi-natural greenspace, integrate the development and its access road within the wider landscape and create a strong landscape structure to incorporate existing vegetation and create new planting and habitats;
2. Prepare a heritage assessment and, if necessary, provide for adequate mitigation measures to be put in place;
3. Provide open space and sports facilities to meet the needs of both the existing and new residents, with no net loss in existing provision;
4. Secure pedestrian and cycle links between the existing community, the proposed development area and the services and facilities within Teynham;
5. Avoid increased use of the Lower Road and junction of the A2 and Frognal Lane by bringing forward, as appropriate, traffic management measures within Frognal Lane and on the A2 within the village;
6. Bring forward such transport improvements and other mitigation as required by a Transport Assessment;
7. Achieve a mix of housing in accordance with Policy CP 3 and any village/parish housing needs assessment, including provision for affordable housing in accordance with Policy DM 8;

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8. Locate and provide employment uses appropriate to the amenity of existing residents;
9. Ensure waste water connections at points that are adequate in their capacity;
10. Ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
11. Achieve improvements to education, library and health facilities at the village;
12. Address air quality impacts arising in the Teynham AQMA, including the implementation of innovative mitigation measures; and
13. Provide infrastructure needs arising from the development, including those identified by the Local Plan Implementation and Delivery Schedule, in particular for health and primary school provision.

The Oare gravel workings, Oare Road, Faversham

6.6.77 This 67 ha site, located to the north-west of the town, is bounded by Oare Creek, Oare Road, Ham Road and the open expanses of the North Kent Marshes to the north. Used for gravel workings and processing, it is a mix of vegetation, lakes, open land and historic structures associated with its former use as a gunpowder works.

6.6.78 The site is an exceptional opportunity to meet future housing and employment needs at the town that could provide for the use and wider management of its environmental assets. Uniquely, it can do this without use of the high quality agricultural land that surrounds much of the town and in a way that strongly accords with the Local Plan Vision. The opportunities include:

- up to 330 dwellings (inc. affordable housing);
- a creative hub at the cluster of historic buildings in the centre of the site including 1,500 sq m of non-residential floorspace; and
- the management of the whole site for biodiversity and to offset recreational pressures on the wider marshland environment.

6.6.79 There will be a recognition, integrated into the earliest planning of proposals, that this is a highly sensitive location. The constraints of flooding, biodiversity, landscape and a need to maintain the separation between Faversham and Oare, determine that the south-eastern portion will be the focus for built development, with the remainder of the site left undeveloped but managed.

6.6.80 The open marshland landscapes around the site and the raised ground to Oare village mean that the site acts as a buffer between Faversham, Oare and Ham Marshes, but also means that much of the site has views to and from these locations. A landscape assessment and mitigation strategy will include the retention of, as far as possible, existing vegetation, the creation of a new, strong landscape framework around and within the built areas and the retention of important views both into and out of the site. It will also need to include those measures necessary to minimise the visual impact of development in views from the open landscapes beyond the site and the screening of visually detracting existing employment uses. A comprehensive approach to external lighting, achieved via a prepared lighting strategy, will avoid adverse impacts upon biodiversity and on dark night time skies.

6.6.81 The site has its own ecological interests needing to be assessed and addressed, but especially important are the internationally designated Swale Special Protection Area and nationally important Site of Special Scientific Interest that adjoin the site. With easy access close to the site onto the wider marshes, disturbance to birds could increase if not managed. Whilst evidence indicates that this risk can be managed, much depends upon the master planning and detailed stages of development and the role the site plays in supporting species using the SPA. Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where

demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP7 and DM28.

6.6.82 Both landscape and ecological assessments will ultimately need to produce the foundations for the detailed management and financial arrangements that will provide for the long-term, ecological-led management of the whole site. The overall objectives will be that there should be: (a) no significant effect on the Special Protection Area; (b) a positive and appropriate impact on the biodiversity of the site itself; leading to (c) a net gain in biodiversity overall.

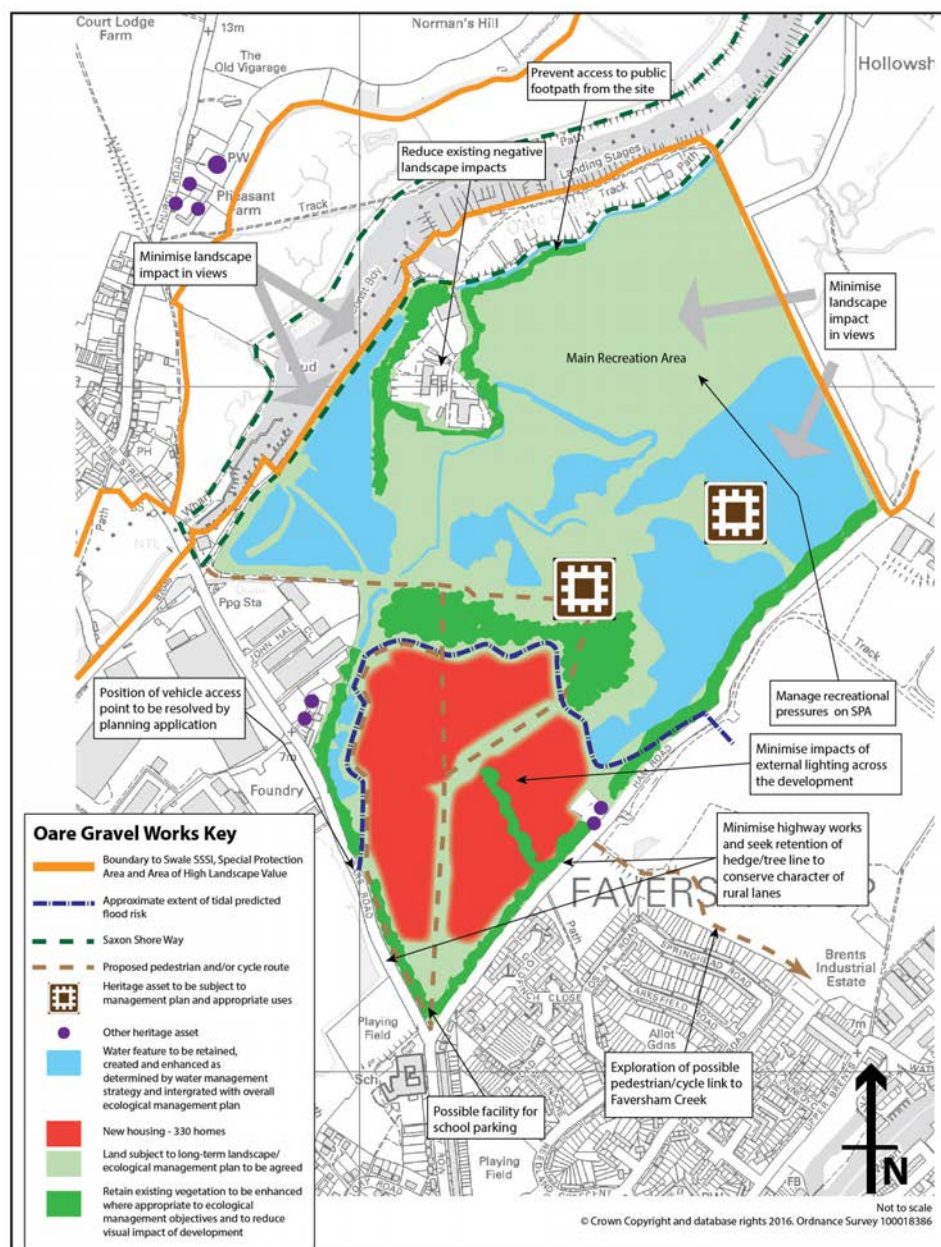
6.6.83 The site's former use has left a legacy of historic assets, ranging from a cluster of buildings in the centre of the site to blast walls. Development will secure the future of these assets through their appropriate non-residential use and successful integration with the wider development. Their importance requires assessment and understanding so that it guides the most appropriate use of the buildings that will also successfully integrate any wildlife roosts and nests within the buildings. Appropriate uses might include a visitor/educational centre or office and industrial uses. The timing for the restoration of these buildings relative to the rest of the development proposals will need to be agreed. Other heritage assets outside the site include the Oare windmill and adjoining cottages where proposals will minimise impacts upon their setting and outlook.

6.6.84 Whilst houses can be built above the forecast flood level for the area, a planning application will need to provide a site flood risk assessment and demonstrate a safe means of escape in the event of flooding in the wider area and without prejudice to the objectives of the Shoreline Management Plan. The historic buildings will also require some flood defence appropriate to the uses proposed for them and for their setting. Given the water features and network on the site, these will need to be managed and steps taken to ensure their quality is maintained or improved and the site would be a strong candidate for a planned network of sustainable urban drainage. The future use of water bodies will be dictated by the overall management plan and mitigation proposals for the site. Water supply and waste water connections will be in accordance with Policy DM 21. Some parts of the developed area are also likely to be contaminated and these will need to be remediated as appropriate.

6.6.85 The traffic arising from the new uses proposed will need to be assessed for their impact on the transport network and on air quality on the A2 through Ospringe. A Transport Assessment will include possible impacts on northern routes into the town centre, many of which are narrow and restricted and bring forward any localised improvements that need to be made, including perhaps an additional drop off area for Davington School. The need for any interim transport improvement to Junction 7 of the M2 at Brenley Corner will need to be explored with Highways England. A cycle/footpath link from Ham Road to Faversham Creek across the north of the town should also be explored. Vehicle access to the site can appropriately be achieved, however, the precise location of the access will need to consider such matters as the rural character of Ham Road, the retention of existing vegetation, the role of the existing access opposite the Western Link and the need to consider the risk arising from flooding.

6.6.86 Such are the design issues affecting the site and the importance of securing an imaginative and exemplary scheme, the Council will use its Design Panel to assess the project throughout its developing stages. Bespoke designs will be led by influences of water, marsh, maritime and industrial heritage, permeating every detail of the proposed built and landscape environments. These will comply with a Technical Development Brief, focusing upon design issues, that will be made the subject of a planning condition so as to tie future developers into the concepts advocated at the inception.

6 Land allocations for new development



Map 6.6.5 Development concepts at Oare gravel workings, Faversham

6.6.87 The site should bring forward a range of housing types with an emphasis upon family homes in accordance with Policy CP 3, including those for affordable housing.

6.6.88 Contributions will be required to community facilities, including those identified by the Local Plan Implementation and Delivery Schedule. These will include contributions to the expansion of Bysing Wood Primary School, together with those for secondary school places, youth, adult and community, learning and skills services.

6.6.89 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 4.8 ha and will be primarily aimed at meeting the needs for natural and semi-natural green space and to address the requirements arising from the ecological assessment and mitigation proposals. Some 0.9 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, both elements of provision will be further considered at the planning application stage. The current activities of groups such as the sea scouts who use the site will be expected to continue with better facilities.

6.6.90 Central to the acceptance of any proposal for the site is not only the high quality of its execution, but its ability to achieve the long-term and financially secure management of the entire site to meet ecological and landscape objectives. This will require a legally binding agreement with those parties necessary to run and manage the site in, as far as possible, perpetuity and in accordance with a management plan prepared and implemented with the involvement of wildlife organisations. Designation of a Local Nature Reserve could also be the ultimate outcome for the site.

Policy MU 5

The Oare gravel workings, Oare Road, Faversham

Planning permission will be granted for mixed-uses, comprising 1,500 sq m of commercial floorspace, together with some 330 homes and proposals for the conservation, enhancement, and long term management of the site's ecological and heritage assets at Oare gravel workings, as shown on the [Proposals Map](#). Development proposals will:

1. Achieve buildings and landscape design, which are bespoke and appropriate to the site's constraints and context and conforming to a technical development brief, the preparation of which will be a condition of any outline planning application;
2. Minimise adverse transport impacts (inc. those on air quality), whilst enhancing opportunities for walking and cycling;
3. In accordance with an integrated landscape strategy, minimise adverse landscape impacts, including those upon dark night time skies, landmark buildings and settlement separation, and retain existing vegetation where possible, screen existing visually detracting features and achieve a structural landscape scheme with substantial new landscaping;
4. Manage and minimise the risk of flooding having regard to the relevant Shoreline Management Plan;
5. Manage and enhance water features and quality as part of a water management plan that will include sustainable urban drainage measures;
6. Address any contamination to achieve a safe development;
7. Avoid, minimise and mitigate adverse impacts upon biodiversity and achieve a net gain in biodiversity by:
 - a. assessing biodiversity interests, including, if required, a Habitats Regulations Assessment which will demonstrate that development is not likely to have a significant effect on the Special Protection Area (SPA);
 - b. reducing recreational disturbance on the SPA, by ensuring appropriate opportunities for use of the site by residents and visitors (particularly for dog walking) and using such land to meet natural and semi-natural green space needs. Proposals will ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
 - c. ensuring that habitats retained, enhanced and created are protected from later development, and remaining accessible to the public; insofar as compatible with the objectives of criterion 7a;
 - d. the agreement and implementation of a management plan for the whole site to clarify the proposals for various habitats across the site and to provide a sustainable and financially secure basis for managing the site through the development process and in the long term; and
 - e. achieving a positive impact on the biodiversity of the site itself, including protecting and enhancing on-site habitats to provide for (at least) current levels of use by key species, including its use by SPA birds, and managing the site to maintain and enhance the biodiversity associated with fields, scrub, woodland, water features and ditches.

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8. Identify and assess the significance of heritage assets and secure their conservation, restoration enjoyment and management through appropriate re-use and siting of development;
9. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
10. Agree the proportion of new housing that will come forward before the restoration of heritage assets and the implementation of those matters within criterion 8;
11. Make provision for formal play facilities on site, unless not compatible within criterion 8, otherwise make an off-site contribution toward these and improvements to existing sports pitches;
12. Ensure waste water connections at points that are adequate in their capacity;
13. Secure continued facilities and access to the water for sea scouts;
14. The submission of a viability assessment so the Council is satisfied as to the long-term security of proposed management measures; and
15. Provide infrastructure needs arising from the development, including those within the Local Plan Implementation and Delivery Schedule.

Land at Lady Dane Farm, east of Love Lane, Faversham

6.6.91 This 27 ha site is located to the east of the town and bounded by Love Lane to the west, an industrial area at Graveney Road to the north and the Faversham to Dover railway to the south. The eastern boundary to the site is approximately formed by a north-south ridge beyond which the land falls away to become more visually prominent. The site is farmed from a complex of buildings close to Love Lane.

6.6.92 The site is proposed for allocation as a business park of 20,000 sq m of 'B' use class uses on 5 ha of the site with the emphasis upon creating a B1a use class office park environment. In addition, approximately 260 houses on a further 7 ha could be provided to meet housing needs at the town and provide some financial support to the proposed employment uses. The remainder of the site will form a major parkland asset and strategic landscaping.

6.6.93 The site occupies a gateway location on the eastern approaches to the town and this demands high quality standards of built and landscape design to both capture the imagination of a range of employers and achieve the successful integration of the site within the wider context of Faversham. The Council will expect proposals to be taken through and respond positively to its Design Panel process, whilst preparation of and adherence to a technical development brief will be a requirement arising from a planning condition on any outline planning permission.

6.6.94 The site adjoins the Faversham conservation area at its boundary with the cemetery in Love Lane and the proposed open space will enable this to be respected, together with views of the town's Parish Church. Given the location of the site close to the A2 Watling Street, an archaeological assessment will be prudent.

6.6.95 The site's access to the strategic road network is an advantage for attracting development, however, it will be important to ensure that the development functions as an extension to Faversham and not as a stand alone settlement unrelated to the town. This means enhancing links with the centre for non-car modes of transport and ensuring that any non-industrial commercial uses proposed complement those in the town centre and do not harm its viability.

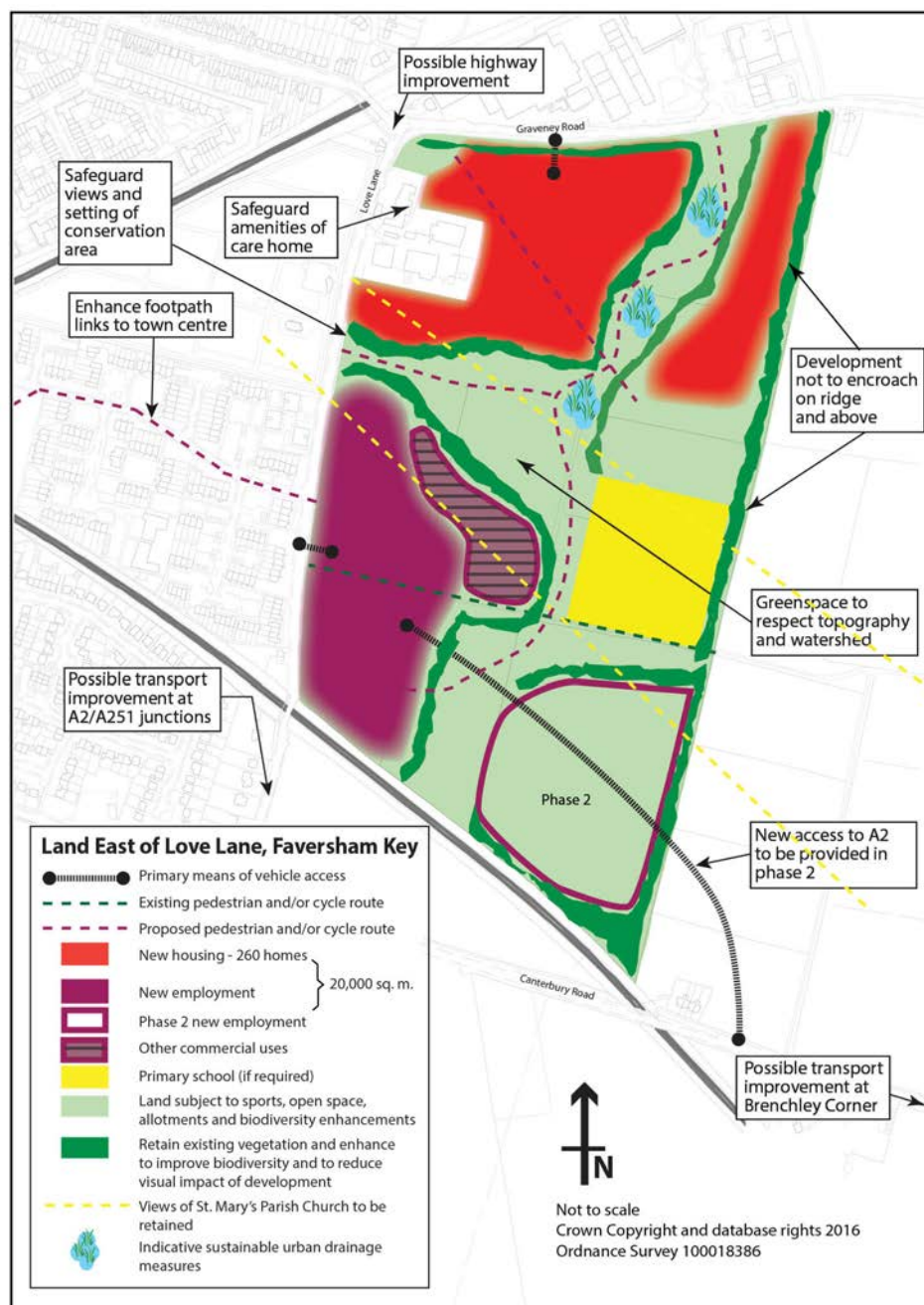
6.6.96 Access to the site is likely to be provided by both Graveney Road and Love Lane with access to the motorway available from both Junction 7 of the M2 and the Thanet Way via the Duke of Kent junction to the east. A Transport Assessment will be required to support any planning application, but early assessment indicates that an appropriate improvement/mitigation will be required at Brenley Corner and a need for an improvement at the junction of Love Lane and the A2. Use of these accesses are unlikely to be acceptable in transport terms for meeting the entire commercial potential of the site and this will require the creation of an alternative access from the southern part of the site through to the A2 at a point

to the south east of the site. This would avoid the crossing of the railway by traffic in Love Lane itself and present the opportunity to introduce traffic management measures there. A trigger for provision of this road will need to be agreed before completion of the housing and any later phase of employment provision. Contributions toward junction improvements with the A251/A2 will also need to be considered as will, in conjunction with Highways England, the possibility of a contribution toward interim improvements to Junction 7 of the M2. Off-road pedestrian and cycle connections to and from the site could be more attractive and improvements to these links will be required. The frequency of bus services from the town to Whitstable passed the site may also need to be improved alongside other links. Water and waste water issues arising from the development of the site will need to be addressed in accordance with Policy DM 21.

6.6.97 Early commencement of the employment elements of the development are considered critical in terms of achieving the strategy for Faversham. The Council will agree with the developer an early trigger point for the commencement of the employment development relative to the number of housing completions. Latter triggers may also be introduced for other phases, having regard to likely market conditions. Whilst non-industrial uses may be considered, they should be in addition to, or a very small proportion of, the 20,000 sq m of industrial employment floorspace provision for the site as this level has been identified to meet local needs at Faversham for the plan period.

6.6.98 It is highly likely that safeguarded minerals are present at this site and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.

6 Land allocations for new development



Map 6.6.6 Development concepts for land at Lady Dane Farm, Faversham

6.6.99 The site should bring forward a range of housing types in accordance with Policy CP 3, including those for affordable housing. Lying close to some poorer quality areas of housing, the purpose of development here will be not to reinforce these characteristics, but to support an enhancement of the local housing market in terms of housing type and quality of environment.

6.6.100 Open space will be required in accordance with Policy DM 17. Financial contributions toward existing sports provision and formal play facilities will be required, whilst open space proposals will form the heart for the community and will:

- link the urban area to the open countryside to the east of the site;
- achieve the separation between housing and employment;
- provide local amenities for residents and workers, creating an attractive environment in which to invest, work and live;
- achieve an overall net-gain in biodiversity;

- be sufficient to meet the generated need for some 4.8 ha. This provision will need to include space of a type to mitigate against recreation impacts on the Special Protection Area (see para. 6.6.102. Some 0.9 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage;
- contribute to long distant views of the town and its landmarks from the east; and
- minimise impacts to the town's compact urban form.

6.6.101 The approach to landscaping and open space are strong drivers for both the layout of development and in minimising adverse landscape impacts. The rolling landscape is the chief feature of the site and should be used to define the development envelope in a way that relates to the topography and its watershed. A second important feature is the north-south ridge on the eastern boundary that represents the outer acceptable extent of development. An integrated landscape strategy will be required to address these issues and to ensure that development is set below the level of the ridge to avoid adverse impacts within the wider landscape. It will make imaginative and sensitive use of the shallow valley fall across the site from south to north and the retention and enhancement of shelter-belt trees where it is appropriate to do so, whilst the use of informal meadows and traditional orchard planting will reinforce the landscape character of this agricultural landscape.

6.6.102 Proposals will support the objective of achieving a net gain in biodiversity. A Habitats Regulations Assessment may need to be undertaken, given the location of the site relative to the Swale Special Protection Area. Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.

6.6.103 The proposed allocation is located to the south of a Local Wildlife Site at Abbey Fields. Development proposals should assess the likely impact upon the site and, if necessary, propose mitigation.

6.6.104 Developer contributions will be required to meet community needs arising from the development including those from the Local Plan Implementation and Delivery Schedule. These will include contributions to community learning and skills, libraries, youth and adult social services. Notably, land and a contribution toward construction may be required for a new one form entry primary school on a two form entry site for the town and for phase 2 of the proposals, the improvement of health facilities at existing centres.

Policy MU 6

Land at Lady Dane Farm, east of Love Lane

Planning permission will be granted for mixed-uses, comprising 20,000 sq m of 'B' use class employment, approximately 260 dwellings, open space and landscape enhancements, on land to the east of Love Lane, Faversham, as shown on the [Proposals Map](#). Development proposals will:

1. Achieve a built design and layout which responds to the context of the site and its landform to achieve an attractive new semi urban edge to Faversham that respects the surrounding agricultural landscape;
2. Use the rolling landscape to define the development envelope in a way that respects its topography and watershed and through an integrated landscape strategy:

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- a. secure substantial strategic parkland to meet open space needs (including that for natural and semi-natural greenspace) and provide for improvements to existing sports pitch and formal play facilities;
 - b. achieve a net gain in biodiversity;
 - c. minimise adverse visual impacts, with particular regard to the siting of development at the eastern boundary; and
 - d. provide a landscape framework that reflects and reinforces the area's landscape character.
3. Improve connectivity for pedestrians, cyclists and public transport to the town centre and other locations;
4. Avoid commercial uses that would adversely affect the vitality and viability of Faversham town centre;
5. Bring forward industrial development in accordance with triggers for their phasing agreed with the Council. Other commercial development will be provided subject to their being no adverse impact upon the viability of the town and it not prejudicing the delivery of the industrial floorspace needs for the town identified by the Local Plan;
6. Ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
7. Assess the likely impact upon the Abbey Fields Local Wildlife Site, and if, necessary bring forward mitigation proposals;
8. Bring forward such transport improvements and other mitigation as required by a Transport Assessment, including junctions with the A2, and, potentially, improvements/mitigation at the Brenley Corner A2/M2 junction;
9. Provide, in accordance with a trigger agreed with the Council, a new eastern access to the site providing a direct link to the A2;
10. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
11. Ensure waste water connections at points that are adequate in their capacity;
12. Ensure that heritage assets are assessed and protected, whilst minimising the visual impact of development on the wider setting of the town and its conservation area; and
13. Provide infrastructure needs arising from the development, including those included by the Local Plan Implementation and Delivery Schedule, in particular, the provision of land for and contributions toward a primary school (if required).

Perry Court Farm, Faversham

6.6.105 This 33.1 ha site extends from Abbey School and Perry Court Farmhouse to the north, southwards to the M2. Its western boundary adjoins Brogdale Road, a rural lane, whilst the eastern boundary adjoins Ashford Road. The south-east corner of the site is close to Junction 6 of the M2 with the A251.

6.6.106 Located at the edge of the town, the site is reasonably well positioned in terms of access to services, although the A2 is a barrier to easier pedestrian and cycle access. The site is visually contained by a long term visually defensible boundary provided by the M2 and other roads and existing urban influences. As a result, the site has strong potential to support the Borough's future employment and housing needs, whilst being of sufficient scale for some local services to be provided as part of a mixed use development.

6.6.107 The site is crossed by a public footpath leading from the A2 at The Abbey school to Brogdale Road. It comprises gently undulating farmland, predominantly rural in character, although there are some urban edge/fringe influences from the large scale school buildings, sports grounds, residential properties on land adjoining to the north and east and, further to the south, the presence of the M2.

6.6.108 The site should bring forward some 370 dwellings with a range of housing types in accordance with Policy CP 3, including those for affordable housing and specialist accommodation (use class C2). In terms of employment, as a first phase, 3ha (18,525 sq.m) of new B1a, B1b and B1c class uses, with an additional 2ha safeguarded for future employment use, will provide the opportunity to help the Borough diversify its economy into higher skilled areas. B1a (office) uses should therefore form a significant part of this mix and the site is well placed to meet these needs due to its relationship with the M2 and other routes. The impact of locating main town centre uses, such as offices, leisure and retail development may require the submission of an impact assessment in accordance with Policy DM 2, but it is the Council's view that larger scale retail and leisure development is unlikely to be acceptable due to adverse impacts on the town centre.

6.6.109 To further consider the design issues associated within these proposals, use of the Council's Design Panel is strongly recommended.

6.6.110 Landscape and heritage evidence indicates the location as having a moderate capacity to accommodate change, being relatively well contained by the surrounding road network and existing vegetation. Whilst the land contributes to the landscape and heritage setting of the town, the influence of development here on this is considered to be limited because of the urban influences which result in a more fragmented and less defined transition between urban and rural areas. Further south however, consideration should be given to the conservation and enhancement of the rural approaches, particularly along Brogdale Road, where landscaping and open space provision could be used to limit such impacts.

6.6.111 Overall to consider these matters, detailed heritage and landscape assessments will need to consider the significance of the impact of development at the local level on the heritage and landscape settings of the town, together with those of nearby designated and undesignated heritage assets where settings should be preserved. Landscape assessments will also need to consider the impact on the setting of the North Downs AONB. Given the site's proximity to the A2, an archaeological assessment should consider the importance of the site and, if necessary, propose mitigation.

6.6.112 In terms of the relationship between development and the M2, it is important that the rural character of the southern part of the site is respected and that the extent and scale of development is appropriate in terms of landscape impact. Use of substantial green space and planting provision will be aimed at avoiding the impression of urban sprawl and should also be aimed at reducing noise from the motorway and avoiding significant adverse landscape character impacts to the south of the M2, part of the setting of the Kent Downs AONB. Planting should reinforce the local character of the Faversham and Ospringe Fruit Belt Landscape Character Area (Swale Landscape Character and Biodiversity Appraisal, 2011).

6.6.113 An Ecological Assessment will need to be submitted at the application stage to determine the extent and importance of habitats and species present and to make recommendations for their avoidance, mitigation and, where appropriate, compensation.

6.6.114 Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.

6.6.115 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 5.4 ha. Some 1.0 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, these should be able to be provided on site, although the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6 Land allocations for new development

6.6.116 It is highly likely that safeguarded minerals are present at this site and therefore the quality and quantity of the mineral and the practicalities of prior extraction should be investigated via a Minerals Assessment in line with the safeguarding mineral and prior extraction policies contained within the Kent Minerals and Waste Local Plan.



Picture 6.6.1 Development concepts at Perry Court Farm, Faversham

6.6.117 To enhance access to services, a footpath to the site frontage along Ashford Road, together with a pedestrian crossing between the site and the eastern side of Ashford Road would be required. Development should ensure that the existing public right of way is retained, with consideration given to its resurfacing and upgrading to a bridleway to allow both cyclists and pedestrians to use it. If this is not achievable then a footway/cycleway will need to be provided to the south side of the A2 between Brogdale Road and Ashford Road.

6.6.118 A Transport Assessment should consider the need for highway improvements, including those to the A251 and A2 junction, together with the A2 junction with the Mall, alongside improvements at the A2 junction with Brogdale Road. The assessment would also need to consider any mitigation works required at Junction 7 of the M2 in consultation with Highways England. The Transport Assessment should inform an air quality assessment to ensure that the Air Quality Management Area in the centre of Ospringe is not compromised. If necessary, innovative mitigation measures should be promoted.

6.6.119 Development may also be required to contribute to enhanced bus provision between the site and Faversham town centre, whilst the quality of pedestrian links across the A2 should also be enhanced. A Travel Plan will also be required in order to encourage use of more sustainable modes of transport between the site at the town centre.

6.6.120 Planning applications may be required to submit a noise assessment to consider the impact of traffic on the M2 on new residents.

Policy MU 7

Perry Court Farm, Faversham

Planning permission will be granted for a mixed use development at Perry Court Farm, Faversham, as shown on the [Proposals Map](#), to include a minimum of 370 dwellings (inc. care home), together with 18,525 sq. m of B1a, B1b, B1c class employment uses (with a further 2 ha reserved for future employment use), supporting uses and landscaping and open space. Development proposals will:

1. Be in accordance with Policy CP 4 and in particular demonstrate and provide a strong landscape framework (shown by a submitted Landscape Strategy and Landscape and Ecological Management Plan, informed by a landscape and visual impact assessment) to include:
 - a. substantial width of woodland planting along the site boundary with the M2, which shall additionally safeguard the setting of the Kent Downs AONB;
 - b. additional substantial areas of woodland planting and green space e.g. community orchards and allotments, within the south western quarter of the site near Brogdale Road;
 - c. retained, managed and enhanced hedgerows and shelterbelts;
 - d. footpath and cycle path routes within green corridors linked to the adjacent network; and
 - e. planting selected to reinforce the local landscape character area.
2. Be of high quality design, with building siting, form, height and materials related to the existing built form and topography of the site and the surrounding context and to include consideration of:
 - a. the setting of landscape and heritage assets;
 - b. the rural approaches to the town; and
 - c. building heights demonstrating they have been influenced by, and show respect for, views from the south.
3. Provide for a mix of housing in accordance with Policy CP 3, including provision for affordable housing in accordance with Policy DM 8;
4. Through both on and off site measures, ensure that any significant adverse impacts on European sites through recreational pressure is mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
5. Submit a detailed Heritage Assessment to consider the significance of the impact of development at the local level on the heritage setting of the town and other heritage assets in accordance with policies DM 32-DM 33. An archaeological assessment should consider the importance of the site and, if necessary propose mitigation in accordance with DM 34;

6 Land allocations for new development

6. Provide the majority of B1 class employment floorspace as B1a (offices). Employment uses other than B1 will not be permitted unless it is clearly shown that B1 uses would not be achievable. Proposals for alternative employment uses must demonstrate they would not diminish the quality of the development, whilst proposals for main town centre uses will need to be the subject of an impact assessment;
7. Undertake an Air Quality Assessment to ensure that the Ospringe AQMA is not compromised, with, if necessary, the use of innovative mitigation measures;
8. Submit a Noise Assessment and implement any mitigation arising;
9. Be supported by a Transport Assessment to determine the need and timing for any improvements to the transport network and the phasing of development. Development shall undertake such mitigation as necessary which shall include:
 - a. interim improvements at Junction 7 of the M2;
 - b. improvements to the junctions of the A2/A251 and to the A2/Brogdale Road;
 - c. pedestrian and cycling routes;
 - d. public transport enhancements to improve links to the town centre; and
 - e. implementation of an agreed travel Plan; and
10. Provide infrastructure needs arising from the development, including those matters identified by the Local Plan Implementation and Delivery Schedule, in particular those relating to libraries, education and health.

6.7 Proposed regeneration areas

Central Sittingbourne: Regeneration Area

6.7.1 Sittingbourne Town Centre is orientated on an east-west axis, with the historic High Street comprising the retail focus of the town. This includes a range of building styles and retailers of varying sizes, both national chains and independents of varying quality. To the north of the High Street is the Forum Centre which is a relatively small scale shopping centre which is now somewhat outdated and presents a poor image for the town.

6.7.2 To the north of the Forum lies the A2 (St Michael's Road), the railway line and Eurolink Way. All form significant barriers for pedestrians and vehicles between the town and areas to the north, in particular to Milton Creek. Additionally, the railway station is poorly connected to the town centre, forms a poor transport interchange and its environment is dominated by traffic.

6.7.3 There has been recent development of a foodstore and petrol station to the north west of the centre and there is a bulky goods retail centre north of Eurolink Way.

6.7.4 To the south of the High Street is a foodstore, a cluster of civic uses and facilities (including the Swallows Leisure Centre, Library and Police Station), but the town lacks a cinema and other cultural and leisure facilities. This area also presents a series of unattractive areas, including the now demolished Bell Shopping Centre, areas to the south of the High Street and the swathes of surface car parking that all represent an inefficient use of land and poor quality, unattractive spaces.

6.7.5 The western end of the High Street is an unremarkable collection of uses, surface car parking and exposed backs of properties which undermine the setting of Cockleshell Walk and Trinity Church and produce an unattractive gateway to the town centre. At its eastern end, the street scene is dominated by the current civic offices at Swale House, car parking, vacant land and vehicle showrooms. The former cinema building is not in full use and dominates the listed St Michael's Church and graveyard, the latter being one of the few green spaces in the town centre.

6.7.6 The appearance of land behind the shopping streets in the town centre is generally poor, with unattractive views of commercial premises and service roads, whilst the centre as a whole is characterised by large areas of surface car parking which is poorly maintained in some cases, unevenly used across the town and poorly used after business hours. They represent a poor use of space and also detract from the environment and amenity of the town.

6.7.7 There is a Conservation Area in the core of the High Street with a predominance of eighteenth and early nineteenth century buildings, reflecting its importance as a coaching stop between London and Canterbury, although St Michael's Church at the eastern end of the High Street dates back to the fourteenth and fifteenth centuries.

6.7.8 The National Planning Policy Framework indicates that local plans should set out a suite of positive policies to promote competitive town centres, including identifying a range of suitable sites to meet development needs and setting out policies for the management and growth of centres over the plan period.^(6.1) National planning policy guidance advises consideration of the role, function and hierarchy of town centres in the area over the plan period and auditing existing centres to assess vitality and viability and potential to accommodate new and/or different types of development. A review of the approach for the central area of Sittingbourne was indicated for this Local Plan.

Progress on implementation

6.7.9 Since adoption of the previous local plan, the Sittingbourne Northern Relief Road (bridge section) has been completed, which has succeeded in taking commercial traffic for the business estates to the north of the town out of the centre itself. This has created the opportunity (as anticipated) to regenerate and improve a previously traffic dominated environment with more services and facilities.

6.7.10 A new convenience superstore (6,682 sq m) and petrol filling station opened in Mill Way, just outside the town centre and with leisure and community uses and 150 dwellings. This has had the effect of absorbing most of the convenience retail need identified by the Retail and Town Centre Study 2010.

6.7.11 At the Bell Centre, at the eastern end of the town centre, proposals for residential and health centre uses are expected to come forward.

6.7.12 With these major changes the Borough Council has now entered a development partnership agreement with Spirit of Sittingbourne to work together and with other stakeholders and landowners to bring forward the core elements of the central area regeneration. The main aims of the partnership are to bring forward new civic, cultural and leisure facilities, a new station square and transport interchange in the existing town centre and further retail development on the Princes Street depot site to the north of the railway. Enhancement of the existing Mill Road linkages between the north and south of the railway are expected as part of the Mill site redevelopment scheme, but will complement the rest of the development partnership scheme. A master plan will be produced to support the final land use arrangements, phasing and linkages between the various elements of the scheme.

6.7.13 Whilst the economic context has changed and some of the evidence of retail need has changed accordingly, many of the pre-existing issues and needs for the town centre identified in the previous policy documents remain.

6.7.14 The Strategic Housing Market Assessment and Development Needs Study (2013) identified an unmet need Borough wide for a minimum 31,408 square metres (net) of office floorspace, some of which could be expected to be met at Sittingbourne.

6.7.15 The following issues need to be addressed:

- reducing the dominance of vehicular traffic in the town centre;
- improving north south connectivity with the town centre;
- rationalising car parking and making better use of back land; and
- improving the public realm and amenity of the centre.

6 Land allocations for new development

6.7.16 Distinction also needs to be made between the boundary to the town centre area, for the purposes of determining planning applications in accordance with Policy DM 1 and Policy DM 2, and the regeneration area which encompasses a wider area. To avoid confusion within the interpretation of policy, the regeneration area is described as referring to central Sittingbourne rather than the town centre.

Central Sittingbourne area

6.7.17 The role and purpose of Sittingbourne town centre is set out in the settlement strategy (Policy ST 3) and the strategy for the Sittingbourne area (Policy ST 5). Sittingbourne is the principal town in the Borough and the focus of new housing, employment, services and infrastructure, which will support regeneration in the town centre. The aim for the centre is to ensure its vitality through enhancing the retail offer, and a wider range of services including leisure, culture, education and improving both the public realm and the quality of new buildings. The town centre boundary is defined on the Proposals Map and the approach to retail and development proposals within and outside this boundary are set out in Policy DM 2. Policy DM 1 seeks to maintain and enhance vitality and viability of the town centre by setting out the approach which will be taken to proposals for non-retail uses in the core and secondary shopping areas, which are also defined on the Proposals Map.

6.7.18 The purpose of this new policy is to revise and update the proactive regeneration policy framework and place it within the context of the regeneration of central Sittingbourne. It takes into account progress achieved to date, the changed national planning policy context and prevailing economic context, and new evidence, whilst being as flexible as possible to accommodate regeneration and investment proposals. An outline Masterplan is currently being prepared by the development partnership.

6.7.19 The main objectives are:

- to enhance the retail offer and attractiveness;
- improve connectivity throughout the centre;
- enhance and expand the range of services and mix of uses to encourage vitality;
- address environmental improvement through responding to local character and heritage;
- provide great quality new buildings which are exemplars of sustainable design and construction; and
- within an integrated landscape strategy, introduce green spaces and trees; and utilise suitable opportunities for residential development in the town centre; and enhance the secondary shopping areas of the town.

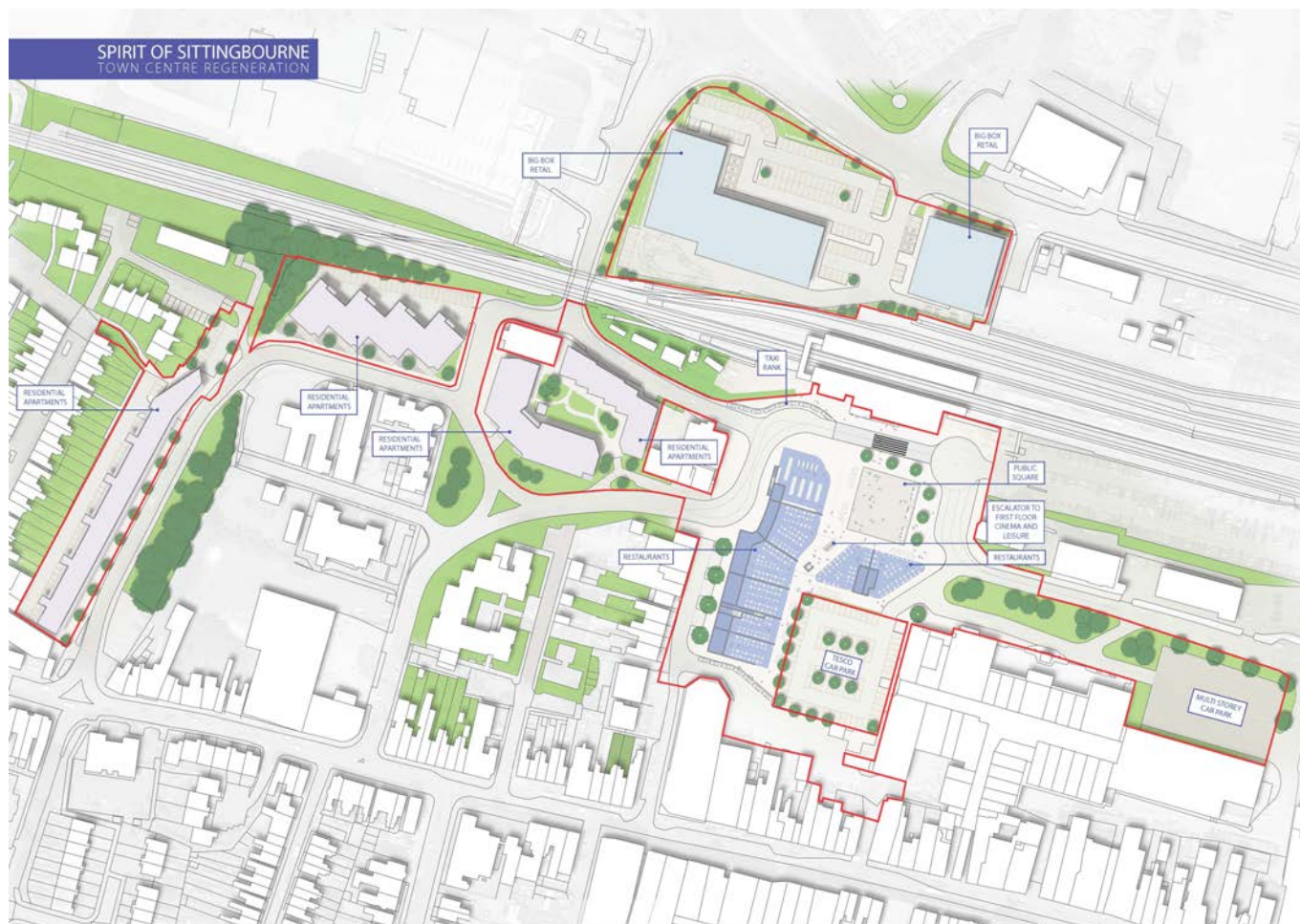


Figure 6.7.1 Extract from central Sittingbourne Masterplan area

6.7.20 The basic role for the town and its centre within the Borough continues, but reflecting the latest evidence and progress to date means presenting a realistic view of the way forward. Although additional comparison retail provision and expansion of services and facilities is still envisaged for the town centre, this is not to take the form of a major step change in retail offer and associated large scale expansion on land to the north of the railway. The means of implementing a more achievable strategy is focused on implementation of the development partnership scheme with Spirit of Sittingbourne through pooling land resources between the public and private sectors and allowing flexibility for other inward investment within a framework for meeting key objectives and development needs. Achieving these will assist with encouraging competition and expanding the qualitative range of the offer.

6.7.21 Scope to provide additional comparison retail exists within the town centre around the Forum and St. Michael's Road, with the possibility of larger units, if required, on the Princes Street depot site on Eurolink Way, located opposite the foodstore to the north of the town centre. Evidence indicates that there is no further quantitative need for convenience floorspace in the town with the market currently tending to take up smaller existing units either for nationals not so far represented in the town, or for independent speciality stores.

6.7.22 The need for additional cultural and leisure facilities in the town and more variety in the night time economy remains unmet. This is an integral part of the development partnership focused on the area adjacent to the Forum centre for the provision of a cinema and a live performance venue. Supporting uses such as restaurants and comparison retail would be possible here. Planning permission is also being sought for a skate park facility to the north of Mill Way (at Lloyds Wharf) and will enhance this part of the Creek side and link into the Church Marshes Country Park.

6 Land allocations for new development

6.7.23 Improvement and consolidation of civic services, education and health services is also part of the development partnership and these will continue to be focused on the area to the south of the High Street on Central Avenue through to the Avenue of Remembrance. A need for a town centre college of further education has been identified, which is seen as vital for the local labour force to support the economic regeneration of the Borough as a whole. The 'civic quarter' would be a good location for this facility and it would assist with increasing pedestrian footfall and vitality and help link the various functions of the centre. There is interest in providing the college from a provider.

6.7.24 Providing office floorspace at the scale indicated by the evidence of employment land needs in Swale 2014-2031 (2015) is currently difficult to demonstrate (given the historic lack of demand for large office premises in the town and non-take up of the speculative Watermark development at its edge). A more realistic prospect would be for smaller offices to be met within the regeneration area, either above retail premises, through suitable changes of use or purpose built accommodation in the civic quarter, at the eastern and western gateways or edge of town centre locations.

6.7.25 Traffic management needs to remain a key part of the regeneration strategy and the development partnership intends to remodel and traffic calm St. Michael's Road and the station approach and achieve a better bus train interchange in this location. This will integrate the station more with the town centre and provide a better gateway and pedestrian environment and enable this area to be reclaimed for new uses including a town square. Proposals around Cockleshell Walk, Fountain Street and Dover Street will also be required to significantly raise the standard of the environment and conditions for pedestrians.

6.7.26 Solving the north-south connections to and from the town centre is difficult as east-west road and rail routes create a substantial barrier. Given experience with the former retail proposals north of Eurolink Way, it seems unlikely that a bridge over the railway could be achieved without adversely affecting the viability of development on either side of it. Given the reduced levels of development likely to come forward, it is considered that attention should focus on improving existing connections.

6.7.27 A Transport Assessment will be required to assess the improvements needed arising from the regeneration area, both as a result of the scale of development proposed, but also due to the likely proposals for reconfiguring roads around the railway station. Further afield on the A2 at its junction with the A249 at Key Street, development is likely to be required to fund a scheme of road improvements.

6.7.28 A car parking strategy for the town centre will be implemented in two ways. Firstly, the development partnership scheme will lead to existing car parking areas being enhanced and or being redeveloped, whilst providing new parking to a level equivalent to existing provision, together with that needed to serve new development. Its design and pricing structure will be undertaken in a way that is convenient and attractive to residents and visitors and will be an integral part of the development partnership masterplan. Further details of the town centre parking strategy are covered in Policy CP 2. The second strand of the car parking strategy is likely to involve the rail service operators enhancing their commuter car parking provision by adding decking to the existing station car park at St. Michael's Road.

6.7.29 The 'back land' areas of the town centre are poorly presented and represent significant amounts of poorly used space that will benefit from well-designed redevelopment. Public realm improvements in these spaces and in the main commercial parts of the centre would do much to improve their amenity and attractiveness, whilst development proposals will explore opportunities to improve these outlooks and pedestrian links into the main shopping streets. There are a number of unattractive buildings in the centre which would also benefit from redevelopment. The Bell Centre is an example which presents a derelict site with key frontages both to Bell Road and to the rear of the High Street. The site is suitable for mixed use development including residential, leisure, community and office/retail. A land mark building appropriate to the location at the edge of the town centre and pedestrian link to the main shopping area is needed at this location.

6.7.30 The Council will be seeking a design and landscape led approach to the town centre and it will be expecting both innovative and sensitive design responses to the development opportunities that are available especially where prominent sites or land mark buildings are proposed and would expect the advice

of the Council's Design Panel to be sought. Proposals for the public realm should be finished with high quality materials and landscaping making them attractive for visitors and shoppers, whilst the design of new car parks will need special attention to ensure that their appearance does not detract from the overall regeneration objectives. Sittingbourne's heritage assets can play a key role in delivering successful town centre regeneration in the future. This could be achieved by means of a programme of historic building repair, restoration, refurbishment and re-use, in tandem with a programme of townscape and conservation area enhancement. Many of the development proposals will be taking place within the town centre conservation area or its setting. Whilst pursuing innovative and modern designs, development proposals will need to respect and positively respond to the character and heritage there, drawing upon the Council's Conservation Area Appraisal.

6.7.31 As part of the co-ordinating work prior to the submission of any planning applications, an integrated landscape strategy should be created for the regeneration area as a whole which will set out the approach toward a major scheme of public realm, green space improvements, new surfacing, lighting and street furniture. The strategy's objective will be to improve the amenity and attractiveness of the town centre for the business environment, shoppers and visitors alike. It will bring forward a proposal for a new green grid structure for the centre formed by the expansion of street tree planting into upper Bell Road, St. Michael's Road, West Street, Station Street, Park Road, Albany Road, Cockleshell Walk and Fountain Street to echo that already present in the Avenue of Remembrance, Central Avenue and Bell Road. This will be implemented by the development of key sites in the vicinity of these streets.

6.7.32 In accordance with Policy CP 5 a Health Impact Assessment should be prepared to enable an integrated approach to creating a healthier environment across the regeneration area.

6.7.33 The central area currently has relatively little housing, but the Strategic Housing Land Availability Assessment as identified capacity for at least 567 dwellings within the regeneration area. The contribution from this area to the overall housing land supply is identified in Policy ST 4, although this does not preclude other suitable sites within the town centre regeneration area coming forward under Policy CP 3. Well designed schemes could improve visual amenity, create and knit together the townscape and increase vitality. Sites identified by the SHLAA include:

- Site of Swale House, East Street: The relocation of civic facilities will enable the release of this site for 95 dwellings.
- Central Avenue: The establishment of new shops, civic and other facilities here will also include 121 dwellings.
- Fountain Street; The redevelopment of this area will provide for 65 dwellings.
- Land at Cockleshell Walk: Once the new town centre car parking facilities have been secured, the redevelopment of car parks here will be able to provide 150 dwellings;
- Land at The former Bell Centre, Bell Road: The redevelopment of this site for residential development, offices and community facilities, in particular a medical centre to replace existing inadequate space in East Street, will be able to provide a minimum of 120 dwellings;
- Junction of East Street and St Michael's Road: The redevelopment of this corner site will enable the development of 16 dwellings.

6.7.34 The regeneration area should bring forward a range of housing types in accordance with Policy CP 3, including those for affordable housing, although it is not likely to provide for more than 10% affordable units in accordance with Policy DM 8.

6.7.35 Open space will be required in accordance with Policy DM 17. The amount of open space provided will be sufficient to meet the generated need for some 6.4 ha. Some 1.2 ha of sport pitch provision will also be required, whilst contributions to formal play facilities will be needed. Actual amounts and types of open space will be determined at planning application stage, in the context of the specific details of the proposed development. In the case of sports pitch and formal play facilities, the degree to which these will be provided on site or by way of off-site financial contribution (or a combination of both) will also be determined at the planning application stage.

6 Land allocations for new development

6.7.36 The evidence, together with new and emerging initiatives, have redefined the regeneration area to an area covering some 50 ha, as shown on the Proposals Map, from that in the 2008 Local Plan. Policy Regen 1 is intended to act in such a way as to co-ordinate the approaches to the different development sites around the area and to set out the Council's expectations across a number of themes.

6.7.37 Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.

Policy Regen 1

Central Sittingbourne: Regeneration Area

A regeneration area for central Sittingbourne, including its town centre, is shown on the [Proposals Map](#). Within this area proposals which support the objective of consolidating and expanding Sittingbourne's position as the main retail, business, cultural, community and civic centre for the Borough, will be permitted.

- A. Development within the area will proceed in accordance with, or complement, a Masterplan to be prepared to support the development agreement between the regeneration partners and will accord with the key objectives of:
 - 1. Providing additional comparison retail space and uses which provide greater vitality, viability, diversity and activity;
 - 2. Supporting the creation of a station square and bus train interchange with associated improvements to the station itself;
 - 3. Providing for a cinema and performance venue within the town centre area identified in Policy DM 2;
 - 4. Providing for a redeveloped and enhanced civic quarter focused on Central Avenue, Roman Square and Avenue of Remembrance to include civic offices and services, health centre, housing and further education facilities;
 - 5. Reducing the visual dominance of St Michael's Road through traffic calming and environmental enhancement;
 - 6. Providing for suitable car parking that will support existing and new uses and be in accordance with an overall parking strategy for the centre;
 - 7. An integrated landscape strategy for the area as a whole that secures improvements in the public realm, green spaces and the pedestrian environment. Proposals will implement a green grid structure with street tree planting in key streets;
 - 8. A Health Impact Assessment to enable an integrated approach to be adopted across the regeneration area in accordance with Policy CP 5; and
 - 9. Redeveloping sites predominantly for housing in the eastern and western gateways to the regeneration area, especially at Cockleshell Walk, Fountain Street, West Street, Dover Street, Bell Road and East Street, as identified by the Strategic Housing Land Availability Assessment, or at other suitable sites which are in accordance with Policy CP 3.
- B. All development proposals will:
 - 1. Accord with Policies DM 1 and DM 2 to maintain and enhance the retail offer of the primary shopping areas, whilst introducing uses there and elsewhere within the town centre which achieve greater vitality, viability and diversity of services and facilities, alongside buildings of architectural

excellence. Where town centre vitality and viability is not harmed, other sites able to achieve similar objectives will be permitted within the regeneration area defined by this policy;

2. Maintain or enhance key non-retail uses which underpin the retail and community functions of the town centre for both day and night time economy;
3. Provide for residential development of suitable type and scale above commercial premises, or as part of mixed use developments, or on other suitable sites;
4. Maintain and increase office floorspace provision above commercial premises within the town centre area, or where sites are not available, within the regeneration area;
5. Redevelop visually poor areas with buildings of innovative and sensitive design to create new and improved townscape areas, which are of sustainable design and construction in accordance with Policy DM 19;
6. Retain, enhance and create new open spaces and green spaces which should include tree planting (including street trees);
7. Provide public spaces, squares and public art, alongside improved lighting and street furniture;
8. Improve north south links to facilities north of the railway and Eurolink Way via Milton Road and Crown Quay Lane;
9. Ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy; and
10. Provide infrastructure needs arising from the development, including those matters identified by the Local Plan Implementation and Delivery Schedule, in particular those relating to transport, libraries and health.

Queenborough and Rushenden: Regeneration Area

6.7.38 This regeneration area covers some 165 hectares of land and buildings on both banks of Queenborough Creek. Parts of the area have a poor environment and are dominated by heavy industry and traffic. There is also a physical separation between the communities of Queenborough and Rushenden; the latter suffering considerable levels of deprivation. New community facilities are needed in the area, most notably a new primary school, improved health and community facilities and new open space.

6.7.39 There has been some notable progress in the delivery of regeneration to this area. The Neatscourt development has progressed with the building of a large Morrisons supermarket (5,310 sq m), a petrol filling station and a fast food takeaway. Full planning permission has also been granted for a mixed use development for Phase 2, comprising of A1 use class non-food retail floorspace (6,351sq m), B8 use class trade counter floorspace (1,395 sq m) and A3 use class café/restaurant floorspace (697sq m). The Rushenden Relief Road (now called Thomsett Way) opened in November 2011, opening up the area with improved road access and reducing the lorry movements through Queenborough. Some 137,000 sq m of industrial floorspace remains to be developed.

6.7.40 A large scale retrofit project has taken place, which saw a new approach to regeneration and the environment, working with local residents in Rushenden across all tenures to make their homes more energy efficient by providing a series of energy-saving measures. This retrofit was delivered in partnership and was the first of its kind in England to cover private and social homes of various construction types. This was a completely new attempt to link regeneration and the environment specifically, by working with local residents.

6.7.41 Land raising has taken place to protect sites from flooding and major new wildlife habitat has been created at the eastern end of Sheppey to mitigate and compensate for habitat lost at Neatscourt.

6 Land allocations for new development

6.7.42 Economic fortunes have changed markedly since the adoption of the Masterplan and this has been keenly felt at Queenborough and Rushenden. The area's regeneration is now being led by the Homes and Communities Agency (HCA) who have been reviewing how to take proposals forward.

6.7.43 Given the economic downturn, the 2,000 dwellings suggested by the adopted Local Plan and the original supplementary planning document now appear to have been an optimistic forecast of what is now likely to come forward. Previously, development relied on significant proportions of high density and flatted accommodation taking advantage of the waterside location and a proposed marina. However, the marina is no longer viable and the first phase of development will be at a considerably lower density which may set the pattern for other parts of the site. One area to the south of the creek, in particular, has had viability concerns, especially given contamination of the site and the presence of existing industrial uses.

6.7.44 However, there are now more favourable signs of new housing coming forward. Progress has also been made by the HCA in respect of land to the south of the creek and a further landowner has aspirations to develop an additional site. Together, it seems more likely now that most of the scheme can be delivered within the plan period.

6.7.45 The Council continues to identify this area as a 'Regeneration Area' and remains committed to the 2010 Masterplan's aim of:

"a 'multifaceted' regeneration, using the highest standards of design; an urban scheme which is respectful of the history and character of Queenborough, where new houses complementing the old will revitalise the area, bringing money into the local economy, improving education and services, and putting a 'value' on the visual, historical and ecological qualities that the Isle of Sheppey enjoys. The new regenerated Queenborough and Rushenden will be a very attractive place to live and work."

6.7.46 The HCA have produced a revised 'Queenborough & Rushenden Regeneration – Indicative Revised Land-Use Plan' which was adopted in 2015 as an addendum to the original Masterplan. It reflects the changes to the original Masterplan which have occurred since its adoption, notably, a reduction in the total number of dwellings for the area to approximately 1,180 as identified by Policy ST 4. However, the original Masterplan will remain adopted as a supplementary planning document.

6.7.47 Other changes to the original Masterplan include the removal of the proposed marina. There is now much greater certainty regarding the delivery of the school, which represents a key element of new social/community infrastructure, given its new location on land owned by the HCA. The school will now sit in the heart of the new residential community and on a key new pedestrian axis linking Queenborough and Rushenden.

6.7.48 The former Istil Mill and Thomsett sites have now been included for residential development. Their development will remove industrial uses from part of Rushenden Road to help to create more integrated communities and improve the quality of both the natural and built environments. Similarly, the introduction of residential uses along the new Rushenden Link Road will improve the character of this key gateway into Queenborough and Rushenden, and improve pedestrian linkages to the new retail and employment uses at Neatscourt.

6.7.49 Within the regeneration area identified on the Proposals Map, residential development will be permitted on the following sites identified in the Council's Strategic Housing Land Availability Assessment (SHLAA):

- West Street (SW/333) up to 80 dwellings.
- West of Rushenden Road (SW/335) up to 480 dwellings.
- Istil Mill Site (SW/998) up to 240 dwellings.
- South of Queenborough Creek (SW/370) up to 380 dwellings.



Figure 6.7.2 Queenborough and Rushenden draft Masterplan area

6.7.50 If detailed consideration of these sites demonstrates that higher densities can be achieved then this may be considered by the Council. Likewise, other development opportunities within the wider regeneration area may also emerge and, subject to the assessment of their future value for employment, they may be considered acceptable for mixed uses including housing.

6.7.51 The regeneration area falls within some of the Borough's most deprived areas and the purpose of development here will be not to reinforce this area's current characteristics, but to support a restoration of the local housing market in terms of housing type and quality of environment. A range of housing types should be brought forward in accordance with Policy CP 3, including those for affordable housing, with 25% of the scheme overall expected to be affordable dwellings, with the monies associated with the additional 5% to be spent upgrading the existing affordable homes in Queenborough and Rushenden. This will help to bridge the gap between the new and old communities and bring the existing homes up to current standards.

6.7.52 In accordance with Policy CP 5 a Health Impact Assessment should be prepared to enable an integrated approach to issues to be adopted across the regeneration area.

6.7.53 Queenborough Creek, the conservation area and the wider estuarine environment are under-appreciated assets. A high standard of development will be required that is not only sensitive to these assets and their settings, but as the means to secure a major uplift to the image of the area. There are also opportunities for greening poorly presented areas and producing landmark developments and quality public spaces. Environmental enhancement must extend through and beyond the identified mixed-use

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sites into existing residential and business communities. The Council will expect all proposals to be subject to scrutiny by Swale's Design Panel and will accord with an integrated landscape strategy prepared as part of the 2010 master plan SPD. Archaeological assessment and mitigation may be required as part of the planning process.

6.7.54 Although mitigation for adverse impacts on European habitats has already been implemented at the strategic level, detailed proposals will need to continue to be assessed for their impacts upon biodiversity which may lead to further mitigation and compensation needing to be provided, especially where required as part of any Habitats Regulation Assessment. Development proposals will need to reduce recreational disturbance on the SPA, by ensuring the provision of appropriate recreational and accessible natural greenspace opportunities on-site for use by residents and visitors. Such proposals will be subject to an HRA and where demonstrated as necessary to avoid likely significant effects on the SPA, a financial contribution towards wider management of recreational pressures on the North Kent Marshes will be sought in accordance with Policies CP 7 and DM 28.

6.7.55 Most of this regeneration area is considered by the Environment Agency to be within the High Risk Flood Zone, but it is defended and suitable for development. Site based flood risk assessments, however, will be required for development proposals and some upgrading of defences will be needed.

6.7.56 New community facilities are proposed, most notably a new primary school and improved health and community facilities, together with new open space, all of which will be made in accordance with the Masterplan for the regeneration area. Open space will be required in accordance with Policy DM 17. The generated need for open space within the area is some 16.7 ha, with a further 3.1 ha of sport pitches, with contributions to formal play facilities needed either on or off-site. However, the actual amounts and types of open space, sports pitch and formal play facilities will be determined in accordance with the adopted Masterplan SPD and at the planning application stage.

6.7.57 However, market conditions are likely to affect both the type and overall numbers of new housing development coming forward and the level of new services that can be supported. The Council is continuing to work to ensure that new provision commensurate with that required as a result of the new development will be provided.

6.7.58 Recent development has seen the emergence of the Neatscourt area as a retail centre to complement Sheerness town centre. However, it is important that if further proposals for retail uses are brought forward, they do not undermine the role and retail function of Sheerness town centre and other local centres or undermine the ability of the site to meet the identified needs for industrial floorspace for Sheppey (and the Borough) for the local plan period.

6.7.59 Policy Regen 2 is intended to give the overall framework for regeneration at Queenborough and Rushenden and how development should respond to opportunities and constraints.

Policy Regen 2

Queenborough and Rushenden: Regeneration Area

A regeneration area for Queenborough and Rushenden is designated as shown on the [Proposals Map](#). Within this area, proposals will support the objective of regenerating the area for residential, employment and community uses to achieve the integration of communities. Development proposals will, as appropriate:

1. Accord with the adopted Masterplan Supplementary Planning Document and its addendum;
2. Contribute towards the creation of a distinctive sense of place for the planned new settlement that also reflects the area's waterside location and historic environment;
3. Demonstrate sensitive and innovative design, which responds to the challenge of creating new townscape and be subject to scrutiny by the Swale Design Panel;

4. Achieve high standards in terms of sustainable design and construction, including the design and specification of the buildings and sustainable urban drainage;
5. Accord with an integrated landscape strategy through the creation of a new landscape structure for the area, supporting the creation of a network of areas for play, walking and informal recreation, as well as achieving a net gain in biodiversity overall;
6. Assess biodiversity interests, including a Habitats Regulations Assessment. Proposals will ensure that, through both on and off site measures, any significant adverse impacts on European sites through recreational pressure will be mitigated in accordance with Policies CP 7 and DM 28, including a financial contribution towards the Strategic Access Management and Monitoring Strategy;
7. Improve the quality of the environment and housing choice to restore the local housing market area;
8. Achieve a mix of housing in accordance with Policy CP 3, including provision for affordable housing, in accordance with Policy DM 8;
9. Provide, at Neatscourt, commercial floorspace unless this would adversely impact upon the vitality of Sheerness town centre or compromise the achievement of meeting industrial floorspace needs as required for the Local Plan period;
10. Secure those improved services and facilities necessary for a sustainable community;
11. Where appropriate, assist with alternative accommodation for the displacement of existing businesses;
12. Through physical, environmental and economic measures, integrate the existing and new communities;
13. Assess the need for, and provide such transport initiatives and improvements as are necessary;
14. Assess and respond to any risk from flooding; and
15. Provide infrastructure needs arising from the development, including those matters identified by the Local Plan Implementation and Delivery Schedule, in particular those relating to transport, education and health.

The Port of Sheerness: Regeneration Area

6.7.60 The Port of Sheerness is a significant feature of the Isle of Sheppey's economy, and in handling nearly 1.5 million tonnes of cargo per annum is classified by the Department for Transport as a "major" port. It is one of the largest foreign car importers in the UK and handles thousands of tonnes of forest products and steel from all over Europe. The Port has good infrastructure, including access to the wider road and rail networks.

6.7.61 The role of the Port of Sheerness will be maintained and enhanced as a deep water gateway port to Europe. The priority will be to safeguard this port function. Future expansion is likely to involve intensification of port use both within the existing port confines and via expansion onto appropriate nearby land. In the longer term, the regeneration of the Port of Sheerness could have far reaching consequences for the Borough and represent a major opportunity for Sheerness and the communities on western Sheppey, many of whom currently experience high levels of social and economic deprivation.

6.7.62 Following consultation, the owners of the Port are currently finalising the Sheerness Port Masterplan - A 20 year Strategy for Growth. The Masterplan is part of the strategic plan to develop and grow the Port of Sheerness over the next 20 years, reflecting the owner's long-term ambition to remain a key employer and driver for sustainable growth in the Swale and wider Kent region. The draft Masterplan identifies options for the physical strategy for expansion and development of the Port of Sheerness, based upon growth forecasts. The options considered include both expansion within the operational area and major land reclamation intended to facilitate new port operations and regeneration of the older historical parts of the dockyard with additional potential for housing and other mixed use development.

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6.7.63 Heritage is a key issue, both in terms of its potential to act as a catalyst for change, but also in terms of sustaining and enhancing the significance of heritage assets. The Dockyard conservation area includes the most important part of the 19th century engineer John Rennie's original plan and the heritage and cultural significance of the former Royal Naval Dockyard is now widely recognised and accepted as being of international importance. Adjacent to the Port is Bluetown, a community of small businesses and homes with considerable heritage and development potential located in the shadow of the historic dockyard wall.

6.7.64 Alongside heritage, there are also biodiversity, coastal and infrastructure considerations that will need to be addressed to bring these wider proposals for regeneration forward over the longer term. However, if realised, these areas would represent the single largest potential regeneration in Swale and one of the largest across North Kent.

6.7.65 Adjacent to the current port operational area is the former Thamesteel site, which is in need of regeneration. In the short-term the site could provide opportunities to expand operational land for the port's activities, having regard to improving the amenities of adjacent residential areas whose quality of life was impacted by the previous steel mill activities. Given the scale of the site and its access to the rail network, if Port activities are to be extended onto the site, the Council will expect schemes to explore the use of existing rail infrastructure on the site.

6.7.66 Longer term options within the emerging Port Masterplan, such as potential land reclamation, could play a significant role in the wider regeneration of Sheerness. These will be matters for a review of the Local Plan to consider, having regard to such further evidence that has been prepared and a further future review and consultation on the Port of Sheerness Masterplan which can provide a framework to inform both a Local Plan review and development projects through the statutory consenting process.

Policy Regen 3

The Port of Sheerness: Regeneration Area

A regeneration area for the Port of Sheerness is shown on the [Proposals Map](#). Within this area proposals will be supported which support the objective of maintaining and enhancing the Port of Sheerness as a deep water gateway port to Europe. The priority will be to safeguard the port function and to encourage investment in infrastructure that supports water and rail freight connections.

Expansion involving the intensification of port use within existing port confines and/or expansion onto appropriate land within the area defined on the Proposals Map will be supported provided that:

1. any measures required by the development to improve local access by road and rail are brought forward as part of the proposals;
2. the proposals increase the potential for the movement of freight by rail;
3. the proposals are of a scale, use and external appearance that would not detract from the visual appearance or residential amenity of the locality;
4. the significance of heritage assets are sustained and enhanced with viable uses consistent with their conservation with new development making a positive contribution to local character and distinctiveness;
5. a project specific HRA demonstrates that the integrity of the Outer Thames Estuary SPA is retained; and
6. there are no other significant adverse social or environmental impacts arising as a result of the project.

Potential longer term options will be considered via a review of the Local Plan. All proposals intended to secure the regeneration of the area for mixed uses will be considered in terms of their social, economic and environmental implications and their ability to secure the wider possible benefits for the sustainable regeneration of Sheerness and Bluetown.

Kent Science Park, Sittingbourne: Regeneration Area

6.7.67 Located in the rural area south of Sittingbourne, the Kent Science Park has developed across 26ha and comprises some 47,100 sq m of laboratory, research and development space, with some 63 tenant companies employing 1,600 staff predominantly involved in bio-sciences and environmental technologies. The Park represents a regionally important cluster of technology and knowledge-based businesses and delivers growth which provides the main opportunity to diversify the local economy and bring about a shift towards higher-value employment and skills. The site also has its own power facilities which can potentially be further utilised in a sustainable fashion.

6.7.68 The Science Park is identified as one of the Borough's 'Existing Strategic Employment Locations' in Policy CP 1 and the current extent of the site, together with areas already committed for expansion, are shown on the Proposals Map. The UK Science Park Association (UKSPA) definition of a science park is provided in the Local Plan glossary.

6.7.69 Part of the site's unique attraction is its scenic countryside location. It is close to local biodiversity designations and national and local designated landscapes (Kent Downs AONB and Area of High Landscape Value). These designations, together with the nature and character of rural lanes that lead to the site, also mean that opportunities for expansion at this location need to be very carefully considered.

6.7.70 Policy Regen 4, is intended to address the future needs of the site, both in terms of the efficient use of existing land and buildings (including consented land and land and buildings within the current security fence) and in terms of any expansion proposals, including those beyond the security fence and consented land. The Council will consider these favourably, provided that the environmental and transport constraints can be addressed.

6.7.71 Proposals to expand the Park (beyond that shown on the Proposals Map) should come forward in the context of a landscape strategy and framework prepared for agreement by the Council. This should seek to conserve and enhance the parkland character of surrounding land, including its remaining landscape structure, whilst diversifying and restoring features and habitats and creating links between features. Attention should be given to any impacts within views of the site, especially from the south.

6.7.72 A transport assessment will need to consider the impact of proposals on the network of rural lanes around the site and at other locations, recognising that the Council will also wish to be satisfied not only in terms of the overall highway capacity of the network, but also the continuing environmental quality of the lanes around the site. Both these issues are likely to be assisted by comprehensive measures that can maximise the use of public transport, other non-car modes and car use reduction initiatives between the Park, Sittingbourne (particularly key public transport facilities), Sheppey and the strategic road network.

Policy Regen 4

Kent Science Park, Sittingbourne: Regeneration Area

The Council will support proposals at the Kent Science Park, as shown on the [Proposals Map](#), that will consolidate and expand its role as a business cluster of regional significance, specialising in technology and knowledge-based businesses. The location, scale and design of proposals shall avoid significant adverse impacts on the environment or where not possible, minimise and adequately mitigate such impacts, or compensate for them as a last resort. Additionally:

Part A

All development proposals shall:

1. comprise uses compatible or complementary with the use of the site as a 'Science Park' as defined by the UK Science Park Association;

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2. exploit the existing opportunities for sustainable energy and design at the site, unless demonstrated not to be feasible or financially viable;
3. demonstrate, via a Transport Assessment, adequate capacity in the existing transport network, including delivery of any identified and necessary improvements to that network that shall also include implementation of a Travel Plan to minimise car journeys;
4. not significantly harm the character of rural lanes in accordance with Policy DM26; and
5. provide infrastructure needs arising from the development, including those matters identified by the Local Plan Implementation and Delivery Schedule.

Part B

For proposals to extend the site outside of the existing boundaries, as defined by the Proposals Map, it shall be additionally demonstrated that:

1. the development cannot more appropriately be undertaken within the existing boundaries of the site, as defined by the Proposals Map;
2. current levels of facilities for sport can be maintained; and
3. any development will take place in accordance with an overall landscape and ecological strategy and framework that will ensure both the mitigation of impacts, especially upon designated sites and their settings, in accordance with policies DM 24, DM 28 and DM 29, and the continuance of a high quality environment for the site.

6.8 Neighbourhood plans

Introduction to Neighbourhood Planning

6.8.1 The Localism Act introduced rights and powers to allow local communities to shape new development by coming together to prepare neighbourhood plans. These can be taken forward by Town and Parish Councils or 'neighbourhood forums', which are community groups intended to undertake neighbourhood planning in areas without parishes. Such forums should apply to the local planning authority for appropriate recognition to take the lead of a Neighbourhood Plan.

6.8.2 The criteria for establishing neighbourhood forums are intended to encourage new and existing residents' organisations, voluntary and community groups to put themselves forward. These groups can use neighbourhood planning powers to establish general planning policies for the development and use of land in a neighbourhood. These are described legally as 'neighbourhood development plans.'

6.8.3 Communities can also use neighbourhood planning to permit the development they want to see - in full or in outline – without the need for planning applications. These are called 'neighbourhood development orders.'

6.8.4 The Local Plan will continue to set the strategic context within which neighbourhood development plans will sit.

6.8.5 Neighbourhood Plans also have to meet a number of conditions before they can be put to a community referendum and legally come into force. These conditions are to ensure plans are legally compliant and take account of wider policy considerations (e.g. national policy). The conditions are:

- they must generally be in line with local and national planning policies;
- they must be in line with other laws;
- if the local planning authority says that an area needs to grow, then communities cannot use neighbourhood planning to block the building of new homes and businesses, but can use neighbourhood planning to influence the type, design, location and mix of new development; and
- neighbourhood plans must contribute to achieving sustainable development.

6.8.6 An independent qualified person will check that a neighbourhood development plan or order appropriately meets the conditions before it can be voted on in a local referendum. This is to make sure that referendums only take place when proposals are workable and of a decent quality. Neighbourhood development plans or orders do not take effect unless there is a majority of support - more than 50% - in a referendum of the neighbourhood. If proposals pass the referendum, the local planning authority is under a legal duty to bring them into force.

6.8.7 Currently Swale has three designated neighbourhood plan areas - Faversham Creek, Boughton and Dunkirk and Minster.

The Faversham Creek Neighbourhood Plan

6.8.8 The Faversham Creek area is part of the town's extensive conservation area and contains a number of historic buildings, together with traditional marine related activities and a series of green spaces. All contribute to the character of the area and represent an important asset to the town.

6.8.9 The Creek is operating under a number of complex constraints. Navigation is restricted in parts by a loss of depth and width to the channel and there is no longer safe navigation for large craft in the Basin due to silting. Navigation into the Basin is also restricted by a defective swing bridge at Bridge Road. Navigation could also be improved by dredging, but in addition to its costs, there are likely to be limitations imposed on large scale industrial dredging of the Creek by the Swale Special Protection Area (SPA).

6.8.10 Flood risk, particularly in relation to the re-use of previously developed land within the 1:20 year flood zone of Faversham Creek, must be carefully assessed and managed, whilst a number of these sites are likely to be contaminated and require some remediation work. A further issue is that the attractive waterside environment of the creekside area has not had the same investment to improve the quality of its environment as the town centre. There are also a number of historic buildings needing restoration.

6.8.11 For these reasons, the regeneration of Faversham Creek, whilst protecting the rich maritime, industrial and landscape heritage for economic, environmental and educational purposes, is the principal objective. This has been strongly supported by local consultation.^(6.2) This analysis indicated that the Neighbourhood Plan should seek to regenerate Faversham Creek by focusing on:

- clusters of heritage assets and marine-related activities with regeneration potential;
- navigation improvements to the Creek through a combination of sluicing and smaller scale injection dredging;
- protecting and enhancing important green spaces and upgrading the public realm within the area; and
- maximising pedestrian links between the Creek and the town, along the creekside and to wider countryside routes.

Statement 8

Faversham Creek Neighbourhood Plan Vision

Faversham Creek is a place where we can celebrate the town's rich history and attractive appearance; where we can enjoy spending time, both on and off the water; where boats, residents and visitors want to be; where developments integrate the needs of people and nature and where there is a distinctive character and identity rooted in traditional industries and enriched by new businesses.

6.8.12 Within the areas of heritage/marine-related activity adjoining the Creek, listed and other historic buildings and maritime uses, wharves and moorings important to the character of the Creek should be retained and, where necessary, restored alongside complementary redevelopment opportunities. Given the location of these areas within the functional floodplain, and the historic association with the Creek, workshops/business uses, facilities for moored boats (e.g. showers/toilets) and small scale retail and

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restaurant uses would be best able to address these issues and improve the visitor attraction to the area.^(6.3) Dependent on design, amenity and flood risk considerations, residential development could be permitted above ground floor level to assist with the viability of mixed use schemes and to provide activity throughout the day and evening. On some sites, mixed-use development would be unsuitable and on these sites 100% residential development would be acceptable. New buildings should be of a sensitive design with their scale and context respecting the setting of the listed building and the adjoining creekside buildings.

6.8.13 The Faversham Creek Streetscape Strategy, prepared by Faversham Town Council and adopted by the Swale Joint Transportation Board, seeks to extend town centre streetscape enhancements to the creekside area. The principal aim of the strategy is that improvements in the public realm around Faversham Creek should respond to and enhance the character and distinctiveness of the creekside area. The Strategy outlines the guiding principles regarding the improvements to the streetscape of the creekside area and establishes guidelines for the design of specific items in the overall environment, both built and natural. The Strategy also sets out guidance for creek streetscape enhancements for discrete areas of the creekside. The priorities for implementation are set through the Neighbourhood Plan process.

6.8.14 The Faversham Creek Neighbourhood Plan details its strategy, guided by Policy NP1. It includes the allocation of specific sites and levels of development, the parameters for development as well as proposals for improvements to accessibility and public realm. Proposals will be delivered through the granting of consents and the implementation of improvements set out in the Neighbourhood Plan. Whilst Policy ST4 has indicated a level of new housing as arising from the Neighbourhood Plan area, this is solely for the purposes of demonstrating its potential contribution to the overall supply of housing in the Borough. The Neighbourhood Plan process determined the final levels of employment, housing and other uses.

Policy NP 1

Faversham Creek Neighbourhood Plan

Within the Faversham Creek Neighbourhood Plan area, as shown on the [Proposals Map](#), priority will be given to the regeneration of Faversham Creek by retaining maritime activities (including the retention and improvement of wharves and moorings, including for large craft) with complementary redevelopment opportunities for workshops/business uses, residential, small scale retail and restaurant uses. Where relevant, development of the area will:

1. Accord with the Neighbourhood Plan;
2. Provide for the restoration of and enhancement to the settings of listed and other important historic buildings;
3. Protect open space and nature conservation interests and upgrading of the public realm;
4. Improve navigation of the Creek (subject to appropriate mitigation of the impacts on the adjacent International Designations and the Shellfish Waters);
5. Provide a publicly accessible creekside walkway;
6. Require high quality designs which respect their context;
7. Be acceptable in terms of flood risk; and
8. Re-mediate contaminated sites.

6.9 Area of Search - The Sittingbourne Northern Relief Road A2 link

6.9.1 The Sittingbourne Northern Relief Road (SNRR) was originally conceived as a link between the A2 to the east of the town and the A249 in the west, able to provide new links into the town's commercial areas and to free road space in the streets around the centre. Phases of the road were completed over a 10 year period from the A249 through to new developments at East Hall farm in the north east of the town, leaving the link to the A2 incomplete. The Milton Creek section was completed in November 2011.

6.9.2 The development strategy of the Local Plan focuses new development at the main urban area of Sittingbourne, with allocations at north west and north east Sittingbourne and major regeneration development in central Sittingbourne at an advancing stage of preparation. There are also major new commitments for employment uses along the route of the SNRR at Grovehurst, Kemsley and Eurolink Phase 5. These make use of spare capacity on the A249 and the completed sections of the SNRR. Completion of the road to the A2 in the Bapchild area will realise the full benefits of the road, further relieving the town centre of traffic, opening up development opportunities and maximising the benefits of proposals for regeneration, traffic management and calming in the centre of the town. Completion also brings other environmental benefits, notably the Canterbury Road section of the A2 between the town centre and east of the town will benefit from reduced congestion at peak times and improved air quality within the section declared as an Air Quality Management Area.

6.9.3 High level transport modelling has demonstrated the value of completing the SNRR as outlined above, although the provision of the road is not imperative in traffic terms to deliver the development targets as proposed in the Local Plan. More detailed transport impact assessments for development proposals in the town centre and elsewhere may indicate that the current improved economic growth context could alter this situation. It is therefore important to maintain the commitment to finalising the route of the final section of the road and to ensure its inclusion in appropriate transport programmes and funding bids, as well as allowing it to attract developer funding. In the longer term a precise alignment can be considered as part of a local plan review where its role can be further considered alongside any potential for a Sittingbourne Southern Relief Road between the A2 and M2 east of Sittingbourne.

6.9.4 Local public consultation was carried out by Kent Highways in 2010 on a single route crossing the railway and then either going straight to the A2 to the west of the village, or sweeping around the north of Bapchild to join the A2 east of the village. The outcome of this consultation was inconclusive in terms of route preference (although the most easterly route presents the most costly of those considered).

6.9.5 The SNRR could, with appropriate funding, be delivered within the plan period and will support local growth, however, it will not be required to support the growth planned for the first five years of the Local Plan period and probably longer. The scheme is already identified in Kent County Council's Local Transport Strategy for Swale and its transport delivery programme, although to date it has not been supported by funding from the Local Economic Partnership. As a preferred route has not yet been agreed, this Local Plan identifies a safeguarded 'Area of Search' on the Proposals Map, which reflects the area covered by reasonable options tested in the 2010 consultation. Within this area of search, the route of the road will be sought and allocated either by a separate Development Plan Document (DPD) if need and timing dictates, or, most likely, through Local Plan Review. These mechanisms will determine the detail of the route and the appraisal and mitigation of impacts, including the area impacted by the chosen route itself and any potential for impacts on traffic flows and living environments on the A2 corridor east of Sittingbourne. The latter may require traffic management solutions in the settlements most affected. The evidence base for the route will include and review the design and consultation work carried out by Kent Highways in 2010 and work on this is expected to proceed in collaboration with the highway authority.

6.9.6 The proximity of the area of search to the Swale SPA/Ramsar site will need to be borne in mind in any decision on route location with reference to the mitigation of impacts in accordance with policy DM 28 and the Habitats Regulations.

6.9.7 The 'Area of Search' incorporates land which is allocated for mixed use under the allocation for north east Sittingbourne in Policy MU 2. However, the area proposed for residential use is not envisaged as coming forward before decisions about the road alignment have been resolved. South of the railway, Policy A 8 allocates land at Stones Farm for housing and open space. These are likely to come forward within a much shorter timescale than the road proposals and will not narrow the scope for route options to be considered. Between the railway and the A2, Policy A 8 proposes some 15 ha of proposed public open space within the proposed 'Area of Search'. This will continue to allow for the widest consideration of route options possible, whilst enabling appropriate weight to be given to such matters as the need for adequate open space and settlement separation between Sittingbourne and Bapchild, as proposed by Policy DM 25. Additionally, both policies MU 2 and A 8 require regard to be given to the need to provide for the road

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corridor. Across the 'Area of Search', developments likely to reduce or remove the consideration of route options or preclude achievement of the road between the current end of Swale Way and the A2 will not be permitted in advance of the allocation of a precise route. Funding towards provision for the road will be sought from suitable sources of public and developer funding.

Policy AS 1

Safeguarded area of search: Sittingbourne Northern Relief Road - The A2 link

The area shown on the [Proposals Map](#) forms an 'Area of Search', within which a safeguarded route for the completion of the Sittingbourne Northern Relief Road to the A2 will be determined and allocated via Local Plan Review, or should earlier need and timing dictate, the preparation of a Development Plan Document (DPD). Development proposals likely to reduce or remove the consideration of route options or preclude achievement of the road will not be permitted. In determining its route, environmental mitigation issues associated with the route will be addressed, including the impact of the new road on the traffic flows and living environments along the A2 corridor to the east of Sittingbourne.

End Notes

- 6.1 National Planning Policy Framework paras 23 – 26 CLG 2012, supported by National Planning Practice Guidance (Ensuring the vitality of town centres)
- 6.2 Stakeholder Consultation and Options Report 2009. Urban Initiatives for SBC and Developing proposals and future planning policy options to deliver regeneration of the Creek area 2010. Tony Fullwood Associates for SBC
- 6.3 Functional flood plain is defined as land where water has to flow or be stored in times of flood

7 Development management policies

7 Development management policies

7.1 Building a strong, competitive economy

Maintaining and enhancing the vitality and viability of town centres and other areas

7.1.1 The National Planning Policy Framework (NPPF) requires planning policies to be positive, promote competitive town centre environments and set out policies for the management and growth of centres over the plan period. They should also define the extent of town centres and primary shopping areas, based on a clear definition of primary and secondary frontages in designated centres, and set policies that make clear which uses will be permitted in such locations.^(7.1)

7.1.2 The majority of shops in Swale are located in the town centre areas of Faversham, Sheerness, and Sittingbourne as defined on the Proposals Map in Policy DM 2.

7.1.3 With regard to new retail and other development in the town centres, the Local Plan defines 'primary' and 'secondary' shopping frontages on the Proposals Map. However, it is acknowledged that a future review of the Local Plan may need to re-examine the extent of these areas once the retail regeneration of Sittingbourne town centre is implemented. Our centres are facing considerable challenges at present and it is the Council's approach that there should be flexibility in the range of uses that are provided in these shopping areas, especially to encourage the unexpected opportunities that may occur on the fringes of the primary or secondary shopping frontages. This flexibility will help enhance the vitality and viability of the Borough's town centres and maximise their contribution to the local economy. A wide range of uses can potentially have a key role in maintaining a diverse and commercially prosperous centre without undermining their primary retail function.

7.1.4 In accordance with Policy DM 1, within the defined primary shopping frontages, retail will remain the predominant use, especially at its heart. The Council will allow the limited introduction of other uses that will enhance the primary retail function. In so doing, it will ensure that the replacement of shops with other uses does not lead to a concentration of non-retail frontages or break a continuous frontage of retail uses that would lead, or eventually lead, to the dilution of the retail function of the area or compromise community safety with anti-social activity. It will also consider the location of the premises in question within the frontage, its position and importance within the commercial area and the percentage of the total length of retail frontage likely to be taken up by the proposed use. There will also be a need to retain a wide range of uses that are important to the health of commercial areas, or those that underpin an area's primary shopping function. The Council will seek to retain these key town centre uses, such as employment, civic functions and pubs, when a redevelopment or change of use would lead to a lesser contribution to the vitality or viability of the area. Above the ground floor of premises, a more flexible range of uses can be considered, including residential or other uses able to bring activity into the centre, especially in the evenings.

7.1.5 In the defined secondary shopping frontages, a wider mix of uses will be permitted as appropriate, including residential, although vital and viable uses such as retail, should continue to be retained. Despite their secondary shopping frontage status, it remains important to ensure that the vitality of these areas continues, and where possible, improved to provide attractive shopping environments.

7.1.6 Outside the main town centres, shops can be found grouped in local centres, parades or in neighbourhood and village centres, or on their own in residential streets or in a village. Many petrol filling stations also now provide a shop, and farm shops also fulfil an important local role. Shops in all these locations play an important role in catering for day-to-day shopping requirements, including for those without access to a car, reducing the need for people to travel to the town centres. Shops in all these locations should be retained, with changes of use only being acceptable in accordance with Policy DM 1 and Policy DM 2.

Policy DM 1

Maintaining and enhancing the vitality and viability of town centres and other areas

In town centres and other commercial areas, planning permission will be granted for development proposals, in accordance with the following:

1. Within the defined primary shopping frontages, as shown on the [Proposals Map](#), the Borough Council will permit non-retail uses that:
 - a. maintain or enhance the primary retail function of the area by adding to the mix of uses to help maintain or increase its overall vitality and viability, especially where providing a service or facility for residents or visitors currently lacking or under-represented in the town centre, or by increasing pedestrian activity in the immediate locality;
 - b. do not result in a significant loss of retail floorspace or the break-up of a continuous retail frontage;
 - c. do not lead to a concentration of non-retail frontage; and
 - d. do not result in the loss or erosion of a non-retail use that underpins the role, functioning, vitality and viability of the area.
2. Within the defined secondary shopping frontages, as shown on the [Proposals Map](#), or within a Local Centre as defined by Policy DM 2, the Borough Council will permit non-retail uses, including residential, provided that they would not:
 - a. lead to a significant concentration of non-retail floorspace or housing or the loss of significant retail frontage;
 - b. result in the loss of existing residential accommodation or a use important to the community; and
 - c. lead to a loss of residential amenity.
3. Outside the primary and secondary shopping frontages, or Local Centre as defined by Policy DM 2, the Borough Council will permit a non-retail use if it maintains the area's role, functioning, vitality and viability and:
 - a. does not result in the loss of existing residential accommodation or a use important to the community;
 - b. does not lead to a loss of residential amenity; and in the case of rural areas
 - c. Accords with Policy DM 3.

Proposals for main town centre uses

7.1.7 The National Planning Policy Framework promotes a sequential approach to the location of main town centre uses such as retail, leisure, office and other complementary uses. This means that the preferred location for such development is within existing town centres, but, if sites are not available in such locations, then development on the edge of the town centre may be appropriate. Consideration may then be given to other locations within the wider urban area. Main town centre uses proposed outside of the urban area are generally discouraged. However, new development may be permitted where it is primarily intended to meet a local identified need. In such cases, the Council will normally expect proposals to involve the re-use of an existing building(s).

7.1.8 Sittingbourne is the main town of the Borough with the largest population and provides shopping, local government, and other services and its role should be to function as the centre that meets the needs

7 Development management policies

of the Borough as a whole. Faversham and Sheerness also have town centre status and should function as centres for their smaller, but still sizable, home and surrounding populations. Outside the main centres, in the other urban areas and rural local service centres, are smaller local centres which provide a shopping street or parade of shops that enable local people to meet some of their everyday shopping needs without the need to travel to the town centres. On main routes such centres may also include more specialist shops that draw people from further afield. The Council's Retail Study (2010) has determined the hierarchy of town and local centres for purposes of Policy DM 2 and the Council will support and encourage proposals for new retail development appropriate to the size, role and function of the settlement concerned, in accordance with Policy ST 3.

7.1.9 Certain proposals for retail, leisure and office use will require the submission of an impact assessment to examine impacts upon existing, committed and planned public and private investment in a centre or centres in the catchment area of the proposal. It will also consider the impact of the proposal on town centre vitality and viability. The floorspace threshold for such assessments within the Borough will be that as set out in national planning policy.

Policy DM 2

Proposals for main town centre uses

Planning permission will be granted for main town centre uses subject to:

1. Taking into account the scale and type of development proposed in relation to the size, role and function of the centre, as follows:

Type of centre	Location
Town Centre	Sittingbourne (principal town), Faversham, Sheerness
Local Centre	Queenborough & Rushenden, Halfway, Minster, Milton Regis, Boughton, Eastchurch, Iwade, Leysdown, Newington, Teynham

Table 7.1.1 The Swale Retail Hierarchy

2. Being located within the town centres as defined on the [Proposals Map](#); or
3. Where demonstrated that a town centre site is not available, being located on a site on the edge of a town centre, subject to criteria 4a to 4c; or
4. Where demonstrated that there are no suitable sites available at locations within 2. and 3. above, proposals elsewhere within the built-up areas of Faversham, Sheerness and Sittingbourne, as shown on the Proposals Map will only be permitted if:
 - a. it is demonstrated by an impact assessment (when the proposal is above the defined floorspace threshold in national planning policy) that it would not individually, or cumulatively with those trading or proposed, undermine the vitality and viability of existing town centres, or of other local centres and the facilities and services of other locations;
 - b. it does not materially prejudice the provision of other land uses, particularly the supply of land for 'B' use class uses, housing, community use and open space; and
 - c. it is well located in relation to the main road network and easily accessible by public transport, pedestrians and cyclists.
5. Elsewhere, proposals will be permitted where they address the tests set out in national policy and accord with criteria 4a to 4c.

The rural economy

7.1.10 The National Planning Policy Framework supports economic growth in rural areas to create jobs and prosperity by taking a positive approach to sustainable new development. Local planning authorities should support the sustainable growth and expansion of all types of business and enterprise in rural areas, promote the development and diversification of agricultural and other land-based rural businesses, support sustainable rural tourism and leisure developments and promote the retention and development of local services and community facilities in villages.^(7.2)

7.1.11 In Swale, the rural areas are considerable generators of wealth including from tourism and the wide range of small to medium sized businesses that operate there. However, it is not possible to identify the opportunities likely to arise in terms of the allocation of specific sites. Policy DM 3 is the means to highlight the needs of specific sectors and the protection and expansion of rural services, whilst balancing support for the sustainable growth and expansion of business and enterprises with limiting and managing adverse impacts upon the wider countryside. The policy is considered in the context of Policy ST 3 which, for larger scales of employment growth, steers provision to the urban areas and rural local service centres.

7.1.12 It is not the purpose of this policy to define rural employment, as the variety of businesses that can be successfully accommodated within rural areas are wide. They will range from home-based businesses, newly created businesses, land based businesses and those for whom the attractive environment fits the ethos of the company concerned.

7.1.13 A factor affecting the development of the rural economy is the limited availability of land and buildings. Such locations are often an attractive and more lucrative prospect for residential use. To retain the availability of rural buildings for employment, the Council will only grant planning permission for their residential use where evidence is provided that shows that there is no demand for them to be used for employment, or if they are wholly unsuitable for any employment use. Evidence of demand should include the results of efforts made to market the building, normally with a planning permission, as available for employment use.

7.1.14 For the rural tourism sector, given the outstanding environment in Swale and its potential contribution to the economy, the Council wishes to see an expansion of sustainable rural tourism initiatives that can benefit local communities, economically and socially as well as raising awareness and support for conservation and enhancement of the Borough's natural assets. Indicators of such business credentials are likely to be:

- how it will manage and market itself and how it will make its purchasing choices;
- whether it communicates ideas via an environmental policy;
- its choice and use of resources and how energy, water and waste is managed;
- its relationship with local communities and its support of and contribution to the local economy;
- the transport opportunities and choices available;
- a spread of knowledge, management and awareness of the local environment and wider area, access, landscape and wildlife;
- how it will identify, address, promote and support the local distinctiveness of the area; and
- will it be developed at a scale appropriate to the local community and environment?

7.1.15 For proposals involving existing tourism businesses, membership of the [Green Tourism Business Scheme](#), the national sustainable tourism certification scheme for the UK, or similar national certification schemes, will be taken as a demonstration of their sustainability credentials when planning applications are being considered.

7.1.16 When considering proposals for tourism and visitor facilities, the Council will ensure that they complement the existing services present within the locality and where appropriate support their use by existing communities, as well as visitors. In the case of the many holiday parks located in the rural area, their needs are considered more specifically by Policies DM 4 and DM 5.

7 Development management policies

7.1.17 For the agriculture sector, the industry has highlighted the need for it to keep pace with the changing context brought about by climate change, food security, food miles, the decline in pollinators, global markets, major food retailers and changing legislation/guidance. These may bring about demands for facilities such as large scale crop storage facilities and new growing technologies.^(7.3) Policy DM 3 supports farmers to respond to these challenges. [The Kent Downs AONB Unit's Farm Diversification Toolkit](#), can help farmers take a balanced and integrated approach to making changes on their farm. The Borough also has a significant woodland resource which brings with it opportunities in terms of development and diversification in respect of woodland products and renewable energy, sustainable woodland management and/or as a resource for sustainable leisure and green tourism activities.

7.1.18 Key parts of the economy, vitality and viability of rural community are their local services and community facilities, including local shops, meeting places, sports venues, cultural buildings, schools, public houses and places of worship. Policy DM 3 promotes proposals for new services or the innovative diversification or expansion of existing provision. The Council will look to the retention and development of such services and facilities where they are, or can be made viable. Where development proposals threaten the continued future of such uses, the Council will look to applicants to submit evidence to demonstrate the options that they have considered to retain the use, such as through sharing of services or diversification, which will also include details of its viability.



Picture 7.1.1 Older fruit growing methods alongside modern polytunnels

to achieve support from Policy DM 3, change must be sustainable, with proper regard to environmental considerations which will depend on the type of development proposed. However, a specific aim of Policy DM 3 to limit the impact of changes is a preference for new development proposals to use existing buildings, or where a new building is justified, on previously developed land as a first consideration. The Council will be satisfied that such options have been explored before well designed new buildings, appropriate to their context in other locations, are approved. For proposals to convert existing buildings, the Council's Supplementary Planning Guidance entitled [The Conservation of Traditional Farm Buildings](#) will remain a material consideration to the determination of some proposals.

7.1.19 Even if the site or building is currently vacant, evidence will need to show that it is neither viable nor likely to become viable and that alternative employment uses have been robustly tested. This will also include the applicant having marketed the enterprise or the property for its commercial/community use for a reasonable period in a manner and at a price that reflects that use.

7.1.20 In supporting the valuable contribution of appropriately located rural businesses, it recognises that there may be reservations about the effects such developments could have or where new initiatives challenge traditionally held views about food production and environmental quality. However, to

Policy DM 3

The rural economy

Planning permission will be granted for the sustainable growth and expansion of business and enterprise in the rural area. Planning permission for residential development will not be permitted where this

would reduce the potential for rural employment and/or community facilities unless the site/building(s) is demonstrated as having no demand for such purposes or its use would be undesirable or unsuitable. Development proposals for rural based employment will:

1. For all proposals:
 - a. in the case of larger scales of development, be located at the rural local service centres and urban areas as defined by Policy ST 3 and in accordance with Policy CP 1;
 - b. firstly consider the appropriate re-use of existing buildings or the development of other previously developed land, unless such sites are not available or it is demonstrated that a particular location is necessary to support the needs of rural communities or the active and sustainable management of the countryside;
 - c. retain or enhance the rural services available to local communities and visitors without undermining or resulting in the loss of existing services unless demonstrated to be unviable for the existing use or other employment/community use;
 - d. for new buildings and ancillary facilities, the design and layout will need to be sympathetic to the rural location and appropriate to their context;
 - e. result in no significant harm to the historical, architectural, biodiversity, landscape or rural character of the area; and
 - f. avoid scales of traffic generation incompatible with the rural character of the area, having regard to Policy DM 6 and Policy DM 26.
2. For tourism and leisure:
 - a. in the case of green/sustainable tourism proposals, be demonstrated by reference to their principals;
 - b. provide for an expansion of tourist and visitor facilities in appropriate locations where identified needs are not being met by existing facilities in the locality or where able to increase facilities available to local communities as well as visitors; and
 - c. where relating to holiday parks, proposals are also in accordance with Policy DM 4.
3. For the agricultural/forestry sectors:
 - a. enable the diversification of a farm; or
 - b. extend the growing season or improve the reliability and availability of local crops; or
 - c. provide for the storage, distribution or added value activities in central hubs located close to crop sources and the primary and secondary road networks; or
 - d. increase the availability of locally grown food sold direct to the consumer; or
 - e. increase the sustainable management of woodlands; or
 - f. increase the use of renewable energy sources in accordance with Policy DM 20.

Holiday Parks

New holiday parks or extensions to existing parks

7.1.21 One of the core planning principles in the National Planning Policy Framework is to proactively drive and support sustainable economic development.

7.1.22 In Swale, the Isle of Sheppey currently has 56 operational holiday parks comprising some 6,731 chalets and caravans (4,135 caravans and 2,596 chalets) occupying in total about 193 ha of land.^(7.4) This amounts to around 1.9% of the UK total and is the largest concentration in Kent.^(7.5)

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7.1.23 Nationally, the park format varies considerably from tented accommodation to luxuriously furnished timber lodges with en-suite bathrooms.^(7.6) In Swale, the format is more traditionally based on chalets and caravans, although eco-lodge initiatives are emerging. Holiday parks provide direct employment and their users support shops, pubs, restaurants and visitor attractions. There can also be other social benefits in that they give work in areas where little alternative employment exists. The changing nature and flexibility of the leisure market and the higher aspirations of customers today are leading to leisure providers continually developing new concepts to respond to consumer needs and aspirations.

7.1.24 Swale faces a number of challenges within its holiday park tourism sector:

- whilst some parks have been modernised to meet changing needs, others are of poor quality and are in need of improvement;
- holiday parks are for short term tourism occupation, and a good economic case has been made for allowing occupancy for a greater portion of the year (although some planning challenges have arisen as a result of year round occupation);
- the space available for parks is being squeezed by coastal cliff erosion, flood risk and restrictive policies to prevent expansion outside defined holiday areas;
- sites are often in open and/or coastal sensitive landscapes where they have had negative visual impacts.



Picture 7.1.2 Holiday areas within the north Sheppey landscape

7.1.25 Given the scale of existing provision on the Isle of Sheppey and its contribution to the current poor condition and appearance of local landscapes, the Local Plan does not seek to allocate any new sites.^(7.7) The expansion of existing sites outside the defined holiday areas will also not be permitted due to the landscape and visual impacts likely to arise. Exceptionally, extensions to existing sites will be permitted in specific local circumstances, such as where land on a site is being physically lost due to coastal processes and where its replacement can be assimilated successfully into the landscape.

Policy DM 4

New holiday parks or extensions to existing parks

1. Planning permission will be granted for the upgrading and improvement of existing static holiday caravan and chalet sites (including their conversion from one to the other) within the existing boundaries of the Holiday Park areas as shown on the [Proposals Map](#). Planning permission will not be granted for any new static holiday caravans and chalets, or extensions, outside of the Holiday Park areas on the Isle of Sheppey as shown on the Proposals Map.
2. In circumstances where land is lost to coastal erosion, minor extensions to existing static holiday caravan sites will be permitted where:
 - a. in accordance with Policies DM 22 and DM 23 relating to the coast and the coastal change management area;
 - b. it is demonstrated that on-site upgrading and improvement is not practicable or viable;
 - c. there is no overall increase in the existing number of accommodation units;
 - d. it is part of a scheme to upgrade and improve the quality of tourist accommodation and other amenities on the site;
 - e. it results in a significant and comprehensive improvement to the layout, design and appearance of the site, together with an integrated landscape strategy that creates a landscape framework for both the existing and proposed sites that will reduce their overall impact within the landscape in accordance with Policy DM 24;
 - f. in accordance with Policy DM 5; and
 - g. there is no unacceptable impact on the local environment.
3. Where new or improved facilities are proposed within the existing boundaries of the Holiday Park areas, as shown on the Proposals Map, planning permission will be granted provided they are:
 - a. of a type and scale appropriate to the site or park they are intended to serve;
 - b. where feasible, made available for use by the local resident population; and
 - c. in accordance with Policy DM 5.

The occupancy of holiday parks

7.1.26 Most holiday parks in Swale have been restricted to an eight month period of occupation, with an additional 11 day period allowed over Christmas and the New Year period for sites not at risk of flooding. The limited occupancy period was imposed to ensure that these holiday parks were not used as permanent (and sometimes sub-standard) housing (many of which would be in poorly accessible parts of the Borough) and to protect the character of the rural area. Limited occupation also afforded the opportunity to retain a period of tranquillity in rural and other areas. In areas at risk of flooding, permanent occupation over the winter period could also result in risk to life.

7.1.27 Whilst these considerations remain relevant, to give more scope and incentive to enable modernisation and upgrading to take place, the Council considers that there will be occasions when a 10 month occupancy period will be acceptable, which will, in turn, deliver tourism benefits and support for the local economy.

7.1.28 Policy DM 5 sets out the parameters within which applications to extend occupancy of holiday parks to a 10 month period will be permitted. Permanent occupation will continue to be resisted. For the most part, Policy DM 5 will apply to existing holiday parks, but will also be used to guide the length of occupancy that should be allowed in such cases.

7 Development management policies

7.1.29 Where land is liable to flooding, occupation will continue to be restricted in accordance with national planning policy and guidance. Applications to extend occupancy on these sites will need to be supported by an up to date Flood Risk Assessment (FRA) with mitigation measures where appropriate. In many cases, it will not be possible to provide mitigation that adequately safeguards from the risk of flooding over the winter months, and in these cases applications to extend the occupancy on these sites will be resisted.

7.1.30 In cases where sites are either adjacent, or in close proximity to, the Swale or Medway Special Protection Areas, an application to extend the holiday season will need to be accompanied by an assessment made under the Habitat Regulations in order to consider potential disturbance to over-wintering birds.

Policy DM 5

The occupancy of holiday parks

In order to ensure a sustainable pattern of development and to protect the character of the countryside, planning permission will not be granted for the permanent occupancy of caravans and chalets. Where it can be demonstrated that higher quality standards of holiday accommodation can be secured, planning permission will be granted for proposals to extend the occupancy of holiday parks between 1 March and 2 January the following year (a 10 month occupancy), provided that:

1. The site is not at risk of flooding, unless, exceptionally, applications accompanied by a Flood Risk Assessment (FRA) satisfactorily demonstrating that the proposal would result in no greater risk to life or property and where an appropriate flood evacuation plan would be put in place;
2. The amenity and tranquillity of the countryside and residential areas are safeguarded;
3. The proposals are in accordance with Policies DM 22 and DM 23 relating to the coast and the coastal change management area; and
4. Where located adjacent or in close proximity to the Special Protection Areas (SPA), an assessment has been undertaken to determine the level of disturbance to over-wintering birds and identified mitigation measures, where appropriate.
5. The extension of occupancy is subject to planning conditions safeguarding the holiday accommodation from being used as sole or main residences, as set out in Appendix 2.

7.2 Promoting sustainable transport

Managing transport demand and impacts

7.2.1 This policy is designed to support the National Planning Policy Framework core principles of managing patterns of growth to make the best possible use of public transport, walking and cycling and focusing development in sustainable locations. It also supports the NPPF's objective in respect of climate change and reducing greenhouse gas emissions. This development management policy focuses on how the demand for transport will be addressed at the level of specific sites and network improvements.

7.2.2 The NPPF states that all developments which generate significant amounts of movement (to be determined by local criteria) should be supported by a Transport Assessment which will consider:^(7.8)

- whether the opportunities for sustainable transport mode have been taken up, depending on the nature and location of the site (taking account of whether or not it is a rural location);
- whether safe and suitable access to the site can be achieved for all people; and
- what improvements can be undertaken within the transport network which can effectively limit the significant impacts of the development.

7.2.3 Developers will therefore need to ensure that their proposals are located and designed so as to minimise the need to travel in accordance with Policy CP 2 and that opportunities to connect with and maximise the use of, public transport, cycling and walking are taken wherever appropriate. This will include provision for:

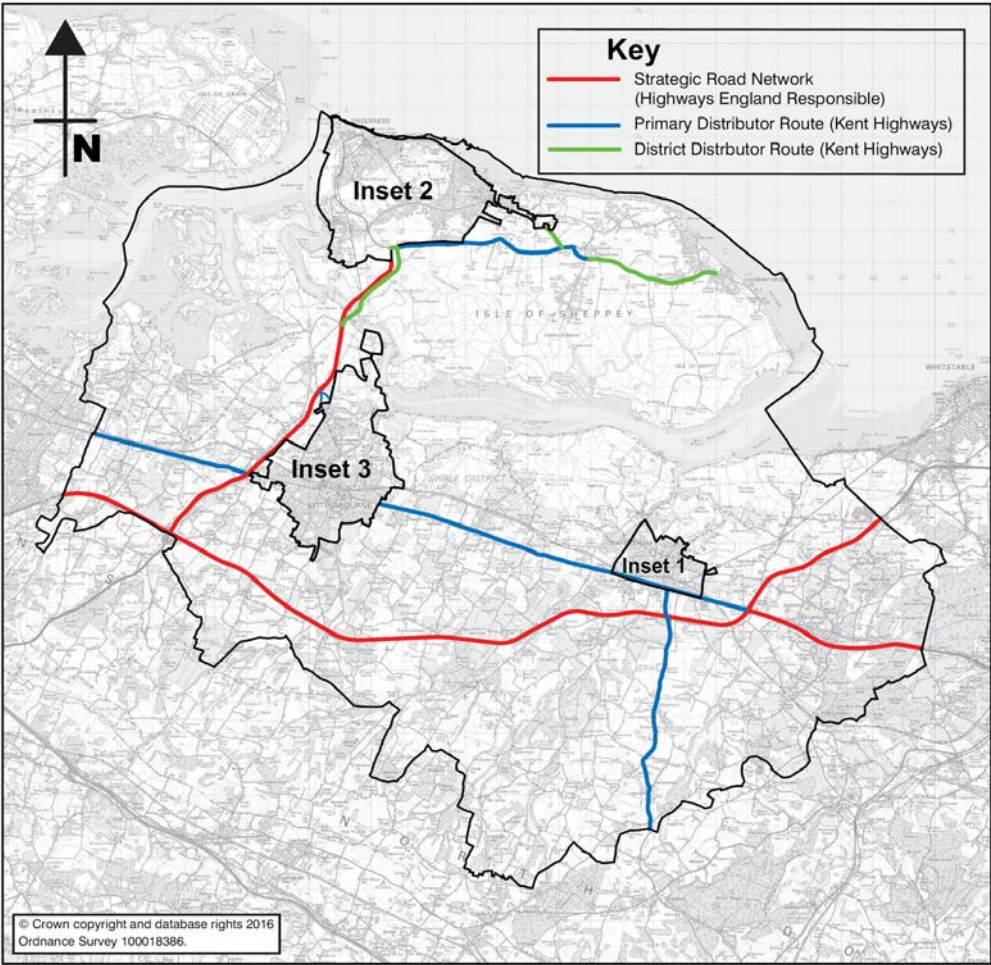
- efficient delivery of goods and supplies;
- prioritising pedestrian, cycle and access to high quality public transport facilities and minimise conflicts with vehicular traffic;
- considering the needs of people with disabilities by all modes of transport; and
- incorporating facilities for charging plug-in and other ultra low emission vehicles.

7.2.4 Development or redevelopment can impact on the safe operation and capacity of the highway network. Consequently, the Council will expect, where appropriate, an appraisal of the traffic impacts of the development as part of an overall transport assessment. This may also include a Travel Plan. Developers will need to demonstrate that the existing highway network has sufficient capacity to accommodate the proposed development, or alternatively, that access and capacity can be provided in a cost effective way.

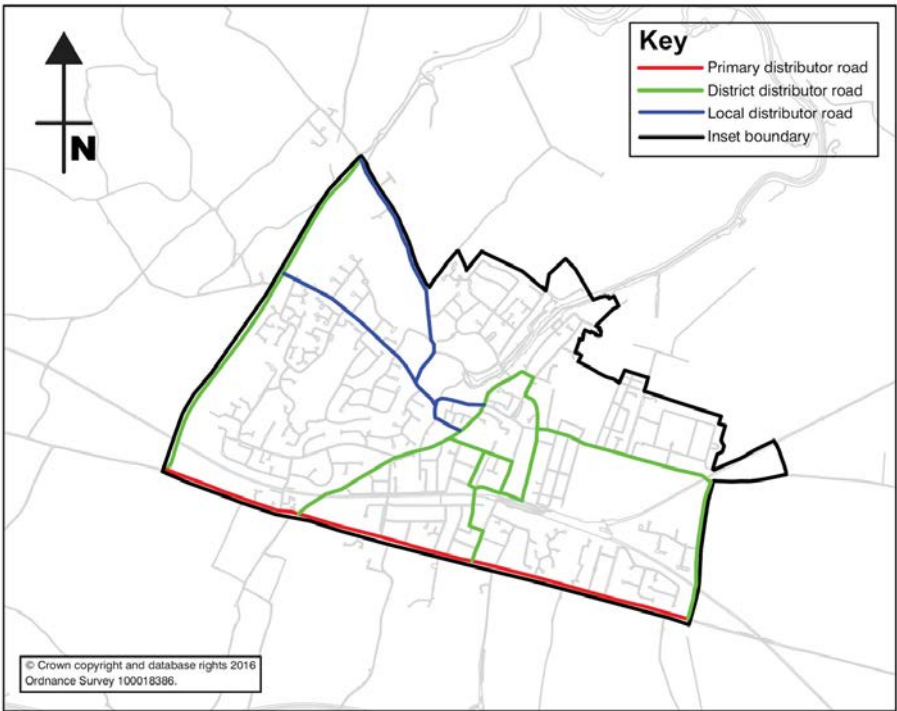
7.2.5 Where improvements can be made, the developer will either be required to undertake the works or make a financial contribution towards them (either via S.106 or, when adopted, the Community Infrastructure Levy). Such improvements may need to be undertaken before development becomes operational.

7.2.6 Direct access to the strategic road network and primary road network shown on Map 7.2.1 will generally be avoided. In line with national policy, new direct access to the strategic road network will only be considered in the event of serving strategic development proposed through a local plan review. The Insets (Maps 7.2.2 - 7.2.4) show the Urban Road Hierarchy for Faversham, the Sheerness area and Sittingbourne respectively.

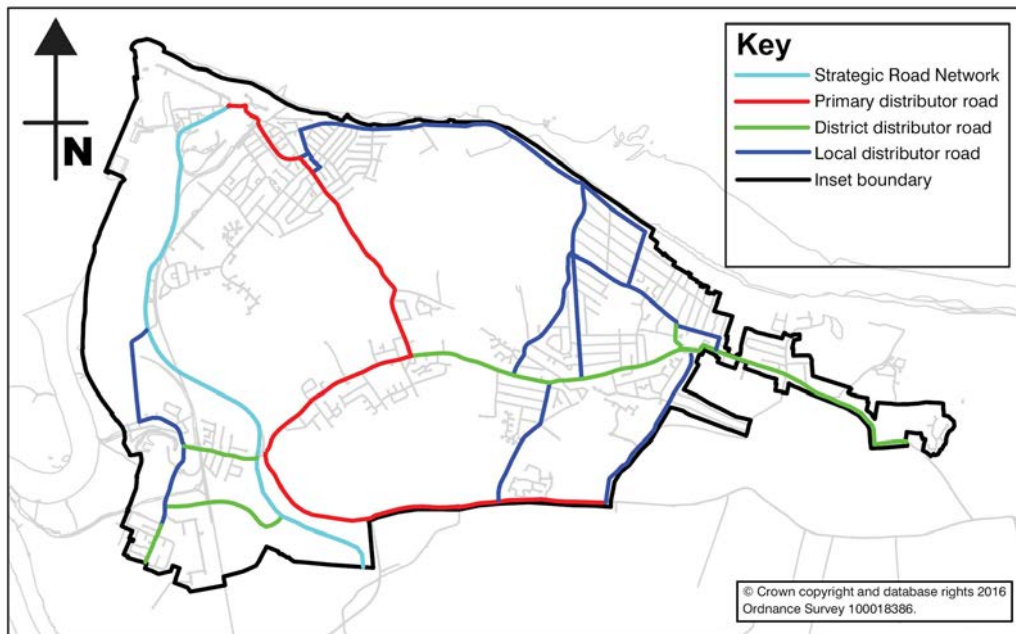
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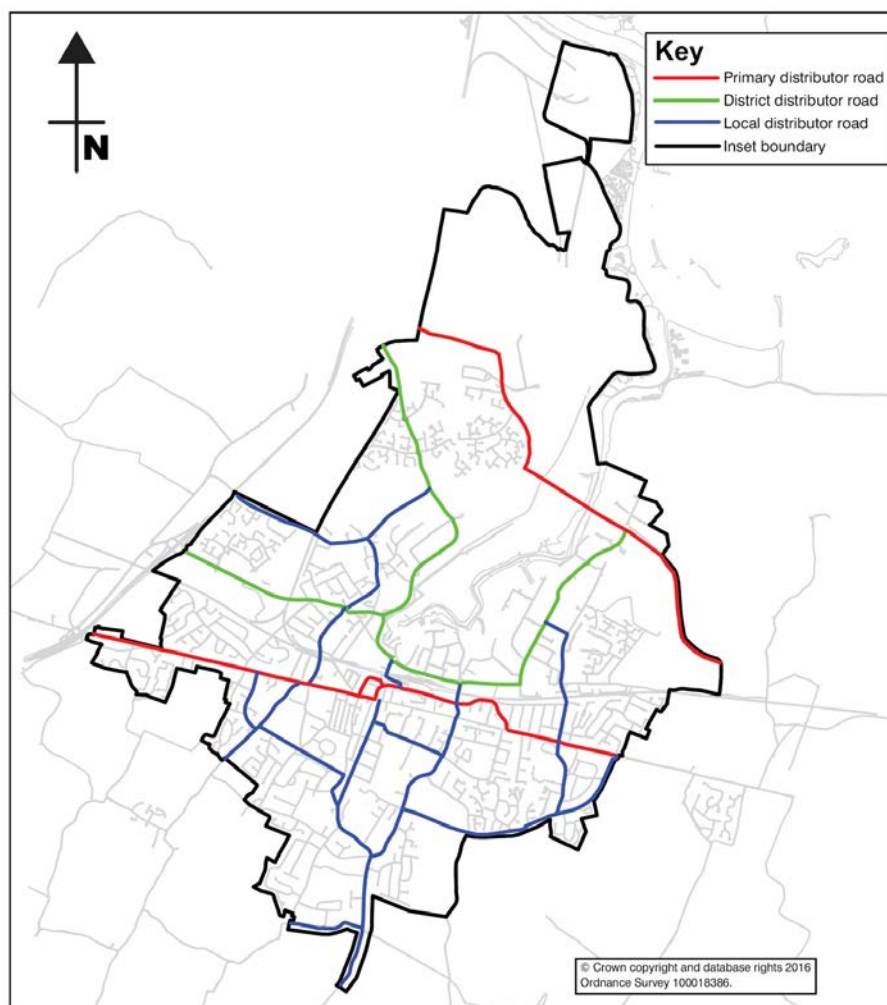
Map 7.2.1 Swale Inter Urban Road Hierarchy



Map 7.2.2 Urban road hierarchy for Faversham (Inset 1)



Map 7.2.3 Urban Road Hierarchy for the Sheerness area (Inset 2)



Map 7.2.4 Urban road hierarchy for Sittingbourne (Inset 3)

7.2.7 The NPPF states that development should only be refused on transport grounds where the residual cumulative impacts of development are severe and cannot be mitigated by off site improvements to the

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transport network.^(7.9) Whilst 'severe' is not defined by the NPPF, Circular 2/2013 states that continued safe operation of the network is the prime consideration in terms of the operation of the strategic road network.^(7.10)

7.2.8 The environmental and air quality impacts of any transport aspects of development are an integral part of their likely acceptability and the Council will pay close attention to these issues when considering any proposals, having regard to the residual cumulative impact of development schemes.

7.2.9 In order to ensure that more sustainable patterns of development and transport are achieved, promotion of cycling and the needs of pedestrians should be a priority consideration in the design of new development. This is not only a consideration for the site layout itself, where the aim should be to improve permeability within the site, but also the links out of the site to access surrounding services and facilities. Measures to reduce traffic speed in residential areas should be integral to the design and layout. Existing public rights of way through a development site should be retained on their established routes unless there are exceptional reasons to agree an alternative and or it can be demonstrated to the satisfaction of the Council and Kent County Council Public Rights of Way Access that change to the network would enhance its recreational value.

7.2.10 The Council is keen to enhance and extend public transport services by ensuring that there is a good relationship between the location of development and the public transport network. Consequently, development proposals will be expected to have regard to the relationship of the proposal with public transport services and to promote access to them, particularly in the early stages of development. This could involve providing new or better located stopping points, integrating the footpath and cycleway network with public transport services, providing vouchers or complementary season tickets to residents or workers. On larger developments, contributions could be made towards new or improved services. Developers are strongly encouraged to consult with local bus operators at an early stage in formulating their plans. The Council will expect to see the implementation of public transport services from the very start of development to set sustainable transport patterns.

7.2.11 The Council recognises the important contribution rail and water transport can make to the movement of freight and for other commercial purposes and the potential to help reduce the amount of heavy goods road traffic. It is therefore important that existing provision is safeguarded, including those facilities identified in the Kent Minerals and Waste Local Plans. Some established companies in Swale already have links to the rail freight network. The Council is keen to encourage greater use of rail and water transport and will usually support development which proposes this. The Port of Sheerness already has deep water wharfage, which could be used more intensively if the planning consent for manufacture and assembly of wind turbines at the Port is implemented. The potential for extending the deep water wharfage remains a longer term possibility for the Port. Ridham Dock provides a more limited, but valuable facility. Opportunities to intensify use of these facilities and provide interchanges with the national rail network will generally be supported, subject to the avoidance of any significant adverse environmental impacts on internationally designated sites.

Policy DM 6

Managing transport demand and impact

1. Development proposals generating a significant amount of transport movements will be required to support their proposal with the preparation of a Transport Assessment (including a Travel Plan), which will be based on the Council's most recent strategic modelling work. The Highways Agency may also require a Transport Assessment if development is deemed to impact on the strategic road network.
2. In assessing impacts on the highway network, development proposals will:
 - a. demonstrate that opportunities for sustainable transport modes have been taken up;

- b. ensure that where the residual cumulative impact of development on traffic generation would be in excess of the capacity of the highway network and/or lead to a decrease in safety, environmentally acceptable improvements to the network are agreed by the Borough Council and the Highway Authority and provided. Such works will be carried out by the developer or a contribution made towards them in accordance with Policy CP 6. If such works cannot be carried out and the residual cumulative impacts of development are severe, then the development will be refused.
 - c. avoid the formation of a new direct access onto the strategic or primary distributor route network where possible, or unless identified by the Local Plan. Other proposals for new access onto the networks will need to demonstrate that they can be created in a location acceptable to the Borough Council and appropriate Highway Authority. Proposals involving intensification of any existing access onto a strategic, primary or other route will need to demonstrate that it is of a suitable capacity and safety standard or can be improved to achieve such a standard;
 - d. integrate air quality management and environmental quality into the location and design of, and access to, development and, in so doing, demonstrate that proposals do not worsen air quality to an unacceptable degree especially taking into account the cumulative impact of development schemes within or likely to impact on Air Quality Management Areas; and
 - e. not result in the loss of usable wharfage or rail facilities.
3. The location, design and layout of development proposals will demonstrate that:
 - a. priority is given to the needs of pedestrians and cyclists, including the disabled, through the provision of safe routes which minimise cyclist/pedestrian and traffic conflict within the site and which connect to local services and facilities;
 - b. existing public rights of way are retained, or exceptionally diverted, and new routes created in appropriate locations;
 - c. access to public transport is integrated into site design and layout where appropriate;
 - d. the safe and efficient delivery of goods and supplies and access for emergency and utility vehicles can be accommodated; and
 - e. it includes facilities for charging plug-in and other ultra low emission vehicles on major developments.

Vehicle parking

7.2.12 In respect of vehicle parking, there are currently no nationally advised standards (other than for motorway service areas in the emerging Department for Transport Circular).^(7.11) The National Planning Policy Framework advises that if local planning authorities are setting local parking standards for residential and non-residential development, they should take into account:

- the accessibility of the development;
- the type and mix of the development;
- the availability of opportunities for public transport;
- local car ownership; and
- the overall need to reduce the use of high emission vehicles.

7.2.13 Swale is a semi rural district, as is much of the rest of Kent in which it is set. Public transport routes in Swale tend to be either focused on very local journeys by bus, or London radial routes by rail and some bus transport. Although Policy CP 2 contains the objectives to enhance and encourage walking, cycling and bus use for local journeys (and indeed the development strategy of the plan aims to facilitate that), getting around the Borough and around Kent is still heavily car focused. The 2011 Census indicates that car ownership in Swale has indeed increased over the last ten years, and at just under 80% of

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households, has now converged with the Kent average. These are substantially higher than the average for England which is 74% of households with car ownership. Appropriate residential car parking standards therefore need to be devised to reflect different locations and types of accommodation.

7.2.14 Swale is located on the national and international strategic road network and has attracted a significant amount of distribution activities which are essentially road based and typically use high emission vehicles. Whilst Swale based companies have their own depots and parking, a Kent wide issue has been identified with international lorry traffic requiring parking facilities, for rest periods and to deal with 'Operation Stack' (when Channel ports are closed or obstructed).

7.2.15 Policy CP 2 explains the car parking strategy which is to be applied in Sittingbourne Town Centre as part of the major regeneration proposals there. At the present time the regeneration proposals envisaged for Sheerness in Policy ST 6 are not of a scale which warrant review of the car parking serving the town centre. At Faversham, Policy ST 7 places emphasis on the heritage and compact urban morphology of the town and in view of this, no major new development is proposed at the centre which warrants a review of car parking. A complementary element of the policy to develop public transport links which meet the needs of the town and the surrounding area is pursued.

7.2.16 Car parking issues for Swale are locally generated ones. The development strategy of the plan seeks to locate new development at settlements where services and facilities are close by and where there is reasonable access to public transport or it can be enhanced, thus reducing the need to travel and offering alternatives to the car and therefore parking. Policy DM 7 sets out how this will be achieved at the level of individual development proposals.

7.2.17 Currently, the Borough Council applies guidance and standards developed by Kent County Council for residential and non-residential uses, although in some cases these have proved unsatisfactory in some locations. Development of appropriate local standards which take into account the type, use, design and location of the development, whilst still having regard to the principles of sustainable development and transport, will need to be prepared with reference to local situations and experience. This will be through preparation of a Supplementary Planning Document pursuant to Policy DM 7, developed in partnership with Kent Highways and Transportation. In the meantime, the Council will continue to apply the extant Kent County Council guidance and standards to development proposals.

Policy DM 7

Vehicle parking

Until such time as a local Swale Borough Supplementary Planning Document (SPD) can be adopted, the Council will continue to apply extant Kent County Council vehicle parking standards to new development proposals. When prepared, the Swale Vehicle Parking SPD will provide guidelines for:

1. Car parking standards for residential development, which will:
 - a. take into account the type, size and mix of dwellings and the need for visitor parking; and
 - b. provide design advice to ensure efficient and attractive layout of development whilst ensuring that appropriate provision for vehicle parking is integrated within it.
2. Vehicle parking for non-residential uses, which will take into account:
 - a. the accessibility of the development and availability of public transport;
 - b. the type, mix and use of the development proposed;

- c. the need to maintain an adequate level of car parking within town centres to ensure that viability of the centres is not compromised; and
 - d. that development proposals do not exacerbate on street car parking to an unacceptable degree.
3. Cycle parking facilities on new developments, of an appropriate design and in a convenient, safe, secure and sheltered location.^(7.12)

7.3 Delivering a wide choice of high quality homes

Affordable housing

7.3.1 The NPPF requires Local Planning Authorities to use their evidence base to ensure local plans provide for the objectively assessed needs for affordable housing and set policies to achieve this need. To understand the full objectively assessed needs, the NPPF requires local authorities to prepare a Strategic Housing Market Assessment (SHMA) to fully assess what the housing needs are for the local area.

7.3.2 The Government outlines its commitment to radically reforming social and affordable housing in their Housing Strategy, [Laying the Foundations](#). This includes investing £4.5bn in new affordable housing, initiatives for social renting and reinvigorating the Right to Buy. A number of policy initiatives in the strategy also highlight the Government's aim to increase home ownership. The Government has consulted on its intention to place a duty on local planning authorities to require a proportion of Starter Homes on all reasonably-sized sites. The Council will maintain a watching brief and respond as appropriate.^(7.13)

7.3.3 There is considerable unmet need for affordable housing in Swale. The 2015 Strategic Housing Market Assessment identified that there were an estimated 1,639 households in need of affordable housing within Swale. The same study identified that in future, an estimated 787 households each year would newly require affordable housing. These acute pressures for affordable housing indicate a need of 190 affordable dwellings per annum with the highest need for 4 or 3 bedroom family homes.

7.3.4 The Council's Housing Strategy (2010-2015) sets out the housing aims, objectives and vision for the Borough. In particular, the strategy promotes the effective physical and social integration of new affordable housing and new occupiers with new market housing and within existing communities.

7.3.5 The 2015 Strategic Housing Market Assessment Part 2 - Objectively Assessed Need for Affordable Housing recommends the Council pursues an overall affordable housing target of 25%, however it recognises that when setting the target the full range of evidence, including the strategic viability assessment of this Plan, needs to be considered.

7.3.6 The Local Plan Viability Testing - Addendum (PBA, 2015) recommends affordable housing percentages having considered the viability picture for the Borough. These are reflected within Policy DM 8 and will be the starting point for decision making on development proposals.

7.3.7 Policy DM 8 aims, as far as possible, to meet the recommendations of the 2015 Strategic Housing Market Assessment. The evidence base shows that affordable housing targets are not viable above a minimal level and this has been demonstrated by a viability assessment of this Local Plan. Policy DM 8 sets out the affordable housing percentages which will be sought on proposals in different market areas. Viability is most affected in the housing market areas of Sheppey, Sittingbourne and Iwade and hence a lower percentage of affordable housing will be sought in these areas. Whilst the percentage of affordable housing being sought reflects the deliverability of the Local Plan, the Council is keen to promote and support proposals which enable or deliver affordable housing in these market areas. Should economic signals, or the proposed characteristics of the development or its location, clearly demonstrate a positive change in the overall viability of development, the Council will seek a proportion of affordable housing closer to the assessed level of need, or at higher levels when evidence indicates that this would not comprise the viability

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of development. An example of such a situation might arise in the case of a greenfield urban extension where higher values for the developer might reasonably be expected. In the case of positive market signals, it will also speedily review Policy DM8 and, if supported by evidence, revise the affordable housing requirement.

7.3.8 To meet the identified need for affordable housing of different tenures, the Council will, in the first instance, seek an indicative target of 90% affordable/social rent and 10% intermediate products. Specific site circumstances may affect the viability of individual proposals which may result in an alternative tenure being acceptable, however this must be demonstrated by a viability assessment accompanying a planning application. The Council recognises that the evidence base for different tenures may vary over time particularly with the progression of policy initiatives such as Starter Homes and so will refer to the latest needs assessment in decision making. The Council's viability testing assumes that affordable housing will be sought from all qualifying sites and this has been demonstrated as viable. Proposals exceeding the threshold will be expected to provide affordable dwellings in all but the most exceptional circumstances and any departure from the policy requirement would need to be demonstrated by viability evidence.

7.3.9 Where an applicant can demonstrate that the viability of a scheme will be severely compromised, notwithstanding the affordable housing policy target set out in Policy DM8, to a point where the scheme and the meeting of other planning objectives are unacceptably undermined, this requirement may be further considered and/or an adjustment made to the tenure split. In circumstances where a lower level of affordable housing or commuted sum is negotiated, the applicant will be expected to enter into a legal agreement to ensure that a revised affordable housing target can be considered should land values rise prior to the commencement of each build phase. This is known as overage.

7.3.10 The starting point for any planning application is the on-site provision of affordable housing. In exceptional cases, the Council may consider affordable housing provision to be provided off-site. In such a case, it may be possible to require a commuted sum (or payment in lieu), which is an amount of money, paid by a developer to the Council when the size or scale of a development triggers a requirement for affordable housing, but it is not possible or desirable to provide it on the site. This option may be appropriate, for example, in cases of economic difficulties, where provision on an alternative site could be of higher quality, or where improvements to the quality of the existing housing stock are considered more appropriate.

7.3.11 In view of the current challenging viability situation in parts of the Borough, the provision of affordable housing in some parts of the Borough is seriously compromised. To ensure that affordable housing continues to be provided in areas where viability is challenged, the Council will consider proposals to commute or transfer part of the need on Faversham and rural sites to other parts of the Borough. This will be subject to an up to date consideration of viability issues. The Council will also produce a supplementary planning document to explain the approach for undertaking commuted sums and the methodology for its calculation.

7.3.12 Affordable housing providers whose own finances and availability of grants may be such that they are not able to support a scheme even when a contribution from a developer is available. In such circumstances, the Council will look to cascade or commute any provision for use by another provider or another scheme, or pool it until a housing provider is able to come forward to support an appropriate project.

7.3.13 The requirement to provide affordable housing will be calculated at the appropriate rate on a whole site basis. Sub-divisions of a site that would bring any particular application under the affordable housing threshold will be aggregated to ensure delivery of affordable housing is achieved across the entire site. Affordable housing will be integrated with open market housing on the proposed and adjacent sites and schemes should avoid the concentration of one tenure type.

7.3.14 There is an identified need for affordable older person housing (retirement dwellings and extra care housing) and the current viability evidence shows this to be marginally viable in Faversham and rural areas, albeit this has an impact on the level of CIL achieved. Therefore zero % is sought in the policy, however the Council is keen to support proposals for affordable older person housing.

7.3.15 There may be circumstances when a need arises for affordable pitches for Gypsies and Travellers, however the extent of such need could not be calculated in the Council's Gypsy and Traveller Accommodation Assessment 2013. Affordable pitch provision could come forward via a rural exceptions site, or if further evidence to quantify the level of affordable need were to come forward through the joint working with Kent County Council, a site could be identified.

Policy DM 8

Affordable housing

For development proposals of eleven or more dwellings, and where a need to provide affordable housing has been determined as appropriate (including within a rural area as determined by a Parish Housing Needs Assessment), provision will be made for affordable housing as follows:

1. In accordance with the affordable housing target ranges and as appropriate to the local housing market areas as follows:

Area	Affordable Housing Percentage Sought
Isle of Sheppey	0% affordable housing
Sittingbourne town, urban extensions and Iwade	10% affordable housing
Strategic Site at NW Sittingbourne (Policy MU1)	10% affordable housing if a zero CIL rate applied
Faversham town and urban extensions	35% affordable housing
All other rural areas	40% affordable housing
All areas	0% affordable older person housing

Table 7.3.1 Affordable Housing Ranges

2. The size, tenure and type of affordable housing units in accordance with the needs of the area;
3. Where possible, by designing homes for use by disabled, elderly and vulnerable residents;
4. Where possible, by supporting Starter Homes in appropriate circumstances and locations;
5. In exceptional circumstances, and in accordance with a supplementary planning document to be prepared by the Borough Council:
 - a. on-site affordable housing provision may be commuted to a financial contribution to be used off-site, singly or in combination with other contributions. Commuted sums may also be considered in respect of sites at Faversham and the rural areas so as to support the provision of affordable housing in less viable locations; or
 - b. where no Registered Social Landlord is available, the full affordable housing provision requirement will be cascaded to another provider and/or site or via a commuted sum, its calculation having regard to the full amount of market housing that has been achieved on the site; or
 - c. where an applicant can demonstrate that providing the full affordable housing provision would result in the scheme becoming unviable, a reduced requirement may be considered and will be subject to a legal agreement to ensure that full provision of affordable housing

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is reconsidered should land values rise prior to the commencement of development or any subsequent phases and/or an adjustment made to the tenure split.

6. If evidence demonstrates that economic conditions, or the proposed characteristics of the development or its location, have positively changed the impact of viability of the provision of affordable housing, the Council will seek a proportion of affordable housing closer to the assessed level of need, or higher if development viability is not compromised.

Rural exceptions housing

7.3.16 The NPPF encourages local planning authorities to be responsive to local circumstances and to plan housing development to reflect local needs, particularly for affordable housing, including through rural exception sites where appropriate. The NPPF describes rural exception sites as being small sites used for affordable housing in perpetuity where sites would not normally be used for housing. It explains that local planning authorities should consider whether allowing some market housing in rural areas could facilitate the provision of significant additional affordable housing to meet local needs.^(7.14) It makes clear that in order to promote sustainable development in rural areas, housing should be located where it will enhance or maintain the vitality of rural communities.^(7.15)

7.3.17 Historically, rural affordable housing schemes were provided on a 100% affordable housing basis. Whilst there were some notable successes within Swale, with 28 units built since the year 2000, this number has not kept pace with need. Now, reductions in grant funding to housing providers has undermined the viability of some schemes to the point that achieving the necessary provision has become even more challenging.

7.3.18 In recognition of the importance of this issue, the Council have highlighted the need to deliver a housing supply that is sufficient for, and matches the needs and aspirations of, local households and those needing to move into the area.^(7.16)

The Council, together with rural housing partners, recognise that in order to tackle these challenges, there is a need to increase affordable housing within rural areas and that a flexible approach to meeting local housing need is required. There is national planning policy support for departing from the previous policy approach to restrict sites solely to affordable housing, to allow some unrestricted market homes for sale, including plots for sale for local self build. This should help both to increase affordable housing completions and to allow for more mixed and sustainable rural communities. In turn, this will help provide the right housing to support stronger communities and to sustain rural areas in ways that respects their character.

7.3.19 There may in the future be circumstances where a rural exception site could provide affordable accommodation to meet the needs of specific communities, such as Gypsies and Travellers. The housing need would still need to be evidenced based but a flexible approach to meeting that particular housing need would be required.

7.3.20 Whilst the Council is keen to ensure that rural affordable housing is delivered, this should not be at the expense of protection for the wider amenity of rural communities and the countryside, or indeed, the overall objectives of the Local Plan strategy. Policy DM 9 provides a number of safeguards to ensure that local circumstances, need and the overall viability of a scheme are taken into consideration in the planning application process. In cases where planning permission is granted for rural exception sites with market housing, the Council will only permit the minimum number of unrestricted market homes/plots required to deliver the subsidy necessary to deliver a significantly greater proportion of affordable units.

7.3.21 The evidence required to accompany a planning application for a rural exceptions scheme will include:

1. an up-to-date Parish housing needs assessment (or village assessment if appropriate) covering both affordable and unrestricted market housing need for local people undertaken by a recognised body such as Action with Communities in Rural Kent. 'Local person' for the purposes of the Parish needs assessment and implementation of Policy DM 9 means a person who meets any of the following criteria - a) currently resident in the Parish b) was previously resident in the Parish c) is permanently employed in the Parish d) is connected by close family still living in the Parish;
2. a thorough assessment of potentially suitable, available and achievable sites, having regard to Policy ST 3 and other relevant policies;
3. a robust, independently prepared and audited, viability assessment, prepared on an 'open-book' basis to demonstrate why market housing is required to make the scheme viable;
4. the significant input from the relevant Parish Council concerned in the preparation and support of evidence; and
5. an assurance that those homes provided as affordable must remain available for local people in perpetuity and that this will be controlled via a legal agreement, a draft of which should accompany any planning application.

Policy DM 9

Rural exceptions housing

Planning permission for affordable housing to meet local needs in rural areas will be granted provided:

1. The site accords with Policy ST 3 and/or is in a location where access to day to day services can be conveniently and easily achieved;
2. The site and proposed development would not have a significant adverse impact upon the character of the settlement, the surrounding countryside and the amenity of the existing community;
3. A need for the scheme is clearly justified by the applicant, to the satisfaction of the Council, by providing the following to accompany a planning application:
 - a. an up-to-date parish or village housing needs assessment undertaken or carried out by a recognised and appropriate body;
 - b. a thorough site options appraisal; and
 - c. a prepared statement of community involvement that has sought to include the significant input of the Parish Council.
4. In addition, for schemes including unrestricted market houses/plots for sale, justification will be provided by the applicant:
 - a. to demonstrate that a scheme not relying on market housing has been considered and why it has been discounted or considered to be unviable; and
 - b. as to the number and type of houses proposed, which will be determined by the housing needs assessment and through an appraisal of viability to show the minimum provision of unrestricted market homes necessary to deliver a significantly greater proportion of local affordable homes for that site.
5. Proposals will be subject to a legal agreement that provides for the permanent control and management of any affordable housing to ensure its long-term retention for local need.

Gypsy and Traveller sites

7.3.22 Swale borough has one of the largest Gypsy and Traveller populations within Kent and the South East of England with over 60 sites. In recognition of this, making sufficient provision for Gypsies and Travellers in a fair fashion for all is a key objective for the Council.

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7.3.23 The revised [Planning Policy for Traveller Sites](#) (PPTS) was published in August 2015 and sets out the Government's policy on Gypsy and Traveller sites nationally. Sitting alongside the National Planning Policy Framework, the aim of the PPTS is to promote community cohesion and to align site provision with those for mainstream housing, such as requiring a demonstrable five year supply. The PPTS requires local authorities to set their own local targets for pitch provision as part of their overall housing figures.

7.3.24 Whilst the PPTS sets out the national position in respect of Gypsy and Traveller Sites, Local Authorities also need to have regard to policies and advice set out within the NPPF. The NPPF encourages sustainable development and the need to deliver a wide choice of high quality homes, issues which are as relevant to the planning of Gypsy and Traveller sites as they are to the wider community.

7.3.25 In order to gain a greater understanding of the Borough's need for pitch provision, a Gypsy and Traveller Accommodation Assessment (GTAA) was commissioned by the Council. The GTAA was completed prior to publication of the revised PPTS and its redefinition of Gypsies and Travellers, therefore the Council has revisited the evidence within the GTAA and has revised the overall need for the plan period.

7.3.26 Guided also by Policy ST 3, Policy DM 10 is intended to act as a criteria based policy to guide windfall sites that may come forward, together with proposals for transit sites, sites for Travelling Show People and extensions to existing sites.

7.3.27 Policy DM 10 should be read and interpreted in conjunction with Policy ST 3, which sets out the Local Plan settlement strategy. For Gypsy and Traveller applications for new sites (as opposed to extensions/intensifications to existing), applicant's are required to consider the availability of sites at each 'tier' of settlement category before a site within the next lower 'tier' is considered and permitted.

Policy DM 10

Gypsy and Traveller sites

Part A: Retention of sites for Gypsies and Travellers

Existing permanent sites and those granted permanent planning permission will be safeguarded for use by Gypsies and Travellers, unless it is demonstrated the site is no longer suitable for such use.

Part B: Gypsy and Traveller sites

The Council will grant planning permission for sites for Gypsies, Travellers and Travelling Show People, where it is demonstrated that proposals:

1. Are in accordance with Policy ST 3 by reference to the deliverability of potential or existing sites at each settlement tier(s) above that proposed by the application, unless:
 - a. there are exceptional mitigating and/or personal circumstances where the applicant has demonstrated that a particular site is required to meet their needs and where there is no overriding harm to the locality; or
 - b. where required to meet an affordable housing need either via a rural exception site in accordance with Policy DM 9 or specific allocation; or
 - c. the proposal is for an extension to, or stationing of, additional caravans at an existing site.
2. Can establish that the applicants have previously led a nomadic lifestyle, the reasons for ceasing a nomadic lifestyle and/or an intention to return to a nomadic lifestyle in accordance with Annex 1 of Planning Policy for Traveller Sites (2015);
3. Can achieve an integrated co-existence between all communities;

4. Are of a scale appropriate to meet the accommodation need identified and not introduce a scale of development that singly or cumulatively dominates the nearest settlement or causes significant harm to the character of an area, its landscape, or the capacity of local services;
5. Can, where appropriate, accommodate living and working in the same location, either through a mixed use site or on land nearby, whilst having regard to the safety and amenity of occupants and neighbouring residents;
6. Cause no significant harm to the health and wellbeing of occupants or others by noise, disturbance, vibration, air quality or other circumstances;
7. Cause no significant harm to the Area of Outstanding Natural Beauty, national/local landscape or biodiversity designations and other natural or built environment that cannot be adequately mitigated;
8. Provide landscaping to enhance the environment in a way that increases openness and avoids exclusion and isolation from the rest of the community;
9. Provide for healthy lifestyles through open space, amenity areas for each pitch and play areas;
10. Would be safe from flooding by meeting both the exceptions and sequential tests in accordance with national policy and Policy DM21;
11. Achieve safe and convenient parking and pedestrian and/or vehicular access without unacceptable impact on highway safety; and
12. Where appropriate, include visitor or transit pitches and/or sufficient areas for future expansion. Planning conditions may be used to limit the length of time that caravans can stop at transit sites and on visitor pitches.

Extensions to, and replacement of, dwellings in the rural area

7.3.28 Rising property prices in the rural areas mean that it is often a cheaper option for occupiers and purchasers either to extend or replace a smaller dwelling when more living space is desired. The Council is concerned that large extensions or replacement dwellings can harm the character of the rural area. For these reasons, and where planning permission is required, Policy DM 11 seeks to control the extensions to, and replacement of, dwellings in the rural areas. The Council's existing Supplementary Planning Guidance [Designing an Extension: A Guide for Householders](#) is a material consideration to the determination of some proposals. Planning permission will only be granted in cases proposing modest extensions (taking into account any previous additions undertaken) of an appropriate scale, mass, and appearance to the location. In exceptional circumstances the Council will permit replacement dwellings in locations not on or close to an original dwelling where it constitutes the most effective use of land, such as an improvement to the setting and/or landscape or where it is previously developed land.

Policy DM 11

Extensions to, and replacement of, dwellings in the rural area

The Borough Council will permit the rebuilding of an existing dwelling in the rural area only if the proposed new dwelling is of a similar size and proportion, an appropriate scale, mass and appearance in relation to the original dwelling and location, or where it constitutes the most effective use of the land.

The Council will permit extensions (taking into account any previous additions undertaken) to existing dwellings in the rural areas where they are of an appropriate scale, mass, and appearance in relation to the location.

7 Development management policies

Dwellings for rural workers

7.3.29 The National Planning Policy Framework makes clear that to promote sustainable development in rural areas new isolated homes should be avoided, except in special circumstances, such as to meet an essential need for a rural worker to live permanently at or near their place of work in the countryside. ^(7.17)

7.3.30 Whilst the Local Plan similarly applies restraint upon isolated developments in the countryside, particularly new dwellings, a new dwelling may be permitted where the demands of a particular rural-based enterprise make it essential for one or more full-time workers to live at, or very close to, their place of work. As it may be just as convenient, and more sustainable, for such workers to live in nearby towns or villages, or suitable existing dwellings, the availability of such premises will need to be established so as to avoid unnecessary development in the countryside. Whether a new dwelling is essential in a particular case will depend on the needs of the enterprise concerned and not on the personal preferences or circumstances of any of the individuals involved. In particular, it will be important to establish whether the stated intentions to engage in the rural-based enterprises are genuine, are reasonably likely to materialise, and are capable of being sustained for a reasonable period of time. It will also be important to establish that the needs of the intended enterprise require one or more of the people engaged in it to live nearby. Any dwelling permitted must be appropriate for the need and to its rural location.

7.3.31 In cases where a dwelling is considered by the Council to be essential to support an enterprise, it will normally be appropriate for permission to be initially granted for a caravan or temporary structure for a limited time period, usually for a minimum period of three years, whether on a newly created rural business or on an established one thus enabling the situation to be reviewed over time.

7.3.32 The Council needs to be persuaded of the essential need for a dwelling in each individual case, at the time that applications for both temporary and permanent dwelling stages are considered. In particular, there will be a need for a functional test to establish whether it is essential for the proper functioning of the enterprise for one or more workers to be readily available at most times. In addition, a financial test will be necessary to demonstrate that the enterprise is economically viable and to provide evidence of the size of the dwelling that the unit can sustain. It is recognised though that some enterprises, which aim to operate broadly on a subsistence basis, but which nonetheless, provide wider benefits (e.g. in managing attractive landscapes or wildlife habitats), can be sustained on relatively low financial returns. The Council will control by conditions the occupancy of any dwellings permitted under Policy DM12 to ensure that they are retained for use by persons solely, or last, employed in these activities, or their immediate dependents, whilst the removal of some permitted development rights would normally be appropriate.

7.3.33 In the absence of further national guidance on the issue of housing for rural workers the Council will continue to have regard to Annex A to the former Planning Policy Statement 7 in the determination of planning applications.

Policy DM 12

Dwellings for rural workers

Planning permission will be granted for new, permanent, rural worker dwellings in the countryside, subject to:

1. There being a clearly established, existing, essential need for the proper functioning of the enterprise for a full-time worker to be readily available at most times;
2. There being no suitable existing dwelling available nearby or in a nearby settlement;
3. The location, scale and design of the dwelling maintaining or enhancing landscape and countryside character; and
4. The siting of the dwelling should, firstly, explore whether there are suitable buildings available for conversion at the enterprise, or secondly, in the case of a demonstrated need for a new building,

that it is located as close as possible to existing buildings on previously developed land at the enterprise, or if this is not possible, within the immediate locality on an acceptable site.

Extending the garden of a dwelling in the rural area

7.3.34 Planning permission is required to extend the garden of a dwelling on to land which is used for another purpose. In rural areas, this typically involves the change of use of agricultural land or woodland which, if not managed, can change the character of the rural landscape by the loss of rural features and the introduction of urban features into the countryside. These may also significantly diminish landscape character or biodiversity by, for example, changes in land management. A specific issue occurs where woodland may be singly or cumulatively taken into the curtilage of a dwelling house preventing its proper and sustainable management. Such proposals will not normally be encouraged, especially within the designated landscapes identified by Policy DM 24.

7.3.35 When considering applications for such changes of use, outside the built up area boundaries shown on the Proposals Map, the Council will be guided by Policy DM 24 and Policy DM 33, including the Landscape Character and Biodiversity Appraisal 2011 Supplementary Planning Document and will assess whether the proposal conflicts with other policies of the Plan. The Council will also consider the likely cumulative effects of a single proposal if repeated by others in the locality. A landscaping and/or management scheme should be submitted with the application as appropriate to demonstrate how it will support the above Supplementary Planning Document for the area concerned. In cases that are approved by the Council, a planning condition will normally be imposed to remove permitted development rights for garden buildings and other domestic works to protect the landscape from further harm.

Policy DM 13

Extending the garden of a dwelling in the rural area

Planning permission for proposals to extend the garden of a dwelling in the rural area, or to use such land as amenity land, will be permitted where it can be demonstrated that:

1. The proposal would not result in significant harm to the landscape, biodiversity or form of a settlement or inhibit the appropriate management of the land in accordance with Policy DM 24 and DM 33 and the Council's Landscape Character and Biodiversity Appraisal 2011 Supplementary Planning Document; and
2. A scheme of landscaping is provided and implemented that will, as required, conserve, create, or restore the character of the landscape concerned.

7.4 Requiring good design

General development criteria

7.4.1 In seeking to achieve high quality design or the conservation and enhancement of the natural and built environment, the Council sets criteria against which planning applications can be considered. Inclusion in a single policy can usefully limit their detailed repetition in the wording of other policies. Policy DM 14 is therefore a useful starting point for anyone considering making a planning application and will help ensure that important matters, such as sustainable design, the safeguarding of environmental features and amenity, are taken into account at the outset. The policy is not comprehensive and should not be considered in isolation, but read in conjunction with all the other policies in the Plan and relevant Supplementary Planning Documents and Guidance.

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Policy DM 14

General development criteria

All development proposals will, as appropriate:

1. Accord with the policies and proposals of the adopted Development Plan unless material considerations indicate otherwise;
2. Include information sufficient to enable the Council to determine the application in conjunction with the Council's published Local List of requirements;
3. Accord with adopted Supplementary Planning Documents and Guidance;
4. Respond to the constraints and opportunities posed from climate change and natural processes;
5. Reflect the positive characteristics and features of the site and locality;
6. Conserve and enhance the natural and/or built environments taking in to account the desirability of sustaining and enhancing the significance of heritage assets;
7. Be both well sited and of a scale, design, appearance and detail that is sympathetic and appropriate to the location;
8. Cause no significant harm to amenity and other sensitive uses or areas;
9. Provide for an integrated landscape strategy that will achieve a high standard landscaping scheme that informs the earliest stages of a development proposal; and
10. Achieve safe vehicular access, convenient routes and facilities for pedestrians and cyclists, enhanced public transport facilities and services, together with parking and servicing facilities in accordance with the County Council's standards.

New shopfronts, signs and advertisements

7.4.2 The National Planning Policy Framework (NPPF) stresses the importance of good design.^(7.18) This is also a matter for shopfront design, whilst, in respect of advertisements, the NPPF explains that poorly placed advertisements can have a negative impact on the appearance of the built and natural environment.^(7.19)

7.4.3 Shopfronts and signs have a major influence on the appearance of town centres and other commercial areas. Inflexible corporate design with its use of standardised colours and artwork is a significant factor in the loss of local distinctiveness and can result in the erosion of the character and appearance of buildings and areas, whilst a proliferation of signs can detract from the visual quality or amenity of an area. The Council requires a high standard of shopfront design and advertisements that address these concerns in a way that both safeguards those features which are of visual and historic interest and provides interest within the town centres. The Council's Supplementary Planning Guidance entitled [Design of shopfronts, signs and advertisements](#) is a material consideration to the determination of proposals.

Policy DM 15

New shopfronts, signs and advertisements

Development involving shopfronts will be required to be of a design which respond positively to the character of the building and its locality. The Borough Council will not permit the alteration or replacement of shopfronts of visual or historic interest unless it can be demonstrated that the resulting works would conserve the character of the affected building or area in which it is situated. Development involving advertisements will be designed in a manner that minimises harm to amenity and public safety.

Alterations and extensions

7.4.4 Extensions to existing buildings will be well designed and respond positively to the style and character of the building being extended, particularly in cases involving heritage assets. Alterations and extensions to existing buildings should reflect the scale and massing of the existing building, preserve features of interest and reinforce local distinctiveness, whilst safeguarding the amenity of adjacent residents. The Council's Supplementary Planning Guidance entitled [Designing an extension - A guide for householders](#) is a material consideration to the determination of proposals. For the redevelopment and extension of rural buildings, Policy DM 11 additionally applies.

7.4.5 The Government has amended permitted development rights to 30 May 2019, to allow for single storey extensions to be built, without the need for planning permission in unprotected areas. Upon expiry of these rights, and in the absence of any other central Government changes, the Borough Council will apply the following policy approach to alterations and extensions.

Policy DM 16

Alterations and extensions

Planning permission will be granted for alterations and extensions to existing buildings provided they:

1. Are of an appropriate design and quality which responds positively to the style and character of the building being extended;
2. Are appropriately scaled in relation to the building and its surroundings;
3. Maintain or enhance (where applicable) the character of the street scene;
4. Reinforce or enhance as appropriate local distinctiveness;
5. Preserve architectural, historic, landscape, or nature conservation features of interest; and
6. Protect residential amenity.

7.5 Promoting healthy communities

Open space, sports and recreation provision

7.5.1 One of the core planning principles in the National Planning Policy Framework (NPPF) is to improve health, social and cultural wellbeing for all. In terms of promoting healthy communities the NPPF recognises that access to high quality open spaces and opportunities for sport and recreation can make an important contribution to the health and wellbeing of communities. It advises that assessments should identify specific needs and quantitative or qualitative deficits or surpluses of open space, sports and recreation provision and use these assessments to determine what open space, sports and recreation provision is required.^(7.20) Existing open space, sports and recreational buildings and land, including playing fields, should not be used for built development other than in exceptional circumstances.^(7.21)

7.5.2 Open space (including sports and recreation provision) in Swale contributes to the Borough's outstanding environment. The Council needs to ensure there is enough open space, sports and recreation provision which is accessible and in the right place, well managed and maintained and of a sufficiently high quality to attract users.

7.5.3 The Council's adopted Open Space Strategy (2009) seeks to extend and enhance the amount and quality of open spaces within the Borough by providing high quality, safe and accessible open space and the protection of existing open space, sports and recreation provision through policy and strategic links. It also provides a clear framework and approach that determines the priorities for investment, future policy and opportunities. The Strategy has examined the quantity and quality of the existing stock and recommended standards for new provision.

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7.5.4 The Council is currently undertaking a new Open Space Strategy which will include a new Play Strategy and will incorporate the technical results of the recently undertaken Playing Pitch Strategy. The Council has also undertaken an Indoor and Built Sports Facilities Plan 2015-2019, which it is due to be adopted by the end of 2016.

7.5.5 Both the Council's Open Space Strategy (currently subject to review), its open space assessment and audit 2009 and its local assessment of facilities 2012 have identified a number of deficiencies needing to be addressed (see Chapter 4).

7.5.6 Other linked strategies include the Council's current Play Strategy 2007-2012 and the Swale Green Grid Strategy (2007), together with the Playing Pitch Strategy. These highlight the need to: make provision for use by older people; fill gaps in provision and improve existing facilities to encourage increased usage; and to promote health and wellbeing through creating a network of multi-functional green spaces providing sustainable access within urban areas and beyond.

7.5.7 Policy DM 17 protects existing open space, playing pitches and sports facilities and seeks, where required as a result of new development, the provision and enhancement of good quality and well-maintained open space, sport and recreation facilities. It sets out the need to provide open space, playing pitches and sports facilities as part of development proposals and highlights the requirement to address deficiencies, with reference to the Council's Open Space Assessment and Facilities Planning Model. Actual amounts will be determined at planning application stage, in the context of the specific details of the proposed development. In this respect, when new developments occur the policy seeks to ensure that provision does not fall below current levels. Finally, in order to integrate such provision into the Local Plan green infrastructure network, the Policy advocates the multi-use and functioning of spaces to achieve benefits to communities and to biodiversity (through the creation of natural habitats) in accordance with Policy CP 7.

Policy DM 17

Open space, sports and recreation provision

Proposals for residential and other developments as appropriate will:

1. Safeguard existing open space, sports pitches and facilities in accordance with national policy, having regard to the Council's open space assessment and strategy and facilities planning model;
2. Make provision for open space in accordance with Table 7.5.1 and for sports facilities in accordance with the needs identified by the Council's facilities planning model and the Open Space Strategy, whilst ensuring that the location of new open space, sports and recreation provision does not result in increased levels of recreational pressure on internationally designated sites;
3. Where it is not appropriate to make provision for new open space and sports facilities on site, make contributions to the off-site funding of facilities to meet local deficiencies or to the qualitative or quantitative improvement of existing provision; and
4. Provide for the multi-use and purpose of open space and sports facilities as appropriate, with particular emphasis on contributing toward the Local Plan Natural Assets and Green Infrastructure Strategy, provided by Policy CP 7, so as to achieve benefits for both communities and biodiversity.

Type of space	Quantity to maintain existing levels of provision	Proposed need	Distance from new development (1)(2)(3)
Parks and gardens	1.11 ha per 1000 population	19.48 ha	2km of a destination site. 800m of a local site. 400m of a neighbourhood site.

Natural and semi-natural greenspace	4.36 ha per 1000 population	76.50 ha	2km of a destination site. 800m of a local site. 400m of a neighbourhood site.
Formal outdoor sport	1.09 ha per 1000 population	No additional facilities, but contribution to improve existing.	800m
Amenity greenspace	0.45 ha per 1000 population	7.90 ha	400m
Provision for children and young people	0.24 ha per 1000 children's population (2 -17 years)	0.50 ha	400m
Formal play facilities	Contribution either on or off site to enhance existing	N/A	N/A
Allotments	0.20 ha per 1000 population	0.35 ha	800m

Table 7.5.1 Swale open space, sports and recreation standards

1. Destination site – large parks providing a range of facilities and features offering recreational, ecological, landscape cultural or green infrastructure which (in the case of parks and gardens) are accessible by public transport. Includes areas recognised for significant importance and biodiversity such as local nature reserves, woodlands and country parks.
2. Local site – large areas, including a landscape setting, outdoor sports, children's play, informal recreation; and areas of varied biodiversity such as coastal parks, country parks and community woodland
3. Neighbourhood sites – pocket parks of less than 0.5ha which provide a landscape setting, informal space or children's play; as well as space which provides varied biodiversity such as linear paths and small areas of space.

Local Green Spaces

7.5.8 The National Planning Policy Framework states that Local Plans should be able to identify Local Green Spaces for special protection. By designating these spaces the Council will be able to protect them from development and ensure their retention for enjoyment by the local community. It explains that spaces to be designated will be of particular importance and demonstrably special to local communities because of, for instance, their recreational value and tranquillity, heritage or biodiversity value.^(7.22)

7.5.9 Local Green Space designations differ from Village Green registration which is handled by Kent County Council under separate legislation that is outside the remit of national planning policy and the Local Plan.

7.5.10 The Council has undertaken an assessment of potential Local Green Spaces against defined criteria and this is published separately in Technical Paper No.2. The sites in question have, for the most part, been put forward by local communities themselves and have been the subject of specific consultation with landowners and occupiers. The areas represent a wide diversity of types, ranging from coastal cliff tops, allotments and recreation grounds through to private country parks, urban woodland and informally used urban fringe land.

7.5.11 The sites designated as Local Green Spaces are shown on the Proposal Maps. Policy DM 18 can have no direct influence on the management of these sites, although clearly the Borough, Parish and Town Councils wish to see their current usage continue. However, Policy DM 18 will be used to preserve these Local Green Spaces and proposals for development which would conflict with the purposes of designating the land will not be permitted, other than in very special circumstances.

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Policy DM 18

Local green spaces

Sites are designated as Local Green Spaces, as shown on the [Proposals Map](#).

Within designated Local Green Spaces planning permission will not be granted other than for:

1. The construction of a new building for one of the following purposes: essential facilities for outdoor sport or recreation, cemeteries, allotment use, or other uses of land where preserving the openness of the Local Green Space and not conflicting with its purpose;
2. The re-use or replacement of an existing building, provided the re-use does not include any associated uses of land around the building which might conflict with the openness of the Local Green Space or the purposes of including land within it; and
3. The carrying out of an engineering or other operation or the making of any material change of use of land, provided that it maintains the openness and character of the Local Green Space.

7.6 Meeting the challenges of climate change, flooding and coastal change

Sustainable design and construction

7.6.1 The National Planning Policy Framework (NPPF) recognises that planning plays a key role in reducing greenhouse gas emissions, adapting to climate change and supporting the delivery of renewable and low carbon energy and looks to local planning authorities to pro-actively address this in policies and in determining planning applications. ^(7.23) The NPPF states that planning authorities should plan for new development in locations and ways which reduce greenhouse gas emissions, support energy efficiency improvements to existing buildings and when setting any local requirements for a building's sustainability do so in a way consistent with the Government's zero carbon building policy and adopt nationally described standards. ^(7.24) As part of its efforts to boost economic growth and housing supply, the Government has simplified housing standards through the Housing Standards Review. This is driven through Building Regulations and prevents planning authorities imposing local requirements on the construction of new dwellings. The Government has also withdrawn the Code for Sustainable Homes, and set the energy performance requirements in Building Regulations at a level equivalent to the outgoing Code for Sustainable Homes Level 4. The Building Research Establishment (BRE) runs the Building Research Establishment Environmental Assessment Method (BREEAM). This scheme is not affected by Government changes and will continue as before. The BRE are now developing the Home Quality Mark, which may allow differentiation in sustainable house building, similar to the former Code for Sustainable Homes. To complement mandatory Building Regulations, the new system does include additional optional Building Regulations on water, access and space - referred to as the new 'national technical standards'.

7.6.2 In determining planning applications the NPPF sets out how local planning authorities should expect new development to comply with local plan policies on requirements for decentralised energy supply, unless it can be demonstrated that this is not feasible or viable. It also requires applicants to take account of landform, layout, building orientation, massing and landscaping to minimise energy consumption. ^(7.25)

7.6.3 Finally, Planning Practice Guidance also advises how planning can identify suitable mitigation and adaptation measures in plan-making and the application process to address the potential impacts of climate change ^(7.26). Furthermore, it sets out the importance of good design and layout which promotes the efficient use of natural resources and passive solar design.

7.6.4 The Government does not intend to proceed with the zero carbon Allowable Solutions carbon offsetting scheme, or the proposed 2016 increase in on-site energy efficiency standards, but will keep energy efficiency standards under review, recognising that existing measures to increase energy efficiency of new buildings should be allowed time to become established^(7.27)

7.6.5 The Swale Renewable Energy and Sustainable Development Study^(7.28) provided a carbon profile of Swale, identified carbon reduction and renewable energy opportunities, helped set policy and targets and considered sustainable design and construction standards as well as mechanisms for delivery. The economic viability of policy and targets was considered throughout the study. The Study showed that existing buildings, especially non-residential buildings, make up the bulk of the Borough's future energy demand and that priority should be directed to reducing the energy demand of existing development. The study also found that in rural areas there is a significant use of oil and coal fuels and addressing this would reduce carbon emissions.



Picture 7.6.1 An earth house within a designated landscape

7.6.6 The Local Plan Viability Assessment has examined the Local Plan, including policy DM 19, and concluded that the requirements for BREEAM 'Good' and 'Very good' are appropriate.

7.6.7 Having considered the evidence and opportunities within Swale, Policy DM 19 and Policy DM 20 set out the Council's approach to creating a more sustainable built environment. These policies work alongside the Government's approach of using layout, orientation, design and density to minimise energy consumption. It promotes district heating, waste reduction, green infrastructure, mixed-uses and adaptable buildings in new and existing development. They recognise the potential for low and zero carbon energy production within the Borough and expect all development to respond to the energy opportunities outlined in the Renewable Energy study and presented in the Swale Energy Opportunities Map (Map 7.6.1). These policies, along with Policy DM 21 also recognise the role of improving the water and energy efficiency of the existing stock and reusing existing structures where appropriate. This is particularly important with reference to conserving our historic environment. English Heritage have published some useful guidance on Climate Change and the Historic Environment which should be used and referenced in planning applications involving the energy and water efficiency improvements of existing stock, and in particular historic buildings.^(7.29) The Environment Agency has also published a range of documents to help people and businesses conserve water and better manage their water demand.^(7.30)

Waste

7.6.8 The UK construction industry is responsible for producing over 36 million tonnes of landfill waste every year - approximately 35% of total waste generated - with domestic residential waste accounting for an additional 10%. However, there are examples of construction waste being drastically minimised – for example, Denmark recycles 90% of its construction waste.^(7.31)

7.6.9 The Waste Framework Directive sets out a hierarchy of options for managing waste from the most desirable option of prevention of waste through re-use, recycling and recovery (including energy recovery) through to the least desirable option of disposal. New development should be designed to prevent waste,

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for example by using standard size building components, designing for deconstruction and using recycled materials. Unused materials should be reused on, or close to the site if possible, or sold on as a valuable resource. Recycling materials is the final option for waste management.

7.6.10 Buildings should also be designed to facilitate waste minimisations, for example through installing grey-water recycling where possible, promoting composting and providing convenient recycling facilities.

7.6.11 Kent County Council is the minerals and waste planning authority for Kent. The [Minerals and Waste Local Plan, 2013-2030](#) sets out the vision and strategy, development management policies and strategic site provision for minerals and waste management facilities in the county.

Policy DM 19

Sustainable design and construction

1. Development proposals will include measures to address and adapt to climate change in accordance with national planning policy and guidance and, where appropriate, will incorporate the following:
 - a. Use of materials and construction techniques which increase energy efficiency and thermal performance, and reduce carbon emissions in new development over the long term unless considerations in respect of the conservation of heritage assets indicate otherwise;
 - b. Promotion of waste reduction, re-use, recycling and composting, where appropriate, during both construction and the lifetime of the development;
 - c. Recognition that retaining and upgrading existing structures may be more sustainable than building new whilst making the most of opportunities to improve water and energy efficiency in the existing stock;
 - d. Design of buildings which will be adaptable to change and reuse over the long term and which include features which enable energy efficient ways of living (e.g. adequate drying space, cycle storage, home working and good daylighting);
 - e. Demonstration of a contribution to the network of green infrastructure and biodiversity, including through tree planting, green roofs and walls, soft landscaping and sustainable drainage systems as appropriate in accordance with Policy CP 7;
 - f. Encouragement of, where appropriate, mixed-use development where a range of uses provide a variety of heat loads and where local facilities serve local people at scales and layouts which are accessible to pedestrians, cyclists and public transport;
2. Development proposals should, where appropriate, be located, oriented and designed to take advantage of opportunities for decentralised, low and zero carbon energy, including passive solar design, and, connect to existing or planned decentralised heat and/or power schemes.
3. All new non-residential developments will aim to achieve BREEAM 'Good' standard or equivalent as a minimum. All new non-residential developments over 1,000 sq m gross floor area should aim to achieve the BREEAM "Very Good" standard or equivalent as a minimum.

Renewable and low carbon energy

7.6.12 The National Planning Policy Framework (NPPF) emphasises the responsibility that all communities have in contributing to energy generation from renewable and low carbon sources and that local planning authorities should have a positive strategy to promote energy from these sources whilst ensuring that adverse impacts are addressed. The NPPF also asks local authorities to consider identifying suitable areas for renewable and low carbon energy and its infrastructure to help secure the development of such sources, as well as where development can draw its energy supply from decentralised, renewable or low carbon energy and the co-location of potential heat customers and suppliers. Furthermore, the NPPF urges local authorities to support community-led initiatives for such schemes. ^(7.32)

7.6.13 The NPPF also explains how applicants for energy developments do not need to demonstrate the need for renewable and low carbon energy and that local planning authorities should approve applications if impacts are acceptable as even small-scale projects make a contribution to cutting greenhouse gas emissions.

7.6.14 Planning Practice Guidance aims to assist local councils in developing policies for renewable energy in their local plans, and identifies the planning considerations for a range of renewable sources such as active solar technology, solar farms and wind turbines. It points out that increasing the amount of energy from renewable and low carbon technologies will help to make sure the UK has a secure energy supply, reduce greenhouse gas emissions to slow down climate change and stimulate investment in new jobs and businesses. It stresses the role of the planning system in the delivery of new renewable and low carbon energy infrastructure in locations where the local environmental impact is acceptable and sets out particular considerations for different renewable energy typologies.

7.6.15 The Climate Change Act 2008 set a legally binding greenhouse gas emission reduction target of 80% by 2050, compared to 1990 levels, with at least 34% of that reduction to be achieved by 2020. ^(7.33) The UK has also signed up to the EU Renewable Energy Directive, which includes a UK target of 15% of energy from renewables by 2020. This target is equivalent to a seven-fold increase in UK renewable energy consumption from 2008 levels. ^(7.34)

7.6.16 Kent County Council (KCC) commissioned AECOM to undertake a renewable energy resource and opportunity study for Kent. As a result of this study, which was completed in 2012, and together with actions from the County Council's Renewable Energy Select Committee and priorities from the [Kent Environment Strategy, Renewable Energy for Kent](#) : An Action Plan for Delivering Opportunities, 2013-18 has been produced. In an effort to realise the County's renewable energy potential and achieve Kent's commitment to a 60% reduction in carbon emissions on 1990 levels by 2030 the plan sets out a series of work packages which include: skills and training; public sector leading by example; planning and development; business and innovation; community energy; focus on wind energy and focus on bioenergy. The plan has a five year time horizon from 2013-18 and lead partners have agreed to take on respective work packages and work with other stake holders on delivery.

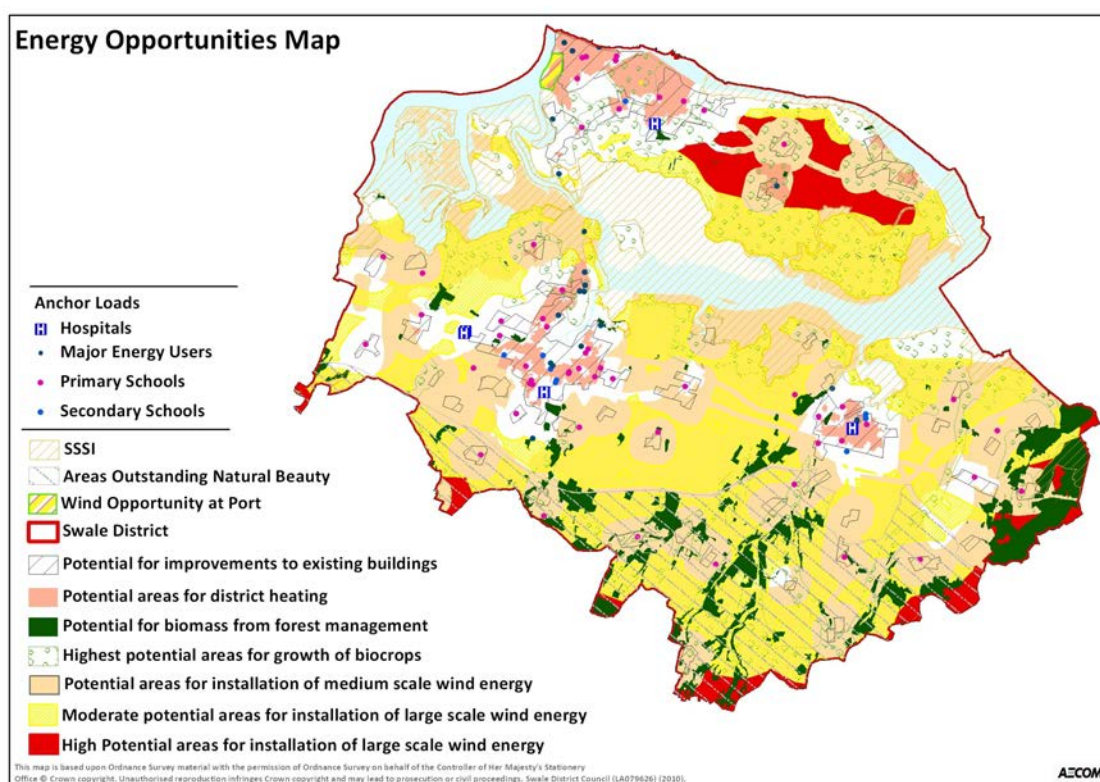
7.6.17 Swale Borough Council's Sustainable Design and Construction Guidance and the Swale Renewable Energy and Sustainable Development Study both demonstrated that there are considerable resource opportunities across the Borough through biomass, wind, solar, Combined Heat and Power (CHP) and micro-generation. ^(7.35) The existing town centres offer opportunities for district heating networks, whilst biomass (e.g. from waste wood from the paper industry and woodland management arisings) is a widespread potential resource across the south east of the Borough alongside solar energy exploitation across the Borough. There are particular opportunities for wind energy generation on the Isle of Sheppey, (a number of turbines are already operating there) and in the Kent Downs Area of Outstanding Natural Beauty, although here there are national landscape constraints to be considered. ^(7.36) Map 7.6.1, below, produced as part of the Swale Renewable Energy and Sustainable Development Study, demonstrates the potential within the borough for renewable and low-carbon energy.

7.6.18 The Renewable Energy study concluded that Swale could achieve 30% of its electricity and 12% of its heat from renewables by 2020 to contribute to the Government's renewable energy target. ^(7.37) The

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study did not recommend a local percentage target for renewables on individual developments promoting instead the use of energy efficiency as a first step in reducing carbon and using the former Code for Sustainable Homes and BREEAM levels as methods to promote renewables. An Addendum to the Renewable Energy Study looked at large sites proposed by the Local Plan and these are reflected in the relevant allocations for new development.

7.6.19 Whilst the Swale Energy Opportunities Map demonstrates the potential for renewable and low-carbon energy within Swale, it should be noted that this map highlights opportunities for energy generation and not the full range of requirements and impacts that would need to be taken into account before planning permission were granted. The map should be read in the context of the full report and the constraints set out there (e.g. urban buffer areas as set out in Chapter 4 of the Swale Renewable Energy and Sustainability Development Study. The requirements of the technology could include such issues as siting, design, transport needs and electric grid connections and the full range of impacts of schemes will be need to be taken into consideration when preparing planning applications, alongside national policy and guidance and the other policies in the local plan.



Map 7.6.1 Swale Energy Opportunities Map (Swale Renewable Energy and Sustainability Development Study, AECOM, 2011)

7.6.20 Applicants should use the full range of resources available when preparing planning applications including the Swale Landscape Character and Biodiversity Appraisal, the [Kent Downs Area of Outstanding Natural Beauty Management Plan](#) and its position statement and companion report on [renewable energy](#). A range of useful documents exist. These, along with their updates and other relevant publications should be referenced in applications:

- Natural England technical note on maximising the environmental benefits of solar parks. (7.38)
- BRE National Solar Centre with Cornwall Council 'Planning guidance for the development of large scale ground mounted solar PV systems' and 'Biodiversity Guidance for Solar Developments'.

- Department of Energy & Climate Change 'UK Solar PV Strategy Part 1: Roadmap to a Brighter Future' and subsequent updates.
- Solar Trade Association 'Solar Farms:10 Commitments'.

7.6.21 Swale Borough Council have also prepared two Renewable Energy Planning Guidance Notes, one on [The Development of Domestic and Medium Scale Solar PV Arrays up to 50kW and Solar Thermal](#) and the other on [The Development of Large Scale \(>50kW\) Solar Arrays](#). These documents have been prepared to assist all parties involved in the renewable energy development process and discuss the issues to be addressed in solar schemes. These Guidance Notes have been approved by the Council and will assist decision makers when determining applications.

7.6.22 The development of renewable and low-carbon energy schemes on agricultural land is particularly sensitive in Swale where we benefit from a high proportion of best and most versatile agricultural land. Applicants for development on agricultural land should note that the search for suitable sites should not be limited to land within the control of the applicant, and, as set out in the NPPF, local planning authorities should seek to use areas of poorer quality land in preference to that of higher quality.

7.6.23 Applicants should also note that the planning concerns of local communities should be considered prior to any planning application being made. Opportunities for community gain should also be sought.

Policy DM 20

Renewable and low carbon energy

Planning permission will be granted for the development of renewable and low carbon energy sources where:

1. Analysis of all impacts and methods to avoid and mitigate harm from these impacts is fully addressed in any planning application for such proposals;
2. Demonstrating how opportunities highlighted in the Borough's Energy Opportunities Map have been exploited, in particular in the delivery of district heating, where shown to be financially viable and technically feasible;
3. Priority will be given to development on previously developed land or buildings and proposals which incorporate renewable, decentralised and low carbon energy as integral to new commercial or residential schemes;
4. For schemes on agricultural land, it has been demonstrated that poorer quality land has been used in preference to higher quality. In exceptional cases, where schemes are demonstrated as necessary on agricultural land, that they fully explore options for continued agricultural use;
5. Opportunities to enhance biodiversity are exploited;
6. Landscape, visual and heritage impacts as well as impacts on geology, soils and flood risk, including cumulative impacts, are minimised and mitigated to acceptable levels;
7. Impacts on residential amenity and safety, including noise, air quality, tranquillity and transport are minimised and mitigated to acceptable levels;
8. Applications demonstrate evidence of local community involvement and/or leadership;

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9. All relevant plans, policies, appraisals and associated guidance, including landscape appraisals and designations and biodiversity management plans, are referenced in any planning application to ascertain the appropriate type and scale of development for any particular location; and
10. In cases of temporary planning permission, detailed proposals for the restoration of the site at the end of its functional life are set out as a part of any application.

Water, flooding and drainage

7.6.24 The National Planning Policy Framework (NPPF) explains that local planning authorities should adopt proactive strategies to mitigate and adapt to climate change, taking full account of flood risk, coastal change and water supply and demand considerations.^(7.39) The planning system should contribute to and enhance the natural and local environment by preventing new and existing development adding to or being at risk from pollution including water pollution.^(7.40)

7.6.25 The NPPF also states that planning policies should take account of climate change over the longer term including factors such as flood risk.^(7.41) Development in areas at risk of flooding should be avoided, but where development is necessary it should be made safe without increasing flood risk elsewhere. Local Plans should be supported by Strategic Flood Risk Assessments and develop policies to manage flood risk from all sources. A sequential, risk-based approach to the location of development is advocated whereby new development is steered towards areas of the lowest probability of flooding. If all development cannot be located in areas of lower probability of flooding then the Exception Test can be applied. For the Exception Test to be passed, development must provide wider sustainability benefits to the community and be demonstrated to be safe and not increase flood risk.^(7.42) Relevant Flood Risk Assessments must be used to inform all decision making.

7.6.26 Alongside the NPPF sits the [Planning Practice Guidance](#). This sets out in more detail how planning can take account of the risks associated with flooding and coastal change in plan-making and the application process. It explains the approach to the Sequential and Exceptions tests, flood risk assessments and managing residual flood risk.

7.6.27 The [Water Framework Directive](#) aims to improve and integrate the way water bodies are managed in Europe. It is designed to enhance the status of aquatic ecosystems and wetlands, promote the sustainable use of water and reduce pollution including groundwater pollution.

7.6.28 The Water Framework Directive requires a management plan for each river basin to be developed every six years, in England by the Environment Agency. Swale is within the Thames River Basin District (North Kent catchment) and its River Basin Management Plan, Water for Life and Livelihoods, defines the particular issues for this catchment as water quality, physical modifications to rivers and invasive non-native species. The plan looks to local authorities to help meet its objectives, for instance through the use of sustainable drainage, the promotion of water efficiency, through spatial planning decisions, the incorporation of green infrastructure and by working with the Catchment Partnership.^(7.43)

7.6.29 The [Flood and Water Management Act \(2010\)](#) takes forward the recommendations from the Pitt Review of 2007. It establishes the Environment Agency as responsible for developing and applying a flood risk management strategy for England and Wales which other relevant agencies must take into account.

7.6.30 The Act defines the Lead Local Flood Authority at county or unitary local authority level. For Swale, Kent County Council (KCC) is the lead local flood authority. The lead local flood authorities have responsibilities to investigate flooding incidents and maintain a register of structures and features which have a significant effect on flood risk in their area. KCC have led the preparation of the [Swale Surface Management Plan](#) (SWMP). The purpose of the SWMP is to identify what the local flood risk issues (from

surface runoff, groundwater and ordinary watercourses) are, what options there may be to alleviate the risk and who should take these options forward. This is presented in an Action Plan agreed by partners including the Local Authority and the Sewerage Undertaker.

7.6.31 The Shoreline Management Plans (SMP) for Swale are the [Medway Estuary and Swale](#) and the [Isle of Grain to South Foreland](#). These plans, prepared by the South East Coastal Group, identify sustainable long-term management policies for the coast for the next 100 years in order to prevent the loss of coastal environments and protect coastal communities. The coastline is divided into a number of policy units within which a given policy is applied. In Swale these vary from 'Hold the line' around the main built up areas, through 'No active intervention' to 'Managed realignment' in the rural areas.

7.6.32 The Council's own Strategic Flood Risk Assessment (SFRA) looked at the current risk of flooding as well as flood risk in 70 and 100 years time – taking into account the effects of climate change. The SFRA examined the entire Borough with a broad assessment (Level 1) and looked at nine potential development areas in more detail (Level 2). It identified tidal over-topping and potential breaches as the main risk of flooding likely to be exacerbated in the future as sea levels rise. Since the Swale SFRA was completed new tidal flood modelling of the North Kent Coast, including the whole of the Swale Borough coastline, has been completed by the Environment Agency and is available from them on request. This new modelling provides updates to the information available in the SFRA. However, modelled data within the SFRA - particularly breach mapping - is still considered by the Environment Agency to be valid. It is likely that the Environment Agency will advise that the Swale SFRA should be reviewed in 2016-2017.

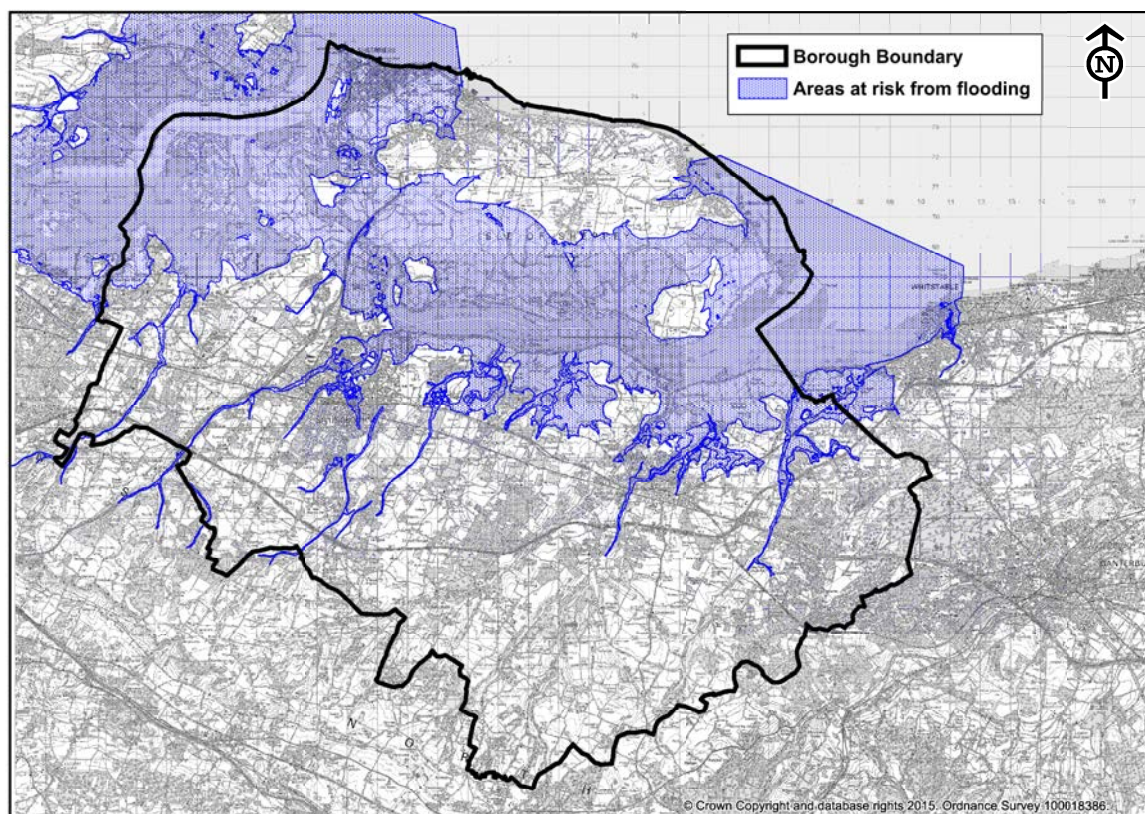
7.6.33 The Swale SFRA data informed the Environment Agency's flood zone maps, as shown on the [Environment Agency](#) website. These maps are updated quarterly by the Environment Agency with the latest flood information. The areas at risk of river and tidal (not surface water) flooding in Swale are broadly indicated in Map 7.6.2.

7.6.34 In 2010 a [Strategic Flood Risk Assessment Supplementary Statement for Faversham Creek](#), was developed and agreed by the Environment Agency.^(7.44) It provides guidance on the change of use or redevelopment of previously developed land within the 1:20 year flood risk area along the town's creek. Given the relatively confined nature of the floodplain in this area, which should enable safe access and escape in most instances, as well as the need for regeneration of the creek, a special designation was given to this area – Flood Zone 3a(i). This means that whilst there is an acknowledgement of the high flood risk in these areas, the strict national policy restrictions associated with functional floodplain (Flood Zone 3b) do not automatically apply. All development proposals will need to meet the requirements of the SFRA Supplementary Statement and be agreed by the Environment Agency as well as by Swale Borough Council.

Managing flood risk

7.6.35 In cases where flooding is an issue, the Council will seek the advice of the Environment Agency and, where appropriate, the Lower Medway Internal Drainage Board (who are responsible for management of the smaller watercourses in Swale), Kent County Council (the Lead Local Flood Authority), the Emergency Services and its own Emergency Planners (who are responsible for establishing safe access and emergency escape routes). It will also be guided by the coastal management policies within the Medway Estuary and Swale and Isle of Grain to South Foreland Shoreline Management Plans.

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Map 7.6.2 Areas at risk from flooding in Swale (Environment Agency Flood Zone 3)

7.6.36 The Environment Agency (EA) is currently working with partners on the Medway Estuary and Swale Strategy, which is due for completion in 2017. This will contain the overall strategy for the coastline and will identify areas in need of flood defence improvement works.

7.6.37 Some incidents of flooding along minor watercourses have occurred in the Borough as a result of unauthorised works and blockages. To ensure that development does not increase the risk of flooding or cause harm to the water environment, Land Drainage Consent, Flood Defence Consent or Flood Risk Activity Environmental Permits and other consents may be required for works, for example, within 16 metres of watercourses. The relevant authorities are:

- Environment Agency - main rivers;
- Lower Medway Internal Drainage Board - ordinary watercourses within their boundaries;
- Kent County Council - ordinary watercourses which are outside the boundary of the internal drainage board; and
- Marine Management Organisation - for works including construction and dredging in English inshore and offshore areas (<https://www.gov.uk/guidance/do-i-need-a-marine-licence>)

7.6.38 The policy set out in the NPPF and Planning Practice Guidance will be used when determining planning applications relating to water, flooding and drainage, supplemented by Policy DM21. As explained in the NPPF, a site specific flood risk assessment will be required for all proposals of 1 hectare or greater in Flood Zone 1, all proposals for new development in Flood Zones 2 and 3, or in an area within Flood Zone 1 which has critical drainage problems and where development or a change of use to a more vulnerable class may be subject to other sources of flooding.

Sustainable drainage

7.6.39 The NPPF highlights the priority which should be given to sustainable drainage systems. Within Swale, the [Thames River Basin Management Plan](#) explains that water quality is a particular issue.^(7.45) In order to protect water quality and reduce flood risk this policy seeks to promote the use of sustainable drainage systems (SuDS).

7.6.40 Sustainable drainage systems provide a more natural approach to managing water close to its source. They can reduce the impact of development by slowing runoff to greenfield rates, encouraging infiltration, trapping pollutants, providing habitats for biodiversity, increasing amenity for residents through the provision of open space and increasing the potential for grey water recycling. These benefits also make an important contribution to local authority responsibilities under the Water Framework Directive. Drainage must be considered at the earliest stages of the development process to ensure that the most sustainable option can be delivered in all cases.

7.6.41 Development has the potential to change surface water and ground water flows, depending on how the surface water is managed within the development proposal. Site specific Drainage Strategies should be submitted to the local planning authority along with planning applications for major development (as defined within the Development Management Procedure Order 2015). The Lead Local Flood Authority for Kent is Kent County Council (KCC) and, therefore, KCC is required to provide the local planning authority with a consultation response on the surface water drainage provisions of such applications. Developers should refer to KCC's [Drainage and Planning Policy Statement - Local Flood Risk Management Strategy Guidance Sustainable Urban Drainage Systems - Design and Best Practice Manual](#) produced by the Construction Industry Research and Information Association. The submitted Drainage Strategy must demonstrate that the drainage scheme is in compliance with KCC's drainage policies as outlined in their policy statement. The drainage strategy must also demonstrate that the proposed surface water management proposal is consistent and integrated with any other appropriate planning policy and flood risk management measures that are required. Incorporating sustainable drainage is easier if planned at an early stage and as such KCC welcomes pre-application consultation.

7.6.42 Consultation with KCC may also occur for planning applications that are not for major if they are in areas which may have a higher level of local flood risk or within areas that are 5 metres of an ordinary watercourse. Consultation on flood risk could also occur with other risk management authorities including the Environment Agency (tidal and fluvial flood risk). If a drainage scheme requires connection to a public sewer, additional approval will be required from the appropriate sewerage undertaker.

7.6.43 It should also be noted that SuDS schemes can impact on heritage such as archaeology, building foundations and historic drainage ditches. Therefore, when SuDS are planned it is important that any potential impact on the historic environment is fully considered and any unavoidable damage mitigated. Kent County Council's Heritage Conservation group can offer further guidance.

Water resources and water efficiency

7.6.44 Swale lies within an area of serious water stress as classified by the Environment Agency^(7.46). Water resources are likely to become more stretched within Swale as the population continues to grow. Both water companies which serve Swale are committed to putting in place the necessary mechanism to support the development proposed by the Local Plan, following their twin-track approach of reducing demand and developing new resources. This strategic approach is supported at the local level by Policy DM 21.

7.6.45 All new development has a responsibility to seek to manage demand for water and make efficient use of this resource. In this way the reliance on new water resources is reduced and less demand is placed on the environment and water bill payers. Southern Water encourage local authorities to promote levels 3 to 6 of the former Code for Sustainable Homes (these stipulate levels from 105 litres/person/day to 80 litres/person/day). Their Water Resources Management Plan assumes new development will be built to at least 105 litres/person/day and ask that the planning authority ensure that this design and construction standard is enforced. South East Water also advise that, as Swale is within an area of water stress, new

7 Development management policies

homes should be built to at least 105 litres/person/day (the former Code Level 4 limit). Policy DM 21 promotes water efficiency in new development, requiring new homes to be designed to achieve a minimum water efficiency of 110 litres per person per day, the most efficient level enforceable under the government's Housing: Optional Technical Standards^(7.47) and a standard that has been endorsed by the two water companies within Swale, the Environment Agency and the relevant Catchment Partnership, the North Kent Catchment Improvement Group (hosted by the Medway Swale Estuary Partnership and the South East Rivers Trust). This policy also addresses the issue of water resources in new development by requiring applicants to secure the agreement of water companies with regards to water supply before development commences. Applicants should also be aware of section 7.7.7 and 7.7.8 of this document on groundwater protection.

7.6.46 The Environment Agency has also published a range of documents to help people and businesses conserve water and better manage their water demand.^(7.48)

Connection to the foul water drainage system

7.6.47 Southern Water provide waste water treatment in Swale. Whilst connection to the surface water system is not an automatic right, developers do have an automatic right to connect to the foul water system. However, the closest point of contact from development sites to the foul system may not always have adequate capacity. If new development connects where capacity is insufficient, both new and existing customers may experience problems such as poor drainage and/or foul water flooding. This issue is addressed by Policy DM 21.

7.6.48 The water companies carry out capacity checks for allocations within the borough and have identified areas where the existing sewerage and/or water supply network is insufficient to meet anticipated demand. It is, therefore, very important that early dialogue with the appropriate water company takes place to ascertain any water supply and treatment issues which may affect a site, including ensuring that development proposals allow future access to sewerage and water supply infrastructure for maintenance and up-sizing purposes.

Policy DM 21

Water, flooding and drainage

When considering the water-related, flooding and drainage implications of development, development proposals will:

1. Accord with national planning policy and planning practice guidance;
2. Avoid inappropriate development in areas at risk of flooding and where development would increase flood risk elsewhere;
3. Provide site specific flood risk assessments, as required, carried out to the satisfaction of the Environment Agency and, if relevant, the Internal Drainage Board. These will, where necessary, include details of new flood alleviation and flood defence measures to be installed and maintained by the developer;
4. Include, where possible, sustainable drainage systems to restrict runoff to an appropriate discharge rate, maintain or improve the quality of the receiving watercourse, to enhance biodiversity and amenity and increase the potential for grey water recycling. Drainage strategies (including surface water management schemes) for major developments should be carried out to the satisfaction of the Lead Local Flood Authority;
5. Integrate drainage measures within the planning and design of the project to ensure that the most sustainable option can be delivered, especially where, exceptionally, development is to be permitted in an area of flood risk;
6. Within areas at risk of flooding, submit a suitable flood warning and emergency plan that has been approved by the relevant emergency planning regime and, where appropriate, the emergency services;

7. Where necessary, demonstrate that adequate water supply and wastewater connection and treatment infrastructure is in place before construction commences and that these details have been approved by the appropriate water company and funded by the development where appropriate;
8. Ensure future unconstrained access to the existing and future sewerage and water supply infrastructure for maintenance and up-sizing purposes;
9. Make efficient use of water resources and protect the yield of local public water supplies. For new residential development, all homes to be designed to achieve a minimum water efficiency of 110 litres per person per day, in line with the Government's Housing Optional Technical Standard for water efficiency; and
10. Protect water quality, including safeguarding ground water source protection zones from pollution, to the satisfaction of the Environment Agency.

The coast

7.6.49 The National Planning Policy Framework requires local planning authorities to maintain the character of the undeveloped coast, protecting and enhancing its distinctive landscapes and improve public access and enjoyment of the coast.^(7.49) Local planning authorities should take account of the UK Marine Policy Statement and marine plans and apply Integrated Coastal Zone Management across local authority and land/sea boundaries, to ensure integration of the terrestrial and marine planning regimes.^(7.50) It should be noted that the boundary for marine plans extends up to the level of the mean high water spring mark and therefore there will be overlap with terrestrial plans, which generally extend to the mean low water spring mark.



Picture 7.6.2 Shellness and The Swale

7.6.50 There are a wide range of other plans, policies, processes and projects that also feed into decisions affecting the coast, including:

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1. The European Water Framework Directive (WFD) establishes a legal framework to protect and restore clean water across Europe and ensure its long-term and sustainable use. Its aim is to establish a community framework for the protection of the water environments (rivers, coasts, estuaries, lakes, streams and groundwater) with the aim of returning our water environments to 'good environmental status' by 2027.
2. The European Marine Strategy Framework Directive sits alongside the WFD. The Directive requires Member States to prepare national strategies to manage their seas to achieve 'good environmental Status' by 2020. Major emphasis is placed on international co-operation.
3. The Environment Agency (EA) is currently working with partners on the Medway Estuary and Swale Strategy. Due for completion in 2017 it will contain the overall strategy for the coastline, and identify areas in need of flood defence improvement works.
4. [The Marine and Coastal Access Act 2009](#):
 1. requires a publicly accessible long distance route and land for open-air recreation around the coast of England and defines arrangements for the system of marine management and planning in the UK and the creation of the Marine Management Organisation (MMO);
 2. the MMO will deliver UK marine policy objectives for English waters through statutory Marine Plans and other measures. Swale is within the South East Inshore Marine Plan area and a plan for this area will be prepared at a future date. Until a Marine Plan has been prepared, the Marine Policy Statement should be referenced for guidance on any planning activity that includes a section of coastline or tidal river;
 3. designates and protects Marine Conservation Zones (MCZs) which exist alongside European sites (Special Areas of Conservation (SACs) and Special Protected Areas (SPAs)), SSSIs and Ramsar sites. The Medway Estuary became a Marine Conservation Zone (MCZ) in 2013 and the Swale Estuary became an MCZ in 2016;
 4. the MMO is responsible for issuing marine licences which may be needed for activities involving the deposit or removal of substances or objects in any tidal river. These may also require consideration under The Marine Works (Environmental Impact Assessment) Regulations 2007 (as amended). The MMO also issue consents under the Electricity Act 1989 (as amended) for offshore generating stations (1-100 megawatts) and are a statutory consultee to the Planning Inspectorate for relevant nationally significant infrastructure projects. Early consultation with the MMO is advised to ensure the effect on coastal processes are minimised or mitigated.
5. [The UK Marine Policy Statement](#) (MPS) is the framework for preparing Marine Plans.
6. Integrated Coastal Zone Management is the broad, long-term approach to adaptive coastal management which aims to offer specific solutions and flexible measures whilst working with natural processes.
7. [The Coastal Concordat](#) is an agreement between the Department for Environment, Farming and Rural Affairs, the Department for Transport, the Department for Communities and Local Government, the Marine Management Organisation, Natural England, the Environment Agency, the Local Government Association and National Parks England. Councils are encouraged to adopt the Concordat and its principles.
8. [The Isle of Grain to South Foreland and the Medway Estuary and Swale Shoreline Management Plans](#) (SMPs) have been prepared by the South East Coastal Group and identify sustainable long-term management policies for Swale's coast in the face of climate change and sea-level rise.
9. The Environment Agency's National Coastal Erosion Risk Mapping Project aims to improve public access to the latest knowledge on coastal erosion via an [online information tool](#).
10. Strategic studies on the North Kent Marshes. The North Kent Recreational Disturbance Study (Footprint Ecology, 2013) has examined the combined effects of development across districts for their effects on the Special Protection Areas (SPA). The North Kent Environmental Planning Group have recently completed a Strategic Access Management and Monitoring Strategy and are currently looking at mechanisms to enable a process by which development contributions can provide funding for implementation on the North Kent Marshes.
11. The Swale Strategic Flood Risk Assessment (2009) has determined the extent of flood risk in Swale.

12. The North Sheppey Erosion Study (Canterbury City Engineers, 2011) assesses cliff erosion along the North Sheppey coast from Minster to Leysdown, in particular undefended frontage where the Shoreline Management Policy is for 'no active intervention'. Cliff erosion is predicted to increase significantly over the next 100 years as a result of climate change. It also looks at options for managing action.
13. [The Coastal Communities 2150](#) project aims to develop community resilience to the risks and opportunities presented by potential changes to the climate along the Kent coast through improving knowledge and disseminating climate change projections, developing adaptation strategies and engaging communities.
14. The management objectives, published by Natural England, for the internationally and nationally designated biodiversity sites which stretch along the Borough's coast; and
15. [The Greater Thames Marshes Nature Improvement Area](#) was a partnership to improve the wildlife, resilience, public understanding and enjoyment of the Greater Thames Marshes. The Greater Thames Marshes NIA project has now ended, however, actions from the project are embedded within the objectives of the Thames Gateway Local Nature Partnership

Statement 9

Swale's coastal assets

The Borough's 111km of coastline is the longest of any Kent district and combines a wide range of coastal assets:

- Sheerness Docks - a natural deep water harbour and historic former naval dockyard.
- Fishing port at Queenborough.
- Docks at Ridham.
- Leisure oriented marina and repair facilities at Otterham Quay.
- Harty and Oare landing stages.
- The seaside resorts of Sheerness, Minster, Warden and Leysdown.
- Water sports along the north Sheppey coast and in the borough's creeks.
- Swathes of wetlands and marshes, designated internationally and nationally for their biodiversity interest.
- Creeks, including Queenborough, Milton, Conyer, Oare, Lower Halstow and Faversham
- Geologically important cliffs on Sheppey.
- Local coastal paths and the regional Saxon Shore Way.

7.6.51 Policy DM 22 is intended to support the national policy for the protection, enhancement, management and development of the coast in a way that has taken into account the Borough's assets whilst ensuring integration with the wide range of other agencies, plans and policies at work at the coast. It is also important in meeting the Local Plan vision of coastal rejuvenation.

7.6.52 For this policy, both the developed and undeveloped coasts have been considered. The developed coast is represented by that inside the defined built up area boundaries shown on the Proposals Map, whilst the undeveloped coast is that beyond it, and its hinterland is defined as the land which directly relates to this coastline in terms of landscape or land use. The policy also references seascape and coastal processes. Seascape is defined in the Marine Policy Statement, 2011, as landscapes with views of the coast or seas, and coasts and the adjacent marine environment with cultural, historical and archaeological links with each other. Coastal processes can be described as the processes of erosion, transportation and deposition in which coasts are shaped by the sea and the action of waves.

7 Development management policies

Policy DM 22

The coast

Planning permission will be granted for development proposals at or near the coast subject to:

1. Maintaining or enhancing access to the coast where it can be appropriately managed;
2. The protection, enhancement or management as appropriate of biodiversity, landscape, seascape and coastal processes;
3. Enabling wildlife to adapt to the effects of climate change, contributing towards the Local Plan's Natural Assets and Green Infrastructure Plan provided by Policy CP 7;
4. No overriding conflict with the policies and proposals of the Shoreline Management Plans;
5. Proposals within the built up area boundaries as defined on the [Proposals Maps](#), contributing to the rejuvenation of the developed coast, particularly where enhancing either existing industrial and maritime infrastructure, coastal heritage, tourism or environmental management;
6. Proposals at the undeveloped coast and its hinterland, supporting conservation and enhancement; and
7. Compliance with Policy DM 23 for the Coastal Change Management Area.

Coastal Change Management

7.6.53 The National Planning Policy Framework (NPPF) specifies that local planning authorities should identify Coastal Change Management Areas and avoid inappropriate development in these vulnerable areas. Local planning authorities should set out what development will be appropriate in Coastal Change Management Areas (CCMA).^(7.51) [Planning Practice Guidance](#) also gives advice on how to define a CCMA, what development would be appropriate within a CCMA as well as guidance on vulnerability assessments and the relocating of development away from CCMA's.

7.6.54 The Coastal Change Management Area has been defined as the areas of coastline likely to be affected by physical changes to the coast, such as erosion, coastal landslip, permanent inundation (i.e. land lost permanently to the sea) and accretion (land increasing due to addition of sediment).^(7.52) It has been defined within Swale and shown on the Proposals Map with the agreement of the Environment Agency, using the experience gathered from the relevant Shoreline Management Plans, the North Sheppey Erosion Study, Swale's Strategic Flood Risk Assessment and the National Coastal Erosion Risk Mapping project. For details of how the CCMA has been defined for Swale and to view more detailed maps of the CCMA, see the [Coastal Change Management Area Technical Paper No.1, Swale Borough Council, 2013](#). The definition of the boundary to the CCMA has been relatively high level in nature. In cases where more detailed technical evidence is provided as part of a planning application, the Council will consider these issues in consultation with the Environment Agency.

7.6.55 The CCMA includes an area along Sheppey's north coast where erosion occurs. This erosion area is separated into:

- Erosion Zone 1 (defined as land between the low water mark and the 50 year indicative erosion line on the Proposals Map); and
- Erosion Zone 2 (defined as land between the 50 year indicative erosion line and the 100 year indicative erosion line on the Proposals Map).

7.6.56 Within each zone different types of development may be appropriate. For example, within the 50 year zone, Erosion Zone 1, development directly related to the coast, but less permanent and readily moveable, such as beach huts, cafés, car parks and sites for holiday caravans and camping may be permitted. Within the 100 year zone, Erosion Zone 2, more substantial development may be appropriate, although here proposals will need to be accompanied by an assessment of how the impact of coastal change on the development and the service it provides will be managed.



Picture 7.6.3 Coastal holiday area on the Sheppey coast

7.6.57 Within both Erosion Zones 1 and 2, a Coastal Erosion Vulnerability Assessment will need to accompany planning applications. This should include the requirements set out in Planning Practice Guidance for vulnerability assessments as well as:

- the level of vulnerability to coastal erosion (as assessed through site history, site inspection and site investigation) and how this will be mitigated;
- the predicted lifetime of the development and the impact of coastal change on the development and the service it provides;
- plans for managing the cessation or relocation of the development, including clearing the site;
- details of responsible parties and what role they will play; and
- costs for managing the impact of coastal change on the site and who will be responsible for these.

7.6.58 Some water-compatible development may be permitted within the CCMA. For the purposes of this policy water-compatible development is defined as:^(7.53)

- flood control infrastructure;
- water transmission infrastructure and pumping stations;
- sewage transmission infrastructure and pumping stations;
- sand and gravel working;
- docks, marinas and wharves;
- navigation facilities;
- Ministry of Defence installations;
- ship building, repairing and dismantling, dockside fish processing and refrigeration and compatible activities requiring a waterside location;
- water-based recreation (excluding sleeping accommodation);
- lifeguard and coastguard stations;
- amenity open space, nature conservation and biodiversity, outdoor sports and recreation and essential facilities such as changing rooms; and
- essential ancillary sleeping or residential accommodation for staff required by uses in this category, subject to a specific warning and evacuation plan.

7.6.59 On a case by case basis, Policy DM 23 sets out criteria for when provision needs to be made for development and infrastructure to be relocated away from Coastal Change Management Area. It also ensures that development in a CCMA is not impacted by coastal change by limiting the planned life-time of the proposed development through temporary permission and restoration conditions where necessary to reduce the risk to people and the development.

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Policy DM 23

Coastal change management

Within the Coastal Change Management Area (CCMA), as defined on the [Proposals Map](#), planning permission will be granted for development proposals subject to:

1. It being demonstrated that the proposal will not result in an increased risk to life, nor a significant increase in risk to property;
2. The proposal comprising:
 - a. essential infrastructure; or
 - b. a Ministry of Defence installation; or
 - c. an agricultural building(s); or
 - d. water-compatible development; or
 - e. (within Erosion Zones 1 or 2) a use as defined by criterion 3 or 4, below, as appropriate.
3. Proposals within Erosion Zone 1 being directly related to the coast and less permanent in nature, construction and value; or ^(7.54)
4. Proposals within Erosion Zone 2 may additionally be permitted when comprising: ^(7.55)
 - a. commercial or leisure activities requiring a coastal location and providing substantial economic, social and environmental benefits to the community; or
 - b. key community infrastructure, which has been demonstrated as needing to be sited within the CCMA to provide the intended benefit to the wider community; or
 - c. the subdivision of properties, including residential subdivision; or
 - d. domestic extensions to residential properties.
5. Proposals within Erosion Zones 1 and 2, submitting a Coastal Erosion Vulnerability Assessment showing the development will be safe throughout its planned lifetime and will not increase risk to life or property elsewhere without the need for new or improved coastal defences; and
6. A temporary planning permission being sought where necessary, together with, as appropriate, a legal agreement to secure the long term management of the site.
7. Proposals seeking to relocate development away from the CCMA will:
 - a. be forecast to be affected by erosion or permanent inundation within 20 years from the date of the planning application, as determined by a Coastal Erosion Vulnerability Assessment or Flood Risk Assessment;
 - b. be of a similar scale, nature and character as the development it is replacing and be of a scale appropriate to its new context;
 - c. be located at an appropriate location inland from the CCMA and, where possible, remaining close to the coastal community from which it was displaced;
 - d. demonstrate that no suitable site is available within a built up area boundary or on previously developed land; and
 - e. at its current site, ensure that it is cleared, made safe or put to a temporary use beneficial to the local community who will take long term responsibility for it.

7.7 Conserving and enhancing the natural environment

Pollution, land contamination and unstable land

7.7.1 The National Planning Policy Framework (NPPF) states that planning should contribute to conserving and enhancing the natural environment and reducing pollution and sets out a suite of policies to address air, noise and light pollution, land contamination and unstable land.^(7.56) Planning Practice Guidance provides more detailed advice on issues including [Air Quality](#), [Hazardous Substances](#), [Land Affected by Contamination](#), [Land Stability](#), [Light Pollution](#), [Noise](#) and [Water Supply, Wastewater and Water Quality](#). Planning matters related to these issues in Swale will therefore be dealt with via reference to the NPPF, Planning Practice Guidance and other relevant policies within this Plan, informed by the technical advice of the Council's Environmental Protection Team and the Environment Agency.

7.7.2 Unstable land, pollution, including air pollution, and land contamination issues are relevant within Swale, particularly due to the legacy of past industrial uses and its economic strengths in manufacturing and distribution. Pollution can be site specific, but its impacts can also be widespread, for instance downstream of source, effecting sites designated for their environmental quality. Noise, light and air quality are also important concerns for residents.

Air quality

7.7.3 Transport and industry are the Borough's main air pollution emitters and a number of Air Quality Management Areas (AQMA) have been declared at Newington, Teynham, Ospringe, St Paul's Street and at East Street/Canterbury Road in Sittingbourne. Applicants proposing development that could have an impact on air quality levels within the AQMA should contact the Council's Environmental Protection Team regarding the preparation of an Air Quality Impact Assessment. Developers should also refer to The Kent and Medway Air Quality Partnership's document, [Air Quality and Planning Technical Guidance, July 2011](#) and any updated versions of this document.

Noise and vibration

7.7.4 Assessing developments for noise and vibration - both from noise generated from new developments affecting existing development and new development close to existing noise sources - can be complex. The relevant British Standards and guidance, including BS4142, BS8233 and BS7445 need to be considered. The Council's Environmental Protection Team has published a guidance document, [Noise and Vibration: Planning Guidance Document, 2013](#). Developers should refer to this guidance, as well as the latest revised British Standards, in their planning applications.

Land contamination

7.7.5 Any development on previously developed land to a more sensitive use should follow the guidelines contained in the Council's Environmental Protection Team's [Land Contamination: Planning Guidance Document, 2013](#). The Council's [Contaminated Land Strategy](#) (2016) should also be referred to by developers.

7.7.6 Where development is approved on previously developed land and made subject to a land contamination condition, the risk assessment undertaken should follow guidance contained in the Model Procedures for the Management of Land Contamination - Contaminated Land Report 11 ([CLR11](#)). Ultimately, the land will be remediated to an acceptable standard and suitable for the new proposed use and as a minimum, land should not be capable of being determined as contaminated land under Part IIA of the Environmental Protection Act 1990.

Groundwater

7.7.7 [Source Protection Zones](#) (SPZs) are used to control activities close to drinking water supplies. Developments proposed in sensitive groundwater areas, such as SPZs, or close to any controlled water

7 Development management policies

features, need to be assessed for the risk the development may have on the immediate and surrounding water quality. This will involve assessing current water quality and the effect the physical development may have on water quality (e.g. reducing infiltration to groundwater or introducing a pollutant linkage).

7.7.8 The principles and guidelines contained in the Environment Agency's [Groundwater Protection: Principles and Practice GP3](#) (November 2012) should be followed. The Environment Agency will need to be satisfied that development will not harm groundwater.

Conserving and enhancing valued landscapes

7.7.9 The National Planning Policy Framework (NPPF) states that the planning system should contribute to conserving and enhancing the natural environment by protecting and enhancing valued landscapes.^(7.57) The NPPF requires local authorities to set out criteria based planning policies against which proposals for development on or affecting protected landscapes can be judged and that these policies should make appropriate distinctions between international, national and locally designated sites, offering protection that is appropriate for their status and importance and the contribution that they make to establishing and improving wider ecological networks.^(7.58) [Planning Practice Guidance](#) gives advice on landscapes, including how the character of landscapes can be assessed, the legal duties related to Areas of Outstanding Natural Beauty and the regard local planning authorities should have to their Management Plans.

7.7.10 Natural England's [National Character Areas](#) (NCAs) divide England into 159 distinct natural areas each defined by their unique combination of landscape, biodiversity, geodiversity, cultural and economic activity. Their boundaries follow natural lines in the landscape rather than administrative boundaries, making them a good decision making framework for the natural environment. Within these NCAs, the Borough's varied landscape is reflected in three distinct broad character types - the flat, open marshland of the Greater Thames Estuary, the orchards, arable land, woodland and dry valleys of the North Kent Plain and the dipping slope, valleys and woodland of the North Downs.

7.7.11 The modern landscape of Swale is also a product of man made influences over a long period of time. The Kent Historic Landscape Characterisation Survey (2001) has identified a number of key character areas in Swale:

- Central North Downs: a zone at the highest point of the Borough with a mixed character of fields and other types and a general north-east to south-west alignment;
- Northern Horticultural Belt: a large wide area crossing the north Kent plain primarily defined by horticultural activity with a predominance of orchards;
- The Forest of Blean and areas that were formerly part of the Forest, and remains mostly woodland today but where fields encroach into woodland;
- The Northern Coast and Marshland: a visually distinctive area consisting of a relatively balanced mix of reclaimed marsh and coastal landscape; and
- The Isle of Sheppey: itself broken into three sub-areas consisting of reclaimed marsh, post-medieval field systems and urban and industrial development.

7.7.12 A number of areas within Swale have been formally designated because they are landscapes of great value and/or scenic beauty and because they have a particular value for the conservation of selected species, habitats, historic and cultural assets. Within these designations priority will be given to the long term conservation and enhancement of these landscapes relative to their status, whilst having regard to the economic and social wellbeing of their communities.

Landscape Designations

7.7.13 The NPPF looks to Local Plan policies to make distinctions between the hierarchy of national and locally designated sites so that protection is commensurate with their status.^(7.59)

National landscapes - the Kent Downs Area of Outstanding Natural Beauty

7.7.14 In 1968 a large part of the North Downs within the Borough was designated as part of the Kent Downs Area of Outstanding Natural Beauty (AONB). The aim of this national designation was to conserve and enhance the natural beauty of the landscape. The aim of the [Kent Downs Area of Outstanding Natural Beauty Management Plan](#) is to secure conservation and enhancement within the AONB while supporting local communities. The plan is adopted by the relevant Kent Districts and London Boroughs as a material consideration in planning applications and it is afforded similar weight to a Supplementary Planning Document.

7.7.15 Accompanying the AONB management plan are a number of supporting guidance documents which should be taken into account in relevant cases. These include the AONB's: Farm Diversification Toolkit; Kent Downs Farmsteads Guidance; Managing Land for Horses; Rural Streets and Lanes - A Design Handbook; Position Statement on Renewable Energy and its Companion Report and the Landscape Design Handbook.

7.7.16 The NPPF states that great weight should be given to conserving landscape and scenic beauty in AONBs and that they have the highest status of protection in relation to landscape and scenic beauty. The Council will apply national policy which is to refuse proposals for major development unless in exceptional circumstances, and where it can be demonstrated that they are in the public interest and based on an assessment of:

- national need for the development and the impact of permitting or refusing it on the local economy;
- the scope and cost of placing the development outside the AONB or meeting the need for it in another way; and
- the extent to which any detrimental impacts could be moderated.^(7.60)

7.7.17 The importance of the setting of the Kent Downs has been emphasised by the AONB management plan and in development management decisions taken in Kent. Where referring to the AONB in this document, this refers also to its setting. The setting is broadly speaking the land outside the designated area which is visible from the AONB and from which the AONB can be seen, but may be wider when affected by intrusive features. Proposals which would affect the setting of the AONB are not subject to the same level of constraint as those which would affect the AONB itself. The weight to be afforded to setting issues will depend on the significance of the impact and will be greater where the qualities of the AONB which were instrumental in reasons for its designation are affected.

7.7.18 In terms of what may constitute 'major development', for purposes of this Local Plan, it will be a matter of judgement based on all circumstances, it will not be made by reference to the definition of major development in the Development Management Procedure Order 2015 or for purposes of determining whether an Environmental Impact Assessment is required. If only part of a larger scheme is within the AONB, the judgement may be based on the whole of the scheme.

Local Landscape Designations

Areas of High Landscape Value - Kent Level

7.7.19 Special Landscape Areas were first designated 30 years ago (as Kent-wide strategic policy) and their detailed boundaries defined by successive Local Plans. For this Local Plan they are described as *Areas of High Landscape Value - Kent Level*. Three are present in Swale reflecting the broad landscape types in the Borough - the North Downs, Blean Woods and North Kent Marshes. These landscapes are considered to be scenically important in a county-wide context and their boundaries were reviewed in 2008.^(7.61) A desk top review was undertaken in 2014 and can be found in Technical Paper No.6. Their boundaries remain unchanged from 2008 (with the exception of a small section at Cowstead Corner, between Queenborough and Minster, as outlined in Technical Paper No. 6) and are consistent with those of neighbouring Council's.

Areas of High Landscape Value - Swale Level

7 Development management policies

7.7.20 Following a 2008 landscape assessment a number of areas were considered worthy of designation due to their significance within Swale and were included for the 2008 Local Plan.^(7.62) For this Local Plan they are described as *Areas of High Landscape Value - Swale Level* with their coverage remaining unchanged and comprising land between:

- Tonge and Luddenham;
- Iwade, Newington and Lower Halstow;
- Boughton Street, Hernhill, Dargate and Staplestreet; and
- Sheppey Court and Diggs Marshes.

7.7.21 A desk top review was undertaken in 2014 and can be found in Technical Paper No.6. Their boundaries remain unchanged from 2008.

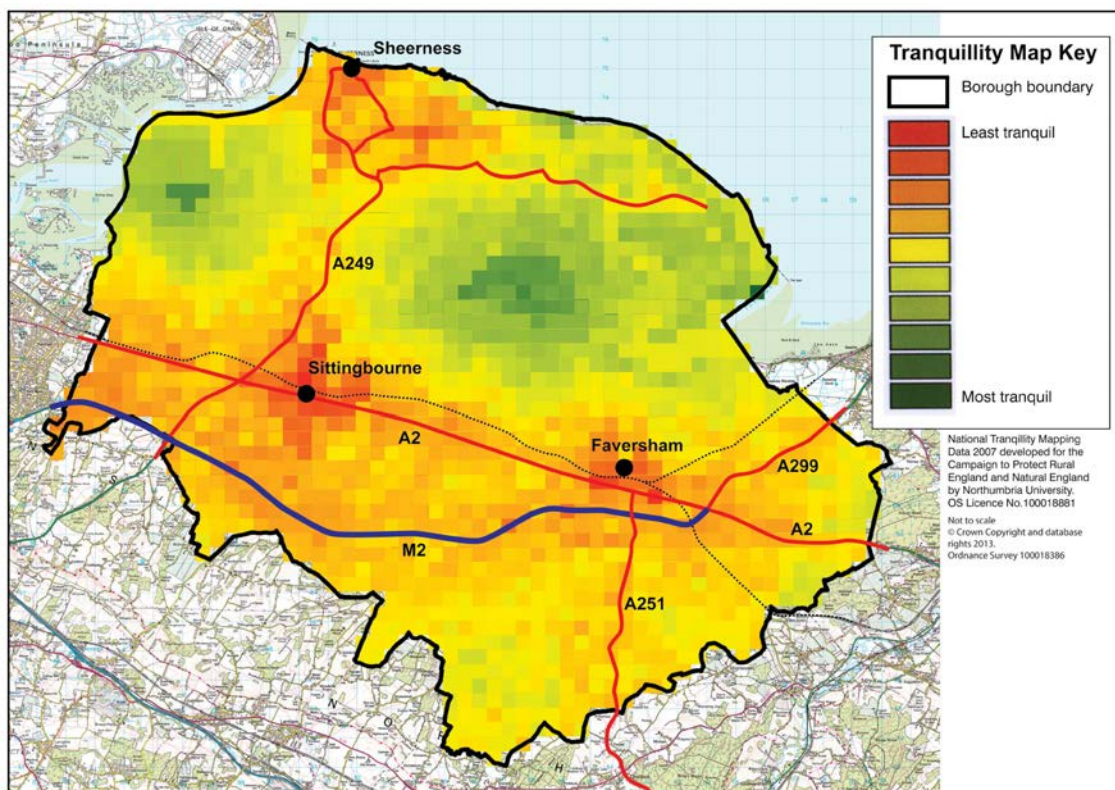
7.7.22 Within these Local Landscape Areas, Policy DM 24 requires development proposals to be considered in relation to the extent to which they would protect the local landscape character and enhance the future appearance of the designated landscape and, where relevant, its nature conservation interest. If, after adverse landscape impacts have been minimised, mitigated and compensated for, further adverse impacts still remain, the Policy requires the social and/or economic benefits of a proposal to significantly and demonstrably outweigh the local status of the designation for planning permission to be granted.

Tranquillity

7.7.23 The NPPF explains that planning policies should aim to identify and protect areas of tranquillity which have remained relatively undisturbed by noise and are prized for their recreational and amenity value for this reason^(7.63) It also emphasises the role good design can have on protecting dark landscapes.^(7.64)

7.7.24 Tranquillity is a valuable resource that once lost is difficult to regain, it having benefits to health and well being as well as to green infrastructure. It is associated with quiet places, surrounded by elements of nature and is most commonly found in an uncluttered and peaceful countryside, but also within urban areas – for instance in a leafy urban square or park where birdsong is audible. Tranquillity is also often associated with dark skies and the absence of light pollution from roads and built up areas.

7.7.25 The Swale Landscape Character and Biodiversity Appraisal 2011 highlighted tranquillity as a feature of several areas of the Borough, whilst the Campaign to Protect Rural England have also drawn up a [Tranquillity Map for Kent](#) and using this data a Swale section of this map has been developed as a pictorial guide to areas of higher or lower tranquillity, indicative and relative tranquility in Swale (CPRE Map localised by SBC). Although tranquillity exists in a broad brush fashion within the greener areas on the map, it will not be locally uniform; likewise it may also be present locally beyond the identified more tranquil areas. Applicants should demonstrate how development will affect tranquillity and aim to at least maintain it or improve it when seeking to comply both with national planning policy and Policy DM 24.



Map 7.7.1 Indicative and relative tranquility in Swale (CPRE Map localised by SBC).

7.7.26 The impact of lighting from development has a significant effect on tranquillity. Planning Practice Guidance's chapter on [Light Pollution](#) gives advice on when lighting is relevant to planning and the factors to consider when assessing schemes where lighting is an issue. The Institute of Lighting Professionals has produced many free resources to enable lighting to be sympathetically integrated into development, such as [Guidance Notes for the Reduction of Obtrusive Light](#) which should be referenced in relevant applications. The Department for Environment, Food and Rural Affairs, the Campaign to Protect Rural England, Campaign for Dark Skies and the Institute of Lighting Professionals has also collaborated to produce an information leaflet, [Getting Light Right](#), designed to demonstrate how to install their security lights effectively to reduce light pollution.

The appraisal of landscape character and biodiversity

7.7.27 As well as designated landscapes, the NPPF outlines the importance of protecting and enhancing valued landscapes. Natural England's approach to landscape is that all landscapes matter and that many are highly valued by local people, both those which have historical significance to the community and those which are newly created or recognised. Natural England also advocate the use of a landscape character approach which not only helps us to understand our landscapes, but also assists in informing judgements and decisions concerning the management of change. ^(7.65)

7.7.28 The Council has an adopted Swale Landscape Character and Biodiversity Appraisal (2010) Supplementary Planning Document to ensure the protection and enhancement of the whole of the Borough's landscapes and habitats. It has identified and assessed the condition and sensitivity of 42 landscape character areas and set out guidelines for action for all countryside across the Borough. It will be used to determine whether development is appropriate and, if so, how it might be accommodated within the landscape and mitigated sensitively. The Swale Landscape Character and Biodiversity Appraisal values all landscapes in the Borough and gives guidance for improvement and enhancement, including habitat enhancements, – providing a positive approach to the restoration and enhancement of landscapes. Planning applications will take this document into account when preparing development proposals and it is a key part of determining planning applications, in accordance with Policy DM 24.

7 Development management policies



Picture 7.7.1 Montage of landscapes in Swale

7.7.29 The Swale Urban Extension Landscape Capacity Study (2010) examined 27 study areas surrounding the built up areas of Sittingbourne, Faversham, Sheerness and Minster and considered the landscape significance and implications of extending these urban areas.^(7.66) Through an analysis of landscape sensitivity and value the study gives commentary as to each area's capacity to accommodate change and offers guidelines and mitigation should development be proposed. Where development is proposed within these areas, the findings and guidelines will be taken into account.

Policy DM 24

Conserving and enhancing valued landscapes

The value, character, amenity and tranquillity of the Borough's landscapes will be protected, enhanced and, where appropriate, managed.

Part A. For designated landscapes areas:

Within the boundaries of designated landscape areas, as shown on the [Proposals Map](#), together with their settings, the status given to their protection, enhancement and management in development decisions will be equal with the significance of their landscape value as follows:

1. The Kent Downs Area of Outstanding Natural Beauty (AONB) is a nationally designated site and as such permission for major developments should be refused unless exceptional circumstances prevail as defined by national planning policy. Planning permission for any proposal within the AONB will only be granted subject to it:
 1. conserving and enhancing the special qualities and distinctive character of the AONB in accordance with national planning policy;
 2. furthering the delivery of the AONB's Management Plan, having regard to its supporting guidance documents;

3. minimising the impact of individual proposals and their cumulative effect on the AONB and its setting, mitigating any detrimental effects, including, where appropriate, improving any damaged landscapes relating to the proposal; and
 4. being appropriate to the economic, social and environmental wellbeing of the area or being desirable for the understanding and enjoyment of the area.
2. Areas of High Landscape Value (Kent and Swale Level) are designated as being of significance to Kent or Swale respectively, where planning permission will be granted subject to the:
1. conservation and enhancement of the landscape being demonstrated;
 2. avoidance, minimisation and mitigation of adverse landscape impacts as appropriate and, when significant adverse impacts remain, that the social and or economic benefits of the proposal significantly and demonstrably outweigh harm to the Kent or Swale level landscape value of the designation concerned.

Part B. For non-designated landscapes:

1. Non-designated landscapes will be protected and enhanced and planning permission will be granted subject to:
 1. the minimisation and mitigation of adverse landscape impacts; and
 2. when significant adverse impacts remain, that the social and or economic benefits of the proposal significantly and demonstrably outweigh the harm to the landscape character and value of the area.

Part C. For all landscapes:

1. The scale, layout, build and landscape design of development will be informed by landscape and visual impact assessment having regard to the Council's Urban Extension Landscape Capacity Study and Landscape Character and Biodiversity Appraisal SPD, including, as appropriate, their guidelines, and the key characteristics, sensitivity, condition and capacity of character area(s)/landscapes, taking opportunities to enhance the landscape where possible, including the removal of visually intrusive features.

The separation of settlements - Important Local Countryside Gaps

7.7.30 With the settlement strategy of the Local Plan focusing development pressures at the major settlements in the Borough, there is a need to prevent the coalescence and the erosion of the intrinsic character of settlements close by.

7.7.31 The identity, character, and setting of settlements are formed, in part, by their physical separation from one another. Whilst the use of Landscape Character Assessments assist in safeguarding the intrinsic character and beauty of the countryside, in areas where development pressures could lead to coalescence or erosion of settlement separation, the definition of those gaps provides additional emphasis when considering allocations and development management issues.

7.7.32 Within Swale, Important Local Countryside Gaps (ILCGs) were defined and set out in the 2008 Local Plan. They comprised the gaps between:

- Sittingbourne and the satellite villages of Bapchild, Rodmersham Green, Tunstall, Borden, Chestnut Street, Bobbing and Iwade;
- Upchurch and the administrative boundary with Medway Council; and
- settlements on Western Sheppey (The West Sheppey Triangle).

7 Development management policies

7.7.33 The boundaries of ILCGs are defined on the Proposals Map and follow recognisable physical features, the defined built-up area boundaries or the boundaries of allocations. The boundaries have been reviewed and this can be found in Technical Paper No.6.

7.7.34 The purposes of ILCGs (and Policy DM 25) are to:

- maintain the separate identities and character of settlements by preventing their merging;
- safeguard the open and undeveloped character of the areas;
- prevent encroachment and piecemeal erosion by built development or changes to the rural open character; and
- influence decisions on the longer-term development of settlements through the preparation and review of Local Plans.

7.7.35 Not all forms of development are discouraged within the ILCGs. For instance, agriculture, waste management and mineral recycling facilities, public open space, community woodland, nature reserves, recreation, allotments and burial grounds are all uses which could be conducted provided that their purpose are not undermined or the need to protect the countryside compromised. However, there may be instances within ILCGs where even modest development could impact upon their purpose, particularly where there may be:

- actual (or the perception of) coalescence;
- the loss of a critical part of the gap;
- resultant pressure arising from a development or an allocation that would be difficult to contain; or
- where the extent of the land remaining undeveloped would not function as maintaining the sense of separation.

Policy DM 25

The separation of settlements - Important Local Countryside Gaps

To retain the individual character and setting of settlements, the following Important Local Countryside Gaps are defined on the [Proposals Map](#) as gaps between:

1. Sittingbourne and the satellite villages of Bapchild, Rodmersham Green, Tunstall, Borden, Chestnut Street, Bobbing and Iwade;
2. Upchurch and the administrative boundary with Medway Council; and
3. Queenborough, Sheerness, Minster and Halfway.

Within these gaps, unless allocated for development by the Local Plan, planning permission will not be granted for development that would undermine one or more of their purposes.

Rural lanes

7.7.36 Swale possesses a rich heritage of rural lanes that contribute to rural amenity, nature conservation and the character of the landscape. A study undertaken in 1997 by Kent County Council identified the top 20% of these lanes against environmental criteria, and these are shown on the Proposals Map. Many are experiencing pressures from the rapid rise in rural traffic, urbanisation and changes in the management of verges.

7.7.37 In order to safeguard these lanes, the Council will not permit development that would harm their identified qualities, and will implement traffic restraints, speed restrictions, routing agreements with

businesses, and tree and hedgerow preservation orders. Development proposals may similarly bring forward such proposals as mitigation of adverse impacts, together with measures such as landscape or historic features restoration.

7.7.38 Given the age of the rural lanes study, applicants may be required to provide further evidence as to the landscape, amenity, biodiversity, historic and archaeological importance of the lane(s) in question.

7.7.39 The Kent Downs Area of Outstanding Natural Beauty (AONB) unit have published [Rural Streets and Lanes: A Design Handbook \(2009\)](#) which identifies the characteristics of the rural road network and promotes its conservation and maintenance through detailed design guidance and case studies. This guide has been adopted by Kent County Council and should be referenced for all relevant applications both within and outside the AONB.

Policy DM 26

Rural lanes

Planning permission will not be granted for development that would either physically, or as a result of traffic levels, significantly harm the character of rural lanes. For those rural lanes shown on the [Proposals Map](#), development proposals should have particular regard to their landscape, amenity, biodiversity, and historic or archaeological importance.

The keeping and grazing of horses

7.7.40 The keeping of horses and ponies is a popular leisure activity and land for the grazing and keeping of horses has become a source of income to farmers and others in parts of the Borough. Whilst these activities can bring economic benefits to the rural area, they can, individually, and especially cumulatively, adversely change the rural character of the area with stables, paddocks, fencing, on-site riding facilities and other visual clutter. These same concerns apply to commercial equestrian activities, such as riding schools and livery stables, particularly due to the greater intensity of use and increased traffic generation.

7.7.41 In many parts of the Borough, such as between Newington, Upchurch, Lower Halstow and the Borough boundary with Medway and between Chestnut Street and Oad Street, within the setting of The Blean and around the north coasts of Sheppey, the levels of equestrian activity has had a negative impact upon the landscape. Further proposals will be only allowed exceptionally where additional cumulative harm would not occur. In all locations landscapes with an open character are less likely to be capable of accommodating such development. The use of higher standards of design on stable buildings, fencing, landscaping and parking that has been achieved in some locations will enable proposals to better reflect and enhance the character of the area.

7.7.42 The Council's Landscape Character and Biodiversity and Biodiversity Appraisal Supplementary Planning Document 2011, will be used to guide the acceptability of proposals in terms of their individual or cumulative impacts upon the landscape along with the Council's adopted Supplementary Planning Guidance [The Erection of Stables and Keeping of Horses](#), which is a material consideration. Applicants should reference these documents in applications. Within the Kent Downs Area of Outstanding Natural Beauty, the AONB Unit's document, [Managing Land for Horses](#), will be a further consideration.

7 Development management policies

Policy DM 27

The keeping and grazing of horses

Planning permission will only be granted for development involving the use of land for the keeping or grazing of horses and ponies in connection with riding or other non-agricultural purposes, if they are of high quality design and of a scale and intensity that is acceptable in landscape character, biodiversity, amenity and highways terms. In considering proposals, the Borough Council will have regard to the cumulative effect of such uses in the local area, the sites' accessibility to the bridleway network (having regard to potential conflicts with other path users), or the ability to provide on-site riding facilities.

Biodiversity and geological conservation

7.7.43 The National Planning Policy Framework (NPPF) sets out how the planning system should conserve and enhance the natural environment by minimising impacts on biodiversity - including providing net gains in biodiversity where possible – and by protecting and enhancing geological conservation interests.^(7.67)

7.7.44 The NPPF states that local planning authorities should set criteria based policies against which proposals for development affecting protected wildlife or geodiversity sites will be judged. It calls for distinctions to be made between the hierarchy of international, national and locally designated sites so that protection of sites will be appropriate to their status.^(7.68)

7.7.45 The NPPF expects Councils to apply the following principles:^(7.69)

- refusing planning permission if significant harm resulting from a development cannot be avoided, adequately mitigated, or, as a last resort, compensated for;
- for land within or outside a Site of Special Scientific Interest development likely to have an adverse effect on the SSSI should not normally be permitted unless specific circumstances arise;
- development proposals where the primary objective is to conserve or enhance biodiversity should be permitted;
- opportunities to incorporate biodiversity in and around developments should be encouraged; and
- planning permission should be refused for development resulting in the loss or deterioration of irreplaceable habitats (including ancient woodland and aged/veteran trees) unless the need for, and benefits of, the development in that location clearly outweigh the loss.

7.7.46 The NPPF calls for planning policies to plan for biodiversity at a landscape-scale across local authority boundaries. It requires identification of local ecological networks, connecting designated sites with sites identified for habitat restoration or creation via wildlife corridors and stepping stones. In this way the preservation, restoration and re-creation of priority habitats, ecological networks and the protection and recovery of priority species populations will be enabled.^(7.70)

7.7.47 Planning Practice Guidance provides more information on [Biodiversity, Ecosystems and Green Infrastructure](#). It explains the statutory basis for seeking to minimise impacts on biodiversity and provide net gains in biodiversity where possible, stressing the commitments within [Biodiversity 2020](#) - the government's strategy for biodiversity and ecosystem services. It sets out how local planning authorities should plan for biodiversity and geodiversity and work collaboratively with partners. It gives advice on ecological evidence and the importance of ecological networks as well as how biodiversity can be taken into account in preparing planning applications so that development can protect and enhance biodiversity. It sets out details of how the mitigation hierarchy, established by the NPPF, would work in practice and explains how mitigation and compensation measures can be achieved, as well as setting out where information on ancient woodland and aged and veteran trees can be found.

Designated sites

7.7.48 Large areas within Swale are formally designated because they contain habitats or support species which are endangered at international, national or local level. Designation provides long term protection as well as opportunities to introduce management measures to conserve features considered to be of value.

7.7.49 The hierarchy of designations within Swale is outlined below, starting with international and European, through national to local level. The policy reflects this hierarchy of importance. Further detail on the range of sites, their statutory obligations and their impact on the planning system can be found in Circular 06/2005 Biodiversity and Geological Conservation (due to be replaced by the Department for Environment, Food and Rural Affairs (Defra) in the near future).

Internationally designated sites

7.7.50 The most important sites for biodiversity have statutory protection under international legislation and in Swale comprise Ramsar sites, Special Protection Areas and Special Areas of Conservation.

7.7.51 Ramsar sites are wetlands of international importance, designated by international agreement and ratified by the UK Government. This international designation provides for the conservation and good use of wetlands. Ramsar sites in the Borough are the Swale and the Medway Estuary and Marshes. They are designated for their high plant and invertebrate species diversity and internationally important numbers of many bird species.

7.7.52 Special Protection Areas (SPAs) are areas which have been identified as being of international importance for the breeding, wintering or the migration of rare and vulnerable species of birds found within European Union countries. They are European designated sites, classified under the 'Birds Directive 1979'. SPAs designated within Swale are the Swale SPA and the Medway Estuary and Marshes SPA (both designated for overwintering, on-passage and breeding birds) as well as the Outer Thames Estuary SPA (designated for the red-throated diver).

7.7.53 Special Areas of Conservation (SACs) are areas which have been given special protection under the European Union's Habitats Directive. They provide increased protection to a variety of wild animals, plants and habitats. SACs are designated at Queendown Warren and the Blean complex. The Blean is a designated SAC due to its ancient oak and hornbeam woodland and because it supports a good population of the rare heath fritillary butterfly. Queendown Warren is designated as SAC for its chalk grassland and due to the site supporting a number of orchid species.

7.7.54 As set out in the NPPF, the following wildlife sites should be considered to have the same protection as European sites: potential Special Protection Areas, possible Special Areas of Conservation, listed or proposed Ramsar sites and sites identified, or required, as compensatory measures for adverse effects on European sites, potential Special Protection Areas, possible Special Areas of Conservation and listed or proposed Ramsar sites.^(7.74)

7.7.55 If there is a risk that a plan or project may affect an internationally designated site an Appropriate Assessment will be required under the Conservation of Habitats and Species Regulations 2010. If the Council and other bodies are unable to conclude that there will be no adverse effect on the integrity of a European site, the plan or project will have to be refused. Applicants should provide information regarding the possible impacts on these sites and appropriate avoidance and mitigation measures should be incorporated into developments to reduce any impacts identified.

7.7.56 The Council will also use a precautionary approach in requiring Habitats Regulations Assessment to be prepared for individual development proposals until a strategic solution has been prepared or where effects of a proposal are deemed to be uncertain. The Council will consider the need for Habitats Regulations Assessment to be undertaken at the reserved matters stage for sites where outline planning permission has already been granted.

7 Development management policies

7.7.57 Local Authorities across North Kent have joined Natural England and other agencies and organisations within the North Kent Environment Planning Group to identify the impacts of recreational disturbance on SPA birds. Following on from a Visitor and Bird Disturbance Survey, a Strategic Access Management and Monitoring Strategy (SAMMS) has been completed. This looks at ways to ensure that development contributions provide funding for implementation of the SAMMS on the North Kent Marshes. In the interim period before this process is in place, some high level mitigation elements have been identified:

1. protect and improve high tide roosts and the current least disturbed areas;
2. manage the visitor impact around popular locations;
3. identify all access points and suggest measures proportionate to the risk of disturbance arising from each one;
4. monitor impacts to assess effectiveness and review if appropriate;
5. require at least those developments likely to increase visitor numbers significantly to undertake a bespoke assessment of their impact, and provide developers with a method for doing so; and
6. provide developers with options to contribute to the cost of 1 to 4 above.

7.7.58 With the strategy and its mechanism for seeking developer contributions now adopted by the partner Councils, on appropriate sites financial contributions to wider mitigation measures within and adjacent to the SPA are being required.^(7.72) This will be achieved by Section 106 Agreements prior to the introduction of the Council's Community Infrastructure Levy.

Nationally designated sites

7.7.59 Sites of Special Scientific Interest (SSSIs) are the country's best wildlife and geological sites. They are legally protected under the Wildlife and Countryside Act 1981, as amended by the Countryside and Rights of Way (CROW) Act 2000 and the Natural Environment and Rural Communities (NERC) Act 2006. SSSIs are designated within the Borough for the Swale, the Medway Estuary and Marshes and the Sheppey Cliffs and Foreshore (for geological as well as nature conservation), Church Woods (Blean), Ellenden Wood, Queendown Warren (Hartlip) and a small section of nearby Purple Hill.

7.7.60 National Nature Reserves (NNR) represent many of the finest wildlife and geological sites in the country. They are used to manage some of most the pristine habitats, rarest species and most significant geology as well as promoting public access to natural heritage. NNRs in Swale are at the Swale, Elmley and Blean Woods.

7.7.61 Marine Conservation Zones are a type of marine protected area, which exist alongside international and national designations to form an ecologically coherent network of marine protected areas. The Medway Estuary was designated a Marine Conservation Zone (MCZ) in 2013 and the Swale Estuary was designated as an MCZ in 2016.

Locally designated sites

7.7.62 Local Nature Reserves (LNRs) are managed by local authorities, often in partnership with other bodies, to maintain and enhance their special wildlife and geology and provide access to nature and education for local communities. Local Nature Reserves in Swale include those at Oare Marshes, the South Bank of the Swale, Seasalter Levels and Queendown Warren.

7.7.63 Local Wildlife Sites (LWSs) (formally known as Sites of Nature Conservation Interest (SNCI)) are identified by the Kent Nature Partnership which includes all Local Authorities, Kent County Council and a number of conservation organisations. The LWS network is administered and monitored by Kent Wildlife Trust on behalf of the partnership. Site selection takes into consideration the most important, distinctive and threatened species and habitats within a national, regional and local context, making the LWSs some of Kent's most valuable urban and rural wildlife areas. There are 36 LWSs within Swale. The majority of these sites contain habitats and species that are priorities under the county or UK Biodiversity Action Plans (BAP) and/or the Biodiversity Strategies.

7.7.64 There are currently 13 Roadside Nature Reserves in Swale. These have been identified through the Road Verge Project (a partnership between Kent County Council, Kent Highways and Kent Wildlife Trust) because they contain rare or threatened habitats or species. They are managed by the County Highways Department and monitored by the Kent Wildlife Trust.

Protected species

7.7.65 A series of international conventions, European directives and national laws protect species of animals and plants in the UK, notably the Wildlife and Countryside Act 1981, the Countryside and Rights of Way Act 2000 and the Conservation of Habitats and Species Regulations 2010. The status of species on development sites must be assessed through appropriate surveys undertaken to clarify constraints and requirements that could apply to development on these sites.

Landscape scale biodiversity networks

7.7.66 The NPPF urges local planning authorities to plan for biodiversity at a landscape-scale across local authority boundaries.^(7.73) This is important as it enables wildlife to move through the landscape and species to colonise new areas, increase their genetic diversity and adapt better to climate change. Designated sites contain the most valuable habitats and species but links between these sites and the wider countryside are also imperative as they enable larger areas of important Biodiversity Action Plan habitat to be restored and created as well as connect up fragmented habitats (seen 7.7.71 below on Biodiversity Opportunity Areas). Landscape scale biodiversity networks also secure natural habitat which can be accessed by the local community. Research has shown access to the natural environment increases mental and physical wellbeing.

7.7.67 The Council's Supplementary Planning Document Landscape Character and Biodiversity Appraisal (2011) includes an assessment of the current distribution of priority habitats, and identifies opportunities for linking these areas to form a more coherent, extended and enhanced biodiversity network to better cope with future environmental change.

7.7.68 Biodiversity 2020 is a national strategy for England's wildlife and ecosystem services. The strategy sets out the Government's ambition to halt overall loss of England's biodiversity by 2020, support healthy, well-functioning, ecosystems and establish coherent ecological networks, with more and better places for nature for the benefit of wildlife and people. It aims to deliver these outcomes through action in four areas: a more integrated large-scale approach to conservation on land and at sea; through putting people at the heart of biodiversity policy; through reducing environmental pressures; and improving our knowledge through better researching, monitoring and reporting.



Picture 7.7.2 Honey bee

7.7.69 The decline of pollinators is a global issue, but of importance to Swale given the reliance placed upon them by its fruit industry. The Council will support the [national strategy for pollinators](#) and look for opportunities through development proposals to enhance foraging habitat.

7.7.70 Biodiversity Action Plans (BAP), for key habitats and species within Swale, were prepared at the [national](#), Kent and local levels (see Statement 10). They covered both designated and non-designated sites and habitats and species populations outside these areas. Of these BAP habitats, Swale is particularly important for its mudflats, sandflats, wetlands and grazing marsh. The Swale Biodiversity Action Plan provides a basis for local action to conserve, protect and enhance the biodiversity of the Borough and focuses on a number of BAP habitats of importance to the Borough. The Kent Nature Partnership is now working towards

7 Development management policies

the Kent Biodiversity Strategy targets which supersede the BAPs, however, the BAP habitats remain relevant. The targets of the Kent Biodiversity Strategy are expressed spatially through the Biodiversity Opportunity Areas.

Statement 10

Biodiversity Action Plan habitats in Swale

UK Biodiversity Action Plan Habitats: Chalk grassland, acid grassland, neutral grassland, wood-pasture and parkland, vegetated shingle, maritime cliffs, reedbeds, arable field margins, coastal and floodplain grazing marsh, intertidal mudflats (littoral sediment), saltmarsh, ponds, traditional orchards and hedgerows.

Kent Biodiversity Action Plan Habitats: Ancient and/or species rich hedgerows, built-up areas and gardens, cereal field margins, coastal and floodplain grazing marsh, coastal saltmarsh, coastal vegetated shingle, standing open water, wet woodland, lowland calcareous grassland, maritime cliff and slope, mixed broadleaved woodland and plantations, lowland wood-pasture and parkland, mudflats, old orchards, reedbeds, and lowland meadow.

Swale Biodiversity Action Plan Habitats: Orchards, estuary habitats, woodlands, wildflower grassland, farmland, built-up areas and gardens.

For UK, Kent and Swale BAP species see the relevant websites for further details.

7.7.71 The Biodiversity Opportunity Areas (BOAs) maps are a spatial reflection of the [Kent Biodiversity Strategy](#). They show where the greatest gains can be made from habitat enhancement, restoration and recreation, as these areas offer the best opportunities for establishing large habitat areas and/or networks of wildlife habitats. As such, they are useful to local planning authorities in the development and delivery of green infrastructure and resilient ecological networks. The latest maps and statements were issued in August 2015. The BOAs encompass most of the designated sites and much of the BAP habitat in Kent and Medway as well as identifying connections between these habitats and sites. Biodiversity Opportunity Statements have been prepared to accompany each BOA, identifying specific targets and conservation priorities to ensure delivery of the BOAs and promote opportunities to implement the Kent Biodiversity Strategy. They indicate where the delivery of Biodiversity Action Plan targets should be focused to secure maximum benefits to biodiversity. Four Biodiversity Opportunity Areas are identified for Swale and are included in the Council's Green Infrastructure Strategy Picture 5.6.2

- Medway Gap and North Kent Downs;
- North Kent Marshes;
- Mid Kent Downs Wood and Scarp; and
- The Blean.

7.7.72 There are a number of resources available which applicants should use in developing their planning applications. These include:

- The ARCH Kent Habitat Survey 2012 presents new data on the extent of natural habitats in Kent, identifies areas of importance for wildlife and measures habitat changes since the Kent Habitat Survey of 2003. Other outputs of the ARCH project were a Planning Screening tool to establish whether planning applications require further ecological investigation, and a software tool which identifies where work should take place to re-connect fragmented habitats. An online data portal on the [ARCH website](#) gives access to the habitat data and enables queries by location or by habitat.
- The Kent Landscape Information System (K-LIS) is a web-based map system that sits alongside ARCH's data portal and aims to enable better informed decision-making by providing detailed information

on Kent's landscape and biodiversity. It contains details on countryside access, landscape character, opportunities for habitat creation and landscape restoration and the 2012 Kent habitat survey as well as areas designated for their conservation value.

- The [MAGIC website](#), managed by Natural England, provides authoritative geographic information about the natural environment from across government. Using an interactive map, it presents information on rural, urban, coastal and marine environments across Great Britain.

Local supplementary planning documents for biodiversity

7.7.73 The following adopted supplementary planning documents should also be taken into account when formulating development proposals:

- The Swale Landscape Character and Biodiversity Appraisal (2011) presents guidelines on a character area basis for improvements to biodiversity; and
- The [Kent Design Guide](#) specifically the appendix: Making it Happen – Landscaping and Biodiversity) is a Supplementary Planning Document adopted by the Council which demonstrates how developments can create features such as bird roosting/nesting places, aids to hibernation, green and brown roofs, habitats on railways, road and cycle path verges, connected hedgerows, wildlife underpasses and green bridges.

7.7.74 When submitting planning applications the Council will, as appropriate, require the submission of ecological assessment to determine the extent and importance of habitats and species present and to make recommendations for their avoidance, mitigation and, where appropriate, compensation.

Other initiatives

7.7.75 The [Medway Swale Estuary Partnership](#) is a not-for-profit organisation whose work is centred around the understanding, conservation and promotion of the estuary's natural and historical environments. It hosts the North Kent Catchment Improvement Group, which is developing catchment improvement plans for North Kent (estuarine and freshwater).

7.7.76 [Local Nature Partnerships](#) (LNPs) were set up through the Environment White Paper (2011). Their purpose is to drive strategic and positive change to the local natural environment to benefit nature, people and the economy. LNPs play a specific role in achieving the Government's environmental objectives locally, including identifying local ecological networks and in being local champions influencing local decision-making.

7.7.77 There are two LNPs relevant to Swale, the Thames Gateway Local Nature Partnership and the [Kent Local Nature Partnership](#).

7.7.78 The National Planning Policy Framework outlines that where [Nature Improvement Areas](#) are identified in Local Plans, planning policies should consider specifying the types of development that may be appropriate in these areas. Part of the [Greater Thames Marshes Nature Improvement Area](#) (NIA) falls within Swale. The Greater Thames Marshes NIA was a three year project which has now ended. However, future actions from the project are embedded within the objectives of the Thames Gateway Local Nature Partnership. Useful information is also available on the [NIA website](#), including development management advice for applications within the Nature Improvement Area.

Local Plan policy for biodiversity

7.7.79 Policy DM 28 seeks to reflect the relative weight to be applied to the range of international, national and local designations and irreplaceable habitats present within Swale with the aim of requiring development to include the conservation and enhancement of biodiversity. In line with national planning policy it looks for any harm from development to be avoided, mitigated or as a last resort, compensated for. The Council will consider whether to roll out [Biodiversity Offsetting](#) once national pilots are completed and assessed. If so, it will develop its approach via a technical guidance note. Planning permission will be granted where

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a primary objective is to conserve or enhance biodiversity and will promote net gains in biodiversity where possible. The policy requires developers to use relevant supplementary planning documents to support and encourage the incorporation of biodiversity in and around developments.

Policy DM 28

Biodiversity and geological conservation

Development proposals will conserve, enhance and extend biodiversity, provide for net gains in biodiversity where possible, minimise any adverse impacts and compensate where impacts cannot be mitigated.

Part A. For designated sites

Development proposals will give weight to the protection of the following designated sites for biodiversity, as shown on the [Proposals Map](#), which will be equal to the significance of their biodiversity/geological status, their contribution to wider ecological networks and the protection/recovery of priority species as follows:

1. Within internationally designated sites (including candidate sites), the highest level of protection will apply. The Council will ensure that plans and projects proceed only when in accordance with relevant Directives, Conventions and Regulations. When the proposed development will have an adverse effect on the integrity of a European site, planning permission will only be granted in exceptional circumstances, where there are no less ecologically damaging alternatives, there are imperative reasons of overriding public interest and damage can be fully compensated.
2. Within nationally designated sites (including candidate sites), development will only be permitted where it is not likely to have an adverse effect on the designated site or its interests (either individually or in combination with other developments) unless the benefits of the development at this site clearly outweigh both the impacts that it is likely to have on the features of the designated site that make it of national importance and any broader impacts on the national network of Sites of Special Scientific Interest. Where damage to a nationally designated site cannot be avoided or mitigated, compensatory measures will be sought. Development will also accord with and support the conservation objectives of any biodiversity site management plans;
3. Within locally designated sites (including draft published sites), development likely to have an adverse effect will be permitted only where the damage can be avoided or adequately mitigated or when its need outweighs the biodiversity interest of the site. Compensation will be sought for loss or damage to locally designated sites.

Part B: All Sites

Development proposals will:

1. Apply national planning policy in respect of the preservation, restoration and re-creation of:
 - a. the habitats, species and targets in UK and local Biodiversity Action Plans and Biodiversity Strategies;
 - b. linear and continuous landscape features or those acting as stepping-stones for biodiversity;
 - c. aged or veteran trees and irreplaceable habitat, including ancient woodland and traditional orchards;
2. Be informed by and further the guidelines and biodiversity network potential of the Council's Landscape Character and Biodiversity Assessment SPD;
3. Support, where appropriate, the vision and objectives of relevant environmental and biodiversity management and action plans;

4. Be accompanied by appropriate surveys undertaken to clarify constraints or requirements that may apply to development, especially where it is known or likely that development sites are used by species, and/or contain habitats, that are subject to UK or European law;
5. When significant harm cannot be avoided through consideration of alternative sites or adequate mitigation provided on-site or within the immediate locality, compensatory measures will be achieved within the relevant Biodiversity Opportunity Area, or other location as agreed by the Local Planning Authority;
6. Provide, where possible, a net gain of biodiversity overall; and
7. Actively promote the expansion of biodiversity within the design of new development and with reference to the wider natural assets and green infrastructure strategy in Policy CP7.

Woodlands, trees and hedges

7.7.80 The NPPF states that planning permission should be refused for development resulting in the loss or deterioration of irreplaceable habitats, including ancient woodland and the loss of aged or veteran trees found outside ancient woodland, unless the need for, and benefits of, the development in that location clearly outweigh the loss.^(7.74)

7.7.81 Trees, in particular ancient woodland and traditional orchards, are of high biodiversity value and can be irreplaceable. These habitats, along with scrub and fruit trees are also important to the local distinctiveness, visual amenity and biodiversity of Swale as well as contributing to a sense of wellbeing.

7.7.82 Ancient and replanted woodland in Swale stretches from the Blean and across the North Downs. Traditional orchards are found in the fruit belt of the Borough - which runs along the A2 corridor and stretches into the North Downs - as well as in isolated locations on the Isle of Sheppey. Scrub is often undervalued but is important as a habitat as well as a nursery for future woodland stocks. Many woodlands and old orchards in Kent are no longer used for timber/fruit products in a way that would otherwise ensure their positive long term management for flora and fauna. The Council is keen to support the innovative and sustainable use and management of woodlands for such activities as renewable energy, but also as a resource for education (e.g. forest/wild schools). Carefully planned appropriate development, the intended purpose of which is to further the sustainable management of woodland/old orchards, may be supported by the Council where in accordance with the Local Plan.

7.7.83 As well as the potential removal of woodland, development can threaten the sustainable management of woodland. This might be as a result of increased recreational pressures from new residents, the sub-division or lotting of woodland (or development associated with it), or the incorporation of woodland into residential curtilages. Such impacts will need to be assessed as part of a planning application and where the landscape and/or biodiversity interest of woodlands would be threatened, planning permission will be refused unless the benefits of development in that location clearly outweigh these concerns.

7 Development management policies



Picture 7.7.3 Beech woodland in the Kent Downs

7.7.84 Indigenous hedgerows are important for wildlife as they contain a variety of species, with some containing ancient stock, as well as contributing to the ecological network. They are also important in landscape terms as wildlife and historical features. Hedgerows should be retained and new lengths established where affected by new development.

7.7.85 [Planning Practice Guidance](#) gives advice on Tree Preservation Orders and trees in Conservation Areas. Where it can, the Council will make Tree Preservation or Hedgerow Protection Orders where trees and hedges make a positive contribution to local amenity. Any works to trees within a Conservation area or to trees covered by a Tree Preservation Order (TPO) require consent from the Borough Council. When development proposals are submitted that may affect trees, ancient woodland and hedgerows, the Council will require the submission of a tree survey in accordance with British Standards. Before permitting development proposals, the Council expects any existing trees or cover to have been protected as far as is reasonable. Where it is accepted that development necessitates their removal, the Council will normally require appropriate replacements to be planted. In the case of proposals affecting a tree subject to a

Preservation Order, the Council will only permit it if it is in the interest of good arboricultural practice or public safety. Again, in such cases, replacements will be required.

7.7.86 Planting woodland, trees and hedges in new development can be an essential means to integrate development into its context and enhance quality and character. They can also provide habitats, improve air quality, provide rainwater attenuation and shade – thereby playing an important role in adapting to climate change. New developments should set aside generous space for landscaping and this should be incorporated into applications. Landscaping should include native trees of local provenance (where ecologically appropriate) including [large tree species](#) where possible.

7.7.87 Supplementary Planning Guidance, [Planting on new Developments - A guide for Developers](#) and the Swale Landscape Character and Biodiversity Appraisal Supplementary Planning Document, 2011, are both useful resources and should be referred to by applicants when applying for planning permission. [The Trees and Design Action Group](#) have published useful guides including, [Trees in the Townscape](#), [The Canopy](#) and [No Trees, No Future](#), which demonstrate the opportunities and benefits of planting trees including in dense urban environments.

7.7.88 Policy DM 29 seeks to safeguard trees, woodlands, old orchard trees, and hedgerows as features, habitats, and areas to ensure that they continue to be an essential part of the environment. The Policy supports the establishment of new sites and addresses trees that may be protected by Tree Preservation Orders.

Policy DM 29

Woodlands, trees and hedges

The Borough Council will seek to ensure the protection, enhancement and sustainable management of woodlands, orchards trees and hedges. It will:

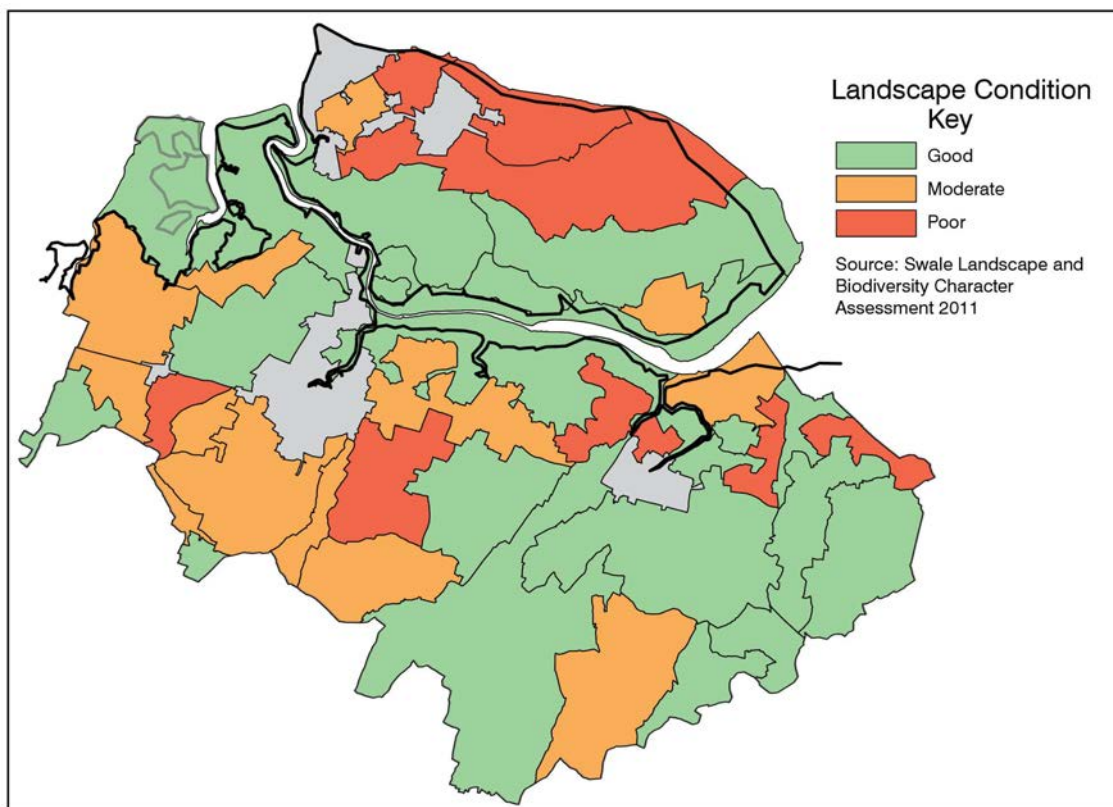
1. Support carefully planned appropriate development, the intended purpose of which is to further the sustainable management of woodland/old orchards;
2. Ensure that development proposals take all reasonable opportunities to provide for new woodland, orchard, tree and hedge planting at a sufficient scale (with provision made for appropriate long term management) to maintain and enhance the character of the locality and provide for an attractive living and working environment;
3. Use Tree Preservation and Hedgerow Protection Orders to safeguard species which have a significant impact on the local environment and its enjoyment by the public. Where removal of trees and hedgerows is unavoidable, the Borough Council will require appropriate replacements as a condition of a planning permission; and
4. Unless the need for, and benefits of development in a location clearly outweigh the adverse impacts, planning permission will be refused where there:
 1. is a loss or deterioration of irreplaceable habitats, including ancient woodland and aged or veteran trees; or
 2. would be an inability to secure the beneficial management of woodland, old orchards or hedges for their landscape, historic or biodiversity interest (including as a result of their sub-division/lotting or incorporation into a residential curtilage); or
 3. would be a loss of trees (including individual trees, old orchards, fruit trees, hedgerows and woodland scrub) that make an important contribution either to the amenity, historic, landscape, townscape or biodiversity value of the site and/or the surrounding area.

Enabling development for landscape and biodiversity enhancement

7.7.89 Nationally, biodiversity is in serious decline across a range of species and habitats. In rural areas, this decline is often associated with the condition of local landscapes. The National Planning Policy Framework, states that where the primary objective of a development proposal is to conserve or enhance biodiversity, it should be permitted.^(7.75)

7.7.90 In response to the England Biodiversity Strategy, the Kent Biodiversity Strategy identifies priorities and targets for action on habitats and species in Swale, whilst the Swale BAP focuses on habitats of importance to the Borough and targets landscapes for action. Like biodiversity, some parts of the landscape within Swale are also under pressure. The [Swale Landscape Character and Biodiversity Appraisal](#) (2011) found that of 42 identified character areas, the condition of nine were classed as poor, with a further thirteen as moderate.^(7.76) To target those areas where enhancements to biodiversity would be most effective, the Kent Wildlife Trust has identified a series of Biodiversity Opportunity Areas (BOAs) that are incorporated within the Council's Green Infrastructure Plan (Picture 5.6.2)

7 Development management policies



Map 7.7.2 Landscape condition in Swale 2011

7.7.91 Carefully planned development can bring biodiversity and landscape benefits that can contribute to the green infrastructure network. However, this is most likely to be focused within and at the urban edges, rather than areas in need in the wider countryside. This policy looks to facilitate enhancements more widely in a way that does not undermine Policy ST 3 and targets real and substantial benefits to areas identified as a priority for enhancement.

7.7.92 This policy is only likely to be applicable in a relatively small number of exceptional situations, normally involving development that is small in scale and substantial in benefit. The whole purpose of such proposals will be the substantial and disproportionate benefits to landscape and biodiversity that they will provide. These should be such that they decisively outweigh the impacts of potentially breaching other policies.

7.7.93 Development must be otherwise acceptable were it not for policies intended to protect the undeveloped character of the countryside. Central to the proposals will be landscape and biodiversity enhancements targeted at one of the Biodiversity Opportunity Areas and/or one of the areas whose landscape condition the Council has described as poor or moderate. Legally binding management proposals, with measurable and time-bound targets both aimed at meeting those in Biodiversity Action Plans and/or Biodiversity Strategies and supported by a recognised wildlife body would be expected. They will include measures to ensure implementation, management and review in perpetuity.



Picture 7.7.4 Landscape restoration at Victory Wood

7.7.94 The degree to which the benefits would be both substantial and disproportionate will be a key test and is likely to relate to the scale of the enhancement land in question relative to the development footprint. Other tests will relate to its potential contribution to meeting National, Kent and Swale BAP and/or Biodiversity Strategy priorities and targets for biodiversity, and the degree to which they can be maintained over time.

Policy DM 30

Enabling development for landscape and biodiversity enhancement

Exceptionally, enabling development will be permitted for proposals that contravene planning policies for the protection of the countryside, when it is:

1. Proposing an outstanding design, layout and landscaping scheme that benefits the condition of landscape and biodiversity both substantially and disproportionately;
2. Securing the long-term future and appropriate management of land within Biodiversity Opportunity Areas as identified by Policy CP 7 and/or landscapes in poor or moderate condition as identified by the Swale Landscape Character and Biodiversity Appraisal 2011;
3. Contributing significantly to targets identified in UK, Kent and Swale Biodiversity Action Plans and/or Biodiversity Strategies;
4. In the Kent Downs AONB, and is in accordance with its Management Plan and guidance;
5. In accordance with the objectives of any Nature Improvement Area or other relevant environmental management plan for the area;
6. Wholly necessary to resolve problems arising from the condition of the landscape and its biodiversity, rather than the circumstances of the present owner, the purchase price paid, or to make schemes viable;
7. Demonstrated that sufficient subsidy is not available from any other sources and that the amount of enabling development is the minimum necessary;
8. In locations that do not lead to dispersed development patterns and/or lengthy journeys to access jobs and services;
9. Demonstrated that after any dis-benefits have been minimised and mitigated, the overall landscape and biodiversity benefits of the proposals decisively and disproportionately outweigh harm to other public interests and policies;
10. Subject to legal monitoring and review arrangements intended to secure enhancements in perpetuity against agreed objectives and targets; and
11. Compliant with the criteria for biodiversity as set out in Policy DM 28.

Agricultural land

7.7.95 The National Planning Policy Framework states that local planning authorities should take into account the economic and other benefits of the best and most versatile agricultural land. Where it can be demonstrated as necessary, significant development of agricultural land can take place, but local planning authorities should seek to use areas of poorer quality land in preference to that of a higher quality.^(7.77)

7.7.96 Swale has a wide area of some of the highest quality of agricultural land in the UK (called best and most versatile). It is found within a broad belt running east-west around the A2. The area is one of the most productive agricultural areas in Kent due to the fine loam soils and favourable climatic conditions. Around 80% of Swale's land is classified as being suitable for agriculture (grades 1-5), with the Borough containing about 17% of Kent's grades 1 and 2 resource.^(7.78)

7 Development management policies

7.7.97 Agriculture continues to shape the nature and character of the countryside and Swale remains associated with a long history of fruit production. Agriculture shapes much of the diversity of the Borough's environmental resources too, including internationally important estuarine and coastal habitats in the North Kent Marshes, the central plain of orchards and arable land, the wooded clay outcrop of The Blean, and the southern woodlands and dry chalk valleys of the North Downs dip-slope.

7.7.98 Policy DM 31, in recognition of the importance of the agricultural sector to the Borough in terms of its identity and economy, looks to safeguard its most important resource – its soils, and in particular the proportion of best and most versatile land that is present here. This is defined as Grades 1, 2 and 3a, by the Department of Environment, Farming and Rural Affairs, and is recognised as a national resource for the future. This is further emphasised by national concerns over food security and food miles and therefore efforts should be made to protect its best and most versatile farmland whilst meeting other essential needs for jobs and new housing. The policy therefore aims to ensure that the presence of best and most versatile agricultural land on a site is a strong influence on whether development should be permitted. It is intended to ensure that it is only developed when there is an overriding need, and when other options have been examined first, having regard to other sustainability considerations.



Picture 7.7.5 Farmed landscape near Faversham

Policy DM 31

Agricultural land

Development on agricultural land will only be permitted when there is an overriding need that cannot be met on land within the built-up area boundaries. Development on best and most versatile agricultural land (specifically Grades 1, 2 and 3a) will not be permitted unless:

1. The site is allocated for development by the Local Plan; or
2. There is no alternative site on land of a lower grade than 3a or that use of land of a lower grade would significantly and demonstrably work against the achievement of sustainable development; and
3. The development will not result in the remainder of the agricultural holding becoming not viable or lead to likely accumulated and significant losses of high quality agricultural land.

7.8 Conserving and enhancing the historic environment

Development involving listed buildings

7.8.1 Listed buildings are a finite resource and are provided with special statutory protection and procedures requiring consent to alter them in a way that affects their character as a building of special architectural or historic interest. Policy CP 8 provides a general presumption in favour of the preservation of a listed building except where a convincing case can be made for alteration or, exceptionally, demolition. Applicants must prepare a heritage statement and a design statement for any proposals for listed building

consent, and to justify their proposals, demonstrating why works that would affect the character of a listed building are necessary or desirable. In all cases the policy seeks to safeguard the character and setting of listed buildings.

Extensions and alterations

7.8.2 Extensions and alterations should be sympathetic and not dominate the listed building in scale, material, or situation. Often a building's immediate setting is important to its character so gardens, yards, other spaces, and boundary details are of value in their own right. Proposals to allow car parking can also frequently be damaging to the setting of the building.

Changes of use

7.8.3 The best use for a listed building is usually the use for which it was originally designed, but the overriding consideration is securing the future upkeep and preservation of the building. Thus the Council supports necessary and appropriate changes in use. Particular attention will be paid to ensuring that the proposed use will not be harmful to the character of the building and its surroundings, including any alterations to the building associated with its change in use.

Policy DM 32

Development involving listed buildings

Development proposals, including any change of use, affecting a listed building, and/or its setting, will be permitted provided that:

1. The building's special architectural or historic interest, and its setting and any features of special architectural or historic interest which it possesses, are preserved, paying special attention to the:
 - a. design, including scale, materials, situation and detailing;
 - b. appropriateness of the proposed use of the building; and
 - c. desirability of removing unsightly or negative features or restoring or reinstating historic features.
2. The total or part demolition of a listed building is wholly exceptional, and will only be permitted provided convincing evidence has been submitted showing that:
 - a. All reasonable efforts have been made to sustain existing uses or viable new uses and have failed;
 - b. Preservation in charitable or community ownership is not possible or suitable; and
 - c. The cost of maintaining and repairing the building outweighs its importance and the value derived from its continued use.
3. If as a last resort, the Borough Council is prepared to consider the grant of a listed building consent for demolition, it may, in appropriate circumstances, consider whether the building could be re-erected elsewhere to an appropriate location. When re-location is not possible and demolition is permitted, arrangements will be required to allow access to the building prior to demolition to make a record of it and to allow for the salvaging of materials and features.

Development affecting a conservation area

7.8.4 [Conservation areas](#) are areas of special architectural or historic interest, the character, or appearance of which it is desirable to preserve or enhance. The character of conservation areas can be fragile, and

7 Development management policies

their distinctive quality and character can be damaged by new development, or by other more subtle means such as increased traffic, car parking, signs and noise, or piecemeal changes to doors and windows. They are not, though, areas where change will not occur. New development within, or adjacent to, a conservation area is expected to be both of an appropriate use, of a very high standard of design, and to respond positively to the grain of the historic area by preserving or enhancing the character or appearance of the place. Applicants must prepare a heritage statement and a design statement for any proposals in or adjoining a conservation area that will additionally assess the likely impact of their proposals on the significance of any heritage assets or their settings.

7.8.5 There are currently 28 conservation area appraisals prepared within Swale and these contain useful guidance for developers, householders and public bodies.

Spaces and settings

7.8.6 The spaces and settings around and between buildings, other features and conservation areas, together with views to and from the area, are frequently as important as the buildings and areas themselves. They should be protected from unsympathetic changes and, where possible, enhanced.

Non-listed buildings (Heritage Assets)

7.8.7 Many buildings and features in a conservation area are not listed as being of special architectural or historic interest. Nevertheless, they may make a valuable contribution to the character of a conservation area individually, or as part of a group. If so, their demolition is only permitted in exceptional circumstances. In so deciding, the Council will examine the cost of maintaining and repairing the building or feature in relation to its importance and the value derived from its use, the adequacy of efforts to continue the building in an acceptable use, and the merits of alternative proposals for the building. These must demonstrably preserve or enhance the area in a way that the former building did not. Fundamentally, consent will normally only be given for demolition when a detailed scheme for redevelopment has been agreed. Planning conditions or legal agreements will ensure that demolition does not take place without timely redevelopment.

Highway features

7.8.8 Bridges, retaining walls, signs, footpaths, kerb lines, and milestones are part of the Borough's history. Unsympathetic highway or traffic management works, including signage and alterations to traffic flows, can have adverse impacts. Those carrying out such works will ensure the protection of the character and setting of these features, together with conservation areas, historic buildings, and ancient monuments.

Policy DM 33

Development affecting a conservation area

Development (including changes of use and the demolition of unlisted buildings or other structures) within, affecting the setting of, or views into and out of a conservation area, will preserve or enhance all features that contribute positively to the area's special character or appearance. The Borough Council expects development proposals to:

1. Respond positively to its conservation area appraisals where these have been prepared;
2. Retain the layout, form of streets, spaces, means of enclosure and buildings, and pay special attention to the use of detail and materials, surfaces, landform, vegetation and land use;
3. Remove features that detract from the character of the area and reinstate those that would enhance it; and
4. Retain unlisted buildings or other structures that make, or could make, a positive contribution to the character or appearance of the area.

Scheduled Monuments and archaeological sites

7.8.9 The Borough is rich in archaeological sites. The Historic Environment Record (formerly known as the Sites and Monuments Record), is an extensive database relating to Kent's heritage, which Kent County Council maintain. Some nationally important sites and monuments are given legal protection by being placed on a list, or 'schedule'. English Heritage takes the lead in identifying sites in England which should be placed on the schedule by the Secretary of State for Culture, Media and Sport.

7.8.10 This Policy affords protection to these sites, together with other nationally important monuments or archaeological sites not scheduled.

7.8.11 The Policy also sets out the Council's approach to dealing with development proposals that may affect known, or potentially important, archaeological sites and maritime remains. The Council will consult with the County Archaeologist and, in certain cases, a developer may be required to supply information that will help the archaeological evaluation of the site. Where necessary, the Council will specify the standard of, and the methodology for obtaining, such information as will be needed for determining a planning application. In certain cases this may involve field evaluation.

7.8.12 The Council seeks to avoid harmful or physically destructive development on important archaeological sites, and there is a preference for the preservation of important remains in situ. Where this is not possible, and the Council considers that the case for the development is such that important remains would be damaged or destroyed, appropriate archaeological investigation and recording will take place with publication of the results. Planning conditions, or in appropriate circumstances, legal agreements, will be used as required.

7.8.13 Within the central areas of Faversham, Sheerness, Sittingbourne, Queenborough and Milton Regis, the 'Kent Historic Towns Survey' and the County Council Supplementary Planning Guidance on urban area archaeology will provide a more detailed interpretation of Policy DM 34.

Policy DM 34

Scheduled Monuments and archaeological sites

1. Development will not be permitted which would adversely affect a Scheduled Monument, and/or its setting, as shown on the [Proposals Map](#), or subsequently designated, or any other monument or archaeological site demonstrated as being of equivalent significance to scheduled monuments. Development that may affect the significance of a non-designated heritage asset of less than national significance will require a balanced judgement having regard to the scale of any harm or loss and the significance of the heritage asset.
2. Whether they are currently known, or discovered during the Plan period, there will be a preference to preserve important archaeological sites in-situ and to protect their settings. Development that does not achieve acceptable mitigation of adverse archaeological effects will not be permitted.
3. Where development is permitted and preservation in-situ is not justified, the applicant will be required to ensure that provision will be made for archaeological excavation and recording, in advance of and/or during development, including the necessary post-excavation study and assessment along with the appropriate deposition of any artefacts in an archaeological archive or museum to be approved by the Borough Council.

Historic parks and gardens

7.8.14 Historic Parks and Gardens are a fragile and finite resource which can easily be damaged beyond repair or lost forever. From town gardens and public parks to the great country estates, such places are an important, distinctive, and much cherished part of our inheritance and we have a duty to care for them.

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In order to identify those sites which are of particular historic importance, English Heritage is enabled by government to compile the 'Register of Parks and Gardens of special historic interest in England'. Inclusion in the Register recognises that the site is of national importance. They comprise a variety of features including open space, flora, water features, archaeological remains and buildings.

7.8.15 Inclusion on the Register is a 'material consideration' in the planning process, meaning that planning authorities must consider the impact of any proposed development on the landscapes' special character.

Policy DM 35

Historic parks and gardens

1. The Borough Council will seek to protect registered Historic Parks and Gardens, as shown on the [Proposals Map](#), or which are registered during the Plan period.
2. Development that would adversely affect the landscape character, layout and features of a Historic Park and Garden, or its setting, will not be permitted.
3. Development that would adversely affect a non-Registered Historic Park or Garden will only be permitted where the loss of significance is unavoidable.

Area of high townscape value

7.8.16 Outside the designated conservation areas, parts of the Borough may become of sufficient value in the future to be worthy of conservation area designation. Within the urban areas, such areas may, in the meantime, be subject to development pressures and other change. To the south of Sittingbourne town centre areas of Victorian and Edwardian housing, parks cemeteries, trees and open spaces mark an important period in the town's post industrial expansion and many of its street trees are a poignant reminder of the town's marking of The Great War. These characteristics are recognised by its identification as an Area of High Townscape Value. The Council's objectives in this area are to encourage a high standard of design of new development, the retention and reinstatement of original features and the preservation of the spaces between buildings, landscaping and parks, alongside the retention and expansion of its street trees.

Policy DM 36

Area of high townscape value

Within and adjacent to the Area of High Townscape Value, as defined on the [Proposals Map](#), the Borough Council will not grant planning permission for development proposals unless they provide for the conservation or enhancement of the local historic and architectural character, together with its greenspaces, landscaping and trees.

End Notes

- 7.1 National Planning Policy Framework 2012. CLG. Para. 23
- 7.2 National Planning Policy Framework 2012. CLG. Para. 28
- 7.3 The Future of Farming in Kent and Planning Matters of concern for farmers 2009. NFU
- 7.4 Swale Borough Council monitoring and GIS data
- 7.5 Calculated from statistics from the British Holiday & Home Parks Association
- 7.6 British Holiday & Home Parks Association
- 7.7 Swale Landscape Character and Biodiversity Assessment 2011. Landscapes on north Sheppey coast generally classed as being in poor condition e.g. Character Area 13
- 7.8 National Planning Policy Framework. CLG 2013. Paras 29-41
- 7.9 National Planning Policy Framework. CLG 2013. Para. 32
- 7.10 End note DfT para. 9-10
- 7.11 The Strategic Road Network and Delivery of Sustainable Development Annex B
- 7.12 Extant vehicle parking standards comprise: Kent County Council Residential Parking, Interim Guidance Note 3: and Kent County Council SPG4: Non Residential Parking
- 7.13 Laying the Foundations. Her Majesty's Government. Para. 78
- 7.14 National Planning Policy Framework 2012. CLG. Para 54
- 7.15 National Planning Policy Framework 2012. CLG. Para 55
- 7.16 Housing Strategy 2010-2015. SBC. Page 4
- 7.17 National Planning Policy Framework 2012. CLG. Para 55
- 7.18 National Planning Policy Framework 2012. CLG. Para. 56
- 7.19 National Planning Policy Framework 2012. CLG. Para. 67
- 7.20 National Planning Policy Framework 2012. CLG. Para. 73
- 7.21 National Planning Policy Framework 2012. CLG. Para. 74
- 7.22 National Planning Policy Framework 2012. CLG. Para. 76
- 7.23 National Planning Policy Framework 2012. CLG. Paras. 93-94
- 7.24 National Planning Policy Framework 2012. CLG. Para. 95
- 7.25 National Planning Policy Framework 2012. CLG. Para 96
- 7.26 Planning Practice Guidance, Climate Change and Design
- 7.27 HM Treasury, Fixing the Foundations: Creating a More Prosperous Nation, July 2015.
- 7.28 AECOM, Nov 2011, Swale Renewable Energy & Sustainable Development Study, for SBC
- 7.29 English Heritage, Climate Change and the Historic Environment, 2008
- 7.30 Environment Agency Water Conservation publications
- 7.31 www.sustainablebuild.co.uk/ReducingManagingWaste.html
- 7.32 National Planning Policy Framework 2012. CLG. Para 97
- 7.33 HM Government, Climate Change Act, 2008 1 (1), HM Government, Climate Change Act, 2008 (2020 Target, Credit Limit Definitions) Order 2009 and HM Government, UK Low Carbon Transition Plan
- 7.34 Directive 2009/28/EC of the European Parliament and of the Council of 23 April 2009 on the promotion of the use of energy from renewable sources
- 7.35 March 2010, Creative Environmental Networks and Swale Renewable Energy & Sustainable Development Study Nov 2011 AECOM for Swale Borough Council
- 7.36 Kent Downs Area of Outstanding Natural Beauty, Renewable Energy Position Statement, Updated 2011
- 7.37 AECOM, Swale Renewable Energy & Sustainable Development Study, Nov 2011. Page vi
- 7.38 Natural England Technical Information Noted TIN101, 2011
- 7.39 The National Planning Policy Framework 2012. CLG. Para 94
- 7.40 The National Planning Policy Framework 2012. CLG. Para 109
- 7.41 The National Planning Policy Framework 2012. CLG. Para 99
- 7.42 The National Planning Policy Framework 2012. CLG. Para 102
- 7.43 Environment Agency, River Basin Management Plan, Thames Region Basin District, 2015.
- 7.44 Tony Fullwood Associates, Faversham Creek, AAP: Developing proposals and future planning policy options to deliver regeneration of the Creek area, October 2010
- 7.45 Environment Agency, River Basin Management Plan, Thames Region Basin District 2015.

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- 7.46 Water stressed areas: final classification, 2013 Environment Agency
- 7.47 Planning Practice Guidance, Housing: optional technical standards
- 7.48 Environment Agency Water Conservation publications
- 7.49 The National Planning Policy Framework 2012. CLG. Para 114
- 7.50 The National Planning Policy Framework 2012. CLG. Para 105
- 7.51 The National Planning Policy Framework 2012. CLG. Para 106
- 7.52 The National Planning Policy Framework 2012. CLG. Para 106 and Glossary
- 7.53 Technical Guidance to the National Planning Policy Framework
- 7.54 Defined as land between the low water mark and the 50 year indicative erosion line.
- 7.55 Defined as land between the 50 year indicative erosion line and the 100 year indicative erosion line.
- 7.56 The National Planning Policy Framework 2012. CLG. Para. 17
- 7.57 The National Planning Policy Framework 2012. CLG. Para. 17
- 7.58 The National Planning Policy Framework 2012. CLG. Para. 113
- 7.59 The National Planning Policy Framework 2012. CLG. Para. 113
- 7.60 The National Planning Policy Framework 2012. CLG. Para. 115
- 7.61 Swale Landscape Assessment Recommended Amendments to Landscape Designations 2008. Babbie Group for SBC
- 7.62 Swale Landscape Assessment Recommended Amendments to Landscape Designations 2008. Babbie Group for SBC
- 7.63 The National Planning Policy Framework 2012. CLG. Para. 123
- 7.64 The National Planning Policy Framework 2012. CLG. Para. 125
- 7.65 <https://www.gov.uk/government/publications/landscape-character-assessments-identify-and-describe-landscape-types>
- 7.66 Swale Urban Extension Landscape Capacity Study 2010. Jacobs for SBC
- 7.67 National Planning Policy Framework 2012. CLG. Paras. 17 and 109
- 7.68 National Planning Policy Framework. CLG. Para. 113
- 7.69 National Planning Policy Framework. CLG. Para. 118
- 7.70 The National Planning Policy Framework 2012. CLG. Para. 114
- 7.71 National Planning Policy Framework 2012, Para 118
- 7.72 This is likely to be for sites within 6 km of an access point onto the designated habitat
- 7.73 National Planning Policy Framework 2012. CLG. Para. 117
- 7.74 National Planning Policy Framework 2012. CLG. Para. 118
- 7.75 National Planning Policy Framework 2012. CLG. Para. 118
- 7.76 Swale Landscape Character and Biodiversity Appraisal 2011
- 7.77 National Planning Policy Framework 2012. CLG. Para. 112
- 7.78 Natural England website accessed January 2013

8 Implementation and delivery plan and monitoring arrangements

8.1 The implementation and delivery plan

Introduction

8.1.1 This chapter sets out our implementation and delivery plan. It provides our approach toward ensuring that the strategy of the Local Plan is delivered, what the risks to it are and how they will be minimised. It also ensures the co-ordination and delivery of the necessary infrastructure. This feeds into our implementation and delivery schedule which we have provided in a separately published document. We have also provided a monitoring framework which provides those indicators we intend to use to measure the success or otherwise of key policies in the Local Plan.

The implementation and delivery plan

8.1.2 The Local Plan implementation and delivery plan (IDP) sets out the main actions needed to achieve the Local Plan's aims and objectives. It assesses the most important of the relationships between the policies and proposals, examining who does what, recognising the key role of the Council as planning authority as well as an implementation agency in its own right. This will involve strong working and robust actions with the Council's full range of partners to deliver the levels of growth envisaged. Key milestones are identified which will be subject to monitoring by the Council and its partners to trigger intervention if required.

8.1.3 The IDP:

- sets out the delivery framework within which the strategy of the Local Plan will be delivered, including the main activities and time-frames to achieve the plan's aim and objectives;
- covers the delivery mechanisms that will be used for the implementation of proposals to ensure the delivery of the Local Plan's aims and objectives;
- identifies a delivery programme and critical path for proposals, a sequence of events in which proposals must occur for Swale to function and grow, including key housing, employment and supporting infrastructure projects;
- identifies the infrastructure priorities for the first five years of the Local Plan;
- outlines the key risks involved in the delivery of the Local Plan and the actions that will be undertaken to mitigate these risks plus contingencies which might be employed if required; and
- details the programme management, monitoring and review processes that will be used by the Council, including the use of key indicators, time scales and milestones that will be managed by the Council's Annual Monitoring Report.

8.1.4 A separate [implementation and delivery schedule](#) (IDS) is published alongside the Local Plan which sets out the key pieces of infrastructure that will be required, including who the responsible parties are for their delivery, their indicative costs and funding sources (as far as we are able), and when we expect to be able to bring the infrastructure forward. This will be updated annually as part of the Council's Annual Monitoring Report. The IDS will be used as the basis to justify the Council's future proposed Community Infrastructure Levy schedule (CIL). At this stage, the IDS does not definitively specify those matters likely to be funded by CIL, Section 106 agreement or Section 278 agreement (Highways contributions). However, the Council is pursuing preparation of a CIL Charging Schedule and preparation of a Regulation 123 list, which will specify those matters expected to be funded from CIL contributions.

Delivery mechanism and priorities

8.1.5 The IDP has been developed to demonstrate how planning objectives can be delivered by showing how public policy, and particularly planning policy, can shape development implementation through:

- developing and creating new partnerships to work to a single agenda and planning policy frameworks;

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- ensuring that partnerships assist the Council in securing major infrastructure investment, both public and private, for the implementation of key strategic development sites;
- ensuring a supply of land is readily available for development, and where necessary, the Council using its powers, including site acquisition, to ensure this land can come forward; and
- ensuring planning procedures assist in the timely and efficient delivery of development and the establishment of specific arrangements to work on the most complex strategic development sites.

8.1.6 The Council will take a business planning perspective on achieving growth. This will entail understanding how and when key infrastructure proposals will be paid for and by whom. The Council will continue to seek to secure public sector infrastructure funding through, for example, lobbying and bidding through the Local Economic Partnership. However, this will be within the context of a time of considerable constraint on the public sector purse and development viability in Swale.

8.1.7 Whilst every opportunity will be taken to bid for appropriate funding and to co-ordinate investment plans of public and private bodies, public funding will not be available to meet all infrastructure requirements. Through its evidence prepared to justify the imposition of its Community Infrastructure Levy, the Council will show a shortfall in funding, notably because of the need for and overall cost of a new through-school for Sittingbourne. However, the Council will also continue to pursue the use of Section 106 and 278 agreements to secure appropriate developer contributions. These mechanisms will be subject to viability concerns in the early years of the Local Plan, affecting the amount of CIL that can be charged and the priorities for the use of S106 monies. In the short term, the Council's priorities for developer contributions from all sources will be transport, education, health and social care.

8.1.8 S106 agreements will not be able to be used in support of those projects identified by the Regulation 123 List, whilst for projects outside of the List, S106 agreements are subject to a pooling restriction by which only five such agreements may be used to fund a single item. S106 agreements will continue to be used by the Council to address site specific developer contribution issues and are most likely to include open space provision, more localised or site specific transport issues and contributions to NHS and County Council infrastructure requirements.

8.1.9 In the case of major highway projects, such as the proposed improvements to the Grovehurst Interchange on the A249, the primary funding mechanisms will be the use of S278 of The Highways Act 1980, which are not subject to the same restrictions as S106 agreements. In addition, the Council and its partners will also utilise bids for funding from such initiatives as the Local Growth Fund operated by the SE Local Enterprise Partnership.

8.1.10 Sitting outside of both the CIL and S106 mechanisms, are the tariff payments required to demonstrate compliance with the Habitats Directive. These are used where potential likely significant effects are identified, particularly as a result of recreational pressures on Special Protection Areas/Ramsar sites, and the tariff payment is applied to deal with the mitigation of impacts off-site. As this enables the development to comply with European Law, these payments are not classed as developer contributions for infrastructure or subject to the restrictions affecting CIL and S106; neither are they taken into account for purposes of assessing the viability of development. Currently the most convenient mechanism for paying this tariff are S106 agreements.

8.1.11 The Council cannot implement the Local Plan strategy alone. It will work with public, private and voluntary sector agencies to draw together resources and priorities to deliver growth. This may include the need to identify alternative and creative funding sources for infrastructure provision. The Council has established strong partnerships, which have assisted in the process of producing the Local Plan and its supporting evidence base. It will continue to strengthen these arrangements.

8.1.12 The Council proposes to develop a number of existing mechanisms to assist delivery of Local Plan objectives, with particular focus on key sites and infrastructure. These include:

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- Major Sites and Infrastructure Group: The Borough and County Councils meet quarterly to discuss the progress on major sites and their support with County services and any joint funding bids. The Council is to request that NHS England join this grouping.
- North Kent Environmental Planning Group: Will continue to operate to ensure that developer contributions are steered toward implementation of the management measures in accordance with the Thames, Medway and Swale Estuaries Strategic Access and Monitoring Strategy 2014.
- Development Partnership for Sittingbourne town centre regeneration: Will continue to meet monthly to review progress and ensure co-ordination between development and infrastructure providers.
- Queenborough and Rushenden Steering Group: Will continue to meet quarterly to review progress with the Homes and Communities Agency and Kent County Council to ensure co-ordination between development and infrastructure providers. A separate sub-group will continue to monitor the spending of developer contributions within the regeneration area.
- Swale Development Team: Meets regularly to discuss at an early stage pending and active planning applications and presents an opportunity for infrastructure providers to give input into infrastructure needs.
- Swale Design Panel: Meets to consider major development proposals at an early stage so as to provide developers with design advice and commentary which can be taken forward into planning applications.

8.1.13 To narrow the likely funding gaps, the Council will work with its partners to secure funding for its infrastructure priorities from a number of potential sources. Currently, these include:

- Kent County Council's Local Transport Plan: Provides the overall framework and basis for bids for transport funding of major projects.
- Kent & Medway's Growth & Infrastructure Framework: Likely to provide the overall framework and basis for bids for funding for all infrastructure priorities, whilst exploring the capacity for cross-boundary co-operation on strategic infrastructure.
- Local Growth Fund: The Government fund for the bidding of major and local infrastructure projects. In the case of the large local major schemes element, funding will be allocated via Local Enterprise Partnerships.

Public Sector Intervention

8.1.14 To deliver the Local Plan, the Council may be required to intervene to ensure that key proposals come forward. Examples of this will include:

- promoting development opportunities through effective marketing and promotion;
- developing closer working arrangements between public sector organisations and with the private sector;
- developing and implementing strategies to tackle particular issues, such as affordable housing, transport and Gypsy and Traveller issues;
- aligning priorities and using existing public sector funding to meet common objectives;
- preparing Supplementary Planning Documents (SPDs) and Masterplans to investigate and identify the issues of developing a particular site and provide a clear and more detailed level of planning policy guidance on how they should be resolved. This also enables local communities to be more involved and prepares the way for the submission of a planning application;
- buying land by agreement in order to make it available for development or compulsorily purchase it when agreement is not possible;
- preparing land for development e.g. removing contamination or providing new infrastructure;
- securing public sector funding as 'enabling development';
- entering into development partnerships with the private sector and/or other public bodies to implement key development proposals; and
- carrying out development directly or with partners.

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Phasing, milestones and contingencies

8.1.15 There is a relationship between the different types of development proposed in the Local Plan and the provision of infrastructure. More specifically, there is a relationship between job creation, new homes, labour supply, town centre improvements and infrastructure. Table 8.1.1 illustrates the relationships between development and infrastructure, whilst Table 8.1.2 indicated infrastructure critical for the first five years of the plan following its 2018 adoption. Establishing the actual relationships and the timings for both development and infrastructure is challenging and both tables should therefore be regarded as a 'snapshot' in time.

Local Plan Milestones		
Phase	Progress of major development	Progress of infrastructure
Phase 1 - 2014-18/19	- Sittingbourne town centre - commencement of retail and leisure phases and commencement of new housing, cultural and civic facilities and improvements to public realm. - New retail provision on west Sheppey complete. Employment sites commence at Eurolink V, land north of Swale Way, south of Kemsley Mill and industrial development at Neatscourt. - Planning permissions in place for regeneration at Queenborough and Rushenden to the west of Rushenden Road and at Istil. - Planning permissions in place for NW and SW Sittingbourne, Crown Quay Lane, High Street Newington and Iwade expansion. - Development commences at Milton Pipes and Stones Farm, Sittingbourne - Planning permission(s) in place for land west of Barton Hill Drive, Minster. - Planning permission(s) in place at Preston Fields, Faversham. - Development commencements at Western Link, Oare gravel workings, Perry Court Farm and land east of Love Lane allocations at Faversham. - Housing completions on outstanding planning permissions on-going. - Employment provision completed at Lady Dane Farm and commenced at Perry Court Farm, Faversham.	- Place in national roads programme major improvement for junction 5 of the M2. - Minor interim transport improvement at junctions 5 and 7 of M2 commenced. - Key Street/A249 junction improvement commenced. - Commencement of phase I of A2500 Lower Road improvements. - Junction enhancements to Love Lane/A2, A2/A251 and A2/Brogdale Road Faversham completed. - Cycle and pedestrian link Western Link to Lower Road Faversham commenced. - Enhancements to create public space and public transport interchange at Sittingbourne station commenced. - Quality Bus Partnership for Swale in place. - Expansion of Bysing Wood Primary School commenced. - Expansion of Faversham library commenced. - Finalisation of developer contributions approach across North Kent to secure implementation of the management measures in accordance with the Thames, Medway and Swale Estuaries Strategic Access and Monitoring Strategy 2014. - Extension to Milton Creek country park commenced.
Phase 2 - 2019-23/24	- Main housing development phases with significant completions at: - Central Sittingbourne. - Queenborough and Rushenden.	- Commencement (subject to review) of adult education and/or university technical college in Sittingbourne town centre. - Land reservations secured, with potential commencement of improvements to remaining A249

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Local Plan Milestones		
	- NW Sittingbourne. - SW Sittingbourne. - Crown Quay Lane, Sittingbourne. - Stones Farm, Sittingbourne. - Barton Hill Drive, Minster. - Perry Court Farm, Faversham. - Preston Fields, Faversham. - Oare gravel workings, Faversham. - Frognal Lane and Station Road, Teynham. - Iwade expansion. - Newington High Street. - Completion of housing sites at: - Milton Pipes, Sittingbourne. - Western Link, Faversham. - Employment sites completed at Eurolink V, south of Kemsley Mill, Neatscourt and Ridham and Kemsley.	junctions west of Sittingbourne, notably interim improvements to Grovehurst Interchange. - Completion of phase 1 of improvements to A2500 Lower Road, Minster, together with commencement of phase 2. - Improvements to junction of Station Street/A2 Teynham completed and new access to Frognal Lane west of Teynham established. - New access A2 east of Faversham for second phase of employment development at Lady Dane Farm commenced. - Residents parking in Station street and Barrow Green, Teynham completed. - Access improvements to Sheerness, Queenborough and Kemsley rail stations commenced. - On-going implementation of Quality Bus Partnership initiatives. - Primary school provision commenced/completed at Warden Bay (expansion), Murston (expansion), Regis Manor (expansion), Queenborough and Rushenden (new) and SW Sittingbourne (new). - Commencement of new primary school at NW Sittingbourne (phase 1 of through-school). - Youth services provided at Faversham (Bysing Wood and St. Mary's), Sittingbourne (New House) and Isle of Sheppey (Sheerness, Minster and Leysdown). - Expanded GP provision commenced/complete at east Sheppey (consolidation), The Bell Centre, Sittingbourne (new or alternative option), Grovehurst (extension), The Meads (extension), Sheppey Community Hospital (extension), Queenborough (extension) Iwade (extension), Teynham (extension or new), Newton Place or Faversham Health Centre (extension). - Implementation of management measures within and around the SPA in accordance with the Thames, Medway and Swale Estuaries Strategic Access and Monitoring Strategy 2014. - Strategic open space completed at NW Sittingbourne and Iwade. - Strategic open space between Sittingbourne and Bapchild (as part of Stones Farm allocation) complete. - Implementation of ecological management plan at Oare gravel workings commencing. - Completion of new pavilion at Frognal Lane, Teynham. - Additional capacity in swimming pool provision completed as part of review of leisure centre provision. - Additional burial space on Sheppey provided. - Townscape and streetscape enhancement schemes in town centres commenced.
Phase 3 - 2024-28/29	Central Sittingbourne regeneration continues with focus on new housing offer.	- Improvements to J5 of the M2 completed. - Commencement of new secondary school at NW Sittingbourne (phase 2).

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Local Plan Milestones		
	- On going housing completions at: - Queenborough and Rushenden. - NW and SW Sittingbourne. - Crown Quay Lane, Sittingbourne. - Stones Farm, Sittingbourne. - Barton Hill Drive, Minster. - Iwade expansion. - Housing developments completed at: - Preston Fields, Faversham. - Perry Court Farm, Faversham. - Oare gravel workings, Faversham. - Frogna Lane, Teynham. - Newington High Street. - Outstanding large site planning permissions completed.	- Funding secured and commencement of major improvements at Grovehurst A249 junction (subject to further investigation). - Cycle and pedestrian link to Parsonage Chase completed. - On-going implementation of Quality Bus Partnership initiatives. - New civic building completed within Sittingbourne town centre. - On-going implementation of the management measures in accordance with the Thames, Medway and Swale Estuaries Strategic Access and Monitoring Strategy 2014. - New primary school complete at Faversham. - Early Help Centre complete at Faversham (Lady Dane Farm proposed primary school). - Provision of open space and footbridge across Milton Creek (as part of Crown Quay Lane and Milton Pipes allocations). - New primary school expansion complete at Teynham. - Expanded GP provision commenced/complete at Milton Regis (reconfiguration), Memorial medical centre (reconfiguration) and London Road surgery (reconfiguration). - Habitat/landscape restoration initiative commenced.
Phase 4 - 2029-31 (onwards)	- Housing developments complete at: - Queenborough and Rushenden. - NW Sittingbourne (beyond plan period). - SW Sittingbourne. - Crown Quay Lane, Sittingbourne. - Stones Farm, Sittingbourne. - Barton Hill Drive, Minster. - Iwade expansion.	- On-going implementation of the management measures in accordance with the Thames, Medway and Swale Estuaries Strategic Access and Monitoring Strategy 2014. - Commencement of phase 3 NW Sittingbourne secondary school. - On-going implementation of Quality Bus Partnership initiatives. - Investment in water resources by the water companies.

Table 8.1.1

8.1.16 A change in the delivery of one or more of the Key Local Plan Milestones milestones may reflect matters which the Council will need to respond to. For example, in the case of housing, other sites may need to be brought forward, but a wider persistent and widespread structural problem either with a site or sites or in the wider economy may be clear signals of a need to review the Local Plan.

Infrastructure delivery for the five year period following adoption of the Local Plan

8.1.17 Based on adoption of the Local Plan in 2017/18, Table 8.1.2 is intended to illustrate the most important infrastructure needing to be in place during that period the immediate five years to 2021/22. Readers should refer to the Council's separately published implementation and delivery schedule which will be regularly updated.

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Infrastructure project	Commentary
Quality Bus Partnership improvements (bus priority and punctuality improvements).	Already in place.
Interim transport improvement at Junctions 5 and 7 of M2 at Stockbury and Brenley Corner.	Monies already secured through planning permissions.
Land reserved for junction improvements at A249/Grovehurst Road junction.	Improvement not triggered within 5-year period, however, land is likely to be reserved as part of planning permissions on allocations at NW Sittingbourne and at Iwade.
Completion of A2/A249 Key Street, Sittingbourne junction improvement.	On-going monies being secured through S106/S278 from planning permissions.
Completion of phase 1 A2500 Lower Road improvement, Minster, Isle of Sheppey.	To be secured by Local Growth Fund award and S106 from pending sites and allocations.
Completion of 'Station Square', Sittingbourne, public space enhancements.	Award of funding by South East Local Enterprise Partnership and as a result of regeneration of town centre.
Completion of junction improvement at Love Lane/A2 Faversham.	To be secured by development of Lady Dane Farm allocation.
Completion of junction improvement A251/A2, Brogdale Road, Faversham.	To be secured by development of Perry Court Farm allocation.
Completion of cycle pedestrian link Western Link to Lower Road, Faversham.	To be secured by development of Western Link allocation.
Completion of Bysing Wood Primary School expansion, Faversham.	To be secured by S106 contributions.
Commencement of new primary school, Queenborough and Rushenden.	To be secured by KCC, HCA and S106 contributions.
Commencement of new primary school SW Sittingbourne.	To be secured from S106 agreement from allocation at SW Sittingbourne.
Completion of Warden Bay Primary School expansion, Warden.	To be secured by S106 contributions.
Completion of Faversham library expansion.	To be secured by S106 contributions.
Completions of adaptations at Faversham, Minster and Leysdown Children's Centres.	To be secured by S106 contributions.
Commencement of refurbishment at New House Centre, Sittingbourne.	To be secured by S106 contributions.
Completion of consolidation of surgeries on east Sheppey.	To be secured by S106 contributions and CCG forward funding.
Commencement of extension to Milton Creek Countrypark.	Secured by development of land south of Kemsley Mill.
Completion of junction improvement, A2/Station Street, Teynham.	Secured by development of land at Station Road, Teynham.
Completion of new roundabout west of Teynham for access to Frogmal Lane site.	Secured by development of land at Frogmal Lane, Teynham.

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Infrastructure project	Commentary
Completion of residents parking at Station Road and Barrow Green, Teynham.	Secured by development of land at Station Road and Barrow Green Farm, Teynham.
Begin implementation of rail access improvements at Kemsley, Queenborough and Sheerness.	To be secured by S106 contributions.
Completion of primary school at Queenborough and Rushenden.	Secured by KCC and development of Queenborough and Rushenden regeneration area.
Completion of refurbishment Sittingbourne library.	To be secured by S106 agreements.
Completion of community, learning and skills classrooms at Sittingbourne and Sheppey.	To be secured by S106 agreements.
Commencement of improvements to youth and children's centres at Sittingbourne, Minster and Leysdown, together with enhancements to outdoor education across the Borough.	To be secured by S106 agreements and CIL.
Completion of Bell Centre Health Centre, Sittingbourne.	To be secured by Swale CCG and from S106 agreements.
Commencement of surgery expansion, Iwade.	To be secured by Swale CCG and from S106 agreements.
Completion expansion of surgery, Faversham.	To be secured by Canterbury and Coastal CCG and from S106 agreements.
Commencement of increased swimming pool capacity.	To be confirmed as part of future leisure review and to be provided as part of re-provision of leisure centre facilities for Sittingbourne and Sheppey. Likely to be secured by CIL.
Site secured for Sheppey burial space.	To be secured by CIL.
Commencement of urban greening project - street trees, Sittingbourne.	Likely to be secured by CIL and from relevant development sites.
Establishment of townscape environmental enhancement grants – town centres.	Supporting local plan objectives. Likely to be secured by CIL.
Securing tariff/CIL mechanism for implementation of the management measures in accordance with the Thames, Medway and Swale Estuaries Strategic Access and Monitoring Strategy 2014.	On site provision being made on site as appropriate and via on-going tariff for off-site mitigation.

Table 8.1.2 Infrastructure necessary to deliver the Local Plan planned growth for 2017/18-2021/22

8.1.18 Accepting that there are inevitable uncertainties associated with both the delivery of development and infrastructure, the Council believes that the five year period from adoption of the development strategy, 2017-22, is deliverable despite the current poor market viability of a significant part of the Borough, without the need for major items of strategic infrastructure to be provided in full. It does however, present the starting point for a number of infrastructure projects that need to support the main phase of growth in the Local Plan period post 2022. These include, in particular, the infrastructure associated with growth at NW and SW Sittingbourne and Iwade. Beyond this point, deliverability will be much less certain, particularly if poor viability persists. Proposals to manage these risks are outlined in paragraph 8.1.20 onwards.

Longer term development opportunities

8.1.19 Policies Regen 3 and 4 identify the broad potential that may be present at the Port of Sheerness and Kent Science Park in Sittingbourne. The amount of and location of development that could arise from

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these longer term proposals do not form part of the Local Plan, however, progress in bringing forward the evidence to secure regeneration at these locations will be monitored and, if necessary, a Local Plan review, with be initiated.

Contingencies

8.1.20 Even with the highest level of public sector intervention and flexibility there is a possibility that development proposals may fail to come forward due to reasons beyond local control. At this stage a number of strategic areas of risk have been identified along with appropriate contingency measures.

Risk I: Poor growth in private sector employment

8.1.21 Given the portfolio of economic development sites, it is not considered likely that poor growth will be due to any lack of available sites to meet market demands. The following contingencies are identified:

- consider loosening of use class restrictions in policies to allow other commercial uses;
- strengthen inward investment promotional campaign; and
- Council corporate policy initiatives to improve the skills of the local population.

Risk II: Fragility in housing market/market capacity delays investment

8.1.22 The risks for Swale arise from sluggish levels of completions at the start of the plan period and the impacts that poor viability may have on house construction.

8.1.23 As at 2014 there were encouraging signs in the recovery of the housing market locally, although there remain uncertainties as to its strength, durability and capacity. For Swale, the poor market is forecast as impacting upon the performance of the Local Plan in its first three years and will present challenges moving forward. There are five inter-related risks:

1. With the majority of the housing growth proposed in areas of current poorer viability, this, alongside the more challenging urban regeneration sites of central Sittingbourne and Queenborough and Rushenden, mean that early on, a large proportion of the Local Plan housing supply may be vulnerable to delay;
2. National requirements to continuously achieve a five year supply of housing land mean that existing shortfalls in housing completions must be remedied. A failure to do so may lead to sites outside of the Local Plan process coming forward and being permitted, despite the considerable levels of development land allocated by the Local Plan judged as viable and deliverable;
3. The phasing of completions at key sites on the western side of Sittingbourne, Iwade and, potentially, the Isle of Sheppey may be impacted upon by the timing of transport improvements to A249 junctions;
4. Numbers of housing completions from the latter part of phase 1 of the Local Plan onwards are forecast to be at levels that could challenge both the private and public sectors ability to deliver. Achieving these levels consistently over a significant number of years will be hugely dependent upon both market capacity and the national or regional investment decisions of housing developers that the Council cannot forecast; and
5. Ideally, the Council's projection of housing delivery, taking account of housing market recovery and long lead in times, should provide a smooth transition from current low level of completions in phase 1 of the Local Plan to the peak years of phases 2 and 3. In contrast to this, the immediate forecast for completions in the next few years are at levels below the annualised housing target, which, to achieve the necessary five year supply of housing, requires a considerable leap to significantly higher levels of completions which need to be consistently maintained. Whilst a smoother transition could occur as the housing market takes decisions about the totality of the sites likely to be available at the end of phase I, such an outcome could well leave the Council with challenges to its five year supply over a considerable period of the plan.

8.1.24 In terms of the first risk, it is possible that viability will recover more quickly and not result in significant risks to urban regeneration projects. In the short term, the Council will consider carefully the

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viability concerns of developers at the planning application stage in order to ensure that completions can proceed as far as possible. In the specific cases of the regeneration projects, public sector involvement has increased confidence that they can be delivered, although the compromises that may still be needed to ensure delivery could impact upon the creation of new sustainable communities. In the case of the regeneration of central Sittingbourne, a development partnership involving the Council and The Spirit of Sittingbourne is in place and local growth fund monies are to fund a significant new area of public realm. A planning permission for phase 1 of the regeneration proposals should also be in place soon. At Queenborough and Rushenden, the involvement of the Homes and Communities Agency is now likely to deliver a first phase of development as a planning application in 2016-17.

8.1.25 The Council will manage any delays in these projects via the mechanisms in paragraphs 8.1.12-14. Any serious deferral may be a matter that leads to a review of the Local Plan. Outside this process, other market delays will be responded to by the following contingencies:

- considering innovative development partnerships and funding initiatives through the Homes and Communities Agency; and
- reviewing previously unavailable and/or unsuitable sites identified by the Strategic Housing Land Availability Assessment.

8.1.26 Overall, the remaining four risks will be managed by minimising the barriers that may impact upon the phasing of development and permitting other developments where in accordance with the Local Plan. However significant parts of these risks lie outside of the direct control of the Council and rely upon the private sector to deliver both the overall scale of growth and the level of completions that have been indicated as achievable by them.

8.1.27 The Council will also monitor its five year supply using the 'Liverpool' method, by which any shortfalls in completions will be made up during the remainder of the plan period. This will also minimise the risks associated with unrealistic annualised levels of housing completions. The Council will monitor its use to ensure that this approach to calculating housing land supply is kept in place for the minimum time possible, having regard to local circumstances on site phasing and viability evidence.

8.1.28 In the specific case of the second and third identified risks, these will be managed, in part, by the proposed 'over-allocation' of sites by the Council as a means to boost the overall supply and address the possibility of unforeseen delay or problems with other allocated sites. It is also assisted by the number and variety of individual sites allocated which means there are potentially many outlets which can maximise delivery. Where sites have been phased for reasons of infrastructure provision, the Council will continue to keep these under review and, where justified, allow sites to come forward earlier where this will not result in significantly harmful outcomes.

8.1.29 Even with these measures in place, the Council may need to ensure that any planning application on non-allocated sites is considered having regard to the Council's position concerning its five year housing land supply. Where there are shortfalls in this supply, this may mean that it will be necessary to grant planning permission on sites outside of the local plan framework of allocations where in accordance with national policy.

8.1.30 Whilst these measures are intended to address risks that may lead to slower housing delivery than forecast, the Council will keep all matters under close review. However, the Local Plan will have met its objectively assessed need for housing in full with allocations found sound in terms of their being both deliverable and developable. Should, despite this, shortfalls in the land supply continue to occur, the Council will consider whether it is appropriate to continue to permit housing sites that do not accord with the Local Plan where there is no compelling reason evident as to why unimplemented housing commitments and/or allocated Local Plan sites are not coming forward - in other words where there may be evidence of failure in market delivery rather than planning related reasons for the shortfall in land supply. The Council will, also potentially commence an immediate Local Plan review, as signalled by Policy ST 2.

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Risk III: Investment in central Sittingbourne falls behind investment in urban extensions at Sittingbourne creating further leakage in retail spending

8.1.31 Achieving a sustainable relationship between investment in central Sittingbourne and new development on urban extensions is desirable, but difficult in practical terms. As already indicated, serious deferral of development within the regeneration area is likely to be a key signal to review the Local Plan. However, outside of this process, the following contingencies are identified:

- review town centre schemes to identify and resolve issues;
- consider increased public sector intervention as required; and
- ensure out of centre proposals do not prejudice the delivery of town centre retail and leisure development.

Risk IV: Key Infrastructure lags behind growth leading to unacceptable consequences

8.1.32 Poor levels of viability could lead to a reduced amount of developer contributions and therefore delays in bringing forward some infrastructure needs. There is some evidence of such deficiencies having arisen from past growth in the Borough that has resulted in congestion in parts of the strategic road network, a shortage of affordable housing and poor access to key community facilities. Deferral in the delivery of infrastructure can also affect the sustainability of development, the quality of the places created and people's quality of life. In the long term this would ultimately affect and alter perceptions of the area as a place to live, work or invest, even potentially acting as a bottleneck on further development.

8.1.33 Pressures on the Council to ensure a readily available supply of housing land are likely to lead to developer contributions being reduced or deferred. Likewise restrictions on Section 106 Agreements for pooled contributions will also act to curb infrastructure investment ahead of the Council adopting a CIL charging schedule. Once such a schedule is adopted, the overall fund will need to be prioritised and, in the absence of significant public funding, there will be a shortfall against the total infrastructure needed.

8.1.34 These risks may be minimal in the short term as development delivery for the first five years of the Local Plan does not require major levels of infrastructure investment. However, it is in the second period of the plan where a significant burst of development activity is expected and when the most significant infrastructure will be required. The main strategic risk to the plan overall relates to any significant deferral in the improvement to Junction 5 of the M2, alongside the possibility of other significant issues arising on the strategic and local road networks. Other risks to the Local Plan arise from potential delays in education and health provision.

8.1.35 In the case of the highway network, the risks arise beyond the first five years after adoption of the Local Plan. For the strategic road network, mitigation schemes are likely to be delivered that will support the Plan, but implementing them will be in tandem with the build out of development schemes. For the local road network, whilst the likely traffic impact of growth can be accommodated in the medium term, there is a risk of stresses occurring in the A2 corridor toward the end of the plan period. Managing these risks will require an early review of the Local Plan, with the aim of completing this by the end of March 2022. This review will be underpinned by both the necessary transport evidence gathering and the adoption by the Borough and the County Council of a Transport Strategy.

8.1.36 Further, details of the appropriate mitigation measures required for each individual allocation will become clearer at the time that the relevant planning application is made. Therefore, Swale Borough Council (who will lead on all matters) will continue to work with Highways England and Kent County Council (who will carefully monitor the local network and the implementation of permissions). This work will ensure that:

- a. if the mitigation permissions are implemented, the mitigation occurs in a timely fashion; or

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- b. if the mitigation permissions are not implemented (at all or to a different timetable), then alternative mitigation schemes are prepared and implemented in a timely fashion; and
- c. the Keycol, Bobbing and Grovehurst Junctions on the A249, and the A2 corridor continue to be monitored, including for the individual and cumulative impacts from development, with action taken to mitigate them as necessary.

8.1.37 The implementation and delivery schedule will also identify whether there are risks associated with any funding gaps between the infrastructure required to support the plan and the funding available. This is though a snapshot in time and will exclude the possibility of further future public funding being made as well as the S106 monies from the identified development sites. These, together, will act to reduce any gaps identified.

8.1.38 Other matters will work toward the management and reduction of this risk. It is anticipated that as the economic recovery continues and viability improves, revenue from S106 is likely to increase. It will also be the case that a review of the proposed CIL charge will be undertaken regularly and will present opportunities for amended CIL rates as the economy improves, particularly for Sittingbourne and Sheppey. Together, over time, these should help increase the developer based funding being made from these areas which will be particularly important as both areas are the main focus for growth and infrastructure needs and currently less able to significantly contribute.

8.1.39 Notwithstanding the above, the combination of public funding, development contributions via S106/S278 and direct provision of infrastructure is considered sufficient to deliver the provision identified as necessary to support the first five years of the Local Plan. In the longer term, subject to a review of CIL and increased revenues from CIL and S106 as a result of improved viability, the overall infrastructure programme set out in the draft Local Plan and IDP/IDS should be able to be fully implemented. Failing this, were such matters to lead to significant delays in development coming forward, this would be a matter for a review of the Local Plan.

8.1.40 To further manage risks, through Policy CP 6, the Council will build into the legal agreements of developments, where policy requirements have been significantly reduced, the means to claw back contributions at a later date should values improve at levels notably higher than at the point the permission was granted. For affordable housing, Policy DM 8 considers the possibility of commuting provision from more viable areas and using the monies to support provision in areas of poorer viability that are those in greatest need. The policy will also allow the Council to increase affordable housing provision in individual circumstances where improved viability can be demonstrated at the detailed level, having regard to individual site circumstances and/or micro considerations relating to its location.

8.1.41 More generally, the Council will monitor the situation and widening delays in community infrastructure provision relative to new development coming forward will, exceptionally, be a signal to defer other sites or, exceptionally, a matter for a review of the Local Plan.

Risk V: The need for the alignment of jobs and homes

8.1.42 Chapter 4 has highlighted the need to maintain the broad relationship between new jobs and homes. This is important to ensure an adequate supply of labour to meet economic needs and to minimise excessive levels of in or out commuting in line with the objective of achieving the sustainable development principles outlined in the NPPF. The Council will monitor the take up of land and will address any issues arising via a Local Plan review, especially if suggested by the monitoring indicators for Policy ST 2.

8.1.43 Key policies within the Local Plan have also been set out with monitoring indicators intended to provide measures of progress. These are set out within the monitoring schedule in Section 8.2. Should monitoring find that progress is insufficient to meet current targets, this may be considered as part of a Local Plan review. The Council will identify the relevant issues, analyse the problem and propose remedial action if necessary.

The Housing Implementation Strategy

8.1.44 National planning policy expects Councils to set out a housing implementation strategy for the full range of housing.^(8.1)

The housing trajectory

8.1.45 Housing trajectories set out a projected schedule of housing delivery across the Borough up to 2031. The Council's housing trajectory and 5-year housing supply calculation is included (and updated) within its Annual Monitoring Report.

8.1.46 Although the Council has taken into account all relevant factors in its anticipated phasing of housing delivery across the plan period, a housing trajectory may be subject to variations over time reflecting the actual level of completions that take place and unforeseen changes in likely delivery. As at 2015/16, the Council's housing trajectory indicated a potential and significant burst of development activity for the years 2019/20 onwards, reflecting a return to more stable market conditions, but at forecast levels previously unseen in the Borough over the previous 30 years. These very high expected levels of completions from 2019/20 onward will be monitored by the Council.

8.1.47 For the Housing Implementation Strategy, for the short term at least, ensuring that a five year supply of housing land is maintained will be a considerable challenge. However, the Council will fully exploit the following measures intended to boost housing land supply by:

1. Not preventing sites phased outside the five year supply from coming forward unless there are critical infrastructure barriers that cannot be resolved within a reasonable timescale.
2. Responding positively to increases in density on sites where environmental quality is not significantly compromised.
3. Allowing windfall sites to come forward unless significantly detrimental to the workings of Policy ST 3, or to the supply of employment land critical to the Local Plan strategy, or contrary to the presumption in favour of sustainable development as set out in national planning policy.
4. Despite having already reduced planning policy requirements to support viability, continuing to ensure that policy provisions are applied flexibly unless it would work significantly against the presumption in favour of sustainable development as set out in national planning policy.

Planning for Gypsies and Travellers

8.1.48 Currently the Council has both a 5-year supply of sites for Gypsies and Travellers and a relatively low residual requirement for pitches in the remainder of the plan period. The Council will report on progress within its Annual Monitoring Report.

Affordable housing

8.1.49 Councils are required to produce a trajectory of expected affordable housing completions.^(8.2) For Swale this issue comes at a complicated and uncertain time for policy making in this area. The difficulty of setting any form of target or trajectory for expected affordable housing completions is complicated by uncertainties over national policy initiatives, the overall impact of which are difficult to estimate. Furthermore, Registered Social Landlords are significantly contracting their investments in new affordable housing provision. With these major uncertainties, the Council does not consider it appropriate to set a target or an expected trajectory of completions for affordable houses at this stage; instead an overall target will be set within a review of its Housing Strategy, progress against of which will be monitored (including the take up of the Government's starter homes initiative) via the Council's Annual Monitoring process.

8 Implementation and delivery plan and monitoring arrangements

Policy IMP 1

Implementation and Delivery Plan

The Council will work with developers and other public agencies to deliver the vision, objectives and strategy of the Local Plan. Partners will:

1. Have regard to the priorities set for the first five years of the Local Plan and make provision for the infrastructure intended to deliver it;
2. Review annually the Local Plan implementation and delivery schedule;
3. Monitor the milestones set out by the Local Plan implementation delivery plan. Significant failures within such milestones may act as a need to review the Local Plan and/or a need to bring forward one or more of the measures identified by the Local Plan implementation and delivery plan;
4. Address the risks associated with:
 - a. poor growth in private sector employment;
 - b. fragility in housing market/market capacity delaying investment in central Sittingbourne or Queenborough and Rushenden or other major housing sites;
 - c. delays in central Sittingbourne regeneration creating further leakage in retail spending;
 - d. key infrastructure lags behind growth leading to unacceptable consequences; and
 - e. the alignment of jobs and housing.

8.2 Monitoring arrangements

8.2.1 Monitoring is an essential and continuous part of the plan making process. The Council's [Annual Monitoring Report](#) (AMR) will assess whether the Local Plan strategy is being achieved. This will be closely aligned to the Council's corporate performance monitoring. The AMR will be used to identify where existing targets and indicators need to be amended or deleted and/or new ones included. The AMR will also identify the need for, and the scope of, a review of the policies.

8.2.2 Table 8.2.1 sets out our proposed monitoring framework. The monitoring indicators identified are a mix of relevant indicators drawn from a number of sources:

- as required by the National Planning Policy Framework.
- indicators identified in the Sustainability Appraisal of the Local Plan; and
- local indicators identified in respect of key policies of the Local Plan.

Implementation and delivery plan and monitoring arrangements 8

Policy	Indicator
ST 1 Delivering Sustainable Development	Monitored by key indicators from other policies.
ST 2 Development targets for jobs and new homes 2014-31	- To monitor (at the Borough and Planning Area levels) appropriate indicators intended to measure past and future projected completions to demonstrate a Borough supply of specific deliverable housing sites sufficient to provide five years' worth of housing against the Local Plan housing target with an additional buffer of 5%. - To report on the number of affordable dwelling completions that are provided relative to the Council's estimated provision. - Annual jobs change as reported by Annual Business Register and Employment Survey (BRES) to demonstrate progress toward meeting the Council's job target. - Reporting on the progress of individual allocations relative to their expected rate of delivery as identified by the housing trajectory and Local Plan Implementation and Delivery Plan.
ST 4 Meeting the Local Plan development targets	- Detailed reporting of major development sites by reference to: - progress with delivery of development on allocated and sites with planning permission; - progress that has been made in removing constraints on development and whether a site is now considered to be deliverable or developable; - unforeseen constraints that have emerged which now mean a site is no longer deliverable or developable, and how these could be addressed; and - whether the windfall allowance for housing is coming forward as expected, or may need to be adjusted.
CP 1 Building a strong, competitive economy	- Monitoring of economic and workforce structures to demonstrate improvements to the Borough's economy by reference to: - employment by occupation to show stability in manufacturing, increased employment in retail, leisure, office and B1a use class activity; - economic activity/inactivity/employment/unemployment to indicate change; - total spend/no. of visitors/percentage of jobs in tourism (subject to release of Cambridge Model); - change in number of companies/businesses (no. of VAT registered) located in the area; - education qualifications to indicate improvements; - job density (number of jobs filled to working age population) as indicator of greater levels of employment being achieved in Swale by locally living people); - overall amount of floor space developed for employment by type to show on-going net gain; - employment land availability by type; - employment land lost to other uses; - GVA £ per capita; - change in annual average wage; and - town centre vacancy rates to show reductions.

8 Implementation and delivery plan and monitoring arrangements

Policy	Indicator
CP 2 Promoting sustainable transport	1. Monitoring of indicators intended to demonstrate progress and move to more sustainable transport modes by reference to: a. implementation of transport improvement projects from the Implementation and Delivery Schedule; b. change in method of travel to work, distance travelled, car ownership (where data outside Census is available); c. per capita expenditure on roads, parking and traffic services; d. change in extent of public rights of way in the Borough; and e. number of schools with walking/cycling to school scheme.
CP 3 Delivering a wide choice of high quality homes	1. Monitoring of indicators intended to demonstrate progress on bringing forward a range of housing types by reference to: a. change in the total number of households; b. change in household size and type; c. percentage of homes not meeting the decent homes standard; and d. change in number of empty properties.
CP 5 Health and wellbeing	1. Monitoring of indicators associated with healthy communities to show improved quality of life with reference to: a. population profile (age structure, ethnicity etc.); b. crime statistics and fear of crime; c. life expectancy at birth; d. health deprivation; e. mortality rates, inc. death rates by cause; f. numbers on welfare benefits (with reference to children and over 60s who are income deprived); g. levels of new open space and sports facilities provided; h. percentage of new development completed in Rural Local Service Centres; and i. progress on health facility provision from projects from the Implementation and Delivery Schedule.
CP 7 Conserving and enhancing the natural environment - providing for green infrastructure	1. Monitoring of indicators intended to demonstrate that the quality of the natural environment is maintained or enhanced with reference to: a. percentage of completions on previously developed land; b. average densities on permitted housing sites; c. amount of best and most versatile agricultural land lost to significant scales of development; d. planning permissions implemented involving planning condition(s) for remediation; e. frequency of air pollution standards violations;

Implementation and delivery plan and monitoring arrangements

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Policy	Indicator
	f. per capita emissions of 'conventional' air pollutants, including CO ₂ , together with fuel consumption; g. new designations of Air Quality Management Areas; h. changes in landscape character area condition; i. change to overall condition of SSSIs; j. levels of new open space provided, especially natural/semi-natural greenspace. Review of open space assessment when required to determine access to local greenspace; and k. the monitoring framework for the Strategic Access Management and Monitoring Strategy established by the North Kent Environmental Planning Framework.
CP 8 Conserving and enhancing the historic environment	1. Monitoring of indicators intended to demonstrate the maintenance or improvement to the historic environment with reference to: a. number of Conservation Area Appraisals completed; b. number of assets added to the Local List of Heritage Assets; c. change to number of buildings on national and local lists of buildings at risk.
DM 8 Affordable housing	1. Monitoring of indicators intended to demonstrate affordable housing provision relative to stated targets with reference to: a. average house price relative to average income; b. change in number on housing register; and c. affordable housing completions.
DM 9 Rural exceptions housing	1. Monitoring of indicators intended to demonstrate an increase in the overall supply of rural affordable housing units and to measure the effectiveness of the policies enabling mechanisms with reference to: a. the numbers of affordable housing units relative to the number of market homes provided to achieve this as a percentage.
DM 17 Open space, sports pitches and facilities	1. Monitoring of indicators intended to demonstrate provision in accordance with stated policy standards with reference to: a. the amount of open space/facility established by type relative to the standard.

8 Implementation and delivery plan and monitoring arrangements

Policy	Indicator
DM 19 Sustainable design and construction	1. Monitoring of indicators intended to demonstrate improved performance in sustainable design and construction standards with reference to: a. the number of BREEAM certificates; and b. the number of permissions granted and implemented for renewable and low-carbon schemes and their expected levels of generation.
DM 21 Water, flooding and drainage	1. Monitoring of indicators intended to ensure that the risk to communities from flood risk/contamination is not increased with reference to: a. the number of planning permissions granted for residential development in flood risk areas contrary to the advice of the Environment Agency; b. the number of developments which use sustainable drainage systems; c. the number of applications which do not receive approval for water supply and wastewater connection from the appropriate water company; d. levels of water quality; e. water consumption per capita (in so far as data collection is possible at Borough level); and f. waste water treatment capacity.
DM 23 Coastal change management area	1. Monitoring of indicators intended to ensure that the risk to communities from coastal change is minimised and managed with reference to: a. the number of developments permitted within the CCMA and the number relocated away from it.
DM 24 Conserving and enhancing valued landscapes	1. Monitoring of indicators intended to conserve or enhance landscape condition with reference to: a. changes in landscape condition as indicated by a review of the Council's landscape character assessment; b. a formal review of landscape designations undertaken; and c. a review of planning approvals where contrary to Policy.
DM 28 Biodiversity and geological conservation	1. Monitoring of indicators intended to conserve or enhance biodiversity within the overall context of achieving a net gain in biodiversity with reference to: a. a review of planning approvals where contrary to Policy; b. the amount of new habitat created by new development, especially natural/semi-natural greenspace;

Implementation and delivery plan and monitoring arrangements

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Policy	Indicator
	c. the number of SSSIs in favourable condition and other monitoring of biodiversity designations; and d. any monitoring undertaken of Kent Biodiversity Action Plan/Kent Biodiversity Strategy, including habitats created.
DM 30 Enabling development for landscape and biodiversity enhancement	1. Monitoring of indicators intended to demonstrate improvements in biodiversity and/or landscape and the effectiveness of the policy with reference to: a. number of applications made on the basis of this policy; b. number of applications permitted; c. extent of land proposed for enhancement as a result of the policy; and d. Reporting on implementation of proposals via monitoring arrangements established within planning permissions.

Table 8.2.1 Proposed monitoring framework

8 Implementation and delivery plan and monitoring arrangements

End Notes

- 8.1 Para. 47 of National Planning Policy Framework 2012
- 8.2 Para. 47 of National Planning Policy Framework 2012

Appendix 1 Influences on the Swale natural assets and green infrastructure network and strategy

1.1 Creating a natural assets and green infrastructure network and strategy draws upon a considerable number of sources of evidence. These include:

1. [Swale Borough Council Green Grid Strategy](#) (2007): Provides a Green Grid Framework Plan to support the provision of future green infrastructure.
2. Greening the Gateway - Kent and Medway Initiative (2008) was the partnership organisation for North Kent charged with the promotion of a green grid for the Thames Gateway and the development of green infrastructure projects. 'Green Cluster' studies for the Milton Creek, Faversham Creek and Isle of Sheppey areas set out visions for the design of local green grids.
3. Existing international, national and local landscape and biodiversity designations (see Designated natural assets in Swale): Comprise some 60% of the Borough and represent a very significant consideration. Nationally designated wildlife sites and landscapes will be subject to management plans and the Kent Downs Area of Outstanding Natural Beauty Management Plan 2004 (revised 2009 and under further review), which has in place clear aims, policies and actions for the conservation management and enhancement of the AONB.
4. Swale Open Space Assessment: Open Space Strategy (2009-2014): Developed to provide a strategic framework for the future management of the Borough's open spaces and supports requirements for contributions from developers where developments create an additional demand for different types of space.
5. UK, Kent and Swale Biodiversity Plan (2008): Highlight priority habitats and species and provide action plans.
6. Biodiversity Opportunity Areas: Identified by the Kent Wildlife Trust and KCC, using data obtained from the Kent Landscape Information System (KLIS), as a spatial reflection of the Kent Biodiversity Action Plan, indicating where the delivery of Kent BAP targets should be focused to secure the maximum biodiversity benefits. They have been adopted by the South East and Kent Biodiversity Action Plan Partnerships.
7. The Greater Thames Marshes Nature Improvement Area: Covered 48,981 ha with a vision for a 'living and vibrant marshland and estuary landscape where skilled and enthusiastic residents, visitors, businesses and technical experts are harnessed to work in partnership, delivering more wildlife, more public understanding and enjoyment of the environment and greater resilience by the natural world to the changes brought about by development and climate change.'
8. Swale Landscape Character and Biodiversity Appraisal and Guidelines SPD (2011): Identifies landscape character areas and their sensitivity and condition, together with a biodiversity opportunity network for each.
9. The Biodiversity Appendix to the [Kent Design Guide](#) (2006): Supports the establishment of a green network, especially within an urban context.
10. Kent Landscape Information System: Contains details on countryside access, landscape character, opportunities for habitat creation and landscape restoration and the Kent habitat survey as well as areas designated for their conservation value.
11. [The ARCH Kent Habitat Survey 2012](#) provides new data on the extent of natural habitats in Kent, identifies areas of importance for wildlife and measures habitat changes since the survey in 2003.
12. The Kent Historic Landscape Characterisation Survey 2001: Identified a series of historic landscapes across the Borough.
13. The [Marine and Coastal Access Act 2009](#) requires a long distance route and land for open-air recreation, accessible to the public around the coast of England. Within Swale there is the long distance Saxon Shore Way path and the national cycle route 1.
14. [Shoreline management plans](#) (2008) identify sustainable long-term management policies for Swale's coast in the face of climate change and sea-level rise.
15. Kent County Council's [Countryside and Coastal Access Improvement Plan](#) (2013-2017) aims to increase the usage and enjoyment of public rights of way and open green space in Kent. The network of paths will be a gateway for visitors and residents to explore Kent's heritage, wildlife and iconic

Influences on the Swale natural assets and green infrastructure network and strategy

landscapes. The plan will deliver improvements which contribute to reducing congestion, and which support rural business and economy, health and, most importantly, the quality of life in Kent.

16. The [National Biodiversity Climate Change Vulnerability Model](#) is an assessment of the vulnerability of biodiversity to climate change at a large scale. It uses a 200 sq m GIS grid model to assess Biodiversity Action Plan (BAP) habitats for their conservation value, sensitivity to climate change and adaptive capacity metrics. The model will assist the Council in providing a high level indication of the relative vulnerability of BAP habitats to climate change, informing prioritisation of adaptation action and assisting in the development of adaptation strategies for biodiversity.
17. The [Kent Historic Landscape Characterisation](#) (2001) is a tool that provides a framework for broadening our understanding of the whole landscape and contributes to decisions affecting tomorrow's landscape. It has produced interactive GIS-based descriptions of the historic dimension - the 'time-depth' - that characterises our rural landscape.

Appendix 2 Holiday Parks - Conditions for planning permissions

Conditions for planning permissions to be used in connection with the new policy on holiday homes.

2.1 There must be a signed agreement between the park and all caravan/chalet owners stating:

1. The caravan/chalet is to be used for holiday and recreational use only and cannot be occupied as a sole or main residence, or in any manner which might lead any person to believe that it is being used as the sole or main residence, and
2. The caravan/chalet cannot be used as a postal address, and
3. The caravan/chalet cannot be used for registering, claiming or receipt of any state benefit, and
4. The caravan/chalet cannot be occupied in any manner, which shall or may cause the occupation thereof, to be or become a protected tenancy within the meaning of the rent acts 1968 and 1974, and
5. If the caravan/chalet owner is in breach of the above their agreement will be terminated and/or not renewed upon expiry.

2.2 The park will:

1. Ensure all caravan/chalet owners, present and future, have a current signed agreement covering the above points, and
2. Hold copies of documented evidence of the caravan/chalet owners main residence and their identity, which may comprise utility bills, council tax bill, passport, driving licence or similar document, and
3. Require caravan/chalet owners to provide new documentation if they change their main residence, and
4. Send all written communications to the main residence of the caravan/chalet owner, and
5. Not allow postal deliveries to the caravan/chalet or accept post on behalf of the caravan/chalet owner at the park office, and
6. Must seek to ensure that each caravan/chalet is to be used for holiday use only and is not occupied as a sole or main residence, or in any manner which might lead any person to believe that it is being used as the sole or main residence, of the owner or occupant, and
7. Act swiftly if breaches of the above conditions occur, and
8. Adhere to a code of practice as good as or better than that published by the British Homes and Holiday Parks Association.

3 Glossary

Appendix 3 Glossary

Glossary of Terms

Within the supporting text and policies of the Local Plan are a series of terms that indicate levels of control or intent.

Wording	Intervention proposed
Accord/accordance	Be harmonious with/consistent with/conforming with.
Address	Deal with an issue or problem to its resolution.
Demonstrate	Clearly show the existence, truth, or reality of a planning matter by giving proof of evidence.
Encourage	Give support, confidence or persuasion to do something by giving support or advice.
Enhance	Intensify, increase or further improve the quality, value or extent of something.
Expect/ed	As something strongly likely to happen.
Maintain	Cause or enable a condition or situation to continue, keep something at the same level, condition or rate.
Pursue	Seek to attain or accomplish.
Reinforce	To strengthen/to increase by addition.
Resist and oppose	Try and prevent the action or proposal.
Seek/sought	Attempt or desire to achieve something.
Support	Give assistance to through policy or development management decisions, influencing others and, exceptionally, seeking resources to achieve something.
Will and shall	Interchangeable words to express a strong intention or assertion about an action or requirement.

Table 3.0.1 Words of intent or control in the Local Plan

Accretion (coastal): Land mass increasing due to addition of sediment.

Advance the line: Shoreline management policy in which new defences are built seaward of the existing defence line.

Affordable housing: Social rented, affordable rented and intermediate housing, provided to eligible households whose needs are not met by the market. Eligibility is determined with regard to local incomes and local house prices. Affordable housing should include provisions to remain at an affordable price for future eligible households or for the subsidy to be recycled for alternative affordable housing provision.

Social rented housing is owned by local authorities and private registered providers (as defined in section 80 of the Housing and Regeneration Act 2008), for which guideline target rents are determined through the national rent regime. It may also be owned by other persons and provided under equivalent rental arrangements to the above, as agreed with the local authority or with the Homes and Communities Agency.

Affordable rented housing is let by local authorities or private registered providers of social housing to households who are eligible for social rented housing. Affordable Rent is subject to rent controls that require a rent of no more than 80% of the local market rent (including service charges, where applicable).

Intermediate housing is homes for sale and rent provided at a cost above social rent, but below market levels subject to the criteria in the Affordable Housing definition above. These can include shared equity (shared ownership and equity loans), other low cost homes for sale and intermediate rent, but not affordable rented housing.

Homes that do not meet the above definition of affordable housing, such as “low cost market” housing, may not be considered as affordable housing for planning purposes.

Aged or veteran tree: A tree which, because of its great age, size or condition is of exceptional value for wildlife, in the landscape, or culturally.

Air Quality Management Areas: Areas designated by local authorities because they are not likely to achieve national air quality objectives by the relevant deadlines.

Allowable Solutions: A former mechanism for ensuring that zero carbon homes can be delivered in practice for most development scenarios, without excessive cost.

Ancient woodland: An area that has been wooded continuously since at least 1600 AD.

Appropriate Assessment/ Habitats Regulation Assessment: Study carried out to make sure that sites which are important for biodiversity at European level are protected and will not be damaged by proposals and policies.

Archaeological interest: There will be archaeological interest in a heritage asset if it holds, or potentially may hold, evidence of past human activity worthy of expert investigation at some point. Heritage assets with archaeological interest are the primary source of evidence about the substance and evolution of places, and of the people and cultures that made them.

Article 4 direction: A direction which withdraws automatic planning permission granted by the General Permitted Development Order.

Assistive Technology: Is any product or service designed to enable independence for disabled and older people.

Best and most versatile agricultural land: Land in grades 1, 2 and 3a of the Agricultural Land Classification.

Biodiversity offsets: Conservation activities designed to deliver biodiversity benefits in compensation for losses, in a measurable way.

Biodiversity Opportunity Areas (BOAs): BOA maps can be seen as a spatial reflection of the Kent Biodiversity Strategy. They indicate where the delivery of Kent Biodiversity Strategy targets should be focused in order to secure the maximum biodiversity benefits.

Birds and Habitats Directives: European Directives to conserve natural habitats and wild fauna and flora.

Building Research Environmental Assessment Methodology: an environmental assessment for rating and certifying non-residential development.

Caravan: Mobile living vehicle used by Gypsies and Travellers; sometimes referred to as trailers. Also used for holiday accommodation.

Chalet: A small, permanent single storey cabin or house used by holiday-makers, often forming a unit within a holiday complex.

3 Glossary

Climate Change Adaptation: Adjustments to natural or human systems in response to actual or expected climatic factors or their effects, including from changes in rainfall and rising temperatures, which moderate harm or exploit beneficial opportunities.

Climate Change Mitigation: Action to reduce the impact of human activity on the climate system, primarily through reducing greenhouse gas emissions.

Clinical Commissioning Groups (CCGs): CCGs will be responsible for commissioning emergency and urgent care, including ambulance services and out-of-hours services, for anyone present in their geographic area. For some services (e.g. A&E attendances and emergency admissions), the costs for an individual patient will be charged to the CCG where the patient is registered (if different from the commissioning CCG). CCGs will be responsible for commissioning healthcare services to meet the reasonable needs of the persons for whom they are responsible. The two CCG's covering Swale are NHS Swale CCG and NHS Canterbury and Coastal CCG.

Coastal Change Management Area: An area identified in Local Plans as likely to be affected by coastal change (physical change to the shoreline through erosion, coastal landslip, permanent inundation or coastal accretion) in which development requires specific management.

Coastal Processes: The processes of erosion, transportation and deposition in which coasts are shaped by the sea and the action of waves.

Code for Sustainable Homes: A former environmental assessment for rating and certifying the performance of homes in terms of their energy efficiency/ consumption. It was withdrawn by the Government in 2015.

Conservation (for heritage policy): The process of maintaining and managing change to a heritage asset in a way that sustains and, where appropriate, enhances its significance.

Conservation Areas: An area of special architectural or historic interest whose character or appearance is protected. Conservation area guidelines have been produced to guide development decisions in each area.

Convenience Goods: Frequently purchased consumer items (e.g. food) providing a convenience in terms of time savings.

Combined Heat and Power: The combined production of electricity and heat from a single fuel source producing greater efficiency than conventional heat and power generation.

Community facility: Provides a place where people can meet for social events, educational classes, recreational activities, health and wellbeing activities, leisure activities and cultural events.

Community Forest: An area identified through the England Community Forest Programme to revitalise countryside and green space in and around major conurbations.

Community Infrastructure Levy: A levy allowing local authorities to raise funds from owners or developers of land undertaking new building projects in their area.

Community Right to Build Order: An Order made by the local planning authority (under the Town and Country Planning Act 1990) that grants planning permission for a site-specific development proposal or classes of development.

Comparison Goods: High-order (usually more expensive than convenience products) goods such as clothes, furniture, electrical items and other bulky and non bulky household items.

Decentralised Energy: Local renewable energy and local low-carbon energy usually but not always on a relatively small scale encompassing a diverse range of technologies.

Designated Heritage Asset: A World Heritage Site, Scheduled Monument, Listed Building, Protected Wreck Site, Registered Park and Garden, Registered Battlefield or Conservation Area designated under the relevant legislation.

Development Plan: Includes adopted Local Plans and neighbourhood plans, and is defined in section 38 of the Planning and Compulsory Purchase Act 2004. (Regional strategies remain part of the development plan until they are abolished by Order using powers taken in the Localism Act. It is the government's clear policy intention to revoke the regional strategies outside of London, subject to the outcome of the environmental assessments that are currently being undertaken.)

Economic Development: Development, including those within the B Use Classes, public and community uses and main town centre uses (but excluding housing development).

Ecological Networks: These link sites of biodiversity importance.

Ecosystem Services: The benefits people obtain from ecosystems such as, food, water, flood and disease control and recreation.

Edge of Centre: For retail purposes, a location that is well connected and up to 300 metres from the primary shopping area. For all other main town centre uses, a location within 300 metres of a town centre boundary. For office development, this includes locations outside the town centre but within 500 metres of a public transport interchange. In determining whether a site falls within the definition of edge of centre, account should be taken of local circumstances.

Environmental Impact Assessment: A procedure to be followed for certain types of project to ensure that decisions are made in full knowledge of any likely significant effects on the environment.

European site: This includes candidate Special Areas of Conservation, Sites of Community Importance, Special Areas of Conservation and Special Protection Areas, and is defined by Regulation 8 of the Conservation of Habitats and Species Regulations 2010.

Examination in Public: A hearing into the Swale Local Development Framework, presided over by a Government Inspector to assess the soundness of Development Plan Documents.

Geodiversity: The range of rocks, minerals, fossils, soils and landforms.

Green Infrastructure: A network of multi-functional green spaces, urban and rural, which is capable of delivering a wide range of environmental and quality of life benefits for local communities. Can include:

- Parks and gardens - including urban parks, country parks and formal gardens.
- Designated and non-designated natural and semi-natural urban and rural green spaces and landscapes - woodlands, urban forestry, street trees, scrub, grassland, downland, commons and meadows, wetlands, open and running water, wastelands and derelict open land and rock areas. May include historic landscapes and other heritage assets.
- Green corridors - including river and canal banks, road verges, railway embankments, cycle ways, and rights of way.
- Outdoor public or private sports facilities.
- Amenity green space – informal recreation spaces, green spaces in and around housing, domestic gardens and village greens.
- Outdoor play and informal areas.
- Allotments, community gardens and urban farms.
- Cemeteries and churchyards.
- Accessible countryside in urban fringe areas.
- Green roofs and walls.

3 Glossary

For further expansion see the [South East Green Infrastructure Framework: From Policy into Practice 2009](#). The South East Green Infrastructure Partnership a body comprising Natural England, Environment Agency, Government Office for the South East, Forestry Commission, Wildlife Trusts in the South East, Groundwork and the (then) South East England Partnership Board.

Growth without Gridlock: The transport delivery plan for Kent which sets out the County Council's priorities for the county.

Gypsy: Members of Gypsy or Traveller communities. Usually used to describe Romany (English) Gypsies originating from India. This term is not acceptable to all Travellers.

Gypsies and Travellers: Consistent with the Housing Act 2004, inclusive of: all Gypsies, Irish Travellers, New Travellers, Show People, Circus People and Gypsies and Travellers in bricks and mortar accommodation.

Health Impact Assessment: Health Impact Assessments consider the potential impacts of planning policies and decisions on health and health inequalities. They identify actions that can enhance the positive effects, and mitigate, or eliminate, the negative effects of developments.

Heritage Asset: A building, monument, site, place, area or landscape identified as having a degree of significance meriting consideration in planning decisions, because of its heritage interest. Heritage asset includes designated heritage assets and assets identified by the local planning authority (including local listing).

Heritage Coast: Areas of undeveloped coastline which are managed to conserve their natural beauty and, where appropriate, to improve accessibility for visitors.

Historic Environment: All aspects of the environment resulting from the interaction between people and places through time, including all surviving physical remains of past human activity, whether visible, buried or submerged, and landscaped and planted or managed flora.

Historic Environment Record: Information services that seek to provide access to comprehensive and dynamic resources relating to the historic environment of a defined geographic area for public benefit and use.

Hold the Line: Shoreline management policy in which the existing flood defence line is maintained.

Inclusive Design: Designing the built environment, including buildings and their surrounding spaces, to ensure that they can be accessed and used by everyone.

International, National and Locally Designated Sites of Importance for Biodiversity: All international sites (Special Areas of Conservation, Special Protection Areas, and Ramsar sites), national sites (Sites of Special Scientific Interest) and locally designated sites including Local Wildlife Sites.

Key Diagram: A map which shows indicatively where major development will take place over the plan period and how this links with the main transport routes and neighbouring districts within Swale.

Local Development Order: An Order made by a local planning authority (under the Town and Country Planning Act 1990) that grants planning permission for a specific development proposal or classes of development.

Local Distinctiveness: A sense of place and our relationship with it. It is what makes one place distinct from another. It can be found in the commonplace as well as the rare and spectacular.

Local Enterprise Partnership: A body, designated by the Secretary of State for Communities and Local Government, established for the purpose of creating or improving the conditions for economic growth in

an area. The South East Local Enterprise Partnership, implemented in April 2011, includes councils and businesses from Kent, Greater Essex and East Sussex, creating a new economic powerhouse focusing on driving forward prosperity by creating the right environment for growth.

Local Nature Partnerships: A body, designated by the Secretary of State for Environment, Food and Rural Affairs, established for the purpose of protecting and improving the natural environment in an area and the benefits derived from it.

Local Planning Authority: The public authority whose duty it is to carry out specific planning functions for a particular area. All references to local planning authority apply to the district council, London borough council, county council, Broads Authority, National Park Authority and the Greater London Authority, to the extent appropriate to their responsibilities.

Local Plan: The plan for the future development of the local area, drawn up by the local planning authority in consultation with the community. In law this is described as the development plan documents adopted under the Planning and Compulsory Purchase Act 2004. Current core strategies or other planning policies, which under the regulations would be considered to be development plan documents, form part of the Local Plan. The term includes old policies which have been saved under the 2004 Act.

Main Town Centre Uses: Retail development (including warehouse clubs and factory outlet centres); leisure, entertainment facilities the more intensive sport and recreation uses (including cinemas, restaurants, drive-through restaurants, bars and pubs, night-clubs, casinos, health and fitness centres, indoor bowling centres, and bingo halls); offices; and arts, culture and tourism development (including theatres, museums, galleries and concert halls, hotels and conference facilities).

Managed Realignment: Shoreline management policy which allows the existing defence line to recede to a new line (natural or manmade) in a controlled manner to provide land to reduce flood risk.

Minerals of Local and National Importance: Minerals which are necessary to meet society's needs, including aggregates, brick clay, silica sand (including high grade silica sands), cement raw materials, gypsum, salt, fluorspar, shallow and deep-mined coal, oil and gas (including hydrocarbons), tungsten, kaolin, ball clay, potash and local minerals of importance to heritage assets and local distinctiveness.

Mineral Safeguarding Area: An area designated by Minerals Planning Authorities which covers known deposits of minerals which are desired to be kept safeguarded from unnecessary sterilisation by non-mineral development.

Mixed-use development: Provision of a mix of complementary uses, such as residential, employment, community and leisure uses, on a site or within a particular area.

Mobile home/Mobiles: Legally classified as a caravan but not usually movable without dismantling or using a lorry.

National Coastal Erosion Risk Mapping Project: The National Coastal Erosion Risk Mapping (NCERM) project aims to map the risk of erosion for the whole of the coastline of England and Wales.

Nature Improvement Areas: Inter-connected networks of wildlife habitats intended to re-establish thriving wildlife populations and help species respond to the challenges of climate change.

Neighbourhood Development Order: An Order made by a local planning authority (under the Town and Country Planning Act 1990) through which Parish Councils and neighbourhood forums can grant planning permission for a specific development proposal or classes of development.

Neighbourhood Plans: A plan prepared by a Parish Council or Neighbourhood Forum for a particular neighbourhood area (made under the Planning and Compulsory Purchase Act 2004).

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No Active Intervention: Shoreline management policy where a decision not to invest in providing or maintaining defences has been taken.

Older People: People over retirement age, including the active, newly-retired through to the very frail elderly, whose housing needs can encompass accessible, adaptable general needs housing for those looking to downsize from family housing and the full range of retirement and specialised housing for those with support or care needs.

Open Space: All open space of public value, including not just land, but also areas of water (such as rivers, canals, lakes and reservoirs) which offer important opportunities for sport and recreation and can act as a visual amenity.

Original Building: A building as it existed on 1 July 1948 or, if constructed after 1 July 1948, as it was built originally.

Out of Centre: A location which is not in or on the edge of a centre but not necessarily outside the urban area.

Out of Town: A location out of centre that is outside the existing urban area.

People with Disabilities: People have a disability if they have a physical or mental impairment, and that impairment has a substantial and long-term adverse effect on their ability to carry out normal day-to-day activities. These persons include, but are not limited to, people with ambulatory difficulties, blindness, learning difficulties, autism and mental health needs.

Permanent Inundation: Coastal land lost permanently to the sea.

Pitch/plot: Area of land on a site/development generally home to one licensee household. Can be varying sizes and have varying caravan occupancy levels. Often also referred to as a plot, particularly in relation to Travelling Showpeople. There is no agreed definition as to the size of a pitch, but may be regarded as being sufficient to house a mobile home and tourer and ancillary buildings and equipment.

Planning Condition: A condition imposed on a grant of planning permission (in accordance with the Town and Country Planning Act 1990) or a condition included in a Local Development Order or Neighbourhood Development Order.

Planning Obligation: A legally enforceable obligation entered into under section 106 of the Town and Country Planning Act 1990 to mitigate the impacts of a development proposal.

Playing Field: The whole of a site which encompasses at least one playing pitch as defined in the Town and Country Planning (Development Management Procedure) (England) Order 2010.

Pollution: Anything that affects the quality of land, air, water or soils, which might lead to an adverse impact on human health, the natural environment or general amenity. Pollution can arise from a range of emissions, including smoke, fumes, gases, dust, steam, odour, noise and light.

Previously Developed Land: Land which is or was occupied by a permanent structure, including the curtilage of the developed land (although it should not be assumed that the whole of the curtilage should be developed) and any associated fixed surface infrastructure. This excludes: land that is or has been occupied by agricultural or forestry buildings; land that has been developed for minerals extraction or waste disposal by landfill purposes where provision for restoration has been made through development control procedures; land in built-up areas such as private residential gardens, parks, recreation grounds and allotments; and land that was previously-developed but where the remains of the permanent structure or fixed surface structure have blended into the landscape in the process of time.

Primary Shopping Frontages: Primary frontages are likely to include a high proportion of retail uses which may include food, drinks, clothing and household goods.

Priority Habitats and Species: Species and Habitats of Principal Importance included in the England Biodiversity List published by the Secretary of State under section 41 of the Natural Environment and Rural Communities Act 2006.

Public realm: The space between, and within, buildings that is publicly accessible, including streets, squares, forecourts, parks and open spaces.

Ramsar Sites: Wetlands of international importance, designated under the 1971 Ramsar Convention.

Registered Social Landlords: A housing association, housing trust, housing cooperative or housing company that provides housing mainly for households in need either for rent or under shared equity arrangements.

Renewable and Low Carbon Energy: Includes energy for heating and cooling as well as generating electricity. Renewable energy covers those energy flows that occur naturally and repeatedly in the environment – from the wind, the fall of water, the movement of the oceans, from the sun and also from biomass and deep geothermal heat. Low carbon technologies are those that can help reduce emissions (compared to conventional use of fossil fuels).

Rural Exception Sites: Small sites used for affordable housing in perpetuity where sites would not normally be used for housing. Rural exception sites seek to address the needs of the local community by accommodating households who are either current residents or have an existing family or employment connection. Small numbers of market homes may be allowed at the local authority's discretion, for example where essential to enable the delivery of affordable units without grant funding.

Section 106 (S.106)/Planning Obligations: Planning obligations, also known as Section 106 agreements, are legally binding agreements typically negotiated between local authorities and developers in the context of planning applications and are often site specific, and or relate to some type of supporting infrastructure provision. They are a mechanism by which measures are secured to make development acceptable which would otherwise be unacceptable in planning terms.

Seascape: An area of sea, coastline and land, as perceived by people, whose character results from the actions and interactions of land with sea, by natural and/or human factors.

Secondary Shopping Frontages: Secondary frontages provide greater opportunities for a diversity of uses such as restaurants, cinemas and businesses.

Settled community/people: Reference to non-Travellers (those who live in houses).

Science Park: The UK Science Park Association (UKSPA) describes a Science Park as a business support environment that encourages and supports the start-up, incubation and development of innovation-led, high-growth, knowledge-based businesses; initiatives called by other names such as Research Park, Innovation Centre, Technology Park, Technopole or technology-based Incubator – where they aspire to meet the essential criteria set out above are also included within the definition.

Shared economy: Also known as collaborative consumption, is an economic arrangement in which participants share access to products or services, rather than having individual ownership; often this is enabled by connecting with others online. This could include, for example, making a spare room available, car sharing or giving time to others.

Shoreline Management Plans: A Shoreline Management Plan (SMP) is a large-scale assessment of the risks associated with coastal processes and helps reduce these risks to people and the developed, historic and natural environments. Coastal processes include tidal patterns, wave height, wave direction and the movement of beach and seabed materials.

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Significance (for heritage policy): The value of a heritage asset to this and future generations because of its heritage interest. That interest may be archaeological, architectural, artistic or historic. Significance derives not only from a heritage asset's physical presence, but also from its setting.

Site Investigation Information: Includes a risk assessment of land potentially affected by contamination, or ground stability and slope stability reports, as appropriate. All investigations of land potentially affected by contamination should be carried out in accordance with established procedures (such as BS10175 (2001) Code of Practice for the Investigation of Potentially Contaminated Sites). The minimum information that should be provided by an applicant is the report of a desk study and site reconnaissance.

Site of Special Scientific Interest: Sites designated by Natural England under the Wildlife and Countryside Act 1981.

Special Areas of Conservation: Areas given special protection under the European Union's Habitats Directive, which is transposed into UK law by the Habitats and Conservation of Species Regulations 2010.

Special Protection Areas: Network of areas within European Union countries that have been identified as being of international importance for the breeding, feeding, wintering or the migration of rare and vulnerable species of birds. These sites are designated under the EU Birds Directive.

Static caravan: Larger caravan than the 'tourer' type. Can be moved but only with the use of a large vehicle. Often referred to simply as a trailer.

Stepping Stones: Pockets of habitat that, while not necessarily connected, facilitate the movement of species across otherwise inhospitable landscapes.

Strategic Environmental Assessment: A procedure (set out in the Environmental Assessment of Plans and Programmes Regulations 2004) which requires the formal environmental assessment of certain plans and programmes which are likely to have significant effects on the environment.

Strategic Flood Risk Assessment: The requirement to undertake a SFRA is set out in Government guidance.

Supplementary Planning Documents: Documents which add further detail to the policies in the Local Plan. They can be used to provide further guidance for development on specific sites, or on particular issues, such as design. Supplementary planning documents are capable of being a material consideration in planning decisions but are not part of the development plan.

Sustainable Transport Modes: Any efficient, safe and accessible means of transport with overall low impact on the environment, including walking and cycling, low and ultra low emission vehicles, car sharing and public transport.

Sustainable Urban Drainage System (SuDS): Means of managing surface water drainage to reduce flooding and pollution impacts.

Swale Public Services Board: Body that brings together senior representatives from the key statutory, voluntary, community and business sectors in the Borough with the aim of improving the quality of life for local people and for greater effectiveness and efficiency to oversee and shape the local delivery of services. Its role is to manage the delivery of the priorities set out in the strategy Realising our Ambitions for Swale and the county-wide Vision for Kent.

Swale's Sustainable Community Strategy: Created by the Swale Local Strategic Partnership, called Ambitions for Swale 2009 - 2026, which sets out a broad vision for promoting or improving the economic, social and environmental wellbeing of an area, together with proposals for delivering that vision.

Sustainable Transport Modes: Any efficient, safe and accessible means of transport with overall low impact on the environment, including walking and cycling, low and ultra low emission vehicles, car sharing and public transport.

Tourer: A movable caravan.

Town Centre: Area defined on the local authority's proposal map, including the primary shopping area and areas predominantly occupied by main town centre uses within or adjacent to the primary shopping area. References to town centres or centres apply to city centres, town centres, district centres and local centres but exclude small parades of shops of purely neighbourhood significance. Unless they are identified as centres in Local Plans, existing out-of-centre developments, comprising or including main town centre uses, do not constitute town centres.

Transit site: Site intended for short stays. Such sites are usually permanent, but there is a limit on the length of time residents can stay.

Transport Assessment: A comprehensive and systematic process that sets out transport issues relating to a proposed development. It identifies what measures will be required to improve accessibility and safety for all modes of travel, particularly for alternatives to the car such as walking, cycling and public transport and what measures will need to be taken to deal with the anticipated transport impacts of the development.

Transport Statement: A simplified version of a transport assessment where it is agreed the transport issues arising out of development proposals are limited and a full transport assessment is not required.

Travelling Showpeople: Commonly referred to as Showmen, these are a group of occupational Travellers who work on travelling shows and fairs across the UK and abroad.

Travel Plan: A long-term management strategy for an organisation or site that seeks to deliver sustainable transport objectives through action and is articulated in a document that is regularly reviewed.

Wildlife Corridor: Areas of habitat connecting wildlife populations.

Windfall Sites: Sites which have not been specifically identified as available in the Local Plan process. They normally comprise previously-developed sites that have unexpectedly become available.

Acronyms

AA Appropriate Assessment

AONB Areas of Outstanding Natural Beauty

AMR Annual Monitoring Report

AQMA Air Quality Management Area

BAP Biodiversity Action Plan

BREEAM Building Research Establishment Environmental Assessment Methodology

BSF Building Schools for the Future

CCG Clinical Commissioning Group

CHP Combined Heat and Power

CCHP Combined Cooling, Heat and Power

CCMA Coastal Change Management Area

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CIL Community Infrastructure Levy

CPRE Campaign to Protect Rural England

DEFRA Department of the Environment, Food and Rural Affairs

DPD Development Plan Documents

ELR EmploymentLand Review

EIP Examination in Public

GTAA Gypsy and Travellers Accommodation Assessment

GVA - Gross Value Added

HCA Homes and Communities Agency

HIA Health Impact Assessment

HRA Habitats Regulation Assessment

LEP Local Enterprise Partnership

KCC Kent County Council

KSP Kent Science Park

LDF Local Development Framework

LSP Local Strategic Partnership

LTP Local Transport Plan

NCERM National Coastal Erosion Risk Mapping Project

NFU National Farmers Union

NPPF National Planning Policy Framework

NP Neighbourhood Plan

PCT Primary Care Trust

PYO “Pick Your Own” Consultation Document

PPG Planning Policy Guidance

PPS Planning Policy Statement

SA/SEA Sustainability Appraisal/ Sustainable Environmental Assessment

SBC Swale Borough Council

SCI Statement of Community Involvement

SCS Sustainable Community Strategy

SELEP South East Local Enterprise Partnership

SFRA	Strategic Flood Risk Assessment
SHMA	Strategic Housing Market Assessment
SHLAA	Strategic Housing Land Availability Assessment
SNCI	Sites of Nature Conservation Importance
SNRR	Sittingbourne Northern Relief Road
SSRR	Sittingbourne Southern Relief Road
SMEs	Small/Medium Enterprises
SMP	Shoreline Management Plan
SPD	Supplementary Planning Document
SRN	Strategic Road Network
STS	Sustainable Transport Strategy
SuDS	Sustainable Urban Drainage Systems